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John A. Pogan



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John A. Logan

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THE GREAT CONSPIRACY

By John Logan

Its Origin and History

*This Volume is dedicated
to the young men of our Country*
John A. Logan
Washington D.C.

THE
GREAT CONSPIRACY:

Its Origin and History.

BY
JOHN A. LOGAN.

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PREFACE.

In the preparation of this work it has been the writer's aim to present in it, with historical accuracy, authentic facts; to be fair and impartial in grouping them; and to be true and just in the conclusions necessarily drawn from them. While thus striving to be accurate, fair, and just, he has not thought it his duty to mince words, nor to refrain from "calling things by their right names;" neither has he sought to curry favor, in any quarter, by fulsome adulation on the one side, nor undue denunciation on the other, either of the living, or of the dead. But, while tracing the history of the Great Conspiracy, from its obscure birth in the brooding brains of a few ambitious men of the earliest days of our Republic, through the subsequent years of its devolution, down to the evil days of Nullification, and to the bitter and bloody period of armed Rebellion, or contemplating it in its still more recent and, perhaps, more sinister development, of to-day, he has conscientiously dealt with it, throughout, in the clear and penetrating light of the voluminous records so readily accessible at the seat of our National Government. So far as was practicable, he has endeavored to allow the chief characters in that Conspiracy—as well as the Union leaders, who, whether in Executive, Legislative, or Military service, devoted their best abilities and energies to its suppression—to speak for themselves, and thus while securing their own proper places in history, by a process of self-adjustment as it were, themselves to write down that history in their own language. If then there be found within these covers aught which may seem harsh to those directly or indirectly, nearly or remotely, connected with that Conspiracy, he may not unfairly exclaim: "Thou canst not say I did it." If he knows his own heart, the writer can truly declare, with his hand upon it, that it bears neither hatred, malice, nor uncharitableness, to those who, misled

by the cunning secrecy of the Conspirators, and without an inkling or even a suspicion of their fell purposes, went manfully into the field, with a courage worthy of a better cause, and for four years of bloody conflict, believing that their cause was just, fought the armies of the Union, in a mad effort to destroy the best government yet devised by man upon this planet. And, perhaps, none can better understand than he, how hard, how very hard, it must be for men of strong nature and intense feeling, after taking a mistaken stand, and especially after carrying their conviction to the cannon's mouth, to acknowledge their error before the world. Hence, while he has endeavored truly to depict—or to let those who made history at the time help him to depict—the enormity of the offence of the armed Rebellion and of the heresies and plottings of certain Southern leaders precipitating it, yet not one word will be found, herein, condemnatory of those who, with manly candor, soldierly courage, and true patriotism, acknowledged that error when the ultimate arbitrament of the sword had decided against them. On the contrary, to all such as accept, in good faith, the results of the war of the Rebellion, the writer heartily holds out the hand of forgiveness for the past, and good fellowship for the future.

WASHINGTON, D. C.

April 15, 1886.

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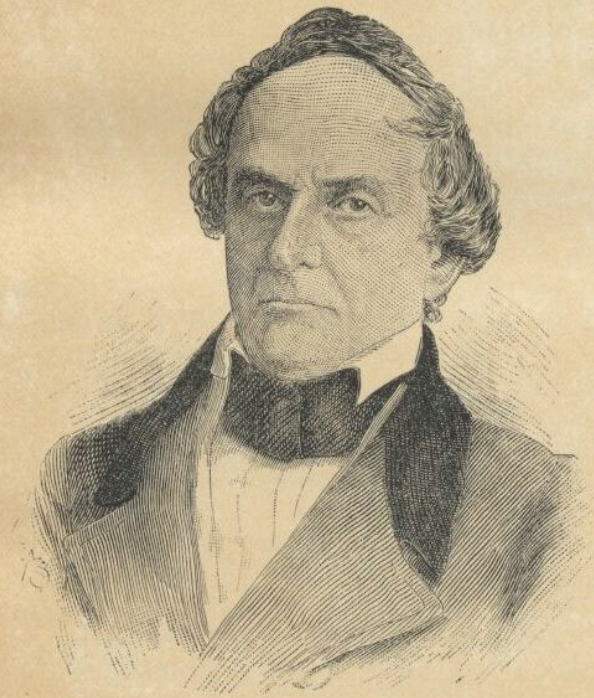
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CHAPTER I.

A PRELIMINARY RETROSPECT.

To properly understand the condition of things preceding the great war of the Rebellion, and the causes underlying that condition and the war itself, we must glance backward through the history of the Country to, and even beyond, that memorable 30th of November, 1782, when the Independence of the United States of America was at last conceded by Great Britain. At that time the population of the United States was about 2,500,000 free whites and some 500,000 black slaves. We had gained our Independence of the Mother Country, but she had left fastened upon us the curse of Slavery. Indeed African Slavery had already in 1620 been implanted on the soil of Virginia before Plymouth Rock was pressed by the feet of the Pilgrim Fathers, and had spread, prior to the Revolution, with greater or less rapidity, according to the surrounding adaptations of soil, production and climate, to every one of the thirteen Colonies.

But while it had thus spread more or less throughout all the original Colonies, and was, as it were, recognized and acquiesced in by all, as an existing and established institution, yet there were many, both in the South and North, who looked upon it as an evil—an inherited evil—and were anxious to prevent the increase of that evil. Hence it was that even as far back as 1699, a controversy sprang up between the Colonies and the Home Government, upon the African Slavery question—a controversy continuing with more or less vehemence down to the Declaration of Independence itself.

It was this conviction that it was not alone an evil but a dangerous evil, that induced Jefferson to embody in his original draft of that Declaration a clause strongly condemnatory of the African Slave Trade—a clause afterward omitted from it solely, he tells us, "in complaisance to South Carolina and Georgia, who had never* attempted to restrain the importation of slaves, and who, on the contrary, still wished to continue it," as well as in

deference to the sensitiveness of Northern people, who, though having few slaves themselves, "had been pretty considerable carriers of them to others" a clause of the great indictment of King George III., which, since it was not omitted for any other reason than that just given, shows pretty conclusively that where the fathers in that Declaration affirmed that "all men are created equal," they included in the term "men," black as well as white, bond as well as free; for the clause ran thus: "Determined to keep open a market where MEN should be bought and sold, he has prostituted his negative for suppressing every Legislative attempt to prohibit or to restrain this execrable commerce. And that this assemblage of horrors might want no fact of distinguished dye, he is now exciting those very people to rise in arms among us, and purchase that liberty of which he has deprived them, by murdering the people on whom he also obtruded them; thus paying of former crimes committed against the LIBERTIES of our people with crimes which he urges them to commit against the LIVES of another."

[Prior to 1752, when Georgia surrendered her charter and became a Royal Colony, the holding of slaves within its limits was expressly prohibited by law; and the Darien (Ga.) resolutions of 1775 declared not only a "disapprobation and abhorrence of the unnatural practice of Slavery in America" as "a practice founded in injustice and cruelty, and highly dangerous to our Liberties (as well as lives) but a determination to use our utmost efforts for the manumission of our slaves in this colony upon the most safe and equitable footing for the masters and themselves."]

During the war of the Revolution following the Declaration of Independence, the half a million of slaves, nearly all of them in the Southern States, were found to be not only a source of weakness, but, through the incitements of British emissaries, a standing menace of peril to the Slaveholders. Thus it was that the South was overrun by hostile British armies, while in the North—comparatively free of this element of weakness—disaster after disaster met them. At last, however, in 1782, came the recognition of our Independence, and peace, followed by the evacuation of New York at the close of 1783.

The lessons of the war, touching Slavery, had not been lost upon our statesmen. Early in 1784 Virginia ceded to the United States her claims of jurisdiction and otherwise over the vast territory north-west of the Ohio; and upon its acceptance, Jefferson, as chairman of a Select Committee appointed at his instance to consider a plan of government therefor, reported to the ninth Continental Congress an Ordinance to govern the territory ceded already, or to be ceded, by individual States to the United States, extending from the 31st to the 47th degree of north latitude, which provided as "fundamental conditions between the thirteen original States and those newly described" as embryo States thereafter—to be carved out of such territory ceded or to be ceded to the United States, not only that "they shall forever remain a part of the United States of America," but also that "after the year 1800 of the Christian era, there shall be neither Slavery nor involuntary servitude in any of the said States"—and that those fundamental conditions were "unalterable but by the joint consent of the United States in Congress assembled, and of the particular State within which such alteration is proposed to be made."

But now a signal misfortune befell. Upon a motion to strike out the clause prohibiting Slavery, six States: New Hampshire, Massachusetts, Rhode Island, Connecticut, New York and Pennsylvania, voted to retain the prohibitive clause, while three States, Maryland, Virginia and South Carolina, voted not to retain it. The vote of North Carolina was equally divided; and while one of the Delegates from New Jersey voted to retain it, yet as there was no other delegate present from that State, and the Articles of Confederation required the presence of "two or more" delegates to cast the vote of a State, the vote of New Jersey was lost; and, as the same Articles required an affirmative vote of a majority of all the States—and not simply of those present—the retention of the clause prohibiting Slavery was also lost. Thus was lost the great opportunity of restricting Slavery to the then existing Slave States, and of settling the question peaceably for all time. Three years afterward a similar Ordinance, since become famous as "the Ordinance of '87," for the government of the North-west Territory (from which the Free States of Ohio, Indiana, Illinois, Michigan and Wisconsin have since been carved and admitted to the Union) was adopted in Congress by the unanimous vote of all the eight States present. And the sixth article of this Ordinance, or "Articles of Compact," which it was

stipulated should "forever remain unalterable, unless by common consent," was in these words:

"Art. 6. There shall be neither Slavery nor involuntary servitude in the said Territory, otherwise than in punishment of crimes, whereof the party shall have been duly convicted; provided always that any person escaping into the same from whom labor or service is lawfully claimed in any one of the original States, such fugitive may be lawfully reclaimed, and conveyed to the person claiming his or her labor, or service, as aforesaid."

But this Ordinance of '87, adopted almost simultaneously with the framing of our present Federal Constitution, was essentially different from the Ordinance of three years previous, in this: that while the latter included the territory south of the Ohio River as well as that north-west of it, this did not; and as a direct consequence of this failure to include in it the territory south of that river, the States of Tennessee, Alabama and Mississippi, which were taken out of it, were subsequently admitted to the Union as Slave States, and thus greatly augmented their political power. And at a later period it was this increased political power that secured the admission of still other Slave States—as Florida, Louisiana and Texas—which enabled the Slave States to hold the balance of such power as against the original States that had become Free, and the new Free States of the North-west.

Hence, while in a measure quieting the great question of Slavery for the time being, the Ordinance of '87 in reality laid the ground-work for the long series of irritations and agitations touching its restrictions and extension, which eventually culminated in the clash of arms that shook the Union from its centre to its circumference. Meanwhile, as we have seen—while the Ordinance of 1787 was being enacted in the last Congress of the old Confederation at New York—the Convention to frame the present Constitution was sitting at Philadelphia under the Presidency of George Washington himself. The old Confederation had proved itself to be "a rope of sand." A new and stronger form of government had become a necessity for National existence.

To create it out of the discordant elements whose harmony was essential to success, was an herculean task, requiring the utmost forbearance, unselfishness, and wisdom. And of all the great questions, dividing the framers of that Constitution, perhaps none of them required a higher degree of self abnegation and patriotism than those touching human Slavery.

The situation was one of extreme delicacy. The necessity for a closer and stronger Union of all the States was apparently absolute, yet this very necessity seemed to place a whip in the hands of a few States, with which to coerce the greater number of States to do their bidding. It seemed that the majority must yield to a small minority on even vital questions, or lose everything.

Thus it was, that instead of an immediate interdiction of the African Slave Trade, Congress was empowered to prohibit it after the lapse of twenty years; that instead of the basis of Congressional Representation being the total population of each State, and that of direct taxation the total property of each State, a middle ground was conceded, which regarded the Slaves as both persons and property, and the basis both of Representation and of Direct Taxation was fixed as being the total Free population "plus three-fifths of all other persons" in each State; and that there was inserted in the Constitution a similar clause to that which we have seen was almost simultaneously incorporated in the Ordinance of '87, touching the reclamation and return to their owners of Fugitive Slaves from the Free States into which they may have escaped.

The fact of the matter is, that the Convention that framed our Constitution lacked the courage of its convictions, and was "bulldozed" by the few extreme Southern Slave-holding States—South Carolina and Georgia especially. It actually paltered with those convictions and with the truth itself. Its convictions—those at least of a great majority of its delegates—were against not only the spread, but the very existence of Slavery; yet we have seen what they unwillingly agreed to in spite of those convictions; and they were guilty moreover of the subterfuge of using the terms "persons" and "service or labor" when they really meant "Slaves" and "Slavery." "They did this latter," Mr. Madison says, "because they did not choose to admit the right of property in man," and yet in fixing the basis of Direct Taxation as well as Congressional Representation at the total Free population of each State with "three-fifths of all other persons," they did admit the right of property in man! As was stated by Mr. Iredell to the North Carolina Ratification Convention, when explaining the Fugitive Slave clause: "Though the word 'Slave' is not mentioned, this is the meaning of it." And he added: "The Northern delegates, owing to their peculiar scruples on the subject of Slavery, did not choose the word 'Slave' to be mentioned."

In March, 1789, the first Federal Congress met at New York. It at once enacted a law in accordance with the terms of the Ordinance of '87—adapting it to the changed order of things under the new Federal Constitution—prohibiting Slavery in the Territories of the North-west; and the succeeding Congress enacted a Fugitive-Slave law.

In the same year (1789) North Carolina ceded her western territory (now Tennessee) south of the Ohio, to the United States, providing as one of the conditions of that cession, "that no regulation made, or to be made, by Congress, shall tend to emancipate Slaves." Georgia, also, in 1802, ceded her superfluous territorial domain (south of the Ohio, and now known as Alabama and Mississippi), making as a condition of its acceptance that the Ordinance of '87 "shall, in all its parts, extend to the territory contained in the present act of cession, the article only excepted which forbids Slavery."

Thus while the road was open and had been taken advantage of, at the earliest moment, by the Federal Congress to prohibit Slavery in all the territory north-west of the Ohio River by Congressional enactment, Congress considered itself barred by the very conditions of cession from inhibiting Slavery in the territory lying south of that river. Hence it was that while the spread of Slavery was prevented in the one Section of our outlying territories by Congressional legislation, it was stimulated in the other Section by the enforced absence of such legislation. As a necessary sequence, out of the Territories of the one Section grew more Free States and out of the other more Slave States, and this condition of things had a tendency to array the Free and the Slave States in opposition to each other and to Sectionalize the flames of that Slavery agitation which were thus continually fed.

Upon the admission of Ohio to Statehood in 1803, the remainder of the North-west territory became the Territory of Indiana. The inhabitants of this Territory (now known as the States of Indiana, Illinois, Michigan and Wisconsin), consisting largely of settlers from the Slave States, but chiefly from Virginia and Kentucky, very persistently (in 1803, 1806 and 1807) petitioned Congress for permission to employ Slave Labor, but—although their petitions were favorably reported in most cases by the Committees to which they were referred—without avail, Congress evidently being of opinion that a temporary suspension in this respect of the sixth article of the Ordinance of '87 was "not expedient." These frequent rebuffs by Congress,

together with the constantly increasing emigration from the Free States, prevented the taking of any further steps to implant Slavery on the soil of that Territory.

Meanwhile the vast territory included within the Valley of the Mississippi and known at that day as the "Colony of Louisiana," was, in 1803, acquired to the United States by purchase from the French—to whom it had but lately been retroceded by Spain. Both under Spanish and French rule, Slavery had existed throughout this vast yet sparsely populated region. When we acquired it by purchase, it was already there, as an established "institution;" and the Treaty of acquisition not only provided that it should be "incorporated into the Union of the United States, and admitted as soon as possible, according to the principles of the Federal Constitution," but that its inhabitants in the meantime "should be maintained and protected in the free enjoyment of their liberty, property, and the religion which they professed"—and, as "the right of property in man" had really been admitted in practice, if not in theory, by the framers of that Constitution itself—that institution was allowed to remain there. Indeed the sparseness of its population at the time of purchase and the amazing fertility of its soil and adaptability of its climate to Slave Labor, together with the then recent invention by Eli Whitney, of Massachusetts, of that wonderful improvement in the separation of cotton-fibre from its seed, known as the "cotton-gin"—which with the almost simultaneous inventions of Hargreaves, and Arkwright's cotton-spinning machines, and Watt's application of his steam engine, etc., to them, marvelously increased both the cotton supply and demand and completely revolutionized the cotton industry—contributed to rapidly and thickly populate the whole region with white Slave-holders and black Slaves, and to greatly enrich and increase the power of the former.

When Jefferson succeeded in negotiating the cession of that vast and rich domain to the United States, it is not to be supposed that either the allurements of territorial aggrandizement on the one hand, or the impending danger to the continued ascendancy of the political party which had elevated him to the Presidency, threatening it from all the irritations with republican France likely to grow out of such near proximity to her Colony, on the other, could have blinded his eyes to the fact that its acquisition must inevitably tend to the spread of that very evil, the contemplation of which, at a later day, wrung from his lips the prophetic words, "I tremble for my Country when I reflect that God is just." It is more reasonable to suppose

that, as he believed the ascendancy of the Republican party of that day essential to the perpetuity of the Republic itself, and revolted against being driven into an armed alliance with Monarchical England against what he termed "our natural friend," Republican France, he reached the conclusion that the preservation of his Republican principles was of more immediate moment than the question of the perpetuation and increase of human Slavery. Be that as it may, it none the less remains a curious fact that it was to Jefferson, the far-seeing statesman and hater of African Slavery and the author of the Ordinance of 1784—which sought to exclude Slavery from all the Territories of the United States south of, as well as north-west of the Ohio River—that we also owe the acquisition of the vast territory of the Mississippi Valley burdened with Slavery in such shape that only a War, which nearly wrecked our Republic, could get rid of!

Out of that vast and fertile, but Slave-ridden old French Colony of "Louisiana" were developed in due time the rich and flourishing Slave States of Louisiana, Missouri and Arkansas.

It will have been observed that this acquisition of the Colony of Louisiana and the contemporaneous inventions of the cotton-gin, improved cotton-spinning machinery, and the application to it of steam power, had already completely neutralized the wisdom of the Fathers in securing, as they thought, the gradual but certain extinction of Slavery in the United States, by that provision in the Constitution which enabled Congress, after an interval of twenty years, to prohibit the African Slave Trade; and which led the Congress, on March 22, 1794, to pass an Act prohibiting it; to supplement it in 1800 with another Act in the same direction; and on March 2, 1807, to pass another supplemental Act—to take effect January 1, 1808—still more stringent, and covering any such illicit traffic, whether to the United States or with other countries. Never was the adage that, "The best laid schemes o' mice an' men gang aft agley," more painfully apparent. Slaves increased and multiplied within the land, and enriched their white owners to such a degree that, as the years rolled by, instead of compunctions of conscience on the subject of African Slavery in America, the Southern leaders ultimately persuaded themselves to the belief that it was not only moral, and sanctioned by Divine Law, but that to perpetuate it was a philanthropic duty, beneficial to both races! In fact one of them declared it to be "the highest type of civilization."

In 1812, the State of Louisiana, organized from the purchased Colony of the same name, was admitted to the Union, and the balance of the Louisiana purchase was thereafter known as the Territory of Missouri.

In 1818 commenced the heated and protracted struggle in Congress over the admission of the State of Missouri—created from the Territory of that name—as a Slave State, which finally culminated in 1820 in the settlement known thereafter as the "Missouri Compromise."

Briefly stated, that struggle may be said to have consisted in the efforts of the House on the one side, to restrict Slavery in the State of Missouri, and the efforts of the Senate on the other, to give it free rein. The House insisted on a clause in the Act of admission providing, "That the introduction of Slavery or involuntary servitude be prohibited, except for the punishment of crimes whereof the party has been duly convicted; and that all children born within the said State, after the admission thereof into the Union, shall be declared Free at the age of twenty-five years." The Senate resisted it—and the Bill fell. In the meantime, however, a Bill passed both Houses forming the Territory of Arkansas out of that portion of the Territory of Missouri not included in the proposed State of Missouri, without any such restriction upon Slavery. Subsequently, the House having passed a Bill to admit the State of Maine to the Union, the Senate amended it by tacking on a provision authorizing the people of Missouri to organize a State Government, without restriction as to Slavery. The House decidedly refused to accede to the Senate proposition, and the result of the disagreement was a Committee of Conference between the two Houses, and the celebrated "Missouri Compromise," which, in the language of another—[Hon. John Holmes of Massachusetts, of said Committee on Conference, March 2, 1820.]—, was: "that the Senate should give up its combination of Missouri with Maine; that the House should abandon its attempt to restrict Slavery in Missouri; and that both Houses should concur in passing the Bill to admit Missouri as a State, with" a "restriction or proviso, excluding Slavery from all territory north and west of the new State"—that "restriction or proviso" being in these words: "That in all that territory ceded by France to the United States under the name of Louisiana, which lies north of thirty-six degrees, thirty minutes north latitude, excepting only such part thereof as is included within the limits of the State contemplated by this act, Slavery and involuntary servitude, otherwise than in the punishment of crime, whereof the party shall have been duly convicted, shall be and is hereby forever

prohibited; Provided always, that any person escaping into the same, from whom labor and service is lawfully claimed in any State or Territory of the United States, such Fugitive may be lawfully reclaimed and conveyed to the person claiming his or her labor or service, as aforesaid." At a subsequent session of Congress, at which Missouri asked admission as a State with a Constitution prohibiting her Legislature from passing emancipation laws, or such as would prevent the immigration of Slaves, while requiring it to enact such as would absolutely prevent the immigration of Free Negroes or Mulattoes, a further Compromise was agreed to by Congress under the inspiration of Mr. Clay, by which it was laid down as a condition precedent to her admission as a State—a condition subsequently complied with—that Missouri must pledge herself that her Legislature should pass no act "by which any of the citizens of either of the States should be excluded from the enjoyment of the privileges and immunities to which they are entitled under the Constitution of the United States."

This, in a nut-shell, was the memorable Missouri Struggle, and the "Compromise" or Compromises which settled and ended it. But during that struggle—as during the formation of the Federal Constitution and at various times in the interval when exciting questions had arisen—the bands of National Union were more than once rudely strained, and this time to such a degree as even to shake the faith of some of the firmest believers in the perpetuity of that Union. It was during this bitter struggle that John Adams wrote to Jefferson: "I am sometimes Cassandra enough to dream that another Hamilton, another Burr, may rend this mighty fabric in twain, or perhaps into a leash, and a few more choice spirits of the same stamp might produce as many Nations in North America as there are in Europe."

It is true that we had "sown the wind," but we had not yet "reaped the whirlwind."



STEPHEN A. DOUGLAS.

CHAPTER II.

PROTECTION AND FREE TRADE.

We have seen that the first Federal Congress met at New York in March, 1789. It organized April 6th. None knew better than its members that the war of the Americana Revolution chiefly grew out of the efforts of Great Britain to cripple and destroy our Colonial industries to the benefit of the British trader, and that the Independence conquered, was an Industrial as well as Political Independence; and none knew better than they, that the failure of the subsequent political Confederation of States was due mainly to its failure to encourage and protect the budding domestic manufactures of those States. Hence they hastened, under the leadership of James Madison, to pass "An Act laying a duty on goods, wares and merchandize imported into the United States," with a preamble, declaring it to be "necessary" for the "discharge of the debt of the United States and the encouragement and protection of manufactures." It was approved by President Washington July 4, 1789—a date not without its significance—and levied imports both specific and ad valorem. It was not only our first Tariff Act, but, next to that prescribing the oath used in organizing the Government, the first Act of the first Federal Congress; and was passed in pursuance of the declaration of President Washington in his first Message, that "The safety and interest of the People" required it. Under the inspiration of Alexander Hamilton the Tariff of 1790 was enacted at the second session of the same Congress, confirming the previous Act and increasing some of the protective duties thereby imposed.

An analysis of the vote in the House of Representatives on this Tariff Bill discloses the fact that of the 39 votes for it, 21 were from Southern States, 13 from the Middle States, and 5 from New England States; while of the 13 votes against it, 9 were from New England States, 3 from Southern States, and 1 from Middle States. In other words, while the Southern States were for the Bill in the proportion of 21 to 3, and the Middle States by 13 to 1,

New England was against it by 9 to 5; or again, while 10 of the 13 votes against it were from the New England and Middle States, 21 (or more than half) of the 39 votes for it were from Southern States.

It will thus be seen—singularly enough in view of subsequent events—that we not only mainly owe our first steps in Protective Tariff legislation to the almost solid Southern vote, but that it was thus secured for us despite the opposition of New England. Nor did our indebtedness to Southern statesmen and Southern votes for the institution of the now fully established American System of Protection cease here, as we shall presently see.

That Jefferson, as well as Washington and Madison, agreed with the views of Alexander Hamilton on Protection to our domestic manufactures as against those of foreign Nations, is evident in his Annual Message of December 14, 1806, wherein—discussing an anticipated surplus of Federal revenue above the expenditures, and enumerating the purposes of education and internal improvement to which he thinks the "whole surplus of impost" should during times of peace be applied; by which application of such surplus he prognosticates that "new channels of communication will be opened between the States; the lines of separation will disappear; their interests will be identified, and their Union cemented by new and indissoluble ties"—he says: "Shall we suppress the impost and give that advantage to foreign over domestic manufactures. On a few articles of more general and necessary use, the suppression in due season, will doubtless be right; but the great mass of the articles on which impost is paid is foreign luxuries, purchased by those only who are rich enough to afford themselves the use of them." But his embargo and other retaliatory measures, put in force in 1807 and 1808, and the War of 1812-15 with Great Britain, which closely followed, furnished Protection in another manner, by shutting the door to foreign imports and throwing our people upon their own resources, and contributed greatly to the encouragement and increase of our home manufactures—especially those of wool, cotton, and hemp.

At the close of that War the traders of Great Britain determined, even at a temporary loss to themselves, to glut our market with their goods and thus break down forever, as they hoped, our infant manufactures. Their purpose and object were boldly announced in the House of Commons by Mr. Brougham, when he said: "Is it worth while to incur a loss upon the first importation, in order by the glut to stifle in the cradle those rising

manufactures in the United States which the War had forced into existence contrary to the natural course of things." Against this threatened ruin, our manufacturers all over the United States—the sugar planters of Louisiana among them—clamored for Protection, and Congress at once responded with the Tariff Act of 1816.

This law greatly extended and increased specific duties on, and diminished the application of the ad valorem principle to, foreign imports; and it has been well described as "the practical foundation of the American policy of encouragement of home manufactures—the practical establishment of the great industrial system upon which rests our present National wealth, and the power and the prosperity and happiness of our whole people." While Henry Clay of Kentucky, William Loundes of South Carolina, and Henry St. George Tucker of Virginia supported the Bill most effectively, no man labored harder and did more effective service in securing its passage than John C. Calhoun of South Carolina. The contention on their part was not for a mere "incidental protection" —much less a "Tariff for revenue only"—but for "Protection" in its broadest sense, and especially the protection of their cotton manufactures. Indeed Calhoun's defense of Protection, from the assaults of those from New England and elsewhere who assailed it on the narrow ground that it was inimical to commerce and navigation, was a notable one. He declared that:

"It (the encouragement of manufactures) produced a system strictly American, as much so as agriculture, in which it had the decided advantage of commerce and navigation. The country will from this derive much advantage. Again it is calculated to bind together more closely our widespread Republic. It will greatly increase our mutual dependence and intercourse, and will, as a necessary consequence, excite an increased attention to internal improvements—a subject every way so intimately connected with the ultimate attainment of national strength and the perfection of our political institutions."

He regarded the fact that it would make the parts adhere more closely; that it would form a new and most powerful cement far outweighing any political objections that might be urged against the system. In his opinion "the liberty and the union of the country were inseparably united; that as the destruction of the latter would most certainly involve the former, so its maintenance will with equal certainty preserve it;" and he closed with an

impressive warning to the Nation of a "new and terrible danger" which threatened it, to wit: "disunion." Nobly as he stood up then—during the last term of his service in the House of Representatives—for the great principles of, the American System of Protection to manufactures, for the perpetuity of the Union, and for the increase of "National strength," it seems like the very irony of fate that a few years later should find him battling against Protection as "unconstitutional," upholding Nullification as a "reserved right" of his State, and championing at the risk of his neck that very "danger" to the "liberties" and life of his Country against which his prophetic words had already given solemn warning.

Strange was it also, in view of the subsequent attitudes of the South and New England, that this essentially Protective Tariff Act of 1816 should have been vigorously protested and voted against by New England, while it was ably advocated and voted for by the South—the 25 votes of the latter which secured its passage being more than sufficient to have secured its defeat had they been so inclined.

The Tariff Acts of 1824 and 1828 followed the great American principle of Protection laid down and supported by the South in the Act of 1816, while widening, increasing, and strengthening it. Under their operation—especially under that of 1828, with its high duties on wool, hemp, iron, lead, and other staples—great prosperity smiled upon the land, and particularly upon the Free States.

In the cotton-growing belt of the South, however, where the prosperity was relatively less, owing to the blight of Slavery, the very contrast bred discontent; and, instead of attributing it to the real cause, the advocates of Free Trade within that region insisted that the Protective Tariff was responsible for the condition of things existing there.

A few restless and discontented spirits in the South had indeed agitated the subject of Free Trade as against Protected manufactures as early as 1797, and, hand in hand with it, the doctrine of States Rights. And Jefferson himself, although, as we have already seen, attached to the American System of Protection and believing in its Constitutionality, unwittingly played into the hands of these Free Traders by drawing up the famous Kentucky Resolutions of '98 touching States Rights, which were closely followed by the Virginia Resolutions of 1799 in the same vein by Madison, also an out-and-out Protectionist. It was mainly in condemnation of the

Alien and Sedition Laws, then so unpopular everywhere, that these resolutions were professedly fulminated, but they gave to the agitating Free Traders a States-Rights-Secession-weapon of which they quickly availed themselves.

Their drift may be gathered from the first of the Kentucky Resolutions of '98, which was in these words: "Resolved, That the several States composing the United States of America are not united on the principle of unlimited submission to their General Government, but that, by a compact under the style and title of a Constitution for the United States, and of amendments thereto, they constituted a General Government for special purposes—delegated to that Government certain definite powers, reserving, each State to itself, the residuary mass of right to their own self-government; and that whensoever the General Government assumes undelegated powers, its acts are unauthoritative, void, and of no force; that to this compact each State acceded as a State, and as an integral party, its co-States forming, as to itself, the other party; that the Government created by this compact was not made the exclusive or final judge of the extent of the powers delegated to itself; since that would have made its discretion, and not the Constitution, the measure of its powers; but that, as in all other cases of compact among powers having no common judge, each party has an equal right to judge for itself, as well of infractions as of the mode and measure of redress."

The Resolutions, after enumerating the Alien and Sedition and certain other laws as in point, conclude by calling upon the other States to join Kentucky in her opposition to such Federal usurpations of power as thus embodied, and express confidence: "That they will concur with this Commonwealth in considering the said Acts as so palpably against the Constitution as to amount to an undisguised declaration that that compact is not meant to be the measure of the powers of the General Government, but that it will proceed in the exercise over these States, of all powers whatsoever; that they will view this as seizing the rights of the States, and consolidating them in the hands of the General Government, with the power assumed to bind the States (not merely as to the cases made federal (*casus foederis*) but) in all cases whatsoever, by laws made, not with their consent, but by others against their consent; that this would be to surrender the form of government we have chosen, and live under one deriving its powers from its own will, and not from our authority; and that the co-States, returning to

their natural rights in cases not made federal, will concur in declaring these Acts void and of no force, and will each take measures of its own in providing that neither these Acts, nor any others of the General Government, not plainly and intentionally authorized by the Constitution, shall be exercised within their respective territories."

The doctrine of States Rights as formulated in these Resolutions, including the assumed right of a State to nullify laws of the General Government, naturally led up, as we shall see, not only to threats of disunion, but ultimately to a dreadful sectional War waged in the effort to secure it. That Jefferson, when he penned them, foresaw the terrible results to flow from these specious and pernicious doctrines, is not to be supposed for an instant; but that his conscience troubled him may be fairly inferred from the fact that he withheld from the World for twenty years afterward the knowledge that he was their author. It is probable that in this case, as in others, he was a victim of that casuistry which teaches that "the end justifies the means;" that he hoped and believed that the assertion of these baleful doctrines would act solely as a check upon any tendency to further centralization of power in the General Government and insure that strict construction of the Constitution.

Though afterward violated by himself at the same time that he for the moment threw aside his scruples touching African slavery, when he added to our domain the great French Slave Colony of Louisiana—was none the less the great aim of his commanding intellect; and that he fortuitously believed in the "saving common sense" of his race and country as capable of correcting an existing evil when it shall have developed into ill effects.

[Mr. Jefferson takes this very ground, in almost the same words, in his letter, 1803, to Wilson C. Nichols in the Louisiana Colony purchase case, when, after proving by his own strict construction of the Constitution that there was no power in that instrument to make such purchase, and confessing the importance in that very case of setting "an example against broad construction," he concludes: "If, however, our friends shall think differently, certainly I shall acquiesce with satisfaction; confiding that the good sense of the country will correct the evil of construction when it shall produce ill effects."]

Be that as it may, however, the fact remains that the seeds thus sown by the hands of Jefferson on the "sacred soil" of Virginia and Kentucky, were dragon's teeth, destined in after years to spring up as legions of armed men battling for the subversion of that Constitution and the destruction of that Union which he so revered, and which he was so largely instrumental in founding—and which even came back in his own life to plague him and Madison during his embargo, and Madison's war of 1812-15, in the utterances and attitude of some of the New England Federalists.

The few Free Traders of the South—the Giles's and John Taylor's and men of that ilk—made up for their paucity in numbers by their unscrupulous ingenuity and active zeal. They put forth the idea that the American Protective Policy was a policy of fostering combinations by Federal laws, the effect of which was to transfer a considerable portion of the profits of slave labor from the Slave States to other parts of the Union where it was massed in the hands of a few individuals, and thus created a moneyed interest which avariciously influenced the General Government to the detriment of the entire community of people, who, made restive by the exactions of this power working through the Federal Government, were as a consequence driven to consider a possible dissolution of the Union, and make "estimates of resources and means of defense." As a means also of inflaming both the poor whites and Southern slave-holders by arousing the apprehensions of the latter concerning the "peculiar institution" of Slavery, they craftily declared that "If the maxim advanced by the advocates of the protecting duty system will justify Congress in assuming, or rather in empowering a few capitalists to assume, the direction of manufacturing labor, it also invests that body with a power of legislating for the direction of every other species of labor and assigning all occupations whatsoever to the care of the intelligence of mercenary combinations"—and hence untold misery to labor.

They charged as a further means of firing the Southern heart, that this moneyed power, born of Protection, "works upon the passion of the States it has been able to delude by computations of their physical strength and their naval superiority; and by boasting of an ability to use the weakening circumstance of negro slavery to coerce the defrauded and discontented States into submission." And they declared as fundamental truths upon which they rested that "The Federal is not a National Government; it is a league between nations. By this league, a limited power only over persons

and property was given to the representatives of the united nations. This power cannot be further extended, under the pretext of national good, because the league does not create a national government."

It was the passage of the Tariff of 1824 that gave these crafty Free Traders their first great success in spreading their doctrine of Free Trade by coupling it with questions of slave labor, States Rights, and nullification, as laid down in the Kentucky and Virginia resolutions. These arguments created great excitement throughout the South—especially in South Carolina and Georgia—which was still further increased by the passage of the Tariff of 1828, since declared by eminent authority to have been "the highest and most protective ever adopted in this country."

*[Mr. Greeley, in his "History of the American Conflict,"
1864.]*

Prior to the passage of this Tariff Act, excited assemblages met in some of the Southern States, and protested against it as an outrage upon their rights—arraying the South in seditious and treasonable attitude against not only the North but the Union, with threats of Secession. At one of these meetings in South Carolina, in 1827, one of their leaders—[Dr. Thomas Cooper, President of South Carolina College.]—declared that "a drilled and managed majority" in the House of Representatives had determined "at all hazards to support the claims of the Northern manufacturers, and to offer up the planting interest on the altar of monopoly." He denounced the American system of Protection exemplified in that Tariff measure as "a system by which the earnings of the South are to be transferred to the North—by which the many are to be sacrificed to the few—under which powers are usurped that were never conceded—by which inequality of rights, inequality of burthens, inequality of protection, unequal laws, and unequal taxes are to be enacted and rendered permanent—that the planter and the farmer under this system are to be considered as inferior beings to the spinner, the bleacher, and the dyer—that we of the South hold our plantations under this system, as the serfs and operatives of the North, subject to the orders and laboring for the benefit of the master-minds of Massachusetts, the lords of the spinning jenny and peers of the power-loom, who have a right to tax our earnings for their emolument, and to burthen our poverty and to swell their riches;" and after characterizing Protection as "a

system of fraud, robbery and usurpation," he continued "I have said that we shall ere long be compelled to calculate the value of our Union; and to enquire of what use to us is this most unequal alliance, by which the South has always been the loser and the North always the gainer. Is it worth our while to continue this union of States, where the North demands to be our masters and we are required to be their tributaries? who with the most insulting mockery call the yoke they put upon our necks the 'American system!' The question, however, is fast approaching the alternative of submission or separation."

Only a few days after this inflammatory speech at Columbus, S. C., inciting South Carolinians to resist the pending Protective Tariff even to the lengths of Secession, during a grand banquet at Richmond, Va., William B. Giles—another Free Trade leader—proposed, and those present drank a toast to the "Tariff Schemer" in which was embodied a declaration that "The Southerners will not long pay tribute." Despite these turbulent and treasonable mutterings, however, the "Jacksonian Congress" passed the Act—a majority of members from the Cotton and New England States voting against, while the vote of the Middle and Western Free States was almost solidly for, it.

At a meeting held soon after the enactment of the Tariff of 1828, at Walterborough Court House, S. C., an address was adopted and issued which, after reciting the steps that had been taken by South Carolina during the previous year to oppose it, by memorials and otherwise, and stating that, despite their "remonstrances and implorations," a Tariff Bill had passed, not indeed, such as they apprehended, but "ten-fold worse in all its oppressive features," proceeded thus:

"From the rapid step of usurpation, whether we now act or not, the day of open opposition to the pretended powers of the Constitution cannot be far off, and it is that it may not go down in blood that we now call upon you to resist. We feel ourselves standing underneath its mighty protection, and declaring forth its free and recorded spirit, when we say we must resist. By all the great principles of liberty—by the glorious achievements of our fathers in defending them—by their noble blood poured forth like water in maintaining them—by their lives in suffering, and their death in honor and in glory;—our countrymen! we must resist. Not secretly, as timid thieves or skulking smugglers—not in companies and associations, like money

chafferers or stock jobbers—not separately and individually, as if this was ours and not our country's cause—but openly, fairly, fearlessly, and unitedly, as becomes a free, sovereign and independent people. Does timidity ask WHEN? We answer NOW!"

These inflammatory utterances, in South Carolina especially, stirred the Southern heart more or less throughout the whole cotton belt; and the pernicious principles which they embodied found ardent advocates even in the Halls of Congress. In the Senate, Mr. Hayne, of South Carolina, was their chief and most vehement spokesman, and in 1830 occurred that memorable debate between him and Daniel Webster, which forever put an end to all reasonable justification of the doctrine of Nullification, and which furnished the ground upon which President Jackson afterward stood in denouncing and crushing it out with the strong arm of the Government.

In that great debate Mr. Hayne's propositions were that the Constitution is a "compact between the States," that "in case of a plain, palpable violation of the Constitution by the General Government, a State may interpose; and that this interposition is constitutional"—a proposition with which Mr. Webster took direct issue, in these words: "I say, the right of a State to annul a law of Congress cannot be maintained, but on the ground of the inalienable right of man to resist oppression; that is to say, upon the ground of revolution. I admit that there is an ultimate violent remedy, above the Constitution and in defiance of the Constitution, which may be resorted to when a revolution is to be justified. But I do not admit that, under the Constitution, and in conformity with it, there is any mode in which a State Government, as a member of the Union, can interfere and stop the progress of the general movement by force of her own laws under any circumstances whatever." Mr. Webster insisted that "one of two things is true: either the laws of the Union are beyond the discretion and beyond the control of the States, or else we have no Constitution of General Government, and are thrust back again to the days of the Confederation;" and, in concluding his powerful argument, he declared that "even supposing the Constitution to be a compact between the States," Mr. Hayne's doctrine was "not maintainable, because, first, the General Government is not a party to the compact, but a Government established by it, and vested by it with the powers of trying and deciding doubtful questions; and secondly, because, if the Constitution be regarded as a compact, not one State only, but all the States are parties to

that compact, and one can have no right to fix upon it her own peculiar construction."

While the comparatively miserable condition of the cotton-growing States of the South was attributed by most of the Southern Free Traders solely to the Protective Tariff of 1828, yet there were some Southerners willing to concede—as did Mr. Hayne, in the Senate (1832)—that there were "other causes besides the Tariff" underlying that condition, and to admit that "Slaves are too improvident, too incapable of that minute, constant, delicate attention, and that persevering industry which are essential to manufacturing establishments," the existence of which would have made those States prosperous. But such admissions were unwilling ones, and the Cotton-lords held only with the more tenacity to the view that the Tariff was the chief cause of their condition.

The Tariff Act of 1832, essentially modifying that of 1828, was passed with a view, in part, to quiet Southern clamor. But the Southern Cotton States refused to be mollified. On the contrary, the Free Traders of South Carolina proceeded to extreme measures, putting in action that which they had before but threatened. On November 19, 1832, the leading men of South Carolina met in Convention, and a few days thereafter—[November 24, 1832]—unanimously passed an Ordinance of Nullification which declared the Tariff Acts of 1828 and 1832 "Unauthorized by the Constitution," and "null, void, and no law, nor binding on this State, its officers, or citizens." The people of the State were forbidden by it to pay, after the ensuing February 1st, the import-duties therein imposed. Under the provisions of the Ordinance, the State Legislature was to pass an act nullifying these Tariff laws, and any appeal to the United States Supreme Court against the validity of such nullifying act was prohibited. Furthermore, in the event of the Federal Government attempting to enforce these Tariff laws, the people of South Carolina would thenceforth consider themselves out of the Union, and will "forthwith proceed to organize a separate Government, and do all other acts and things which sovereign and independent States may of right do."

At the subsequent meeting of the Legislature, Mr. Hayne, who had been a member of the Convention, having resigned his seat in the United States Senate, was elected Governor of the State. He declared in his message that he recognized "No allegiance as paramount to that which the citizens of

South Carolina owe to the State of their birth or their adoption"—that doctrine of "paramount allegiance to the State" which in after-years gave so much trouble to the Union and to Union-loving Southerners—and declared that he held himself "bound by the highest of all obligations to carry into effect, not only the Ordinance of the Convention, but every act of the Legislature, and every judgment of our own Courts, the enforcement of which may devolve upon the Executive," and "if," continued he, "the sacred soil of Carolina should be polluted by the footsteps of an invader, or be stained with the blood of her citizens, shed in her defense, I trust in Almighty God * * * even should she stand alone in this great struggle for constitutional liberty, encompassed by her enemies, that there will not be found, in the wide limits of the State, one recreant son who will not fly to the rescue, and be ready to lay down his life in her defense." In support of the contemplated treason, he even went to the length of calling for an enrolling of volunteer forces and of holding them ready for service.

But while South Carolina stood in this treasonable and defiant attitude, arming for war against the Union, there happened to be in the Presidential chair one of her own sons—General Jackson. Foreseeing what was coming, he had, prior to the meeting of the Convention that framed the Nullification Ordinance, ordered General Scott to Charleston to look after "the safety of the ports of the United States" thereabouts, and had sent to the Collector of that port precise instructions as to his duty to resist in all ways any and all attempts made under such Ordinance to defeat the operation of the Tariff laws aforesaid. Having thus quietly prepared the arm of the General Government for the exercise of its power, he issued in December a Proclamation declaring his unalterable resolution to treat Nullification as Treason—and to crush it.

In that famous document President Jackson said of Nullification: "If this doctrine had been established at an earlier day, the Union would have been dissolved in its infancy. The Excise law in Pennsylvania, the Embargo and Non-intercourse law in the Eastern States, the Carriage-tax in Virginia, were all deemed unconstitutional, and were more unequal in their operation than any of the laws now complained of; but fortunately, none of those States discovered that they had the right now claimed by South Carolina. * * *

The discovery of this important feature in our Constitution was reserved for the present day. To the statesmen of South Carolina belongs the invention, and upon the citizens of that State will unfortunately fall the evils of

reducing it to practice. * * * I consider, then, the power to annul a law of the United States, assumed by one State, incompatible with the existence of the Union, contradicted expressly by the letter of the Constitution, unauthorized by its spirit, inconsistent with every principle on which it was founded and destructive of the great object for which it was formed. * * * To say that any State may at pleasure secede from the Union, is to say that the United States are not a Nation, because it would be a solecism to contend that any part of a Nation might dissolve its connection with the other parts, to their injury or ruin, without committing any, offense."

Farther on, in his moving appeal to the South Carolinians, he bids them beware of their leaders: "Their object is disunion; be not deceived by names. Disunion, by armed force, is Treason." And then, reminding them of the deeds of their fathers in the Revolution, he proceeds: "I adjure you, as you honor their memory, as you love the cause of freedom to which they dedicated their lives, as you prize the peace of your country, the lives of its best citizens, and your own fair fame, to retrace your steps. Snatch from the archives of your State the disorganizing edict of its Convention—bid its members to reassemble and promulgate the decided expression of your will to remain in the path which alone can conduct you to safety, prosperity, and honor—tell them that, compared to disunion, all other evils are light, because that brings with it an accumulation of all—declare that you will never take the field unless the Star-spangled banner of your country shall float over you—that you will not be stigmatized when dead, and dishonored and scorned while you live, as the authors of the first attack on the Constitution of your country! Its destroyers you cannot be."

After asserting his firm "determination to execute the laws—to preserve the Union by all constitutional means"—he concludes with the prayer, "May the great Ruler of Nations grant, that the signal blessings with which He has favored, ours may not, by the madness of party, or personal ambition be disregarded and lost; and may His wise providence bring those who have produced this crisis to see the folly before they feel the misery, of civil strife; and inspire a returning veneration for that Union, which, if we may dare to penetrate His designs, He has chosen as the only means of attaining the high destinies to which we may reasonably aspire."

The firm attitude of General Jackson, together with the wise precautionary measures he had already taken, and the practical unanimity

with which his declaration to crush out the Treason was hailed in most of the Southern as well as the Northern States, almost at once broke the back of Nullification.

[In this connection the following letter, written at that time by the great Chief Justice Marshall, to a cousin of his, on the subject of State Sovereignty, is of interest, as showing how clearly his penetrating intellect perceived the dangers to the Union hidden in the plausible doctrine of State Rights:

RICHMOND, May 7, 1833.

"MY DEAR SIR:

"I am much indebted to you for your pamphlet on Federal Relations, which I have read with much satisfaction. No subject, as it seems to me, is more misunderstood or more perverted. You have brought into view numerous important historical facts which, in my judgment, remove the foundation on which the Nullifiers and Seceders have erected that superstructure which overshadows our Union. You have, I think, shown satisfactorily that we never have been perfectly distinct, independent societies, sovereign in the sense in which the Nullifiers use the term. When colonies we certainly were not. We were parts of the British empire, and although not directly connected with each other so far as respected government, we were connected in many respects, and were united to the same stock. The steps we took to effect separation were, as you have fully shown, not only revolutionary in their nature, but they were taken conjointly. Then, as now, we acted in many respects as one people. The representatives of each colony acted for all. Their resolutions proceeded from a common source, and operated on the whole mass. The army was a continental army commanded by a continental general, and supported from a continental treasury. The Declaration of Independence was made by a common government, and was made for all the States.

"Everything has been mixed. Treaties made by Congress have been considered as binding all the States. Some powers have been exercised by Congress, some by the States separately. The lines were not strictly drawn. The inability of Congress to carry its legitimate powers into execution has gradually annulled those powers practically, but they always existed in theory. Independence was declared 'in the name and by the authority of the good people of these colonies.' In fact we have always been united in some respects, separate in others. We have acted as one people for some purposes, as distinct societies for others. I think you have shown this clearly, and in so doing have demonstrated the fallacy of the principle on which either nullification or the right of peaceful, constitutional secession is asserted.

"The time is arrived when these truths must be more generally spoken, or our Union is at an end. The idea of complete sovereignty of the State converts our government into a league, and, if carried into practice, dissolves the Union.

"I am, dear sir,

"Yours affectionately,

"J. MARSHALL.

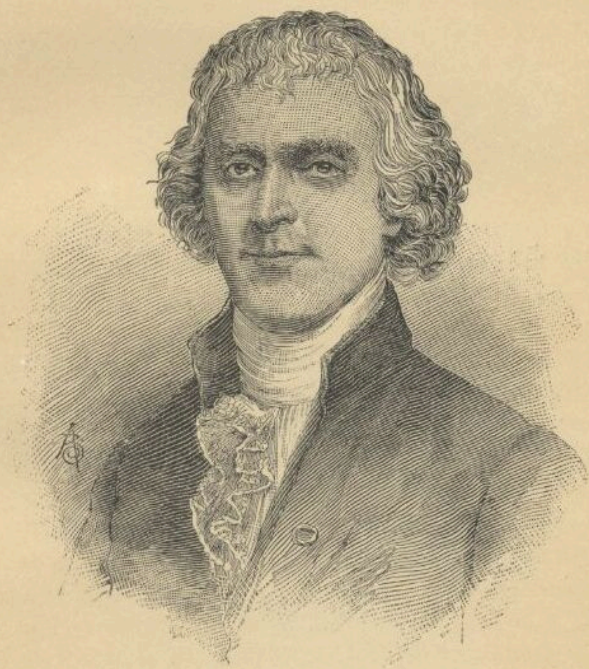
"HUMPHREY MARSHALL, ESQ.,

"FRANKFORT, KY."]

The Nullifiers hailed with pretended satisfaction the report from the House Committee on Ways and Means of a Bill making great reductions and equalizations of Tariff duties, as a measure complying with their demands, and postponed the execution of the Ordinance of Nullification until the adjournment of Congress; and almost immediately afterward Mr. Clay's Compromise Tariff Act of 1833 "whereby one tenth of the excess over twenty per cent. of each and every existing impost was to be taken off at the close of that year; another tenth two years thereafter; so proceeding until the 30th of June, 1842, when all duties should be reduced to a maximum of twenty per cent."—[Says Mr. Greeley, in his History aforesaid.]—agreed to by Calhoun and other Nullifiers, was passed, became

a law without the signature of President Jackson, and South Carolina once more became to all appearances a contented, law-abiding State of the Union.

But after-events proved conclusively that the enactment of this Compromise Tariff was a terrible blunder, if not a crime. Jackson had fully intended to hang Calhoun and his nullifying coadjutors if they persisted in their Treason. He knew that they had only seized upon the Tariff laws as a pretext with which to justify Disunion, and prophesied that "the next will be the Slavery or Negro question." Jackson's forecast was correct. Free Trade, Slavery and Secession were from that time forward sworn allies; and the ruin wrought to our industries by the disasters of 1840, plainly traceable to that Compromise Tariff measure of 1833, was only to be supplemented by much greater ruin and disasters caused by the Free Trade Tariff of 1846—and to be followed by the armed Rebellion of the Free Trade and Pro-Slavery States of the South in 1861, in a mad attempt to destroy the Union.



THOMAS JEFFERSON.

CHAPTER III.

GROWTH OF THE SLAVERY QUESTION.

It will be remembered that during the period of the Missouri Struggle, 1818-1820, the Territory of Arkansas was formed by an Act of Congress out of that part of the Missouri Territory not included in the proposed State of Missouri, and that the Act so creating the Territory of Arkansas contained no provision restricting Slavery. Early in 1836, the people of Arkansas Territory met in Convention and formed a Constitution under which, "and by virtue of the treaty of cession by France to the United States, of the Province of Louisiana," they asked admission to the Union as a State. Among other provisions of that Constitution was a section rendering the State Legislature powerless to pass laws for the emancipation of slaves without the consent of the owners, or to prevent emigrants to that State from bringing with them slaves. On June 15th of the same year, Arkansas was, under that Constitution, admitted to the Union as a Slave State, with the sole reservation, that nothing in the Act of admission should be construed as an assent by Congress to all or any of the propositions contained" in the said Constitution.

Long ere this, all the Northern and Middle States had made provision for the emancipation of such slaves as remained within their borders, and only a few years previous (in 1829 and 1831-32) Virginia had made strong but insufficient efforts toward the same end. The failure to free Virginia of Slavery—the effort to accomplish which had been made by some of the greatest of her statesmen—only served to rivet the chains of human bondage more securely throughout all the Slave States, and from that time on, no serious agitation occurred in any one of them, looking toward even the most gradual emancipation. On the other hand, the advocates of the extension of the Slave-Power by the expansion of Slave-territory, were ever on the alert, they considered it of the last importance to maintain the balance of power between the Slave States and the Free States. Hence,

while they had secured in 1819 the cession from Spain to the United States of the Slave-holding Floridas, and the organization of the Slave Territory of Florida in 1822—which subsequently came in as a Slave State under the same Act (1845) that admitted the Free State of Iowa—their greedy eyes were now cast upon the adjoining rich territories of Mexico.

Efforts had (in 1827-1829) been made to purchase from Mexico the domain which was known as Texas. They had failed. But already a part of Texas had been settled by adventurous Americans under Mexican grants and otherwise; and General Sam Houston, an adherent of the Slave Power, having become a leading spirit among them, fomented a revolution. In March, 1836, Texas, under his guidance, proclaimed herself a Republic independent of Mexico.

The War that ensued between Texas and Mexico ended in the flight of the Mexican Army and the capture of Santa Anna at San Jacinto, and a treaty recognizing Texan independence. In October, 1836, General Houston was inaugurated President of the Republic of Texas. Close upon this followed (in August, 1837) a proposition to our Government from the Texan envoy for the annexation of Texas to the United States. President Van Buren declined the offer. The Northern friends of Freedom were as much opposed to this annexation project as the advocates of Slavery were anxious for it. Even such conservative Northern Statesmen as Daniel Webster strongly opposed the project. In a speech delivered in New York [1837], after showing that the chief aim of our Government in the acquisition of the Territory of Louisiana was to gain command of the mouths of the great rivers to the sea, and that in the acquisition of the Floridas our policy was based on similar considerations, Mr. Webster declared that "no such necessity, no such policy, requires the annexation of Texas," and that we ought "for numerous and powerful reasons to be content with our present boundaries." He recognized that Slavery already existed under the guarantees of the Constitution and those guarantees must be fulfilled; that "Slavery, as it exists in the States, is beyond the power of Congress. It is a concern of the States themselves," but "when we come to speak of admitting new States, the subject assumes an entirely different aspect. Our rights and our duties are then both different. The Free States, and all the States, are then at liberty to accept or to reject;" and he added, "In my opinion the people of the United States will not consent to bring into the Union a new, vastly extensive and Slaveholding country, large enough for a

half a dozen or a dozen States. In my opinion, they ought not to consent to it."

Farther on, in the same speech—after alluding to the strong feeling in the Northern States against the extension of Slavery, not only as a question of politics, but of conscience and religious conviction as well—he deems him a rash man indeed "who supposes that a feeling of this kind is to be trifled with or despised." Said he: "It will assuredly cause itself to be respected. It may be reasoned with; it may be made willing—I believe it is entirely willing—to fulfill all existing engagements and all existing duties—to uphold and defend the Constitution as it is established, with whatever regrets about some provisions which it does actually contain. But to coerce it into silence, to endeavor to restrain its free expression, to seek to compress and confine it, warm as it is, and more heated as such endeavors would inevitably render it,—should this be attempted, I know nothing, even in the Constitution or in the Union itself, which would not be endangered by the explosion which might follow."

In 1840, General Harrison, the Whig candidate, was elected to the Presidency, but died within a few weeks after his inauguration in 1841, and was succeeded by John Tyler. The latter favored the Slave Power; and on April 12th, 1844, John C. Calhoun, his Secretary of State, concluded with Texas a treaty of annexation—which was, however, rejected by the Senate. Meanwhile the public mind was greatly agitated over the annexation and other questions.

[In the London Index, a journal established there by Jefferson Davis's agents to support the cause of the rebellious States, a communication appeared during the early part of the war, Dec. 4, 1861, supposed to have been written by Mr. Mason, of Virginia, in which he said: "To tell the Norths, the Butes, the Wedderburns of the present day, that previous to the year 1839 the sovereign States of the South had unalterably resolved on the specific ground of the violation of the Federal Constitution by the tariff of spoliation which the New England States had imposed upon them—to secede from the Union; to tell them that in that year the leader of the South, Calhoun, urged an English gentleman, to whom he had fully explained the position of

the South, and the intolerable tyranny which the North inflicted upon it, to be the bearer of credentials from the chief persons of the South, in order to invite the attention of the British Government to the coming event; that on his death-bed (Washington, March 31, 1850), he called around him his political friends—one of whom is now in England—warned them that in no event could the Union survive the Presidential election of 1860, though it might possibly break up before that urged them to be prepared; leaving with his dying words the sacred cause of Southern secession a solemn legacy in their hands—to have told this to the Norths and Dartmouths of the present day, with more and even stronger evidence of the coming events of November, 1860, would have been like speaking to the stones of the street. In November, 1860, they were thoroughly ignorant of all the momentous antecedents of secession—of their nature, their character, their bearing, import, and consequences."

In the same correspondence the distinguished Rebel emissary substantially let out the fact that Calhoun was indirectly, through himself (Mason), in secret communication with the British Government as far back as 1841, with a view to securing its powerful aid in his aforesaid unalterable resolve to Secede from the Union; and then Mr. Mason pleads—but pleads in vain—for the armed intervention of England at this later day. Said he:

"In the year 1841 the late Sir William Napier sent in two plans for subduing the Union, to the War Office, in the first of which the South was to be treated as an enemy, in the second as a friend and ally. I was much consulted by him as to the second plan and was referred to by name in it, as he showed by the acknowledgment of this in Lord Fitzroy Somerset's letter of reply. This plan fully provided for the contingency of an invasion of Canada, and its application would, in eighteen or twenty months, have reduced the North to a much more impotent condition than it exhibits at present. At this very moment the most difficult portion of that plan has been perfectly accomplished by the South itself;

and the North, in accordance with Sir William Napier's expectations, now lies helpless before England, and at our absolute mercy. Nor is there any doubt of this, and if Lord Palmerston is not aware of it Mr. Seward certainly is. We have nothing remaining to do but to stretch out our arm in the way Sir William Napier proposed, and the Northern power—power as we ignorantly call it—must come to an end. Sir William knew and well estimated the elements of which that quasi power consisted; and he knew how to apply the substantive power of England to dissolve it. In the best interest of humanity, I venture to say that it is the duty of England to apply this power without further delay—its duty to itself, to its starving operatives, to France, to Europe, and to humanity. And in the discharge of this great duty to the world at large there will not even be the dignity of sacrifice or danger."]

Threats and counter-threats of Disunion were made on either hand by the opponents and advocates of Slavery-extension through annexation; nor was it less agitated on the subject of a Protective Tariff.

The Compromise Tariff of 1833, together with President Jackson's upheaval of our financial system, produced, as has already been hinted, terrible commercial disasters. "In 1840," says competent authority, "all prices had ruinously fallen; production had greatly diminished, and in many departments of industry had practically ceased; thousands of working men were idle, with no hope of employment, and their families suffering from want. Our farmers were without markets, their products rotted in their barns, and their lands, teeming with rich harvests, were sold by the sheriff for debts and taxes. The Tariff, which robbed our industries of Protection failed to supply Government with its necessary revenues. The National Treasury in consequence was bankrupt, and the credit of the Nation had sunk very low."

Mr. Clay himself stated "the average depression in the value of property under that state of things which existed before the Tariff of 1842 came to the rescue of the country, at fifty per cent." And hence it was that Protection was made the chief issue of the Presidential campaign of 1840, which eventuated in the election of Harrison and Tyler, and in the Tariff Act of

August 30, 1842, which revived our trade and industries, and brought back to the land a full measure of prosperity. With those disasters fresh in the minds of the people, Protection continued to be a leading issue in the succeeding Presidential campaign of 1844—but coupled with the Texas-annexation issue. In that campaign Henry Clay was the candidate of the Whig party and James K. Polk of the Democratic party. Polk was an ardent believer in the annexation policy and stood upon a platform declaring for the "re-occupation of Oregon and the re-annexation of Texas at the earliest practicable moment"—as if the prefix "re" legitimized the claim in either case; Clay, on the other hand, held that we had "fairly alienated our title to Texas by solemn National compacts, to the fulfilment of which we stand bound by good faith and National honor;" that "Annexation and War with Mexico are identical," and that he was "not willing to involve this country in a foreign War for the object of acquiring Texas."

[In his letter of April 17, 1844, published in the National Intelligencer.]

As to the Tariff issue also, Clay was the acknowledged champion of the American system of Protection, while Polk was opposed to it, and was supported by the entire Free-trade sentiment, whether North or South.

As the campaign progressed, it became evident that Clay would be elected. Then occurred some of those fatalities which have more than once, in the history of Presidential campaigns, overturned the most reasonable expectations and defeated the popular will. Mr. Clay committed a blunder and Mr. Polk an equivocation—to use the mildest possible term. Mr. Clay was induced by Southern friends to write a letter—[Published in the North Alabamian, Aug. 16, 1844.]—in which, after stating that "far from having any personal objection to the annexation of Texas, I should be glad to see it—without dishonor, without War, with the common consent of the Union, and upon just and fair terms," he added: "I do not think that the subject of Slavery ought to affect the question, one way or the other." Mr. Polk, on the other hand, wrote a letter in which he declared it to be "the duty of the Government to extend, as far as it may be practicable to do so, by its revenue laws and all other means within its power, fair and just Protection to all the great interests of the whole Union, embracing Agriculture, Manufactures, the Mechanic Arts, Commerce and Navigation." This was

supplemented by a letter (August 8, 1844) from Judge Wilson McCandless of Pennsylvania, strongly upholding the Protective principle, claiming that Clay in his Compromise Tariff Bill had abandoned it, and that Polk and Dallas had "at heart the true interests of Pennsylvania." Clay, thus betrayed by the treachery of Southern friends, was greatly weakened, while Polk, by his beguiling letter, backed by the false interpretation put upon it by powerful friends in the North, made the North believe him a better Protectionist than Clay.

Polk was elected, and rewarded the misplaced confidence by making Robert J. Walker his Secretary of the Treasury, and, largely through that great Free Trader's exertions, secured a repeal by Congress of the Protective Tariff of 1842 and the enactment of the ruinous Free Trade Tariff of 1846. Had Clay carried New York, his election was secure. As it happened, Polk had a plurality in New York of but 5,106 in an immense vote, and that slim plurality was given to him by the Abolitionists throwing away some 15,000 on Birney. And thus also it curiously happened that it was the Abolition vote which secured the election of the candidate who favored immediate annexation and the extension of the Slave Power!

Emboldened and apparently sustained by the result of the election, the Slave Power could not await the inauguration of Mr. Polk, but proceeded at once, under whip and spur, to drive the Texas annexation scheme through Congress; and two days before the 4th of March, 1845, an Act consenting to the admission of the Republic of Texas as a State of the Union was approved by President Tyler.

In that Act it was provided that "New States of convenient size, not exceeding four in number, in addition to the said State of Texas, and having sufficient population, may hereafter, by the consent of said State, be formed out of the territory thereof, which shall be entitled to admission under the provisions of the Federal Constitution; and such States as may be formed out of that portion of said territory lying south of thirty-six degrees thirty minutes north latitude, commonly known as the Missouri Compromise line, shall be admitted into the Union with or without Slavery, as the people of each State asking admission may desire. And in such State or States as shall be formed out of said territory north of said Missouri Compromise line, Slavery or involuntary servitude (except for crime) shall be prohibited." As has been lucidly stated by another,—[Greeley's History]—"while seeming

to curtail and circumscribe Slavery north of the above parallel (that of 36 30' north latitude), this measure really extended it northward to that parallel, which it had not yet approached, under the flag of Texas, within hundreds of miles. But the chief end of this sham Compromise was the involving of Congress in an indirect indorsement of the claim of Texas to the entire left bank of the Rio Grande, from its mouth to its source; and this was effected."

Texas quickly consented to the Act of annexation, and in December, 1845, a Joint Resolution formally admitting her as a State of the Union, reported by Stephen A. Douglas, was duly passed.

In May, 1846, the American forces under General Taylor, which had been dispatched to protect Texas from threatened assault, were attacked by the Mexican army, which at Palo Alto was badly defeated and at Resaca de la Palma driven back across the Rio Grande.

Congress immediately declared that by this invasion a state of War existed between Mexico and the United States. Thus commenced the War with Mexico—destined to end in the triumph of the American Army, and the acquisition of large areas of territory to the United States. In anticipation of such triumph, President Polk lost little time in asking an appropriation of over two million dollars by Congress to facilitate negotiations for peace with, and territorial cession from, Mexico. And a Bill making such appropriation was quickly passed by the House of Representatives—but with the following significant proviso attached, which had been offered by Mr. Wilmot: "Provided. That as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty that may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither Slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall first be duly convicted."

The debate in the Senate upon the Wilmot proviso, which immediately ensued, was cut short by the expiration of the Session of Congress—and the Bill accordingly failed of passage.

In February, 1848, the treaty of Guadalupe Hidalgo was made between Mexico and the United States, and Peace reigned once more. About the same time a Bill was passed by the Senate providing Territorial Governments for Oregon, California and New Mexico, which provided for the reference of all questions touching Slavery in such Territories to the

United States Supreme Court, for arbitration. The Bill, however, failed in the House. The ensuing Presidential campaign resulted in the election of General Taylor, the Whig candidate, who was succeeded upon his death, July 10, 1850, by Fillmore. Meanwhile, on the Oregon Territory Bill, in 1848, a strong effort had been made by Mr. Douglas and others to incorporate a provision extending to the Pacific Ocean the Missouri Compromise line of 36 30' of north latitude and extending to all future organizations of Territories of the United States the principles of said Compromise. This provision was adopted by the Senate, but the House struck it from the Bill; the Senate receded, and Oregon was admitted as a Free Territory. But the conflict in Congress between those who would extend and those who would restrict Slavery still continued, and indeed gathered vehemence with time. In 1850, California was clamoring for admission as a Free State to the Union, and New Mexico and Utah sought to be organized under Territorial Governments.

In the heated discussions upon questions growing out of bills for these purposes, and to rectify the boundaries of Texas, it was no easy matter to reach an agreement of any sort. Finally, however, the Compromise of 1850, offered by Mr. Clay, was practically agreed to and carried out, and under it: California was admitted as a Free State; New Mexico and Utah were admitted to Territorial organization without a word pro or con on the subject of Slavery; the State of Texas was awarded a pecuniary compensation for the rectification of her boundaries; the Slave Trade in the District of Columbia was abolished; and a more effectual Fugitive Slave Act passed.

By both North and South, this Compromise of 1850, and the measures growing out of it, were very generally acquiesced in, and for a while it seemed as though a permanent settlement of the Slavery question had been reached. But in the Fugitive Slave law, thus hastily enacted, lay embedded the seed for further differences and excitements, speedily to germinate. In its operation it proved not only unnecessarily cruel and harsh, in the manner of the return to bondage of escaped slaves, but also afforded a shield and support to the kidnapping of Free Negroes from Northern States. The frequency of arrests in the Northern States, and the accompanying circumstances of cruelty and brutality in the execution of the law, soon made it especially odious throughout the North, and created an active feeling of commiseration for the unhappy victims of the Slave Power,

which greatly intensified and increased the growing Anti-Slavery sentiment in the Free States.

In 1852-53, an attempt was made in Congress to organize into the Territory of Nebraska, the region of country lying west of Iowa and Missouri. Owing to the opposition of the South the Bill was defeated. In 1853-4 a similar Bill was reported to the Senate by Mr. Douglas, but afterward at his own instance recommitted to the Committee on Territories, and reported back by him again in such shape as to create, instead of one, two Territories, that portion directly west of Missouri to be called Kansas, and the balance to be known as Nebraska—one of the sections of the Bill enacting:

"That in order to avoid all misconception it is hereby declared to be the true intent and meaning of this Act, so far as the question of Slavery is concerned, to carry into practical operation the following propositions and principles, established by the Compromise measures of 1850, to wit:

"First, That all questions pertaining to Slavery in the Territories, and the new States to be formed therefrom, are to be left to the decision of the people residing therein through their appropriate representatives.

"Second, That 'all cases involving title to slaves,' and 'questions of personal freedom,' are referred to the adjudication of the local tribunals with the right of appeal to the Supreme Court of the United States.

"Third, That the provisions of the Constitution and laws of the United States, in respect to fugitives from service, are to be carried into faithful execution in all the `organized Territories,' the same as in the States."

The sections authorizing Kansas and Nebraska to elect and send delegates to Congress also prescribed:

"That the Constitution, and all laws of the United States which are not locally inapplicable, shall have the same force and effect within the said Territory, as elsewhere in the United States, except the section of the Act preparatory to the admission of Missouri into the Union, approved March 6th, 1820, which was superseded by the principles of the Legislation of 1850, commonly called the Compromise Measures, and is declared inoperative."

And when "explaining this Kansas-Nebraska Bill" Mr. Douglas announced that, in reporting it, "The object of the Committee was neither to

legislate Slavery in or out of the Territories; neither to introduce nor exclude it; but to remove whatever obstacle Congress had put there, and apply the doctrine of Congressional Non-intervention in accordance with the principles of the Compromise Measures of 1850, and allow the people to do as they pleased upon this as well as all other matters affecting their interests."

A vigorous and able debate ensued. A motion by Mr. Chase to strike out the words "which was superseded by the principles of the legislation of 1850, commonly called the Compromise Measures," was defeated decisively. Subsequently Mr. Douglas moved to strike out the same words and insert in place of them, these: "which being inconsistent with the principles of Non-intervention by Congress with Slavery in the States and Territories, as recognized by the legislation of 1850 (commonly called the Compromise Measures), is hereby declared inoperative and void; it being the true intent and meaning of this Act not to legislate Slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States"—and the motion was agreed to by a vote of 35 yeas to 10 nays. Mr. Chase immediately moved to add to the amendment just adopted these words: "Under which, the people of the Territory, through their appropriate representatives, may, if they see fit, prohibit the existence of Slavery therein;" but this motion was voted down by 36 nays to 10 yeas. This developed the rat in the meal-tub. The people were to be "perfectly free" to act either way on the subject of Slavery, so long as they did not prohibit Slavery! In this shape the Bill passed the Senate.

Public sentiment in the North was greatly stirred by this direct attempt to repeal the Missouri Compromise. But by the superior parliamentary tactics of Southern Representatives in the House, whereby the radical friends of Freedom were shut out from the opportunity of amendment, a House Bill essentially the same as the Senate Bill was subsequently passed by the House, under the previous question, and afterward rapidly passed the Senate, and was approved by the President. At once commenced that long and terrible struggle between the friends of Free-Soil and the friends of Slavery, for the possession of Kansas, which convulsed the whole Country for years, and moistened the soil of that Territory with streams of blood, shed in numerous "border-ruffian" conflicts.

The Territorial Government of Kansas was organized late in 1854, and an "election" for Delegate held, at which the Pro-Slavery candidate (Whitfield) was fraudulently elected. On March 30, 1855, a Territorial Legislature was similarly chosen by Pro-Slavery voters "colonized" from Missouri. That Legislature, upon its meeting, proceeded at once to enact most outrageous Pro-Slavery laws, which being vetoed by the Free-Soil Governor (Reeder), were passed over the veto, and the Free-Soil Governor had to give place to one who favored Slavery in Kansas. But the Free-Soil settlers of Kansas, in Mass Convention at Big Springs, utterly repudiated the bogus Legislature and all its acts, to which they refused submission.

In consequence of these radical differences, two separate elections for Delegate in Congress were held by the opposing factions, at one of which was elected the Pro-Slavery Whitfield, and at the other the Free-Soiler Reeder. Furthermore, under a call issued by the Big Springs Convention, a Free-State Constitutional Convention was held in October, 1855, at Topeka, which framed a Free-State Constitution, and asked admission under it to the Union.

In 1856, the House of Representatives—which, after a protracted struggle, had elected N. P. Banks Speaker—passed a Bill, by a bare majority, admitting Kansas under her Topeka Constitution; but the Senate defeated it. July 4, 1856, by order of President Pierce, the Free-State Legislature, chosen under the Topeka Constitution to meet at Topeka, was dispersed by United States Troops. Yet, despite all oppositions, discouragements, and outrages, the Free-State population of Kansas continued to increase from immigration.

In 1857, the Pro-Slavery Legislature elected by the Pro-Slavery voters at their own special election—the Free-State voters declining to participate—called a Constitutional Convention at Lecompton, which formed a Pro-Slavery Constitution. This was submitted to the people in such dexterous manner that they could only vote "For the Constitution with Slavery" or "For the Constitution without Slavery"—and, as the Constitution prescribed that "the rights of property in Slaves now in the Territory, shall in no manner be interfered with," to vote "for the Constitution Without Slavery" was an absurdity only paralleled by the course of the United States Senate in refusing to permit the people of Kansas "to prohibit Slavery" while at the same time declaring them "perfectly free to act" as they chose in the matter.

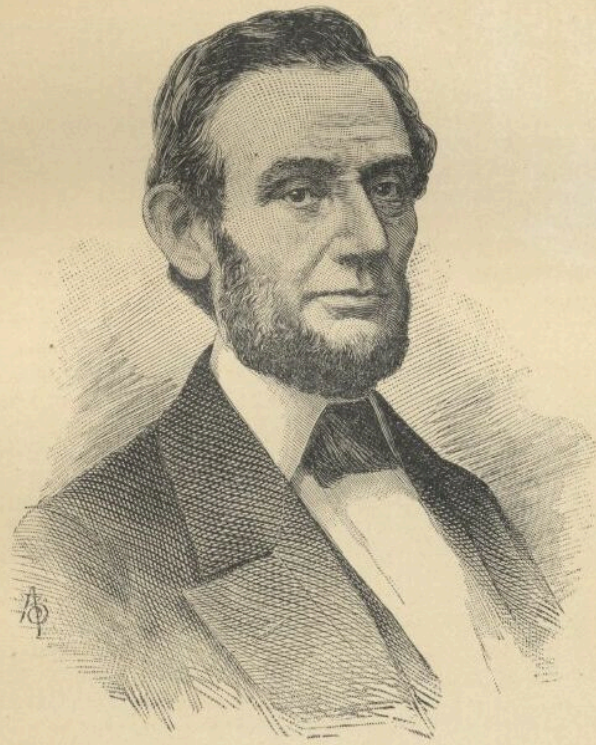
The Constitution, with Slavery, was thus adopted by a vote of over 6,000. But in the meanwhile, at another general election held for the purpose, and despite all the frauds perpetrated by the Pro-Slavery men, a Free-State Legislature, and Free-State Delegate to Congress had been elected; and this Legislature submitted the Lecompton Pro-Slavery Constitution to the people, January 4, 1858, so that they could vote: "For the Lecompton Constitution with Slavery," "For the Lecompton Constitution without Slavery," or "Against the Lecompton Constitution." The consequence was that the Lecompton Constitution was defeated by a majority of over 10,000 votes—the Missouri Pro-Slavery colonists declining to recognize the validity of any further election on the subject.

Meanwhile, in part upon the issues growing out of this Kansas conflict, the political parties of the Nation had passed through another Presidential campaign (1856), in which the Democratic candidate Buchanan had been elected over Fremont the "Republican," and Fillmore the "American," candidates. Both Houses of Congress being now Democratic, Mr. Buchanan recommended them to accept and ratify the Lecompton Pro-Slavery Constitution.

In March, 1858, the Senate passed a Bill—against the efforts of Stephen A. Douglas—accepting it. In the House, however, a substitute offered by Mr. Montgomery (Douglas Democrat) known as the Crittenden-Montgomery Compromise, was adopted. The Senate refused to concur, and the report of a Committee of Conference—providing for submitting to the Kansas people a proposition placing limitations upon certain public land advantages stipulated for in the Lecompton Constitution, and in case they rejected the proposition that another Constitutional Convention should be held—was adopted by both Houses; and the proposition being rejected by the people of Kansas, the Pro-Slavery Lecompton Constitution fell with it.

In 1859 a Convention, called by the Territorial Legislature for the purpose, met at Wyandot, and framed a Free State Constitution which was adopted by the people in October of that year, and at the ensuing State election in December the State went Republican. In April, 1860, the House of Representatives passed a Bill admitting Kansas as a State under that Constitution, but the Democratic Senate adjourned without action on the Bill; and it was not until early in 1861 that Kansas was at last admitted.

In the meantime, the Free Trade Tariff of 1846 had produced the train of business and financial disasters that its opponents predicted. Instead of prosperity everywhere in the land, there was misery and ruin. Even the discovery and working of the rich placer mines of California and the consequent flow, in enormous volume, of her golden treasure into the Eastern States, could not stay the wide-spread flood of disaster. President Fillmore, who had succeeded General Taylor on the latter's death, frequently called the attention of Congress to the evils produced by this Free Trade, and to the necessity of protecting our manufactures "from ruinous competition from abroad." So also with his successor, President Buchanan, who, in his Message of 1857, declared that "In the midst of unsurpassed plenty in all the productions and in all the elements of national wealth, we find our manufactures suspended, our public works retarded, our private enterprises of different kinds abandoned, and thousands of useful laborers thrown out of employment and reduced to want." Further than this, the financial credit of the Nation was at zero. It was financially bankrupt before the close of Buchanan's Presidential term.



ABRAHAM LINCOLN.

CHAPTER IV.

POPULAR SOVEREIGNTY.

But now occurred the great Presidential struggle of 1860—which involved not alone the principles of Protection, but those of human Freedom, and the preservation of the Union itself—between Abraham Lincoln of Illinois, the candidate of the Republican party, as against Stephen A. Douglas of Illinois, the National or Douglas—Democratic candidate, John C. Breckinridge of Kentucky, the Administration or Breckinridge—Democratic candidate, and John Bell of Tennessee, the candidate of the Bell-Union party. The great preliminary struggle which largely influenced the determination of the Presidential political conflict of 1860, had, however, taken place in the State of Illinois, two years previously. To that preliminary political contest of 1858, therefore, we will now turn our eyes—and, in order to fully understand it, it may be well to glance back over a few years. In 1851 the Legislature of Illinois had adopted—[The vote in the House being 65 yeas to 4 nays.]—the following resolution: "Resolved, That our Liberty and Independence are based upon the right of the people to form for themselves such a government as they may choose; that this great principle, the birthright of freemen, the gift of Heaven, secured to us by the blood of our ancestors, ought to be secured to future generations, and no limitation ought to be applied to this power in the organization of any Territory of the United States, of either Territorial Government or State Constitution, provided the government so established shall be Republican and in conformity with the Constitution of the United States." This resolution was a practical endorsement of the course of Stephen A. Douglas in supporting the Compromise measures of 1850, which he had defended as being "all founded upon the great principle that every people ought to possess the right to form and regulate their own domestic institutions in their own way," and that "the same principle" should be "extended to all of the Territories of the United States."

In accordance with his views and the resolution aforesaid, Mr. Douglas in 1854, as we have already seen, incorporated in the Kansas-Nebraska Bill a clause declaring it to be "the true intent and meaning of the Act not to legislate Slavery into any State or Territory, or to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States."

His position, as stated by himself, was, substantially that the Lecompton Pro-Slavery Constitution was a fraud upon the people of Kansas, in that it did not embody the will of that people; and he denied the right of Congress to force a Constitution upon an unwilling people—without regard, on his part, to whether that Constitution allowed or prohibited Slavery or any other thing, whether good or bad. He held that the people themselves were the sole judges of whether it is good or bad, and whether desirable or not.

The Supreme Court of the United States had in the meantime made a decision in a case afterward known as the "Dred Scott case," which was held back until after the Presidential election of 1856 had taken place, and added fuel to the political fire already raging. Dred Scott was a Negro Slave. His owner voluntarily took him first into a Free State, and afterward into a Territory which came within the Congressional prohibitive legislation aforesaid. That decision in brief was substantially that no Negro Slave imported from Africa, nor his descendant, can be a citizen of any State within the meaning of the Constitution; that neither the Congress nor any Territorial Legislature has under the Constitution of the United States, the power to exclude Slavery from any Territory of the United States; and that it is for the State Courts of the Slave State, into which the negro has been conveyed by his master, and not for the United States Courts, to decide whether that Negro, having been held to actual Slavery in a Free State, has, by virtue of residence in such State, himself become Free.

Now it was, that the meaning of the words, "subject only to the Constitution," as used in the Kansas-Nebraska Act, began to be discerned. For if the people of a Territory were to be "perfectly free," to deal with Slavery as they chose, "subject only to the Constitution" they were by this Judicial interpretation of that instrument "perfectly free" to deal with Slavery in any way so long as they did not attempt "to exclude" it! The thing was all one-sided. Mr. Douglas's attitude in inventing the peculiar

phraseology in the Kansas-Nebraska Act—which to some seemed as if expressly "made to order" for the Dred Scott decision—was criticized with asperity; the popularity, however, of his courageous stand against President Buchanan on the Leecompton fraud, seemed to make it certain that, his term in the United States Senate being about to expire, he would be overwhelmingly re-elected to that body.

But at this juncture occurred something, which for a long time held the result in doubt, and drew the excited attention of the whole Nation to Illinois as the great battle-ground. In 1858 a Republican State Convention was held at Springfield, Ill., which nominated Abraham Lincoln as the Republican candidate for United States Senator to succeed Senator Douglas in the National Legislature. On June 16th—after such nomination—Mr. Lincoln made to the Convention a speech—in which, with great and incisive power, he assailed Mr. Douglas's position as well as that of the whole Democratic Pro-Slavery Party, and announced in compact and cogent phrase, from his own point of view, the attitude, upon the Slavery question, of the Republican Party.

In that remarkable speech—which at once attracted the attention of the Country—Mr. Lincoln said: "We are now far into the fifth year, since a policy was initiated with the avowed object, and confident promise, of putting an end to Slavery agitation. Under the operation of that policy, that agitation has not only not ceased, but has constantly augmented. In my opinion it will not cease, until a crisis shall have been reached and passed. 'A House divided against itself cannot stand.' I believe this Government cannot endure permanently half Slave and half Free. I do not expect the Union to be dissolved—I do not expect the House to fall—but I do expect it will cease to be divided. It will become all one thing, or all the other. Either the opponents of Slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction; or its advocates will push it forward, till it shall become alike lawful in all the States, old as well as new, North as well as South."

[Governor Seward's announcement of an "irrepressible conflict" was made four months later.]

He then proceeded to lay bare and closely analyze the history of all that had been done, during the four years preceding, to produce the prevailing

condition of things touching human Slavery; describing it as resulting from that, "now almost complete legal combination-piece of machinery, so to speak—compounded of the Nebraska doctrine and the Dred Scott decision." After stating the several points of that decision, and that the doctrine of the "Sacred right of self-government" had been perverted by the Nebraska "Squatter Sovereignty," argument to mean that, "if any one man chose to enslave another, no third man shall be allowed to object," he proceeded to show the grounds upon which he charged "pre-concert" among the builders of that machinery. Said he: "The people were to be left perfectly free, 'subject only to the Constitution.' What the Constitution had to do with it, outsiders could not see. Plainly enough now, it was an exactly fitted niche for the Dred Scott decision to afterward come in and declare the perfect freedom of the people to be just no freedom at all. Why was the amendment, expressly declaring the right of the people, voted down? Plainly enough now, the adoption of it would have spoiled the niche for the Dred Scott decision. Why was the Court decision held up? Why even a Senator's individual opinion withheld, till after the Presidential election? Plainly enough now: the speaking out then would have damaged the 'perfectly free' argument upon which the election was to be carried. Why the outgoing President's felicitation on the indorsement? Why the delay of a re-argument? Why the incoming President's advance exhortation in favor of the decision? These things look like the cautious patting and petting of a spirited horse, preparatory to mounting him, when it is dreaded that he may give the rider a fall. And why the hasty after-indorsement of the decision, by the President and others? We cannot absolutely know that all these exact adaptations are the result of pre-concert. But when we see a lot of framed timbers, different portions of which we know have been gotten out at different times and places and by different workmen—Stephen, Franklin, Roger, and James—[Douglas, Pierce, Taney and Buchanan.]—for instance—and when we see these timbers joined together, and see they exactly make the frame of a house or a mill, all the tenons and mortices exactly fitting, and all the lengths and proportions of the different pieces exactly adapted to their respective places, and not a piece too many or too few—not omitting even the scaffolding, or, if a single piece be lacking, we see the place in the frame exactly fitted and prepared yet to bring such piece in—in such a case, we find it impossible not to believe that Stephen and Franklin and Roger and James all understood one another from the beginning, and all

worked upon a common plan or draft drawn up before the first blow was struck."

He drew attention also to the fact that by the Nebraska Bill the people of a State, as well as a Territory, were to be left "perfectly free," "subject only to the Constitution," and that the object of lugging a "State" into this merely Territorial law was to enable the United States Supreme Court in some subsequent decision to declare, when the public mind had been sufficiently imbued with Judge Douglas's notion of not caring "whether Slavery be voted up or voted down," that "the Constitution of the United States does not permit a State to exclude Slavery from its limits"—which would make Slavery "alike lawful in all the States." That, he declared to be Judge Douglas's present mission:—"His avowed mission is impressing the 'public heart' to care nothing about it." Hence Mr. Lincoln urged Republicans to stand by their cause, which must be placed in the hands of its friends, "Whose hands are free, whose hearts are in the work—who do care for the result;" for he held that "a living dog is better than a dead lion."

On the evening of July 9, 1858, at Chicago, Mr. Douglas (Mr. Lincoln being present) spoke to an enthusiastic assemblage, which he fitly described as a "vast sea of human faces," and, after stating that he regarded "the Lecompton battle as having been fought and the victory won, because the arrogant demand for the admission of Kansas under the Lecompton Constitution unconditionally, whether her people wanted it or not, has been abandoned, and the principle which recognizes the right of the people to decide for themselves has been submitted in its place," he proceeded to vindicate his position throughout; declared that he opposed "the Lecompton monstrosity solely on the ground that it was a violation of the fundamental principles of free government; on the ground that it was not the act and deed of the people of Kansas; that it did not embody their will; that they were averse to it;" and hence he "denied the right of Congress to force it upon them, either as a Free State or a Slave State."

Said he: "I deny the right of Congress to force a Slaveholding State upon an unwilling people. I deny their right to force a Free State upon an unwilling people. I deny their right to force a good thing upon a people who are unwilling to receive it. The great principle is the right of every community to judge and decide for itself, whether a thing is right or wrong, whether it would be good or evil for them to adopt it; and the right of free

action, the right of free thought, the right of free judgment upon the question is dearer to every true American than any other under a free Government. * * * It is no answer to this argument to say that Slavery is an evil, and hence should not be tolerated. You must allow the people to decide for themselves whether it is good or evil." He then adverted to the arraignment of himself by Mr. Lincoln, and took direct issue with that gentleman on his proposition that, as to Freedom and Slavery, "the Union will become all one thing or all the other;" and maintained on the contrary, that "it is neither desirable nor possible that there should be uniformity in the local institutions and domestic regulations of the different States of this Union."

Upon the further proposition of Mr. Lincoln, which Mr. Douglas described as "a crusade against the Supreme Court of the United States on account of the Dred Scott decision," and as "an appeal from the decision" of that Court "upon this high Constitutional question to a Republican caucus sitting in the country," he also took "direct and distinct issue with him." To "the reason assigned by Mr. Lincoln for resisting the decision of the Supreme Court in the Dred Scott case * * * because it deprives the Negro of the privileges, immunities and rights of citizenship which pertain, according to that decision, only to the White man," Mr. Douglas also took exception thus: "I am free to say to you that in my opinion this Government of ours is founded on the White basis. It was made by the White man for the benefit of the White man, to be administered by White men, in such manner as they should determine. It is also true that a Negro, an Indian, or any other man of inferior race to a White man, should be permitted to enjoy, and humanity requires that he should have, all the rights, privileges, and immunities which he is capable of exercising consistent with the safety of society. * * * But you may ask me what are these rights and these privileges? My answer is, that each State must decide for itself the nature and extent of these rights. * * * Without indorsing the wisdom of that decision, I assert that Virginia has the same power by virtue of her sovereignty to protect Slavery within her limits, as Illinois has to banish it forever from our own borders. I assert the right of each State to decide for itself on all these questions, and I do not subscribe to the doctrine of my friend, Mr. Lincoln, that uniformity is either desirable or possible. I do not acknowledge that the States must all be Free or must all be Slave. I do not acknowledge that the Negro must have civil and political rights everywhere or nowhere. * * * I do not acknowledge any

of these doctrines of uniformity in the local and domestic regulations in the different States. * * * Mr. Lincoln goes for a warfare upon the Supreme Court of the United States because of their judicial decision in the Dred Scott case. I yield obedience to the decisions in that Court—to the final determination of the highest judicial tribunal known to our Constitution. He objects to the Dred Scott decision because it does not put the Negro in the possession of the rights of citizenship on an equality with the White man. I am opposed to Negro equality. * * * I would extend to the Negro, and the Indian, and to all dependent races every right, every privilege, and every immunity consistent with the safety and welfare of the White races; but equality they never should have, either political or social, or in any other respect whatever. * * * My friends, you see that the issues are distinctly drawn."

On the following evening (July 10th) at Chicago, Mr. Lincoln addressed another enthusiastic assemblage, in reply to Mr. Douglas; and, after protesting against a charge that had been made the previous night by the latter, of an "unnatural and unholy" alliance between Administration Democrats and Republicans to defeat him, as being beyond his own knowledge and belief, proceeded: "Popular Sovereignty! Everlasting Popular Sovereignty! Let us for a moment inquire into this vast matter of Popular Sovereignty. What is Popular Sovereignty? We recollect at an early period in the history of this struggle there was another name for the same thing—Squatter Sovereignty. It was not exactly Popular Sovereignty, but Squatter Sovereignty. What do those terms mean? What do those terms mean when used now? And vast credit is taken by our friend, the Judge, in regard to his support of it, when he declares the last years of his life have been, and all the future years of his life shall be, devoted to this matter of Popular Sovereignty. What is it? Why it is the Sovereignty of the People! What was Squatter Sovereignty? I suppose if it had any significance at all, it was the right of the people to govern themselves, to be sovereign in their own affairs while they were squatted down in a country not their own—while they had squatted on a territory that did not belong to them in the sense that a State belongs to the people who inhabit it—when it belonged to the Nation—such right to govern themselves was called 'Squatter Sovereignty.'

"Now I wish you to mark. What has become of that Squatter Sovereignty? What has become of it? Can you get anybody to tell you now

that the people of a Territory have any authority to govern themselves, in regard to this mooted question of Slavery, before they form a State Constitution? No such thing at all, although there is a general running fire and although there has been a hurrah made in every speech on that side, assuming that that policy had given the people of a Territory the right to govern themselves upon this question; yet the point is dodged. To-day it has been decided—no more than a year ago it was decided by the Supreme Court of the United States, and is insisted upon to-day, that the people of a Territory have no right to exclude Slavery from a Territory, that if any one man chooses to take Slaves into a Territory, all the rest of the people have no right to keep them out. This being so, and this decision being made one of the points that the Judge (Douglas) approved, * * * he says he is in favor of it, and sticks to it, and expects to win his battle on that decision, which says there is no such thing as Squatter Sovereignty; but that any man may take Slaves into a Territory and all the other men in the Territory may be opposed to it, and yet by reason of the Constitution they cannot prohibit it; when that is so, how much is left of this vast matter of Squatter Sovereignty, I should like to know? Again, when we get to the question of the right of the people to form a State Constitution as they please, to form it with Slavery or without Slavery—if that is anything new, I confess I don't know it * * *.

"We do not remember that, in that old Declaration of Independence, it is said that 'We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed.' There, is the origin of Popular Sovereignty. Who, then, shall come in at this day and claim that he invented it? The Lecompton Constitution connects itself with this question, for it is in this matter of the Lecompton Constitution that our friend, Judge Douglas, claims such vast credit. I agree that in opposing the Lecompton Constitution, so far as I can perceive, he was right. * * * All the Republicans in the Nation opposed it, and they would have opposed it just as much without Judge Douglas's aid as with it. They had all taken ground against it long before he did. Why, the reason that he urges against that Constitution, I urged against him a year before. I have the printed speech in my hand now. The argument that he makes, why that Constitution should

not be adopted, that the people were not fairly represented nor allowed to vote, I pointed out in a speech a year ago which I hold in my hand now, that no fair chance was to be given to the people. * * * The Lecompton Constitution, as the Judge tells us, was defeated. The defeat of it was a good thing or it was not. He thinks the defeat of it was a good thing, and so do I, and we agree in that. Who defeated it? [A voice—'Judge Douglas.'] Yes, he furnished himself, and if you suppose he controlled the other Democrats that went with him, he furnished three votes, while the Republicans furnished twenty. That is what he did to defeat it. In the House of Representatives he and his friends furnished some twenty votes, and the Republicans furnished ninety odd. Now, who was it that did the work? * * * Ground was taken against it by the Republicans long before Douglas did it. The proportion of opposition to that measure is about five to one."

Mr. Lincoln then proceeded to take up the issues which Mr. Douglas had joined with him the previous evening. He denied that he had said, or that it could be fairly inferred from what he had said, in his Springfield speech, that he was in favor of making War by the North upon the South for the extinction of Slavery, "or, in favor of inviting the South to a War upon the North, for the purpose of nationalizing Slavery." Said he: "I did not even say that I desired that Slavery should be put in course of ultimate extinction. I do say so now, however; so there need be no longer any difficulty about that. * * * I am tolerably well acquainted with the history of the Country and I know that it has endured eighty-two years half Slave and half Free. I believe—and that is what I meant to allude to there—I believe it has endured, because during all that time, until the introduction of the Nebraska Bill, the public mind did rest all the time in the belief that Slavery was in course of ultimate extinction. That was what gave us the rest that we had through that period of eighty-two years; at least, so I believe.

"I have always hated Slavery, I think, as much as any Abolitionist—I have been an Old Line Whig—I have always hated it, but I have always been quiet about it until this new era of the introduction of the Nebraska Bill began. I always believed that everybody was against it, and that it was in course of ultimate extinction. * * * The great mass of the Nation have rested in the belief that Slavery was in course of ultimate extinction. They had reason so to believe. The adoption of the Constitution and its attendant history led the People to believe so, and that such was the belief of the framers of the Constitution itself. Why did those old men about the time of

the adoption of the Constitution decree that Slavery should not go into the new territory, where it had not already gone? Why declare that within twenty years the African Slave Trade, by which Slaves are supplied, might be cut off by Congress? Why were all these acts? I might enumerate more of these acts—but enough. What were they but a clear indication that the framers of the Constitution intended and expected the ultimate extinction of that institution?

"And now, when I say, as I said in my speech that Judge Douglas has quoted from, when I say that I think the opponents of Slavery will resist the further spread of it, and place it where the public mind shall rest with the belief that it is in course of ultimate extinction, I only mean to say, that they will place it where the founders of this Government originally placed it. I have said a hundred times, and I have now no inclination to take it back, that I believe there is no right, and ought to be no inclination in the people of the Free States, to enter into the Slave States, and interfere with the question of Slavery at all. I have said that always; Judge Douglas has heard me say it—if not quite a hundred times, at least as good as a hundred times; and when it is said that I am in favor of interfering with Slavery where it exists, I know that it is unwarranted by anything I have ever intended, and as I believe, by anything I have ever said. If, by any means, I have ever used language which could fairly be so construed (as, however, I believe I never have) I now correct it. So much, then, for the inference that Judge Douglas draws, that I am in favor of setting the Sections at War with one another.

"Now in relation to his inference that I am in favor of a general consolidation of all the local institutions of the various States * * * I have said, very many times in Judge Douglas's hearing, that no man believed more than I in the principle of self-government from beginning to end. I have denied that his use of that term applies properly. But for the thing itself, I deny that any man has ever gone ahead of me in his devotion to the principle, whatever he may have done in efficiency in advocating it. I think that I have said it in your hearing—that I believe each individual is naturally entitled to do as he pleases with himself and the fruit of his labor, so far as it in no wise interferes with any other man's rights—that each community, as a State, has a right to do exactly as it pleases with all the concerns within that State that interfere with the rights of no other State, and that the General Government, upon principle, has no right to interfere

with anything other than that general class of things that does concern the whole. I have said that at all times.

"I have said, as illustrations, that I do not believe in the right of Illinois to interfere with the cranberry laws of Indiana, the oyster laws of Virginia, or the liquor laws of Maine. I have said these things over and over again, and I repeat them here as my sentiments. * * * What can authorize him to draw any such inference? I suppose there might be one thing that at least enabled him to draw such an inference that would not be true with me or many others, that is, because he looks upon all this matter of Slavery as an exceedingly little thing—this matter of keeping one-sixth of the population of the whole Nation in a state of oppression and tyranny unequalled in the World.

"He looks upon it as being an exceedingly little thing only equal to the cranberry laws of Indiana—as something having no moral question in it—as something on a par with the question of whether a man shall pasture his land with cattle, or plant it with tobacco—so little and so small a thing, that he concludes, if I could desire that anything should be done to bring about the ultimate extinction of that little thing, I must be in favor of bringing about an amalgamation of all the other little things in the Union.

"Now it so happens—and there, I presume, is the foundation of this mistake—that the Judge thinks thus; and it so happens that there is a vast portion of the American People that do not look upon that matter as being this very little thing. They look upon it as a vast moral evil; they can prove it as such by the writings of those who gave us the blessings of Liberty which we enjoy, and that they so looked upon it, and not as an evil merely confining itself to the States where it is situated; while we agree that, by the Constitution we assented to, in the States where it exists we have no right to interfere with it, because it is in the Constitution; and we are by both duty and inclination to stick by that Constitution in all its letter and spirit, from beginning to end. * * * The Judge can have no issue with me on a question of establishing uniformity in the domestic regulations of the States. * * *

"Another of the issues he says that is to be made with me, is upon his devotion to the Dred Scott decision, and my opposition to it. I have expressed heretofore, and I now repeat, my opposition to the Dred Scott decision; but I should be allowed to state the nature of that opposition. * * * What is fairly implied by the term Judge Douglas has used, 'resistance to

the decision?' I do not resist it. If I wanted to take Dred Scott from his master, I would be interfering with property and that terrible difficulty that Judge Douglas speaks of, of interfering with property, would arise. But I am doing no such thing as that, but all that I am doing is refusing to obey it, as a political rule. If I were in Congress, and a vote should come up on a question whether Slavery should be prohibited in a new Territory, in spite of the Dred Scott decision, I would vote that it should. That is what I would do.

"Judge Douglas said last night, that before the decision he might advance his opinion, and it might be contrary to the decision when it was made; but after it was made, he would abide by it until it was reversed. Just so! We let this property abide by the decision, but we will try to reverse that decision. We will try to put it where Judge Douglas would not object, for he says he will obey it until it is reversed. Somebody has to reverse that decision, since it is made, and we mean to reverse it, and we mean to do it peaceably.

"What are the uses of decisions of Courts? They have two uses. As rules of property they have two uses. First, they decide upon the question before the Court. They decide in this case that Dred Scott is a Slave. Nobody resists that. Not only that, but they say to everybody else, that persons standing just as Dred Scott stands, are as he is. That is, they say that when a question comes up upon another person, it will be so decided again, unless the Court decides in another way—unless the Court overrules its decision.—Well, we mean to do what we can to have the Court decide the other way. That is one thing we mean to try to do.

"The sacredness that Judge Douglas throws around this decision is a degree of sacredness that has never before been thrown around any other decision. I have never heard of such a thing. Why, decisions apparently contrary to that decision, or that good lawyers thought were contrary to that decision, have been made by that very Court before. It is the first of its kind; it is an astonisher in legal history. It is a new wonder of the world. It is based upon falsehood in the main as to the facts—allegations of facts upon which it stands are not facts at all in many instances; and no decision made on any question—the first instance of a decision made under so many unfavorable circumstances—thus placed, has ever been held by the profession as law, and it has always needed confirmation before the lawyers regarded it as settled law. But Judge Douglas will have it that all hands must

take this extraordinary decision, made under these extraordinary circumstances, and give their vote in Congress in accordance with it, yield to it and obey it in every possible sense.

"Circumstances alter cases. Do not gentlemen remember the case of that same Supreme Court, some twenty-five or thirty years ago, deciding that a National Bank was Constitutional? * * * The Bank charter ran out, and a recharter was granted by Congress. That re-charter was laid before General Jackson. It was urged upon him, when he denied the Constitutionality of the Bank, that the Supreme Court had decided that it was Constitutional; and General Jackson then said that the Supreme Court had no right to lay down a rule to govern a co-ordinate branch of the Government, the members of which had sworn to support the Constitution—that each member had sworn to support that Constitution as he understood it. I will venture here to say, that I have heard Judge Douglas say that he approved of General Jackson for that act. What has now become of all his tirade about 'resistance to the Supreme Court?'"

After adverting to Judge Douglas's warfare on "the leaders" of the Republican party, and his desire to have "it understood that the mass of the Republican party are really his friends," Mr. Lincoln said: "If you indorse him, you tell him you do not care whether Slavery be voted up or down, and he will close, or try to close, your mouths with his declaration repeated by the day, the week, the month, and the year. Is that what you mean? * * * Now I could ask the Republican party, after all the hard names that Judge Douglas has called them by, all his repeated charges of their inclination to marry with and hug negroes—all his declarations of Black Republicanism—by the way, we are improving, the black has got rubbed off—but with all that, if he be indorsed by Republican votes, where do you stand? Plainly, you stand ready saddled, bridled, and harnessed, and waiting to be driven over to the Slavery-extension camp of the Nation—just ready to be driven over, tied together in a lot—to be driven over, every man with a rope around his neck, that halter being held by Judge Douglas. That is the question. If Republican men have been in earnest in what they have done, I think that they has better not do it. * * *

"We were often—more than once at least—in the course of Judge Douglas's speech last night, reminded that this Government was made for White men—that he believed it was made for White men. Well, that is

putting it in a shape in which no one wants to deny it; but the Judge then goes into his passion for drawing inferences that are not warranted. I protest, now and forever, against that counterfeit logic which presumes that because I do not want a Negro woman for a Slave I do necessarily want her for a wife. My understanding is that I need not have her for either; but, as God has made us separate, we can leave one another alone, and do one another much good thereby. There are White men enough to marry all the White women, and enough Black men to marry all the Black women, and in God's name let them be so married. The Judge regales us with the terrible enormities that take place by the mixture of races; that the inferior race bears the superior down. Why, Judge, if we do not let them get together in the Territories, they won't mix there.

" * * * Those arguments that are made, that the inferior race are to be treated with as much allowance as they are capable of enjoying; that as much is to be done for them as their condition will allow—what are these arguments? They are the arguments that Kings have made for enslaving the People in all ages of the World. You will find that all the arguments in favor of king-craft were of this class; they always bestrode the necks of the People, not that they wanted to do it, but because the People were better off for being ridden! That is their argument, and this argument of the Judge is the same old Serpent that says: you work, and I eat; you toil, and I will enjoy the fruits of it.

"Turn it whatever way you will—whether it come from the mouth of a King, an excuse for enslaving the People of his Country, or from the mouth of men of one race as a reason for enslaving the men of another race, it is all the same old Serpent; and I hold, if that course of argumentation that is made for the purpose of convincing the public mind that we should not care about this, should be granted, it does not stop with the Negro.

"I should like to know, taking this old Declaration of Independence, which declares that all men are equal upon principle, and making exceptions to it, where will it stop? If one man says it does not mean a Negro, why not say it does not mean some other man? If that Declaration is not the truth, let us get the Statute Book, in which we find it, and tear it out! Who is so bold as to do it? If it is not true, let us tear it out!" [Cries of "No, no."] "Let us stick to it then; let us stand firmly by it, then. * * *

" * * * The Saviour, I suppose, did not expect that any human creature could be perfect as the Father in Heaven; but He said, 'As your Father in Heaven is perfect, be ye also perfect.' He set that up as a standard, and he who did most toward reaching that standard, attained the highest degree of moral perfection. So I say, in relation to the principle that all men are created equal—let it be as nearly reached as we can. If we cannot give Freedom to every creature, let us do nothing that will impose Slavery upon any other creature. Let us then turn this Government back into the channel in which the framers of the Constitution originally placed it. Let us stand firmly by each other. * * * Let us discard all this quibbling * * * and unite as one People throughout this Land, until we shall once more stand up declaring that all men are created equal."

At Bloomington, July 16th (Mr. Lincoln being present), Judge Douglas made another great speech of vindication and attack. After sketching the history of the Kansas-Nebraska struggle, from the introduction by himself of the Nebraska Bill in the United States Senate, in 1854, down to the passage of the "English" Bill—which prescribed substantially that if the people of Kansas would come in as a Slave-holding State, they should be admitted with but 35,000 inhabitants; but if they would come in as a Free State, they must have 93,420 inhabitants; which unfair restriction was opposed by Judge Douglas, but to which after it became law he "bowed in deference," because whatever decision the people of Kansas might make on the coming third of August would be "final and conclusive of the whole question"—he proceeded to compliment the Republicans in Congress, for supporting the Crittenden-Montgomery Bill—for coming "to the Douglas platform, abandoning their own, believing (in the language of the New York Tribune), that under the peculiar circumstances they would in that mode best subserve the interests of the Country;" and then again attacked Mr. Lincoln for his "unholy and unnatural alliance" with the Lecompton-Democrats to defeat him, because of which, said he: "You will find he does not say a word against the Lecompton Constitution or its supporters. He is as silent as the grave upon that subject. Behold Mr. Lincoln courting Lecompton votes, in order that he may go to the Senate as the representative of Republican principles! You know that the alliance exists. I think you will find that it will ooze out before the contest is over." Then with many handsome compliments to the personal character of Mr. Lincoln, and declaring that the question for decision was "whether his principles are

more in accordance with the genius of our free institutions, the peace and harmony of the Republic" than those advocated by himself, Judge Douglas proceeded to discuss what he described as "the two points at issue between Mr. Lincoln and myself."

Said he: "Although the Republic has existed from 1789 to this day, divided into Free States and Slave States, yet we are told that in the future it cannot endure unless they shall become all Free or all Slave. * * * He wishes to go to the Senate of the United States in order to carry out that line of public policy which will compel all the States in the South to become Free. How is he going to do it? Has Congress any power over the subject of Slavery in Kentucky or Virginia or any other State of this Union? How, then, is Mr. Lincoln going to carry out that principle which he says is essential to the existence of this Union, to wit: That Slavery must be abolished in all the States of the Union or must be established in them all? You convince the South that they must either establish Slavery in Illinois and in every other Free State, or submit to its abolition in every Southern State and you invite them to make a warfare upon the Northern States in order to establish Slavery for the sake of perpetuating it at home. Thus, Mr. Lincoln invites, by his proposition, a War of Sections, a War between Illinois and Kentucky, a War between the Free States and the Slave States, a War between the North and South, for the purpose of either exterminating Slavery in every Southern State or planting it in every Northern State. He tells you that the safety of the Republic, that the existence of this Union, depends upon that warfare being carried on until one Section or the other shall be entirely subdued. The States must all be Free or Slave, for a house divided against itself cannot stand. That is Mr. Lincoln's argument upon that question. My friends, is it possible to preserve Peace between the North and the South if such a doctrine shall prevail in either Section of the Union?

"Will you ever submit to a warfare waged by the Southern States to establish Slavery in Illinois? What man in Illinois would not lose the last drop of his heart's blood before he would submit to the institution of Slavery being forced upon us by the other States against our will? And if that be true of us, what Southern man would not shed the last drop of his heart's blood to prevent Illinois, or any other Northern State, from interfering to abolish Slavery in his State? Each of these States is sovereign under the Constitution; and if we wish to preserve our liberties, the reserved rights and sovereignty of each and every State must be maintained. * * *

The difference between Mr. Lincoln and myself upon this point is, that he goes for a combination of the Northern States, or the organization of a sectional political party in the Free States, to make War on the domestic institutions of the Southern States, and to prosecute that War until they all shall be subdued, and made to conform to such rules as the North shall dictate to them.

"I am aware that Mr. Lincoln, on Saturday night last, made a speech at Chicago for the purpose, as he said, of explaining his position on this question. * * * His answer to this point which I have been arguing, is, that he never did mean, and that I ought to know that he never intended to convey the idea, that he wished the people of the Free States to enter into the Southern States and interfere with Slavery. Well, I never did suppose that he ever dreamed of entering into Kentucky, to make War upon her institutions, nor will any Abolitionist ever enter into Kentucky to wage such War. Their mode of making War is not to enter into those States where Slavery exists, and there interfere, and render themselves responsible for the consequences. Oh, no! They stand on this side of the Ohio River and shoot across. They stand in Bloomington and shake their fists at the people of Lexington; they threaten South Carolina from Chicago. And they call that bravery! But they are very particular, as Mr. Lincoln says, not to enter into those States for the purpose of interfering with the institution of Slavery there. I am not only opposed to entering into the Slave States, for the purpose of interfering with their institutions, but I am opposed to a sectional agitation to control the institutions of other States. I am opposed to organizing a sectional party, which appeals to Northern pride, and Northern passion and prejudice, against Southern institutions, thus stirring up ill feeling and hot blood between brethren of the same Republic. I am opposed to that whole system of sectional agitation, which can produce nothing but strife, but discord, but hostility, and finally disunion. * * *

"I ask Mr. Lincoln how it is that he purposes ultimately to bring about this uniformity in each and all the States of the Union? There is but one possible mode which I can see, and perhaps Mr. Lincoln intends to pursue it; that is, to introduce a proposition into the Senate to change the Constitution of the United States in order that all the State Legislatures may be abolished, State Sovereignty blotted out, and the power conferred upon Congress to make local laws and establish the domestic institutions and police regulations uniformly throughout the United States.

"Are you prepared for such a change in the institutions of your country? Whenever you shall have blotted out the State Sovereignities, abolished the State Legislatures, and consolidated all the power in the Federal Government, you will have established a Consolidated Empire as destructive to the Liberties of the People and the Rights of the Citizen as that of Austria, or Russia, or any other despotism that rests upon the neck of the People. * * * There is but one possible way in which Slavery can be abolished, and that is by leaving a State, according to the principle of the Kansas-Nebraska Bill, perfectly free to form and regulate its institutions in its own way. That was the principle upon which this Republic was founded, and it is under the operation of that principle that we have been able to preserve the Union thus far under its operation. Slavery disappeared from New Hampshire, from Rhode Island, from Connecticut, from New York, from New Jersey, from Pennsylvania, from six of the twelve original Slave-holding States; and this gradual system of emancipation went on quietly, peacefully, and steadily, so long as we in the Free States minded our own business, and left our neighbors alone.

"But the moment the Abolition Societies were organized throughout the North, preaching a violent crusade against Slavery in the Southern States, this combination necessarily caused a counter-combination in the South, and a sectional line was drawn which was a barrier to any further emancipation. Bear in mind that emancipation has not taken place in any one State since the Free Soil Party was organized as a political party in this country. Emancipation went on gradually, in State after State, so long as the Free States were content with managing their own affairs and leaving the South perfectly free to do as they pleased; but the moment the North said we are powerful enough to control you of the South, the moment the North proclaimed itself the determined master of the South, that moment the South combined to resist the attack, and thus sectional parties were formed and gradual emancipation ceased in all the Slave-holding States.

"And yet Mr. Lincoln, in view of these historical facts, proposes to keep up this sectional agitation, band all the Northern States together in one political Party, elect a President by Northern votes alone, and then, of course, make a Cabinet composed of Northern men, and administer the Government by Northern men only, denying all the Southern States of this Union any participation in the administration of affairs whatsoever. I submit to you, my fellow-citizens, whether such a line of policy is consistent with

the peace and harmony of the Country? Can the Union endure under such a system of policy? He has taken his position in favor of sectional agitation and sectional warfare. I have taken mine in favor of securing peace, harmony, and good-will among all the States, by permitting each to mind its own business, and discountenancing any attempt at interference on the part of one State with the domestic concerns of the others. * * *

"Mr. Lincoln tells you that he is opposed to the decision of the Supreme Court in the Dred Scott case. Well, suppose he is; what is he going to do about it? * * * Why, he says he is going to appeal to Congress. Let us see how he will appeal to Congress. He tells us that on the 8th of March, 1820, Congress passed a law called the Missouri Compromise, prohibiting Slavery forever in all the territory west of the Mississippi and north of the Missouri line of thirty-six degrees and thirty minutes; that Dred Scott, a slave in Missouri, was taken by his master to Fort Snelling, in the present State of Minnesota, situated on the west branch of the Mississippi River, and consequently in the Territory where Slavery was prohibited by the Act of 1820; and that when Dred Scott appealed for his Freedom in consequence of having been taken into that Territory, the Supreme Court of the United States decided that Dred Scott did not become Free by being taken into that Territory, but that having been carried back to Missouri, was yet a Slave.

"Mr. Lincoln is going to appeal from that decision and reverse it. He does not intend to reverse it as to Dred Scott. Oh, no! But he will reverse it so that it shall not stand as a rule in the future. How will he do it? He says that if he is elected to the Senate he will introduce and pass a law just like the Missouri Compromise, prohibiting Slavery again in all the Territories. Suppose he does re-enact the same law which the Court has pronounced unconstitutional, will that make it Constitutional? * * * Will it be any more valid? Will he be able to convince the Court that the second Act is valid, when the first is invalid and void? What good does it do to pass a second Act? Why, it will have the effect to arraign the Supreme Court before the People, and to bring them into all the political discussions of the Country. Will that do any good? * * *

"The functions of Congress are to enact the Statutes, the province of the Court is to pronounce upon their validity, and the duty of the Executive is to carry the decision into effect when rendered by the Court. And yet,

notwithstanding the Constitution makes the decision of the Court final in regard to the validity of an Act of Congress, Mr. Lincoln is going to reverse that decision by passing another Act of Congress. When he has become convinced of the Folly of the proposition, perhaps he will resort to the same subterfuge that I have found others of his Party resort to, which is to agitate and agitate until he can change the Supreme Court and put other men in the places of the present incumbents."

After ridiculing this proposition at some length, he proceeded:

"Mr. Lincoln is alarmed for fear that, under the Dred Scott decision, Slavery will go into all the Territories of the United States. All I have to say is that, with or without this decision, Slavery will go just where the People want it, and not an inch further. * * * Hence, if the People of a Territory want Slavery, they will encourage it by passing affirmatory laws, and the necessary police regulations, patrol laws and Slave Code; if they do not want it, they will withhold that legislation, and, by withholding it, Slavery is as dead as if it was prohibited by a Constitutional prohibition, especially if, in addition, their legislation is unfriendly, as it would be if they were opposed to it."

Then, taking up what he said was "Mr. Lincoln's main objection to the Dred Scott decision," to wit: "that that decision deprives the Negro of the benefits of that clause of the Constitution of the United States which entitles the citizens of each State to all the privileges and immunities of citizens of the several States," and admitting that such would be its effect, Mr. Douglas contended at some length that this Government was "founded on the White basis" for the benefit of the Whites and their posterity. He did "not believe that it was the design or intention of the signers of the Declaration of Independence or the frames of the Constitution to include Negroes, Indians, or other inferior races, with White men as citizens;" nor that the former "had any reference to Negroes, when they used the expression that all men were created equal," nor to "any other inferior race." He held that, "They were speaking only of the White race, and never dreamed that their language would be construed to apply to the Negro;" and after ridiculing the contrary view, insisted that, "The history of the Country shows that neither the signers of the Declaration, nor the Framers of the Constitution, ever supposed it possible that their language would be used in an attempt to

make this Nation a mixed Nation of Indians, Negroes, Whites, and Mongrels."

The "Fathers proceeded on the White basis, making the White people the governing race, but conceding to the Indian and Negro, and all inferior races, all the rights and all the privileges they could enjoy consistent with the safety of the society in which they lived. That," said he, "is my opinion now. I told you that humanity, philanthropy, justice, and sound policy required that we should give the Negro every right, every privilege, every immunity consistent with the safety and welfare of the State. The question, then, naturally arises, what are those rights and privileges, and what is the nature and extent of them? My answer is, that that is a question which each State and each Territory must decide for itself. * * * I am content with that position. My friend Lincoln is not. * * * He thinks that the Almighty made the Negro his equal and his brother. For my part I do not consider the Negro any kin to me, nor to any other White man; but I would still carry my humanity and my philanthropy to the extent of giving him every privilege and every immunity that he could enjoy, consistent with our own good."

After again referring to the principles connected with non-interference in the domestic institutions of the States and Territories, and to the devotion of all his energies to them "since 1850, when," said he, "I acted side by side with the immortal Clay and the god-like Webster, in that memorable struggle in which Whigs and Democrats united upon a common platform of patriotism and the Constitution, throwing aside partisan feelings in order to restore peace and harmony to a distracted Country"—he alluded to the death-bed of Clay, and the pledges made by himself to both Clay and Webster to devote his own life to the vindication of the principles of that Compromise of 1850 as a means of preserving the Union; and concluded with this appeal: "This Union can only be preserved by maintaining the fraternal feeling between the North and the South, the East and the West. If that good feeling can be preserved, the Union will be as perpetual as the fame of its great founders. It can be maintained by preserving the sovereignty of the States, the right of each State and each Territory to settle its domestic concerns for itself, and the duty of each to refrain from interfering with the other in any of its local or domestic institutions. Let that be done, and the Union will be perpetual; let that be done, and this Republic, which began with thirteen States and which now numbers thirty-two, which when it began, only extended from the Atlantic to the

Mississippi, but now reaches to the Pacific, may yet expand, North and South, until it covers the whole Continent, and becomes one vast ocean-bound Confederacy. Then, my friends, the path of duty, of honor, of patriotism, is plain. There are a few simple principles to be preserved. Bear in mind the dividing line between State rights and Federal authority; let us maintain the great principles of Popular Sovereignty, of State rights and of the Federal Union as the Constitution has made it, and this Republic will endure forever."

On the next evening, July 17th, at Springfield, both Douglas and Lincoln addressed separate meetings.

After covering much the same ground with regard to the history of the Kansas-Nebraska struggle and his own attitude upon it, as he did in his previous speech, Mr. Douglas declined to comment upon Mr. Lincoln's intimation of a Conspiracy between Douglas, Pierce, Buchanan, and Taney for the passage of the Nebraska Bill, the rendition of the Dred Scott decision, and the extension of Slavery, but proceeded to dilate on the "uniformity" issue between himself and Mr. Lincoln, in much the same strain as before, tersely summing up with the statement that "there is a distinct issue of principles—principles irreconcilable—between Mr. Lincoln and myself. He goes for consolidation and uniformity in our Government. I go for maintaining the Confederation of the Sovereign States under the Constitution, as our fathers made it, leaving each State at liberty to manage its own affairs and own internal institutions."

He then ridiculed, at considerable length, Mr. Lincoln's proposed methods of securing a reversal by the United States Supreme Court of the Dred Scott decision—especially that of an "appeal to the People to elect a President who will appoint judges who will reverse the Dred Scott decision," which he characterized as "a proposition to make that Court the corrupt, unscrupulous tool of a political party," and asked, "when we refuse to abide by Judicial decisions, what protection is there left for life and property? To whom shall you appeal? To mob law, to partisan caucuses, to town meetings, to revolution? Where is the remedy when you refuse obedience to the constituted authorities?" In other respects the speech was largely a repetition of his Bloomington speech.

Mr. Lincoln in his speech, the same night, at Springfield, opened by contrasting the disadvantages under which, by reason of an unfair

apportionment of State Legislative representation and otherwise, the Republicans of Illinois labored in this fight. Among other disadvantages—whereby he said the Republicans were forced "to fight this battle upon principle and upon principle alone"—were those which he said arose "out of the relative positions of the two persons who stand before the State as candidates for the Senate."

Said he: "Senator Douglas is of world-wide renown. All the anxious politicians of his Party, or who have been of his Party for years past, have been looking upon him as certainly, at no distant day, to be the President of the United States. They have seen in his round, jolly, fruitful face, Post-offices, Land-offices, Marshalships, and Cabinet appointments, Chargeships and Foreign Missions, bursting and sprouting out in wonderful exuberance, ready to be laid hold of by their greedy hands. And as they have been gazing upon this attractive picture so long, they cannot, in the little distraction that has taken place in the party, bring themselves to give up the charming hope; but with greedier anxiety they rush about him, sustain him, and give him marches, triumphal entries, and receptions, beyond what even in the days of his highest prosperity they could have brought about in his favor. On the contrary, nobody has ever expected me to be President. In my poor, lean, lank face, nobody has ever seen that any cabbages were sprouting out."

Then he described the main points of Senator Douglas's plan of campaign as being not very numerous. "The first," he said, "is Popular Sovereignty. The second and third are attacks upon my speech made on the 16th of June. Out of these three points—drawing within the range of Popular Sovereignty the question of the Lecompton Constitution—he makes his principal assault. Upon these his successive speeches are substantially one and the same." Touching the first point, "Popular Sovereignty"—"the great staple" of Mr. Douglas's campaign—Mr. Lincoln affirmed that it was "the most arrant Quixotism that was ever enacted before a community."

He said that everybody understood that "we have not been in a controversy about the right of a People to govern themselves in the ordinary matters of domestic concern in the States and Territories;" that, "in this controversy, whatever has been said has had reference to the question of Negro Slavery;" and "hence," said he, "when hereafter I speak of Popular Sovereignty, I wish to be understood as applying what I say to the question

of Slavery only; not to other minor domestic matters of a Territory or a State."

Having cleared away the cobwebs, Mr. Lincoln proceeded:

"Does Judge Douglas, when he says that several of the past years of his life have been devoted to the question of 'Popular Sovereignty' * * * mean to say that he has been devoting his life to securing the People of the Territories the right to exclude Slavery from the Territories? If he means so to say, he means to deceive; because he and every one knows that the decision of the Supreme Court, which he approves, and makes special ground of attack upon me for disapproving, forbids the People of a Territory to exclude Slavery.

"This covers the whole ground from the settlement of a Territory till it reaches the degree of maturity entitling it to form a State Constitution. * * * This being so, the period of time from the first settlement of a Territory till it reaches the point of forming a State Constitution, is not the thing that the Judge has fought for, or is fighting for; but, on the contrary, he has fought for, and is fighting for, the thing that annihilates and crushes out that same Popular Sovereignty. Well, so much being disposed of, what is left? Why, he is contending for the right of the People, when they come to make a State Constitution, to make it for themselves, and precisely as best suits themselves. I say again, that is Quixotic. I defy contradiction when I declare that the Judge can find no one to oppose him on that proposition. I repeat, there is nobody opposing that proposition on principle. * * * Nobody is opposing, or has opposed, the right of the People when they form a State Constitution, to form it for themselves. Mr. Buchanan and his friends have not done it; they, too, as well as the Republicans and the Anti-Lecompton Democrats, have not done it; but on the contrary, they together have insisted on the right of the People to form a Constitution for themselves. The difference between the Buchanan men, on the one hand, and the Douglas men and the Republicans, on the other, has not been on a question of principle, but on a question of fact * * * whether the Lecompton Constitution had been fairly formed by the People or not. * * * As to the principle, all were agreed.

"Judge Douglas voted with the Republicans upon that matter of fact. He and they, by their voices and votes, denied that it was a fair emanation of the People. The Administration affirmed that it was. * * * This being so,

what is Judge Douglas going to spend his life for? Is he going to spend his life in maintaining a principle that no body on earth opposes? Does he expect to stand up in majestic dignity and go through his apotheosis and become a god, in the maintaining of a principle which neither man nor mouse in all God's creation is opposing?"

After ridiculing the assumption that Judge Douglas was entitled to all the credit for the defeat of the Lecompton Constitution in the House of Representatives—when the defeating vote numbered 120, of which 6 were Americans, 20 Douglas (or Anti-Lecompton) Democrats, and 94 Republicans —and hinting that perhaps he placed "his superior claim to credit, on the ground that he performed a good act which was never expected of him," or "upon the ground of the parable of the lost sheep," of which it had been said, "that there was more rejoicing over the one sheep that was lost and had been found, than over the ninety and nine in the fold —" he added: "The application is made by the Saviour in this parable, thus: 'Verily, I say unto you, there is more rejoicing in Heaven over one sinner that repenteth, than over ninety and nine just persons that need no repentance.' And now if the Judge claims the benefit of this parable, let him repent. Let him not come up here and say: 'I am the only just person; and you are the ninety-nine sinners!' Repentance before forgiveness is a provision of the Christian system, and on that condition alone will the Republicans grant his forgiveness."

After complaining that Judge Douglas misrepresented his attitude as indicated in his 16th of June speech at Springfield, in charging that he invited "a War of Sections;"—that he proposed that "all the local institutions of the different States shall become consolidated and uniform," Mr. Lincoln denied that that speech could fairly bear such construction.

In that speech he (Mr. L.) had simply expressed an expectation that "either the opponents of Slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the States, old as well as new, North as well as South." Since then, at Chicago, he had also expressed a "wish to see the spread of Slavery arrested, and to see it placed where the public mind shall rest in the belief that it is in the course of ultimate extinction"—and, said he: "I said that, because I supposed, when the public mind shall rest in that

belief, we shall have Peace on the Slavery question. I have believed—and now believe—the public mind did rest on that belief up to the introduction of the Nebraska Bill. Although I have ever been opposed to Slavery, so far I rested in the hope and belief that it was in the course of ultimate extinction. For that reason, it had been a minor question with me. I might have been mistaken; but I had believed, and now believe, that the whole public mind, that is, the mind of the great majority, had rested in that belief up to the Repeal of the Missouri Compromise. But upon that event, I became convinced that either I had been resting in a delusion, or the institution was being placed on a new basis—a basis for making it Perpetual, National, and Universal. Subsequent events have greatly confirmed me in that belief.

"I believe that Bill to be the beginning of a Conspiracy for that purpose. So believing, I have since then considered that question a paramount one. So believing, I thought the public mind would never rest till the power of Congress to restrict the spread of it shall again be acknowledged and exercised on the one hand, or, on the other, all resistance be entirely crushed out. I have expressed that opinion and I entertain it to-night."

Having given some pieces of evidence in proof of the "tendency," he had discovered, to the Nationalization of Slavery in these States, Mr. Lincoln continued: "And now, as to the Judge's inference, that because I wish to see Slavery placed in the course of ultimate extinction—placed where our fathers originally placed it—I wish to annihilate the State Legislatures—to force cotton to grow upon the tops of the Green Mountains—to freeze ice in Florida—to cut lumber on the broad Illinois prairies—that I am in favor of all these ridiculous and impossible things! It seems to me it is a complete answer to all this, to ask if, when Congress did have the fashion of restricting Slavery from Free Territory; when Courts did have the fashion of deciding that taking a Slave into a Free, Country made him Free—I say it is a sufficient answer to ask, if any of this ridiculous nonsense, about consolidation and uniformity, did actually follow? Who heard of any such thing, because of the Ordinance of '87? because of the Missouri Restriction because of the numerous Court decisions of that character?

"Now, as to the Dred Scott decision; for upon that he makes his last point at me. He boldly takes ground in favor of that decision. This is one-half the onslaught and one-third of the entire plan of the campaign. I am opposed to that decision in a certain sense, but not in the sense which he puts on it. I

say that in so far as it decided in favor of Dred Scott's master, and against Dred Scott and his family, I do not propose to disturb or resist the decision. I never have proposed to do any such thing. I think, that in respect for judicial authority, my humble history would not suffer in comparison with that of Judge Douglas. He would have the citizen conform his vote to that decision; the member of Congress, his; the President, his use of the veto power. He would make it a rule of political action for the People and all the departments of the Government. I would not. By resisting it as a political rule, I disturb no right of property, create no disorder, excite no mobs."

After quoting from a letter of Mr. Jefferson (vol. vii., p. 177, of his Correspondence,) in which he held that "to consider the judges as the ultimate arbiters of all Constitutional questions," is "a very dangerous doctrine indeed; and one which would place us under the despotism of an Oligarchy," Mr. Lincoln continued: "Let us go a little further. You remember we once had a National Bank. Some one owed the Bank a debt; he was sued, and sought to avoid payment on the ground that the Bank was unconstitutional. The case went to the Supreme Court, and therein it was decided that the Bank was Constitutional. The whole Democratic party revolted against that decision. General Jackson himself asserted that he, as President, would not be bound to hold a National Bank to be Constitutional, even though the Court had decided it to be so. He fell in, precisely, with the view of Mr. Jefferson, and acted upon it under his official oath, in vetoing a charter for a National Bank.

"The declaration that Congress does not possess this Constitutional power to charter a Bank, has gone into the Democratic platform, at their National Conventions, and was brought forward and reaffirmed in their last Convention at Cincinnati. They have contended for that declaration, in the very teeth of the Supreme Court, for more than a quarter of a century. In fact, they have reduced the decision to an absolute nullity. That decision, I repeat, is repudiated in the Cincinnati platform; and still, as if to show that effrontery can go no further, Judge Douglas vaunts in the very speeches in which he denounces me for opposing the Dred Scott decision, that he stands on the Cincinnati platform.

"Now, I wish to know what the Judge can charge upon me, with respect to decisions of the Supreme Court, which does not lie in all its length, breadth, and proportions, at his own door? The plain truth is simply this:

Judge Douglas is for Supreme Court decisions when he likes, and against them when he does not like them. He is for the Dred Scott decision because it tends to Nationalize Slavery—because it is a part of the original combination for that object. It so happens, singularly enough, that I never stood opposed to a decision of the Supreme Court till this. On the contrary, I have no recollection that he was ever particularly in favor of one till this. He never was in favor of any, nor (I) opposed to any, till the present one, which helps to Nationalize Slavery. Free men of Sangamon—Free men of Illinois, Free men everywhere—judge ye between him and me, upon this issue!

"He says this Dred Scott case is a very small matter at most—that it has no practical effect; that at best, or rather I suppose at worst, it is but an abstraction. * * * How has the planting of Slavery in new countries always been effected? It has now been decided that Slavery cannot be kept out of our new Territories by any legal means. In what do our new Territories now differ in this respect from the old Colonies when Slavery was first planted within them?

"It was planted, as Mr. Clay once declared, and as history proves true, by individual men in spite of the wishes of the people; the Mother-Government refusing to prohibit it, and withholding from the People of the Colonies the authority to prohibit it for themselves. Mr. Clay says this was one of the great and just causes of complaint against Great Britain by the Colonies, and the best apology we can now make for having the institution amongst us. In that precise condition our Nebraska politicians have at last succeeded in placing our own new Territories; the Government will not prohibit Slavery within them, nor allow the People to prohibit it."

Alluding to that part of Mr. Douglas's speech the previous night touching the death-bed scene of Mr. Clay, with Mr. Douglas's promise to devote the remainder of his life to "Popular Sovereignty"—and to his relations with Mr. Webster—Mr. Lincoln said: "It would be amusing, if it were not disgusting, to see how quick these Compromise breakers administer on the political effects of their dead adversaries. If I should be found dead tomorrow morning, nothing but my insignificance could prevent a speech being made on my authority, before the end of next week. It so happens that in that 'Popular Sovereignty' with which Mr. Clay was identified, the Missouri Compromise was expressly reserved; and it was a little singular if

Mr. Clay cast his mantle upon Judge Douglas on purpose to have that Compromise repealed. Again, the Judge did not keep faith with Mr. Clay when he first brought in the Nebraska Bill. He left the Missouri Compromise unrepealed, and in his report accompanying the Bill, he told the World he did it on purpose. The manes of Mr. Clay must have been in great agony, till thirty days later, when 'Popular Sovereignty' stood forth in all its glory."

Touching Mr. Douglas's allegations of Mr. Lincoln's disposition to make Negroes equal with the Whites, socially and politically, the latter said: "My declarations upon this subject of Negro Slavery may be misrepresented, but cannot be misunderstood. I have said that I do not understand the Declaration (of Independence) to mean that all men were created equal in all respects. They are not equal in color; but I suppose that it does mean to declare that all men are equal in some respects; they are equal in their right to 'Life, Liberty, and the pursuit of Happiness.' Certainly the Negro is not our equal in color—perhaps not in many other respects; still, in the right to put into his mouth the bread that his own hands have earned, he is the equal of every other man, White or Black. In pointing out that more has been given you, you cannot be justified in taking away the little which has been given him. All I ask for the Negro is that if you do not like him, let him alone. If God gave him but little, that little let him enjoy.

"The framers of the Constitution," continued Mr. Lincoln, "found the institution of Slavery amongst their other institutions at the time. They found that by an effort to eradicate it, they might lose much of what they had already gained. They were obliged to bow to the necessity. They gave Congress power to abolish the Slave Trade at the end of twenty years. They also prohibited it in the Territories where it did not exist. They did what they could, and yielded to the necessity for the rest. I also yield to all which follows from that necessity. What I would most desire would be the separation of the White and Black races."

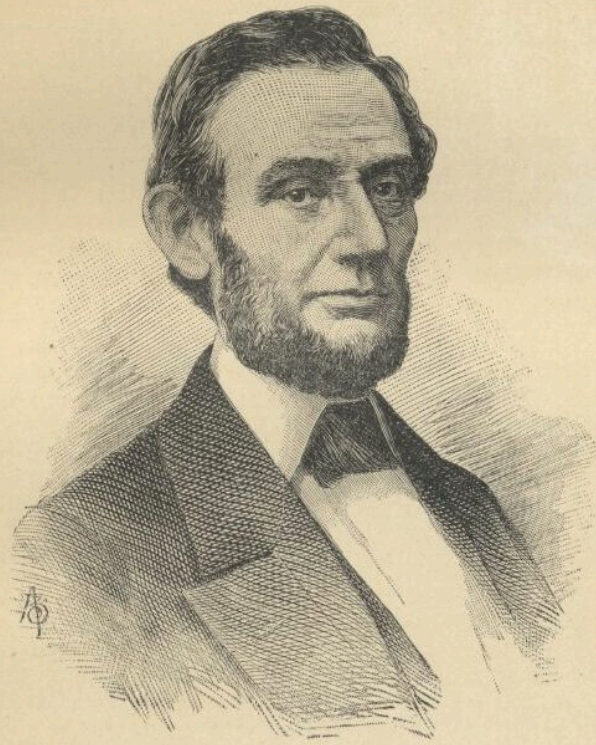
Mr. Lincoln closed his speech by referring to the "New Departure" of the Democracy—to the charge he had made, in his 16th of June speech, touching "the existence of a Conspiracy to Perpetuate and Nationalize Slavery"—which Mr. Douglas had not contradicted—and, said he, "on his own tacit admission I renew that charge. I charge him with having been a

party to that Conspiracy, and to that deception, for the sole purpose of Nationalizing Slavery."

This closed the series of preliminary speeches in the canvass. But they only served to whet the moral and intellectual and political appetite of the public for more. It was generally conceded that, at last, in the person of Mr. Lincoln, the "Little Giant" had met his match.

On July 24, Mr. Lincoln opened a correspondence with Mr. Douglas, which eventuated in an agreement between them, July 31st, for joint-discussions, to take place at Ottawa, Freeport, Jonesboro, Charleston, Galesburgh, Quincy, and Alton, on fixed dates in August, September and October—at Ottawa, Mr. Douglas to open and speak one hour, Mr. Lincoln to have an hour and a half in reply, and Mr. Douglas to close in a half hour's speech; at Freeport, Mr. Lincoln to open and speak for one hour, Mr. Douglas to take the next hour and a half in reply, and Mr. Lincoln to have the next half hour to close; and so on, alternating at each successive place, making twenty-one hours of joint political debate.

To these absorbingly interesting discussions, vast assemblages listened with breathless attention; and to the credit of all parties be it said, with unparalleled decorum. The People evidently felt that the greatest of all political principles—that of Human Liberty—was hanging on the issue of this great political contest between intellectual giants, thus openly waged before the World—and they accordingly rose to the dignity and solemnity of the occasion, vindicating by their very example the sacredness with which the Right of Free Speech should be regarded at all times and everywhere.



ABRAHAM LINCOLN.

CHAPTER V.

THE PRESIDENTIAL CONTEST OF 1860— THE CRISIS APPROACHING.

The immediate outcome of the remarkable joint-debate between the two intellectual giants of Illinois was, that while the popular vote stood 124,698 for Lincoln, to 121,130 for Douglas—showing a victory for Lincoln among the People—yet, enough Douglas-Democrats were elected to the Legislature, when added to those of his friends in the Illinois Senate, who had been elected two years before, and "held over," to give him, in all, 54 members of both branches of the Legislature on joint ballot, against 46 for Mr. Lincoln. Lincoln had carried the people, but Douglas had secured the Senatorial prize for which they had striven—and by that Legislative vote was elected to succeed himself in the United States Senate. This result was trumpeted throughout the Union as a great Douglas victory.

During the canvass of Illinois, Douglas's friends had seen to it that nothing on their part should be wanting to secure success. What with special car trains, and weighty deputations, and imposing processions, and flag raisings, the inspiration of music, the booming of cannon, and the eager shouts of an enthusiastic populace, his political journey through Illinois had been more like a Royal Progress than anything the Country had yet seen; and now that his reelection was accomplished, they proposed to make the most of it—to extend, as it were, the sphere of his triumph, or vindication, so that it would include not the State alone, but the Nation—and thus so accentuate and enhance his availability as a candidate for the Democratic Presidential nomination of 1860, as to make his nomination and election to the Presidency of the United States an almost foregone conclusion.

The programme was to raise so great a popular tidal-wave in his interest, as would bear him irresistibly upon its crest to the White House. Accordingly, as the idol of the Democratic popular heart, Douglas, upon his

return to the National Capital, was triumphantly received by the chief cities of the Mississippi and the Atlantic sea-board. Hailed as victor in the great political contest in Illinois—upon the extended newspaper reports of which, the absorbed eyes of the entire nation, for months, had greedily fed—Douglas was received with much ostentation and immense enthusiasm at St. Louis, Memphis, New Orleans, New York, Philadelphia, Baltimore and Washington. Like the "Triumphs" decreed by Rome, in her grandest days, to the greatest of her victorious heroes, Douglas's return was a series of magnificent popular ovations,

In a speech made two years before this period, Mr. Lincoln, while contrasting his own political career with that of Douglas, and modestly describing his own as "a flat failure" had said: "With him it has been one of splendid success. His name fills the Nation, and is not unknown even in foreign lands. I affect no contempt for the high eminence he has reached. So reached, that the oppressed of my species might have shared with me in the elevation, I would rather stand on that eminence than wear the richest crown that ever pressed a monarch's brow." And now the star of Douglas had reached a higher altitude, nearing its meridian splendor. He had become the popular idol of the day.

But Douglas's partial victory—if such it was—so far from settling the public mind and public conscience, had the contrary effect. It added to the ferment which the Pro-Slavery Oligarchists of the South—and especially those of South Carolina—were intent upon increasing, until so grave and serious a crisis should arrive as would, in their opinion, furnish a justifiable pretext in the eyes of the World for the contemplated Secession of the Slave States from the Union.

Under the inspiration of the Slave Power, and in the direct line of the Dred Scott decision, and of the "victorious" doctrine of Senator Douglas, which he held not inconsistent therewith, that the people of any Territory of the United States could do as they pleased as to the institution of Slavery within their own limits, and if they desired the institution, they had the right by local legislation to "protect and encourage it," the Legislature of the Territory of New Mexico at once (1859) proceeded to enact a law "for the protection of property in Slaves," and other measures similar to the prevailing Slave Codes in the Southern States.

The aggressive attitude of the South—as thus evidenced anew—naturally stirred, to their very core, the Abolition elements of the North; on the other hand, the publication of Hinton Rowan Helper's "Impending Crisis," which handled the Slavery question without gloves, and supported its views with statistics which startled the Northern mind, together with its alleged indorsement by the leading Republicans of the North, exasperated the fiery Southrons to an intense degree. Nor was the capture, in October, 1859, of Harper's Ferry, Virginia, by John Brown and his handful of Northern Abolitionist followers, and his subsequent execution in Virginia, calculated to allay the rapidly intensifying feeling between the Freedom-loving North and the Slaveholding South. When, therefore, the Congress met, in December, 1859, the sectional wrath of the Country was reflected in the proceedings of both branches of that body, and these again reacted upon the People of both the Northern and Southern States, until the fires of Slavery Agitation were stirred to a white heat.

The bitterness of feeling in the House at this time, was shown, in part, by the fact that not until the 1st of February, 1860, was it able, upon a forty-fourth ballot, to organize by the election of a Speaker, and that from the day of its meeting on the 5th of December, 1859, up to such organization, it was involved in an incessant and stormy wrangle upon the Slavery question.

So also in the Democratic Senate, the split in the Democratic Party, between the Lecompton and Anti-Lecompton Democracy, was widened, at the same time that the Republicans of the North were further irritated, by the significantly decisive passage of a series of resolutions proposed by Jefferson Davis, which, on the one hand, purposely and deliberately knifed Douglas's "Popular Sovereignty" doctrine and read out of the Party all who believed in it, by declaring "That neither Congress nor a Territorial Legislature, whether by direct legislation, or legislation of an indirect and unfriendly character, possesses power to annul or impair the Constitutional right of any citizen of the United States to take his Slave-property into the common Territories, and there hold and enjoy the same while the Territorial condition remains," and, on the other, purposely and deliberately slapped in the face the Republicans of the North, by declaring—among other things "That in the adoption of the Federal Constitution, the States adopting the same, acted severally as Free and Independent sovereignties, delegating a portion of their powers to be exercised by the Federal Government for the increased security of each against dangers, domestic as well as foreign; and

that any intermeddling by any one or more States or by a combination of their citizens, with the domestic institutions of the others, on any pretext whatever, political, moral, or religious, with a view to their disturbance or subversion, is in violation of the Constitution, insulting to the States so interfered with, endangers their domestic peace and tranquillity—objects for which the Constitution was formed—and, by necessary consequence, tends to weaken and destroy the Union itself."

Another of these resolutions declared Negro Slavery to be recognized in the Constitution, and that all "open or covert attacks thereon with a view to its overthrow," made either by the Non-Slave-holding States or their citizens, violated the pledges of the Constitution, "are a manifest breach of faith, and a violation of the most solemn obligations."

This last was intended as a blow at the Freedom of Speech and of the Press in the North; and only served, as was doubtless intended, to still more inflame Northern public feeling, while at the same time endeavoring to place the arrogant and aggressive Slave Power in an attitude of injured innocence. In short, the time of both Houses of Congress was almost entirely consumed during the Session of 1859-60 in the heated, and sometimes even furious, discussion of the Slavery question; and everywhere, North and South, the public mind was not alone deeply agitated, but apprehensive that the Union was founded not upon a rock, but upon the crater of a volcano, whose long-smouldering energies might at any moment burst their confines, and reduce it to ruin and desolation.

On the 23rd of April, 1860, the Democratic National Convention met at Charleston, South Carolina. It was several days after the permanent organization of the Convention before the Committee on Resolutions reported to the main body, and not until the 30th of April did it reach a vote upon the various reports, which had in the meantime been modified. The propositions voted upon were three:

First, The Majority Report of the Committee, which reaffirmed the Cincinnati platform of 1856—with certain "explanatory" resolutions added, which boldly proclaimed: "That the Government of a Territory organized by an Act of Congress, is provisional and temporary; and, during its existence, all citizens of the United States have an equal right to settle with their property in the Territory, without their rights, either of person or property, being destroyed or impaired by Congressional or Territorial Legislation;"

that "it is the duty of the Federal Government, in all its departments, to protect, when necessary, the rights of persons and property in the Territories, and wherever else its Constitutional authority extends;" that "when the settlers in a Territory, having an adequate population, form a State Constitution, the right of Sovereignty commences, and, being consummated by admission into the Union, they stand on an equal footing with the people of other States, and the State thus organized ought to be admitted into the Federal Union, whether its Constitution prohibits or recognizes the institution of Slavery;" and that "the enactments of State Legislatures to defeat the faithful execution of the Fugitive Slave Law, are hostile in character, subversive of the Constitution, and revolutionary in effect." The resolutions also included a declaration in favor of the acquisition of Cuba, and other comparatively minor matters.

Second, The Minority Report of the Committee, which, after re-affirming the Cincinnati platform, declared that "Inasmuch as differences of opinion exist in the Democratic party as to the nature and extent of the powers of a Territorial Legislature, and as to the powers and duties of Congress, under the Constitution of the United States, over the institution of Slavery within the Territories * * * the Democratic Party will abide by the decisions of the Supreme Court of the United States on the questions of Constitutional law."

Third, The recommendation of Benjamin F. Butler, that the platform should consist simply of a re-affirmation of the Cincinnati platform, and not another word.

The last proposition was first voted on, and lost, by 105 yeas to 198 nays. The Minority platform was then adopted by 165 yeas to 138 nays.

The aggressive Slave-holders (Majority) platform, and the Butler Compromise do-nothing proposition, being both defeated, and the Douglas (Minority) platform adopted, the Alabama delegation, under instructions from their State Convention to withdraw in case the National Convention refused to adopt radical Territorial Pro-Slavery resolutions, at once presented a written protest and withdrew from the Convention, and were followed, in rapid succession, by; the delegates from Mississippi, Louisiana (all but two), South Carolina, Florida, Texas, Arkansas (in part), Delaware (mostly), and Georgia (mostly)—the seceding delegates afterwards organizing in another Hall, adopting the above Majority platform, and after

a four days' sitting, adjourning to meet at Richmond, Virginia, on the 11th of June.

Meanwhile, the Regular Democratic National Convention had proceeded to ballot for President—after adopting the two-thirds rule. Thirty-seven ballots having been cast, that for Stephen A. Douglas being, on the thirty-seventh, 151, the Convention, on the 3d of May, adjourned to meet again at Baltimore, June 18th.

After re-assembling, and settling contested election cases, the delegates (in whole or in part) from Virginia, North Carolina, Tennessee, California, Delaware, Kentucky, Maryland and Massachusetts, withdrew from the Convention, the latter upon the ground mainly that there had been "a withdrawal, in part, of a majority of the States," while Butler, who had voted steadily for Jefferson Davis throughout all the balloting at Charleston, gave as an additional ground personal to himself, that "I will not sit in a convention where the African Slave Trade—which is piracy by the laws of my Country—is approvingly advocated"—referring thereby to a speech, that had been much applauded by the Convention at Charleston, made by a Georgia delegate (Gaulden), in which that delegate had said: "I would ask my friends of the South to come up in a proper spirit; ask our Northern friends to give us all our rights, and take off the ruthless restrictions which cut off the supply of Slaves from foreign lands. * * * I tell you, fellow Democrats, that the African Slave Trader is the true Union man (cheers and laughter). I tell you that the Slave Trading of Virginia is more immoral, more unchristian in every possible point of view, than that African Slave Trade which goes to Africa and brings a heathen and worthless man here, makes him a useful man, Christianizes him, and sends him and his posterity down the stream of Time, to enjoy the blessings of civilization. (Cheers and laughter.) * * * I come from the first Congressional District of Georgia. I represent the African Slave Trade interest of that Section. (Applause.) I am proud of the position I occupy in that respect. I believe that the African Slave Trader is a true missionary, and a true Christian. (Applause.) * * * Are you prepared to go back to first principles, and take off your unconstitutional restrictions, and leave this question to be settled by each State? Now, do this, fellow citizens, and you will have Peace in the Country. * * * I advocate the repeal of the laws prohibiting the African Slave Trade, because I believe it to be the true Union movement. * * * I

believe that by re-opening this Trade and giving us Negroes to populate the Territories, the equilibrium of the two Sections will be maintained."

After the withdrawal of the bolting delegates at Baltimore, the Convention proceeded to ballot for President, and at the end of the second ballot, Mr. Douglas having received "two-thirds of all votes given in the Convention" (183) was declared the "regular nominee of the Democratic Party, for the office of President of the United States."

An additional resolution was subsequently adopted as a part of the platform, declaring that "it is in accordance with the true interpretation of the Cincinnati platform, that, during the existence of the Territorial Governments, the measure of restriction, whatever it may be, imposed by the Federal Constitution on the power of the Territorial Legislatures over the subject of the domestic relations, as the same has been, or shall hereafter be, finally determined by the Supreme Court of the United States, should be respected by all good citizens, and enforced with promptness and fidelity by every branch of the General Government."

On the 11th of June, pursuant to adjournment, the Democratic Bolters' Convention met at Richmond, and, after adjourning to meet at Baltimore, finally met there on the 28th of that month—twenty-one States being, in whole or in part, represented. This Convention unanimously readopted the Southern-wing platform it had previously adopted at Charleston, and, upon the first ballot, chose, without dissent, John C. Breckinridge of Kentucky, as its candidate for the Presidential office.

In the meantime, however, the National Conventions of other Parties had been held, viz.: that of the Republican Party at Chicago, which, with a session of three days, May 16-18, had nominated Abraham Lincoln of Illinois and Hannibal Hamlin of Maine, for President and Vice-President respectively; and that of the "Constitutional Union" (or Native American) Party which had severally nominated (May 19) for such positions, John Bell of Tennessee, and Edward Everett of Massachusetts.

The material portion of the Republican National platform, adopted with entire unanimity by their Convention, was, so far as the Slavery and Disunion questions were concerned, comprised in these declarations:

First, That the history of the nation, during the last four years, has fully established the propriety and necessity of the organization and perpetuation of the Republican Party; and that the causes which called it into existence

are permanent in their nature, and now, more than ever before, demand its peaceful and Constitutional triumph.

Second, That the maintenance of the principle, promulgated in the Declaration of Independence, and embodied in the Federal Constitution, "that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are Life, Liberty and the pursuit of Happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed," is essential to the preservation of our Republican institutions; and that the Federal Constitution, the Rights of the States, and the Union of the States must and shall be preserved.

Third, That to the Union of the States, this Nation owes its unprecedented increase in population, its surprising development of material resources, its rapid augmentation of wealth, its happiness at home, and its honor abroad; and we hold in abhorrence all schemes for Disunion, come from whatever source they may: And we congratulate the Country that no Republican member of Congress has uttered or countenanced the threats of Disunion, so often made by Democratic members, without rebuke, and with applause, from their political associates; and we denounce those threats of Disunion, in case of a popular overthrow of their ascendancy, as denying the vital principles of a free Government, and as an avowal of contemplated Treason, which it is the imperative duty of an indignant People, sternly to rebuke and forever silence.

Fourth, That the maintenance inviolate of the rights of the States, and especially the right of each State, to order and control its own domestic institutions according to its own judgment exclusively, is essential to that balance of powers on which the perfection and endurance of our political fabric depend; and we denounce the lawless invasion, by armed force, of any State or Territory, no matter under what pretext, as among the gravest of crimes.

Fifth, That the present Democratic Administration has far exceeded our worst apprehensions, in its measureless subserviency to the exactions of a Sectional interest, as especially evinced in its desperate exertions to force the infamous Lecompton Constitution upon the protesting people of Kansas; in construing the personal relation between master and servant to involve an unqualified property in persons; in its attempted enforcement,

everywhere, on land and sea, through the intervention of Congress and of the Federal Courts, of the extreme pretensions of a purely local interest; and in its general and unvarying abuse of the power intrusted to it by a confiding People.

* * * * *

Seventh, That the new dogma that the Constitution, of its own force, carries Slavery into any or all of the Territories of the United States, is a dangerous political heresy, at variance with the explicit provisions of that instrument itself, with contemporaneous exposition, and with legislation and judicial precedent; is revolutionary in its tendency and subversive of the peace and harmony of the Country.

Eighth, That the normal condition of all the territory of the United States is that of Freedom; that as our Republican fathers, when they had abolished Slavery in all our National Territory, ordained that "No person should be deprived of life, liberty, or property, without due process of law," it becomes our duty, by legislation, whenever such legislation is necessary, to maintain this provision of the Constitution against all attempts to violate it; and we deny the authority of Congress, of a Territorial Legislature, or of any individuals, to give legal existence to Slavery in any Territory of the United States.

Ninth, That we brand the recent re-opening of the African Slave-trade under the cover of our National flag, aided by perversions of judicial power, as a crime against humanity and a burning shame to our Country and Age; and we call upon Congress to take prompt and efficient measures for the total and final suppression of that execrable traffic.

Tenth, That in the recent vetoes, by their Federal Governors, of the acts of the Legislatures of Kansas and Nebraska, prohibiting Slavery in those Territories, we find a practical illustration of the boasted Democratic principle of Non-Intervention and Popular Sovereignty embodied in the Kansas-Nebraska Bill, and a demonstration of the deception and fraud involved therein.

Eleventh, That Kansas should, of right, be immediately admitted as a State, under the Constitution recently formed and adopted by the House of Representatives.

* * * * *

The National platform of the "Constitutional Union" Party, was adopted, unanimously, in these words:

"Whereas, experience has demonstrated that platforms adopted by the partisan Conventions of the Country have had the effect to mislead and deceive the People, and at the same time to widen the political divisions of the Country, by the creation and encouragement of geographical and Sectional parties; therefore,

"Resolved, That it is both the part of patriotism and of duty to recognize no political principle other than the Constitution of the Country, the Union of the States, and the Enforcement of the Laws, and that, as representatives of the Constitutional Union men of the Country, in National Convention assembled, we hereby pledge ourselves to maintain, protect, and defend, separately and unitedly, these great principles of public liberty and national safety, against all enemies, at home and abroad; believing that thereby peace may once more be restored to the Country, the rights of the people and of the States re-established, and the Government again placed in that condition of justice, fraternity, and equality which, under the example and Constitution of our fathers, has solemnly bound every citizen of the United States to maintain a more perfect Union, establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity."

Thus, by the last of June, 1860, the four National Parties with their platforms and candidates were all in the political field prepared for the onset.

Briefly, the attitude of the standard-bearers representing the platform-principles of their several Parties, was this:

Lincoln, representing the Republicans, held that Slavery is a wrong, to be tolerated in the States where it exists, but which must be excluded from the Territories, which are all normally Free and must be kept Free by Congressional legislation, if necessary; and that neither Congress, nor the Territorial Legislature, nor any individual, has power to give to it legal existence in such Territories.

Breckinridge, representing the Pro-Slavery wing of the Democracy, held that Slavery is a right, which, when transplanted from the Slave-States into the Territories, neither Congressional nor Territorial legislation can destroy

or impair, but which, on the contrary, must, when necessary, be protected everywhere by Congress and all other departments of the Government.

Douglas, representing the Anti-Lecompton wing of Democracy, held that whether Slavery be right or wrong, the white inhabitants of the Territories have the sole right to determine whether it shall or shall not exist within their respective limits, subject to the Constitution and Supreme Court decisions thereon; and that neither Congress nor any State, nor any outside persons, must interfere with that right.

Bell, representing the remaining political elements, held that it was all wrong to have any principles at all, except "the Constitution of the Country, the Union of the States, and the Enforcement of the Laws"—a platform which Horace Greeley well described as "meaning anything in general, and nothing in particular."

The canvass that ensued was terribly exciting—Douglas alone, of all the Presidential candidates, bravely taking the field, both North and South, in person, in the hope that the magnetism of his personal presence and powerful intellect might win what, from the start—owing to the adverse machinations, in the Northern States, of the Administration or Breckinridge-Democratic wing—seemed an almost hopeless fight. In the South, the Democracy was almost a unit in opposition to Douglas, holding, as they did, that "Douglas Free-Soilism" was "far more dangerous to the South than the election of Lincoln; because it seeks to create a Free-Soil Party there; while, if Lincoln triumphs, the result cannot fail to be a South united in her own defense;" while the old Whig element of the South was as unitedly for Bell. In the North, the Democracy were split in twain, three-fourths of them upholding Douglas, and the balance, powerful beyond their numbers in the possession of Federal Offices, bitterly hostile to him, and anxious to beat him, even at the expense of securing the election of Lincoln.

Douglas's fight was that the candidacy and platform of Bell were meaningless, those of both Lincoln and Breckinridge, Sectional, and that he alone bore aloft the standard of the entire Union; while, on the other hand, the supporters of Lincoln, his chief antagonist, claimed that—as the burden of the song from the lips of Douglas men, Bell men, and Breckinridge men alike, was the expression of a "fear that," in the language of Mr. Seward, "if the people elected Mr. Lincoln to the Presidency, they would wake up and find that they had no Country for him to preside over"—"therefore, all three

of the parties opposing Mr. Lincoln were in the same boat, and hence the only true Union party, was the party which made no threats of Disunion, to wit, the Republican party."

The October elections of 1860 made it plain that Mr. Lincoln would be elected. South Carolina began to "feel good" over the almost certainty that the pretext for Secession for which her leaders had been hoping in vain for thirty years, was at hand. On the 25th of October, at Augusta, South Carolina, the Governor, the Congressional delegation, and other leading South Carolinians, met, and decided that in the event of Mr. Lincoln's election, that State would secede. Similar meetings, to the same end, were also held about the same time, in others of the Southern States. On the 5th of November—the day before the Presidential election—the Legislature of South Carolina met at the special call of Governor Gist, and, having organized, received a Message from the Governor, in which, after stating that he had convened that Body in order that they might on the morrow "appoint the number of electors of President and Vice-President to which this State is entitled," he proceeded to suggest "that the Legislature remain in session, and take such action as will prepare the State for any emergency that may arise." He went on to "earnestly recommend that, in the event of Abraham Lincoln's election to the Presidency, a Convention of the people of this State be immediately called, to consider and determine for themselves the mode and measure of redress," and, he continued: "I am constrained to say that the only alternative left, in my judgment, is the Secession of South Carolina from the Federal Union. The indications from many of the Southern States justify the conclusion that the Secession of South Carolina will be immediately followed, if not adopted simultaneously, by them, and ultimately by the entire South. The long-desired cooperation of the other States having similar institutions, for which so many of our citizens have been waiting, seems to be near at hand; and, if we are true to ourselves, will soon be realized. The State has, with great unanimity declared that she has the right peaceably to Secede, and no power on earth can rightfully prevent it."

[Referring to the Ordinance of Nullification adopted by the people of South Carolina, November 24, 1832, growing out of the Tariff Act of 1832—wherein it was declared that, in the event of the Federal Government undertaking to

enforce the provisions of that Act: "The people of this State will thenceforth hold themselves absolved from all further obligation to maintain or preserve their political connection with the people of the other States, and will forthwith proceed to organize a separate government, and do all other acts and things which Sovereign and independent States may of right do."]

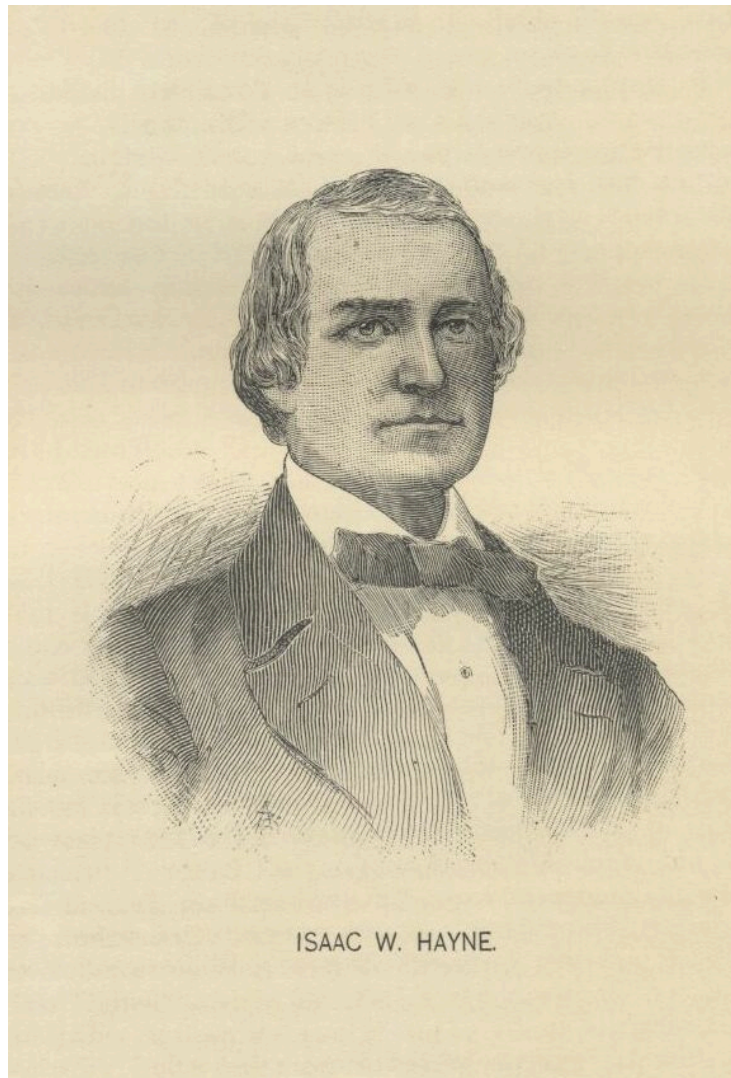
He proceeded to say that "If, in the exercise of arbitrary power, and forgetful of the lessons of history, the Government of the United States should attempt coercion, it will become our solemn duty to meet force by force"—and promised that the decision of the aforesaid Convention "representing the Sovereignty of the State, and amenable to no earthly tribunal," should be, by him, "carried out to the letter." He recommended the thorough reorganization of the Militia; the arming of every man in the State between the ages of eighteen and forty-five; and the immediate enrollment of ten thousand volunteers officered by themselves; and concluded with a confident "appeal to the Disposer of all human events," in whose keeping the "Cause" was to be entrusted.

That same evening (November 5), being the eve of the election, at Augusta, South Carolina, in response to a serenade, United States Senator Chestnut made a speech of like import, in which, after predicting the election of Mr. Lincoln, he said: "Would the South submit to a Black Republican President, and a Black Republican Congress, which will claim the right to construe the Constitution of the Country, and administer the Government in their own hands, not by the law of the instrument itself, nor by that of the fathers of the Country, nor by the practices of those who administered seventy years ago, but by rules drawn from their own blind consciences and crazy brains? * * * The People now must choose whether they would be governed by enemies, or govern themselves."

He declared that the Secession of South Carolina was an "undoubted right," a "duty," and their "only safety" and as to himself, he would "unfurl the Palmetto flag, fling it to the breeze, and, with the spirit of a brave man, live and die as became" his "glorious ancestors, and ring the clarion notes of defiance in the ears of an insolent foe!"

So also, in Columbia, South Carolina, Representative Boyce of that State, and other prominent politicians, harangued an enthusiastic crowd that night

—Mr. Boyce declaring: "I think the only policy for us is to arm, as soon as we receive authentic intelligence of the election of Lincoln. It is for South Carolina, in the quickest manner, and by the most direct means, to withdraw from the Union. Then we will not submit, whether the other Southern States will act with us or with our enemies. They cannot take sides with our enemies; they must take sides with us. When an ancient philosopher wished to inaugurate a great revolution, his motto was to dare! to dare!"



ISAAC W. HAYNE.

CHAPTER VI.

THE GREAT CONSPIRACY MATURING.

The 6th of November, 1860, came and passed; on the 7th, the prevailing conviction that Lincoln would be elected had become a certainty, and before the close of that day, the fact had been heralded throughout the length and breadth of the Republic. The excitement of the People was unparalleled. The Republicans of the North rejoiced that at last the great wrong of Slavery was to be placed "where the People could rest in the belief that it was in the course of ultimate extinction!" The Douglas Democracy, naturally chagrined at the defeat of their great leader, were filled with gloomy forebodings touching the future of their Country; and the Southern Democracy, or at least a large portion of it, openly exulted that at last the long-wished-for opportunity for a revolt of the Slave Power, and a separation of the Slave from the Free States, was at hand. Especially in South Carolina were the "Fire-eating" Southrons jubilant over the event.

["South Carolina rejoiced over the election of Lincoln, with bonfires and processions." p. 172, Arnold's "Life of Abraham Lincoln."]

*"There was great joy in Charleston, and wherever 'Fire Eaters' most did congregate, on the morning of November 7th. Men rushed to shake hands and congratulate each other on the glad tidings of Lincoln's election. * * * Men thronged the streets, talking, laughing, cheering, like mariners long becalmed on a hateful, treacherous sea, whom a sudden breeze had swiftly wafted within sight of their longed-for haven." p. 332, vol. i., Greeley's American Conflict.]*

Meanwhile any number of joint resolutions looking to the calling of a Secession Convention, were introduced in the South Carolina Legislature, sitting at Columbia, having in view Secession contingent upon the

"cooperation" of the other Slave States, or looking to immediate and "unconditional" Secession.

On the evening of November 7th, Edmund Ruffin of Virginia—a Secession fanatic who had come from thence in hot haste—in response to a serenade, declared to the people of Columbia that: "The defense of the South, he verily believed, was only to be secured through the lead of South Carolina;" that, "old as he was, he had come here to join them in that lead;" and that "every day delayed, was a day lost to the Cause." He acknowledged that Virginia was "not as ready as South Carolina;" but declared that "The first drop of blood spilled on the soil of South Carolina would bring Virginia, and every Southern State, with them." He thought "it was perhaps better that Virginia, and all other border States, remain quiescent for a time, to serve as a guard against the North. * * * By remaining in the Union for a time, she would not only prevent coercive legislation in Congress, but any attempt for our subjugation."

That same evening came news that, at Charleston, the Grand Jury of the United States District Court had refused to make any presentments, because of the Presidential vote just cast, which, they said, had "swept away the last hope for the permanence, for the stability, of the Federal Government of these Sovereign States;" and that United States District Judge Magrath had resigned his office, saying to the Grand Jury, as he did so: "In the political history of the United States, an event has happened of ominous import to fifteen Slave-holding States. The State of which we are citizens has been always understood to have deliberately fixed its purpose whenever that event should happen. Feeling an assurance of what will be the action of the State, I consider it my duty, without delay, to prepare to obey its wishes. That preparation is made by the resignation of the office I have held."

The news of the resignations of the Federal Collector and District Attorney at Charleston, followed, with an intimation that that of the Sub-Treasurer would soon be forthcoming. On November 9th, a joint resolution calling an unconditional Secession Convention to meet at Columbia December 17th, was passed by the Senate, and on the 12th of November went through the House; and both of the United States Senators from South Carolina had now resigned their seats in the United States Senate.

Besides all these and many other incitements to Secession was the fact that at Milledgeville, Georgia, Governor Brown had, November 12th,

addressed a Georgian Military Convention, affirming "the right of Secession, and the duty of other Southern States to sustain South Carolina in the step she was then taking," and declaring that he "would like to see Federal troops dare attempt the coercion of a seceding Southern State! For every Georgian who fell in a conflict thus incited, the lives of two Federal Soldiers should expiate the outrage on State Sovereignty"—and that the Convention aforesaid had most decisively given its voice for Secession.

It was about this time, however, that Alexander H. Stephens vainly sought to stem the tide of Secession in his own State, in a speech (November 14) before the Georgia Legislature, in which he declared that Mr. Lincoln "can do nothing unless he is backed by power in Congress. The House of Representatives is largely in the majority against him. In the Senate he will also be powerless. There will be a majority of four against him." He also cogently said: "Many of us have sworn to support it (the Constitution). Can we, therefore, for the mere election of a man to the Presidency—and that too, in accordance with the prescribed forms of the Constitution—make a point of resistance to the Government, and, without becoming the breakers of that sacred instrument ourselves, withdraw ourselves from it? Would we not be in the wrong?"

But the occasional words of wisdom that fell from the lips of the few far-seeing statesmen of the South, were as chaff before the storm of Disunion raised by the turbulent Fire-eaters, and were blown far from the South, where they might have done some good for the Union cause, away up to the North, where they contributed to aid the success of the contemplated Treason and Rebellion, by lulling many of the people there, into a false sense of security. Unfortunately, also, even the ablest of the Southern Union men were so tainted with the heretical doctrine of States-Rights, which taught the "paramount allegiance" of the citizen to the State, that their otherwise powerful appeals for the preservation of the Union were almost invariably handicapped by the added protestation that in any event—and however they might deplore the necessity—they would, if need be, go with their State, against their own convictions of duty to the National Union.

Hence in this same speech we find that Mr. Stephens destroyed the whole effect of his weighty and logical appeal against Secession from the Union, by adding to it, that, "Should Georgia determine to go out of the Union I shall bow to the will of her people. Their cause is my cause, and their

destiny is my destiny; and I trust this will be the ultimate course of all."— and by further advising the calling of a Convention of the people to decide the matter; thus, in advance, as it were, binding himself hand and foot, despite his previous Union utterances, to do the fell bidding of the most rampant Disunionists. And thus, in due time, it befell, as we shall see, that this "saving clause" in his "Union speech," brought him at the end, not to that posture of patriotic heroism to which he aspired when he adjured his Georgian auditors to "let us be found to the last moment standing on the deck (of the Republic), with the Constitution of the United States waving over our heads," but to that of an imprisoned traitor and defeated rebel against the very Republic and Constitution which he had sworn to uphold and defend!

The action of the South Carolina Legislature in calling an Unconditional Secession Convention, acted among the Southern States like a spark in a train of gunpowder. Long accustomed to incendiary resolutions of Pro-Slavery political platforms, as embodying the creed of Southern men; committed by those declarations to the most extreme action when, in their judgment, the necessity should arise; and worked up during the Presidential campaign by swarming Federal officials inspired by the fanatical Secession leaders; the entire South only needed the spark from the treasonable torch of South Carolina, to find itself ablaze, almost from one end to the other, with the flames of revolt.

Governor after Governor, in State after State, issued proclamation after proclamation, calling together their respective Legislatures, to consider the situation and whether their respective States should join South Carolina in seceding from the Union. Kentucky alone, of them all, seemed for a time to keep cool, and look calmly and reasonably through the Southern ferment to the horrors beyond. In an address issued by Governor Magoffin of that State, to the people, he said:

"To South Carolina and such other States as may wish to secede from the Union, I would say: The geography of this Country will not admit of a division; the mouth and sources of the Mississippi River cannot be separated without the horrors of Civil War. We cannot sustain you in this movement merely on account of the election of Mr. Lincoln. Do not precipitate by premature action into a revolution or Civil War, the consequences of which will be most frightful to all of us. It may yet be

avoided. There is still hope, faint though it be. Kentucky is a Border State, and has suffered more than all of you. * * * She has a right to claim that her voice, and the voice of reason, and moderation and patriotism shall be heard and heeded by you. If you secede, your representatives will go out of Congress and leave us at the mercy of a Black Republican Government. Mr. Lincoln will have no check. He can appoint his Cabinet, and have it confirmed. The Congress will then be Republican, and he will be able to pass such laws as he may suggest. The Supreme Court will be powerless to protect us. We implore you to stand by us, and by our friends in the Free States; and let us all, the bold, the true, and just men in the Free and Slave States, with a united front, stand by each other, by our principles, by our rights, our equality, our honor, and by the Union under the Constitution. I believe this is the only way to save it; and we can do it."

But this "still small voice" of conscience and of reason, heard like a whisper from the mouths of Stephens in Georgia, and Magoffin in Kentucky, was drowned in the clamor and tumult of impassioned harangues and addresses, and the drumming and tramp of the "minute men" of South Carolina, and other military organizations, as they excitedly prepared throughout the South for the dread conflict at arms which they recklessly invited, and savagely welcomed.

We have seen how President Andrew Jackson some thirty years before, had stamped out Nullification and Disunion in South Carolina, with an iron heel.

But a weak and feeble old man—still suffering from the effects of the mysterious National Hotel poisoning—was now in the Executive Chair at the White House. Well-meaning, doubtless, and a Union man at heart, his enfeebled intellect was unable to see, and hold firm to, the only true course. He lacked clearness of perception, decision of character, and nerve. He knew Secession was wrong, but allowed himself to be persuaded that he had no Constitutional power to prevent it. He had surrounded himself in the Cabinet with such unbending adherents and tools of the Slave-Power, as Howell Cobb of Georgia, his Secretary of the Treasury, John B. Floyd of Virginia, as Secretary of War, Jacob Thompson of Mississippi, as Secretary of the Interior, and Isaac Toucy of Connecticut, as Secretary of the Navy, before whose malign influence the councils of Lewis Cass of Michigan, the

Secretary of State, and other Union men, in and out of the Cabinet, were quite powerless.

When, therefore, the Congress met (December 3, 1860) and he transmitted to it his last Annual Message, it was found that, instead of treating Secession from the Jacksonian standpoint, President Buchanan feebly wailed over the threatened destruction of the Union, weakly apologized for the contemplated Treason, garrulously scolded the North as being to blame for it, and, while praying to God to "preserve the Constitution and the Union throughout all generations," wrung his nerveless hands in despair over his own powerlessness—as he construed the Constitution—to prevent Secession! Before writing his pitifully imbecile Message, President Buchanan had secured from his Attorney-General (Jeremiah S. Black of Pennsylvania) an opinion, in which the latter, after touching upon certain cases in which he believed the President would be justified in using force to sustain the Federal Laws, supposed the case of a State where all the Federal Officers had resigned and where there were neither Federal Courts to issue, nor officers to execute judicial process, and continued: "In that event, troops would certainly be out of place, and their use wholly illegal. If they are sent to aid the Courts and Marshals there must be Courts and Marshals to be aided. Without the exercise of these functions, which belong exclusively to the civil service, the laws cannot be executed in any event, no matter what may be the physical strength which the Government has at its command. Under such circumstances, to send a military force into any State, with orders to act against the people, would be simply making War upon them."

Resting upon that opinion of Attorney-General Black, President Buchanan, in his Message, after referring to the solemn oath taken by the Executive "to take care that the laws be faithfully executed," and stating that there were now no longer any Federal Officers in South Carolina, through whose agency he could keep that oath, took up the laws of February 28, 1795, and March 3, 1807, as "the only Acts of Congress on the Statute-book bearing upon the subject," which "authorize the President, after he shall have ascertained that the Marshal, with his posse comitatus, is unable to execute civil or criminal process in any particular case, to call out the Militia and employ the Army and Navy to aid him in performing this service, having first, by Proclamation, commanded the insurgents to 'disperse and retire peaceably to their respective abodes, within a limited

time"—and thereupon held that "This duty cannot, by possibility, be performed in a State where no judicial authority exists to issue process, and where there is no Marshal to execute it; and where even if there were such an officer, the entire population would constitute one solid combination to resist him." And, not satisfied with attempting to show as clearly as he seemed to know how, his own inability under the laws to stamp out Treason, he proceeded to consider what he thought Congress also could not do under the Constitution. Said he: "The question fairly stated, is: Has the Constitution delegated to Congress the power to coerce into submission a State which is attempting to withdraw, or has actually withdrawn, from the Confederacy? If answered in the affirmative, it must be on the principle that the power has been conferred upon Congress to declare and make War against a State. After much serious reflection, I have arrived at the conclusion that no such power has been delegated to Congress or to any other department of the Federal Government." And further: "Congress possesses many means of preserving it (the Union) by conciliation; but the sword was not placed in their hands to preserve it by force."

Thus, in President Buchanan's judgment, while, in another part of his Message, he had declared that no State had any right, Constitutional or otherwise, to Secede from that Union, which was designed for all time—yet, if any State concluded thus wrongfully to Secede, there existed no power in the Union, by the exercise of force, to preserve itself from instant dissolution! How imbecile the reasoning, how impotent the conclusion, compared with that of President Jackson, thirty years before, in his Proclamation against Nullification and Secession, wherein that sturdy patriot declared to the South Carolinians that "compared to Disunion, all other evils are light, because that brings with it an accumulation of all;" that "Disunion by armed force, is Treason;" and that he was determined "to execute the Laws," and "to preserve the Union!"

President Buchanan's extraordinary Message—or so much of it as related to the perilous condition of the Union—was referred, in the House of Representatives, to a Select Committee of Thirty-three, comprising one member from each State, in which there was a very large preponderance of such as favored Conciliation without dishonor. But the debates in both Houses, in which the most violent language was indulged by the Southern Fire-eaters, as well as other events, soon proved that there was a settled

purpose on the part of the Slave-Power and its adherents to resist and spit upon all attempts at placation.

In the Senate also (December 5), a Select Committee of Thirteen was appointed, to consider the impending dangers to the Union, comprising Senators Powell of Kentucky, Hunter of Virginia, Crittenden of Kentucky, Seward of New York, Toombs of Georgia, Douglas of Illinois, Collamer of Vermont, Davis of Mississippi, Wade of Ohio, Bigler of Pennsylvania, Rice of Minnesota, Doolittle of Wisconsin, and Grimes of Iowa. Their labors were alike without practical result, owing to the irreconcilable attitude of the Southrons, who would accept nothing less than a total repudiation by the Republicans of the very principles upon which the recent Presidential contest had by them been fought and won. Nor would they even accept such a repudiation unless carried by vote of the majority of the Republicans. The dose that they insisted upon the Republican Party swallowing must not only be as noxious as possible, but must absolutely be mixed by that Party itself, and in addition, that Party must also go down on its knees, and beg the privilege of so mixing and swallowing the dose! That was the impossible attitude into which, by their bullying and threats, the Slave Power hoped to force the Republican Party—either that or "War."

Project after project in both Houses of Congress looking to Conciliation was introduced, referred, reported, discussed, and voted on or not, as the case might be, in vain. And in the meantime, in New York, in Philadelphia, and elsewhere in the North, the timidity of Capital showed itself in great Conciliation meetings, where speeches were applauded and resolutions adopted of the most abject character, in behalf of "Peace, at any price," regardless of the sacrifice of honor and principles and even decency. In fact the Commercial North, with supplicating hands and beseeching face, sank on its knees in a vain attempt to propitiate its furious creditor, the South, by asking it not only to pull its nose, but to spit in its face, both of which it humbly and even anxiously offered for the purpose!*

[Thus, in Philadelphia, December 13, 1860, at a great meeting held at the call of the Mayor, in Independence Square, Mayor Henry led off the speaking—which was nearly all in the same line—by saying: "I tell you that if in any portion of our Confederacy, sentiments have been entertained and cherished which are inimical to the civil

*rights and social institutions of any other portion, those sentiments should be relinquished." Another speaker, Judge George W. Woodward, sneeringly asked: "Whence came these excessive sensibilities that cannot bear a few slaves in a remote Territory until the white people establish a Constitution?" Another, Mr. Charles E. Lex (a Republican), speaking of the Southern People, said: "What, then, can we say to them? what more than we have expressed in the resolutions we have offered? If they are really aggrieved by any laws upon our Statute-books opposed to their rights—if upon examination any such are found to be in conflict with the Constitution of these United States—nay, further, if they but serve to irritate our brethren of the South, whether Constitutional or not, I, for one, have no objection that they should instantly be repealed." Another said, "Let us repeal our obnoxious Personal Liberty bills * * *; let us receive our brother of the South, if he will come among us for a little time, attended by his servant, and permit him thus to come." And the resolutions adopted were even still more abject in tone than the speeches.]*

But the South at present was too busy in perfecting its long-cherished plans for the disruption of the Union, to more than grimly smile at this evidence of what it chose to consider "a divided sentiment" in the North. While it weakened the North, it strengthened the South, and instead of mollifying the Conspirators against the Union, it inspired them with fresh energy in their fell purpose to destroy it.

The tone of the Republican press, too, while more dignified, was thoroughly conciliatory. The Albany Evening Journal,—[November 30, 1860]—the organ of Governor Seward, recognizing that the South, blinded by passion, was in dead earnest, but also recognizing the existence of "a Union sentiment there, worth cherishing," suggested "a Convention of the People, consisting of delegates appointed by the States, in which it would not be found unprofitable for the North and South, bringing their respective griefs, claims, and proposed reforms, to a common arbitrament, to meet, discuss, and determine upon a future"—before a final appeal to arms. So, too, Horace Greeley, in the New York Tribune,—[November 9, 1860.]—

after weakly conceding, on his own part, the right of peaceable Secession, said: "But while we thus uphold the practical liberty, if not the abstract right, of Secession, we must insist that the step be taken, if it ever shall be, with the deliberation and gravity befitting so momentous an issue. Let ample time be given for reflection; let the subject be fully canvassed before the People; and let a popular vote be taken in every case, before Secession is decreed." Other leading papers of the Northern press, took similar ground for free discussion and conciliatory action.

In the Senate, as well as the House of Representatives—as also was shown by the appointment, heretofore mentioned, of Select Committees to consider the gravity of the situation, and suggest a remedy—the same spirit of Conciliation and Concession, and desire for free and frank discussion, was apparent among most of the Northern and Border-State members of those Bodies. But these were only met by sneers and threats on the part of the Fire-eating Secession members of the South. In the Senate, Senator Clingman of North Carolina, sneeringly said: "They want to get up a free debate, as the Senator (Mr. Seward) from New York expressed it, in one of his speeches. But a Senator from Texas told me the other day that a great many of these free debaters were hanging from the trees of that country;" and Senator Iverson, of Georgia, said: "Gentlemen speak of Concession, of the repeal of the Personal Liberty bills. Repeal them all to-morrow, and you cannot stop this revolution." After declaring his belief that "Before the 4th of March, five States will have declared their independence" and that "three other States will follow as soon as the action of the people can be had;" he proceeded to allude to the refusal of Governor Houston of Texas to call together the Texas Legislature for action in accord with the Secession sentiment, and declared that "if he will not yield to that public sentiment, some Texan Brutus will arise to rid his country of this hoary-headed incubus that stands between the people and their sovereign will!" Then, sneering at the presumed cowardice of the North, he continued: "Men talk about their eighteen millions (of Northern population); but we hear a few days afterwards of these same men being switched in the face, and they tremble like sheep-stealing dogs! There will be no War. The North, governed by such far-seeing Statesmen as the Senator (Mr. Seward) from New York, will see the futility of this. In less than twelve months, a Southern Confederacy will be formed; and it will be the most successful Government on Earth. The Southern States, thus banded together, will be

able to resist any force in the World. We do not expect War; but we will be prepared for it—and we are not a feeble race of Mexicans either."

On the other hand, there were Republicans in that Body who sturdily met the bluster of the Southern Fire-eaters with frank and courageous words expressing their full convictions on the situation and their belief that Concessions could not be made and that Compromises were mere waste paper. Thus, Senator Ben Wade of Ohio, among the bravest and manliest of them all, in a speech in the Senate, December 17, the very day on which the South Carolina Secession Convention was to assemble, said to the Fire-eaters: "I tell you frankly that we did lay down the principle in our platform, that we would prohibit, if we had the power, Slavery from invading another inch of the Free Soil of this Government. I stand to that principle to-day. I have argued it to half a million of people, and they stand by it; they have commissioned me to stand by it; and, so help me God, I will! * * * On the other hand, our platform repudiates the idea that we have any right, or harbor any ultimate intention to invade or interfere with your institutions in your own States. * * * It is not, by your own confessions, that Mr. Lincoln is expected to commit any overt act by which you may be injured. You will not even wait for any, you say; but, by anticipating that the Government may do you an injury, you will put an end to it—which means, simply and squarely, that you intend to rule or ruin this Government. * * * As to Compromises, I supposed that we had agreed that the Day of Compromises was at an end. The most solemn we have made have been violated, and are no more. * * * We beat you on the plainest and most palpable issue ever presented to the American people, and one which every man understood; and now, when we come to the Capital, we tell you that our candidates must and shall be inaugurated—must and shall administer this Government precisely as the Constitution prescribes. * * * I tell you that, with that verdict of the people in my pocket, and standing on the platform on which these candidates were elected, I would suffer anything before I would Compromise in any way."

In the House of Representatives, on December 10, 1860, a number of propositions looking to a peaceful settlement of the threatened danger, were offered and referred to the Select Committee of Thirty-three. On the following Monday, December 17, by 154 yeas to 14 nays, the House adopted a resolution, offered by Mr. Adrian of New Jersey, in these words:

"Resolved, That we deprecate the spirit of disobedience to the Constitution, wherever manifested; and that we earnestly recommend the repeal of all Statutes by the State Legislatures in conflict with, and in violation of, that sacred instrument, and the laws of Congress passed in pursuance thereof."

On the same day, the House adopted, by 135 yeas to no nays, a resolution offered by Mr. Lovejoy of Illinois, in these words:

"Whereas, The Constitution of the United States is the Supreme law of the Land, and ready and faithful obedience to it a duty of all good and law-abiding citizens; Therefore:

"Resolved, That we deprecate the spirit of disobedience to the Constitution, wherever manifested; and that we earnestly recommend the repeal of all Nullification laws; and that it is the duty of the President of the United States to protect and defend the property of the United States."

[This resolution, before adoption, was modified by declaring it to be the duty of all citizens, whether "good and law abiding" or not, to yield obedience to the Constitution, as will be seen by referring to the proceedings in the Globe of that date, where the following appears:

"Mr. LOGAN. I hope there will be no objection on this side of the House to the introduction of the [Lovejoy] resolution. I can see no difference myself, between this resolution and the one [Adrian's] just passed, except in regard to verbiage. I can find but one objection to the resolution, and that is in the use of the words declaring that all 'law abiding' citizens should obey the Constitution. I think that all men should do so.

"Mr. LOVEJOY. I accept the amendment suggested by my Colleague.

"Mr. LOGAN. It certainly should include members of Congress; but if it is allowed to remain all 'good and law abiding' citizens, I do not think it will include them. [Laughter.]

"The resolution was modified by the omission of those words."]

It also adopted, by 115 yeas to 44 nays, a resolution offered by Mr. Morris of Illinois, as follows:

"Resolved by the House of Representatives: That we properly estimate the immense value of our National Union to our collective and individual happiness; that we cherish a cordial, habitual, and immovable attachment to it; that we will speak of it as the palladium of our political safety and prosperity; that we will watch its preservation with jealous anxiety; that we will discountenance whatever may suggest even a suspicion that it can, in any event, be abandoned, and indignantly frown upon the first dawning of every attempt to alienate any portion of our Country from the rest, or enfeeble the sacred ties which now link together the various parts; that we regard it as a main pillar in the edifice of our real independence, the support of tranquillity at home, our peace abroad, our safety, our prosperity, and that very liberty which we so highly prize; that we have seen nothing in the past, nor do we see anything in the present, either in the election of Abraham Lincoln to the Presidency of the United States, or from any other existing cause, to justify its dissolution; that we regard its perpetuity as of more value than the temporary triumph of any Party or any man; that whatever evils or abuses exist under it ought to be corrected within the Union, in a peaceful and Constitutional way; that we believe it has sufficient power to redress every wrong and enforce every right growing out of its organization, or pertaining to its proper functions; and that it is a patriotic duty to stand by it as our hope in Peace and our defense in War."



WM. H. SEWARD.

CHAPTER VII.

SECESSION ARMING.

While Congress was encouraging devotion to the Union, and its Committees striving for some mode by which the impending perils might be averted without a wholesale surrender of all just principles, the South Carolina Convention met (December 17, 1860) at Columbia, and after listening to inflammatory addresses by commissioners from the States of Alabama and Mississippi, urging immediate and unconditional Secession, unanimously and with "tremendous cheering" adopted a resolution: "That it is the opinion of the Convention that the State of South Carolina should forthwith Secede from the Federal Union, known as the United States of America,"—and then adjourned to meet at Charleston, South Carolina.

The next day, and following days, it met there, at "Secession Hall," listening to stimulating addresses, while a committee of seven worked upon the Ordinance of Secession. Among the statements made by orators, were several clear admissions that the rebellious Conspiracy had existed for very many years, and that Mr. Lincoln's election was simply the long-sought-for pretext for Rebellion. Mr. Parker said: "It is no spasmodic effort that has come suddenly upon us; it has been gradually culminating for a long period of thirty years. At last it has come to that point where we may say, the matter is entirely right." Mr. Inglis said: "Most of us have had this matter under consideration for the last twenty years; and I presume that we have by this time arrived at a decision upon the subject." Mr. Keitt said: "I have been engaged in this movement ever since I entered political life; * * * we have carried the body of this Union to its last resting place, and now we will drop the flag over its grave." Mr. Barnwell Rhett said: "The Secession of South Carolina is not an event of a day. It is not anything produced by Mr. Lincoln's election, or by the non-execution of the Fugitive Slave Law. It has been a matter which has been gathering head for thirty years." Mr. Gregg said: "If we undertake to set forth all the causes, do we not dishonor the

memory of all the statesmen of South Carolina, now departed, who commenced forty years ago a war against the tariff and against internal improvement, saying nothing of the United States Bank, and other measures which may now be regarded as obsolete."

On the 20th of December, 1860—the fourth day of the sittings—the Ordinance of Secession was reported by the Committee, and was at once unanimously passed, as also was a resolution that "the passage of the Ordinance be proclaimed by the firing of artillery and ringing of the bells of the city, and such other demonstrations as the people may deem appropriate on the passage of the great Act of Deliverance and Liberty;" after which the Convention jubilantly adjourned to meet, and ratify, that evening. At the evening session of this memorable Convention, the Governor and Legislature attending, the famous Ordinance was read as engrossed, signed by all the delegates, and, after announcement by the President that "the State of South Carolina is now and henceforth a Free and Independent Commonwealth;" amid tremendous cheering, the Convention adjourned. This, the first Ordinance of Secession passed by any of the Revolving States, was in these words:

"An Ordinance to dissolve the Union between the State of South Carolina and other States united with her, under the compact entitled the 'Constitution of the United States of America.'

"We the people of the State of South Carolina in Convention assembled, do declare and ordain, and it is hereby declared and ordained, that the Ordinance adopted by us in Convention on the 23rd day of May, in the year of our Lord 1788, whereby the Constitution of the United States of America was ratified, and also all Acts and parts of Acts of the General Assembly of this State ratifying the amendments of the said Constitution, are hereby repealed; and that the Union now subsisting between South Carolina and other States, under the name of the United States of America, is hereby dissolved."

Thus, and in these words, was joyously adopted and ratified, that solemn Act of Separation which was doomed to draw in its fateful train so many other Southern States, in the end only to be blotted out with the blood of hundreds of thousands of their own brave sons, and their equally courageous Northern brothers.

State after State followed South Carolina in the mad course of Secession from the Union. Mississippi passed a Secession Ordinance, January 9, 1861. Florida followed, January 10th; Alabama, January 11th; Georgia, January 18th; Louisiana, January 26th; and Texas, February 1st; Arkansas, North Carolina, and Virginia held back until a later period; while Kentucky, Tennessee, Missouri, Maryland, and Delaware, abstained altogether from taking the fatal step, despite all attempts to bring them to it.

In the meantime, however, South Carolina had put on all the dignity of a Sovereign and Independent State. Her Governor had a "cabinet" comprising Secretaries of State, War, Treasury, the Interior, and a Postmaster General. She had appointed Commissioners, to proceed to the other Slave-holding States, through whom a Southern Congress was proposed, to meet at Montgomery, Alabama; and had appointed seven delegates to meet the delegates from such other States in that proposed Southern Congress. On the 21st of December, 1860, three Commissioners (Messrs. Barnwell, Adams, and Orr) were also appointed to proceed to Washington, and treat for the cession by the United States to South Carolina, of all Federal property within the limits of the latter. On the 24th, Governor Pickens issued a Proclamation announcing the adoption of the Ordinance of Secession, declaring "that the State of South Carolina is, as she has a right to be, a separate sovereign, free and independent State, and as such, has a right to levy war, conclude peace, negotiate treaties, leagues or covenants, and to do all acts whatsoever that rightfully appertain to a free and independent State;" the which proclamation was announced as "Done in the eighty-fifth year of the Sovereignty and Independence of South Carolina." On the same day (the Senators from that State in the United States Senate having long since, as we have seen, withdrawn from that body) the Representatives of South Carolina in the United States House of Representatives withdrew.

Serious dissensions in the Cabinet of President Buchanan, were now rapidly disintegrating the "official family" of the President. Lewis Cass, the Secretary of State, disgusted with the President's cowardice and weakness, and declining to be held responsible for Mr. Buchanan's promise not to reinforce the garrisons of the National Forts, under Major Anderson, in Charleston harbor, retired from the Cabinet December 12th—Howell Cobb having already, "because his duty to Georgia required it," resigned the

Secretaryship of the Treasury, and left it bankrupt and the credit of the Nation almost utterly destroyed.

On the 26th of December, Major Anderson evacuated Fort Moultrie, removing all his troops and munitions of war to Fort Sumter—whereupon a cry went up from Charleston that this was in violation of the President's promise to take no step looking to hostilities, provided the Secessionists committed no overt act of Rebellion, up to the close of his fast expiring Administration. On the 29th, John B. Floyd, Secretary of War, having failed to secure the consent of the Administration to an entire withdrawal of the Federal garrison from the harbor of Charleston, also resigned, and the next day—he having in the meantime escaped in safety to Virginia—was indicted by the Grand Jury at Washington, for malfeasance and conspiracy to defraud the Government in the theft of \$870,000 of Indian Trust Bonds from the Interior Department, and the substitution therefor of Floyd's acceptances of worthless army-transportation drafts on the Treasury Department.

Jacob Thompson, Secretary of the Interior, also resigned, January 8th, 1861, on the pretext that "additional troops, he had heard, have been ordered to Charleston" in the "Star of the West."—[McPherson's History of the Rebellion, p. 28.]

Several changes were thus necessitated in Mr. Buchanan's cabinet, by these and other resignations, so that by the 18th of January, 1861, Jeremiah S. Black was Secretary of State; General John A. Dix, Secretary of the Treasury; Joseph Holt, Secretary of War; Edwin M. Stanton, Attorney General; and Horatio King, Postmaster General. But before leaving the Cabinet, the conspiring Southern members of it, and their friends, had managed to hamstring the National Government, by scattering the Navy in other quarters of the World; by sending the few troops of the United States to remote points; by robbing the arsenals in the Northern States of arms and munitions of war, so as to abundantly supply the Southern States at the critical moment; by bankrupting the Treasury and shattering the public credit of the Nation; and by other means no less nefarious. Thus swindled, betrayed, and ruined, by its degenerate and perfidious sons, the imbecile Administration stood with dejected mien and folded hands helplessly awaiting the coming catastrophe.

On December 28th, 1860, the three Commissioners of South Carolina having reached Washington, addressed to the President a communication, in which—after reciting their powers and duties, under the Ordinance of Secession, and stating that they had hoped to have been ready to proceed to negotiate amicably and without "hostile collision," but that "the events—[The removal, to Fort Sumter, of Major Anderson's command, and what followed.]—of the last twenty-four hours render such an assurance impossible"—they declared that the troops must be withdrawn from Charleston harbor, as "they are a standing menace which render negotiation impossible," threatening speedily to bring the questions involved, to "a bloody issue."

To this communication Mr. Buchanan replied at considerable length, December 30th, in an apologetic, self-defensive strain, declaring that the removal by Major Anderson of the Federal troops under his command, from Fort Moultrie to Fort Sumter was done "upon his own responsibility, and without authority," and that he (the President) "had intended to command him to return to his former position," but that events had so rapidly transpired as to preclude the giving of any such command;

[The seizure by the Secessionists, under the Palmetto Flag, of Castle Pinckney and Fort Moultrie; the simultaneous raising of that flag over the Federal Custom House and Post Office at Charleston; the resignation of the Federal Collector, Naval Officer and Surveyor of that Port—all of which occurred December 27th; and the seizure "by force of arms," December 30th, of the United States Arsenal at that point.]

and concluding, with a very slight stiffening of backbone, by saying: "After this information, I have only to add that, whilst it is my duty to defend Fort Sumter as a portion of the public property of the United States against hostile attacks, from whatever quarter they may come, by such means as I may possess for this purpose, I do not perceive how such a defense can be construed into a menace against the city of Charleston." To this reply of the President, the Commissioners made rejoinder on the 1st of January, 1861; but the President "declined to receive" the communication.

From this time on, until the end of President Buchanan's term of office, and the inauguration of Mr. Lincoln as President, March 4th, 1861, events crowded each other so hurriedly, that the flames of Rebellion in the South were continually fanned, while the public mind in the North was staggered and bewildered, by them.

On January 2nd, prior to the Secession of Georgia, Forts Pulaski and Jackson, commanding Savannah, and the Federal Arsenal at Augusta, Georgia, with two 12 pound howitzers, two cannon, 22,000 muskets and rifles, and ammunition in quantity, were seized by Rebel militia. About the same date, although North Carolina had not seceded, her Governor (Ellis) seized the Federal Arsenal at Fayetteville, Fort Macon, and other fortifications in that State, "to preserve them" from mob-seizure.

January 4th, anticipating Secession, Alabama State troops seized Fort Morgan, with 5,000 shot and shell, and Mount Vernon Arsenal at Mobile, with 2,000 stand of arms, 150, 000 pounds of powder, some pieces of cannon, and a large quantity of other munitions of war. The United States Revenue cutter, "Lewis Cass," was also surrendered to Alabama.

On the 5th, the Federal steamer "Star of the West," with reinforcements and supplies for Fort Sumter, left New York in the night—and Secretary Jacob Thompson notified the South Carolina Rebels of the fact.

On the 9th, the "Star of the West" appeared off Charleston bar, and while steaming toward Fort Sumter, was fired upon by Rebel batteries at Fort Moultrie and Morris Island, and struck by a shot, whereupon she returned to New York without accomplishing her mission. That day the State of Mississippi seceded from the Union.

On the 10th, the Federal storeship "Texas," with Federal guns and stores, was seized by Texans. On the same day Florida seceded.

On the 11th, Forts Jackson and St. Philip, commanding the mouth of the Mississippi River, and Fort Pike, dominating Lake Pontchartrain, were seized by Louisiana troops; also the Federal Arsenal at Baton Rouge, with 50,000 small arms, 4 howitzers, 20 heavy pieces of ordnance, 2 batteries, 300 barrels of powder, and other stores. The State of Alabama also seceded the same day.

On the 12th—Fort Marion, the coast surveying schooner "Dana," the Arsenal at St. Augustine, and that on the Chattahoochee, with 500,000 musket cartridges, 300,000 rifle cartridges and 50,000 pounds of powder,

having previously been seized—Forts Barrancas and McRae, and the Navy Yard at Pensacola, were taken by Rebel troops of Florida, Alabama and Mississippi. On the same day, Colonel Hayne, of South Carolina, arrived at Washington as Agent or Commissioner to the National Government from Governor Pickens of that State.

On the 14th, the South Carolina Legislature resolved "that any attempt by the Federal Government to reinforce Fort Sumter will be regarded as an act of open hostility, and a Declaration of War."

On the 16th, Colonel Hayne, of South Carolina, developed his mission, which was to demand of the President the surrender of Fort Sumter to the South Carolina authorities—a demand that had already been made upon, and refused by, Major Anderson.

The correspondence concerning this demand, between Colonel Hayne and ten Southern United States Senators;—[Senators Wigfall, Hemphill, Yulee, Mallory, Jeff. Davis, C. C. Clay, Fitzgerald, Iverson, Slidell, and Benjamin.]—the reply of the President, by Secretary Holt, to those Senators; Governor Pickens's review of the same; and the final demand; consumed the balance of the month of January; and ended, February 6th, in a further reply, through the Secretary of War, from the President, asserting the title of the United States to that Fort, and declining the demand, as "he has no Constitutional power to cede or surrender it." Secretary Holt's letter concluded by saying: "If, with all the multiplied proofs which exist of the President's anxiety for Peace, and of the earnestness with which he has pursued it, the authorities of that State shall assault Fort Sumter, and peril the lives of the handful of brave and loyal men shut up within its walls, and thus plunge our Common Country into the horrors of Civil War, then upon them and those they represent, must rest the responsibility."

But to return from this momentary diversion: On the 18th of January, Georgia seceded; and on the 20th, the Federal Fort at Ship Island, Mississippi, and the United States Hospital on the Mississippi River were seized by Mississippi troops.

On the 26th, Louisiana seceded. On the 28th, Louisiana troops seized all the quartermaster's and commissary stores held by Federal officials; and the United States Revenue cutter "McClelland" surrendered to the Rebels.

On February 1st, the Louisiana Rebels seized the National Mint and Custom House at New Orleans, with \$599,303 in gold and silver. On the

same day the State of Texas seceded.

On February 8th, the National Arsenal at Little Rock, Arkansas, with 9,000 small arms, 40 cannon, and quantities of ammunition, was seized; and the same day the Governor of Georgia ordered the National Collector of the Port of Savannah to retain all collections and make no further payments to the United States Government.*

[It was during this eventful month that, certain United States troops having assembled at the National Capital, and the House of Representatives having asked the reason therefor, reply was made by the Secretary of War as follows:

"WAR DEPARTMENT, February 18, 1861. [Congressional Globe, August 8, 1861, pp. 457,458] "SIR: On the 11th February, the House of Representatives adopted a resolution requesting the President, if not incompatible with the public interests, to communicate 'the reasons that had induced him to assemble so large a number of troops in this city, and why they are kept here; and whether he has any information of a Conspiracy upon the part of any portion of the citizens of this Country to seize upon the Capital and prevent the Inauguration of the President elect.'

"This resolution having been submitted to this Department for consideration and report, I have the honor to state, that the body of troops temporarily transferred to this city is not as large as is assumed by the resolution, though it is a well-appointed corps and admirably adapted for the preservation of the public peace. The reasons which led to their being assembled here will now be briefly stated.

"I shall make no comment upon the origin of the Revolution which, for the last three months, has been in progress in several of the Southern States, nor shall I enumerate the causes which have hastened its advancement or exasperated its temper. The scope of the questions submitted by the House will be sufficiently met by dealing with the facts as they exist, irrespective of the cause from which they have proceeded. That Revolution has been

distinguished by a boldness and completeness of success rarely equaled in the history of Civil Commotions. Its overthrow of the Federal authority has not only been sudden and wide-spread, but has been marked by excesses which have alarmed all and been sources of profound humiliation to a large portion of the American People. Its history is a history of surprises and treacheries and ruthless spoliations. The Forts of the United States have been captured and garrisoned, and hostile flags unfurled upon their ramparts. Its arsenals have been seized, and the vast amount of public arms they contained appropriated to the use of the captors; while more than half a million dollars, found in the Mint at New Orleans, has been unscrupulously applied to replenish the coffers of Louisiana. Officers in command of revenue cutters of the United States have been prevailed on to violate their trusts and surrender the property in their charge; and instead of being branded for their crimes, they, and the vessels they betrayed, have been cordially received into the service of the Seceded States. These movements were attended by yet more discouraging indications of immorality. It was generally believed that this Revolution was guided and urged on by men occupying the highest positions in the public service, and who, with the responsibilities of an oath to support the Constitution still resting upon their consciences, did not hesitate secretly to plan and openly to labor for, the dismemberment of the Republic whose honors they enjoyed and upon whose Treasury they were living. As examples of evil are always more potent than those of good, this spectacle of demoralization on the part of States and statesmen could not fail to produce the most deplorable consequences. The discontented and the disloyal everywhere took courage. In other States, adjacent to and supposed to sympathize in sense of political wrong with those referred to, Revolutionary schemes were set on foot, and Forts and arms of the United States seized. The unchecked prevalence of the Revolution, and the intoxication which its triumphs inspired, naturally suggested wilder and yet more desperate

enterprises than the conquest of ungarrisoned Forts, or the plunder of an unguarded Mint. At what time the armed occupation of Washington City became a part of the Revolutionary Programme, is not certainly known. More than six weeks ago, the impression had already extensively obtained that a Conspiracy for the accomplishment of this guilty purpose was in process of formation, if not fully matured. The earnest endeavors made by men known to be devoted to the Revolution, to hurry Virginia and Maryland out of the Union, were regarded as preparatory steps for the subjugation of Washington. This plan was in entire harmony with the aim and spirit of those seeking the subversion of the Government, since no more fatal blow at its existence could be struck than the permanent and hostile possession of the seat of its power. It was in harmony, too, with the avowed designs of the Revolutionists, which looked to the formation of a Confederacy of all the Slave States, and necessarily to the Conquest of the Capital within their limits. It seemed not very indistinctly prefigured in a Proclamation made upon the floor of the Senate, without qualification, if not exultingly, that the Union was already dissolved—a Proclamation which, however intended, was certainly calculated to invite, on the part of men of desperate fortunes or of Revolutionary States, a raid upon the Capital. In view of the violence and turbulent disorders already exhibited in the South, the public mind could not reject such a scheme as at all improbable. That a belief in its existence was entertained by multitudes, there can be no doubt, and this belief I fully shared. My conviction rested not only on the facts already alluded to, but upon information, some of which was of a most conclusive character, that reached the Government from many parts of the Country, not merely expressing the prevalence of the opinion that such an organization had been formed, but also often furnishing the plausible grounds on which the opinion was based. Superadded to these proofs, were the oft-repeated declarations of men in high political positions here, and who

were known to have intimate affiliations with the Revolution—if indeed they did not hold its reins in their hands—to the effect that Mr. Lincoln would not, or should not be inaugurated at Washington. Such declarations, from such men, could not be treated as empty bluster. They were the solemn utterances of those who well understood the import of their words, and who, in the exultation of the temporary victories gained over their Country's flag in the South, felt assured that events would soon give them the power to verify their predictions. Simultaneously with these prophetic warnings, a Southern journal of large circulation and influence, and which is published near the city of Washington, advocated its seizure as a possible political necessity.

"The nature and power of the testimony thus accumulated may be best estimated by the effect produced upon the popular mind. Apprehensions for the safety of the Capital were communicated from points near and remote, by men unquestionably reliable and loyal. The resident population became disquieted, and the repose of many families in the city was known to be disturbed by painful anxieties. Members of Congress, too—men of calm and comprehensive views, and of undoubted fidelity to their Country—frankly expressed their solicitude to the President and to this Department, and formally insisted that the defenses of the Capital should be strengthened. With such warnings, it could not be forgotten that, had the late Secretary of War heeded the anonymous letter which he received, the tragedy at Harper's Ferry would have been avoided; nor could I fail to remember that, had the early admonitions which reached here in regard to the designs of lawless men upon the Forts of Charleston Harbor been acted on by sending forward adequate reinforcements before the Revolution began, the disastrous political complications that ensued might not have occurred.

"Impressed by these circumstances and considerations, I earnestly besought you to allow the concentration, at this

city, of a sufficient military force to preserve the public peace from all the dangers that seemed to threaten it. An open manifestation, on the part of the Administration, of a determination, as well as of the ability, to maintain the laws, would, I was convinced, prove the surest, as also the most pacific, means of baffling and dissolving any Conspiracy that might have been organized. It was believed too that the highest and most solemn responsibility resting upon a President withdrawing from the Government, was to secure to his successor a peaceful Inauguration. So deeply, in my judgment, did this duty concern the whole Country and the fair fame of our Institutions, that, to guarantee its faithful discharge, I was persuaded no preparation could be too determined or too complete. The presence of the troops alluded to in the resolution is the result of the conclusion arrived at by yourself and Cabinet, on the proposition submitted to you by this Department. Already this display of life and loyalty on the part of your Administration, has produced the happiest effects. Public confidence has been restored, and the feverish apprehension which it was so mortifying to contemplate has been banished. Whatever may have been the machinations of deluded, lawless men, the execution of their purpose has been suspended, if not altogether abandoned in view of preparations which announce more impressively than words that this Administration is alike able and resolved to transfer in peace, to the President elect, the authority that, under the Constitution, belongs to him. To those, if such there be, who desire the destruction of the Republic, the presence of these troops is necessarily offensive; but those who sincerely love our Institutions cannot fail to rejoice that, by this timely precaution they have possibly escaped the deep dishonor which they must have suffered had the Capital, like the Forts and Arsenals of the South, fallen into the hands of the Revolutionists, who have found this great Government weak only because, in the exhaustless beneficence of its spirit, it

has refused to strike, even in its own defense, lest it should wound the aggressor.

"I have the honor to be, very respectfully, your obedient servant,

"J. HOLT. "Secretary of War,

"THE PRESIDENT."]

On February 20th, Forts Chadbourne and Belknap were seized by the Texan Rebels; and on the 22nd, the Federal General Twiggs basely surrendered to them all the fortifications under his control, his little Army, and all the Government stores in his possession—comprising \$55,000 in specie, 35,000 stand of arms, 26 pieces of mounted artillery, 44 dismounted guns, and ammunition, horses, wagons, forage, etc., valued at nearly \$2,000,000.

On the 2nd of March, the Texan Rebels seized the United States Revenue cutter "Dodge" at Galveston; and on the 6th, Fort Brown was surrendered to them.

Thus, with surrender after surrender, and seizure after seizure, of its revenue vessels and fortifications and troops and arms and munitions of war in the Southern States—with Fort Sumter invested and at the mercy of any attack, and Fortress Monroe alone of all the National strongholds yet safe—with State after State seceding—what wonder that, while these events gave all encouragement to the Southern Rebels, the Patriots of the North stood aghast at the appalling spectacle of a crumbling and dissolving Union!

During this period of National peril, the debates in both branches of Congress upon propositions for adjustment of the unfortunate differences between the Southern Seceders and the Union, as has been already hinted, contributed still further to agitate the public mind. Speech after speech by the ablest and most brilliant Americans in public life, for or against such propositions, and discussing the rightfulness or wrongfulness of Secession, were made in Congress day after day, and, by means of the telegraph and the press, alternately swayed the Northern heart with feelings of hope, chagrin, elation or despair.

The Great Debate was opened in the Senate on almost the very first day of its session (December 4th, 1860), by Mr. Clingman, of North Carolina, who, referring to South Carolina, declared that "Instead of being precipitate,

she and the whole South have been wonderfully patient." A portion of that speech is interesting even at this time, as showing how certain phases of the Tariff and Internal Improvement questions entered into the consideration of some of the Southern Secession leaders. Said he, "I know there are intimations that suffering will fall upon us of the South, if we secede. My people are not terrified by any such considerations. * * * They have no fears of the future if driven to rely on themselves. The Southern States have more territory than all the Colonies had when they Seceded from Great Britain, and a better territory. Taking its position, climate, and fertility into consideration, there is not upon Earth a body of territory superior to it. * * * The Southern States have, too, at this day, four times the population the Colonies had when they Seceded from Great Britain. Their exports to the North and to Foreign Countries were, last year, more than \$300,000,000; and a duty of ten per cent. upon the same amount of imports would give \$30,000,000 of revenue—twice as much as General Jackson's administration spent in its first year. Everybody can see, too, how the bringing in of \$300,000,000 of imports into Southern ports would enliven business in our seaboard towns. I have seen with some satisfaction, also, Mr. President, that the war made upon us has benefitted certain branches of industry in my State. There are manufacturing establishments in North Carolina, the proprietors of which tell me that they are making fifty per cent. annually on their whole capital, and yet cannot supply one tenth of the demand for their production. The result of only ten per cent. duties in excluding products from abroad, would give life and impetus to mechanical and manufacturing industry, throughout the entire South. Our people understand these things, and they are not afraid of results, if forced to declare Independence. Indeed I do not see why Northern Republicans should wish to continue a connection with us upon any terms. * * * They want High Tariff likewise. They may put on five hundred per cent. if they choose, upon their own imports, and nobody on our side will complain. They may spend all the money they raise on railroads, or opening harbors, or anything on earth they desire, without interference from us; and it does seem to me that if they are sincere in their views they ought to welcome a separation."

From the very commencement of this long three-months debate, it was the policy of the Southern leaders to make it appear that the Southern States were in an attitude of injured innocence and defensiveness against Northern

aggression. Hence, it was that, as early as December 5th, on the floor of the Senate, through Mr. Brown, of Mississippi, they declared: "All we ask is to be allowed to depart in Peace. Submit we will not; and if, because we will not submit to your domination, you choose to make War upon us, let God defend the Right!"

At the same time it was esteemed necessary to try and frighten the North into acquiescence with this demand to be "let alone." Hence such utterances as those of Clingman and Iverson, to which reference has already been made, and the especially defiant close of the latter's speech, when—replying to the temperate but firm Union utterances of Mr. Hale—the Georgia Senator said: "Sir, I do not believe there will be any War; but if War is to come, let it come; we will meet the Senator from New Hampshire and all the myrmidons of Abolitionism and Black Republicanism everywhere upon our own soil; and, in the language of a distinguished member from Ohio in relation to the Mexican War, we will 'welcome you with bloody hands to hospitable graves.'"

On the other hand, in order to encourage the revolting States to the speedy commission of overt acts of Rebellion and violence, that would precipitate War without a peradventure, utterances fell from Southern lips, in the National Senate Chamber, like those of Mr. Wigfall, when he said, during this first day of the debate: "Frederick the Great, on one occasion, when he had trumped up an old title to some of the adjacent territory, quietly put himself in possession and then offered to treat. Were I a South Carolinian, as I am a Texan, and I knew that my State was going out of the Union, and that this Government would attempt to use force, I would, at the first moment that that fact became manifest, seize upon the Forts and the arms and the munitions of war, and raise the cry 'To your tents, O Israel, and to the God of battles be this issue!'"

And, as we have already seen, the Rebels of the South were not slow in following the baleful advice to the letter. But it was not many days after this utterance when the Conspirators against the Union evidently began to fear that the ground for Rebellion, upon which they had planted themselves, would be taken from under their feet by the impulse of Compromise and Concession which stirred so strongly the fraternal spirit of the North. That peaceful impulse must be checked and exasperated by sneers and impossible demands. Hence, on December 12th we find one of the most

active and favorite mouthpieces of Treason, Mr. Wigfall, putting forth such demands, in his most offensive manner.

Said he: "If the two Senators from New York (Seward and King), the Senator from Ohio (Wade), the two Senators from Illinois (Douglas and Trumbull), the Senator from New Hampshire (Hale), the Senator from Maine, and others who are regarded as representative men, who have denied that by the Constitution of the United States, Slaves are recognized as Property; who have urged and advocated those acts which we regard as aggressive on the part of the People—if they will rise here, and say in their places, that they desire to propose amendments to the Constitution, and beg that we will vote for them; that they will, in good faith, go to their respective constituencies and urge the ratification; that they believe, if these Gulf States will suspend their action, that those amendments will be ratified and carried out in good faith; that they will cease preaching this 'irrepressible conflict'; and if, in those amendments, it is declared that Slaves are Property, that they shall be delivered up upon demand; and that they will assure us that Abolition societies shall be abolished; that Abolition speeches shall no longer be made; that we shall have peace and quiet; that we shall not be called cut-throats and pirates and murderers; that our women shall not be slandered—these things being said in good faith, the Senators begging that we will stay our hand until an honest effort can be made, I believe that there is a prospect of giving them a fair consideration!"

Small wonder is it, that this labored and ridiculous piece of impertinence was received with ironical laughter on the Republican side of the Senate Chamber. And it was in reference to these threats, and these preposterous demands—including the suppression of the right of Free Discussion and Liberty of the Press—that, in the same chamber (January 7, 1861) the gallant and eloquent Baker said:

"Your Fathers had fought for that right, and more than that, they had declared that the violation of that right was one of the great causes which impelled them to the Separation. * * * Sir, the Liberty of the Press is the highest safeguard to all Free Government. Ours could not exist without it. It is with us, nay, with all men, like a great exulting and abounding river, It is fed by the dews of Heaven, which distil their sweetest drops to form it. It gushes from the rill, as it breaks from the deep caverns of the Earth. It is fed by a thousand affluents, that dash from the mountaintop to separate again

into a thousand bounteous and irrigating rills around. On its broad bosom it bears a thousand barks. There, Genius spreads its purpling sail. There, Poetry dips its silver oar. There, Art, Invention, Discovery, Science, Morality, Religion, may safely and securely float. It wanders through every land. It is a genial, cordial source of thought and inspiration, wherever it touches, whatever it surrounds. Sir, upon its borders, there grows every flower of Grace and every fruit of Truth. I am not here to deny that that Stream sometimes becomes a dangerous Torrent, and destroys towns and cities upon its bank; but I am here to say that without it, Civilization, Humanity, Government, all that makes Society itself, would disappear, and the World would return to its ancient Barbarism.

"Sir, if that were to be possible, or so thought for a moment, the fine conception of the great Poet would be realized. If that were to be possible, though but for a moment, Civilization itself would roll the wheels of its car backward for two thousand years. Sir, if that were so, it would be true that:

*'As one by one in dread Medea's train,
Star after Star fades off th' ethereal plain,
Thus at her fell approach and secret might,
Art after art goes out, and all is night.
Philosophy, that leaned on Heaven before,
Sinks to her second cause, and is no more.
Religion, blushing, veils her sacred fires,
And, unawares, Morality expires.'*

"Sir, we will not risk these consequences, even for Slavery; we will not risk these consequences even for Union; we will not risk these consequences to avoid that Civil War with which you threaten us; that War which, you announce so deadly, and which you declare to be inevitable. * *

* I will never yield to the idea that the great Government of this Country shall protect Slavery in any Territory now ours, or hereafter to be acquired. It is, in my opinion, a great principle of Free Government, not, to be surrendered.

"It is in my judgment, the object of the great battle which we have fought, and which we have won. It is, in my poor opinion, the point upon which there is concord and agreement between the great masses of the North, who may agree in no other political opinion whatever. Be he

Republican, or Democrat, or Douglas man, or Lincoln man; be he from the North, or the West, from Oregon, or from Maine, in my judgment nine-tenths of the entire population of the North and West are devoted, in the very depths of their hearts, to the great Constitutional idea that Freedom is the rule, that Slavery is the exception, that it ought not to be extended by virtue of the powers of the Government of the United States; and, come weal, come woe, it never shall be.

"But, sir, I add one other thing. When you talk to me about Compromise or Concession, I am not sure that I always understand you. Do you mean that I am to give up my convictions of right? Armies cannot compel that in the breast of a Free People. Do you mean that I am to concede the benefits of the political struggle through which we have passed, considered politically, only? You are too just and too generous to ask that. Do you mean that we are to deny the great principle upon which our political action has been based? You know we cannot. But if you mean by Compromise and Concession to ask us to see whether we have not been hasty, angry, passionate, excited, and in many respects violated your feelings, your character, your right of property, we will look; and, as I said yesterday, if we have, we will undo it. Allow me to say again, if there be any lawyer or any Court that will advise us that our laws are unconstitutional, we will repeal them.

"Now as to territory. I will not yield one inch to Secession; but there are things that I will yield, and there are things to which I will yield. It is somewhere told that when Harold of England received a messenger from a brother with whom he was at variance, to inquire on what terms reconciliation and peace could be effected between brothers, he replied in a gallant and generous spirit in a few words, 'the terms I offer are the affection of a brother; and the Earldom of Northumberland.' And, said the Envoy, as he marched up the Hall amid the warriors that graced the state of the King, 'if Tosti, thy brother, agree to this, what terms will you allow to his ally and friend, Hadrada, the giant.' 'We will allow,' said Harold, 'to Hadrada, the giant, seven feet of English ground, and if he be, as they say, a giant, some few inches more!' and, as he spake, the Hall rang with acclamation.

"Sir, in that spirit I speak. I follow, at a humble distance, the ideas and the words of Clay, illustrious, to be venerated, and honored, and remembered,

forever. * * * He said—I say: that I will yield no inch, no word, to the threat of Secession, unconstitutional, revolutionary, dangerous, unwise, at variance with the heart and the hope of all mankind save themselves. To that I yield nothing; but if States loyal to the Constitution, if people magnanimous and just, desiring a return of fraternal feeling, shall come to us and ask for Peace, for permanent, enduring peace and affection, and say, 'What will you grant? I say to them, 'Ask all that a gentleman ought to propose, and I will yield all that a gentleman ought to offer.' Nay, more: if you are galled because we claim the right to prohibit Slavery in territory now Free, or in any Territory which acknowledges our jurisdiction, we will evade—I speak but for myself—I will aid in evading that question; I will agree to make it all States, and let the People decide at once. I will agree to place them in that condition where the prohibition of Slavery will never be necessary to justify ourselves to our consciences or to our constituents. I will agree to anything which is not to force upon me the necessity of protecting Slavery in the name of Freedom. To that I never can and never will yield."

The speeches of Seward, of Douglas, of Crittenden, of Andrew Johnson, of Baker, and others, in behalf of the Union, and those of Benjamin, Davis, Wigfall, Lane, and others, in behalf of Secession, did much toward fixing the responsibility for the approaching bloody conflict where it belonged. The speeches of Andrew Johnson of Tennessee—who, if he at a subsequent period of the Nation's history, proved himself not the worthiest son of the Republic, at this critical time, at all events, did grand service in the National Senate—especially had great and good effect on the public mind in the Northern and Border States. They were, therefore, gall and wormwood to the Secession leaders, who hoped to drag the Border States into the great Southern Confederacy of States already in process of formation.

Their irritation was shown in threats of personal violence to Mr. Johnson, as when Wigfall—replying February 7th, 1861, to the latter's speech, said, "Now if the Senator wishes to denounce Secession and Nullification eo nomine, let him go back and denounce Jefferson; let him denounce Jackson, if he dare, and go back and look that Tennessee Democracy in the face, and see whether they will content themselves with riddling his effigy!"

It would seem also, from another part of Wigfall's reply, that the speeches of Union Senators had been so effective that a necessity was felt on the part

of the Southern Conspirators to still further attempt to justify Secession by shifting the blame to Northern shoulders, for, while referring to the Presidential canvass of 1860—and the attitude of the Southern Secession leaders during that exciting period—he said: "We (Breckinridge-Democrats) gave notice, both North and South, that if Abraham Lincoln was elected, this Union was dissolved. I never made a speech during the canvass without asserting that fact. * * * Then, I say, that our purpose was not to dissolve the Union; but the dire necessity has been put upon us. The question is, whether we shall live longer in a Union in which a Party, hostile to us in every respect, has the power in Congress, in the Executive department, and in the Electoral Colleges—a Party who will have the power even in the Judiciary. We think it is not safe. We say that each State has the clear indisputable right to withdraw if she sees fit; and six of the States have already withdrawn, and one other State is upon the eve of withdrawing, if she has not already done so. How far this will spread no man can tell!"

As tending to show the peculiar mixture of brag, cajolery, and threats, involved in the attitude of the South, as expressed by the same favorite Southern mouthpiece, toward the Border-States on the one hand, and the Middle and New England States on the other, a further extract from this (February 7th) speech of the Texan Senator may be of interest. Said he:

"With exports to the amount of hundreds of millions of dollars, our imports must be the same. With a lighter Tariff than any people ever undertook to live under, we could have larger revenue. We would be able to stand Direct Taxation to a greater extent than any people ever could before, since the creation of the World. We feel perfectly competent to meet all issues that may be presented, either by hostility from abroad or treason at home. So far as the Border-States are concerned, it is a matter that concerns them alone. Should they confederate with us, beyond all doubt New England machinery will be worked with the water power of Tennessee, of Kentucky, of Virginia and of Maryland; the Tariff laws that now give New England the monopoly in the thirty-three States, will give to these Border States a monopoly in the Slave-holding States. Should the non-Slave-holding States choose to side against us in organizing their Governments, and cling to their New England brethren, the only result will be, that the meat, the horses, the hemp, and the grain, which we now buy in Pennsylvania, in Ohio, in Indiana and Illinois, will be purchased in Kentucky and in Western Virginia and in Missouri. Should Pennsylvania

stand out, the only result will be, that the iron which is now dug in Pennsylvania, will be dug in the mountains of Tennessee and of Virginia and of Kentucky and of North Carolina. These things we know.

"We feel no anxiety at all, so far as money or men are concerned. We desire War with nobody; we intend to make no War; but we intend to live under just such a Government as we see fit. Six States have left this Union, and others are going to leave it simply because they choose to do it; that is all. We do not ask your consent; we do not wish it. We have revoked our ratification of the Treaty commonly known as the Constitution of the United States; a treaty for common defense and general welfare; and we shall be perfectly willing to enter into another Treaty with you, of peace and amity. Reject the olive branch and offer us the sword, and we accept it; we have not the slightest objection. Upon that subject we feel as the great William Lowndes felt upon another important subject, the Presidency, which he said was neither to be sought nor declined. When you invade our soil, look to your own borders. You say that you have too many people, too many towns, too dense a population, for us to invade you. I say to you Senators, that there is nothing that ever stops the march of an invading force, except a desert. The more populous a country, the more easy it is to subsist an army."

After declaring that—"Not only are our non-Slaveholders loyal, but even our Negroes are. We have no apprehensions whatever of insurrection—not the slightest. We can arm our negroes, and leave them at home, when we are temporarily absent"—Mr. Wigfall proceeded to say: "We may as well talk plainly about this matter. This is probably the last time I shall have an opportunity of addressing you. There is another thing that an invading army cannot do. It cannot burn up plantations. You can pull down fences, but the Negroes will put them up the next morning. The worst fuel that ever a man undertook to make fire with, is dirt; it will not burn. Now I have told you what an invading army cannot do. Suppose I reverse the picture and tell you what it can do. An invading army in an enemy's country, where there is a dense population, can subsist itself at a very little cost; it does not always pay for what it gets. An invading army can burn down towns; an invading army can burn down manufactories; and it can starve operatives. It can do all these things. But an Invading army, and an army to defend a Country, both require a military chest. You may bankrupt every man south of North Carolina, so that his credit is reduced to such a point that he could not discount a note for thirty dollars, at thirty days; but the next autumn those

Cotton States will have just as much money and as much credit as they had before. They pick money off the cotton plant. Every time that a Negro touches a cotton-pod with his hand, he pulls a piece of silver out of it, and he drops it into the basket in which it is carried to the gin-house. It is carried to the packing screw. A bale of cotton rolls out—in other words, five ten-dollar pieces roll out—covered with canvas. We shall never again make less than five million bales of cotton. * * * We can produce five million bales of cotton, every bale worth fifty dollars, which is the lowest market price it has been for years past. We shall import a bale of something else, for every bale of cotton that we export, and that bale will be worth fifty dollars. We shall find no difficulty under a War-Tariff in raising an abundance of money. We have been at Peace for a very long time, We are very prosperous. Our planters use their cotton, not to buy the necessities of life, but for the superfluities, which they can do without. The States themselves have a mine of wealth in the loyalty and the wealth of their citizens. Georgia, Mississippi, any one of those States can issue its six per cent. bonds tomorrow, and receive cotton in payment to the extent almost of the entire crop. They can first borrow from their own citizens; they can tax them to an almost unlimited extent; and they can raise revenue from a Tariff to an almost unlimited extent.

"How will it be with New England? where will their revenue come from? From your Custom-houses? what do you export? You have been telling us here for the last quarter of a century, that you cannot manufacture, even for the home market, under the Tariffs which we have given you. When this Tariff ceases to operate in your favor, and you have to pay for coming into our markets, what will you export? When your machinery ceases to move, and your operatives are turned out, will you tax your broken capitalist or your starving operative? When the navigation laws cease to operate, what will become of your shipping interest? You are going to blockade our ports, you say. That is a very innocent game; and you suppose we shall sit quietly down and submit to a blockade. I speak not of foreign interference, for we look not for it. We are just as competent to take Queen Victoria and Louis Napoleon under our protection, as they are to take us; and they are a great deal more interested to-day in receiving cotton from our ports than we are in shipping it. You may lock up every bale of cotton within the limits of the eight Cotton States, and not allow us to export one for three years, and we

shall not feel it further than our military resources are concerned. Exhaust the supply of cotton in Europe for one week, and all Europe is in revolution.

"These are facts. You will blockade us! Do you suppose we shall do nothing, even upon the sea? How many letters of marque and reprisal would it take to put the whole of your ships up at your wharves to rot? Will any merchant at Havre, or Liverpool, or any other portion of the habitable globe, ship a cargo upon a New England, or New York, or Philadelphia clipper, or other ship, when he knows that the seas are swarming with letters of marque and reprisal? Why the mere apprehension of such a thing will cut you out of the Carrying Trade of the civilized World. * * * I speak not of the absurdity of the position that you can blockade our ports, admitting at the same time that we are in the Union. Blockade is a remedy, as all writers on International law say, against a Foreign Power with whom you are at War. You cannot use a blockade against your own people. An embargo even, you cannot use. That is a remedy against a Foreign Nation with whom you expect to be at War. You must treat us as in the Union, or out of it. We have gone out. We are willing to live at peace with you; but, as sure as fate, whenever any flag comes into one of our ports, that has thirty-three stars upon it, that flag will be fired at. Displaying a flag with stars which we have plucked from that bright galaxy, is an insult to the State within whose waters that flag is displayed. You cannot enforce the laws without Coercion, and you cannot Coerce without War.

"These matters, then, can be settled. How? By withdrawing your troops; admitting our right to Self-government clearly, unqualifiedly. Do this, and there is no difficulty about it. You say that you will not do it. Very well; we have no objection—none whatever. That is Coercion. When you have attempted it, you will find that you have made War. These, Senators, are facts. I come here to plead for Peace; but I have seen so much and felt so much, that I am becoming at last, to tell the plain truth of the matter, rather indifferent as to which way the thing turns. If you want War, you can have it. If you want Peace, you can get it; but I plead not for Peace."

Meanwhile the Seceding States of the South were strengthening their attitude by Confederation. On February 4, 1861, the Convention of Seceding States, called by the South Carolina Convention at the time of her Secession, met, in pursuance of that call, at Montgomery, Alabama, and on the 9th adopted a Provisional Constitution and organized a Provisional

Government by the election of Jefferson Davis of Mississippi, as President, and Alexander H. Stephens of Georgia, as Vice-President; to serve until a Presidential election could be held by the people of the Confederacy.

[At a later day, March 11, 1861, a permanent Constitution for the "Confederate States" was adopted, and, in the Fall of the same year, Messrs. Davis and Stephens were elected by popular vote, for the term of six years ensuing, as President and Vice-President, respectively, of the Confederacy.]

Mr. Davis almost at once left Jackson, Mississippi, for Montgomery, where he arrived and delivered his Inaugural, February 17, having received on his road thither a succession of ovations from the enthusiastic Rebels, to which he had responded with no less than twenty-five speeches, very similar in tone to those made in the United States Senate by Mr. Wigfall and others of that ilk—breathing at once defiance and hopefulness, while admitting the difficulties in the way of the new Confederacy.

"It may be," said he, at Jackson, "that we will be confronted by War; that the attempt will be made to blockade our ports, to starve us out; but they (the Union men of the North) know little of the Southern heart, of Southern endurance. No amount of privation could force us to remain in a Union on unequal terms. England and France would not allow our great staple to be dammed up within our present limits; the starving thousands in their midst would not allow it. We have nothing to apprehend from Blockade. But if they attempt invasion by land, we must take the War out of our territory. If War must come, it must be upon Northern, and not upon Southern soil. In the meantime, if they were prepared to grant us Peace, to recognize our equality, all is well."

And, in his speech at Stevenson, Alabama, said he "Your Border States will gladly come into the Southern Confederacy within sixty days, as we will be their only friends. England will recognize us, and a glorious future is before us. The grass will grow in the Northern cities, where the pavements have been worn off by the tread of Commerce. We will carry War where it is easy to advance—where food for the sword and torch await our Armies in the densely populated cities; and though they may come and spoil our crops, we can raise them as before; while they cannot rear the cities which took years of industry and millions of money to build."

Very different in tone to these, were the kindly and sensible utterances of Mr. Lincoln on his journey from Springfield to Washington, about the same time, for Inauguration as President of the United States. Leaving Springfield, Illinois, February 11th, he had pathetically said:

"My friends: No one, not in my position, can realize the sadness I feel at this parting. To this people I owe all that I am. Here I have lived more than a quarter of a century. Here my children were born, and here one of them lies buried. I know not how soon I shall see you again. I go to assume a task more difficult than that which has devolved upon any other man since the days of Washington. He never would have succeeded except for the aid of Divine Providence, upon which he at all times relied. I feel that I cannot succeed without the same Divine blessing which sustained him; and on the same Almighty Being I place my reliance for support. And I hope you, my friends, will all pray that I may receive that Divine assistance, without which I cannot succeed, but with which success is certain. Again I bid you an affectionate farewell."

At Indianapolis, that evening, the eve of his birthday anniversary, after thanking the assembled thousands for their "magnificent welcome," and defining the words "Coercion" and "Invasion"—at that time so loosely used—he continued: "But if the United States should merely hold and retake her own Forts and other property, and collect the duties on foreign importation, or even withhold the mails from places where they were habitually violated, would any or all of these things be 'Invasion' or 'Coercion'? Do our professed lovers of the Union, who spitefully resolve that they will resist Coercion and Invasion, understand that such things as these on the part of the United States would be 'Coercion' or 'Invasion' of a State? If so, their idea of means to preserve the object of their great affection would seem to be exceedingly thin and airy."

At Columbus, Ohio, he spoke in a like calm, conservative, reasoning way—with the evident purpose of throwing oil on the troubled waters—when he said: "I have not maintained silence from any want of real anxiety. It is a good thing that there is no more than anxiety; for there is nothing going wrong. It is a consoling circumstance that, when we look out, there is nothing that really hurts anybody. We entertain different views upon political questions; but nobody is suffering anything. This is a consoling

circumstance; and from it we may conclude that all we want is time, patience, and a reliance on that God who has never forsaken this People."

So, too, at Pittsburg, Pa., February 15th, he said, of "our friends," as he termed them, the Secessionists: "Take even their own views of the questions involved, and there is nothing to justify the course they are pursuing. I repeat, then, there is no crisis, except such an one as may be gotten up at any time by turbulent men, aided by designing politicians. My advice to them, under the circumstances, is to keep cool. If the great American People only keep their temper both sides of the line, the trouble will come to an end, and the question which now distracts the Country be settled, just as surely as all other difficulties, of a like character, which have been originated in this Government, have been adjusted. Let the people on both sides keep their self-possession, and, just as other clouds have cleared away in due time, so will this great Nation continue to prosper as heretofore."

And toward the end of that journey, on the 22nd of February—Washington's Birthday—in the Independence Hall at Philadelphia, after eloquently affirming his belief that "the great principle or idea that kept this Confederacy so long together was * * * that sentiment in the Declaration of Independence which gave Liberty not alone to the People of this Country, but" he hoped "to the World, for all future time * * * which gave promise that, in due time, the weight would be lifted from the shoulders of all men"—he added, in the same firm, yet temperate and reassuring vein: "Now, my friends, can this Country be saved on that basis? If it can, I will consider myself one of the happiest men in the world, if I can help to save it. If it cannot be saved on that basis, it will be truly awful. But, if this Country cannot be saved without giving up that principle, I was about to say I would rather be assassinated on this spot than surrender it. Now in my view of the present aspect of affairs, there need be no bloodshed or War. There is no necessity for it. I am not in favor of such a course; and I may say, in advance, that there will be no bloodshed, unless it be forced upon the Government, and then it will be compelled to act in self-defense. * * * I have said nothing but what I am willing to live by, and, if it be the pleasure of Almighty God, to die by."

Thus, as he progressed on that memorable journey from his home in Illinois, through Indianapolis, Cincinnati, Columbus, Pittsburgh, Cleveland, Erie, Buffalo, Albany, New York, Trenton, Newark, Philadelphia, and

Harrisburg—amid the prayers and blessings and acclamations of an enthusiastic and patriotic people—he uttered words of wise conciliation and firm moderation such as beseemed the high functions and tremendous responsibilities to which the voice of that liberty—and union-loving people had called him, and this too, with a full knowledge, when he made the Philadelphia speech, that the enemies of the Republic had already planned to assassinate him before he could reach Washington.

The prudence of his immediate friends, fortunately defeated the murderous purpose—and by the simple device of taking the regular night express from Philadelphia instead of a special train next day—to Washington, he reached the National Capital without molestation early on the morning of the 23rd of February.

That morning, after Mr. Lincoln's arrival, in company with Mr. Lovejoy, the writer visited him at Willard's Hotel. During the interview both urged him to "Go right along, protect the property of the Country, and put down the Rebellion, no matter at what cost in men and money." He listened with grave attention, and said little, but very clearly indicated his approval of all the sentiments thus expressed—and then, with the same firm and manly and cheerful faith in the outcome, he added: "As the Country has placed me at the helm of the Ship, I'll try to steer her through."

The spirit in which he proposed to accomplish this superhuman task, was shown when he told the Southern people through the Civic authorities of Washington on the 27th of February—When the latter called upon him—that he had no desire or intention to interfere with any of their Constitutional rights—that they should have all their rights under the Constitution, "not grudgingly, but fully and fairly." And what was the response of the South to this generous and conciliatory message? Personal sneers—imputations of Northern cowardice—boasts of Southern prowess—scornful rejection of all compromise—and an insolent challenge to the bloody issue of arms!

Said Mr. Wigfall, in the United States Senate, on March 2d, alluding to Mr. Lincoln, "I do not think that a man who disguises himself in a soldier's cloak and a Scotch cap (a more thorough disguise could not be assumed by such a man) and makes his entry between day and day, into the Capital of the Country that he is to govern—I hardly think that he is going to look War sternly in the face.

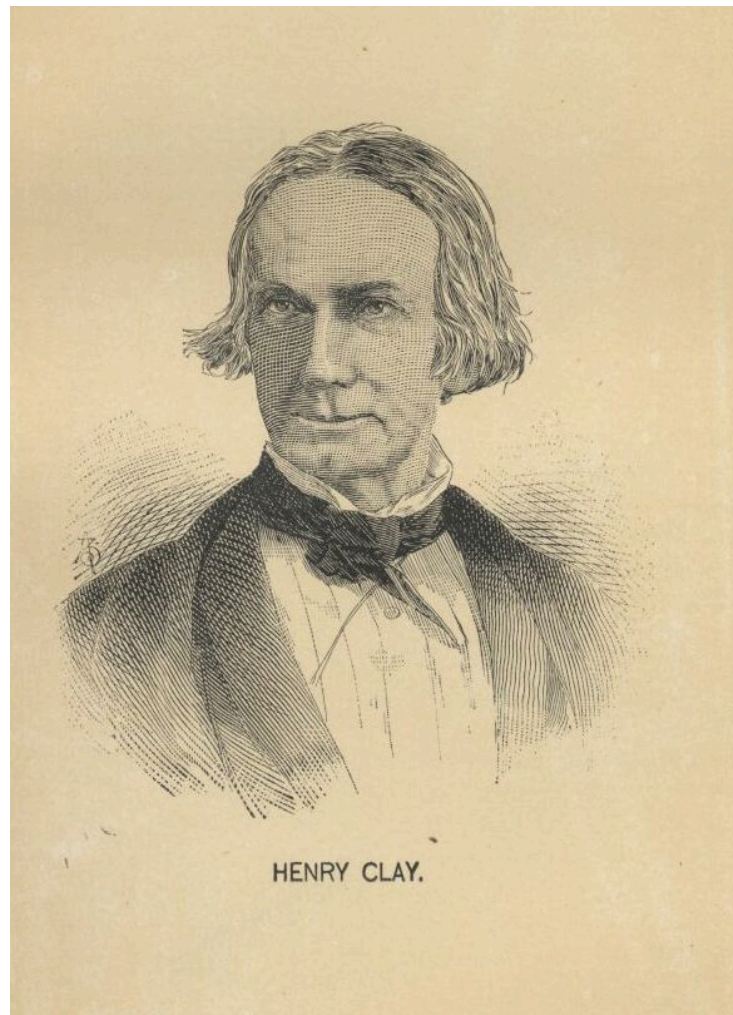
[Had Mr. Wigfall been able at this time to look four years into the future and behold the downfall of the Southern Rebellion, the flight of its Chieftains, and the capture of Jefferson Davis while endeavoring to escape, with his body enclosed in a wrapper and a woman's shawl over his head, as stated by Lieutenant-Colonel Stuart of Jefferson Davis's Staff, p. 756, vol. ii., Greeley's American Conflict—he would hardly have retailed this slander.]

"I look for nothing else than that the Commissioners from the Confederated States will be received here and recognized by Abraham Lincoln. I will now predict that this Republican Party that is going to enforce the Laws, preserve the Union, and collect Revenue, will never attempt anything so silly; and that instead of taking Forts, the troops will be withdrawn from those which we now have. See if this does not turn out to be so, in less than a week or ten days."

In the same insulting diatribe, he said: "It is very easy for men to bluster who know there is going to be no danger. Four or five million people living in a territory that extends from North Carolina down to the Rio Grande, who have exports to above three hundred million dollars, whose ports cannot be blockaded, but who can issue letters of marque and reprisal, and sweep your commerce from the seas, and who will do it, are not going to be trifled with by that sensible Yankee nation. Mark my words. I did think, at one time, there was going to be War; I do not think so now. * * * The Star of the West swaggered into Charleston harbor, received a blow planted full in the face, and staggered out. Your flag has been insulted; redress it if you dare! You have submitted to it for two months, and you will submit to it for ever. * * * We have dissolved the Union; mend it if you can; cement it with blood; try the experiment! we do not desire War; we wish to avoid it. * * * This we say; and if you choose to settle this question by the Sword, we feel, we know, that we have the Right. We interfere with you in no way. We ask simply that you will not interfere with us. * * * You tell us you will keep us in the Union. Try the experiment!"

And then, with brutal frankness, he continued: "Now, whether what are called The Crittenden Resolutions will produce satisfaction in some of these Border States, or not, I am unaware; but I feel perfectly sure they would not be entertained upon the Gulf. As to the Resolutions which the Peace

Congress has offered us, we might as well make a clean breast of it. If those Resolutions were adopted, and ratified by three fourths of the States of this Union, and no other cause ever existed, I make the assertion that the seven States now out of the Union, would go out upon that."



CHAPTER VIII.

THE REJECTED OLIVE BRANCH.

While instructive, it will also not be devoid of interest, to pause here, and examine the nature of the Crittenden Resolutions, and also the Resolutions of the Peace Congress, which, we have seen, were spurned by the Secession leaders, through their chief mouthpiece in the United States Senate.

The Crittenden Compromise Resolutions * were in these words:

"A Joint Resolution proposing certain Amendments to the Constitution of the United States:

"Whereas, serious and alarming dissensions have arisen between the Northern and the Southern States, concerning the Rights and security of the Rights of the Slaveholding States, and especially their Rights in the common territory of the United States; and whereas, it is eminently desirable and proper that these dissensions, which now threaten the very existence of this Union, should be permanently quieted and settled by Constitutional provisions which shall do equal justice to all Sections, and thereby restore to the People that peace and good-will which ought to prevail between all the citizens of the United States; Therefore:

"Resolved, by the Senate and House of Representatives of the United States of America, in Congress assembled, (two thirds of both Houses concurring), the following articles be, and are hereby proposed and submitted as amendments to the Constitution of the United States, which shall be valid to all intents and purposes, as part of said Constitution, when ratified by Conventions of three-fourths of the several States:

"Article I. In all the territory of the United States now held, or hereafter to be acquired, situate north of latitude 36 30', Slavery or involuntary servitude, except as a punishment for crime, is prohibited, while such territory shall remain under Territorial government. In all the territory south of said line of latitude, Slavery of the African race is hereby recognized as

existing, and shall not be interfered with by Congress, but shall be protected as Property by all the departments of the Territorial government during its continuance. And when any Territory, north or south of said line, within such boundaries as Congress may prescribe, shall contain the population requisite for a member of Congress, according to the then Federal ratio of representation of the People of the United States, it shall, if its own form of government be republican, be admitted into the Union, on an equal footing with the original States; with or without Slavery, as the Constitution of such new State may provide.

"Article II. Congress shall have no power to abolish Slavery in places under its exclusive jurisdiction, and situate within the limits of States that permit the holding of Slaves.

"Article III. Congress shall have no power to abolish Slavery within the District of Columbia; so long as it exists in the adjoining States of Virginia and Maryland, or either, nor without the consent of the inhabitants, nor without just compensation first made to such owners of Slaves as do not consent to such abolishment. Nor shall Congress, at any time, prohibit officers of the Federal government, or members of Congress whose duties require them to be in said District, from bringing with them their Slaves, and holding them as such during the time their duties may require them to remain there, and afterward taking them from the District.

"Article IV. Congress shall have no power to prohibit or hinder the Transportation of Slaves from one State to another, or to a Territory in which Slaves are, by law, permitted to be held, whether that transportation be by land, navigable rivers, or by the sea.

"Article V. That in addition to the provisions of the third paragraph of the second section of the fourth article of the Constitution of the United States, Congress shall have power to provide by law, and it shall be its duty to provide, that the United States shall pay to the owner who shall apply for it, the full value of his Fugitive Slaves in all cases where the Marshal, or other officer whose duty it was to arrest said Fugitive, was prevented from so doing by violence or intimidation, or where, after arrest, said Fugitive was rescued by force, and the owner thereby prevented and obstructed in the pursuit of his remedy for the recovery of his Fugitive Slave under the said clause of the Constitution and the laws made in pursuance thereof.

["No Person held to Service or Labour in one State, under the Laws thereof, escaping into another, shall, in consequence of any Law or Regulation therein, be discharged from such Service or Labour, but shall be delivered up on claim of the Party to whom such Service or Labour may be due."—Art. IV., Sec. 2, P 3, U. S. Constitution.]

"And in all such cases, when the United States shall pay for such Fugitive, they shall have the Right, in their own name, to sue the county in which said violence, intimidation, or rescue, was committed, and recover from it, with interest and damages, the amount paid by them for said Fugitive Slave. And the said county, after it has paid said amount to the United States, may, for its indemnity, sue and recover from the wrong-doers or rescuers by whom the owner was prevented from the recovery of his Fugitive Slave, in like manner as the owner himself might have sued and recovered.

"Article VI. No future amendment of the Constitution shall affect the five preceding articles; nor the third paragraph of the second section of the first article of the Constitution, nor the third paragraph of the second section of the fourth article of said Constitution; and no amendment shall be made to the Constitution which shall authorize or give to Congress any power to abolish or interfere with Slavery in any of the States by whose laws it is or may be, allowed or permitted.

["Representatives and Direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of Free Persons, including those bound to Service for a Term of Years, and excluding Indians not Taxed, three-fifths of all Other Persons," etc.—Art. 1., Sec. 2, P 3, U. S. Constitution.]

"And whereas, also, besides those causes of dissension embraced in the foregoing amendments proposed to the Constitution of the United States, there are others which come within the jurisdiction of Congress, and may be

remedied by its legislative power; And whereas it is the desire of Congress, as far as its power will extend, to remove all just cause for the popular discontent and agitation which now disturb the peace of the Country and threaten the stability of its Institutions; Therefore:

"1. Resolved by the Senate and house of Representatives in Congress assembled, that the laws now in force for the recovery of Fugitive Slaves are in strict pursuance of the plain and mandatory provisions of the Constitution, and have been sanctioned as valid and Constitutional by the judgment of the Supreme Court of the United States; that the Slaveholding States are entitled to the faithful observance and execution of those laws; and that they ought not to be repealed, or so modified or changed as to impair their efficiency; and that laws ought to be made for the punishment of those who attempt, by rescue of the Slave, or other illegal means, to hinder or defeat the due execution of said laws.

"2. That all State laws which conflict with the Fugitive Slave Acts of Congress, or any other Constitutional Acts of Congress, or which, in their operation, impede, hinder, or delay, the free course and due execution of any of said Acts, are null and void by the plain provisions of the Constitution of the United States; yet those State laws, void as they are, have given color to practices, and led to consequences, which have obstructed the due administration and execution of Acts of Congress, and especially the Acts for the delivery of Fugitive Slaves; and have thereby contributed much to the discord and commotion now prevailing. Congress, therefore, in the present perilous juncture, does not deem it improper, respectfully and earnestly, to recommend the repeal of those laws to the several States which have enacted them, or such legislative corrections or explanations of them as may prevent their being used or perverted to such mischievous purposes.

"3. That the Act of the 18th of September, 1850, commonly called the Fugitive Slave Law, ought to be so amended as to make the fee of the Commissioner, mentioned in the eighth section of the Act, equal in amount in the cases decided by him, whether his decision be in favor of, or against the claimant. And, to avoid misconstruction, the last clause of the fifth section of said Act, which authorizes the person holding a warrant for the arrest or detention of a Fugitive Slave to summon to his aid the posse comitatus, and which declares it to be the duty of all good citizens to assist

him in its execution, ought to be so amended as to expressly limit the authority and duty to cases in which there shall be resistance, or danger of resistance or rescue.

"4. That the laws for the suppression of the African Slave Trade, and especially those prohibiting the importation of Slaves into the United States, ought to be more effectual, and ought to be thoroughly executed; and all further enactments necessary to those ends ought to be promptly made."

The Peace Conference, or "Congress," it may here be mentioned, was called, by action of the Legislature of Virginia, to meet at Washington, February 4, 1861. The invitation was extended to all of such "States of this Confederacy * * * whether Slaveholding or Non-Slaveholding, as are willing to unite with Virginia in an earnest effort to adjust the present unhappy controversies in the spirit in which the Constitution was originally formed, and consistently with its principles, so as to afford to the people of the Slaveholding States adequate guarantees for the security of their rights"—such States to be represented by Commissioners "to consider, and, if practicable, agree upon some suitable adjustment."

The Conference, or "Congress," duly convened, at that place and time, and organized by electing ex-President John Tyler, of Virginia, its President. This Peace Congress—which comprised 133 Commissioners, representing the States of Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, Tennessee, Kentucky, Missouri, Ohio, Indiana, Illinois, Iowa, Wisconsin and Kansas—remained in session until February 27, 1861—and then submitted the result of its labors to Congress, with the request that Congress "will submit it to Conventions in the States, as Article Thirteen of the Amendments to the Constitution of the United States, in the following shape:

"Section 1. In all the present territory of the United States, north of the parallel of 36 30' of north latitude, Involuntary Servitude, except in punishment of crime, is prohibited. In all the present territory south of that line, the status of Persons held to Involuntary Service or Labor, as it now exists, shall not be changed; nor shall any law be passed by Congress or the Territorial Legislature to hinder or prevent the taking of such Persons from any of the States of this Union to said Territory, nor to impair the Rights arising from said relation; but the same shall be subject to judicial

cognizance in the Federal Courts, according to the course of the common law. When any Territory north or south of said line, within such boundary as Congress may prescribe, shall contain a population equal to that required for a member of Congress, it shall, if its form of government be republican, be admitted into the Union on an equal footing with the original States, with or without Involuntary Servitude, as the Constitution of such State may provide.

"Section 2. No territory shall be acquired by the United States, except by discovery and for naval and commercial stations, depots, and transit routes, without the concurrence of a majority of all the Senators from States which allow Involuntary Servitude, and a majority of all the Senators from States which prohibit that relation; nor shall Territory be acquired by treaty, unless the votes of a majority of the Senators from each class of States hereinbefore mentioned be cast as a part of the two-thirds majority necessary to the ratification of such treaty.

"Section 3. Neither the Constitution, nor any amendment thereof, shall be construed to give Congress power to regulate, abolish, or control, within any State, the relation established or recognized by the laws thereof touching Persons held to Labor or Involuntary Service therein, nor to interfere with or abolish Involuntary Service in the District of Columbia without the consent of Maryland, and without the consent of the owners, or making the owners who do not consent just compensation; nor the power to interfere with or prohibit Representatives and others from bringing with them to the District of Columbia, retaining, and taking away, Persons so held to Labor or Service; nor the power to interfere with or abolish Involuntary Service in places under the exclusive jurisdiction of the United States within those States and Territories where the same is established or recognized; nor the power to prohibit the removal or transportation of Persons held to Labor or Involuntary Service in any State or Territory of the United States to any other State or Territory thereof where it is established or recognized by law or usage; and the right during transportation, by sea or river, of touching at ports, shores, and landings, and of landing in case of distress, shall exist; but not the right of transit in or through any State or Territory, or of sale or traffic, against the laws thereof. Nor shall Congress have power to authorize any higher rate of taxation on Persons held to Labor or Service than on land. The bringing into the District of Columbia of

Persons held to Labor or Service, for sale, or placing them in depots to be afterwards transferred to other places for sale as merchandize, is prohibited.

"Section 4. The third paragraph of the second section of the fourth article of the Constitution shall not be construed to prevent any of the States, by appropriate legislation, and through the action of their judicial and ministerial officers, from enforcing the delivery of Fugitives from Labor to the person to whom such Service or Labor is due.

"Section 5. The Foreign Slave Trade is hereby forever prohibited; and it shall be the duty of Congress to pass laws to prevent the importation of Slaves, Coolies, or Persons held to Service or Labor, into the United States and the Territories from places beyond the limits thereof.

"Section 6. The first, third, and fifth sections, together with this section of these amendments, and the third paragraph of the second section of the first article of the Constitution, and the third paragraph of the second section of the fourth article thereof, shall not be amended or abolished without the consent of all the States.

"Section 7. Congress shall provide by law that the United States shall pay to the owner the full value of the Fugitive from Labor, in all cases where the Marshal, or other officer, whose duty it was to arrest such Fugitive, was prevented from so doing by violence or intimidation from mobs or riotous assemblages, or when, after arrest, such Fugitive was rescued by like violence or intimidation, and the owner thereby deprived of the same; and the acceptance of such payment shall preclude the owner from further claim to such Fugitive. Congress shall provide by law for securing to the citizens of each State the privileges and immunities of citizens in the several States."

To spurn such propositions as these—with all the concessions to the Slave Power therein contained—was equivalent to spurning any and all propositions that could possibly be made; and by doing this, the Seceding States placed themselves—as they perhaps desired—in an utterly irreconcilable attitude, and hence, to a certain extent, which had not entered into their calculations, weakened their "Cause" in the eyes of many of their friends in the North, in the Border States, and in the World. They had become Implacables. Practically considered, this was their great mistake. The Crittenden Compromise Resolutions covered and yielded to the Slaveholders of the South all and even more than they had ever dared

seriously to ask or hope for, and had they been open to Conciliation, they could have undoubtedly carried that measure through both Houses of Congress and three-fourths of the States.

*["Its advocates, with good reason, claimed a large majority of the People in its favor, and clamored for its submission to a direct popular vote. Had such a submission been accorded, it is very likely that the greater number of those who voted at all would have voted to ratify it. * * * The 'Conservatives,' so called, were still able to establish this Crittenden Compromise by their own proper strength, had they been disposed so to do. The President was theirs; the Senate strongly theirs; in the House, they had a small majority, as was evidenced in their defeat of John Sherman for Speaker. Had they now come forward and said, with authority: 'Enable us to pass the Crittenden Compromise, and all shall be peace and harmony,' they would have succeeded without difficulty. It was only through the withdrawal of pro-slavery members that the Republicans had achieved an unexpected majority in either House. Had those members chosen to return to the seats still awaiting them, and to support Mr. Crittenden's proposition, they could have carried it without difficulty."—Vol. 360, Greeley's Am. Conflict.]*

But no, they wilfully withdrew their Congressional membership, State by State, as each Seceded, and refused all terms save those which involved an absolute surrender to them on all points, including the impossible claim of the "Right of Secession."

Let us now briefly trace the history of the Compromise measures in the two Houses of Congress.

The Crittenden-Compromise Joint-Resolution had been introduced in the Senate at the opening of its session and referred to a Select Committee of Thirteen, and subsequently, January 16th, 1861, having been reported back, came up in that body for action. On that day it was amended by inserting the words "now held or hereafter to be acquired" after the words "In all the territory of the United States," in the first line of Article I., so that it would

read as given above. This amendment—by which not only in all territory then belonging to the United States, but also by implication in all that might thereafter be acquired, Slavery South of 36 30' was to be recognized—was agreed to by 29 yeas to 21 nays, as follows:

YEAS.—Messrs. Baker, Bayard, Benjamin, Bigler, Bragg, Bright, Clingman, Crittenden, Douglas, Fitch, Green, Gwin, Hemphill, Hunter, Iverson, Johnson of Tennessee, Kennedy, Lane, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury, Sebastian, Slidell and Wigfall—29.

NAYS.—Messrs. Anthony, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hale, Harlan, King, Latham, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade and Wilson—24.

The question now recurred upon an amendment, in the nature of a substitute, offered by Mr. Clark, to strike out the preamble of the Crittenden proposition and all of the resolutions after the word "resolved," and insert:

"That the provisions of the Constitution are ample for the preservation of the Union, and the protection of all the material interests of the Country; that it needs to be obeyed rather than amended; and that an extrication from our present dangers is to be looked for in strenuous efforts to preserve the peace, protect the public property, and enforce the laws, rather than in new Guarantees for particular interests, Compromises for particular difficulties, or Concessions to unreasonable demands.

"Resolved, That all attempts to dissolve the present Union, or overthrow or abandon the present Constitution, with the hope or expectation of constructing a new one, are dangerous, illusory, and destructive; that in the opinion of the Senate of the United States no such Reconstruction is practicable; and, therefore, to the maintenance of the existing Union and Constitution should be directed all the energies of all the departments of the Government, and the efforts of all good citizens."

Before reaching a vote on this amendment, Mr. Anthony, (January 16th) made a most conciliatory speech, pointing out such practical objections to the Crittenden proposition as occurred to his mind, and then, continuing, said: "I believe, Mr. President, that if the danger which menaces us is to be avoided at all, it must be by Legislation; which is more ready, more certain, and more likely to be satisfactory, than Constitutional Amendment. The main difficulty is the Territorial question. The demand of the Senators on

the other side of the Chamber, and of those whom they represent, is that the territory south of the line of the Missouri Compromise shall be open to their peculiar Property. All this territory, except the Indian Reservation, is within the limits of New Mexico; which, for a part of its northern boundary, runs up two degrees above that line. This is now a Slave Territory; made so by Territorial Legislation; and Slavery exists there, recognized and protected. Now, I am willing, as soon as Kansas can be admitted, to vote for the admission of New Mexico as a State, with such Constitution as the People may adopt. This disposes of all the territory that is adapted to Slave Labor or that is claimed by the South. It ought to settle the whole question. Surely if we can dispose of all the territory that we have, we ought not to quarrel over that which we have not, and which we have no very honest way of acquiring. Let us settle the difficulties that threaten us now, and not anticipate those which may never come. Let the public mind have time to cool * * *. In offering to settle this question by the admission of New Mexico, we of the North who assent to it propose a great Sacrifice, and offer a large Concession.

"* * * But we make the offer in a spirit of Compromise and good feeling, which we hope will be reciprocated. * * * I appeal to Senators on the other side, when we thus offer to bridge over full seven-eighths of the frightful chasm that separates us, will you not build the other eighth? When, with outstretched arms, we approach you so near that, by reaching out your hands you can clasp ours in the fraternal grasp from which they should never be separated, will you, with folded arms and closed eyes, stand upon extreme demands which you know we cannot accept, and for which, if we did, we could not carry our constituents? * * * Together our Fathers achieved the Independence of their Country; together they laid the foundations of its greatness and its glory; together they constructed this beautiful system under which it is our privilege to live, which it is our duty to preserve and to transmit. Together we enjoy that privilege; together we must perform that duty. I will not believe that, in the madness of popular folly and delusion, the most benignant Government that ever blessed humanity is to be broken up. I will not believe that this great Power which is marching with giant steps toward the first place among the Nations of the Earth, is to be turned 'backward on its mighty track.' There are no grievances, fancied or real, that cannot be redressed within the Union and under the Constitution. There are no differences between us that may not be

settled if we will take them up in the spirit of those to whose places we have succeeded, and the fruits of whose labors we have inherited."

And to this more than fair proposition to the Southerners—to this touching appeal in behalf of Peace—what was the response? Not a word! It seemed but to harden their hearts.

[Immediately after Mr. Anthony's appeal to the Southern Senators, a motion was made by Mr. Collamer to postpone the Crittenden Resolutions and take up the Kansas Admission Bill. Here was the chance at once offered to them to respond to that appeal—to make a first step, as it were. They would not make it. The motion was defeated by 25 yeas to 30 nays—Messrs. Benjamin and Slidell of Louisiana, Hemphill and Wigfall of Texas, Iverson of Georgia, and Johnson of Arkansas, voting "nay." The question at once recurred on the amendment of Mr. Clark—being a substitute for the Crittenden Resolutions, declaring in effect all Compromise unnecessary. To let that substitute be adopted, was to insure the failure of the Crittenden proposition. Yet these same six Southern Senators though present, refused to vote, and permitted the substitute to be adopted by 25 yeas to 23 nays. The vote of Mr. Douglas, who had been "called out for an instant into the ante-room, and deprived of the opportunity of voting"—as he afterwards stated when vainly asking unanimous consent to have his vote recorded among the nays—would have made it 25 yeas to 24 nays, had he been present and voting, while the votes of the six Southern Senators aforesaid, had they voted, would have defeated the substitute by 25 yeas to 30 nays. Then upon a direct vote on the Crittenden Compromise there would not only have been the 30 in its favor, but the vote of at least one Republican (Baker) in addition, to carry it, and, although that would not have given the necessary two-thirds, yet it would have been a majority handsome enough to have ultimately turned the scales, in both Houses, for a peaceful adjustment of the trouble, and have avoided all the sad consequences which so speedily befell the Nation. But this would not have suited the

Treasonable purposes of the Conspirators. Ten days before this they had probably arranged the Programme in this, as well as other matters. Very certain it is that no time was lost by them and their friends in making the best use for their Cause of this vote, in the doubtful States of Missouri and North Carolina especially. In the St. Louis journals a Washington dispatch, purporting (untruly however) to come from Senators Polk and Green, was published to this effect.

"The Crittenden Resolutions were lost by a vote of 25 to 23. A motion of Mr. Cameron to reconsider was lost; and thus ends all hope of reconciliation. Civil War is now considered inevitable, and late accounts declare that Fort Sumter will be attacked without delay. The Missouri delegation recommend immediate Secession."

This is but a sample of other similar dispatches sent elsewhere. And the following dispatch, signed by Mr. Crittenden, and published in the Raleigh, N. C., Register, to quiet the excitement raised by the telegrams of the Conspirators, serves also to indicate that the friends of Compromise were not disheartened by their defeat:

"WASHINGTON, Jan. 17th, 9 P. M.

"In reply the vote against my resolutions will be reconsidered. Their failure was the result of the refusal of six Southern Senators to vote. There is yet good hope of success.

"JOHN J. CRITTENDEN."

There is instruction also to be drawn from the speeches of Senators Saulsbury, and Johnson of Tennessee, made fully a year afterward (Jan. 29-31, 1862) in the Senate, touching the defeat of the Crittenden Compromise by the Clark substitute at this time. Speaking of the second session of the Thirty-sixth Congress, Mr. Saulsbury said:

"At that session, while vainly striving with others for the adoption of those measures, I remarked in my place in the Senate that—

"If any Gibbon should hereafter write the Decline and Fall of the American Republic, he would date its fall from the rejection by the Senate of the propositions submitted by the Senator from Kentucky.'

"I believed so then, and I believe so now. I never shall forget, Mr. President, how my heart bounded for joy when I thought I saw a ray of hope for their adoption in the fact that a Republican Senator now on this floor came to me and requested that I should inquire of Mr. Toombs, who was on the eve of his departure for Georgia to take a seat in the Convention of that State which was to determine the momentous question whether she should continue a member of the Union or withdraw from it, whether, if the Crittenden propositions were adopted, Georgia would remain in the Union.

"Said Mr. Toombs:

"Tell him frankly for me that if those resolutions are adopted by the vote of any respectable number of Republican Senators, evidencing their good faith to advocate their ratification by their people, Georgia will not Secede. This is the position I assumed before the people of Georgia. I told them that if the party in power gave evidence of an intention to preserve our rights in the Union, we were bound to wait until their people could act.'

"I communicated the answer. The Substitute of the Senator from New Hampshire [Mr. Clark] was subsequently adopted, and from that day to this the darkness and the tempest and the storm have thickened, until thousands like myself, as good and as true Union men as you, Sir, though you may question our motives, have not only despaired but are without hope in the future."

To this speech, Mr. Johnson of Tennessee subsequently replied as follows in the United States Senate (Jan. 31, 1862)

"Sir, it has been said by the distinguished Senator from Delaware [Mr. Saulsbury] that the questions of controversy

might all have been settled by Compromise. He dealt rather extensively in the Party aspect of the case, and seemingly desired to throw the onus of the present condition of affairs entirely on one side. He told us that, if so and so had been done, these questions could have been settled, and that now there would have been no War. He referred particularly to the resolution offered during the last Congress by the Senator from New Hampshire [Mr. Clark], and upon the vote on that he based his argument. * * * The Senator told us that the adoption of the Clark amendment to the Crittenden Resolutions defeated the settlement of the questions of controversy; and that, but for that vote, all could have been peace and prosperity now. We were told that the Clark amendment defeated the Crittenden Compromise, and prevented a settlement of the controversy. On this point I will read a portion of the speech of my worthy and talented friend from California [Mr. Latham]; and when I speak of him thus, I do it in no unmeaning sense I intend that he, not I, shall answer the Senator from Delaware. * * * As I have said, the Senator from Delaware told us that the Clark amendment was the turning point in the whole matter; that from it had flowed Rebellion, Revolution, War, the shooting and imprisonment of people in different States—perhaps he meant to include my own. This was the Pandora's box that has been opened, out of which all the evils that now afflict the Land have flown. * * * My worthy friend from California [Mr. Latham], during the last session of Congress, made one of the best speeches he ever made. * * * In the course of that speech, upon this very point he made use of these remarks:

"Mr. President, being last winter a careful eye-witness of all that occurred, I soon became satisfied that it was a deliberate, wilful design, on the part of some representatives of Southern States, to seize upon the election of Mr. Lincoln merely as an excuse to precipitate this revolution upon the Country. One evidence, to my mind, is the fact that South Carolina never sent her Senators here.'

"Then they certainly were not influenced by the Clark amendment.

"An additional evidence is, that when gentlemen on this floor, by their votes, could have controlled legislation, they refused to cast them for fear that the very Propositions submitted to this body might have an influence in changing the opinions of their constituencies. Why, Sir, when the resolutions submitted by the Senator from New Hampshire [Mr. Clark], were offered as an amendment to the Crittenden Propositions, for the manifest purpose of embarrassing the latter, and the vote taken on the 16th of January, 1861, I ask, what did we see? There were fifty-five Senators at that time upon this floor, in person. The Globe of the second Session, Thirty-Sixth Congress, Part I., page 409, shows that upon the call of the yeas and nays immediately preceding the vote on the substituting of Mr. Clark's amendment, there were fifty-five votes cast. I will read the vote from the Globe:

"YEAS—Messrs. Anthony, Baker, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hale, Harlan, King, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson, and Wilson—25.

"NAYS—Messrs. Bayard, Benjamin, Bigler, Bragg, Bright, Clingman, Crittenden, Douglas, Fitch, Green, Gwin, Hemphill, Hunter, Iverson, Johnson of Arkansas, Johnson of Tennessee, Kennedy, Lane, Latham, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury, Sebastian, Slidell and Wigfall—30.

"The vote being taken immediately after, on the Clark Proposition, was as follows:

"YEAS—Messrs. Anthony, Baker, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hale, Harlan, King, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson and Wilson—25.

"NAYS—Messrs. Bayard, Bigler, Bragg, Bright, Clingman, Crittenden, Fitch, Green, Gwin, Hunter, Johnson of Tennessee, Kennefly, Lane, Latham, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury and Sebastian—23.

"Six senators retained their seats and refused to vote, thus themselves allowing the Clark Proposition to supplant the Crittenden Resolution by a vote of twenty-five to twenty-three. Mr. Benjamin of Louisiana, Mr. Hemphill and Mr. Wigfall of Texas, Mr. Iverson of Georgia, Mr. Johnson of Arkansas, and Mr. Slidell of Louisiana, were in their seats, but refused to cast their votes.'

*"I sat right behind Mr. Benjamin, and I am not sure that my worthy friend was not close by, when he refused to vote, and I said to him, 'Mr. Benjamin, why do you not vote? Why not save this Proposition, and see if we cannot bring the Country to it?' He gave me rather an abrupt answer, and said he would control his own action without consulting me or anybody else. Said I: 'Vote, and show yourself an honest man.' As soon as the vote was taken, he and others telegraphed South, 'We cannot get any Compromise.' Here were six Southern men refusing to vote, when the amendment would have been rejected by four majority if they had voted. Who, then, has brought these evils on the Country? Was it Mr. Clark? He was acting out his own policy; but with the help we had from the other side of the chamber, if all those on this side had been true to the Constitution and faithful to their constituents, and had acted with fidelity to the Country, the amendment of the Senator from New Hampshire could have been voted down, the defeat of which the Senator from Delaware says would have saved the Country. Whose fault was it? Who is responsible for it? * * * Who did it? SOUTHERN TRAITORS, as was said in the speech of the Senator from California. They did it. They wanted no Compromise. They accomplished their object by withholding their votes; and hence the Country has been involved in the*

present difficulty. Let me read another extract from this speech of the Senator from California

"I recollect full well the joy that pervaded the faces of some of those gentlemen at the result, and the sorrow manifested by the venerable Senator from Kentucky [Mr. Crittenden]. The record shows that Mr. Pugh, from Ohio, despairing of any Compromise between the extremes of ultra Republicanism and Disunionists, working manifestly for the same end, moved, immediately after the vote was announced, to lay the whole subject on the table. If you will turn to page 443, same volume, you will find, when, at a late period, Mr. Cameron, from Pennsylvania, moved to reconsider the vote, appeals having been made to sustain those who were struggling to preserve the Peace of the Country, that the vote was reconsidered; and when, at last, the Crittenden Propositions were submitted on the 2d day of March, these Southern States having 'nearly all Seceded, they were then lost but by one vote. Here is the vote:

"YEAS—Messrs. Bayard, Bigler, Bright, Crittenden, Douglas, Gwin, Hunter, Johnson of Tennessee, Kennedy, Lane, Latham, Mason, Nicholson, Polk, Pugh, Rice, Sebastian, Thomson and Wigfall—19.

"NAYS—Messrs. Anthony, Bingham, Chandler, Clark, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Harlan, King, Morrill, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson and Wilson—20.

"If these Seceding Southern senators had remained, there would have passed, by a large vote (as it did without them), an amendment, by a two-third vote, forbidding Congress ever interfering with Slavery in the States. The Crittenden Proposition would have been indorsed by a majority vote, the subject finally going before the People, who have never yet, after consideration, refused Justice, for any length of time, to any portion of the Country.

"I believe more, Mr. President, that these gentlemen were acting in pursuance of a settled and fixed plan to break up

and destroy this Government.'

"When we had it in our power to vote down the amendment of the Senator from New Hampshire, and adopt the Crittenden Resolutions, certain Southern Senators prevented it; and yet, even at a late day of the session, after they had Seceded, the Crittenden Proposition was only lost by one vote. If Rebellion and bloodshed and murder have followed, to whose skirts does the responsibility attach?

"What else was done at the very same session? The House of Representatives passed, and sent to this body, a Proposition to amend the Constitution of the United States, so as to prohibit Congress from ever hereafter interfering with the Institution of Slavery in the States, making that restriction a part of the Organic law of the Land. That Constitutional Amendment came here after the Senators from seven States had Seceded; and yet it was passed by a two-third vote in the Senate. Have you ever heard of any one of the States which had then Seceded, or which has since Seceded, taking up that Amendment to the Constitution, and saying they would ratify it, and make it a part of that instrument? No. Does not the whole history of this Rebellion tell you that it was Revolution that the Leaders wanted, that they started for, that they intended to have? The facts to which I have referred show how the Crittenden Proposition might have been carried; and when the Senators from the Slave States were reduced to one-fourth of the members of this body, the two Houses passed a Proposition to Amend the Constitution, so as to guarantee to the States perfect security in regard to the Institution of Slavery in all future time, and prohibiting Congress from legislating on the subject.

"But what more was done? After Southern Senators had treacherously abandoned the Constitution and deserted their posts here, Congress passed Bills for the Organization of three new Territories: Dakota, Nevada, and Colorado; and in the sixth section of each of those Bills, after conferring, affirmatively, power on the Territorial Legislature, it went on

to exclude certain powers by using a negative form of expression; and it provided, among other things, that the Legislature should have no power to legislate so as to impair the right to private property; that it should lay no tax discriminating against one description of Property in favor of another; leaving the power on all these questions, not in the Territorial Legislature, but in the People when they should come to form a State Constitution.

"Now, I ask, taking the Amendment to the Constitution, and taking the three Territorial Bills, embracing every square inch of territory in the possession of the United States, how much of the Slavery question was left? What better Compromise could have been made? Still we are told that matters might have been Compromised, and that if we had agreed to Compromise, bloody Rebellion would not now be abroad in the Land. Sir, Southern Senators are responsible for it. They stood here with power to accomplish the result, and yet treacherously, and, I may say, tauntingly they left this chamber, and announced that they had dissolved their connection with the Government. Then, when we were left in the hands of those whom we had been taught to believe would encroach upon our Rights, they gave us, in the Constitutional Amendment and in the three Territorial Bills, all that had ever been asked; and yet gentlemen talked Compromise!

"Why was not this taken and accepted? No; it was not Compromise that the Leaders wanted; they wanted Power; they wanted to Destroy this Government, so that they might have place and emolument for themselves. They had lost confidence in the intelligence and virtue and integrity of the People, and their capacity to govern themselves; and they intended to separate and form a government, the chief corner-stone of which should be Slavery, disfranchising the great mass of the People, of which we have seen constant evidence, and merging the Powers of Government in the hands of the Few. I know what I say. I know their feelings and their sentiments. I served in the Senate here with them. I

*know they were a Close Corporation, that had no more confidence in or respect for the People than has the Dey of Algiers. I fought that Close Corporation here. I knew that they were no friends of the People. I knew that Slidell and Mason and Benjamin and Iverson and Toombs were the enemies of Free Government, and I know so now. I commenced the war upon them before a State Seceded; and I intend to keep on fighting this great battle before the Country, for the perpetuity of Free Government. They seek to overthrow it, and to establish a Despotism in its place. That is the great battle which is upon our hands. * * * Now, the Senator from Delaware tells us that if that (Crittenden) Compromise had been made, all these consequences would have been avoided. It is a mere pretense; it is false. Their object was to overturn the Government. If they could not get the Control of this Government, they were willing to divide the Country and govern part of it."]*

The Clark substitute was then agreed to, by 25 (Republican) yeas to 23 Democratic and Conservative (Bell-Everett) nays—6 Pro-Slavery Senators not voting, although present; and then, without division, the Crittenden Resolutions were tabled—Mr. Cameron, however, entering a motion to reconsider. Subsequently the action of the Senate, both on the Resolutions and Substitute, was reconsidered, and March 2d the matter came up again, as will hereafter appear.

Two days prior to this action in the Senate, Mr. Corwin, Chairman of the Select Committee of Thirty-three, reported to the House (January 14th), from a majority of that Committee, the following Joint Resolution:

"Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That all attempts on the parts of the Legislatures of any of the States to obstruct or hinder the recovery and surrender of Fugitives from Service or Labor, are in derogation of the Constitution of the United States, inconsistent with the comity and good neighborhood that should prevail among the several States, and dangerous to the Peace of the Union.

"Resolved, That the several States be respectfully requested to cause their Statutes to be revised, with a view to ascertain if any of them are in conflict

with or tend to embarrass or hinder the execution of the Laws of the United States, made in pursuance of the second section of the Fourth Article of the Constitution of the United States for the delivery up of Persons held to Labor by the laws of any State and escaping therefrom; and the Senate and House of Representatives earnestly request that all enactments having such tendency be forthwith repealed, as required by a just sense of Constitutional obligations, and by a due regard for the Peace of the Republic; and the President of the United States is requested to communicate these resolutions to the Governors of the several States, with a request that they will lay the same before the Legislatures thereof respectively.

"Resolved, That we recognize Slavery as now existing in fifteen of the United States by the usages and laws of those States; and we recognize no authority, legally or otherwise, outside of a State where it so exists, to interfere with Slaves or Slavery in such States, in disregard of the Rights of their owners or the Peace of society.

"Resolved, That we recognize the justice and propriety of a faithful execution of the Constitution, and laws made in pursuance thereof, on the subject of Fugitive Slaves, or Fugitives from Service or Labor, and discountenance all mobs or hindrances to the execution of such laws, and that citizens of each State shall be entitled to all the privileges and immunities of citizens in the several States.

"Resolved, That we recognize no such conflicting elements in its composition, or sufficient cause from any source, for a dissolution of this Government; that we were not sent here to destroy, but to sustain and harmonize the Institutions of the Country, and to see that equal justice is done to all parts of the same; and finally, to perpetuate its existence on terms of equality and justice to all the States.

"Resolved, That a faithful observance, on the part of all the States, of all their Constitutional obligations to each other and to the Federal Government, is essential to the Peace of the Country.

"Resolved, That it is the duty of the Federal Government to enforce the Federal Laws, protect the Federal property, and preserve the Union of these States.

"Resolved, That each State be requested to revise its Statutes, and, if necessary, so to amend the same as to secure, without Legislation by Congress, to citizens of other States traveling therein, the same protection

as citizens of such States enjoy; and also to protect the citizens of other States traveling or sojourning therein against popular violence or illegal summary punishment, without trial in due form of law, for imputed crimes.

"Resolved, That each State be also respectfully requested to enact such laws as will prevent and punish any attempt whatever in such State to recognize or set on foot the lawless invasion of any other State or Territory.

"Resolved, That the President be requested to transmit copies of the foregoing resolutions to the Governors of the several States, with a request that they be communicated to their respective Legislatures."

This Joint Resolution, with amendments proposed to the same, came up in the House for action, on the 27th of February, 1861—the same day upon which the Peace Congress or Conference concluded its labors at Washington.

The Proposition of Mr. Burch, of California, was the first acted upon. It was to amend the Select Committee's resolutions, as above given, by adding to them another resolution at the end thereof, as follows:

"Resolved, etc., That it be, and is hereby, recommended to the several States of the Union that they, through their respective Legislatures, request the Congress of the United States to call a Convention of all the States, in accordance with Article Fifth of the Constitution, for the purpose of amending said Constitution in such manner and with regard to such subjects as will more adequately respond to the wants, and afford more sufficient Guarantees to the diversified and growing Interests of the Government and of the People composing the same."

This (Burch) amendment, however, was defeated by 14 yeas to 109 nays.

A Proposition of Mr. Kellogg, of Illinois, came up next for action. It was a motion to strike out all after the first word "That" in the Crittenden Proposition—which had been offered by Mr. Clemens as a substitute for the Committee Resolutions—and insert the following:

"The following articles be, and are hereby, proposed and submitted as Amendments to the Constitution of the United States, which shall be valid, to all intents and purposes as part of said Constitution, when ratified by Conventions of three-fourths of the several States.

"Article XIII. That in all the territory now held by the United States situate north of latitude 36 30' Involuntary Servitude, except in the

punishment for crime, is prohibited while such territory shall remain under a Territorial government; that in all the territory now held south of said line, neither Congress nor any Territorial Legislature shall hinder or prevent the emigration to said territory of Persons; held to Service from any State of this Union, when that relation exists by virtue of any law or usage of such State, while it shall remain in a Territorial condition; and when any Territory north or south of said line, within such boundaries as Congress may prescribe, shall contain the population requisite for a member of Congress, according to the then Federal ratio of representation of the People of the United States, it may, if its form of government be Republican, be admitted into the Union on an equal footing with the original States, with or without the relation of Persons held to Service and Labor, as the Constitution of such new State may provide.

"Article XIV. That nothing in the Constitution of the United States, or any amendment thereto, shall be so construed as to authorize any Department of the Government to in any manner interfere with the relation of Persons held to Service in any State where that relation exists, nor in any manner to establish or sustain that relation in any State where it is prohibited by the Laws or Constitution of such State. And that this Article shall not be altered or amended without the consent of every State in the Union.

"Article XV. The third paragraph of the second section of the Fourth Article of the Constitution shall be taken and construed to authorize and empower Congress to pass laws necessary to secure the return of Persons held to Service or Labor under the laws of any State, who may have escaped therefrom, to the party to whom such Service or Labor may be due.

"Article XVI. The migration or importation of Persons held to Service or Involuntary Servitude, into any State, Territory, or place within the United States, from any place or country beyond the limits of the United States or Territories thereof, is forever prohibited.

"Article XVII. No territory beyond the present limits of the United States and the Territories thereof, shall be annexed to or be acquired by the United States, unless by treaty, which treaty shall be ratified by a vote of two-thirds of the Senate."

The Kellogg Proposition was defeated by 33 yeas to 158 nays.

The Clemens Substitute was next voted on. This embraced the whole of the Crittenden Compromise Proposition, as amended in the Senate by inserting the provision as to all territory "hereafter acquired," with the addition of another proposed Article of Amendment to the Constitution, as follows:

"Article VII. Section I. The elective franchise and the Right to hold office, whether Federal, State, Territorial, or Municipal, shall not be exercised by Persons who are, in whole or in part, of the African Race.

"Section II. The United States shall have power to acquire from time to time districts of country in Africa and South America, for the colonization, at expense of the Federal Treasury, of such Free Negroes and Mulattoes as the several States may wish to have removed from their limits, and from the District of Columbia, and such other places as may be under the jurisdiction of Congress."

The Clemens Substitute (or Crittenden Measure, with the addition of said proposed Article VII.), was defeated by 80 yeas to 113 nays, and then the Joint Resolution of the Select Committee as heretofore given—after a vain attempt to table it—was passed by 136 yeas to 53 nays.

Immediately after this action, a Joint Resolution to amend the Constitution of the United States, which had also been previously reported by the Select Committee of Thirty-three, came before the House, as follows:

"Be it Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, (two-thirds of both Houses concurring), That the following Article be proposed to the Legislatures of the several States as an Amendment to the Constitution of the United States, which, when ratified by three-fourths of said Legislatures, shall be valid, to all intents and purposes, as a part of the said Constitution, namely:

"Article XII. No amendment of this Constitution having for its object any interference within the States with the relation between their citizens and those described in Section II. of the First Article of the Constitution as 'all other persons,' shall originate with any State that does not recognize that relation within its own limits, or shall be valid without the assent of every one of the States composing the Union."

Mr. Corwin submitted an Amendment striking out all the words after "namely;" and inserting the following:

"Article XII. No amendment shall be made to the Constitution which will authorize or give to Congress the power to abolish or interfere, within any State, with the Domestic Institutions thereof, including that of Persons held to Labor or Service by the laws of said State."

Amid scenes of great disorder, the Corwin Amendment was adopted by 120 yeas to 61 nays, and then the Joint Resolution as amended, was defeated (two-thirds not voting in the affirmative) by 123 yeas to 71 nays. On the following day (February 28th), amid still greater confusion and disorder, which the Speaker, despite frequent efforts, was unable to quell, that vote was reconsidered, and the Joint Resolution passed by 133 yeas to 65 nays—a result which, when announced was received with "loud and prolonged applause, both on the floor, and in the galleries."

On the 2d of March, the House Joint Resolution just given, proposing an Amendment to the Constitution, prohibiting Congress from touching Slavery within any State where it exists, came up in the Senate for action.

Mr. Pugh moved to substitute for it the Crittenden Proposition.

Mr. Doolittle moved to amend the proposed substitute (the Crittenden Proposition), by the insertion of the following, as an additional Article:

"Under this Constitution, as originally adopted, and as it now exists, no State has power to withdraw from the jurisdiction of the United States; but this Constitution, and all laws passed in pursuance of its delegated powers, are the Supreme Law of the Land, anything contained in any Constitution, Ordinance, or Act of any State, to the contrary notwithstanding."

Mr. Doolittle's amendment was lost by 18 yeas to 28 nays.

Mr. Pugh's substitute (the Crittenden Proposition), was lost by 14 yeas to 25 nays.

Mr. Bingham moved to amend the House Joint Resolution, by striking out all after the word "resolved," and inserting the words of the Clark Proposition as heretofore given, but the amendment was rejected by 13 yeas to 25 nays.

Mr. Grimes moved to strike out all after the word "whereas" in the preamble of the House Joint Resolution, and insert the following:

"The Legislatures of the States of Kentucky, New Jersey, and Illinois have applied to Congress to call a Convention for proposing Amendments to the Constitution of the United States: Therefore,

"Be it Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That the Legislatures of the other States be invited to take the subject of such a Convention into consideration, and to express their will on that subject to Congress, in pursuance of the Fifth Article of the Constitution."

This amendment was also rejected, by 14 yeas to 25 nays.

Mr. Johnson, of Arkansas, offered, as an amendment to the House Joint Resolution, the propositions submitted by the Peace Congress or Conference, but the amendment was disagreed to by 3 yeas to 34 nays.

The House Joint Resolution was then adopted by 24 yeas to 12 nays.

Subsequently the Crittenden Proposition came up again as a separate order, with the Clark substitute to it (once carried, but reconsidered), pending. The Clark substitute was then rejected by 14 yeas to 22 nays.

Mr. Crittenden then offered the Propositions of the Peace Congress, as a substitute for his own—and they were rejected by 7 yeas to 28 nays.

The Crittenden Proposition itself was then rejected, by 19 yeas to 20 nays.



JEFFERSON DAVIS

CHAPTER IX.

SLAVERY'S SETTING, AND FREEDOM'S DAWN.

On that long last night of the 36th Congress—and of the Democratic Administration—to the proceedings of which reference was made in the preceding Chapter, several notable speeches were made, but there was substantially nothing done, in the line of Compromise. The only thing that had been accomplished was the passage, as we have seen, by two-thirds majority in both Houses, of the Joint Resolution proposing a Constitutional Amendment prohibiting Congress from meddling with Slavery in Slave States. There was no Concession nor Compromise in this, because Republicans, as well as Democrats, had always held that Congress had no such power. It is true that the Pro-slavery men had charged the Republicans with ultimate designs, through Congress, upon Slavery in the Slave States; and Mr. Crittenden pleaded for its passage as exhibiting a spirit, on their part, of reconciliation; that was all.

In his speech that night—that memorable and anxious night preceding the Inauguration of President Lincoln—the venerable Mr. Crittenden, speaking before the Resolution was agreed to, well sketched the situation when he said in the Senate: "It is an admitted fact that our Union, to some extent, has already been dismembered; and that further dismemberment is impending and threatened. It is a fact that the Country is in danger. This is admitted on all hands. It is our duty, if we can, to provide a remedy for this. We are, under the Constitution and by the election of the People, the great guardians, as well as the administrators of this Government. To our wisdom they have trusted this great chart. Remedies have been proposed; resolutions have been offered, proposing for adoption measures which it was thought would satisfy the Country, and preserve as much of the Union as remained to us at least, if they were not enough at once to recall the

Seceding States to the Union. We have passed none of these measures. The differences of opinion among Senators have been such that we have not been able to concur in any of the measures which have been proposed, even by bare majorities, much less by that two-thirds majority which is necessary to carry into effect some of the pacific measures which have been proposed. We are about to adjourn. We have done nothing. Even the Senate of the United States, beholding this great ruin around them, beholding Dismemberment and Revolution going on, and Civil War threatened as the result, have been able to do nothing; we have absolutely done nothing. Sir, is not this a remarkable spectacle? * * * How does it happen that not even a bare majority here, when the Country trusted to our hands is going to ruin, have been competent to devise any measure of public safety? How does it happen that we have not had unanimity enough to agree on any measure of that kind? Can we account for it to ourselves, gentlemen? We see the danger; we acknowledge our duty, and yet, with all this before us, we are acknowledging before the world that we can do nothing; acknowledging before the world, or appearing to all the world, as men who do nothing! Sir, this will make a strange record in the history of Governments and in the history of the world. Some are for Coercion; yet no army has been raised, no navy has been equipped. Some are for pacification; yet they have been able to do nothing; the dissent of their colleagues prevents them; and here we are in the midst of a falling Country, in the midst of a falling State, presenting to the eyes of the World the saddest spectacle it has ever seen. Cato is represented by Addison as a worthy spectacle, 'a great man falling with a falling State,' but he fell struggling. We fall with the ignominy on our heads of doing nothing, like the man who stands by and sees his house in flames, and says to himself, 'perhaps the fire will stop before it consumes all.'"

One of the strong pleas made in the Senate that night, was by Mr. Douglas, when he said: "The great issue with the South has been that they would not submit to the Wilmot proviso. The Republican Party affirmed the doctrine that Congress must and could prohibit Slavery in the Territories. The issue for ten years was between Non-intervention on the part of Congress, and prohibition by Congress. Up to two years ago, neither the Senator (Mason) from Virginia, nor any other Southern Senator, desired affirmative legislation to protect Slavery. Even up to this day, not one of them has proposed affirmative legislation to protect it. Whenever the

question has come up, they have decided that affirmative legislation to protect it was unnecessary; and hence, all that the South required on the Territorial question was 'hands off; Slavery shall not be prohibited by Act of Congress.' Now, what do we find? This very session, in view of the perils which surround the Country, the Republican Party, in both Houses of Congress, by a unanimous vote, have backed down from their platform and abandoned the doctrine of Congressional prohibition. This very week three Territorial Bills have been passed through both Houses of Congress without the Wilmot proviso, and no man proposed to enact it; not even one man on the other side of the Chamber would rise and propose the Wilmot proviso."

"In organizing three Territories," continued he, "two of them South of the very line where they imposed the Wilmot proviso twelve years ago, no one on the other side of the Chamber proposed it. They have abandoned the doctrine of the President-elect upon that point. He said, and it is on record, that he had voted for the Wilmot proviso forty-two times, and would do it forty-two times more if he ever had a chance. Not one of his followers this year voted for it once. The Senator from New York (Mr. Seward) the embodiment of the Party, sat quietly and did not propose it. What more? Last year we were told that the Slave Code of New Mexico was to be repealed. I denounced the attempted interference. The House of Representatives passed the Bill, but the Bill remains on your table; no one Republican member has proposed to take it up and pass it. Practically, therefore, the Chicago platform is abandoned; the Philadelphia platform is abandoned; the whole doctrine for which the Republican Party contended, as to the Territories, is abandoned, surrendered, given up. Non-intervention is substituted in its place. Then, when we find that, on the Territorial question, the Republican Party, by a unanimous vote, have surrendered to the South all they ask, the Territorial question ought to be considered pretty well settled. The only question left was that of the States; and after having abandoned their aggressive policy as to the Territories, a portion of them are willing to unite with us, and deprive themselves of the power to do it in the States."

"I submit," said he, "that these two great facts—these startling, tremendous facts—that they have abandoned their aggressive policy in the Territories, and are willing to give guarantees in the States, ought to be accepted as an evidence of a salutary change in Public Opinion at the North. All I would ask now of the Republican Party is, that they would insert in the

Constitution the same principle that they have carried out practically in the Territorial Bills for Colorado, Dakota, and Nevada, by depriving Congress of the power hereafter to do what there cannot be a man of them found willing to do this year; but we cannot ask them to back down too much. I think they have done quite as much within one year, within three months after they have elected a President, as could be expected."

That Douglas and his followers were also patriotically willing to sacrifice a favorite theory in the face of a National peril, was brought out, at the same time, by Mr. Baker, when he said to Mr. Douglas: "I desire to suggest (and being a little of a Popular Sovereignty man, it comes gracefully from me) that others of us have backed down too, from the idea that Congress has not the power to prohibit Slavery in the Territories; and we are proposing some of us in the Crittenden proposition, and some in the Amendment now before the Senate—to prohibit Slavery by the Constitution itself, in the Territories;"—and by Mr. Douglas, when he replied: "I think as circumstances change, the action of public men ought to change in a corresponding degree. * * * I am willing to depart from my cherished theory, by an Amendment to the Constitution by which we shall settle this question on the principles prescribed in the Resolutions of the Senator from Kentucky."

In the House, Mr. Logan, had, on the 5th of February, 1861, said:

"Men, Sir, North and South, who love themselves far better than their Country, have brought us to this unhappy condition. * * * Let me say to gentlemen, that I will go as far as any man in the performance of a Constitutional duty to put down Rebellion, to suppress Insurrection, and to enforce the laws; but when we undertake the performance of these duties, let us act in such a manner as will be best calculated to preserve and not destroy the Government, and keep ourselves within the bounds of the Constitution. * * * Sir, I have always denied, and do yet deny, the Right of Secession. There is no warrant for it in the Constitution. It is wrong, it is unlawful, unconstitutional, and should be called by the right name, Revolution. No good, Sir, can result from it, but much mischief may. It is no remedy for any grievance.

"I hold that all grievances can be much easier redressed inside the Union than out of it. * * * If a collision must ensue between this Government and any of our own people, let it come when every other means of settlement

has been tried and exhausted; and not then, except when the Government shall be compelled to repel assaults for the protection of its property, flag, and the honor of the Country. * * *

"I have been taught to believe that the preservation of this glorious Union, with its broad flag waving over us, as the shield for our protection on land and on sea, is paramount to all the Parties and platforms that ever have existed, or ever can exist. I would, to-day, if I had the power, sink my own Party, and every other one, with all their platforms, into the vortex of ruin, without heaving a sigh or shedding a tear, to save the Union, or even stop the Revolution where it is."

After enumerating the various propositions for adjustment, then pending in the House, to wit: that of Senator Crittenden; that of Senator Douglas; that of the Committee of Thirty-three; that of the Border States; and those of Representatives McClernand, Kellogg, and Morris, of Illinois, Mr. Logan took occasion to declare that "in a crisis like this" he was "willing to give his support to any of them," but his preference was for that of Mr. Morris.

Said he: "He (Morris) proposes that neither Congress nor a Territorial Legislature shall interfere with Slavery in the Territories at all; but leaves the people, when they come to form their State Constitution, to determine the question for themselves. I think this is the best proposition, because it is a fair concession on all sides. The Republicans give up their Congressional intervention; those who are styled 'Squatter Sovereigns' give up their Territorial legislative policy; and the Southern (Slave) protectionists give up their protection-intervention policy; thus every Party yields something. With this proposition as an Article in the Constitution, it would satisfy every conservative man in this Union, both North and South, I do seriously and honestly believe.

"Having indicated my preference of these propositions, and my reasons for that preference, I have said all I desire to say on the point, except to repeat again, that I will willingly vote for any of them, or make any other sacrifice necessary to save the Union. It makes no kind of difference to me what the sacrifice; if it will save my Country, I am ready to make it." * * *

"There are some in this Hall," said he, "that are almost ready to strike the Party fetters from their limbs, and assist in measures of Peace. Halt not; take the step; be independent and free at once! Let us overcome Party passion and error; allow virtue and good sense in this fateful hour to be

triumphant; let us invoke Deity to interpose and prepare the way for our Country's escape from the perils by which we are now surrounded; and in view of our present greatness and future prospects, our magnificent and growing cities, our many institutions of learning, our once happy and prosperous People, our fruitful fields and golden forests, our enjoyment of all civil and religious blessings—let Parties die that these be preserved. Such noble acts of patriotism and concession, on your part, would cause posterity to render them illustrious, and pause to contemplate the magnitude of the events with which they were connected. * * * In the name of the patriotic sires who breasted the storms and vicissitudes of the Revolution; by all the kindred ties of this Country; in the name of the many battles fought for your Freedom; in behalf of the young and the old; in behalf of the Arts and Sciences, Civilization, Peace, Order, Christianity, and Humanity, I appeal to you to strike from your limbs the chains that bind them! Come forth from that loathsome prison, Party Caucus; and in this hour—the most gloomy and disheartening to the lovers of Free Institutions that has ever existed during our Country's history—arouse the drooping spirits of our countrymen, by putting forth your good strong arms to assist in steadying the rocking pillars of the mightiest Republic that has ever had an existence."

"Mr. Speaker," continued he, "a word or two more, and I am done. Revolution stalks over the Land. States have rebelled against the constituted authorities of the Union, and now stand, sword in hand, prepared to vindicate their new nationality. Others are preparing to take a similar position. Rapidly transpiring events are crowding on us with fearful velocity. Soon, circumstances may force us into an unnatural strife, in which the hand of brother shall be uplifted against brother, and father against son. My God, what a spectacle! If all the evils and calamities that have ever happened since the World began, could be gathered in one great Catastrophe, its horrors could not eclipse, in their frightful proportions, the Drama that impends over us. Whether this black cloud that drapes in mourning the whole political heavens, shall break forth in all the frightful intensity of War, and make Christendom weep at the terrible atrocities that will be enacted—or, whether it will disappear, and the sky resume its wonted serenity, and the whole Earth be irradiated by the genial sunshine of Peace once more—are the alternatives which this Congress, in my judgment, has the power to select between."

In this same broad spirit, Mr. Seward, in his great speech of January 12th, had said: "Republicanism is subordinate to Union, as everything else is and ought to be—Republicanism, Democracy, every other political name and thing; all are subordinate—and they ought to disappear in the presence of the great question of Union." In another part of it, he had even more emphatically said: "I therefore * * * avow my adherence to the Union in its integrity and with all its parts, with my friends, with my Party, with my State, with my Country, or without either, as they may determine, in every event, whether of Peace or War, with every consequence of honor or dishonor, of life or death. Although I lament the occasion, I hail with cheerfulness the duty of lifting up my voice among distracted debates, for my whole Country and its inestimable Union." And as showing still more clearly the kindly and conciliatory attitude of the great Republican leader, when speaking of those others who seemed to be about to invoke revolutionary action to oppose—and overthrow the Government—he said: "In such a case I can afford to meet prejudice with Conciliation, exaction with Concession which surrenders no principle, and violence with the right hand of Peace."

In the House of Representatives, too, the voice of patriotism was often heard through the loud clamor and disorder of that most disorderly and Treason-uttering session—was heard from the lips of statesmen, who rose high above Party, in their devotion to the Union. The calm, dispassionate recital by Henry Winter Davis (of Maryland), of the successive steps by which the Southern leaders had themselves created that very "North" of whose antagonism they complained, was one of the best of these, in some respects. He was one of the great Select Committee of Thirty-three, and it was (February 5th) after the Resolutions, heretofore quoted, had been reported by it, that he condensed the history of the situation into a nutshell, as follows:

"We are at the end of the insane revel of partisan license which, for thirty years, has, in the United States, worn the mask of Government. We are about to close the masquerade by the dance of death. The Nations of the World look anxiously to see if the People, ere they tread that measure, will come to themselves.

* * * * *

"Southern politicians have created a North. Let us trace the process and draw the moral.

"The laws of 1850 calmed and closed the Slavery agitation; and President Pierce, elected by the almost unanimous voice of the States, did not mention Slavery in his first two Messages. In 1854, the repeal of the Missouri Compromise, at the instance of the South, reopened the agitation.

"Northern men, deserted by Southern Whigs, were left to unite for self-defense.

"The invasion of Kansas, in 1855 and 1856, from Missouri; the making a Legislature and laws for that Territory, by the invaders; still further united the Northern people. The election of 1856 measured its extent.

"The election of Mr. Buchanan and his opening policy in Kansas, soothed the irritation, and was rapidly demoralizing the new Party, when the Pro-Slavery Party in Kansas perpetrated, and the President and the South accepted, the Lecompton fraud, and again united the North more resolutely in resistance to that invasion of the rights of self-government.

"The South for the first time failed to dictate terms; and the People vindicated by their votes the refusal of the Constitution.

"Ere this result was attained, the opinions of certain Judges of the Supreme Court scattered doubts over the law of Slavery in the Territories; the South, while repudiating other decisions, instantly made these opinions the criterion of faithfulness to the Constitution; while the North was agitated by this new sanction of the extremest pretensions of their opponents.

"The South did not rest satisfied with their Judicial triumph.

"Immediately the claim was pressed for protection by Congress to Slavery, declared by the Supreme Court, they said, to exist in all the Territories.

"This completed the union of the Free States in one great defensive league; and the result was registered in November. That result is now itself become the starting point of new agitation—the demand of new rights and new guarantees. The claim to access to the Territories was followed by the claim to Congressional protection, and that is now followed by the hitherto unheard of claim to a Constitutional Amendment establishing Slavery, not merely in territory now held, but in all hereafter held from the line of 36 30'

to Cape Horn, while the debate foreshadows in the distance the claim of the right of transit and the placing of property in Slaves in all respects on the footing of other property—the topics of future agitation. How long the prohibition of the importation of Slaves will be exempted from the doctrine of equality, it needs no prophet to tell.

"In the face of this recital, let the imputation of autocratic and tyrannical aspirations cease to be cast on the people of the Free States; let the Southern people dismiss their fears, return to their friendly confidence in their fellow-citizens of the North, and accept, as pledges of returning Peace, the salutary amendments of the law and the Constitution offered as the first fruits of Reconciliation."

But calmness, kindness, and courtesy were alike thrown away in both Houses upon the implacable Southern leaders. As the last day of that memorable session, which closed in the failure of all peaceful measures to restore the Union, slowly dawned—with but a few hours lacking of the time when Mr. Lincoln would be inaugurated President of the United States—Mr. Wigfall thought proper, in the United States Senate, to sneer at him as "an ex-rail-splitter, an ex-grocery keeper, an ex-flatboat captain, and an ex-Abolition lecturer"—and proceeded to scold and rant at the North with furious volubility.

"Then, briefly," said he, "a Party has come into power that represents the antagonism to my own Section of the Country. It represents two million men who hate us, and who, by their votes for such a man as they have elected, have committed an overt act of hostility. That they have done."

"You have won the Presidency," said he, to the Republicans, "and you are now in the situation of the man who had won the elephant at a raffle. You do not know what to do with the beast now that you have it; and one-half of you to-day would give your right arms if you had been defeated. But you succeeded, and you have to deal with facts. Our objection to living in this Union, and therefore the difficulty of reconstructing it, is not your Personal Liberty bills, not the Territorial question, but that you utterly and wholly misapprehend the Form of Government."

"You deny," continued he, "the Sovereignty of the States; you deny the right of self-government in the People; you insist upon Negro Equality; your people interfere impertinently with our Institutions and attempt to subvert them; you publish newspapers; you deliver lectures; you print

pamphlets, and you send them among us, first, to excite our Slaves to insurrection against their masters, and next, to array one class of citizens against the other; and I say to you, that we cannot live in peace, either in the Union or out of it, until you have abolished your Abolition societies; not, as I have been misquoted, abolish or destroy your school-houses; but until you have ceased in your schoolhouses teaching your children to hate us; until you have ceased to convert your pulpits into hustings; until you content yourselves with preaching Christ, and Him crucified, and not delivering political harangues on the Sabbath; until you have ceased inciting your own citizens to make raids and commit robberies; until you have done these things we cannot live in the same Union with you. Until you do these things, we cannot live out of the Union at Peace."

Such were the words—the spiteful, bitter words—with which this chosen spokesman of the South saluted the cold and cloudy dawn of that day which was to see the sceptre depart from the hands of the Slave Power forever.

A few hours later, under the shadow of the main Pastern Portico of the Capitol at Washington—with the retiring President and Cabinet, the Supreme Court Justices, the Foreign Diplomatic Corps, and hundreds of Senators, Representatives and other distinguished persons filling the great platform on either side and behind them—Abraham Lincoln stood bareheaded before full thirty thousand people, upon whose uplifted faces the unveiled glory of the mild Spring sun now shone—stood reverently before that far greater and mightier Presence termed by himself, "My rightful masters, the American People"—and pleaded in a manly, earnest, and affectionate strain with "such as were dissatisfied," to listen to the "better angels" of their nature.

Temperate, reasonable, kindly, persuasive—it seems strange that Mr. Lincoln's Inaugural Address did not disarm at least the personal resentment of the South toward him, and sufficiently strengthen the Union-loving people there, against the red-hot Secessionists, to put the "brakes" down on Rebellion. Said he:

"Apprehension seems to exist among the people of the Southern States, that by the accession of a Republican Administration, their Property and their Peace and personal security are to be endangered. There has never been any reasonable cause for such apprehension. Indeed, the most ample evidence to the contrary has all the while existed, and been open to their

inspection. It is found in nearly all the published speeches of him who now addresses you. I do but quote from one of those speeches, when I declare that 'I have no purpose, directly or indirectly, to interfere with the Institution of Slavery in the States where it exists.' I believe I have no lawful right to do so; and I have no inclination to do so. Those who nominated and elected me, did so with the full knowledge that I had made this, and many similar declarations, and had never recanted them. * * *

"I now reiterate these sentiments; and in doing so, I only press upon the public attention the most conclusive evidence of which the case is susceptible, that the Property, Peace, and Security of no Section are to be in any wise endangered by the now incoming Administration. I add, too, that all the protection which, consistently with the Constitution and the laws, can be given, will be cheerfully given to all the States, when lawfully demanded, for whatever cause—as cheerfully to one Section as to another.

"I take the official oath to-day with no mental reservations, and with no purpose to construe the Constitution or laws by any hypercritical rules. * * *

"A disruption of the Federal Union, heretofore only menaced, is now formidably attempted. I hold that, in contemplation of Universal Law, and of the Constitution, the Union of these States is perpetual. Perpetuity is implied, if not expressed, in the fundamental law of all National Governments. It is safe to assert that no Government proper ever had a provision in its organic law for its own termination. Continue to execute all the express provisions of our National Constitution, and the Union will endure forever—it being impossible to destroy it, except by some action not provided for in the instrument itself.

"Again, if the United States be not a Government proper, but an Association of States in the nature of a contract merely, can it, as a contract, be peaceably unmade by less than all the parties who made it? One party to a contract may violate it—break it, so to speak; but does it not require all, to lawfully rescind it?

"Descending from these general principles, we find the proposition that, in legal contemplation, the Union is perpetual, confirmed by the history of the Union itself. The Union is much older than the Constitution. It was formed, in fact, by the Articles of Association in 1774. It was matured and continued in the Declaration of Independence in 1776. It was further

matured, and the faith of all the then thirteen States expressly plighted and engaged that it should be perpetual, by the Articles of Confederation, in 1778; and, finally, in 1787, one of the declared objects, for ordaining and establishing the Constitution, was 'to form a more perfect Union.' But, if destruction of the Union by one, or by a part only, of the States, be lawfully possible, the Union is less perfect than before, the Constitution having lost the vital element of perpetuity.

"It follows, from these views, that no State, upon its own mere motion, can lawfully get out of the Union; that Resolves and Ordinances to that effect, are legally void; and that acts of violence within any State or States against the authority of the United States, are insurrectionary or revolutionary, according to circumstances.

"I therefore consider that, in view of the Constitution and the laws, the Union is unbroken, and, to the extent of my ability, I shall take care, as the Constitution itself expressly enjoins upon me, that the laws of the Union shall be faithfully executed in all the States. * * *

"I trust this will not be regarded as a menace, but only as the declared purpose of the Union, that it will Constitutionally defend and maintain itself.

"In doing this, there need be no bloodshed or violence, and there shall be none, unless it is forced upon the National Authority.

"The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government, and to collect the duties and imposts; but, beyond what may be necessary for these objects, there will be no invasion, no using of force against or among the People anywhere.

"The mails, unless repelled, will continue to be furnished in all parts of the Union.

* * * * *

"Is there such perfect identity of interests among the States to compose a new Union, as to produce harmony only, and prevent renewed Secession? Plainly, the central idea of Secession is the essence of anarchy. A majority, held in restraint by Constitutional checks and limitations and always changing easily with deliberate changes of popular opinions and sentiments, is the only true sovereign of a Free People. Whoever rejects it, does, of

necessity, fly to anarchy, or to despotism. Unanimity is impossible; the rule of a minority, as a permanent arrangement, is wholly inadmissible; so that, rejecting the majority principle, anarchy or despotism in some form is all that is left.

* * * * *

"Physically speaking, we cannot separate. We cannot remove our respective Sections from each other, nor build an impassable wall between them. A husband and wife may be divorced, and go out of the presence and beyond the reach of each other; but the different parts of our Country cannot do this. They cannot but remain face to face; and intercourse, either amicable or hostile, must continue between them. Is it possible, then, to make that intercourse more advantageous or more satisfactory after separation than before? Can aliens make treaties, easier than friends can make laws? Can treaties be more faithfully enforced between aliens, than laws can among friends? Suppose you go to War, you cannot fight always; and when, after much loss on both sides, and no gain on either you cease fighting, the identical old questions, as to terms of intercourse, are again upon you.

"This Country, with its Institutions, belongs to the People who inhabit it. Whenever they shall grow weary of the existing Government, they can exercise their Constitutional right of amending it, or their Revolutionary right to dismember or overthrow it. I cannot be ignorant of the fact that many worthy and patriotic citizens are desirous of having the National Constitution amended. While I make no recommendations of Amendments, I fully recognize the rightful authority of the People over the whole subject, to be exercised in either of the modes prescribed in the instrument itself; and I should, under existing circumstances, favor, rather than oppose, a fair opportunity being afforded the People to act upon it. * * *

"The Chief Magistrate derives all his authority from the People, and they have conferred none upon him to fix terms for the separation of the States. The People themselves can do this also, if they choose; but the Executive, as such, has nothing to do with it. His duty is to administer the present Government, as it came to his hands, and to transmit it, unimpaired by him, to his successor.

* * * * *

" * * * While the People retain their virtue and vigilance, no Administration, by any extreme of weakness or folly, can very seriously injure the Government in the short space of four years.

"My countrymen, one and all, think calmly and well upon this whole subject. Nothing valuable can be lost by taking time. If there be an object to hurry any of you, in hot haste, to a step which you would never take deliberately, that object will be frustrated by taking time; but no good object can be frustrated by it. Such of you as are now dissatisfied, still have the old Constitution unimpaired, and, on the sensitive point, the laws of your own framing under it; while the new Administration will have no immediate power, if it would, to change either. If it were admitted that you who are dissatisfied, hold the right side in the dispute, there still is no single good reason for precipitate action. Intelligence, patriotism, Christianity, and a firm reliance on Him who has never yet forsaken this favored Land, are still competent to adjust, in the best way, all our present difficulty.

"In your hands, my dissatisfied fellow-countrymen, and not in mine, is the momentous issue of Civil War. The Government will not assault you. You can have no conflict without being yourselves the aggressors. You have no oath registered in Heaven to destroy the Government, while I shall have the most solemn one to 'preserve, protect, and defend it'.

"I am loath to close. We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break our bonds of affection. The mystic chords of memory, stretching from every battle-field and patriot grave to every living heart and hearthstone, all over this broad Land, will yet swell the chorus of the Union, when again touched, as surely they will be, by the better angels of our nature."

Strange, indeed, must have been the thoughts that crowded through the brain and oppressed the heart of Abraham Lincoln that night—his first at the White House!

The city of Washington swarmed with Rebels and Rebel sympathizers, and all the departments of Government were honey-combed with Treason and shadowed with treachery and espionage. Every step proposed or contemplated by the Government would be known to the so-called Government of the Confederate States almost as soon as thought of. All means, to thwart and delay the carrying out of the Government's purposes,

that the excuses of routine and red-tape admitted of, would be used by the Traitors within the camp, to aid the Traitors without.

No one knew all this, better than Mr. Lincoln. With no Army, no Navy, not even a Revenue cutter left—with forts and arsenals, ammunition and arms in possession of the Rebels, with no money in the National Treasury, and the National credit blasted—the position must, even to his hopeful nature, have seemed at this time desperate. To be sure, despite threats, neither few nor secret, which had been made, that he should not live to be inaugurated, he had passed the first critical point—had taken the inaugural oath—and was now duly installed in the White House. That was something, of course, to be profoundly thankful for. But the matter regarded by him of larger moment—the safety of the Union—how about that?

How that great, and just, and kindly brain, in the dim shadows of that awful first night at the White House, must have searched up and down and along the labyrinths of history and "corridors of time," everywhere in the Past, for any analogy or excuse for the madness of this Secession movement—and searched in vain!

With his grand and abounding faith in God, how Abraham Lincoln must have stormed the very gates of Heaven that night with prayer that he might be the means of securing Peace and Union to his beloved but distracted Country! How his great heart must have been racked with the alternations of hope and foreboding—of trustfulness and doubt! Anxiously he must have looked for the light of the morrow, that he might gather from the Press, the manner in which his Inaugural had been received. Not that he feared the North—but the South; how would the wayward, wilful, passionate South, receive his proffered olive-branch?

Surely, surely,—thus ran his thoughts—when the brave, and gallant, and generous people of that Section came to read his message of Peace and Good-will, they must see the suicidal folly of their course! Surely their hearts must be touched and the mists of prejudice dissolved, so that reason would resume her sway, and Reconciliation follow! A little more time for reflection would yet make all things right. The young men of the South, fired by the Southern leaders' false appeals, must soon return to reason. The prairie fire is terrible while it sweeps along, but it soon burns out. When the young men face the emblem of their Nation's glory—the flag of the land of their birth—then will come the reaction and their false leaders will be

hurled from place and power, and all will again be right. Yea, when it comes to firing on the old, old flag, they will not, cannot, do it! Between the Compromise within their reach, and such Sacrilege as this, they cannot waver long.

So, doubtless, all the long night, whether waking or sleeping, the mind of this true-hearted son of the West, throbbed with the mighty weight of the problem entrusted to him for solution, and the vast responsibilities which he had just assumed toward his fellow-men, his Nation, and his God.

And when, at last, the long lean frame was thrown upon the couch, and "tired Nature's sweet restorer" held him briefly in her arms, the smile of hopefulness on the wan cheek told that, despite all the terrible difficulties of the situation, the sleeper was sustained by a strong and cheerful belief in the Providence of God, the Patriotism of the People, and the efficacy of his Inaugural Peace-offering to the South. But alas, and alas, for the fallibility of human judgment and human hopes! Instead of a message of Peace, the South chose to regard it as a message of Menace;* and it was not received in a much better spirit by some of the Northern papers, which could see no good in it—"no Union spirit in it"—but declared that it breathed the spirit of Sectionalism and mischief, and "is the knell and requiem of the Union, and the death of hope."

["Mr. Lincoln fondly regarded his Inaugural as a resistless proffering of the olive branch to the South; the Conspirators everywhere interpreted it as a challenge to War."—Greeley's Am. Conflict, vol. i., p. 428.]

Bitter indeed must have been President Lincoln's disappointment and sorrow at the reception of his Inaugural. With the heartiest forgiveness, in the noblest spirit of paternal kindness, he had generously held out his arms, as far as they could reach, to clasp to his heart—to the great heart of the Union—the rash children of the South, if they would but let him. It was more with sorrow, than in anger, that he looked upon their contemptuous repulsion of his advances; and his soul still reproachfully yearned toward these his Southern brethren, as did that of a higher than he toward His misguided brethren, when He cried: "O Jerusalem, Jerusalem, thou that killest the prophets, and stonest them which are sent unto thee, how often

would I have gathered thy children together, even as a hen gathereth her chickens under her wings, and ye would not!"

On the day following his Inauguration, President Lincoln sent to the United States Senate the names of those whom he had chosen to constitute his Cabinet, as follows: William H. Seward, of New York, Secretary of State; Salmon P. Chase, of Ohio, Secretary of the Treasury; Simon Cameron, of Pennsylvania, Secretary of War; Gideon Welles, of Connecticut, Secretary of the Navy; Caleb B. Smith, of Indiana, Secretary of the Interior; Edward Bates, of Missouri, Attorney General; and Montgomery Blair, of Maryland, Postmaster General.

On the other hand, the President of the rebellious Confederacy, Jefferson Davis, had partly constituted his Cabinet already, as follows: Robert Toombs, of Georgia, Secretary of State; Charles G. Memminger, of South Carolina, Secretary of the Treasury; Leroy Pope Walker, of Alabama, Secretary of War; to whom he afterwards added: Stephen R. Mallory, of Florida, Secretary of the Navy; and John H. Reagan, of Texas, Postmaster-General.

CHAPTER X.

THE WAR-DRUM "ON TO WASHINGTON".

Scarcely one week had elapsed after the Administration of Mr. Lincoln began, when (March 11th) certain "Commissioners of the Southern Confederacy" (John Forsyth, of Alabama, and Martin J. Crawford, of Georgia), appeared at Washington and served a written request upon the State Department to appoint an early day when they might present to the President of the United States their credentials "from the Government of the Confederate States of America" to the Government of the United States, and open "the objects of the mission with which they are charged."

Secretary Seward, with the President's sanction, declined official intercourse with Messrs. Forsyth and Crawford, in a "Memorandum" (March 15th) reciting their request, etc., in which, after referring to President Lincoln's Inaugural Address—forwarded to them with the "Memorandum" he says: "A simple reference will be sufficient to satisfy those gentlemen that the Secretary of State, guided by the principles therein announced, is prevented altogether from admitting or assuming that the States referred to by them have, in law or in fact, withdrawn from the Federal Union, or that they could do so in the manner described by Messrs. Forsyth and Crawford, or in any other manner than with the consent and concert of the People of the United States, to be given through a National Convention, to be assembled in conformity with the provisions of the Constitution of the United States. Of course, the Secretary of State cannot act upon the assumption, or in any way admit, that the so-called Confederate States constitute a Foreign Power, with whom diplomatic relations ought to be established."

On the 9th of April, Messrs. Forsyth, Crawford and Roman—as "Commissioners of the Southern Confederacy"—addressed to Secretary Seward a reply to the "Memorandum" aforesaid, in which the following passage occurs:

"The undersigned, like the Secretary of State, have no purpose to 'invite or engage in discussion' of the subject on which their two Governments are so irreconcilably at variance. It is this variance that has broken up the old Union, the disintegration of which has only begun.

"It is proper, however, to advise you that it were well to dismiss the hopes you seem to entertain that, by any of the modes indicated, the people of the Confederate States will ever be brought to submit to the authority of the Government of the United States. You are dealing with delusions, too, when you seek to separate our people from our Government, and to characterize the deliberate, Sovereign act of that people as a 'perversion of a temporary and partisan excitement.' If you cherish these dreams, you will be awakened from them, and find them as unreal and unsubstantial as others in which you have recently indulged.

"The undersigned would omit the performance of an obvious duty were they to fail to make known to the Government of the United States that the people of the Confederate States have declared their independence with a full knowledge of all the responsibilities of that act, and with as firm a determination to maintain it by all the means with which nature has endowed them as that which sustained their fathers when they threw off the authority of the British Crown.

"The undersigned clearly understand that you have declined to appoint a day to enable them to lay the objects of the mission with which they are charged, before the President of the United States, because so to do would be to recognize the independence and separate nationality of the Confederate States. This is the vein of thought that pervades the memorandum before us.

"The truth of history requires that it should distinctly appear upon the record, that the undersigned did not ask the Government of the United States to recognize the independence of the Confederate States. They only asked audience to adjust, in a spirit of amity and peace, the new relations springing from a manifest and accomplished revolution in the Government of the late Federal Union.

"Your refusal to entertain these overtures for a peaceful solution, the active naval and military preparation of this Government, and a formal notice to the Commanding General of the Confederate forces in the harbor of Charleston that the President intends to provision Fort Sumter by forcible

means, if necessary, are viewed by the undersigned, and can only be received by the World, as a Declaration of War against the Confederate States; for the President of the United States knows that Fort Sumter cannot be provisioned without the effusion of blood.

"The undersigned, in behalf of their Government and people, accept the gage of battle thus thrown down to them, and, appealing to God and the judgment of mankind for the righteousness of their Cause, the people of the Confederate States will defend their liberties to the last, against this flagrant and open attempt at their subjugation to Sectional power."

Let us now, for a moment, glance at the condition of Fort Sumter, and of the Government with regard to it:

On the 5th of March, the day after President Lincoln had taken his oath of office, there was placed in his hands a letter of Major Anderson, commanding at Fort Sumter, in which that officer, under date of the 28th of February, expressed the opinion that "reinforcements could not be thrown into that fort within the time for his relief rendered necessary by the limited supply of provisions, and with a view of holding possession of the same, with a force of less than twenty thousand good and well-disciplined men."

[President Lincoln's first Message, July 4, 1861.]

Lieutenant-General Winfield Scott concurred in that opinion, and as the provisions in the Fort would be exhausted before any such force could be raised and brought to the ground, evacuation and safe withdrawal of the Federal garrison from the Fort became a Military necessity, and was so regarded by the Administration.

"It was believed, however"—in the language of Mr. Lincoln himself, in his first Message to Congress—"that to so abandon that position, under the circumstances, would be utterly ruinous: that the necessity under which it was to be done would not be fully understood; that by many it would be construed as a part of a voluntary policy; that at home it would discourage the friends of the Union, embolden its adversaries, and go far to insure to the latter a recognition abroad; that in fact it would be our National destruction consummated. This could not be allowed. Starvation was not yet upon the garrison; and ere it would be reached, Fort Pickens might be reinforced. This last would be a clear indication of policy, and would better

enable the country to accept the evacuation of Fort Sumter as a Military necessity."

Owing to misconception or otherwise, an order to reinforce Fort Pickens was not carried out, and an expedition to relieve Fort Sumter was then ordered to be dispatched. On the 8th of April President Lincoln, by messenger, notified Governor Pickens of South Carolina, "that he might expect an attempt would be made to provision the fort; and that if the attempt should not be resisted there would be no effort to throw in men, arms, or ammunition, without further notice, or in case of an attack upon the fort."

A crisis was evidently approaching, and public feeling all over the Country was wrought up to the highest degree of tension and stood tip-toe with intense expectancy. The test of the doctrine of Secession was about to be made there, in the harbor of Charleston, upon which the eyes of Patriot and Rebel were alike feverishly bent.

There, in Charleston harbor, grimly erect, stood the octagon-shaped Fort Sumter, mid-way of the harbor entrance, the Stars and Stripes proudly waving from its lofty central flagstaff, its guns bristling on every side through the casemates and embrasures, as if with a knowledge of their defensive power.

About equidistant from Fort Sumter on either side of the harbor-entrance, were the Rebel works at Fort Moultrie and Battery Bee on Sullivan's Island, on the one side, and Cummings Point Battery, on Morris Island, on the other-besides a number of other batteries facing seaward along the sea-coast line of Morris Island. Further in, on the same side of the harbor, and but little further off from Fort Sumter, stood Fort Johnson on James Island, while Castle Pinckney and a Floating Battery were between the beleaguered Fort and the city of Charleston.

Thus, the Federal Fort was threatened with the concentrated fire of these well-manned Rebel fortifications on all sides, and in its then condition was plainly doomed; for, while the swarming Rebels, unmolested by Fort Sumter, had been permitted to surround that Fort with frowning batteries, whose guns outnumbered those of the Fort, as ten to one, and whose caliber was also superior, its own condition was anything but that of readiness for the inevitable coming encounter.

That the officers' quarters, barracks, and other frame-work wooden buildings should have been permitted to remain as a standing invitation to conflagration from bombardment, can only be accounted for on the supposition that the gallant officer in command, himself a Southerner, would not believe it possible that the thousands of armed Americans by whom he was threatened and encircled, could fire upon the flag of their own native Country. He and his garrison of seventy men, were soon to learn the bitter truth, amid a tempest of bursting shot and shell, the furnace-heat of crackling walls, and suffocating volumes of dense smoke produced by an uncontrollable conflagration.

The Rebel leaders at Washington had prevented an attack in January upon the forts in the harbor of Charleston, and at Pensacola.—[McPherson's History of the Rebellion, p. 112.]—In consequence of which failure to proceed to the last extremity at once, the energies of the Rebellion had perceptibly diminished.

Said the Mobile Mercury: "The country is sinking into a fatal apathy, and the spirit and even the patriotism of the people is oozing out, under this do-nothing policy. If something is not done pretty soon, decisive, either evacuation or expulsion, the whole country will become so disgusted with the sham of Southern independence that the first chance the people get at a popular election they will turn the whole movement topsy-turvy so bad that it never on Earth can be righted again."

After the inauguration of Mr. Lincoln, however, the Rebel authorities at Montgomery lost no time, but strained every nerve to precipitate War. They felt that there was danger to the cause of Secession in delay; that there were wavering States outside the Confederacy, like Virginia, that might be dragged into the Confederacy by prompt and bloody work; and wavering States within, like Alabama, that must be kept in by similar means. Their emissaries were busy everywhere in the South, early in April, preaching an instant crusade against the old flag—inciting the people to demand instant hostilities against Fort Sumter—and to cross a Rubicon of blood, over which there could be no return.

Many of the Rebel leaders seemed to be haunted by the fear (no doubt well founded) that unless blood was shed—unless an impassable barrier, crimsoned with human gore, was raised between the new Confederacy and the old Union—there would surely be an ever-present danger of that

Confederacy falling to pieces. Hence they were now active in working the people up to the required point of frenzy.

As a specimen of their speeches, may be quoted that of Roger A. Pryor, of Virginia, who, at Charleston, April 10, 1861, replying to a serenade, said:—[Charleston Mercury's report.]

'Gentlemen, I thank you, especially that you have at last annihilated this accursed Union [Applause] reeking with corruption, and insolent with excess of tyranny. Thank God, it is at last blasted and riven by the lightning wrath of an outraged and indignant people. [Loud applause.] Not only is it gone, but gone forever. [Cries of, 'You're right,' and applause.] In the expressive language of Scripture, it is water spilt upon the ground, which cannot be gathered up. [Applause.] Like Lucifer, son of the morning, it has fallen, never to rise again. [Continued applause.]

"For my part, gentlemen," he continued, as soon as he could be heard, "if Abraham Lincoln and Hannibal Hamlin to-morrow were to abdicate their offices and were to give me a blank sheet of paper to write the condition of re-annexation to the defunct Union, I would scornfully spurn the overture. * * I invoke you, and I make it in some sort a personal appeal—personal so far as it tends to our assistance in Virginia—I do invoke you, in your demonstrations of popular opinion, in your exhibitions of official intent, to give no countenance to this idea of reconstruction. [Many voices, emphatically, 'never,' and applause.]

"In Virginia," resumed he, "they all say, if reduced to the dread dilemma of this memorable alternative, they will espouse the cause of the South as against the interest of the Northern Confederacy, but they whisper of reconstruction, and they say Virginia must abide in the Union, with the idea of reconstructing the Union which you have annihilated. I pray you, gentlemen, rob them of that idea. Proclaim to the World that upon no condition, and under no circumstances, will South Carolina ever again enter into political association with the Abolitionists of New England. [Cries of 'never,' and applause.]

"Do not distrust Virginia," he continued; "as sure as tomorrow's sun will rise upon us, just so sure will Virginia be a member of this Southern Confederation. [Applause.] And I will tell you, gentlemen, what will put her in the Southern Confederacy in less than an hour by Shrewsbury clock—**STRIKE A BLOW!** [Tremendous applause.] The very moment that blood is

shed, old Virginia will make common cause with her sisters of the South. [Applause.] It is impossible she should do otherwise."

The question of the necessity of "Striking a Blow"—of the immediate "shedding of blood"—was not only discussed before the Southern people for the purpose of inflaming their rebellious zeal, but was also the subject of excited agitation in the Confederate Cabinet at this time.

In a speech made by ex-United States Senator Clemens of Alabama, at Huntsville, Alabama, at the close of the Rebellion, he told the Alabamians how their State, which, as we have seen, was becoming decidedly shaky in its allegiance to the "Sham of Southern Independence," was kept in the Confederacy.

Said he: "In 1861, shortly after the Confederate Government was put in operation, I was in the city of Montgomery. One day (April 11, 1861) I stepped into the office of the Secretary of War, General Walker, and found there, engaged in a very excited discussion, Mr. Jefferson Davis (the President), Mr. Memminger (Secretary of the Treasury), Mr. Benjamin (Attorney-General), Mr. Gilchrist, a member of our Legislature from Loundes county, and a number of other prominent gentlemen. They were discussing the propriety of immediately opening fire on Fort Sumter, to which General Walker, the Secretary of War, appeared to be opposed. Mr. Gilchrist said to him, 'Sir, unless you sprinkle blood in the face of the people of Alabama, they will be back in the old Union in less than ten days!' THE NEXT DAY GENERAL BEAUREGARD OPENED HIS BATTERIES ON SUMTER, AND ALABAMA WAS SAVED TO THE CONFEDERACY."

On the 8th of April, G. T. Beauregard, "Brigadier General Commanding" the "Provisional Army C. S. A." at Charleston, S. C., notified the Confederate Secretary of War (Walker) at Montgomery, Ala., that "An authorized messenger from President Lincoln has just informed Gov. Pickens and myself that provisions will be sent to Fort Sumter peaceably, or otherwise by force."

On the 10th, Confederate Secretary Walker telegraphed to Beauregard: "If you have no doubt of the authorized character of the agent who communicated to, you the intention of the Washington Government to supply Fort Sumter by force, you will at once demand its evacuation, and, if this is refused, proceed, in such manner as you may determine, to reduce

it." To this Beauregard at once replied: "The demand will be made tomorrow at 12 o'clock." Thereupon the Confederate Secretary telegraphed again: "Unless there are special reasons connected with your own condition, it is considered proper that you should make the demand at an earlier hour." And Beauregard answered: "The reasons are special for 12 o'clock."

On the 11th General Beauregard notified Secretary Walker: "The demand was sent at 2 P. M., and until 6 was allowed for the answer." The Secretary desiring to have the reply of Major Anderson, General Beauregard telegraphed: "Major Anderson replies: 'I have the honor to acknowledge the receipt of your communication demanding the evacuation of this Fort, and to say in reply thereto that it is a demand with which I regret that my sense of honor and of my obligation to my Government prevent my compliance.' He adds, verbally, 'I will await the first shot, and, if you do not batter us to pieces, we will be starved out in a few days.'"

To this, the Confederate Secretary at once responded with: "Do not desire needlessly to bombard Fort Sumter. If Major Anderson will state the time at which, as indicated by himself, he will evacuate, and agree that, in the mean time, he will not use his guns against us unless ours should be employed against Fort Sumter, you are authorized thus to avoid the effusion of blood. If this or its equivalent be refused, reduce the Fort, as your judgment decides to be the most practicable."

At 11 o'clock that night (April 11) General Beauregard sent to Major Anderson, by the hands of his aides-de-camp, Messrs. Chesnut and Lee, a further communication, in which, after alluding to the Major's verbal observation, the General said: "If you will state the time at which you will evacuate Fort Sumter, and agree that in the mean time you will not use your guns against us unless ours shall be employed against Fort Sumter, we shall abstain from opening fire upon you. Col. Chesnut and Capt. Lee are authorized by me to enter into such an agreement with you. You are therefore requested to communicate to them an open answer."

To this, Major Robert Anderson, at 2.30 A.M. of the 12th, replied "that, cordially uniting with you in the desire to avoid the useless effusion of blood, I will, if provided with the necessary means of transportation, evacuate Fort Sumter by noon on the 15th inst., should I not receive prior to that time, controlling instructions from my Government, or additional supplies, and that I will not in the mean time open my fire upon your forces

unless compelled to do so by some hostile act against this Fort or the flag of my Government, by the forces under your command, or by some portion of them, or by the perpetration of some act showing a hostile intention on your part against this Fort or the flag it bears." Thereupon General Beauregard telegraphed Secretary Walker: "He would not consent. I write to-day."

At 3.20 A.M., Major Anderson received from Messrs. Chesnut and Lee a notification to this effect: "By authority of Brigadier General Beauregard, commanding the Provisional Forces of the Confederate States, we have the honor to notify you that he will open the fire of his batteries on Fort Sumter in one hour from this time." And a later dispatch from General Beauregard to Secretary Walker, April 12, laconically stated: "WE OPENED FIRE AT 4.30."

At last the hour and the minute had come, for which the Slave Power of the South had for thirty years so impatiently longed. At last the moment had come, when all the long-treasured vengeance of the South—outgrown from questions of Tariff, of Slavery, and of Secession—was to be poured out in blood and battle; when the panoplied powers and forces of rebellious confederated States, standing face to face with the resolute patriotism of an outraged Union, would belch forth flame and fury and hurtling missiles upon the Federal Fort and the old flag floating o'er it.

And whose the sacrilegious hand that dared be first raised against his Country and his Country's flag? Stevens's mortar battery at Sullivan's Island is ready to open, when a lean, long-haired old man, with eyes blazing in their deep fanatical sockets, totters hastily forward and ravenously seizing in his bony hands a lanyard, pulls the string, and, with a flash and roar, away speeds the shrieking shell on its mission of destruction; and, while shell after shell, and shot after shot, from battery after battery, screams a savage accompaniment to the boom and flash and bellow of the guns, that lean old man works his clutched fingers in an ecstasy of fiendish pleasure, and chuckles: "Aye, I told them at Columbia that night, that the defense of the South is only to be secured through the lead of South Carolina; and, old as I am, I had come here to join them in that lead—and I have done it."

[Edmund Ruffin, see p. 100. This theory of the necessity of South Carolina leading, had long been held, as in the following, first published in the New York Tribune, July 3, 1862, which, among other letters, was found in the house of

William H. Trescot, on Barnwell's Island, South Carolina, when re-occupied by United States troops:

"VIRGINIA CONVENTION, May 3, 1851

"My DEAR, SIR:—You misunderstood my last letter, if you supposed that I intended to visit South Carolina this Spring. I am exceedingly obliged to you for your kind invitations, and it would afford me the highest pleasure to interchange in person, sentiments with a friend whose manner of thinking so closely agrees with my own. But my engagements here closely confine me to this city, and deny me such a gratification.

"I would be especially glad to be in Charleston next week, and witness the proceedings of your Convention of Delegates from the Southern Rights Associations. The condition of things in your State deeply interests me. Her wise foresight and manly independence have placed her, as the head of the South, to whom alone true-hearted men can look with any hope or pleasure.

"Momentous are the consequences which depend upon your action. Which party will prevail? The immediate Secessionists, or those who are opposed to separate State action at this time? For my part I forbear to form a wish. Were I a Carolinian, it would be very different; but when I consider the serious effects the decision may have on your future weal or woe, I feel that a citizen of a State which has acted as Virginia, has no right to interfere, even by a wish.

"If the General Government allows you peaceably and freely to Secede, neither Virginia, nor any other Southern State, would, in my opinion, follow you at present. But what would be the effect upon South Carolina? Some of our best friends have supposed that it would cut off Charleston from the great Western trade, which she is now striking for, and would retard very greatly the progress of your State. I confess that I think differently. I believe thoroughly in our own theories, and that, even if Charleston did not grow quite as fast in her trade with other States, yet the relief from

Federal taxation would vastly stimulate your prosperity. If so, the prestige of the Union would be destroyed, and you would be the nucleus for a Southern Confederation at no distant day.

"But I do not doubt, from all I have been able to learn that the Federal Government would use force, beginning with the form most embarrassing to you, and least calculated to excite sympathy. I mean a naval blockade. In that event, could you stand the reaction feeling which the suffering commerce of Charleston would probably manifest? Would you not lose that in which your strength consists, the union of your people? I do not mean to imply an opinion, I only ask the question.

"If you could force this blockade, and bring the Government to direct force, the feeling in Virginia would be very great. I trust in God it would bring her to your aid. But it would be wrong in me to deceive you by speaking certainly. I cannot express the deep mortification I have felt at her course this Winter. But I do not believe that the course of the Legislature is a fair expression of popular feeling. In the East, at least, the great majority believes in the right of Secession, and feels the deepest sympathy with Carolina in her opposition to measures which they regard as she does. But the West—Western Virginia—there is the rub! Only 60,000 slaves to 494,000 whites! When I consider this fact, and the kind of argument which has been heard in this body, I cannot but regard with the greatest fear the question whether Virginia would assist Carolina in such an issue.

"I must acknowledge, my dear sir, that I look to the future with almost as much apprehension as hope. You well object to the term Democrat. Democracy, in its original philosophical sense, is indeed incompatible with Slavery and the whole system of Southern society. Yet, if you look back, what change will you find made in any of your State Constitutions, or in our legislation—that is, in its general course—for the last fifty years, which was not in the

direction of this Democracy? Do not its principles and theories become daily more fixed in our practice? (I had almost said in the opinions of our people, did I not remember with pleasure the great improvement of opinion in regard to the abstract question of Slavery). And if such is the case, what are we to hope in the future? I do not hesitate to say that if the question is raised between Carolina and the Federal Government, and the latter prevails, the last hope of republican government, and, I fear, of Southern civilization, is gone. Russia will then be a better government than ours.

"I fear that the confusion and interruptions amid which I write have made this rather a rambling letter. Do you visit the North in the Summer? I would be very happy to welcome you to the Old Dominion.

"I am much obliged to you for the offer to send me Hammond's Eulogy on Calhoun, but I am indebted to the author for a copy.

"With esteem and friendship, yours truly,

"M. R. H. GARNETT.

"WM. H. TRESCOT, ESQ."]

Next morning's New York herald, in its Charleston dispatch of April 12, announced to the World that "The first shot [fired at Fort Sumter] from Stevens's battery was fired by the venerable Edmund Ruffin, of Virginia," and added, "That ball will do more for the cause of Secession, in Virginia, than volumes of stump speeches."

"Soon," says Greeley in his History, "the thunder of fifty heavy breaching cannon, in one grand volley, followed by the crashing and crumbling of brick, stone, and mortar around and above them, apprized the little garrison that their stay must necessarily be short."

Says an eye-witness of the bombardment: "Shells burst with the greatest rapidity in every portion of the work, hurling the loose brick and stone in all directions, breaking the windows and setting fire to whatever woodwork they burst against. * * * The firing from the batteries on Cumming's Point was scattered over the whole of the gorge or rear of the Fort, till it looked like a sieve. The explosion of shells, and the quantity of deadly missiles that

were hurled in every direction and at every instant of time, made it almost certain death to go out of the lower tier of casemates, and also made the working of the barbette or upper (uncovered) guns, which contained all our heaviest metal, and by which alone we could throw shells, quite impossible.

"During the first day there was hardly an instant of time that there was a cessation of the whizzing of balls, which were sometimes coming half a dozen at once. There was not a portion of the work which was not taken in reverse from mortars. * * * During Friday, the officers' barracks were three times set on fire by the shells and three times put out under the most galling and destructive cannonade.

"For the fourth time, the barracks were set on fire early on Saturday morning, and attempts were made to extinguish the flames; but it was soon discovered that red-hot shot were being thrown into the Fort with fearful rapidity, and it became evident that it would be impossible to put out the conflagration. The whole garrison was then set to work, or as many as could be spared, to remove the powder from the magazines, which was desperate work, rolling barrels of powder through the fire. * * * After the barracks were well on fire, the batteries directed upon Fort Sumter increased their cannonading to a rapidity greater than had been attained before."

"About this time, the shells and ammunition in the upper service-magazines exploded, scattering the tower and upper portions of the building in every direction. The crash of the beams, the roar of the flames, and the shower of fragments of the Fort, with the blackness of the smoke, made the scene indescribably terrific and grand. This continued for several hours. * * * "

"There was not a portion of the Fort where a breath of air could be got for hours, except through a wet cloth. The fire spread to the men's quarters on the right hand and on the left, and endangered the powder which had been taken out of the magazines. The men went through the fire, and covered the barrels with wet cloths, but the danger of the Fort's blowing up became so imminent that they were obliged to heave the barrels out of the embrasures."

Major Anderson's official report tells the whole story briefly and well, in these words:

"STEAMSHIP BALTIC, OFF SANDY HOOK

"April 18, 1861, 10.30 A.M., VIA NEW YORK.

"Having defended Fort Sumter for thirty-four hours, until the quarters were entirely burnt, the main gates destroyed by fire, the gorge walls seriously injured, the magazine surrounded by flames, and its door closed from the effects of heat; four barrels and three cartridges of powder only being available, and no provisions remaining but pork, I accepted terms of evacuation offered by General Beauregard—being the same offered by him on the 11th inst., prior to the commencement of hostilities—and marched out of the Fort on Sunday afternoon, the 14th instant, with colors flying and drums beating, bringing away company and private property, and saluting my flag with fifty guns.

"ROBERT ANDERSON, "Major 1st Artillery, Commanding.

"HON. SIMON CAMERON, "Secretary of War, Washington."

During all this thirty-four hours of bombardment, the South rejoiced with exceeding great joy that the time had come for the vindication of its peculiar ideas of State and other rights, even though it be with flames and the sword. At Charleston, the people were crazy with exultation and wine-feasting and drinking being the order of the day and night. But for the surrender, Fort Sumter would have been stormed that Sunday night. As it was, Sunday was turned into a day of general jubilation, and while the people cheered and filled the streets, all the Churches of Charleston celebrated, with more or less devotional fervor and ceremony, the bloodless victory.

At Montgomery, the Chiefs of the Confederate Government were serenaded. "Salvos of artillery were fired, and the whole population seemed to be in an ecstasy of triumph."—[McPherson's History of the Rebellion, p. 114]

The Confederate Secretary of War, flushed with the success, predicted that the Confederate flag "will, before the first of May, float over the dome of the old Capitol at Washington" and "will eventually float over Faneuil Hall, in Boston."

From Maryland to Mexico, the protests of Union men of the South were unheard in the fierce clamor of "On to Washington!"

The Richmond Examiner said: "There never was half the unanimity among the people before, nor a tithe of the zeal upon any subject, that is now manifested to take Washington. From the mountain tops and valleys to the shores of the sea, there is one wild shout of fierce resolve to capture Washington City at all and every human hazard."

So also, the Mobile Advertiser enthusiastically exclaimed:

"We are prepared to fight, and the enemy is not. Now is the time for action, while he is yet unprepared. Let the fife sound 'Gray Jackets over the Border,' and let a hundred thousand men, with such arms as they can snatch, get over the border as quickly as they can. Let a division enter every Northern border State, destroy railroad connection to prevent concentration of the enemy, and the desperate strait of these States, the body of Lincoln's country, will compel him to a peace—or compel his successor, should Virginia not suffer him to escape from his doomed capital."

It was on Friday morning, the 12th of April, as we have seen, that the first Rebel shot was fired at Fort Sumter. It was on Saturday afternoon and evening that the terms of surrender were agreed to, and on Sunday afternoon that the Federal flag was saluted and hauled down, and the surrender completed. On Monday morning, being the 15th of April, in all the great Northern Journals of the day appeared the following:

"PROCLAMATION.

"WHEREAS, the laws of the United States have been for some time past, and now are, opposed, and the execution thereof obstructed, in the States of South Carolina, Georgia, Alabama, Florida, Mississippi, Louisiana, and Texas, by Combinations too powerful to be suppressed by the ordinary course of Judicial proceedings, or by the powers vested in the Marshals by law; now, therefore I, ABRAHAM LINCOLN, President of the United States, in virtue of the power in me vested by the Constitution and the laws, have thought fit to call forth, and hereby do call forth, the Militia of the several States of the Union to the aggregate number of

75,000, in order to suppress said Combinations, and to cause the laws to be duly executed.

"The details for this object will be immediately communicated to the State authorities through the War Department. I appeal to all loyal citizens to favor, facilitate, and aid this effort to maintain the honor, the integrity, and existence of our National Union, and the perpetuity of popular government, and to redress wrongs already long enough endured. I deem it proper to say that the first service assigned to the forces hereby called forth, will probably be to repossess the forts, places, and property which have been seized from the Union; and in every event the utmost care will be observed, consistently with the objects aforesaid, to avoid any devastation, any destruction of, or interference with, property, or any disturbance of peaceful citizens of any part of the Country; and I hereby command the persons composing the Combinations aforesaid, to disperse and retire peaceably to their respective abodes, within twenty days from this date.

"Deeming that the present condition of public affairs presents an extraordinary occasion, I do hereby, in virtue of the power in me vested by the Constitution, convene both Houses of Congress. The Senators and Representatives are, therefore, summoned to assemble at their respective chambers at twelve o'clock, noon, on Thursday, the 4th day of July next, then and there to consider and determine such measures as, in their wisdom, the public safety and interest may seem to demand.

"In witness whereof I have hereunto set my hand, and caused the seal of the United States to be affixed.

"Done at the city of Washington, this fifteenth day of April, in the year of our Lord one thousand eight hundred and sixty-one, and of the independence of the United States the eighty-fifth.

"By the President: ABRAHAM LINCOLN.

"WILLIAM H. SEWARD, Secretary of State."

While in the North the official responses to this Call for troops were prompt and patriotic, in the Border and Slave States, not yet in Rebellion, they were anything but encouraging.

The reply of Governor Burton, of Delaware, was by the issue of a proclamation "recommending the formation of volunteer companies for the protection of the lives and property of the people of Delaware against violence of any sort to which they may be exposed; the companies not being subject to be ordered by the Executive into the United States service—the law not vesting him with such authority—but having the option of offering their services to the General Government for the defense of its capital and the support of the Constitution and laws of the Country."

Governor Hicks, of Maryland, in like manner, issued a proclamation for Maryland's quota of the troops, but stated that her four regiments would be detailed to serve within the limits of Maryland—or, for the defense of the National Capital.

Governor Letcher, of Virginia, replied: "The militia of Virginia will not be furnished to the powers at Washington for any such use or purpose as they have in view. Your object is to subjugate the Southern States, and a requisition made upon me for such an object—an object, in my judgment, not within the purview of the Constitution or the Act of 1795—will not be complied with. You have chosen to inaugurate Civil War, and having done so, we will meet it in a spirit as determined as the Administration has exhibited toward the South."

Governor Ellis, of North Carolina, replied to Secretary Cameron: "Your dispatch is received, and, if genuine—which its extraordinary character leads me to doubt—I have to say in reply that I regard the levy of troops made by the Administration, for the purpose of subjugating the States of the South, as in violation of the Constitution and a usurpation of power. I can be no party to this wicked violation of the laws of the country, and to this War upon the liberties of a free people. You can get no troops from North Carolina. I will reply more in detail when your Call is received by mail."

Governor Magoffin, of Kentucky, replied: "Your dispatch is received. In answer I say emphatically, Kentucky will furnish no troops for the wicked purpose of subduing her sister Southern States."

Governor Harris, of Tennessee, replied: "Tennessee will not furnish a single man for Coercion, but fifty thousand, if necessary, for the Defense of

our rights or those of our Southern brethren."

Governor Jackson, of Missouri, replied: "Your requisition is illegal, unconstitutional, revolutionary, inhuman, diabolical and cannot be complied with."

Governor Rector, of Arkansas, replied: "None will be furnished. The demand is only adding insult to injury."

Discouraging and even insulting as were most of these replies, the responses of the Governors of the Free States were, on the other hand, full of the ring of true martial Patriotism evoked by the fall of Sumter and the President's first call for troops. Twenty millions of Northern hearts were stirred by that Call, as they had never before been stirred. Party and faction became for the moment, a thing of the past.

The Governors of the Free States made instant proclamation for volunteers, and the People responded not by thousands but by hundreds of thousands. New York, the Empire State, by her Governor and her Legislature placed all her tremendous resources at the service of the Union; and the great State of Pennsylvania, through Governor Curtin, did the same. Nor were the other States at all behind.

The Loyal North felt that Law, Order, Liberty, the existence of the Nation itself was in peril, and must be both saved and vindicated. Over half a million of men—from the prairies of the West and the hills and cities of the East—from farms and counting houses, from factories and mines and workshops—sprang to arms at the Call, and begged to be enrolled. The merchants and capitalists throughout the North proffered to the Government their wealth and influence and best services. The press and the people responded as only the press and people of a Free land can respond—with all their heart and soul. "Fort Sumter," said one of the journals, "is lost, but Freedom is saved. Henceforth, the Loyal States are a unit in uncompromising hostility to Treason, wherever plotted, however justified. Fort Sumter is temporarily lost, but the Country is saved. Live the Republic!"

This, in a nutshell, was the feeling everywhere expressed, whether by the great crowds that marched through the streets of Northern cities with drums beating and banners flying—cheering wildly for the Union, singing Union songs, and compelling those of doubtful loyalty to throw out to the breeze from their homes the glorified Stars and Stripes—by the great majority of

newspapers—by the pulpit, by the rostrum, by the bench, by all of whatever profession or calling in Northern life. For the moment, the voice of the Rebel-sympathizer was hushed in the land, or so tremendously overborne that it seemed as if there was an absolute unanimity of love for the Union.

Of course, in Border-States, bound to the South by ties of lineage and intermarriage and politics and business association, the feeling could not be the same as elsewhere. There, they were, so to speak, drawn both ways at once, by the beckoning hands of kindred on the one side, and Country on the other! Thus they long waited and hesitated, praying that something might yet happen to save the Union of their fathers, and prevent the shedding of brothers' blood, by brothers—hoping against hope-waited, in the belief that a position of armed neutrality might be permitted to them; and grieved, when they found this could not be.

Each side to the great Conflict-at-arms naturally enough believed itself right, and that the other side was the first aggressor; but the judgment of Mankind has placed the blame where it properly belonged—on the shoulders of the Rebels. The calm, clear statement of President Lincoln, in his July Message to Congress, touching the assault and its preceding history—together with his conclusions—states the whole matter in such authentic and convincing manner that it may be said to have settled the point beyond further controversy. After stating that it "was resolved to notify the Governor of South Carolina that he might expect an attempt would be made to provision the Fort; and that if the attempt should not be resisted there would be no effort to throw in men, arms, or ammunition, without further notice, or in case of an attack on the Fort," Mr. Lincoln continues: "This notice was accordingly given; whereupon the Fort was attacked and bombarded to its fall, without even awaiting the arrival of the provisioning expedition."

The President then proceeds: "It is thus seen that the assault upon and reduction of Fort Sumter was, in no sense, a matter of self-defense on the part of the assailants. They well knew that the garrison in the Fort could, by no possibility, commit aggression upon them. They knew—they were expressly notified—that the giving of bread to the few brave and hungry men of the garrison was all which would on that occasion be attempted, unless themselves, by resisting so much, should provoke more. They knew that this Government desired to keep the garrison in the Fort—not to assail them—but merely to maintain visible possession, and thus to preserve the Union from actual and immediate dissolution—trusting, as hereinbefore stated, to time, discussion, and the ballot-box for final adjustment; and they assailed and reduced the Fort for precisely the reverse object—to drive out the visible authority of the Federal Union, and thus force it to immediate dissolution.

"That this was their object, the Executive well understood; and, having said to them, in the Inaugural Address, 'you can have no conflict without being yourselves the aggressors,' he took pains not only to keep this declaration good, but also to keep the case so free from the power of ingenious sophistry as that the World should not be able to misunderstand it.

"By the affair at Fort Sumter, with its surrounding circumstances, that point was reached. Then and thereby the assailants of the Government began the Conflict of arms, without a gun in sight or in expectancy to return their fire, save only the few in the Fort sent to that harbor years before for their own protection, and still ready to give that protection in whatever was lawful. In this act, discarding all else, they have forced upon the Country, the distinct issue: 'Immediate dissolution or blood.'

"And this issue embraces more than the fate of these United States. It presents to the whole family of Man the question whether a Constitutional Republic or Democracy—a government of the People by the same People—can or cannot maintain its territorial integrity against its own domestic foes. It presents the question whether discontented individuals, too few in numbers to control administration according to organic law in any case, can always, upon the pretences made in this case, or on any other pretences, or arbitrarily without any pretence, break up their Government, and thus practically put an end to free government upon the earth. It forces us to ask:

'Is there in all republics, this inherent and fatal weakness?' 'Must a Government of necessity be too strong for the liberties of its own people, or too weak to maintain its own existence?'

"So viewing the issue, no choice was left but to call out the War power of the Government; and so to resist force, employed for its destruction, by force, for its preservation."

The Call for Troops was made, as we have seen, on the 15th day of April. On the evening of the following day several companies of a Pennsylvania Regiment reported for duty in Washington. On the 18th, more Pennsylvania Volunteers, including a company of Artillery, arrived there.

On the 19th of April, the Sixth Massachusetts Regiment—whose progress through New York city had been triumphal—was suddenly and unexpectedly assailed, in its passage through Baltimore, to the defense of the National Capital, by a howling mob of Maryland Secessionists—worked up to a pitch of States-rights frenzy by Confederate emissaries and influential Baltimore Secession-sympathizers, by news of the sudden evacuation of the Federal Arsenal at Harper's Ferry, and other exciting tidings—and had to fight its way through, leaving three soldiers of that regiment dead, and a number wounded, behind it.

[At a meeting of the "National Volunteer Association," at Monument Square, Baltimore, the previous evening, says Greeley's History of the American Conflict, page 462, "None of the speakers directly advocated attacks on the Northern troops about to pass through the city; but each was open in his hostility to 'Coercion,' and ardently exhorted his hearers to organize, arm and drill, for the Conflict now inevitable. Carr (Wilson C. N. Carr) said: 'I do not care how many Federal troops are sent to Washington; they will soon find themselves surrounded by such an army from Virginia and Maryland, that escape to their homes will be impossible; and when the 75,000 who are intended to invade the South shall have polluted that soil with their touch, the South will exterminate and sweep them from the Earth.' (Frantic cheering and yelling). The meeting broke up with stentorian cheers for 'the South' and for 'President Davis.'"]

Ten companies of Philadelphia troops, reaching Baltimore at the same time, unarmed, were also violently assailed by the crazy mob, and, after a two hours' fight, reached the cars and returned to Philadelphia.

Washington City—already, by the Secession of Virginia, cut off from the South—was thus practically cut off from the North as well; and to isolate it more completely, the telegraph wires were cut down and the railroad bridges burned. A mere handful of regulars, the few volunteers that had got through before the outbreak in Baltimore, and a small number of Union residents and Government department clerks—these, under General Winfield Scott, constituted the paltry force that, for ten days after the Call for troops, held the National Capital.

Informed, as the Rebels must have been, by their swarming spies, of the weakness of the Federal metropolis, it seems absolutely marvelous that instant advantage was not taken of it.

The Richmond Examiner, of April 23d, said: "The capture of Washington City is perfectly within the power of Virginia and Maryland, if Virginia will only make the effort with her constituted authorities; nor is there a single moment to lose. * * * The fanatical yell for the immediate subjugation of the whole South is going up hourly from the united voices of all the North; and, for the purpose of making their work sure, they have determined to hold Washington City as the point whence to carry on their brutal warfare. Our people can take it—they will take it—and Scott, the arch-traitor, and Lincoln, the Beast, combined, cannot prevent it. The just indignation of an outraged and deeply injured people will teach the Illinois Ape to repeat his race and retrace his journey across the borders of the Free Negro States still more rapidly than he came. * * * Great cleansing and purification are needed and will be given to that festering sink of iniquity, that wallow of Lincoln and Scott—the desecrated city of Washington; and many indeed will be the carcasses of dogs and caitiff that will blacken the air upon the gallows before the great work is accomplished. So let it be!"

But despite all this fanfaronade of brutal bluster, and various movements that looked somewhat threatening, and this complete isolation for more than a week from the rest of the World, the city of Washington was not seized by the Rebels, after all.

This nervous condition of affairs, however, existed until the 25th—and to General Benjamin F. Butler is due the chief credit of putting an end to it. It

seems he had reached the Susquehanna river at Perryville, with his Eighth Massachusetts Regiment on the 20th—the day after the Sixth Massachusetts had been mobbed at Baltimore—and, finding his further progress to Washington via Baltimore, barred by the destruction of the bridge across the Susquehanna, etc., he at once seized a large ferry steamer, embarked his men on her, steamed down the river and Chesapeake Bay to Annapolis, the capital of Maryland, took possession of the frigate Constitution, the Naval Academy, and the city itself, gathered supplies, and being reinforced by the arrival by water of the famous New York Seventh, and other regiments, repaired the branch railroad to Annapolis Junction (on the main line of railroad between Baltimore and Washington), and transferred his column from thence, by cars, on the 25th, to the National Capital—soon thereafter also taking military possession of Baltimore, which gave no further trouble to the Union Cause. In the meantime, however, other untoward events to that Cause had happened.

Two days after the Call for troops, the Virginia Convention (April 17th) secretly voted to Secede from the Union. An expedition of Virginia troops was almost at once started to capture the Federal Arsenal at Harper's Ferry, which, as has already been intimated, was evacuated hastily on the night of the 18th, by the handful of Union regulars garrisoning it, after a futile effort to destroy the public property and stores it held. Another expedition was started to seize the Federal Navy Yard at Norfolk—a rich prize, containing as it did, between 2,000 and 3,000 pieces of heavy ordnance (300 of them Dahlgrens), three old line-of-battle ships and a number of frigates, including the Cumberland and the fine forty-gun steam frigate Merrimac, together with thousands of kegs of powder and immense stores of other munitions of war, and supplies—that had cost in all some \$10,000,000. Without an enemy in sight, however, this fine Navy Yard was shamefully evacuated, after partly scuttling and setting fire to the vessels—the Cumberland alone being towed away—and spiking the guns, and doing other not very material damage.

So also, in North Carolina, Rebel influence was equally active. On the 20th of April Governor Ellis seized the Federal Branch Mint at, Charlotte, and on the 22d the Federal Arsenal at Fayetteville. A few days thereafter his Legislature authorized him to tender to Virginia—which had already joined the Confederacy—or to the Government of the Confederate States itself, the volunteer forces of North Carolina. And, although at the end of January the

people of that State had decided at the polls that no Secession Convention be held, yet the subservient Legislature did not hesitate, on demand, to call one together which met in May and ordained such Secession.

Thus, by the end of May, 1861, the Confederacy had grown to comprise nine instead of seven States, and the Confederate troops were concentrating on Richmond—whither the Rebel Government was soon to remove, from Montgomery.

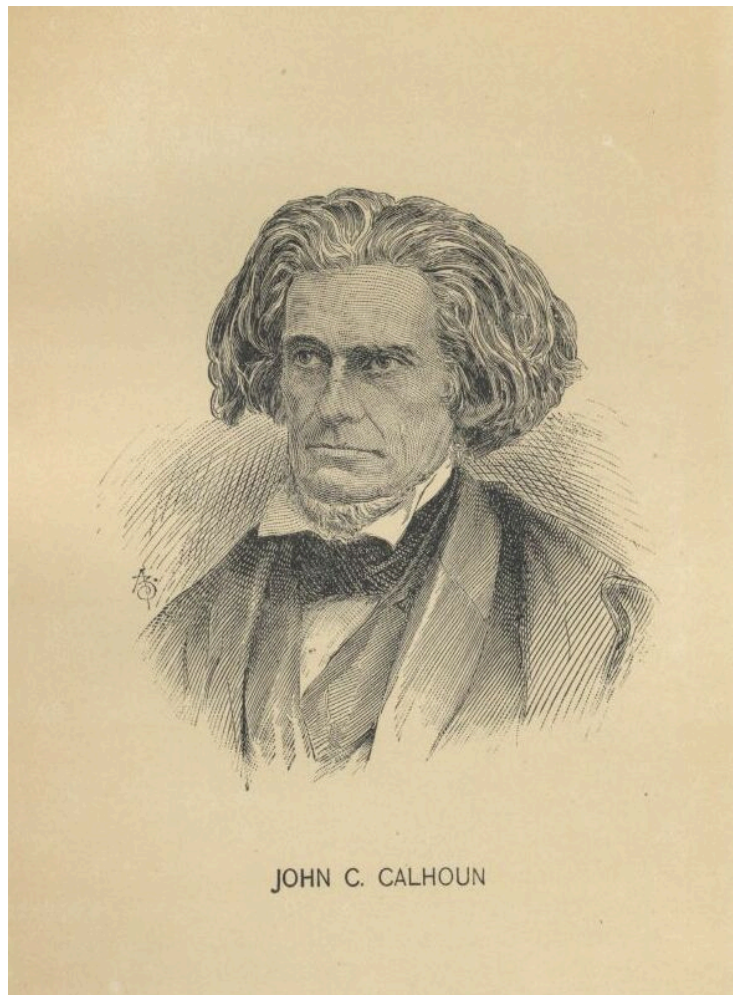
By this time also not only had the ranks of the regular Union Army been filled and largely added to, but 42,000 additional volunteers had been called out by President Lincoln; and the blockade of the Southern ports (including those of Virginia and North Carolina) that had been proclaimed by him, was, despite all obstacles, now becoming effectual and respected.

Washington City and its suburbs, by the influx of Union volunteers, had during this month become a vast armed camp; the Potomac river had been crossed and the Virginia hills (including Arlington heights) which overlooked the Federal Capital, had been occupied and fortified by Union troops; the young and gallant Colonel Ellsworth had been killed by a Virginia Rebel while pulling down a Rebel flag in Alexandria; and General Benjamin F. Butler, in command at Fortress Monroe, had by an inspiration, solved one of the knottiest points confronting our armies, by declaring of three Negroes who had fled from their master so as to escape working on Rebel fortifications, that they should not be returned to that master—under the Fugitive Slave Law, as demanded by a Rebel officer with a flag of truce—but were confiscated "property," and would be retained, as "contraband of war."

It was about this time, too, that the New Orleans Picayune fell into line with other unscrupulous Rebel sheets, by gravely declaring that: "All the Massachusetts troops now in Washington are Negroes, with the exception of two or three drummer boys. General Butler, in command, is a native of Liberia. Our readers may recollect old Ben, the barber, who kept a shop in Poydras street, and emigrated to Liberia with a small competence. General Butler is his son." Little did the writer of that paragraph dream how soon New Orleans would crouch at the very feet of that same General!

And now, while the armed hosts on either side are assembling in hostile array, or resting on their arms, preliminary to the approaching fray of battle,

let us glance at the alleged causes underlying this great Rebellion against the Union.



CHAPTER XI.

THE CAUSES OF SECESSION.

In preceding Chapters of this work, it has been briefly shown, that from the very hour in which the Republic of the United States was born, there have not been wanting, among its own citizens, those who hated it, and when they could not rule, were always ready to do what they could, by Conspiracy, Sedition, Mutiny, Nullification, Secession, or otherwise, to weaken and destroy it. This fact, and the processes by which the Conspirators worked, is very well stated, in his documentary "History of the Rebellion," by Edward McPherson, when he says: "In the Slaveholding States, a considerable body of men have always been disaffected to the Union. They resisted the adoption of the National Constitution, then sought to refine away the rights and powers of the General Government, and by artful expedients, in a series of years, using the excitements growing out of passing questions, finally perverted the sentiments of large masses of men, and prepared them for Revolution."

Before giving further incontestable proofs establishing this fact, and before endeavoring to sift out the true cause or causes of Secession, let us first examine such evidences as are submitted by him in support of his proposition.

The first piece of testimony, is an extract from an unpublished journal of U. S. Senator Maclay of Pennsylvania, from March 4, 1789, to March 3, 1791—the period of the First Congress under the Federal Constitution. It runs thus:

"1789, June 9.—In relation to the Tariff Bill, the affair of confining the East India Trade to the citizens of America had been negatived, and a committee had been appointed to report on this business. The report came in with very high duties, amounting to a prohibition. But a new

phenomenon had made its appearance in the House (meaning the Senate) since Friday.

"Pierce Butler, from South Carolina, had taken his seat, and flamed like a meteor. He arraigned the whole Impost law, and then charged (indirectly) the whole Congress with a design of oppressing South Carolina. He cried out for encouraging the Danes and Swedes, and foreigners of every kind, to come and take away our produce. In fact he was for a Navigation Act reversed.

"June 11.—Attended at the hall as usual.

"Mr. Ralph Izard and Mr. Butler opposed the whole of the drawbacks in every shape whatever.

"Mr. (William) Grayson, of Virginia, warm on this subject, said we were not ripe for such a thing. We were a new Nation, and had no business for any such regulations—a Nation /sui generis/.

"Mr. (Richard Henry) Lee (of Virginia) said drawbacks were right, but would be so much abused, he could not think of admitting them.

"Mr. (Oliver) Ellsworth (of Connecticut) said New England rum would be exported, instead of West India, to obtain the drawback.

"I thought it best to say a few words in reply to each. We were a new Nation, it was true, but we were not a new People. We were composed of individuals of like manners, habits, and customs with the European Nations. What, therefore, had been found useful among them, came well recommended by experience to us. Drawbacks stand as an example in this point of view to us. If the thing was right in itself, there could be no just argument drawn against the use of a thing from the abuse of it. It would be the duty of Government to guard against abuses, by prudent appointments and watchful attention to officers. That as to changing the kind of rum, I thought the collection Bill would provide for this, by limiting the exportation to the original casks and packages. I said a great deal more, but really did not feel much interest either way. But the debates were very lengthy.

"Butler flamed away, and THREATENED A DISSOLUTION OF THE UNION, with regard to his State, as sure as God was in the firmament. He scattered his remarks over the whole Impost bill, calling it partial, oppressive, etc., and solely calculated to oppress South Carolina, and yet

ever and anon declaring how clear of local views and how candid and dispassionate he was. He degenerates into mere declamation. His State would live free, or die glorious."

The next piece of evidence is General Jackson's letter to Rev. A. J. Crawford, as follows:

["Private."]

"WASHINGTON, May 1, 1833.

"MY DEAR SIR: * * * I have had a laborious task here, but Nullification is dead; and its actors and courtiers will only be remembered by the People to be execrated for their wicked designs to sever and destroy the only good Government on the globe, and that prosperity and happiness we enjoy over every other portion of the World. Haman's gallows ought to be the fate of all such ambitious men who would involve their Country in Civil War, and all the evils in its train, that they might reign and ride on its whirlwinds and direct the storm. The Free People of these United States have spoken, and consigned these wicked demagogues to their proper doom. Take care of your Nullifiers; you have them among you; let them meet with the indignant frowns of every man who loves his Country. The Tariff, it is now known, was a mere pretext—its burden was on your coarse woolens. By the law of July, 1832, coarse woolen was reduced to five per cent., for the benefit of the South. Mr. Clay's Bill takes it up and classes it with woolens at fifty per cent., reduces it gradually down to twenty per cent., and there it is to remain, and Mr. Calhoun and all the Nullifiers agree to the principle. The cash duties and home valuation will be equal to fifteen per cent. more, and after the year 1842, you pay on coarse woolens thirty-five per cent. If this is not Protection, I cannot understand; therefore the Tariff was only the pretext, and Disunion and a Southern Confederacy the real object. The next pretext will be the Negro or Slavery question.

"My health is not good, but is improving a little. Present me kindly to your lady and family, and believe me to be your friend. I will always be happy to hear from you. "ANDREW JACKSON."

Another evidence is given in the following extract from Benton's "Thirty Years in the Senate," vol. ii., as follows:

"The regular inauguration of this Slavery agitation dates from the year 1835; but it had commenced two years before, and in this way: Nullification and Disunion had commenced in 1830, upon complaint against Protective

Tariff. That, being put down in 1833 under President Jackson's proclamation and energetic measures, was immediately substituted by the Slavery agitation. Mr. Calhoun, when he went home from Congress in the spring of that year, told his friends that 'the South could never be united against the North on the Tariff question—that the sugar interest of Louisiana would keep her out—and that the basis of Southern Union must be shifted to the Slave question.' Then all the papers in his interest, and especially the one at Washington, published by Mr. Duff Green, dropped Tariff agitation, and commenced upon Slavery, and in two years had the agitation ripe for inauguration, on the Slavery question. And in tracing this agitation to its present stage, and to comprehend its rationale, it is not to be forgotten that it is a mere continuation of old Tariff Disunion, and preferred because more available."

Again, from p. 490 of his private correspondence, Mr. Clay's words to an Alabamian, in 1844, are thus given:

"From the developments now being made in South Carolina, it is perfectly manifest that a Party exists in that State seeking a Dissolution of the Union, and for that purpose employ the pretext of the rejection of Mr. Tyler's abominable treaty. South Carolina, being surrounded by Slave States, would, in the event of a Dissolution of the Union, suffer only comparative evils; but it is otherwise with Kentucky. She has the boundary of the Ohio extending four hundred miles on three Free States. What would our condition be in the event of the greatest calamity that could befall this Nation?"

Allusion is also made to a letter written by Representative Nathan Appleton, of Boston, December 15, 1860, in which that gentleman said that when he was in Congress—in 1832-33—he had "made up his mind that Messrs. Calhoun, Hayne, McDuffie, etc., were desirous of a separation of the Slave States into a separate Confederacy, as more favorable to the security of Slave Property."

After mentioning that "About 1835, some South Carolinians attempted a Disunion demonstration," our authority says: It is thus described by ex-Governor Francis Thomas of Maryland, in his speech in Baltimore, October 29, 1861:

"Full twenty years ago, when occupying my seat in the House of Representatives, I was surprised one morning, after the assembling of the

House, to observe that all the members from the Slaveholding States were absent. Whilst reflecting on this strange occurrence, I was asked why I was not in attendance on the Southern Caucus assembled in the room of the Committee on Claims. I replied that I had received no invitation.

"I then proposed to go to the Committee-room to see what was being done. When I entered, I found that little cock-sparrow, Governor Pickens, of South Carolina, addressing the meeting, and strutting about like a rooster around a barn-yard coop, discussing the following resolution:

"" Resolved, That no member of Congress, representing a Southern constituency, shall again take his seat until a resolution is passed satisfactory to the South on the subject of Slavery.'

"I listened to his language, and when he had finished, I obtained the floor, asking to be permitted to take part in the discussion. I determined at once to kill the Treasonable plot hatched by John C. Calhoun, the Catiline of America, by asking questions. I said to Mr. Pickens, 'What next do you propose we shall do? are we to tell the People that Republicanism is a failure? If you are for that, I am not. I came here to sustain and uphold American institutions; to defend the rights of the North as well as the South; to secure harmony and good fellowship between all Sections of our common Country.' They dared not answer these questions. The Southern temper had not then been gotten up. As my questions were not answered, I moved an adjournment of the Caucus /sine die/. Mr. Craig, of Virginia, seconded the motion, and the company was broken up. We returned to the House, and Mr. Ingersoll, of Pennsylvania, a glorious patriot then as now, introduced a resolution which temporarily calmed the excitement."

The remarks upon this statement, made November 4, 1861, by the National Intelligencer, were as follows:

"However busy Mr. Pickens may have been in the Caucus after it met, the most active man in getting it up and pressing the Southern members to go into it, was Mr. R. B. Rhett, also a member from South Carolina. The occasion, or alleged cause of this withdrawal from the House into secret deliberation was an anti-Slavery speech of Mr. Slade, of Vermont, which Mr. Rhett violently denounced, and proposed to the Southern members to leave the House and go into Conclave in one of the Committee-rooms, which they generally did, if not all of them. We are able to state, however, what may not have been known to Governor Thomas, that at least three

besides himself, of those who did attend it, went there with a purpose very different from an intention to consent to any Treasonable measure. These three men were Henry A. Wise, Balie Peyton, and William Cost Johnson. Neither of them opened his lips in the Caucus; they went to observe; and we can assure Governor Thomas, that if Mr. Pickens or Mr. Calhoun, (whom he names) or any one else had presented a distinct proposition looking to Disunion, or Revolt, or Secession, he would have witnessed a scene not soon to be forgotten. The three whom we have mentioned were as brave as they were determined. Fortunately, perhaps, the man whom they went particularly to watch, remained silent and passive."

Let us, however, pursue the inquiry a little further. On the 14th of November, 1860, Alexander H. Stephens addressed the Legislature of Georgia, and in a portion of that address—replying to a speech made before the same Body the previous evening by Mr. Toombs, in which the latter had "recounted the evils of this Government"—said:

"The first [of these evils] was the Fishing Bounties, paid mostly to the sailors of New England. Our friend stated that forty-eight years of our Government was under the administration of Southern Presidents. Well, these Fishing Bounties began under the rule of a Southern President, I believe. No one of them, during the whole forty-eight years, ever set his Administration against the principle or policy of them. * * *

"The next evil which my friend complained of, was the Tariff. Well, let us look at that for a moment. About the time I commenced noticing public matters, this question was agitating the Country almost as fearfully as the Slave question now is. In 1832, when I was in college, South Carolina was ready to Nullify or Secede from the Union on this account. And what have we seen? The Tariff no longer distracts the public counsels. Reason has triumphed! The present Tariff was voted for by Massachusetts and South Carolina. The lion and the lamb lay down together—every man in the Senate and House from Massachusetts and South Carolina, I think, voted for it, as did my honorable friend himself. And if it be true, to use the figure of speech of my honorable friend, that every man in the North that works in iron, and brass and wood, has his muscle strengthened by the protection of the Government, that stimulant was given by his vote and I believe (that of) every other Southern man.

"Mr. TOOMBS—The Tariff lessened the duties.

"Mr. STEPHENS—Yes, and Massachusetts with unanimity voted with the South to lessen them, and they were made just as low as Southern men asked them to be, and that is the rate they are now at. If reason and argument, with experience, produced such changes in the sentiments of Massachusetts from 1832 to 1857, on the subject of the Tariff, may not like changes be effected there by the same means—reason and argument, and appeals to patriotism on the present vexed question? And who can say that by 1875 or 1890, Massachusetts may not vote with South Carolina and Georgia upon all those questions that now distract the Country and threaten its peace and existence.

"Another matter of grievance alluded to by my honorable friend was the Navigation Laws. This policy was also commenced under the Administration of one of these Southern Presidents who ruled so well, and has been continued through all of them since. * * * One of the objects (of these) was to build up a commercial American marine by giving American bottoms the exclusive Carrying Trade between our own ports. This is a great arm of national power. This object was accomplished. We have now an amount of shipping, not only coastwise, but to foreign countries, which puts us in the front rank of the Nations of the World. England can no longer be styled the Mistress of the Seas. What American is not proud of the result? Whether those laws should be continued is another question. But one thing is certain; no President, Northern or Southern, has ever yet recommended their repeal. * * *

"These then were the true main grievances or grounds of complaint against the general system of our Government and its workings—I mean the administration of the Federal Government. As to the acts of the federal States I shall speak presently: but these three were the main ones used against the common head. Now, suppose it be admitted that all of these are evils in the system; do they overbalance and outweigh the advantages and great good which this same Government affords in a thousand innumerable ways that cannot be estimated? Have we not at the South, as well as the North, grown great, prosperous, and happy under its operations? Has any part of the World ever shown such rapid progress in the development of wealth, and all the material resources of national power and greatness, as the Southern States have under the General Government, notwithstanding all its defects?

"Mr. TOOMBS—In spite of it.

"Mr. STEPHENS—My honorable friend says we have, in spite of the General Government; that without it, I suppose he thinks, we might have done as well, or perhaps better, than we have done in spite of it. * * * Whether we of the South would have been better off without the Government, is, to say the least, problematical. On the one side we can only put the fact, against speculation and conjecture on the other. * * * The influence of the Government on us is like that of the atmosphere around us. Its benefits are so silent and unseen that they are seldom thought of or appreciated.

"We seldom think of the single element of oxygen in the air we breathe, and yet let this simple, unseen and unfelt agent be withdrawn, this life-giving element be taken away from this all-pervading fluid around us, and what instant and appalling changes would take place in all organic creation.

"It may be that we are all that we are 'in spite of the General Government,' but it may be that without it we should have been far different from what we are now. It is true that there is no equal part of the Earth with natural resources superior perhaps to ours. That portion of this Country known as the Southern States, stretching from the Chesapeake to the Rio Grande, is fully equal to the picture drawn by the honorable and eloquent Senator last night, in all natural capacities. But how many ages and centuries passed before these capacities were developed to reach this advanced age of civilization. There these same hills, rich in ore, same rivers, same valleys and plains, are as they have been since they came from the hand of the Creator; uneducated and uncivilized man roamed over them for how long no history informs us.

"It was only under our institutions that they could be developed. Their development is the result of the enterprise of our people, under operations of the Government and institutions under which we have lived. Even our people, without these, never would have done it. The organization of society has much to do with the development of the natural resources of any Country or any Land. The institutions of a People, political and moral, are the matrix in which the germ of their organic structure quickens into life—takes root, and develops in form, nature, and character. Our institutions constitute the basis, the matrix, from which spring all our characteristics of development and greatness. Look at Greece. There is the same fertile soil,

the same blue sky, the same inlets and harbors, the same AEgean, the same Olympus; there is the same land where Homer sung, where Pericles spoke; it is in nature the same old Greece—but it is living Greece no more.

"Descendants of the same people inhabit the country; yet what is the reason of this vast difference? In the midst of present degradation we see the glorious fragments of ancient works of art—temples, with ornaments and inscriptions that excite wonder and admiration—the remains of a once high order of civilization, which have outlived the language they spoke—upon them all, Ichabod is written—their glory has departed. Why is this so? I answer, their institutions have been destroyed. These were but the fruits of their forms of government, the matrix from which their great development sprang; and when once the institutions of a People have been destroyed, there is no earthly power that can bring back the Promethean spark to kindle them here again, any more than in that ancient land of eloquence, poetry and song.

"The same may be said of Italy. Where is Rome, once the mistress of the World? There are the same seven hills now, the same soil, the same natural resources; the nature is the same, but what a ruin of human greatness meets the eye of the traveler throughout the length and breadth of that most down-trodden land! why have not the People of that Heaven-favored clime, the spirit that animated their fathers? Why this sad difference?

"It is the destruction of their institutions that has caused it; and, my countrymen, if we shall in an evil hour rashly pull down and destroy those institutions which the patriotic hand of our fathers labored so long and so hard to build up, and which have done so much for us and the World, who can venture the prediction that similar results will not ensue? Let us avoid it if we can. I trust the spirit is among us that will enable us to do it. Let us not rashly try the experiment, for, if it fails, as it did in Greece and Italy, and in the South American Republics, and in every other place wherever liberty is once destroyed, it may never be restored to us again.

"There are defects in our government, errors in administration, and shortcomings of many kinds; but in spite of these defects and errors, Georgia has grown to be a great State. Let us pause here a moment.

"When I look around and see our prosperity in everything, agriculture, commerce, art, science, and every department of education, physical and mental, as well as moral advancement—and our colleges—I think, in the

face of such an exhibition, if we can, without the loss of power, or any essential right or interest, remain in the Union, it is our duty to ourselves and to posterity—let us not too readily yield to this temptation—to do so. Our first parents, the great progenitors of the human race, were not without a like temptation, when in the Garden of Eden. They were led to believe that their condition would be bettered—that their eyes would be opened—and that they would become as gods. They in an evil hour yielded—instead of becoming gods they only saw their own nakedness.

"I look upon this Country, with our institutions, as the Eden of the World, the Paradise of the Universe. It may be that out of it we may become greater and more prosperous, but I am candid and sincere in telling you that I fear if we rashly evince passion, and without sufficient cause shall take that step, that instead of becoming greater or more peaceful, prosperous, and happy—instead of becoming gods, we will become demons, and at no distant day commence cutting one another's throats. This is my apprehension.

"Let us, therefore, whatever we do, meet those difficulties, great as they are, like wise and sensible men, and consider them in the light of all the consequences which may attend our action. Let us see first clearly where the path of duty leads, and then we may not fear to tread therein."

Said Senator Wigfall, of Texas, March 4, 1861, in the United States Senate, only a few hours before Mr. Lincoln's Inauguration:

"I desire to pour oil on the waters, to produce harmony, peace and quiet here. It is early in the morning, and I hope I shall not say anything that may be construed as offensive. I rise merely that we may have an understanding of this question.

"It is not Slavery in the Territories, it is not expansion, which is the difficulty. If the resolution which the Senator from Wisconsin introduced here, denying the right of Secession, had been adopted by two-thirds of each branch of this department of the Government, and had been ratified by three-fourths of the States, I have no hesitation in saying that, so far as the State in which I live and to which I owe my allegiance is concerned, if she had no other cause for a disruption of the Union taking place, she would undoubtedly have gone out.

[To insert as an additional article of amendment to the Constitution, the following: "Under this Constitution, as

originally adopted, and as it now exists, no State has power to withdraw from the jurisdiction of the United States: but this Constitution, and all laws passed in pursuance of its delegated powers, are the Supreme Law of the Land, anything contained in any constitution, ordinance, or act of any State, to the contrary notwithstanding."]

"The moment you deny the right of self-government to the free White men of the South, they will leave the Government. They believe in the Declaration of Independence. They believe that:

"Governments are instituted among men, deriving their just powers from the consent of the governed; that, whenever any form of government becomes destructive of these ends, it is the right of the People to alter or to abolish it, and to institute a new Government, laying its foundation on such principles and organizing its powers in such form as to them shall seem most likely to effect their safety and happiness.'

"That principle of the Declaration of Independence is the one upon which the free White men of the South predicated their devotion to the present Constitution of the United States; and it was the denial of that, as much as anything else, that has created the dissatisfaction in that Section of the Country.

"There is no instrument of writing that has ever been written that has been more misapprehended and misunderstood and misrepresented than this same unfortunate Declaration of Independence, and no set of gentlemen have ever been so slandered as the fathers who drew and signed that Declaration.

"If there was a thing on earth that they did not intend to assert, it was that a Negro was a White man. As I said here, a short time ago, one of the greatest charges they made against the British Government was, that old King George was attempting to establish the fact practically that all men were created Free and Equal. They charged him in the Declaration of Independence with inciting their Slaves to insurrection. That is one of the grounds upon which they threw off their allegiance to the British Parliament.

"Another great misapprehension is, that the men who drafted that Declaration of Independence had any peculiar fancy for one form of

government rather than another. They were not fighting to establish a Democracy in this country; they were not fighting to establish a Republican form of government in this Country. Nothing was further from their intention.

"Alexander Hamilton, after he had fought for seven years, declared that the British form of government was the best that the ingenuity of man had ever devised; and when John Adams said to him, 'without its corruptions;' 'Why,' said he, 'its corruptions are its greatest excellence; without the corruptions, it would be nothing.'

"In the Declaration of Independence, they speak of George III., after this fashion. They say:

"A prince whose character is thus marked by every act which may define a tyrant, is unfit to be the ruler of a free People.'

"Now, I ask any plain common-sense man what was the meaning of that? Was it that they were opposed to a Monarchical form of government? Was it that they believed a Monarchical form of government was incompatible with civil liberty? No, sir; they entertained no such absurd idea. None of them entertained it; but they say that George III, was a prince whose character was 'marked by every act which may define a tyrant' and that therefore he was 'unfit to be the ruler of a free People.' Had his character not been so marked by every quality which would define a tyrant, he might have been the fit ruler of a free People; ergo, a monarchical form of Government was not incompatible with civil liberty.

"That was clearly the opinion of those men. I do not advocate it now; for I have said frequently that we are wiser than our fathers, and our children will be wiser than we are. One hundred years hence, men will understand their own affairs much better than we do. We understand our affairs better than those who preceded us one hundred years. But what I assert is, that the men of the Revolution did not believe that a Monarchical form of Government was incompatible with civil liberty.

"What I assert is, that when they spoke of 'all men being created equal,' they were speaking of the White men who then had unsheathed their swords—for what purpose? To establish the right of self-government in themselves; and when they had achieved that, they established, not Democracies, but Republican forms of Government in the thirteen sovereign, separate and independent Colonies. Yet the Declaration of

Independence is constantly quoted to prove Negro equality. It proves no such thing; it was intended to prove no such thing.

"The 'glittering generalities' which a distinguished former Senator from Massachusetts (Mr. Choate) spoke of, as contained in the Declaration of Independence, one of them at least, about all men being created equal—was not original with Mr. Jefferson. I recollect seeing a pamphlet called the Principles of the Whigs and Jacobites, published about the year 1745, when the last of the Stuarts, called 'the Pretender,' was striking a blow that was fatal to himself, but a blow for his crown, in which pamphlet the very phraseology is used, word for word and letter for letter. I have not got it here to-night. I sent the other day to the Library to try and find it, but could not find it; it was burnt, I believe, with the pamphlets that were burnt some time ago.

"That Mr. Jefferson copied it or plagiarized it, is not true, I suppose, any more than the charge that the distinguished Senator from New York plagiarized from the Federalist in preparing his celebrated compromising speech which was made here a short time ago. It was the cant phrase of the day in 1745, which was only about thirty years previous to the Declaration of Independence. This particular pamphlet, which I have read, was published; others were published at the same time. That sort of phraseology was used.

"There was a war of classes in England; there were men who were contending for legitimacy; who were contending for the right of the Crown being inherent and depending on the will of God, 'the divine right of Kings,' for maintaining an hereditary landed-aristocracy; there was another Party who were contending against this doctrine of legitimacy, and the right of primogeniture. These were called the Whigs; they established this general phraseology in denouncing the divine right and the doctrine of legitimacy, and it became the common phraseology of the Country; so that in the obscure county of Mecklenburg, in North Carolina, a declaration containing the same assertions was found as in this celebrated Declaration of Independence, written by the immortal Jefferson.

"Which of us, I ask, is there upon this floor who has not read and re-read whatever was written within the last twenty-five or thirty years by the distinguished men of this country? But enough of that.

"As I said before, there ought not have been, and there did not necessarily result from our form of Government, any irrepressible conflict between the Slaveholding and the non-Slaveholding States. Nothing of the sort was necessary.

"Strike out a single clause in the Constitution of the United States, that which secures to each State a Republican form of Government, and there is no reason why, under precisely such a Constitution as we have, States that are Monarchical and States that are Republican, could not live in peace and quiet. They confederate together for common defense and general welfare, each State regulating its domestic concerns in its own way; those which preferred a Republican form of Government maintaining it, and those which preferred a Monarchical form of Government maintaining it.

"But how long could small States, with different forms of Government, live together, confederated for common defense and general welfare, if the people of one Section were to come to the conclusion that their institutions were better than those of the other, and thereupon straightway set about subverting the institutions of the other?"

In the reply of the Rebel "Commissioners of the Southern Confederacy" to Mr. Seward, April 9, 1861, they speak of our Government as being "persistently wedded to those fatal theories of construction of the Federal Constitution always rejected by the statesmen of the South, and adhered to by those of the Administration school, until they have produced their natural and often-predicted result of the destruction of the Union, under which we might have continued to live happily and gloriously together, had the spirit of the ancestry who framed the common Constitution animated the hearts of all their sons."

In the "Address of the people of South Carolina, assembled in Convention, to the people of the Slaveholding States of the United States," by which the attempt was made to justify the passage of the South Carolina Secession Ordinance of 1860, it is declared that:

"Discontent and contention have moved in the bosom of the Confederacy, for the last thirty-five years. During this time South Carolina has twice called her people together in solemn Convention, to take into consideration, the aggressions and unconstitutional wrongs, perpetrated by the people of the North on the people of the South. These wrongs were submitted to by the people of the South, under the hope and expectation that they would be

final. But such hope and expectation have proved to be vain. Instead of producing forbearance, our acquiescence has only instigated to new forms of aggressions and outrage; and South Carolina, having again assembled her people in Convention, has this day dissolved her connection with the States constituting the United States.

"The one great evil from which all other evils have flowed, is the overthrow of the Constitution of the United States. The Government of the United States, is no longer the Government of Confederated Republics, but of a consolidated Democracy. It is no longer a free Government, but a Despotism. It is, in fact, such a Government as Great Britain attempted to set over our Fathers; and which was resisted and defeated by a seven years struggle for Independence.

"The Revolution of 1776, turned upon one great principle, self-government,—and self-taxation, the criterion of self-government.

"The Southern States now stand exactly in the same position towards the Northern States, that the Colonies did towards Great Britain. The Northern States, having the majority in Congress, claim the same power of omnipotence in legislation as the British Parliament. 'The General Welfare' is the only limit to the legislation of either; and the majority in Congress, as in the British Parliament, are the sole judges of the expediency of the legislation this 'General Welfare' requires. Thus the Government of the United States has become a consolidated Government; and the people of the Southern States are compelled to meet the very despotism their fathers threw off in the Revolution of 1776.

"The consolidation of the Government of Great Britain over the Colonies, was attempted to be carried out by the taxes. The British Parliament undertook to tax the Colonies to promote British interests. Our fathers resisted this pretension. They claimed the right of self-taxation through their Colonial Legislatures. They were not represented in the British Parliament, and, therefore, could not rightly be taxed by its legislation. The British Government, however, offered them a representation in Parliament; but it was not sufficient to enable them to protect themselves from the majority, and they refused the offer. Between taxation without any representation, and taxation without a representation adequate to protection, there was no difference. In neither case would the

Colonies tax themselves. Hence, they refused to pay the taxes laid by the British Parliament.

"And so with the Southern States, towards the Northern States, in the vital matter of taxation. They are in a minority in Congress. Their representation in Congress is useless to protect them against unjust taxation; and they are taxed by the people of the North for their benefit, exactly as the people of Great Britain taxed our ancestors in the British Parliament for their benefit. For the last forty years, the taxes laid by the Congress of the United States have been laid with a view of subserving the interests of the North. The people of the South have been taxed by duties on imports, not for revenue, but for an object inconsistent with revenue—to promote, by prohibitions, Northern interests in the productions of their mines and manufactures.

"There is another evil, in the condition of the Southern towards the Northern States, which our ancestors refused to bear towards Great Britain. Our ancestors not only taxed themselves, but all the taxes collected from them were expended amongst them. Had they submitted to the pretensions of the British Government, the taxes collected from them, would have been expended in other parts of the British Empire. They were fully aware of the effect of such a policy in impoverishing the people from whom taxes are collected, and in enriching those who receive the benefit of their expenditure.

"To prevent the evils of such a policy, was one of the motives which drove them on to Revolution, yet this British policy has been fully realized towards the Southern States, by the Northern States. The people of the Southern States are not only taxed for the benefit of the Northern States, but after the taxes are collected, three fourths of them are expended at the North. This cause, with others, connected with the operation of the General Government, has made the cities of the South provincial. Their growth is paralyzed; they are mere suburbs of Northern cities. The agricultural productions of the South are the basis of the foreign commerce of the United States; yet Southern cities do not carry it on. Our foreign trade is almost annihilated. * * *

"No man can for a moment believe, that our ancestors intended to establish over their posterity, exactly the same sort of Government they had overthrown. * * * Yet by gradual and steady encroachments on the part of

the people of the North, and acquiescence on the part of the South, the limitations in the Constitution have been swept away; and the Government of the United States has become consolidated, with a claim of limitless powers in its operations. * * *

"A majority in Congress, according to their interested and perverted views, is omnipotent. * * * Numbers with them, is the great element of free Government. A majority is infallible and omnipotent. 'The right divine to rule in Kings,' is only transferred to their majority. The very object of all Constitutions, in free popular Government, is to restrain the majority. Constitutions, therefore, according to their theory, must be most unrighteous inventions, restricting liberty. None ought to exist; but the body politic ought simply to have a political organization, to bring out and enforce the will of the majority. This theory is a remorseless despotism. In resisting it, as applicable to ourselves, we are vindicating the great cause of free Government, more important, perhaps, to the World, than the existence of all the United States."

In his Special Message to the Confederate Congress at Montgomery, April 29, 1861, Mr. Jefferson Davis said:

"From a period as early as 1798, there had existed in all the States a Party, almost uninterruptedly in the majority, based upon the creed that each State was, in the last resort, the sole judge, as well of its wrongs as of the mode and measure of redress. * * * The Democratic Party of the United States repeated, in its successful canvas of 1836, the declaration, made in numerous previous political contests, that it would faithfully abide by and uphold the principles laid down in the Kentucky and Virginia Legislatures of [1798 and] 1799, and that it adopts those principles as constituting one of the main foundations of its political creed."

In a letter addressed by the Rebel Commissioners in London (Yancey, Rost and Mann), August 14, 1861, to Lord John Russell, Secretary of Foreign Affairs, it appears that they said: "It was from no fear that the Slaves would be liberated, that Secession took place. The very Party in power has proposed to guarantee Slavery forever in the States, if the South would but remain in the Union." On the 4th of May preceding, Lord John had received these Commissioners at his house; and in a letter of May 11, 1861, wrote, from the Foreign Office, to Lord Lyons, the British Minister at Washington, a letter, in which, alluding to his informal communication with

them, he said: "One of these gentlemen, speaking for the others, dilated on the causes which had induced the Southern States to Secede from the Northern. The principal of these causes, he said, was not Slavery, but the very high price which, for the sake of Protecting the Northern manufacturers, the South were obliged to pay for the manufactured goods which they required. One of the first acts of the Southern Congress was to reduce these duties, and to prove their sincerity he gave as an instance that Louisiana had given up altogether that Protection on her sugar which she enjoyed by the legislation of the United States. As a proof of the riches of the South. He stated that of \$350,000,000 of exports of produce to foreign countries \$270,000,000 were furnished by the Southern States." * * * They pointed to the new Tariff of the United States as a proof that British manufactures would be nearly excluded from the North, and freely admitted in the South.

This may be as good a place as any other to say a few words touching another alleged "cause" of Secession. During the exciting period just prior to the breaking out of the great War of the Rebellion, the Slave-holding and Secession-nursing States of the South, made a terrible hubbub over the Personal Liberty Bills of the Northern States. And when Secession came, many people of the North supposed these Bills to be the prime, if not the only real cause of it. Not so. They constituted, as we now know, only a part of the mere pretext. But, none the less, they constituted a portion of the history of that eventful time, and cannot be altogether ignored.

In order then, that the reader may quickly grasp, not only the general nature, but also the most important details of the Personal Liberty Bills (in force, in 1860, in many of the Free States) so frequently alluded to in the Debates of Congress, in speeches on the stump, and in the fulminations of Seceding States and their authorized agents, commissioners, and representatives, it may be well now, briefly to refer to them, and to state that no such laws existed in California, Illinois, Indiana, Iowa, Minnesota, New York, Ohio and Oregon.

Those of Maine provided that no officer of the State should in any way assist in the arrest or detention of a Fugitive Slave, and made it the duty of county attorneys to defend the Fugitive Slave against the claim of his master. A Bill to repeal these laws passed the Maine Senate, but failed in the House.

That of Massachusetts provided for commissioners in each county to defend alleged Fugitives from Service or Labor; for payment by the Commonwealth of all expenses of defense; prohibited the issue or service of process by State officers for arrest of alleged Fugitives, or the use of any prisons in the State for their detention, or that of any person aiding their escape; prohibited the kidnapping or removal of alleged Fugitive Slaves by any person; prohibited all officers within the State, down to Town officers, from arresting, imprisoning, detaining or returning to Service "any Person for the reason that he is claimed or adjudged to be a Fugitive from Service or Labor"—all such prohibitions being enforced by heavy fines and imprisonment. The Act of March 25, 1861, materially modified and softened the above provisions.

New Hampshire's law, provided that all Slaves entering the State with consent of the master shall be Free, and made the attempt to hold any person as a Slave within the State a felony.

Vermont's, prescribed that no process under the Fugitive Slave Law should be recognized by any of her Courts, officers, or citizens; nor any aid given in arresting or removing from the State any Person claimed as a Fugitive Slave; provided counsel for alleged Fugitives; for the issue of habeas corpus and trial by jury of issues of fact between the parties; ordained Freedom to all within the State who may have been held as Slaves before coming into it, and prescribed heavy penalties for any attempt to return any such to Slavery. A bill to repeal these laws, proposed November, 1860, in the Vermont House of Representatives, was beaten by two to one.

Connecticut's, provided that there must be two witnesses to prove that a Person is a Slave; that depositions are not evidence; that false testifying in Fugitive Slave cases shall be punishable by fine of \$5,000 and five years in State prison.

In New Jersey, the only laws touching the subject, permitted persons temporarily sojourning in the State to bring and hold their Slaves, and made it the duty of all State officers to aid in the recovery of Fugitives from Service.

In Pennsylvania, barring an old dead-letter Statute, they simply prohibited any interference by any of the Courts, Aldermen, or Justices of the Peace, of the Commonwealth, with the functions of the Commissioner appointed under the United States Statute in Fugitive Slave cases.

In Michigan, the law required States' attorneys to defend Fugitive Slaves; prescribed the privileges of habeas corpus and jury trial for all such arrested; prohibited the use of prisons of the State for their detention; required evidence of two credible witnesses as to identity; and provided heavy penalties of fine and imprisonment for the seizure of any Free Person, with intent to have such Person held in Slavery. A Bill to repeal the Michigan law was defeated in the House by about two to one.

Wisconsin's Personal Liberty law was similar to that of Michigan, but with this addition, that no judgment recovered against any person in that State for violating the Fugitive Slave Law of 1850 should be enforced by sale or execution of any real or personal property in that State.

That of Rhode Island, forbade the carrying away of any Person by force out of the State; forbade the official aiding in the arrest or detention of a Fugitive Slave; and denied her jails to the United States for any such detention.

Apropos of this subject, and before leaving it, it may be well to quote remarks of Mr. Simons of Rhode Island, in the United States Senate. Said he: "Complaint has been made of Personal Liberty Bills. Now, the Massachusetts Personal Liberty Bill was passed by a Democratic House, a Democratic Senate, and signed by a Democratic Governor, a man who was afterwards nominated by Mr. Polk for the very best office in New England, and was unanimously confirmed by a Democratic United States Senate. Further than this, the very first time the attention of the Massachusetts Legislature was called to the propriety of a repeal of this law was by a Republican Governor. Now, on the other hand, South Carolina had repealed a law imprisoning British colored sailors, but retained the one imprisoning those coming from States inhabited by her own brethren!"

These Personal Liberty Bills were undoubtedly largely responsible for some of the irritation on the Slavery question preceding open hostilities between the Sections. But President Lincoln sounded the real depths of the Rebellion when he declared it to be a War upon the rights of the People. In his First Annual Message, December 3, 1861, he said:

"It continues to develop that the insurrection is largely, if not exclusively, a War upon the first principle of popular government—the rights of the People. Conclusive evidence of this is found in the most grave and maturely considered public documents, as well as in the general tone of the

insurgents. In those documents we find the abridgment of the existing right of suffrage, and the denial to the People of all right to participate in the selection of public officers, except the legislative, boldly advocated, with labored arguments to prove that large control of the People in government is the source of all political evil. Monarchy itself is sometimes hinted at as a possible refuge from the power of the People.

"In my present position, I could scarcely be justified were I to omit raising a warning voice against this approach of returning despotism.

"It is not needed, nor fitting here, that a general argument should be made in favor of popular institutions; but there is one point, with its connections, not so hackneyed as most others, to which I ask brief attention. It is the effort to place Capital on an equal footing with, if not above Labor, in the structure of the Government.

"It is assumed that Labor is available only in connection with Capital; that nobody labors unless somebody else, owning Capital, somehow by the use of it induces him to labor. This assumed, it is next considered whether it is best that Capital shall hire laborers, and thus induce them to work by their own consent, or buy them, and drive them to it without their consent. Having proceeded so far, it is naturally concluded that all laborers are either hired laborers, or what we call Slaves. And further, it is assumed that whoever is once a hired laborer is fixed in that condition for life.

"Now, there is no such relation between Capital and Labor as assumed; nor is there any such thing as a free man being fixed for life, in the condition of a hired laborer. Both these assumptions are false, and all inferences from them are groundless.

"Labor is prior to, and independent of Capital. Capital is only the fruit of Labor, and could never have existed if Labor had not first existed. Labor is the superior of Capital, and deserves much the higher consideration. Capital has its rights, which are as worthy of protection as any other rights. Nor is it denied that there is, and probably always will be, a relation between Labor and Capital, producing mutual benefits. The error is in assuming that the whole Labor of the community exists within that relation.

"A few men own Capital, and that few, avoid labor themselves, and with their Capital hire or buy another few to labor for them. A large majority belong to neither class—neither work for others, nor have others working for them.

"In most of the Southern States, a majority of the whole people of all colors are neither Slaves nor masters; while in the Northern, a large majority are neither hirers nor hired. Men with their families—wives, sons, and daughters—work for themselves, on their farms, in their houses, and in their shops, taking the whole product to themselves, and asking no favors of Capital on the one hand, nor of hired laborers or Slaves on the other.

"It is not forgotten that a considerable number of persons mingle their own Labor with Capital—that is they labor with their own hands, and also buy or hire others to labor for them; but this is only a mixed, and not a distinct class. No principle stated is disturbed by the existence of this mixed class.

"Again, as has already been said, there is not, of necessity, any such thing as the free hired-laborer being fixed to that condition for life. Many independent men everywhere in these States, a few years back in their lives, were hired laborers.

"The prudent, penniless beginner in the World, labors for wages awhile, saves a surplus with which to buy tools or land for himself, then labors on his own account another while, and at length hires another new beginner to help him. This is the just and generous and prosperous system, which opens the way to all, gives hope to all, and consequent energy and progress, and improvement of condition to all.

"No men living are more worthy to be trusted than those who toil up from poverty—none less inclined to take or touch aught which they have not honestly earned. Let them beware of surrendering a political power which they already possess, and which, if surrendered, will surely be used to close the door of advancement against such as they, and to fix new disabilities and burdens upon them, till all of Liberty shall be lost. * * * The struggle of to-day is not altogether for to-day—it is a vast future also. * * * "

So too, Andrew Johnson, in his speech before the Senate, January 31, 1862, spoke well and truly when he said that "there has been a deliberate design for years to change the nature and character and genius of this Government." And he added: "Do we not know that these schemers have been deliberately at work, and that there is a Party in the South, with some associates in the North, and even in the West, that have become tired of Free Government, in which they have lost confidence."

Said he: "They raise an outcry against 'Coercion,' that they may paralyze the Government, cripple the exercise of the great powers with which it was invested, finally to change its form and subject us to a Southern despotism. Do we not know it to be so? Why disguise this great truth? Do we not know that they have been anxious for a change of Government for years? Since this Rebellion commenced it has manifested itself in many quarters.

"How long is it since the organ of the Government at Richmond, the Richmond Whig, declared that rather than live under the Government of the United States, they preferred to take the Constitutional Queen of Great Britain as their protector; that they would make an alliance with Great Britain for the purpose of preventing the enforcement of the Laws of the United States. Do we not know this?"

Stephen A. Douglas also, in his great Union speech at Chicago, May 1, 1861—only a few days before his lamented death—said:

"The election of Mr. Lincoln is a mere pretext. The present Secession movement is the result of an enormous Conspiracy formed more than a year since formed by leaders in the Southern Confederacy more than twelve months ago. They use the Slavery question as a means to aid the accomplishment of their ends. They desired the election of a Northern candidate by a Sectional vote, in order to show that the two Sections cannot live together.

"When the history of the two years from the Lecompton question down to the Presidential election shall be written, it will be shown that the scheme was deliberately made to break up this Union.

"They desired a Northern Republican to be elected by a purely Northern vote, and then assign this fact as a reason why the Sections cannot live together. If the Disunion candidate—(Breckinridge) in the late Presidential contest had carried the united South, their scheme was, the Northern candidate successful, to seize the Capital last Spring, and by a united South and divided North, hold it.

"Their scheme was defeated, in the defeat of the Disunion candidates in several of the Southern States.

"But this is no time for a detail of causes. The Conspiracy is now known; Armies have been raised. War is levied to accomplish it. There are only two sides to the question.

"Every man must be for the United States, or against it. There can be no Neutrals in this War; only Patriots or Traitors! [Cheer after Cheer]."

In a speech made in the United States Senate, January 31, 1862, Senator McDougall of California—conceded to be intellectually the peer of any man in that Body—said:

"We are at War. How long have we been at War? We have been engaged in a war of opinion, according to my historical recollection, since 1838. There has been a Systematic organized war against the Institutions established by our fathers, since 1832. This is known of all men who have read carefully the history of our Country. If I had the leisure, or had consulted the authorities, I would give it year by year, and date by date, from that time until the present, how men adversary to our Republican Institutions have been organizing War against us, because they did not approve of our Republican Institutions.

"Before the Mexican War, it is well known that General Quitman, then Governor of Mississippi, was organizing to produce the same condition of things (and he hoped a better condition of things, for he hoped a successful Secession), to produce this same revolution that is now disturbing our whole Land. The War with Mexico, fighting for a Southern proposition, for which I fought myself, made the Nation a unit until 1849; and then again they undertook an Organization to produce Revolution. These things are history. This statement is true, and cannot be denied among intelligent men anywhere, and cannot be denied in this Senate.

"The great men who sat in Council in this Hall, the great men of the Nation, men whose equals are not, and I fear will not be for many years, uniting their judgments, settled the controversy in 1850. They did not settle it for the Conspirators of the South, for they were not parties to the compact. Clay and Webster, and the great men who united with them, had no relation with the extremes of either extreme faction. The Compromise was made, and immediately after it had been effected, again commenced the work of organization. I had the honor to come from my State on the Pacific into the other branch of the Federal Congress, and there I learned as early as 1853, that the work of Treason was as industriously pursued as it is being pursued to-day. I saw it; I felt it; I knew it. I went home to the shores of the Pacific instructed somewhat on this subject.

"Years passed by. I engaged in my duties as a simple professional man, not connected with public affairs. The question of the last Presidential election arose before the Country—one of those great questions that are not appreciated, I regret from my heart, by the American Nation, when we elect a President, a man who has more power for his time than any enthroned Monarch in Europe. We organize a Government and place him in front as the head and the Chief of the Government. That question came before the American People.

"At that time I was advised of this state of feeling—and I will state it in as exact form of words as I can state it, that it may be understood by Senators: Mr. Douglas is a man acceptable to the South. Mr. Douglas is a man to whom no one has just cause of exception throughout the South. Mr. Douglas is more acceptable to Mississippi and Louisiana than Mr. Breckinridge. Mr. Breckinridge is not acceptable to the South; or at least, if he is so, he is not in the same degree with Mr. Douglas. Mr. Douglas is the accepted man of a great National Party, and if he is brought into the field he will be triumphantly elected. THAT MUST NOT BE DONE, because THE ORGANIZATION FOR SECESSION IS MATURED. EVERYTHING IS PREPARED, and the election of Mr. Douglas would only postpone it for four years; and Now when we are PREPARED to carry out these things WE MUST INDULGE IN STRATAGEM, and the nomination of Mr. Breckinridge is a mere strategic movement to divide the great conservative Party of the Nation into two, so as to elect a Republican candidate AND CONSOLIDATE THE SOUTH BY THE CRY OF 'ABOLITIONIST!'

"That is a mere simple statement of the truth, and it cannot be contradicted. Now, in that scheme all the men of counsel of that Party were engaged. * * * I, on the far shores of the Pacific understood those things as long ago as a year last September (1860). I was advised about this policy and well informed of it. * * *

"I was at war, in California, in January (1861) last; in the maintenance of the opinions that I am now maintaining, I had to go armed to protect myself from violence. The country, whenever there was controversy, was agitated to its deepest foundations. That is known, perhaps, not to gentlemen who live up in Maine or Massachusetts, or where you are foreign to all this agitation; but known to all people where disturbance might have been

effective in consequences. I felt it, and had to carry my life in my hand by the month, as did my friends surrounding me.

"I say that all through last winter (that of 1860-61) War had been inaugurated in all those parts of the Country where disturbed elements could have efficient result. In January (1861), a year ago, I stood in the hall of the House of Representatives of my State, and there was War then, and angry faces and hostile men were gathered; and we knew then well that the Southern States had determined to withdraw themselves from the Federal Union.

"I happened to be one of those men who said, 'they shall not do it;' and it appears to me that the whole argument is between that class of men and the class of men who said they would let them do it. * * * When this doctrine was started here of disintegrating the Cotton States from the rest of the Confederacy, I opposed it at once. I saw immediately that War was to be invoked. * * *

"I will not say these things were understood by gentlemen of the Republican Party * * * but I, having been accepted and received as a Democrat of the old school from the olden time, and HAVING FAST SOUTHERN SYMPATHIES, I DID KNOW ALL ABOUT THEM. * * * I KNOW THAT SECESSION WAS A THING DETERMINED UPON. * * * I was advised of and understood the whole programme, KNEW HOW IT WAS TO BE DONE IN ITS DETAILS; and I being advised, made war against it. * * *

"War had been, in fact, inaugurated. What is War? Was it the firing on our flag at Sumter? Was that the first adversary passage? To say so, is trifling with men's judgments and information. No, sir; when they organized a Government, and set us at defiance, they commenced War; and the various steps they took afterwards, by organizing their troops, and forming their armies, and advancing upon Sumter; all these were merely acts of War; but War was inaugurated whenever they undertook to say they would maintain themselves as a separate and independent government; and, after that time, every man who gave his assistance to them was a Traitor, according to the highest Law."

The following letter, written by one of the most active of the Southern conspirators in 1858, during the great Douglas and Lincoln Debate of that year, to which extended reference has already been made, is of interest in

this connection, not only as corroborative evidence of the fact that the Rebellion of the Cotton States had been determined on long before Mr. Lincoln was elected President, but as showing also that the machinery for "firing the Southern heart" and for making a "solid South" was being perfected even then. The subsequent split in the Democratic Party, and nomination of Breckinridge by the Southern wing of it, was managed by this same Yancey, simply as parts of the deliberate programme of Secession and Rebellion long before determined on by the Cotton Lords of the Cotton States.

"MONTGOMERY, June 15, 1858.

"DEAR SIR:—Your kind favor of the 13th is received.

"I hardly agree with you that a general movement can be made that will clean out the Augean Stable. If the Democracy were overthrown it would result in giving place to a greedier and hungrier swarm of flies.

"The remedy of the South is not in such a process. It is in a diligent organization of her true men for prompt resistance to the next aggression. It must come in the nature of things. No National Party can save us. No Sectional Party can ever do it. But if we could do as our fathers did—organize 'Committees of Safety' all over the Cotton States (and it is only in them that we can hope for any effective movement), we shall fire the Southern heart, instruct the Southern mind, give courage to each other, and at the proper moment, by one organized, concerted action, we can precipitate the Cotton States into a revolution.

"The idea has been shadowed forth in the South by Mr. Ruffin; has been taken up and recommended in the Advertiser under the name of 'League of United Southerners,' who, keeping up their old relations on all other questions, will hold the Southern issues paramount, and influence parties, legislatures and statesmen. I have no time to enlarge, but to suggest merely.

"In haste, yours, etc. "W. L. YANCEY.

"To JAMES S. SLAUGHTER."

At Jackson, Mississippi, in the fall of the same year (1858) just after the great Debate between Douglas and Lincoln had closed, Jefferson Davis had already raised the standard of Revolution, Secession and Disunion, during the course of a speech, in which he said: "If an Abolitionist be chosen President of the United States, you will have presented to you the question

of whether you will permit the Government to pass into the hands of your avowed and implacable enemies? Without pausing for an answer, I will state my own position to be, that such a result would be a species of revolution by which the purposes of the Government would be destroyed, and the observance of its mere forms entitled to no respect. In that event, in such a manner as should be most expedient, I should deem it your duty to provide for your safety, outside of the Union with those who have already shown the will, and would have acquired the power to deprive you of your birthright, and to reduce you to worse than the Colonial dependence of your fathers."

The "birthright" thus referred to was of course, the alleged right to have Slaves; but what was this "worse than Colonial dependence" to which, in addition to the peril supposed to threaten the Southern "birthright," the Cotton States of Mississippi were reduced? "Dependence" upon whom, and with regard to what? Plainly upon the North; and with regard, not to Slavery alone—for Jefferson Davis held, down to the very close of the War, that the South fought "not for Slavery"—but as to Tariff Legislation also. There was the rub! These Cotton Lords believed, or pretended to believe, that the High Tariff Legislation, advocated and insisted upon both by the Whigs and Republicans for the Protection of the American Manufacturer and working man, built up and made prosperous the North, and elevated Northern laborers; at the expense of the South, and especially themselves, the Cotton Lords aforesaid.

We have already seen from the utterances of leading men in the South Carolina, Secession Convention, "that"—as Governor Hicks, himself a Southern man, said in his address to the people of Maryland, after the War broke out "neither the election of Mr. Lincoln, nor the non-execution of the Fugitive Slave Law, nor both combined, constitute their grievances. They declare that THE REAL CAUSE of their discontent DATES AS FAR BACK AS 1833."

And what was the chief cause or pretext for discontent at that time? Nothing less than the Tariff. They wanted Free Trade, as well as Slavery. The balance of the Union wanted Protection, as well as Freedom.

The subsequent War, then, was not a War waged for Slavery alone, but for Independence with a view to Free Trade, as set forth in the "Confederate Constitution," as soon as that Independence could be achieved. And the War

on our part, while for the integrity of the Union in all its parts—for the life of the Nation itself, and for the freedom of man, should also have brought the triumph of the American idea of a Protective Tariff, whose chief object is the building up of American manufactures and the Protection of the Free working-man, in the essential matters of education, food, clothing, rents, wages, and work.

It is mentioned in McPherson's History of the Rebellion, p. 392, that in a letter making public his reasons for going to Washington and taking his seat in Congress, Mr. James L. Pugh, a Representative from Alabama, November 24, 1860, said: "The sole object of my visit is to promote the cause of Secession."

From the manner in which they acted after reaching Washington, it is not unreasonable to suppose that most of those persons representing, in both branches of Congress, the Southern States which afterwards seceded, came to the National Capital with a similar object in view—taking their salaries and mileages for services supposed to be performed for the benefit of the very Government they were conspiring to injure, and swearing anew the sacred oath to support and defend the very Constitution which they were moving heaven and earth to undermine and destroy!

[As a part of the history of those times, the following letter is not without interest:

"OXFORD, December 24, 1860.

"MY DEAR SIR:—I regretted having to leave Washington without having with you a full conference as to the great events whose shadows are upon us. The result of the election here is what the most sanguine among us expected; that is, its general result is so. It is as yet somewhat difficult to determine the distinctive complexion of the convention to meet on the 7th of January. The friends of Southern Independence, of firm and bona fide resistance, won an overwhelming victory; but I doubt whether there is any precise plan.

"No doubt a large majority of the Convention will be for separate Secession. But unless intervening events work important changes of sentiment, not all of those elected as

resistance men will be for immediate and separate Secession. Our friends in Pontotoc, Tippah, De Soto and Pauola took grounds which fell far short of that idea, though their resolutions were very firm in regard to Disunion and an ultimate result.

"In the meantime the Disunion sentiment among the people is growing every day more intense.

"Upon the whole, you have great cause for gratification in the action of your State.

"The submissionists are routed, horse, foot, and dragoons, and any concession by the North will fail to restore that sacred attachment to the Union which was once so deeply radicated in the hearts of our people. What they want now, is wise and sober leading. I think that there might be more of dignity and prudent foresight in the action of our State than have marked the proceedings of South Carolina. I have often rejoiced that we have you to rest upon and confide in. I do not know what we could do without you. That God may preserve you to us, and that your mind may retain all its vigor to carry us through these perilous times, is my most fervent aspiration.

"I am as ever, and forever, your supporter, ally and friend.

"L. Q. C. LAMAR.

"COL. JEFF. DAVIS, Washington, D. C."]

This was but a part of the deliberate, cold-blooded plan mapped out in detail, early in the session succeeding the election of Mr. Lincoln, in a secret Caucus of the Chief Plotters of the Treason. It was a secret conference, but the programme resolved on, soon leaked out.

The following, which appeared in the Washington National Intelligencer on Friday, January 11, 1861, tells the story of this stage of the Great Conspiracy pretty clearly:

"The subjoined communication, disclosing the designs of those who have undertaken to lead the movement now threatening a permanent dissolution of the Union, comes to us from a distinguished citizen of the South

[understood to be Honorable Lemuel D. Evans, Representative from Texas in the 34th Congress, from March 4, 1855, to March 3, 1857] who formerly represented his State with great distinction in the popular branch of Congress.

"Temporarily sojourning in this city he has become authentically informed of the facts recited in the subjoined letter, which he communicates to us under a sense of duty, and for the accuracy of which he makes himself responsible.

"Nothing but assurances coming from such an intelligent, reliable source could induce us to accept the authenticity of these startling statements, which so deeply concern not only the welfare but the honor of the Southern people.

"To them we submit, without present comment, the programme to which they are expected to yield their implicit adhesion, without any scruples of conscience as without any regard for their own safety.

""WASHINGTON, January 9, 1861.

""I charge that on last Saturday night (January 5th), a Caucus was held in this city by the Southern Secession Senators from Florida, Georgia, Alabama, Mississippi, Louisiana, Arkansas and Texas. It was then and there resolved in effect to assume to themselves the political power of the South, and, to control all political and military operations for the present, they telegraphed to complete the plan of seizing forts, arsenals, and custom-houses, and advised the Conventions now in session, and soon to assemble, to pass Ordinances for immediate Secession; but, in order to thwart any operations of the Government here, the Conventions of the Seceding States are to retain their representations in the Senate and the House.

""They also advised, ordered, or directed the assembling of a Convention of delegates from the Seceding States at Montgomery on the 13th of February. This can of course only be done by the revolutionary Conventions usurping the powers of the people, and sending delegates over whom they will lose all control in the establishment of a Provisional Government, which is the plan of the dictators.

""This Caucus also resolved to take the most effectual means to dragoon the Legislatures of Tennessee, Kentucky, Missouri, Arkansas, Texas, and Virginia into following the Seceding States. Maryland is also to be influenced by such appeals to popular passion as have led to the

revolutionary steps which promise a conflict with the State and Federal Governments in Texas.

""They have possessed themselves of all the avenues of information in the South—the telegraph, the press, and the general control of the postmasters. They also confidently rely upon defections in the army and navy.

""The spectacle here presented is startling to contemplate. Senators entrusted with the representative sovereignty of the States, and sworn to support the Constitution of the United States, while yet acting as the privy councillors of the President, and anxiously looked to by their constituents to effect some practical plan of adjustment, deliberately conceive a Conspiracy for the overthrow of the Government through the military organizations, the dangerous secret order, the 'Knights of the Golden Circle,' 'Committees of Safety,' Southern leagues, and other agencies at their command; they have instituted as thorough a military and civil despotism as ever cursed a maddened Country.

""It is not difficult to foresee the form of government which a Convention thus hurriedly thrown together at Montgomery will irrevocably fasten upon a deluded and unsuspecting people. It must essentially be 'a Monarchy founded upon military principles,' or it cannot endure. Those who usurp power never fail to forge strong chains.

""It may be too late to sound the alarm. Nothing may be able to arrest the action of revolutionary tribunals whose decrees are principally in 'secret sessions.' But I call upon the people to pause and reflect before they are forced to surrender every principle of liberty, or to fight those who are becoming their masters rather than their servants. ""EATON"

"As confirming the intelligence furnished by our informant we may cite the following extract from the Washington correspondence of yesterday's Baltimore Sun:

""The leaders of the Southern movement are consulting as to the best mode of consolidating their interests into a Confederacy under a Provisional Government. The plan is to make Senator Hunter, of Virginia, Provisional President, and Jefferson Davis Commander-in-Chief of the army of defense. Mr. Hunter possesses in a more eminent degree the philosophical characteristics of Jefferson than any other statesman now living. Colonel Davis is a graduate of West Point, was distinguished for gallantry at Buena

Vista, and served as Secretary of War under President Pierce, and is not second to General Scott in military science or courage.'

"As further confirmatory of the above, the following telegraphic dispatch in the Charleston Mercury of January 7, 1861, is given:

""[From our Own Correspondent.]

""WASHINGTON, January 6.—The Senators from those of the Southern States which have called Conventions of their people, met in caucus last night, and adopted the following resolutions:

""Resolved, That we recommend to our respective States immediate Secession.

""Resolved, That we recommend the holding of a General Convention of the said States, to be holden in the city of Montgomery, Alabama, at some period not later than the 15th day of February, 1861.'

"These resolutions were telegraphed this evening to the Conventions of Alabama, Mississippi, and Florida. A third resolution is also known to have been adopted, but it is of a confidential character, not to be divulged at present. There was a good deal of discussion in the caucus on the question of whether the Seceding States ought to continue their delegations in Congress till the 4th of March, to prevent unfriendly legislation, or whether the Representatives of the Seceding States should all resign together, and leave a clear field for the opposition to pass such bills, looking to Coercion, as they may see fit. It is believed that the opinion that they should remain prevailed."

Furthermore, upon the capture of Fernandina, Florida, in 1862, the following letter was found and published. Senator Yulee, the writer, was present and participated as one of the Florida Senators, in the traitorous "Consultation" therein referred to—and hence its especial value:

"WASHINGTON, January 7, 1861.

"My DEAR SIR:—On the other side is a copy of resolutions adopted at a consultation of the Senators from the Seceding States—in which Georgia, Alabama, Louisiana, Arkansas, Texas, Mississippi, and Florida were present.

"The idea of the meeting was that the States should go out at once, and provide for the early organization of a Confederate Government, not later than 15th February. This time is allowed to enable Louisiana and Texas to

participate. It seemed to be the opinion that if we left here, force, loan, and volunteer Bills might be passed, which would put Mr. Lincoln in immediate condition for hostilities; whereas, by remaining in our places until the 4th of March, it is thought we can keep the hands of Mr. Buchanan tied, and disable the Republicans from effecting any legislation which will strengthen the hands of the incoming Administration.

"The resolutions will be sent by the delegation to the President of the Convention. I have not been able to find Mr. Mallory (his Senatorial colleague) this morning. Hawkins (Representative from Florida) is in Connecticut. I have therefore thought it best to send you this copy of the resolutions.

"In haste, yours truly "D. L. YULEE.

"JOSEPH FINEGAN, Esq., "'Sovereignty Convention,' Tallahassee, Fla."

The resolutions "on the other side" of this letter, to which he refers, are as follows:

"Resolved, 1—That in our opinion each of the Southern States should, as soon as may be, Secede from the Union.

"Resolved, 2—That provision should be made for a Convention to organize a Confederacy of the Seceding States, the Convention to meet not later than the 15th of February, at the city of Montgomery, in the State of Alabama.

"Resolved, That in view of the hostile legislation that is threatened against the Seceding States, and which may be consummated before the 4th of March, we ask instructions whether the delegations are to remain in Congress until that date for the purpose of defeating such legislation.

"Resolved, That a committee be and are hereby appointed, consisting of Messrs. Davis, Slidell, and Mallory, to carry out the objects of this meeting."

In giving this letter to the World—from its correspondent accompanying the expedition—the New York Times of March 15, 1862, made these forcible and clear-headed comments:

"The telegraphic columns of the Times of January 7, 1861, contained the following Washington dispatch: 'The Southern Senators last night (January 5th) held a conference, and telegraphed to the Conventions of their respective States to advise immediate Secession.' Now, the present letter is a report by Mr. Yulee, who was present at this 'consultation' as he calls it, of the resolutions adopted on this occasion, transmitted to the said Finegan, who by the way, was a member of the 'Sovereign Convention' of Florida, then sitting in the town of Tallahassee.

"It will thus be seen that this remarkable letter, which breathes throughout the spirit of the Conspirator, in reality lets us into one of the most important of the numerous Secret Conclaves which the Plotters of Treason then held in the Capital. It was then, as it appears, that they determined to strike the blow and precipitate their States into Secession. But at the same time they resolved that it would be imprudent for them openly to withdraw, as in that case Congress might pass 'force, loan, and volunteer bills,' which would put Mr. Lincoln in immediate condition for hostilities. No, no! that would not do. (So much patriotic virtue they half suspected, half feared, was left in the Country.) On the contrary, 'by remaining in our places until the 4th of March it is thought we can keep the hands of Mr. Buchanan tied, and disable the Republicans from effecting any legislation which will strengthen the hands of the incoming Administration.' Ah what a tragic back-ground, full of things unutterable, is there!

"It appears, however, that events were faster than they, and instead of being able to retain their seats up to the 4th of March, they were able to remain but a very few weeks. Mr. Davis withdrew on the 21st of January, just a fortnight after this 'consultation.' But for the rest, mark how faithfully the programme here drawn up by this knot of Traitors in secret session was realized. Each of the named States represented by this Cabal did, 'as soon as may be, Secede from the Union'—the Mississippi Convention passing its Ordinance on the heels of the receipt of these resolutions, on the 9th of January; Florida and Alabama on the 11th; Louisiana on the 26th, and Texas on the 1st of February; while the 'organization of the Confederate Government' took place at the very time appointed, Davis being inaugurated on the 18th of February.

"And here is another Plot of the Traitors brought to light. These very men, on withdrawing from the Senate, urged that they were doing so in

obedience to the command of their respective States. As Mr. Davis put it, in his parting speech, 'the Ordinance of Secession having passed the Convention of his State, he felt obliged to obey the summons, and retire from all official connection with the Federal Government.' This letter of Mr. Yulee's clearly reveals that they had themselves pushed their State Conventions to the adoption of the very measure which they had the hardihood to put forward as an imperious 'summons' which they could not disobey. It is thus that Treason did its Work."

CHAPTER XII.

COPPERHEADISM VS. UNION DEMOCRACY.

When we remember that it was on the night of the 5th of January, 1861, that the Rebel Conspirators in the United States Senate met and plotted their confederated Treason, as shown in the Yulee letter, given in the preceding Chapter of this work, and that on the very next day, January 6, 1861, Fernando Wood, then Mayor of the great city of New York, sent in to the Common Council of that metropolis, his recommendation that New York city should Secede from its own State, as well as the United States, and become "a Free City," which, said he, "may shed the only light and hope of a future reconstruction of our once blessed Confederacy," it is impossible to resist the conviction that this extraordinary movement of his, was inspired and prompted, if not absolutely directed, by the secret Rebel Conclave at Washington. It bears within itself internal evidences of such prompting.

Thus, when Mayor Wood states the case in the following words, he seems to be almost quoting word for word an instruction received by him from these Rebel leaders—in connection with their plausible argument, upholding it. Says he:

"Much, no doubt, can be said in favor of the justice and policy of a separation. It may be said that Secession or revolution in any of the United States would be subversive of all Federal authority, and, so far as the central Government is concerned, the resolving of the community into its original elements—that, if part of the States form new combinations and, Governments, other States may do the same. Then it may be said, why should not New York city, instead of supporting by her contributions in revenue two-thirds of the expenses of the United States, become also equally independent? As a Free City, with but nominal duty on imports, her local Government could be supported without taxation upon her people. Thus we could live free from taxes, and have cheap goods nearly duty free. In this she would have the whole and united support of the Southern States,

as well as all the other States to whose interests and rights under the Constitution she has always been true."

That is the persuasive casuistry peculiar to the minds of the Southern Secession leaders. It is naturally followed by a touch of that self-confident bluster, also at that time peculiar to Southern lips—as follows:

"It is well for individuals or communities to look every danger square in the face, and to meet it calmly and bravely. As dreadful as the severing of the bonds that have hitherto united the States has been in contemplation, it is now apparently a stern and inevitable fact. We have now to meet it, with all the consequences, whatever they may be. If the Confederacy is broken up the Government is dissolved, and it behooves every distinct community, as well as every individual, to take care of themselves.

"When Disunion has become a fixed and certain fact, why may not New York disrupt the bands which bind her to a venal and corrupt master—to a people and a Party that have plundered her revenues, attempted to ruin her commerce, taken away the power of self-government, and destroyed the Confederacy of which she was the proud Empire City? * * *"

After thus restating, as it were, the views and "arguments" of the Rebel Junta, as we may presume them to have been pressed on him, he becomes suddenly startled at the Conclave's idea of meeting "all the consequences, whatever they may be," and, turning completely around, with blanching pen, concludes:

"But I am not prepared to recommend the violence implied in these views. In stating this argument in favor of freedom, 'peaceably if we can, forcibly if we must,' let me not be misunderstood. The redress can be found only in appeals to the magnanimity of the people of the whole State." * * *

If "these views" were his own, and not those of the Rebel Conclave, he would either have been "prepared to recommend the violence implied in them," or else he would have suppressed them altogether. But his utterance is that of one who has certain views for the first time placed before him, and shrinks from the consequences of their advocacy—shrinks from "the violence implied" in them—although for some reason he dares not refuse to place those views before the people.

And, in carrying out his promise to do so—"In stating this argument," presumably of the Rebel Conclave, "in favor of freedom, 'peaceably if we can, forcibly if we must'"—the language used is an admission that the

argument is not his own. Were it his own, would he not have said in "making" it, instead of in "stating" it? Furthermore, had he been "making" it of his own accord, he would hardly have involved himself in such singular contradictions and explanations as are here apparent. He was plainly "stating" the Rebel Conclave's argument, not making one himself. He was obeying orders, under the protest of his fears. And those fears forced his trembling pen to write the saving-clause which "qualifies" the Conclave's second-hand bluster preceding it.

That the Rebels hoped for Northern assistance in case of Secession, is very clear from many speeches made prior to and soon after the election of Mr. Lincoln to the Presidency—and from other sources of information. Thus we find in a speech made by Representative L. M. Keitt, of South Carolina, in Charleston, November, 1860, the following language, reported by the Mercury:

"But we have been threatened. Mr. Amos Kendall wrote a letter, in which he said to Colonel Orr, that if the State went out, three hundred thousand volunteers were ready to march against her. I know little about Kendall—and the less the better. He was under General Jackson; but for him the Federal treasury seemed to have a magnetic attraction.

"Jackson was a pure man, but he had too many around him who made fortunes far transcending their salaries. [Applause.] And this Amos Kendall had the same good fortune under Van Buren. He (Kendall) threatened us on the one side, and John Hickman on the other. John Hickman said, defiantly, that if we went out of the Union, eighteen millions of Northern men would bring us back.

"Let me tell you, there are a million of Democrats in the North who, when the Black Republicans attempt to march upon the South, will be found a wall of fire in the front. [Cries of 'that's so,' and applause.]"

Harper's Weekly of May 28, 1864, commenting on certain letters of M. F. Maury and others, then just come to light, said:

"How far Maury and his fellow-conspirators were justified in their hopes of seducing New Jersey into the Rebellion, may be gathered from the correspondence that took place, in the spring of 1861, between Ex-Governor Price, of New Jersey, who was one of the representatives from that State in the Peace Congress, and L. W. Burnet, Esq., of Newark.

"Mr. Price, in answering the question what ought New Jersey to do, says: 'I believe the Southern confederation permanent. The proceeding has been taken with forethought and deliberation—it is no hurried impulse, but an irrevocable act, based upon the sacred, as was supposed, equality of the States; and in my opinion every Slave State will in a short period of time be found united in one Confederacy. * * * Before that event happens, we cannot act, however much we may suffer in our material interests. It is in that contingency, then, that I answer the second part of your question:—What position for New Jersey will best accord with her interests, honor, and the patriotic instincts of her people? I say emphatically she would go with the South from every wise, prudential, and patriotic reason.'

"Ex-Governor Price proceeds to say that he is confident the States of Pennsylvania and New York will 'choose also to cast their lot with the South, and after them, the Western and Northwestern States.'"

The following resolution,* was adopted with others, by a meeting of Democrats held January 16, 1861, at National Hall, Philadelphia, and has been supposed to disclose "a plan, of which ex-Governor Price was likely aware:"

"Twelfth—That in the deliberate judgment of the Democracy of Philadelphia, and, so far as we know it, of Pennsylvania, the dissolution of the Union by the separation of the whole South, a result we shall most sincerely lament, may release this Commonwealth to a large extent from the bonds which now connect her with the Confederacy, except so far as for temporary convenience she chooses to submit to them, and would authorize and require her citizens, through a Convention, to be assembled for that purpose, to determine with whom her lot should be cast, whether with the North and the East, whose fanaticism has precipitated this misery upon us, or with our brethren of the South, whose wrongs we feel as our own; or whether Pennsylvania should stand by herself, as a distinct community, ready when occasion offers, to bind together the broken Union, and resume her place of loyalty and devotion."

Senator Lane of Oregon, replying to Senator Johnson of Tennessee, December 19, 1860, in the United States Senate, and speaking of and for the Northern Democracy, said:

"They will not march with him under his bloody banner, or Mr. Lincoln's, to invade the soil of the gallant State of South Carolina, when she may

withdraw from a Confederacy that has refused her that equality to which she is entitled, as a member of the Union, under the Constitution. On the contrary, when he or any other gentleman raises that banner and attempts to subjugate that gallant people, instead of marching with him, we will meet him there, ready to repel him and his forces. He shall not bring with him the Northern Democracy to strike down a people contending for rights that have been refused them in a Union that ought to recognize the equality of every member of the Confederacy. * * * I now serve notice that, when War is made upon that gallant South for withdrawing from a Union which refuses them their rights, the Northern Democracy will not join in the crusade. THE REPUBLICAN PARTY WILL HAVE WAR ENOUGH AT HOME. THE DEMOCRACY OF THE NORTH NEED NOT CROSS THE BORDER TO FIND AN ENEMY."

The following letter from Ex-President Pierce is in the same misleading strain:

"CLARENDON HOTEL, January 6, 1860.—[This letter was captured, at Jeff. Davis's house in Mississippi, by the Union troops.]

"MY DEAR FRIEND:—I wrote you an unsatisfactory note a day or two since. I have just had a pleasant interview with Mr. Shepley, whose courage and fidelity are equal to his learning and talents. He says he would rather fight the battle with you as the standard-bearer in 1860, than under the auspices of any other leader. The feeling and judgment of Mr. S. in this relation is, I am confident, rapidly gaining ground in New England. Our people are looking for 'the coming man,' one who is raised by all the elements of his character above the atmosphere ordinarily breathed by politicians, a man really fitted for this exigency by his ability, courage, broad statesmanship, and patriotism. Colonel Seymour (Thomas H.) arrived here this morning, and expressed his views in this relation in almost the identical language used by Mr. Shepley.

"It is true that, in the present state of things at Washington and throughout the country, no man can predict what changes two or three months may bring forth. Let me suggest that, in the running debates in Congress, full justice seems to me not to have been done to the Democracy of the North. I do not believe that our friends at the South have any just idea of the state of feeling, hurrying at this moment to the pitch of intense exasperation, between those who respect their political obligations and those who have

apparently no impelling power but that which fanatical passion on the subject of Domestic Slavery imparts.

"Without discussing the question of right, of abstract power to Secede, I have never believed that actual disruption of the Union can occur without blood; and if, through the madness of Northern Abolitionism, that dire calamity must come, THE FIGHTING WILL NOT BE ALONG MASON'S AND DIXON'S LINE MERELY. IT [WILL] BE WITHIN OUR OWN BORDERS, IN OUR OWN STREETS, BETWEEN THE TWO CLASSES OF CITIZENS TO WHOM I HAVE REFERRED. Those who defy law and scout Constitutional obligations will, if we ever reach the arbitrament of arms, FIND OCCUPATION ENOUGH AT HOME.

"Nothing but the state of Mrs. Pierce's health would induce me to leave the Country now, although it is quite likely that my presence at home would be of little service.

"I have tried to impress upon our people, especially in New Hampshire and Connecticut, where the only elections are to take place during the coming spring, that while our Union meetings are all in the right direction, and well enough for the present, they will not be worth the paper upon which their resolutions are written unless we can overthrow political Abolitionism at the polls and repeal the Unconstitutional and obnoxious laws which, in the cause of 'personal liberty,' have been placed upon our statute-books. I shall look with deep interest, and not without hope, for a decided change in this relation.

"Ever and truly your friend, "FRANKLIN PIERCE.

"Hon. JEFF. DAVIS, "Washington, D. C."

But let us turn from contemplating the encouragements to Southern Treason and Rebellion, held out by Northern Democratic Copperheads, to the more pleasing spectacle of Loyalty and Patriotism exhibited by the Douglas wing of Democracy.

Immediately after Sumter, and while the President was formulating his Message, calling for 75,000 volunteers, Douglas called upon him at the White House, regretted that Mr. Lincoln did not propose to call for thrice as many; and on the 18th of April, having again visited the White House, wrote, and gave the following dispatch to the Associated Press, for circulation throughout the Country:

"April 18, 1861, Senator Douglas called on the President, and had an interesting conversation on the present condition of the Country. The substance of it was, on the part of Mr. Douglas, that while he was unalterably opposed to the administration in all its political issues, he was prepared to fully sustain the President in the exercise of all his Constitutional functions, to preserve the Union, maintain the Government, and defend the Federal Capital. A firm policy and prompt action was necessary. The Capital was in danger and must be defended at all hazards, and at any expense of men and money. He spoke of the present and future without any reference to the past."

It is stated of this meeting and its immediate results: "The President was deeply gratified by the interview. To the West, Douglas telegraphed, 'I am for my Country and against all its assailants.' The fire of his patriotism spread to the masses of the North, and Democrat and Republican rallied to the support of the flag. In Illinois the Democratic and Republican presses vied with each other in the utterance of patriotic sentiments. * * * Large and numerous attended Mass meetings met, as it were with one accord, irrespective of parties, and the people of all shades of political opinions buried their party hatchets. Glowing and eloquent orators exhorted the people to ignore political differences in the present crisis, join in the common cause, and rally to the flag of the Union and the Constitution. It was a noble truce. From the many resolutions of that great outpouring of patriotic sentiment, which ignored all previous party ties, we subjoin the following:

"Resolved, that it is the duty of all patriotic citizens of Illinois, without distinction of party or sect, to sustain the Government through the peril which now threatens the existence of the Union; and of our Legislature to grant such aid of men and money as the exigency of the hour and the patriotism of our people shall demand.'

"Governor Yates promptly issued his proclamation, dated the 15th of April, convening the Legislature for the 23rd inst. in Extraordinary Session.

* * * * *

"On the evening of the 25th of April, Mr. Douglas, who had arrived at the Capital the day before, addressed the General Assembly and a densely packed audience, in the Hall of Representatives, in that masterly effort, which must live and be enshrined in the hearts of his countrymen so long as

our Government shall endure. Douglas had ever delighted in the mental conflicts of Party strife; but now, when his Country was assailed by the red hand of Treason, he was instantly divested of his Party armor and stood forth panoplied only in the pure garb of a true Patriot.

"He taught his auditory—he taught his Country, for his speeches were telegraphed all over it—the duty of patriotism at that perilous hour of the Nation's Life. He implored both Democrats and Republicans to lay aside their Party creeds and Platforms; to dispense with Party Organizations and Party Appeals; to forget that they were ever divided until they had first rescued the Government from its assailants. His arguments were clear, convincing, and unanswerable; his appeals for the Salvation of his Country, irresistible. It was the last speech, but one, he ever made."

Among other pithy and patriotic points made by him in that great speech—[July 9, 1861.]—were these: "So long as there was a hope of a peaceful solution, I prayed and implored for Compromise. I have spared no effort for a peaceful solution of these troubles; I have failed, and there is but one thing to do—to rally under the flag." "The South has no cause of complaint." "Shall we obey the laws or adopt the Mexican system of War, on every election." "Forget Party—all remember only your Country." "The shortest road to Peace is the most tremendous preparation for War." "It is with a sad heart and with a grief I have never before experienced, that I have to contemplate this fearful Struggle. * * * But it is our duty to protect the Government and the flag from every assailant, be he who he may."

In Chicago, Douglas repeated his patriotic appeal for the preservation of the Union, and tersely declared that "There can be no Neutrals in this War—only Patriots and Traitors." In that city he was taken with a mortal illness, and expired at the Tremont House, June 3, 1861—just one month prior to the meeting of the called Session of Congress.

The wonderful influence wielded by Douglas throughout the North, was well described afterward by his colleague, Judge Trumbull, in the Senate, when he said: "His course had much to do in producing that unanimity in support of the Government which is now seen throughout the Loyal States. The sublime spectacle of twenty million people rising as one man in vindication of Constitutional Liberty and Free Government, when assailed by misguided Rebels and plotting Traitors, is, to a considerable extent due

to his efforts. His magnanimous and patriotic course in this trying hour of his Country's destiny was the crowning act of his life."

And Senator McDougall of California—his life-long friend—in describing the shock of the first intelligence that reached him, of his friend's sudden death, with words of even greater power, continued: "But, as, powerless for the moment to resist the tide of emotions, I bowed my head in silent grief, it came to me that the Senator had lived to witness the opening of the present unholy War upon our Government; that, witnessing it, from the Capital of his State, as his highest and best position, he had sent forth a War-cry worthy of that Douglass, who, as ancient legends tell, with the welcome of the knightly Andalusian King, was told,

*"'Take thou the leading of the van, And charge the Moors
again; There is not such a lance as thine In all the hosts of
Spain.'*

"Those trumpet notes, with a continuous swell, are sounding still throughout all the borders of our Land. I heard them upon the mountains and in the valleys of the far State whence I come. They have communicated faith and strength to millions. * * * I ceased to grieve for Douglas. The last voice of the dead Douglas I felt to be stronger than the voice of multitudes of living men."

And here it may not be considered out of place for a brief reference to the writer's own position at this time; especially as it has been much misapprehended and misstated. One of the fairest of these statements* runs thus:

*[Lusk's History of the Politics of Illinois from 1856 to
1884, p. 175.]*

"It is said that Logan did not approve the great speech made by Senator Douglas, at Springfield, in April, 1861, wherein he took the bold ground that in the contest which was then clearly imminent to him, between the North and the South, that there could be but two parties, Patriots and Traitors. But granting that there was a difference between Douglas and Logan at that time, it did not relate to their adhesion to the Cause of their Country Logan had fought for the Union upon the plains of Mexico, and

again stood ready to give his life, if need be, for his Country, even amid the cowardly slanders that were then following his pathway.

"The difference between Douglas and Logan was this: Mr. Douglas was fresh from an extended campaign in the dissatisfied Sections of the Southern States, and he was fully apprised of their intention to attempt the overthrow of the Union, and was therefore in favor of the most stupendous preparations for War.

"Mr. Logan, on the other hand, believed in exhausting all peaceable means before a resort to Arms, and in this he was like President Lincoln; but when he saw there was no alternative but to fight, he was ready and willing for armed resistance, and, resigning his seat in Congress, entered the Army, as Colonel of the Thirty-first Illinois Infantry, and remained in the field in active service until Peace was declared."

This statement is, in the main, both fair and correct.

It is no more correct, however, in intimating that "Logan did not approve the great speech made by Senator Douglas, at Springfield, in April, 1861, wherein he took the bold ground that in the contest which was then clearly imminent to him, between the North and the South, that there could be but two parties, Patriots and Traitors," than others have been in intimating that he was disloyal to the Union, prior to the breaking out of hostilities—a charge which was laid out flat in the Senate Chamber, April 19, 1881.

[In Dawson's Life of Logan, pp. 348-353, this matter is thus alluded to:

"In an early part of this work the base charge that Logan was not loyal before the War has been briefly touched on. It may be well here to touch on it more fully. As was then remarked, the only man that ever dared insinuate to Logan's face that he was a Secession sympathizer before the War, was Senator Ben Hill of Georgia, in the United States Senate Chamber, March 30, 1881; and Logan instantly retorted: 'Any man who insinuates that I sympathized with it at that time insinuates what is false,' and Senator Hill at once retracted the insinuation."

"Subsequently, April 19, 1881, Senator Logan, in a speech, fortified with indisputable record and documentary

evidence, forever set at rest the atrocious calumny. From that record it appears that on the 17th December, 1860, while still a Douglas Democrat, immediately after Lincoln's election, and long before his inauguration, and before even the first gun of the war was fired, Mr. Logan, then a Representative in the House, voted affirmatively on a resolution, offered by Morris of Illinois, which declared an 'immovable attachment' to 'our National Union,' and 'that it is our patriotic duty to stand by it as our hope in peace and our defense in war;' that on the 7th January, 1861, Mr. Adrian having offered the following 'Resolved, That we fully approve of the bold and patriotic act of Major Anderson in withdrawing from Fort Moultrie to Fort Sumter, and of the determination of the President to maintain that fearless officer in his present position; and that we will support the President in all constitutional measures to enforce the laws and preserve the Union'—Mr. Logan, in casting his vote, said: 'As the resolution receives my unqualified approval, I vote Aye;' and that further on the 5th of February, 1861, before the inauguration of President Lincoln, in a speech made by Logan in the House in favor of the Crittenden Compromise measures, he used the following language touching Secession:

"Sir, I have always denied, and do yet deny, the right of Secession. There is no warrant for it in the Constitution. It is wrong, it is unlawful, unconstitutional, and should be called by the right name—revolution. No good, sir, can result from it, but much mischief may. It is no remedy for any grievances. I hold that all grievances can be much easier redressed inside the Union than out of it.'

"In that same speech he also * * * said:

"I have been taught that the preservation of this glorious Union, with its broad flag waving over us as the shield for our protection on land and on sea, is paramount to all the parties and platforms that ever have existed or ever can exist. I would, to day, if I had the power, sink my own party

and every other one, with all their platforms, into the vortex of ruin, without heaving a sigh or shedding a tear, to save the Union, or even stop the revolution where it is.'

"In this most complete speech of vindication—which Senator Logan said he put upon record, 'First, that my children, after me, may not have these slanders thrown in their faces without the power of dispelling or refuting them; and second, that they may endure in this Senate Chamber, so that it may be a notice to Senators of all parties and all creeds that hereafter, while I am here in the Senate, no insinuation of that kind will be submitted to by me'—the proofs of the falsity of the charge were piled mountain-high, and among them the following voluntary statements from two Democratic Senators, who were with him before the War, in the House of Representatives:

""United States Senate Chamber, WASHINGTON, April 14, 1881.

""DEAR SIR: In a discussion in the Senate a few weeks since you referred to the fact that a Southern Senator, who had served with you in Congress before the War, could testify that during your term of service there you gave no encouragement to the Secession of the Southern States, adding, however, that you did not ask such testimony. I was not sure at the time that your reference was to me, as Senator Pugh of Alabama, was also a member of that Congress.

""Since then, having learned that your reference was to me, I propose on the floor of the Senate, should suitable occasion offer, to state what I know of your position and views at the time referred to. But, as I may be absent from the Senate for some time, I deem it best to give you this written statement, with full authority to use it in any way that seems proper to you.

""When you first came to Congress in——, you were a very ardent and impetuous Democrat. In the division which took place between Mr. Douglas and his friends, on the one

hand, and the Southern Democrats, on the other, you were a warm and uncompromising supporter of Mr. Douglas; and in the course of that convention you became somewhat estranged from your party associates in the South. In our frequent discussions upon the subjects of difference, I never heard a word of sympathy from your lips with Secession in either theory or practice. On the contrary, you were vehement in your opposition to it.'

"I remember well a conversation I had with you just before leaving Washington to become a candidate for the Secession convention. You expressed the deep regret you felt at my proposed action, and deplored the contemplated movement in terms as strong as any I heard from any Republican.' Yours truly, "L. Q. C. LAMAR

"Hon. JOHN A. LOGAN. "United States Senate, Washington, D. C.'

"Senate Chamber, April 14, 1881.

"Having read the above statement of Senator Lamar, I fully concur with him in my recollection of your expressions and action in opposition to Secession. Truly yours, J. L. PUGH.'

"At the conclusion of Senator Logan's speech of refutation, Senator Brown of Georgia (Democrat) said:

"Our newspapers may have misrepresented his position. I am now satisfied they did. I have heard the Senator's statement with great interest, and I take pleasure in saying—for I had some idea before that there was some shadow of truth in this report—that I think his vindication' is full, complete, and conclusive.'

"I recollect very well during the war, when I was Governor of my State and the Federal army was invading it, to have had a large force of militia aiding the Confederate army, and that Gen. Logan was considered by us as one of the ablest, most gallant, and skillful leaders of the Federal army. We had occasion to feel his power, and we learned to respect him.'

"Senator Beck, of Kentucky (Democrat), referring to the fact that he was kept out of the House at one time, and a great many suggestions had been made to him as to General Logan, continued:

"As I said the other day, I never proposed to go into such things, and never have done so; but at that time General Frank Blair was here, and I submitted many of the papers I received to him,—I never thought of using any of them,—and I remember the remark that he made to me: Beck, John Logan was one of the hardest fighters of the war; and when many men who were seeking to whistle him down the wind because of his politics when the war began, were snugly fixed in safe places, he was taking his life in his hand wherever the danger was greatest—and I tore up every paper I got, and burnt it in the fire before his eyes.'

"Senator Dawes of Massachusetts (Republican), also took occasion to say:

"Mr. President, I do not know that anything which can be said on this side would be of any consequence to the Senator from Illinois in this matter. But I came into the House of Representatives at the same session that the Senator did.

"He was at that time one of the most intense of Democrats, and I was there with him when the Rebellion first took root and manifested itself in open and flagrant war; and I wish to say as a Republican of that day, when the Senator from Illinois was a Democrat, that at the earliest possible moment when the Republican Party was in anxiety as to the position of the Northern Democracy on the question of forcible assault on the Union, nothing did they hail with more delight than the early stand which the Senator from Illinois, from the Democratic side of the House, took upon the question of resistance to the Government of the United States.

"I feel that it is right that I should state that he was among the first, if not the very first, of the Northern Democrats who came out openly and declared, whatever may have been

their opinion about the doctrines of the Republican Party, that when it came to a question of forcible resistance, they should be counted on the side of the Government, and in co-operation with the Republican Party in the attempt to maintain its authority.'

"I am very glad, whether it be of any service or not, to bear this testimony to the early stand the Senator from Illinois took while he was still a Democrat, and the large influence he exerted upon the Northern Democracy, which kept it from being involved in the condition and in the work of the Southern Democracy at that time.'"]

So far from this being the case, the fact is—and it is here mentioned in part to bring out the interesting point that, had he lived, Douglas would have been no idle spectator of the great War that was about to be waged—that when Douglas visited Springfield, Illinois, to make that great speech in the latter part of April, 1861, the writer went there also, to see and talk over with him the grave situation of affairs, not only in the Nation generally, but particularly in Illinois. And on that occasion Mr. Douglas said to him, substantially: "The time has now arrived when a man must be either for or against his Country. Indeed so strongly do I feel this, and that further dalliance with this question is useless, that I shall myself take steps to join the Array, and fight for the maintenance of the Union."

To this the writer replied that he was "equally well convinced that each and every man must take his stand," and that he also "purposed at an early day to raise a Regiment and draw the sword in that Union's defense."

This was after Sumter, and only seventy days before Congress was to meet in Called Session. When that session met, Douglas had, weeks before, gone down to the grave amid the tears of a distracted Nation, with the solemn injunction upon his dying lips: "Obey the Laws and Defend the Constitution"—and the writer had returned to Washington, to take his seat in Congress, with that determination still alive in his heart.

In fact there had been all along, substantial accord between Mr. Douglas and the writer. There really was no "difference between Douglas and Logan" as to "preparations for War," or in "exhausting all Peaceable means

before a resort to Arms," and both were in full accord with President Lincoln on these points.

Let us see if this is not of record: Take the writer's speech in the House of Representatives, February 5, 1861, and it will be seen that he said: "I will go as far as any man in the performance of a Constitutional duty to put down Rebellion, to suppress Insurrection, and to enforce the Laws." Again, he said, "If all the evils and calamities that have ever happened since the World began, could be gathered in one Great Catastrophe, its horrors could not eclipse, in their frightful proportions, the Drama that impends over us."

From these extracts it is plain enough that even at this very early day the writer fully understood the "frightful proportions" of the impending struggle, and would "go as far as"—not only Mr. Douglas, but—"any man, to put down Rebellion"—which necessarily involved War, and "preparations for War." But none the less, but rather the more, because of the horrors which he foresaw must be inseparable from so terrible a War, was he anxious by timely mutual Concessions—"by any sacrifice," as he termed it—if possible, to avert it.

He was ready to sink Party, self, and to accept any of the Propositions to that end—Mr. Douglas's among them.

[See his speech of February 5, 1861, Congressional Globe]

In this attitude also he was in accord with Mr. Douglas, who, as well as the writer, was ready to make any sacrifice, of Party or self; to "exhaust every effort at peaceful adjustment," before resorting to War. The fact is they were much of the time in consultation, and always in substantial accord.

In a speech made in the Senate, March 15, 1861, Mr. Douglas had reduced the situation to the following three alternative points:

"1. THE RESTORATION AND PRESERVATION OF THE UNION by such Amendments to the Constitution as will insure the domestic tranquillity, safety, and equality of all the States, and thus restore peace, unity, and fraternity, to the whole Country.

"2. A PEACEFUL DISSOLUTION OF THE UNION by recognizing the Independence of such States as refuse to remain in the Union without such

Constitutional Amendments, and the establishment of a liberal system of commercial and social intercourse with them by treaties of commerce and amity.

"3. WAR, with a view to the subjugation and military occupation of those States which have Seceded or may Secede from the Union."

As a thorough Union man, he could never have agreed to a "Peaceful Dissolution of the Union." On the other hand he was equally averse to War, because he held that "War is Disunion. War is final, eternal Separation." Hence, all his energies and talents were given to carrying out his first-stated line of policy, and to persuading the Seceders to accept what in that line was offered to them by the dominant party.

His speech in the Senate, March 25, 1861, was a remarkable effort in that respect. Mr. Breckinridge had previously spoken, and had declared that: "Whatever settlement may be made of other questions, this must be settled upon terms that will give them [the Southern States] either a right, in common with others, to emigrate into all the territory, or will secure to them their rights on a principle of equitable division."

Mr. Douglas replied: "Now, under the laws as they stand, in every Territory of the United States, without any exception, a Southern man can go with his Slave-property on equal terms with all other property. * * * Every man, either from the North or South, may go into the Territories with his property on terms of exact equality, subject to the local law; and Slave-property stands on an equal footing with all other kinds of property in the Territories of the United States. It now stands on an equal footing in all the Territories for the first time.

"I have shown you that, up to 1859, little more than a year ago, it was prohibited in part of the Territories. It is not prohibited anywhere now. For the first time, under Republican rule, the Southern States have secured that equality of rights in the Territories for their Slave-property which they have been demanding so long."

He held that the doctrine of Congressional prohibition in all the Territories, as incorporated in the Wilmot proviso, had now been repudiated by the Republicans of both Houses of Congress, who had "all come over to Non-intervention and Popular Sovereignty;" that the "Wilmot proviso is given up; that Congressional prohibition is given up; that the aggressive policy is repudiated; and hereafter the Southern man and the Northern man

may move into the Territories with their Property on terms of entire equality, without excepting Slaves or any other kind of property."

Continuing, he said: "What more do the Southern States want? What more can any man demand? Non-intervention is all you asked. Will it be said the South required in addition to this, laws of Congress to protect Slavery in the Territories? That cannot be said; for only last May, the Senate, by a nearly unanimous vote—a unanimous vote of the Southern men, with one or two exceptions—declared that affirmative legislation was not needed at this time. * * * What cause is there for further alarm in the Southern States, so far as the Territories are concerned? * * *

"I repeat, the South has got all they ever claimed in all the Territories. * * * Then, sir, according to law, the Slaveholding States have got equality in the Territories. How is it in fact. * * * Now, I propose to show that they have got the actual equitable partition, giving them more than they were disposed to demand.

"The Senator from Kentucky, * * * Mr. Crittenden, introduced a proposition for an equitable partition. That proposition was, that north of 36 30' Slavery should be prohibited, and South of it should be protected, by Territorial law. * * * What is now the case? It is true the Crittenden proposition has not yet become part of the Constitution; but it is also true that an equitable partition has been made by the vote of the people themselves, establishing, maintaining, and protecting Slavery in every inch of territory South of the thirty-seventh parallel, giving the South half a degree more than the Crittenden Proposition.

"There stands your Slave-code in New Mexico protecting Slavery up to the thirty-seventh degree as effectually as laws can be made to protect it. There it stands the Law of the Land. Therefore the South has all below the thirty-seventh parallel, while Congress has not prohibited Slavery even North of it.

* * * * *

"What more, then, is demanded? Simply that a Constitutional Amendment shall be adopted, affirming—what? Precisely what every Republican in both Houses of Congress has voted for within a month. Just do, by Constitutional Amendment, what you have voted in the Senate and House of Representatives, that is all. You are not even required to do that, but merely to vote for a proposition submitting the question to the People of

the States whether they will make a Constitutional Amendment affirming the equitable partition of the Territories which the People have already made. * * *

"You may ask, why does the South want us to do it by Constitutional Amendment, when we have just done it voluntarily by Law? The President of the United States, in his Inaugural, has told you the reason. He has informed you that all of these troubles grow out of the absence of a Constitutional provision defining the power of Congress over the subject of Slavery. * * * He thinks that the trouble has arisen from the absence of such a Constitutional Provision, and suggests a National Convention to enable the People to supply the defect, leaving the People to say what it is, instead of dictating to them what it shall be."

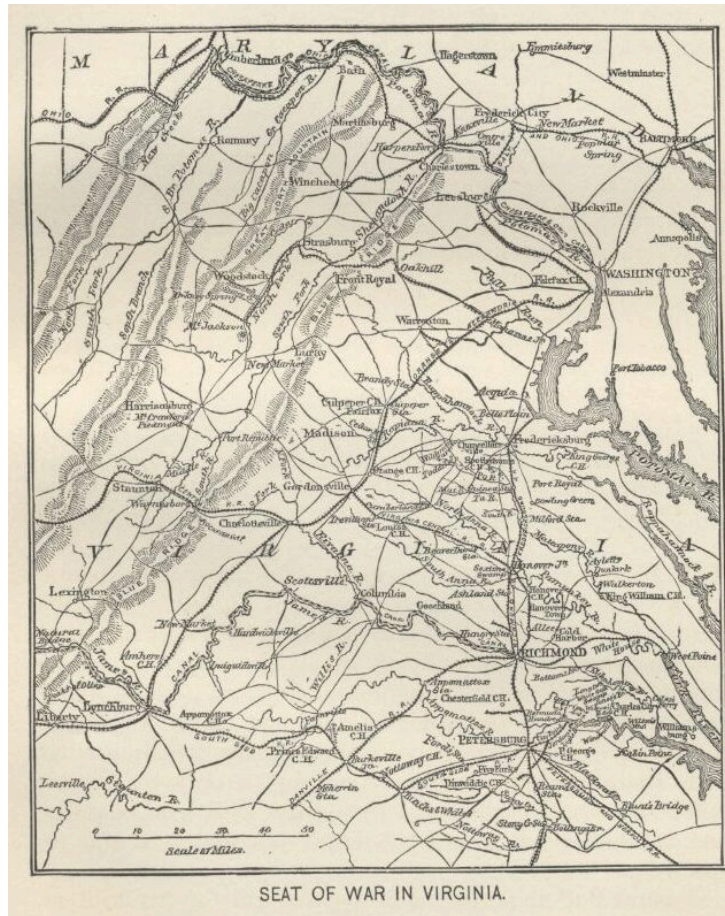
It may here be remarked that while Mr. Douglas held that "So far as the doctrine of Popular Sovereignty and Nonintervention is concerned, the Colorado Bill, the Nevada Bill, and the Dakota Bill, are identically the same with the Kansas-Nebraska Bill, and in its precise language"—these former Bills having been passed at the last Session of the 36th Congress—the Republicans, on the contrary, held that neither in these nor other measures had they abandoned any distinctive Republican principle; while Breckinridge declared that they had passed those Territorial Bills, without the Wilmot proviso, because they felt perfectly secure in those Territories, with all the Federal patronage in Republican hands.

However that may be, we have here, brought out in strong contrast, the conciliatory feeling which inspired such Union men as Douglas, and the strong and persistent efforts they made in behalf of Concession and Peace up to a period only a few weeks before the bombardment of Sumter; and the almost total revulsion in their sentiments after that event, as to the only proper means to preserve the Union. For it was only then that the truth, as it fell from Douglas's lips at Springfield, was fully recognized, to wit: that there was no half-way ground betwixt Patriotism and Treason; that War was an existing fact; and that Patriots must arm to defend and preserve the Union against the armed Traitors assailing it.

At last, July 4, 1861, the Congress met, and proceeded at once with commendable alacrity and patriotism, to the consideration and enactment of measures sufficient to meet the extraordinary exigency, whether as regards the raising and equipment of the vast bodies of Union volunteers needed to

put down Rebellion, or in the raising of those enormous amounts of money which the Government was now, or might thereafter be, called upon to spend like water in preserving the Union.

It was at this memorable Session, of little over one month, that the chief of the great "War Measures" as they were termed, were enacted.



CHAPTER XIII.

THE STORM OF BATTLE.

We have seen how Fort Sumter fell; how the patriotic North responded to President Lincoln's Call, for 75,000 three-months volunteers, with such enthusiasm that, had there been a sufficiency of arms and accoutrements, he might have had, within three months of that Call, an Army of 500,000 men in the field; how he had called for 42,000 three-years volunteers early in May, besides swelling what little there was of a regular Army by ten full regiments; and how a strict blockade of the entire Southern Coast-line had not only been declared, but was now enforced and respected.

General Butler, promoted Major-General for his Military successes at Annapolis and Baltimore, was now in command of Fortress Monroe and vicinity, with some 12,000 volunteers under him, confronted, on the Peninsula, by a nearly equal number of Rebel troops, under Generals Huger and Magruder—General Banks, with less than 10,000 Union troops, occupying Baltimore, and its vicinage.

General Patterson, with some 20,000 Union troops—mostly Pennsylvania militia—was at Chambersburg, Pennsylvania, with about an equal number of the Enemy, under General Joseph E. Johnston, at Harper's Ferry, on the Potomac, watching him.

Some 50,000 Union troops were in camp, in and about Washington, on the Virginia side, under the immediate command of Generals McDowell and Mansfield—Lieutenant General Scott, at Washington, being in Chief-command of the Union Armies—and, confronting these Union forces, in Virginia, near the National Capital, were some 30,000 Rebel troops under the command of General Beauregard, whose success in securing the evacuation of Fort Sumter by its little garrison of half-starved Union soldiers, had magnified him, in the eyes of the rebellious South, into the proportions of a Military genius of the first order.

There had been no fighting, nor movements, worthy of special note, until June 7th, when General Patterson advanced from Chambersburg, Pennsylvania, to Hagerstown, Maryland. General Johnston at once evacuated Harper's Ferry, and retreated upon Winchester, Virginia.

General McClellan, in command of the Department of the Ohio, had, however, crossed the Ohio river, and by the 4th of July, being at Grafton, West Virginia, with his small Army of Union troops, to which a greatly inferior Rebel force was opposed, commenced that successful advance against it, which led, after Bull Run, to his being placed at the head of all the Armies of the United States.

Subsequently Patterson crossed the Potomac, and after trifling away over one month's time, at last, on the 15th of July, got within nine miles of Winchester and Johnston's Army. Barring a spiritless reconnaissance, Patterson—who was a fervent Breckinridge-Democrat in politics, and whose Military judgment, as we shall see, was greatly influenced, if not entirely controlled, by his Chief of staff, Fitz John Porter—never got any nearer to the Enemy!

Instead of attacking the Rebel force, under Johnston, or at least keeping it "employed," as he was ordered to do by General Scott; instead of getting nearer, and attempting to get between Winchester and the Shenandoah River, as was suggested to him by his second in command, General Sanford; and instead of permitting Sanford to go ahead, as that General desired to, with his own 8,000 men, and do it himself; General Patterson ordered him off to Charlestown—twelve miles to the Union left and rear,—and then took the balance of his Army, with himself, to the same place!

In other words, while he had the most positive and definite orders, from General Scott, if not to attack and whip Johnston, to at least keep him busy and prevent that Rebel General from forming a junction, via the Manassas Gap railroad or otherwise, with Beauregard, Patterson deliberately moved his Army further away from Winchester and gave to the Enemy the very chance of escaping and forming that junction which was essential to Rebel success in the vicinity of Manassas.

But for this disobedience of orders, Bull Run would doubtless have been a great victory to the Union Arms, instead of a reverse, and the War, which afterward lasted four years, might have been over in as many months.

It is foreign to the design of this work, to present in it detailed descriptions of the battles waged during the great War of the Rebellion—it being the present intention of the writer, at some later day, to prepare and publish another work devoted to such stirring Military scenes. Yet, as it might seem strange and unaccountable for him to pass by, at this time, without any description or comment, the first pitched battle of the Rebellion, he is constrained to pause and view that memorable contest. And first, it may be well to say a word of the general topography of the country about the battle-field.

The Alleghany Mountains, or that part of them with which we have now to do, stretch in three almost equidistant parallel ridges, from North-East to South-West, through the heart of Old Virginia. An occasional pass, or "Gap," through these ridges, affords communication, by good roads, between the enclosed parallel valleys and the Eastern part of that State.

The Western of these Alleghany ridges bears the name of "Alleghany Mountains" proper; the Eastern is called the "Blue Ridge;" while the Middle Ridge, at its Northern end—which rests upon the Potomac, where that river sweeps through three parallel ridges almost at right angles to their own line of direction—is called the "Great North Mountain."

The valley, between the Middle Ridge and the Blue Ridge, is known as the Shenandoah Valley, taking its name from the Shenandoah River, which, for more than one hundred miles, flows along the Western foot of the Blue Ridge, toward the North-East, until it empties into the Potomac, at Harper's Ferry.

The Orange and Alexandria railroad runs from Alexandria,—on the opposite bank of the Potomac from Washington, and a few miles below the Capital,—in a general Southeasterly direction, to Culpepper Court-House; thence Southerly to Gordonsville, where it joins the Virginia Central—the Western branch of which runs thence through Charlottesville, Staunton, and Covington, across the ridges and valleys of the Alleghanies, while its Eastern branch, taking a general South-easterly direction, crosses the Richmond and Fredricksburg railroad at Hanover Junction, some twenty miles North of Richmond, and thence sweeps Southerly to the Rebel capital.

It is along this Easterly branch of the Virginia Central that Rebel reinforcements will be hurried to Beauregard, from Richmond to

Gordonsville, and thence, by the Orange and Alexandria railroad, to Manassas Junction.

Some twenty-five miles from Alexandria, a short railroad-feeder—which runs from Strasburg, in the Shenandoah Valley, through the Blue Ridge, at Manassas Gap, in an East-South-easterly direction—strikes the Alexandria and Orange railroad. The point of contact is Manassas Junction; and it is along this Manassas-Gap feeder that Johnston, with his Army at Winchester—some twenty miles North-North-East of Strasburg—expects, in case of attack by Patterson, to be re-enforced by Beauregard; or, in case the latter is assailed, to go to his assistance, after shaking off Patterson.

This little link of railroad, known as the Manassas Gap railroad, is therefore an important factor in the game of War, now commencing in earnest; and it had, as we shall see, very much to do, not only with the advance of McDowell's Union Army upon Bull Run, but also with the result of the first pitched battle thereabout fought.

From Alexandria, some twelve miles to the Westward, runs a fine turnpike road to Fairfax Court-House; thence, continuing Westward, but gradually and slightly dipping award the South, it passes through Germantown, Centreville, and Groveton, to Warrenton.

This "Warrenton Pike"—as it is termed—also plays a somewhat conspicuous part, before, during, and after the Battle of Bull Run. For most of its length, from Fairfax Court-House to Warrenton, the Warrenton Pike pursues a course almost parallel with the Orange and Alexandria railroad aforesaid, while the stream of Bull Run, pursuing a South-easterly course, has a general direction almost parallel with that of the Manassas Gap railroad.

We shall find that it is the diamond-shaped parallelogram, formed by the obtuse angle junction of the two railroads on the South, and the similarly obtuse-angled crossing of the stream of Bull Run by the Warrenton Pike on the North, that is destined to become the historic battle-field of the first "Bull Run," or "Manassas;" and it is in the Northern obtuse-angle of this parallelogram that the main fighting is done, upon a spot not much more than one mile square, three sides of the same being bounded respectively by the Bull Run stream, the Warrenton Pike, which crosses it on a stone bridge, and the Sudley Springs road, which crosses the Pike, at right-angles to it, near a stone house.

On the 3rd of June, 1861, General McDowell, in command of the Department of North-Eastern Virginia, with head-quarters at Arlington, near Washington, receives from Colonel Townsend, Assistant Adjutant-General with Lieutenant-General Scott—who is in Chief command of all the Union Forces, with Headquarters at Washington—a brief but pregnant communication, the body of which runs thus: "General Scott desires you to submit an estimate of the number and composition of a column to be pushed toward Manassas Junction, and perhaps the Gap, say in four or five days, to favor Patterson's attack on Harper's Ferry. The rumor is that Arlington Heights will be attacked to-night."

In response to this request, General McDowell submits, on the day following, an estimate that "the actual entire force at the head of the column should, for the purpose of carrying the position at Manassas and of occupying both the road to Culpepper, and the one to the Gap, be as much as 12,000 Infantry, two batteries of regular Artillery, and from six to eight companies of Cavalry, with an available reserve, ready to move forward from Alexandria by rail, of 5,000 Infantry and one heavy field battery, rifled if possible; these numbers to be increased or diminished as events may indicate." This force of raw troops he proposes to organize into field brigades under the command of "active and experienced colonels" of the regular Army. And while giving this estimate as to the number of troops necessary, he suggestively adds that "in proportion to the numbers used will be the lives saved; and as we have such numbers pressing to be allowed to serve, might it not be well to overwhelm and conquer as much by the show of force as by the use of it?"

Subsequently McDowell presents to General Scott, and Mr. Lincoln's Cabinet, a project of advance and attack, which is duly approved and ordered to be put in execution. In that project or plan of operations, submitted by verbal request of General Scott, near the end of June,—the success of which is made contingent upon Patterson's holding Johnston engaged at Winchester in the Shenandoah Valley, and also upon Butler's holding the Rebel force near Fortress Monroe from coming to Beauregard's aid at Manassas Junction,—McDowell estimates Beauregard's strength at 25,000, with a possible increase, bringing it up to 35,000 men. The objective point in McDowell's plan, is Manassas Junction, and he proposes "to move against Manassas with a force of 30,000 of all arms, organized into three columns, with a reserve of 10,000."

McDowell is fully aware that the Enemy has "batteries in position at several places in his front, and defensive works on Bull Run, and Manassas Junction." These batteries he proposes to turn. He believes Bull Run to be "fordable at almost anyplace,"—an error which ultimately renders his plan abortive,—and his proposition is, after uniting his columns on the Eastern side of Bull Run, "to attack the main position by turning it, if possible, so as to cut off communications by rail with the South, or threaten to do so sufficiently to force the Enemy to leave his intrenchments to guard them."

In other words, assuming the Enemy driven back, by minor flanking movements, or otherwise, upon his intrenched position at Bull Run, or Manassas, the plan is to turn his right, destroy the Orange and Alexandria railroad leading South, and the bridge at Bristol, so as to cut off his supplies. This done, the Enemy—if nothing worse ensues for him—will be in a "bad box."

McDowell, however, has no idea that the Enemy will stand still to let this thing be done. On the contrary, he is well satisfied that Beauregard will accept battle on some chosen ground between Manassas Junction and Washington.

On the afternoon of Tuesday, the 16th of July, the advance of McDowell's Army commences. That Army is organized into five divisions—four of which accompany McDowell, while a fifth is left to protect the defensive works of Washington, on the South bank of the Potomac. This latter, the Fourth Division, commanded by Brigadier-General Theodore Runyon, comprises eight unbrigaded New Jersey regiments of (three months, and three years) volunteers—none of which take part in the ensuing conflicts-at-arms.

The moving column consists of the First Division, commanded by Brigadier-General Daniel Tyler, comprising four brigades, respectively under Brigadier-General R. C. Schenck, and Colonels E. D. Keyes, W. T. Sherman, and I. B. Richardson; the Second Division, commanded by Colonel David Hunter, comprising two brigades, under Colonels Andrew Porter and A. E. Burnside respectively; the Third Division, commanded by Colonel S. P. Heintzelman, comprising three brigades, under Colonels W. B. Franklin, O. B. Wilcox, and O. O. Howard, respectively; and the Fifth Division, commanded by Colonel Dixon S. Miles, comprising two brigades, under Colonels Lewis Blenker, and Thomas A. Davies, respectively.

Tyler's Division leads the advance, moving along the Leesburg road to Vienna, on our right, with orders to cross sharply to its left, upon Fairfax Court House, the following (Wednesday) morning. Miles's Division follows the turnpike road to Annandale, and then moves, by the Braddock road,—along which Braddock, a century before, had marched his doomed army to disaster,—upon Fairfax Court House, then known to be held by Bonham's Rebel Brigade of South Carolinians. Hunter follows Miles, to Annandale, and thence advances direct upon Fairfax, by the turnpike road—McDowell's idea being to bag Bonham's Brigade, if possible, by a simultaneous attack on the front and both flanks. But the advance is too slow, and the Enemy's outposts, both there and elsewhere, have ample opportunity of falling safely back upon their main position, behind the stream of Bull Run.

[McDowell in his testimony before the "Committee on the Conduct of the War," said: "At Fairfax Court House was the South Carolina Brigade. And I do not suppose anything would have had a greater cheering effect upon the troops, and perhaps upon the Country, than the capture of that brigade. And if General Tyler could have got down there any time in the forenoon instead of in the afternoon, the capture of that brigade was beyond question. It was about 5,000 or 6,000 men, and Tyler had 12,000, at the same time that we were pressing on in front. He did not get down there until in the afternoon; none of us got forward in time."]

This slowness is due to various causes. There is a pretty general dread, for example, among our troops, of threatened ambuscades, and hence the advance is more cautious than it otherwise would be. It is thought the part of wisdom, as it were, to "feel the way." The marching, moreover, is new to our troops. General Scott had checked McDowell when the latter undertook to handle eight regiments together, near Washington, by intimating that he was "trying to make a show." Thus the very essential knowledge of how to manoeuvre troops in large bodies, has been withheld from our Union generals, while the volunteer regiments have either rusted in camp from inaction, or have been denied the opportunity of acquiring that endurance and hardiness and discipline which frequent movement of troops confers.

Hence, all unused to the discipline of the march, every moment some one falls out of line to "pick blackberries, or to get water." Says McDowell, in afterward reporting this march: "They would not keep in the ranks, order as much as you pleased. When they came where water was fresh, they would pour the old water out of their canteens and fill them with fresh water; they were not used to denying themselves much."

Meantime, Heintzelman's Division is also advancing, by cross-roads, more to the left and South of the railroad line,—in accordance with McDowell's plan, which comprehends not only the bagging of Bonham, but an immediate subsequent demonstration, by Tyler, upon Centreville and beyond, while Heintzelman, supported by Hunter and Miles, shall swoop across Bull Run, at Wolf Run Shoals, some distance below Union Mills, turn the Enemy's right, and cut off his Southern line of railroad communications. Thus, by the evening of Wednesday, the 17th, Heintzelman is at Sangster's Station, while Tyler, Miles, and Hunter, are at Fairfax.

It is a rather rough experience that now befalls the Grand Army of the Union. All unused, as we have seen, to the fatigues and other hardships of the march, the raw levies, of which it almost wholly consists, which started bright and fresh, strong and hopeful, full of the buoyant ardor of enthusiastic patriotism, on that hot July afternoon, only some thirty hours back, are now dust-begrimed, footsore, broken down, exhausted by the scorching sun, hungry, and without food,—for they have wasted the rations with which they started, and the supply-trains have not yet arrived. Thus, hungry and physically prostrated, "utterly played out," as many of them confess, and demoralized also by straggling and loss of organization, they bivouac that night in the woods, and dream uneasy dreams beneath the comfortless stars.

A mile beyond Fairfax Court House, on the Warrenton Turnpike, is Germantown. It is here that Tyler's Division has rested, on the night of the 17th. At 7 o'clock on the morning of Thursday, the 18th, in obedience to written orders from McDowell, it presses forward, on that "Pike," to Centreville, five miles nearer to the Enemy's position behind Bull Run—Richardson's Brigade in advance—and, at 9 o'clock, occupies it. Here McDowell has intended Tyler to remain, in accordance with the plan, which he has imparted to him in conversation, and in obedience to the written

instructions to: "Observe well the roads to Bull Run and to Warrenton. Do not bring on an engagement, but keep up the impression that we are moving on Manassas,"—this advance, by way of Centreville, being intended solely as a "demonstration" to mask the real movement, which, as we have seen, is to be made by the other divisions across Wolf Run Shoals, a point on Bull Run, some five or six miles below Union Mills, and some seven miles below Blackburn's Ford.

Upon the arrival of Richardson's Brigade, Thursday morning, at Centreville, it is found that, under cover of the darkness of the previous night, the Enemy has retreated, in two bodies, upon Bull Run, the one along the Warrenton Pike, the other (the largest) down the ridge-road from Centreville to Blackburn's Ford. Richardson's Brigade at once turns down the latter road and halts about a mile beyond Centreville, at a point convenient to some springs of water. Tyler soon afterward rides up, and, taking from that brigade two companies of light Infantry and a squadron of Cavalry, proceeds, with Colonel Richardson, to reconnoitre the Enemy, finding him in a strong position on the opposite bank of Bull Run, at Blackburn's Ford.

While this is going on, McDowell has ridden in a Southerly direction down to Heintzelman's Division, at Sangster's Station, "to make arrangements to turn the Enemy's right, and intercept his communications with the South," but has found, owing to the narrowness and crookedness of the roads, and the great distance that must be traversed in making the necessary detour, that his contemplated movement is too risky to be ventured. Hence he at once abandons his original plan of turning the Enemy's right, and determines on "going around his left, where the country is more open, and the roads broad and good."

McDowell now orders a concentration, for that night, of the four divisions, with two days cooked rations in their haversacks, upon and about Centreville,—the movement to commence as soon as they shall receive expected commissariat supplies. But, later on the 18th,—learning that his advance, under Tyler, has, against orders, become engaged with the Enemy—he directs the concentration to be made at once.

Let us examine, for a moment, how this premature engagement comes about. We left Tyler, accompanied by Richardson, with a squadron of Cavalry and a battalion of light Infantry making a reconnaissance, on

Thursday morning the 18th, toward Blackburn's Ford. They approach within a mile of the ford, when they discover a Rebel battery on the farther bank of Bull Run—so placed as to enfilade the road descending from their own position of observation down to the ford,—strong Rebel infantry pickets and skirmishing parties being in front.

Tyler at once orders up his two rifled guns, Ayres' Battery, and Richardson's entire Brigade—and later, Sherman's Brigade as a reserve. As soon as they come up,—about noon—he orders the rifled guns into battery on the crest of the hill, about one mile from, and looking down upon, the Rebel battery aforesaid, and opens upon the Enemy; giving him a dozen shells,—one of them making it lively for a body of Rebel Cavalry which appears between the ford and Manassas.

The Rebel battery responds with half a dozen shots, and then ceases. Tyler now orders Richardson to advance his brigade and throw out skirmishers to scour the thick woods which cover the Bull Run bottom-land. Richardson at once rapidly deploys the battalion of light Infantry as skirmishers in advance of his brigade, pushes them forward to the edge of the woods, drives in the skirmishers of the Enemy in fine style, and supports their further advance into the woods, with the 1st Massachusetts Regiment.

Meanwhile Tyler, discovering a favorable opening in the woods, "low down on the bottom of the stream," for a couple of howitzers in battery, sends Captain Ayres of the 5th U. S. Artillery, and a detached section (two 12-pound howitzers) of his battery, with orders to post it himself on that spot, and sends Brackett's squadron of the 2d Cavalry to his support.

No sooner does Ayres open fire on the Enemy, than he awakens a Rebel hornet's-nest. Volley after volley of musketry shows that the Bull Run bottom fairly swarms with Rebel troops, while another Rebel battery, more to the Rebel right, opens, with that already mentioned, a concentrated cross-fire upon him.

And now Richardson orders up the 12th New York, Colonel Walrath, to the left of our battery. Forming it into line-of-battle, Richardson orders it to charge through the woods upon the Enemy. Gallantly the regiment moves forward, after the skirmishers, into the woods, but, being met by a very heavy fire of musketry and artillery along the whole line of the Enemy's position, is, for the most part, thrown back in confusion—a mere fragment*

remaining in line, and retreating,—while the howitzers, and Cavalry also, are withdrawn.

Meantime, however, Richardson has ordered up, and placed in line-of-battle, on the right of our battery, the 1st Massachusetts, the 2d Michigan (his own), and the 3d Michigan. The skirmishers in the woods still bravely hold their ground, undercover, and these three regiments are plucky, and anxious to assault the Enemy. Richardson proposes to lead them in a charge upon the Enemy's position, and drive him out of it; but Tyler declines to give permission, on the ground that this being "merely a reconnaissance," the object of which—ascertaining the strength and position of the Enemy—having been attained, a further attack is unnecessary. He therefore orders Richardson to "fall back in good order to our batteries on the hill,"—which he does.

Upon reaching these batteries, Richardson forms his 2d Michigan, in "close column by division," on their right, and the 1st Massachusetts and 3d Michigan, in "line of battle," on their left—the 12th New York re-forming, under cover of the woods at the rear, later on. Then, with our skirmishers thrown into the woods in front, their scattering fire, and the musketry responses of the Rebels, are drowned in the volume of sound produced by the deafening contest which ensues between our Artillery, and that of the Enemy from his batteries behind Bull Run.

This artillery-duel continues about one hour; and then seems to cease by mutual consent, about dusk—after 415 shots have been fired on the Union side, and have been responded to by an equal number from the Rebel batteries, "gun for gun"—the total loss in the engagement, on the Union side, being 83, to a total loss among the Enemy, of Thursday night, Richardson retires his brigade upon Centreville, in order to secure rations and water for his hungry and thirsty troops,—as no water has yet been found in the vicinity of the Union batteries aforesaid. On the morrow, however, when his brigade re-occupies that position, water is found in abundance, by digging for it.

This premature attack, at Blackburn's Ford, by Tyler, against orders, having failed, throws a wet blanket upon the martial spirit of McDowell's Army. In like degree is the morale of the Rebel Army increased.

It is true that Longstreet, in command of the Rebel troops at Blackburn's Ford, has not had things all his own way; that some of his artillery had to be

"withdrawn;" that, as he acknowledges in his report, his brigade of three Virginia regiments (the 1st, 11th, and 17th) had "with some difficulty repelled" the Union assault upon his position; that he had to call upon General Early for re-enforcements; that Early re-enforced him with two Infantry regiments (the 7th Louisiana and 7th Virginia) at first; that one of these (the 7th Virginia) was "thrown into confusion;" that Early then brought up his own regiment (the 24th Virginia) under Lieutenant Colonel Hairston, and the entire seven guns of the "Washington Artillery;" and that but for the active "personal exertions" of Longstreet, in "encouraging the men under his command," and the great numerical superiority of the Rebels, there might have been no Union "repulse" at all. Yet still the attack has failed, and that failure, while it dispirits the Patriot Army, inspires the Rebel Army with renewed courage.

Under these circumstances, Friday, the 19th of July, is devoted to reconnaissances by the Engineer officers of the Union Army; to the cooking of the supplies, which have at last arrived; and to resting the weary and road-worn soldiers of the Union.

Let us take advantage of this halt in the advance of McDowell's "Grand Army of the United States"—as it was termed—to view the Rebel position at, and about Manassas, and to note certain other matters having an important and even determining bearing upon the issue of the impending shock-at-arms.

Beauregard has received early information of McDowell's advance from Arlington, and of his plans.

[This he admits, in his report, when he says; "Opportunely informed of the determination of the Enemy to advance on Manassas, my advanced brigades, on the night of the 16th of July, were made aware, from these headquarters, of the impending movement,"]

On Tuesday the 16th, he notifies his advanced brigades. On Wednesday, he sends a dispatch from Manassas, to Jefferson Davis, at Richmond, announcing that the Union troops have assailed his outposts in heavy force; that he has fallen back before them, on the line of Bull Run; and that he intends to make a stand at Mitchell's Ford (close to Blackburn's Ford) on that stream,—adding: if his (McDowell's) force is overwhelming, "I shall

retire to the Rappahannock railroad bridge, saving my command for defense there, and future operations. Please inform Johnston of this, via Staunton, and also Holmes. Send forward any re-enforcements at the earliest possible instant, and by every possible means."

In the meantime, however, Beauregard loses no time in advantageously posting his troops. On the morning of the 18th of July, when the Union advance enters Centreville, he has withdrawn all his advanced brigades within the Rebel lines of Bull Run, resting them on the South side of that stream, from Union Mills Ford, near the Orange and Alexandria railroad bridge, up to the stone bridge over which the Warrenton Pike crosses the Run,—a distance of some six to eight miles.

Between the Rebel left, at Stone Bridge, and the Rebel right, at Union Mills Ford, are several fords across Bull Run—the general course of the stream being from the North-West to South-East, to its confluence with the Occoquan River, some twelve miles from the Potomac River.

Mitchell's Ford, the Rebel center, is about three miles to the South-West of, and about the same distance North-East from, Manassas Junction. But it may be well, right here, to locate all these fordable crossings of the rocky, precipitous, and well-wooded Bull Run stream, between the Stone Bridge and Union Mills Ford. Thus, half a mile below the Stone Bridge is Lewis's Ford; half a mile below that, Ball's Ford; half a mile below that, Island Ford; one and one-half miles below that, Mitchell's Ford—one mile below that.

Blackburn's Ford; three-quarters of a mile farther down, McLean's Ford; and nearly two miles lower down the stream, Union Mills Ford.

By Thursday morning, the 18th of July, Beauregard has advantageously posted the seven brigades into which he has organized his forces, at these various positions along his extended front, as follows:

At the Stone Bridge, Brigadier-General N. G. Evans's Seventh Brigade, of one regiment and one battalion of Infantry, two companies of Cavalry, and a battery of four six-pounders.

At Lewis's, Balls, and Island Fords—Colonel P. St. George Cocke's Fifth Brigade, of three regiments of Infantry, one battery of Artillery, and one company of Cavalry.

At Mitchell's Ford, Brigadier-General M. L. Bonham's First Brigade, of four Infantry regiments, two batteries, and six companies of Cavalry.

At Blackburn's Ford, Brigadier-General J. Longstreet's Fourth Brigade, of four Infantry regiments, with two 6-pounders.

At McLean's Ford, Brigadier-General D. R. Jones's Third Brigade of three Infantry regiments, one Cavalry company, and two 6-pounders.

At Union Mills Ford, Brigadier-General R. S. Ewell's Second Brigade, of three Infantry regiments, three Cavalry companies, and four 12-powder howitzers—Colonel Jubal A. Early's Sixth Brigade, of three Infantry regiments and three rifled pieces of Walton's Battery, being posted in the rear of, and as a support to, Ewell's Brigade.

[Johnston also found, on the 20th, the Reserve Brigade of Brig. Gen. T. H. Holmes—comprising two regiments of Infantry, Walker's Battery of Artillery, and Scott's Cavalry—with Early's Brigade, "in reserve, in rear of the right."]

The disposition and strength of Beauregard's forces at these various points along his line of defense on Bull Run stream, plainly shows his expectation of an attack on his right; but he is evidently suspicious that it may come upon his centre; for, as far back as July 8th, he had issued special orders to the effect that:

"Should the Enemy march to the attack of Mitchell's Ford, via Centreville, the following movements will be made with celerity:

"I. The Fourth Brigade will march from Blackburn's Ford to attack him on the flank and centre.

"II. The Third Brigade will be thrown to the attack of his centre and rear toward Centreville.

"III. The Second and Sixth Brigades united will also push forward and attack him in the rear by way of Centreville, protecting their own right flanks and rear from the direction of Fairfax Station and Court House.

"IV. In the event of the defeat of the Enemy, the troops at Mitchell's Ford and Stone Bridge, especially the Cavalry and Artillery, will join in the pursuit, which will be conducted with vigor but unceasing prudence, and continued until he shall have been driven beyond the Potomac."

And it is not without interest to note Beauregard's subsequent indorsement on the back of these Special Orders, that: "The plan of attack prescribed within would have been executed, with modifications affecting First and Fifth Brigades, to meet the attack upon Blackburn's Ford, but for the expected coming of General Johnston's command, which was known to be en route to join me on [Thursday] the 18th of July."

The knowledge thus possessed on Thursday, the 18th, by Beauregard, that Johnston's Army is on its way to join him, is of infinite advantage to the former. On the other hand, the complete ignorance, at this time, of McDowell on this point,—and the further fact that he has been lulled into a feeling of security on the subject, by General Scott's emphatic assurance to him that "if Johnston joins Beauregard, he shall have Patterson on his heels"—is a great disadvantage to the Union general.

Were McDowell now aware of the real Military situation, he would unquestionably make an immediate attack, with the object of crushing Beauregard before Johnston can effect a junction with him. It would then be a mere matter of detail for the armies of McDowell, McClellan, and Patterson, to bag Johnston, and bring the armed Rebellion to an inglorious and speedy end. But Providence—through the plottings of individuals within our own lines—wills it otherwise.

Long before this, Patterson has been informed by General Winfield Scott of the proposed movement by McDowell upon Manassas,—and of its date.

On Saturday, July 13th, General Scott telegraphed to Patterson: "I telegraphed to you yesterday, if not strong enough to beat the Enemy early next week, make demonstrations so as to detain him in the Valley of Winchester; but if he retreats in force toward Manassas, and it be too hazardous to follow him, then consider the route via Keys Ferry, Leesburg, etc."

On Wednesday, the 17th, Scott telegraphs to Patterson: "I have nothing official from you since Sunday (14th), but am glad to learn, through Philadelphia papers, that you have advanced. Do not let the Enemy amuse and delay you with a small force in front whilst he re-enforces the Junction with his main body. McDowell's first day's work has driven the Enemy beyond Fairfax Court House. The Junction will probably be carried by to-morrow."

On Thursday, the 18th, Patterson replies that to attack "the greatly superior force at Winchester when the three months volunteers' time was about up, and they were threatening to leave him—would be most hazardous" and then he asks: "Shall I attack?"

Scott answers the same day: "I have certainly been expecting you to beat the Enemy. If not, to hear that you had felt him strongly, or, at least, had occupied him by threats and demonstrations. You have been at least his equal, and, I suppose, superior in numbers. Has he not stolen a march and sent re-enforcements toward Manassas Junction? A week is enough to win victories," etc.

Patterson retorts, on the same day: "The Enemy has stolen no march upon me. I have kept him actively employed, and by threats, and reconnaissances in force, caused him to be re-enforced. I have accomplished in this respect more than the General-in-Chief asked, or could well be expected, in face of an Enemy far superior in numbers, with no line of communication to protect."

In another dispatch, to Assistant Adjutant-General Townsend (with General Scott), he says, that same afternoon of Thursday, the 18th: "I have succeeded, in accordance with the wishes of the General-in-Chief, in keeping General Johnston's Force at Winchester. A reconnaissance in force, on Tuesday, caused him to be largely re-enforced from Strasburg."

Again, on Friday, the 19th, he informs Colonel Townsend that: "The Enemy, from last information, are still at Winchester, and being re-enforced every night."

It is not until Saturday, the 20th of July, that he telegraphs to Townsend: "With a portion of his force, Johnston left Winchester, by the road to Millwood, on the afternoon of the 18th." And he adds the ridiculous statement: "His whole force was about 35,200."

Thus, despite all the anxious care of General Scott, to have Johnston's Army detained in the Shenandoah Valley, it has escaped Patterson so successfully, and entirely, that the latter does not even suspect its disappearance until the day before the pitched Battle of Bull Run is fought! Its main body has actually reached Manassas twenty-four hours before Patterson is aware that it has left Winchester!

And how is it, that Johnston gets away from Patterson so neatly? And when does he do it?

[The extraordinary conduct of General Patterson at this critical period, when everything seemed to depend upon his exertions, was afterward the subject of inquiry by the Joint-Committee on the Conduct of the War. The testimony taken by that Committee makes it clear, to any unprejudiced mind, that while Patterson himself may have been loyal to the Union, he was weak enough to be swayed from the path of duty by some of the faithless and unpatriotic officers with whom he had partly surrounded himself—and especially by Fitz John Porter, his Chief-of-staff. Let us examine the sworn testimony of two or three witnesses on this point.]

General CHARLES W. SANFORD, who was second in command under Patterson, and in command of Patterson's Left Wing, testified [see pages 54-66, Report on Conduct of the War, Vol. 3, Part 2,] that he was at a Council of War held at the White House, June 29th, when the propriety of an attack on the Rebel lines at Manassas was discussed; that he objected to any such movement until Patterson was in such a position as to prevent the junction between General Johnston's Army and the troops at Manassas; that on the 6th of July, he was sent by General Scott, with four picked New York regiments, to Patterson, and (waiving his own seniority rank) reported to that General, at Williamsport; that Patterson gave him command of a division of 8,000 men (and two batteries) out of a total in his Army of 22,000; that he "delivered orders from General Scott to General Patterson, and urged a forward movement as soon as possible;" that there was "Some delay at Martinsburg, notwithstanding the urgency of our matter," but they "left there on [Monday] the 15th of July, and went in the direction of Winchester,"—down to Bunker Hill,—Patterson with two divisions going down the turnpike, and Sanford taking his division a little in advance and more easterly on the side roads so as to be in a position to flank Johnston's right; that on that afternoon (Monday, July 15) General Patterson rode up to where Sanford was locating his camp.

Continuing his testimony, General Sanford said: "I was then within about nine miles of Johnston's fortified camp at Winchester. Patterson was complimenting me upon the manner in which my regiments were located, and inquiring about my pickets, which I had informed him I had sent down about three miles to a stream below. I had driven out the Enemy's skirmishers ahead of us. They had some cavalry there. In answer to his compliments about the comfortable location I had made, I said: 'Very comfortable, General, when shall we move on?' * * * He hesitated a moment or two, and then said: 'I don't know yet when we shall move. And if I did I would not tell my own father.' I thought that was rather a queer speech to make to me under the circumstances. But I smiled and said: 'General, I am only anxious that we shall get forward, that the Enemy shall not escape us.' He replied: 'There is no danger of that. I will have a reconnaissance to-morrow, and we will arrange about moving at a very early period.' He then took his leave.

"The next day [Tuesday, July 16th], there was a reconnaissance on the Winchester turnpike, about four or five miles below the General's camp. He sent forward a section of artillery and some cavalry, and they found a post-and-log fence across the Winchester turnpike, and some of the Enemy's cavalry on the other side of it. They gave them a round of grape. The cavalry scattered off, and the reconnaissance returned. That was the only reconnaissance I heard of while we were there. My own pickets went further than that. But it was understood, the next afternoon, that we were to march forward at daylight. I sent down Col. Morell, with 40 men, to open a road down to Opequan Creek, within five miles of the camp at Winchester, on the side-roads I was upon, which would enable me, in the course of three hours, to get between Johnston and the Shenandoah River, and effectually bar his way to Manassas. I had my ammunition all distributed, and ordered my men to have 24 hours' rations in their haversacks, independent of their breakfast. We were to march at 4 o'clock the next morning. I had this

road to the Opequan completed that night. I had then with me, in addition to my eight regiments amounting to about 8,000 men and a few cavalry, Doubleday's heavy United States battery of 20 and 30 pounders, and a very good Rhode Island battery. And I was willing to take the risk, whether Gen. Patterson followed me up or not, of placing myself between Johnston and the Shenandoah River, rather than let Johnston escape. And, at 4 o'clock [July 17th] I should have moved over that road for that purpose, if I had had no further orders. But, a little after 12 o'clock at night [July 16th-17th,] I received a long order of three pages from Gen. Patterson, instructing me to move on to Charlestown, which is nearly at right angles to the road I was going to move on, and twenty-two miles from Winchester. This was after I had given my orders for the other movement."

* * * * *

'Question [by the Chairman].—And that left Johnston free? "Answer—Yes, Sir; left him free to make his escape, which he did. * * *"

'Question.—In what direction would Johnston have had to move to get by you? "Answer—Right out to the Shenandoah River, which he forded. He found out from his cavalry, who were watching us, that we were actually leaving, and he started at 1 o'clock that same day, with 8,000 men, forded the Shenandoah where it was so deep that he ordered his men to put their cartridge-boxes on their bayonets, got out on the Leesburg road, and went down to Manassas."

"Question [by the Chairman].—Did he [Patterson] assign any reason for that movement? "Answer.—I was, of course, very indignant about it, and so were all my officers and men; so much so that when, subsequently, at Harper's Ferry, Patterson came by my camp, there was a universal groan—against all discipline, of course, and we suppressed it as soon as possible. The excuse given by Gen. Patterson was this: that he had received intelligence that he could rely upon, that Gen. Johnston had been re-enforced by 20,000

men from Manassas, and was going to make an attack upon him; and in the order which I received that night—a long order of three pages—I was ordered to occupy all the communicating roads, turning off a regiment here, and two or three regiments there, and a battery at another place, to occupy all the roads from Winchester to the neighborhood of Charlestown, and all the cross-roads, and hold them all that day, until Gen. Patterson's whole army went by me to Charlestown; and I sat seven hours in the saddle near a place called Smithfield, while Patterson, with his whole army, went by me on their way to Charlestown, he being apprehensive, as he said, of an attack from Johnston's forces."

"Question [by Mr. Odell].—You covered his movement? "Answer—Yes, Sir. Now the statement that he made, which came to me through Colonel Abercrombie, who was Patterson's brother-in-law, and commanded one division in that army, was, that Johnston had been re-enforced; and Gen. Fitz-John Porter reported the same thing to my officers. Gen. Porter was then the chief of Patterson's staff, and was a very excellent officer, and an accomplished soldier. They all had got this story, which was without the slightest shadow of foundation; for there had not a single man arrived at the camp since we had got full information that their force consisted of 20,000 men, of whom 1,800 were sick with the measles. The story was, however, that they had ascertained, by reliable information, of this re-enforcement. Where they got their information, I do not know. None such reached me; and I picked up deserters and other persons to get all the information I could; and we since have learned, as a matter of certainty, that Johnston's forces never did exceed 20,000 men there. But the excuse Patterson gave was, that Johnson had been re-enforced by 20,000 men from Manassas, and was going to attack him. That was the reason he gave then for this movement. But in this paper he has lately published, he hints at another reason—another excuse—which was that it was by order of

Gen. Scott. Now, I know that the peremptory order of Gen. Scott to Gen. Patterson, repeated over and over again, was this—I was present on several occasions when telegraphic communications went from Gen. Scott to Gen. Patterson: Gen. Scott's orders to Gen. Patterson were that, if he were strong enough, he was to attack and beat Johnston. But if not, then he was to place himself in such a position as to keep Johnston employed, and prevent him from making a junction with Beauregard at Manassas. That was the repeated direction of Gen. Scott to Gen. Patterson; and it was because of Patterson's hesitancy, and his hanging back, and keeping so far beyond the reach of Johnston's camp, that I was ordered to go up there and re-enforce him, and assist him in any operations necessary to effect that object. The excuse of Gen. Patterson now is, that he had orders from Gen. Scott to move to Charlestown. Now, that is not so. But this state of things existed: Before the movement was made from Martinsburg, General Patterson suggested to General Scott that Charlestown would be a better base of operations than Martinsburg and suggested that he had better move on Charlestown, and thence make his approaches to Winchester; that it would be better to do that than to move directly to Winchester from Martinsburg; and General Scott wrote back to say that, if he found that movement a better one, he was at liberty to make it. But Gen. Patterson had already commenced his movement on Winchester direct from Martinsburg, and had got as far as Bunker Hill; so that the movement which he had formerly suggested, to Charlestown, was suppressed by his own act. But that is the pretence now given in his published speech for making the movement from Bunker Hill to Charlestown, which was a retreat, instead of the advance which the movement to Charlestown he first proposed to Gen. Scott was intended to be."

* * * * *

"Question [by the Chairman].—Was not that change of direction and movement to Charlestown a total

abandonment of the object which you were pursuing?
"Answer.—Entirely an abandonment of the main principles of the orders he was acting under."

"Question.—And of course an abandonment of the purpose for which you were there? "Answer.—Yes, Sir.

"Question [by Mr. Odell].—Was it not your understanding in leaving here, and was it not the understanding also of Gen. Scott, that your purpose in going there was to check Johnston with direct reference to the movement here?
"Answer.—Undoubtedly. It was in consequence of the suggestion made by me at the Council at the President's house. * * * And upon the suggestion of General Scott they wanted me to go up there and assist Patterson in this movement against Johnston, so as to carry out the point I had suggested of first checkmating Johnston before the movement against Manassas was made here."

* * * * *

Question [by the Chairman].—Would there have been any difficulty in preventing Johnston from going to Manassas?
"Answer.—None whatever."

* * * * *

"Question [by the Chairman.].—I have heard it suggested that he (Patterson) undertook to excuse this movement on the ground that the time of many of his troops had expired, and they refused to accompany him. "Answer.—That to my knowledge, is untrue. The time of none of them had expired when this movement was made. All the troops that were there were in the highest condition for the service. These three-months' men, it may be well to state to you who are not Military men, were superior to any other volunteer troops that we had, in point of discipline. They were the disciplined troops of the Country. The three-months' men were generally the organized troops of the different States—New York, Pennsylvania, etc. We had, for instance, from Patterson's own city, Philadelphia, one of the finest regiments in the service, which was turned over to me, at their own request;

and the most of my regiments were disciplined and organized troops. They were all in fine condition, anxious, zealous, and earnest for a fight. They thought they were going to attack Johnston's camp at Winchester. Although I had suggested to Gen. Patterson that there was no necessity for that, the camp being admirably fortified with many of their heavy guns from Norfolk, I proposed to him to place ourselves between Johnston and the Shenandoah, which would have compelled him to fight us there, or to remain in his camp, either of which would have effected General Scott's object. If I had got into a fight, it was very easy, over this road I had just been opening, for Patterson to have re-enforced me and to have come up to the fight in time. The proposition was to place ourselves between Johnston's fortified camp and the Shenandoah, where his fortified camp would have been of no use to him."

"Question.—Even if you had received a check there, it would have prevented his junction with the forces at Manassas? "Answer.—Yes, Sir; I would have risked a battle with my own division rather than Johnston should have escaped. If he had attacked me, I could have taken a position where I could have held it, while Patterson could have fallen upon him and repulsed him."

"Question [by Mr. Odell].—Had you any such understanding with Patterson? "Answer.—I told him I would move down on this side-road in advance, leaving Gen. Patterson to sustain me if I got into a fight. So, on the other hand, if he should attack Patterson, I was near enough to fall upon Johnston's flank and to support Patterson. By using this communication of mine to pass Opequan Creek—where, I had informed Patterson, I had already pushed forward my pickets, [200 men in the day and 400 more at night,] to prevent the Enemy from burning the bridge—it would have enabled me to get between Johnston and the Shenandoah River. On the morning [Wednesday, July 17th] of our march to Charlestown, Stuart's cavalry, which figured so vigorously at Bull Run, was upon my flank all day. They

were apparently about 800 strong. I saw them constantly on my flank for a number of miles. I could distinguish them, with my glass, with great ease. Finally, they came within about a mile of the line of march I was pursuing and I sent a battery around to head them off, and the 12th Regiment across the fields in double-quick time to take them in the rear. I thought I had got them hemmed in. But they broke down the fences, and went across the country to Winchester, and I saw nothing more of them. They were then about eight miles from Winchester, and must have got there in the course of a couple of hours. That day [Wednesday, the 17th] at 10 o'clock—as was ascertained from those who saw him crossing the Shenandoah—Johnston started from Winchester with 8,000 men, forded the Shenandoah, and got to Manassas on Friday night; and his second in command started the next day with all the rest of the available troops—something like 9,000 men; leaving only the sick, and a few to guard them, in the camp at Winchester—and they arrived at the battle-field in the midst of the fight, got out of the cars, rushed on the battle-field, and turned the scale. I have no doubt that, if we had intercepted Johnston, as we ought to have done, the battle of Bull Run would have been a victory for us instead of a defeat. Johnston was undoubtedly the ablest general they had in their army."

Colonel CRAIG BIDDLE, testified that he was General Patterson's aide-de-camp at the time. In answer to a question by the Chairman, he continued:

"Answer.—I was present, of course, at all the discussions. The discussion at Martinsburg was as to whether or not General Patterson should go on to Winchester. General Patterson was very full of that himself. He was determined to go to Winchester; but the opinions of all the regular officers who were with him, were against it. The opinions of all the men in whose judgment I had any confidence, were against it. They seemed to have the notion that General Patterson had got his Irish blood up by the fight we had had at Falling Waters, and was bound to go ahead. He decided

upon going ahead, against the remonstrances of General [Fitz John] Porter, who advised against it. He told me he considered he had done his duty, and said no more. The movement was delayed in consequence of General Stone's command not being able to move right away. It was then evident that there was so much opposition to it that the General was induced to call a council of the general officers in his command, at which I was present. They were unanimously opposed to the advance. That was at Martinsburg."

* * * * *

"Question.—While at Bunker Hill, the night before you left there, were any orders issued to march in the evening? "Answer.—I think there were such orders."

"Question.—Did not General Patterson issue orders at Bunker Hill, the night before you marched to Charlestown, for an attack on the Enemy? "Answer.—I think such orders were written. I do not think they were issued. I think General Patterson was again persuaded not to make an advance."

Colonel R. BUTLER PRICE, Senior aide to Patterson, testified as follows:

* * * * *

"Question [by Mr. Gooch].—Was it not the intention to move from Bunker Hill to Winchester? "Answer.—Yes, Sir. At one time General Patterson had given an order to move from Bunker Hill to Winchester. He was very unwilling to leave Johnston even at Winchester without attacking him; and on the afternoon before we left Bunker Hill he decided to attack him, notwithstanding his strong force."

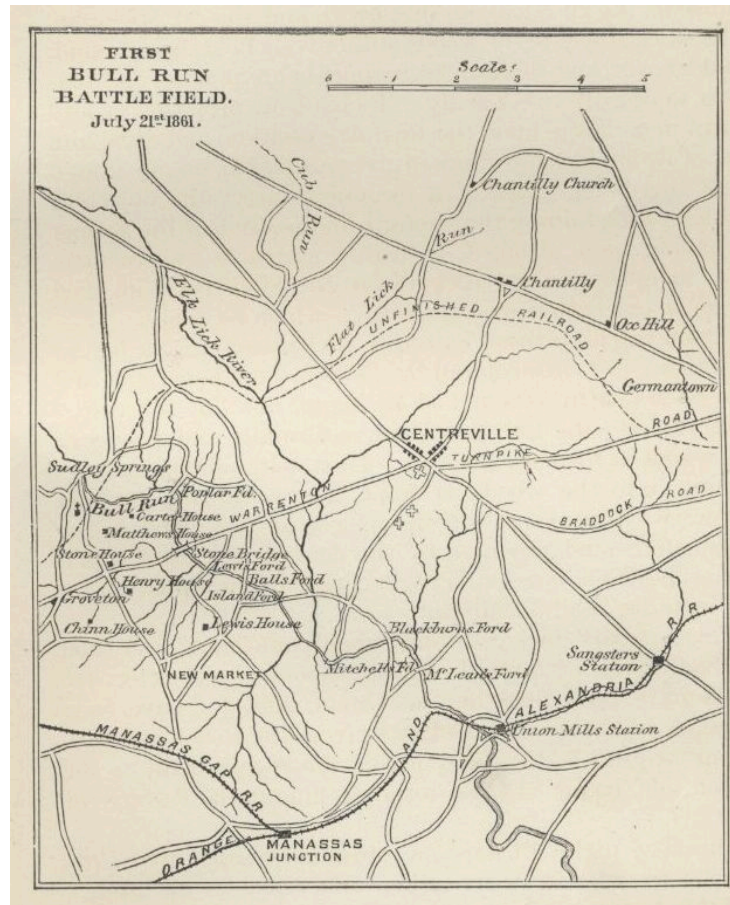
"Question.—Behind his intrenchments? "Answer.—Yes, Sir; it went so far that his order was written by his adjutant, General [Fitz John] Porter. It was very much against the wishes of General [Fitz John] Porter; and he asked General Patterson if he would send for Colonel Abercrombie and Colonel Thomas and consult them on the movement. General Patterson replied: No, Sir; for I know they will

attempt to dissuade me from it, and I have made up my mind to fight Johnston under all circumstances. That was the day before we left Bunker Hill. Then Colonel [Fitz John] Porter asked to have Colonel Abercrombie and Colonel Thomas sent for and consulted as to the best manner to carry out his wishes. He consented, and they came, and after half an hour they dissuaded him from it."

"Question.—At that time General Patterson felt it was so important to attack Johnston that he had determined to do it? "Answer.—Yes, Sir; the order was not published, but it was written."

"Question.—You understood General Patterson to be influenced to make that attempt because he felt there was a necessity for detaining Johnston? "Answer.—Yes, Sir; to detain him as long as he possibly could."

"Question.—That order was not countermanded until late on Tuesday, the 16th, was it? "Answer.—That order never was published. It was written; but, at the earnest solicitation of Colonel [Fitz John] Porter, it was withheld until he could have a consultation with Colonel Abercrombie and Colonel Thomas."]



It is about 1 o'clock on the morning of Thursday, July 18th,—that same day which witnesses the preliminary Battle of Blackburn's Ford—that Johnston, being at Winchester, and knowing of Patterson's peculiarly inoffensive and timid movement to his own left and rear, on Charlestown, receives from the Rebel Government at Richmond, a telegraphic dispatch, of July 17th, in these words: "General Beauregard is attacked. To strike the Enemy a decisive blow, a junction of all your effective force will be needed. If practicable, make the movement. * * * In all the arrangements exercise your discretion."

Johnston loses no time in deciding that it is his duty to prevent, if possible, disaster to Beauregard's Army; that to do this he must effect a junction with him; and that this necessitates either an immediate fight with,

and defeat of, Patterson,—which may occasion a fatal delay—or else, that Union general must be eluded. Johnston determines on the latter course.

Leaving his sick, with some militia to make a pretense of defending the town in case of attack, Johnston secretly and rapidly marches his Army, of 9,000 effective men, Southeasterly from Winchester, at noon of Thursday, the 18th; across by a short cut, wading the Shenandoah River, and then on through Asby's Gap, in the Blue Ridge, that same night; still on, in the same direction, to a station on the Manassas Gap railroad, known as Piedmont, which is reached by the next (Friday) morning,—the erratic movements of Stuart's Cavalry entirely concealing the manoeuvre from the knowledge of Patterson.

From Piedmont, the Artillery and Cavalry proceed to march the remaining twenty-five miles, or so, to Manassas Junction, by the roads. The 7th and 8th Georgia Regiments of Bartow's Brigade, with Jackson's Brigade,—comprising the 2d, 4th, 5th, 27th and 33d Virginia Regiments—are embarked on the cars, and hurriedly sent in advance, by rail, to Manassas, reaching there on that same (Friday) afternoon and evening. These are followed by General Johnston, with Bee's Brigade—comprising the 4th Alabama, 2d Mississippi, and a battalion of the 11th Mississippi—which arrive at Manassas about noon of Saturday, the 20th of July, the balance of Johnston's Infantry being billed for arrival that same day, or night.

Upon Johnston's own arrival at Manassas, Saturday noon,—the very day that Patterson ascertains that "the bird has flown,"—after assuming command, by virtue of seniority, he proceeds to examine Beauregard's position. This he finds "too extensive, and the ground too densely wooded and intricate," to be learned quickly, and hence he is impelled to rely largely upon Beauregard for information touching the strength and positions of both the Rebel and Union Armies.

Beauregard has now 21,833 men, and 29 pieces of artillery of his own "Army of the Potomac." Johnston's and Holmes's junction with him has raised the Rebel total to 32,000 effectives, and 55 guns. McDowell, on the other hand, who started with 30,000 effectives, finds himself on the 19th—owing to the departure of one of his regiments and a battery of Artillery, because of the expiration of their term of enlistment,—with but "28,000 men at the utmost."—[Comte de Paris.]

On the evening of Saturday, the 20th of July, Johnston and Beauregard hold an important consultation. The former feels certain that Patterson, with his more than 20,000 effectives, will now lose no time in essaying a junction with McDowell's Army, and that such junction will probably be effected by July 22nd. Hence he perceives the necessity of attacking McDowell, and if possible, with the combined Rebel Forces, whipping him before Patterson can come up to his assistance.

At this consultation it is agreed by the two Rebel generals to assume the offensive, at once. Beauregard proposes a plan of battle—which is an immediate general advance of the Rebel centre and left, concentrating, from all the fords of Bull Run, upon Centreville, while the Rebel right advances toward Sangster's cross-roads, ready to fall either on Centreville, or upon Fairfax Court House, in its rear, according to circumstances.

The plan proposed, is accepted at once by Johnston. The necessary order is drawn up by Beauregard that night; and at half past four o'clock on Sunday morning, July 21st, Johnston signs the written order. Nothing now remains, apparently, but the delivery of the order to the Rebel brigade commanders, a hurried preparation for the forward movement, and then the grand attack upon McDowell, at Centreville.

Already, no doubt, the fevered brain of Beauregard pictures, in his vivid imagination, the invincible thunders of his Artillery, the impetuous advance of his Infantry, the glorious onset of his Cavalry, the flight and rout of the Union forces, his triumphal entry into Washington—Lincoln and Scott and the Congress crouching at his feet—and the victorious South and conquered North acclaiming him Dictator! The plan is Beauregard's own, and Beauregard is to have command. Hence all the glory of capturing the National Capital, must be Beauregard's. Why not? But "man proposes, and God disposes." The advance and attack, are, in that shape, never to be made.

McDowell, in the meantime, all unconscious of what has transpired in the Shenandoah Valley, and between there and Manassas; never dreaming for an instant that Patterson has failed to keep Johnson there—even if he has not attacked and defeated him; utterly unsuspecting that his own lessened Union Army has now to deal with the Forces of Johnston and Beauregard combined—with a superior instead of an inferior force; is executing a plan

of battle which he has decided upon, and announced to his general officers, on that same Saturday evening, at his Headquarters in Centreville.

Instead of attempting to turn the Enemy's right, and cut off his communications with Richmond and the South, McDowell has now determined to attack the Enemy's left, cut his communication, via the Manassas Gap railroad, with Johnston's Army,—still supposed by him to be in the Valley of the Shenandoah—and, taking him in the left flank and rear, roll him upon Manassas, in disorder and defeat—with whatever might follow.

That is the plan—in its general features. In executing it, Blenker's Brigade of Miles's Division is to remain at Centreville as a reserve, throwing up intrenchments about its Heights, upon which to fall back, in case of necessity; Davies's Brigade of the same Division, with Richardson's Brigade of Tyler's Division—as the Left Wing—are to demonstrate at Blackburn's Ford, toward the Enemy's right; Tyler's other three brigades, under Keyes, Schenck, and Sherman, are to feign an attack on the Enemy's left, posted behind the strongly-defended Stone Bridge over which the Warrenton turnpike, running Westward, on its way from Centreville to Warrenton, crosses Bull Run stream; while the strong divisions under Hunter and Heintzelman—forming McDowell's Right Wing—are to follow Tyler's Division Westward down the turnpike to a point within one mile and a half of the Stone Bridge, thence, by cross-road, diverge several miles to the North, then sweep around gradually to the West, and then Southwardly over Bull Run at Sudley Springs Ford, swooping down the Sudley road upon the Enemy's left flank and rear, near Stone Bridge, rolling it back toward his center, while Tyler's remaining three brigades cross the bridge and join in the assault. That is the whole plan in a nutshell.

It has been McDowell's intention to push forward, from Centreville along the Warrenton Pike a few miles, on the evening of this Military conference; but he makes his first mistake, in allowing himself to be dissuaded from that, by those, who, in his own words, "have the greatest distance to go," and who prefer "starting early in the morning and making but one move."

The attacking divisions now have orders to march at 2:30 A. M., in order "to avoid the heat," which is excessive. Tyler's three immediate brigades—or some of them—are slow in starting Westward, along the Warrenton Pike, to the Stone Bridge; and this leads to a two or three hours delay of the

divisions of Hunter and Heintzelman, before they can follow that Pike beyond Centreville, and commence the secret detour to their right, along the cross-road leading to Sudley Springs.

At 6:30 A.M., Tyler's Artillery gets into position, to cannonade the Enemy's batteries, on the West Bank of Bull Run, commanding the Stone Bridge, and opens fire. Half an hour before this, (at 6 A.M.), the Rebel artillerists, posted on a hill South of the Pike, and 600 yards West of the bridge, have caught sight of Tyler's Union blue-jackets. Those of the Rebel gunners whose eyes are directed to the North-East, soon see, nearly a mile away, up the gradual slope, a puff of blue smoke. Immediately the bang of a solitary rifle cannon is heard, and the scream of a rifled shot as it passes over their heads. At intervals, until past 9 A.M., that piece and others in the same position, keep hammering away at the Rebel left, under Evans, at Stone Bridge.

The Rebel response to this cannonade, is very feeble. McDowell observes this. He suspects there has been a weakening of the Enemy's force at the bridge, in order to strengthen his right for some purpose. And what can that purpose be, but to throw his augmented right upon our left, at Blackburn's Ford, and so, along the ridge-road, upon Centreville? Thus McDowell guesses, and guesses well. To be in readiness to protect his own left and rear, by reenforcing Miles's Division, at Centreville and along the ridge to Blackburn's Ford, he temporarily holds back Howard's Brigade of Heintzelman's Division at the point where the cross-road to Sudley Springs Ford—along which Hunter's Division, followed by the Brigades of Franklin and Wilcox, of Heintzelman's Division, have already gone—intersects the Warrenton Pike.

It is 9 o'clock. Beauregard, as yet unaware of McDowell's new plan, sends an order to Ewell, on his right, to hold himself ready "to take the offensive, at a moment's notice,"—and directing that Ewell be supported in his advance, toward Sangster's cross-roads and the rear of Centreville, by Holmes's Brigade. In accordance with that order, Ewell, who is "at Union Mills and its neighborhood," gets his brigade ready, and Holmes moves up to his support. After waiting two hours, Ewell receives another order, for both Ewell and Holmes "to resume their places." Something must have occurred since 9 o'clock, to defeat Beauregard's plan of attack on

Centreville—with all its glorious consequences! What can it be? We shall see.

While Tyler's Artillery has been cannonading the Rebel left, under Evans, at Stone Bridge,—fully impressed with the prevailing Union belief that the bridge is not only protected by strong masked batteries, heavy supports of Infantry, and by abatis as well as other defenses, but is also mined and ready to be blown up at the approach of our troops, when in reality the bridge is not mined, and the Rebel force in men and guns at that point has been greatly weakened in anticipation of Beauregard's projected advance upon Centreville,—the Union column, under Hunter and Heintzelman, is advancing from Centreville, in the scorching heat and suffocating dust of this tropical July morning, slowly, but surely, along the Warrenton Pike and the cross-road to Sudley Springs Ford—a distance of some eight miles of weary and toilsome marching for raw troops in such a temperature—in this order: Burnside's Brigade, followed by Andrew Porter's Brigade,—both of Hunter's Division; then Franklin's Brigade, followed by Willcox's Brigade,—both of Heintzelman's Division.

It is half past 9 o'clock; before Burnside's Brigade has crossed the Bull Run stream, at Sudley's Ford, and the head of Andrew Porter's Brigade commences to ford it. The troops are somewhat slow in crossing. They are warm, tired, thirsty, and as to dust,—their hair and eyes and nostrils and mouths are full of it, while most of the uniforms, once blue, have become a dirty gray. The sky is clear. The sun already is fiercely hot. The men stop to drink and fill their canteens. It is well they do.

McDowell, who has been waiting two or three hours at the turn, impatient at the delay, has ridden over to the front of the Flanking column, and now reaches Sudley's Ford. He feels that much valuable time is already lost. His plan has, in a measure, been frustrated by delay. He had calculated on crossing Bull Run, at Sudley's Ford, and getting to the rear of the Enemy's position, at Stone Bridge, before a sufficient Rebel force could be assembled to contest the Union advance. He sends back an aide with orders to the regimental commanders in the rear, to "break from column, and hurry forward separately, as fast as possible." Another aide he sends, with orders to Howard to bring his brigade across-fields. To Tyler he also sends orders to "press forward his attack, as large bodies of the Enemy are passing in front of him to attack the division (Hunter's) which has passed over."

It may here be explained, that the Sudley road, running about six miles South-Southeasterly from Sudley Springs Ford to Manassas Junction, is crossed at right angles, about two miles South of the Springs, by the Warrenton Pike, at a point about one mile and a half West of the Stone Bridge. For nearly a mile South of Sudley Ford, the Sudley road passes through thick woods on the left, and alternate patches of wooded and cleared lands on the right. The country farther South, opens into rolling fields, occasionally cut by transverse gullies, and patched with woods. This is what Burnside's Brigade beholds, as it marches Southward, along the Sudley road, this eventful morning.

Thus far, the cannonade of Tyler's batteries, and the weak return-fire of the Rebel Artillery, at Stone Bridge, over two miles South-East of Sudley Ford, is about the only music by which the Union march has kept time.

But now, as Burnside's foremost regiment emerges from the woods, at half past 10 o'clock, the Artillery of the Enemy opens upon it.

Let us see how this happens. Evans's Brigade, defending the Stone Bridge, and constituting the Enemy's extreme left, comprises, as has already been mentioned, Sloan's 4th South Carolina Regiment, Wheat's Louisiana battalion, Terry's squadron of Virginia Cavalry, and Davidson's section of Latham's Battery of six-pounders.

Earlier in the morning Evans has supposed, from the cannonade of Tyler's batteries among the pines on the hills obliquely opposite the Enemy's left, as well as from the sound of the cannonade of the Union batteries away down the stream on the Enemy's right, near Blackburn's Ford, that McDowell is about to make an attack upon the whole front of the Rebel line of defense along Bull Run—by way of the Stone Bridge, and the various fords below it, which cross that stream. But by 10 o'clock, that Rebel general begins to feel doubtful, suspicious, and uneasy. Despite the booming of Tyler's guns, he has caught in the distance the rumbling sounds of Hunter's Artillery wheels.

Evans finds himself pondering the meaning of those long lines of dust, away to his left; and then, like a flash, it bursts upon him, that all this Military hubbub in his front, and far away to his right, is but a feint; that the real danger is somehow connected with that mysterious far-away rumble, and those lines of yellow dust; that the main attack is to be on the unprepared left and rear of the Rebel position!

No sooner has the Rebel brigade-commander thus divined the Union plan of attack, than he prepares, with the limited force at his command, to thwart it. Burnside and he are about equidistant, by this time, from the intersection of the Sudley road, running South, with the Warrenton Pike, running West. Much depends upon which of them shall be the first to reach it,—and the instinctive, intuitive knowledge of this, spurs Evans to his utmost energy. He leaves four of his fifteen companies, and Rogers's section of the Loudoun Artillery,—which has come up from Cocke's Brigade, at the ford below—to defend the approaches to the Stone Bridge, from the East side of Bull Run,—and, with the other eleven companies, and Latham's half-battery, he hurries Westward, along the Warrenton Pike, toward the Sudley road-crossing, to resist the impending Union attack.

It is now 10:30 o'clock, and, as he hurries along, with anxious eyes, scanning the woods at the North, he suddenly catches the glitter of Burnside's bayonets coming down through them, East of the Sudley road, in "column of regiments" toward Young's Branch—a small stream turning, in a Northern and Southern loop, respectively above and below the Warrenton Pike, much as the S of a prostrate dollar-mark twines above and below its horizontal line, the vicinity of which is destined to be hotly-contested ground ere night-fall.

[Says Captain D. P. Woodbury, U. S. corps of engineers, and who, with Captain Wright, guided the divisions of Hunter and Heintzelman in making the detour to the upper part of Bull Run: "At Sudley's Mills we lingered about an hour to give the men and horses water and a little rest before going into action, our advance guard in the mean time going ahead about three quarters of a mile. Resuming our march, we emerged from the woods about one mile South of the ford, and came upon a beautiful open valley about one and a quarter miles square, bounded on the right or West by a wooded ridge, on the East by the rough spurs or bluffs of Bull Run, on the North by an open plain and ridge, on which our troops began to form, and on the South by another ridge, on which the Enemy was strongly posted, with woods behind their backs. The Enemy was also in possession of the bluffs of Bull Run on our left."]

Sending word to Headquarters, Evans pushes forward and gaining Buck Ridge, to the North of the Northern loop of Young's Branch, forms his line-of-battle upon that elevation—which somewhat compensates him for the inferiority of his numbers—nearly at right angles to the Bull Run line; rapidly puts his Artillery in position; the Rebel guns open on Burnside's advance—their hoarse roar soon supplemented by the rattle of Rebel musketry, and the answering roar and rattle of the Union onset; and the Battle of Bull Run has commenced!

It is after 10:30 A.M., and Beauregard and Johnston are upon an eminence in the rear of the centre of the Enemy's Bull Run line. They have been there since 8 o'clock. An hour ago, or more, their Signal Officer has reported a large body of Union troops crossing the Bull Run Valley, some two or three miles above the Stone Bridge; upon the strength of which, Johnston has ordered Bee's Brigade from near Cocke's position, with Hampton's Legion and Stonewall Jackson's Brigade from near Bonham's left, to move to the Rebel left, at Stone Bridge; and these troops are now hastening thither, guided by the sound of the guns.

The artillery-firing is also heard by Johnston and Beauregard, but intervening wooded slopes prevent them from determining precisely whence it comes. Beauregard, with a badly-organized staff, is chaffing over the delay that has occurred in carrying out his own plan of battle. He is waiting to hear of the progress of the attack which he has ordered upon the Union Army,—supposed by him to be at Centreville,—and especially as to the advance of his right toward Sangster's Station. In the meantime also,—from early morning,—the Rebel commanders have heard heavy firing in the direction of Blackburn's Ford, toward their right, where the Artillery attached to the brigades of Davies and Richardson, constituting McDowell's Left Wing, is demonstrating in a lively manner, in accordance with McDowell's plan.

It is 11 o'clock. Beauregard has become satisfied that his orders for the Rebel advance and attack on Centreville, have failed or miscarried. His plan is abandoned, and the orders countermanded. At the same time the growing volume of artillery-detonations upon the left of the Bull Run line of defense—together with the clouds of dust which indicate the route of march of Hunter's and Heintzelman's Divisions from near Centreville to the point of

conflict, satisfies both Johnston and Beauregard, that a serious attack is imperilling the Rebel left.

Beauregard at once proposes to Johnston "a modification of the abandoned plan," viz.: "to attack with the" Rebel "right, while the left stands on the defensive." But rapidly transpiring events conspire to make even the modified plan impracticable.

Johnston, convinced by the still growing volume of battle-sounds on the Rebel left, that the main attack of McDowell is being made there, urges Beauregard to strengthen the left, as much as possible; and, after that general has sent orders to this end,—to Holmes and Early to come up with their Brigades from Union Mills Ford, moving "with all speed to the sound of the firing," and to Bonham to promptly send up, from Mitchell's Ford, a battery and two of his regiments—both he and Beauregard put spurs to their horses, and gallop at full speed toward the firing, four miles away on their left,—stopping on the way only long enough for Johnston to order his Chief-of-artillery, Colonel Pendleton, to "follow, with his own, and Alburtis's Batteries."

Meanwhile let us return and witness the progress of the battle, on the Rebel left,—where we were looking on, at 10:30 o'clock. Evans had then just posted his eleven companies of Infantry on Buck Ridge, with one of his two guns on his left, near the Sudley road, and the other not far from the Robinson House, upon the Northern spur of the elevated plateau just South of Young's Branch, and nearly midway between the Sudley road and Stone Bridge.

The battle, as we have seen, has opened. As Burnside's Brigade appears on the slope, to the North of Buck Ridge (or Hill), it is received by a rapid, well-sustained, and uncomfortable, but not very destructive fire, from Evans's Artillery, and, as the Union regiments press forward, in column, full of impulsive ardor, the Enemy welcomes the head of the column with a hot musketry-fire also, delivered from the crest of the elevation behind which the Rebel Infantry lie flat upon the ground.

This defense by Evan's demi-Brigade still continues, although half an hour, or more, has elapsed. Burnside has not yet been able to dislodge the Enemy from the position. Emboldened to temerity by this fact, Major Wheat's Louisiana battalion advances through the woods in front, upon

Burnside, but is hurled back by a galling fire, which throws it into disorder and flight.

At this moment, however, the brigades of Bee and Bartow—comprising the 7th and 8th Georgia, 2nd Mississippi, 4th Alabama, 6th North Carolina, and two companies of the 11th Mississippi, with Imboden's Battery of four pieces—recently arrived with Johnston from Winchester, come up, form on the right of Sloan's 4th South Carolina Regiment, while Wheat rallies his remnant on Sloan's left, now resting on the Sudley road, and the whole new Rebel line opens a hot fire upon Burnside's Brigade.

Hunter, for the purpose of better directing the Union attack, is at this moment rapidly riding to the left of the Union line,—which is advancing Southwardly, at right angles to Bull Run stream and the old line of Rebel defense thereon. He is struck by the fragment of a shell, and carried to the rear.

Colonel John S. Slocum's, 2nd Rhode Island, Regiment, with Reynold's Rhode Island Battery (six 13-pounders), having been sent to the front of Burnside's left, and being closely pressed by the Enemy, Burnside's own regiment the 1st Rhode Island, is gallantly led by Major Balch to the support of the 2nd, and together they handsomely repulse the Rebel onset. Burnside now sends forward Martin's 71st New York, with its two howitzers, and Marston's 2nd New Hampshire,—his whole Brigade, of four regiments and a light artillery battery, being engaged with the heavy masked battery (Imboden's and two other pieces), and nearly seven full regiments of the Enemy.

The regiments of Burnside's Brigade are getting considerably cut up. Colonels Slocum and Marston, and Major Balch, are wounded. There is some confusion in the ranks, and the Rhode Island Battery is in danger of capture, when General Andrew Porter—whose own brigade has just reached the field and is deploying to the right of Burnside's—succeeds Hunter in command of the division, and rides over to his left. Burnside asks him for Sykes's battalion of regulars, which is accordingly detached from the extreme right of Andrew Porter's Division, rapidly forms on the left, in support of the Rhode Island Battery, and opens a hot and effective fire which, in connection with the renewed fire of Burnside's rallied regiments, and the opening artillery practice of Griffin's Battery—that has just come up at a gallop and gone into a good position upon an eminence to the right of

Porter's Division, and to the right of the Sudley road looking South—fairly staggers the Enemy.

And now the brigades of Sherman and Keyes, having been ordered across Bull Run by General Tyler, are seen advancing from Poplar Ford, at the rear of our left,—Sherman's Brigade, headed by Corcoran's 69th New York Regiment, coming up on Burnside's left, while Keves's Brigade is following, to the left again of, Sherman.

[Sherman, in his Official Report, after mentioning the receipt by him of Tyler's order to "cross over with the whole brigade to the assistance of Colonel Hunter"—which he did, so far as the Infantry was concerned, but left his battery under Ayres behind, on account of the impassability of the bluff on the Western bank of Bull Run—says: "Early in the day, when reconnoitering the ground, I had seen a horseman descend from a bluff in our front, cross the stream, and show himself in the open field, and, inferring we could cross over at the same point, I sent forward a company as skirmishers, and followed with the whole brigade, the New York Sixty-ninth leading."

This is evidently the ford at the elbow of Bull Run, to the right of Sherman's front, which is laid down on the Army-maps as "Poplar Ford," and which McDowell's engineers had previously discovered and mapped; and to which Major Barnard of the U. S. Engineer Corps alludes when, in his Official Report, he says: "Midway between the Stone Bridge and Sudley Spring our maps indicated another ford, which was said to be good."

The Comte de Paris, at page 241, vol. I. of his admirable "History of the Civil War in America," and perhaps other Military historians, having assumed and stated—upon the strength of this passage in Sherman's Report—that "the Military instinct" of that successful soldier had "discovered" this ford; and the impression being thus conveyed, however undesignedly, to their readers, that McDowell's Engineer corps, after spending two or three days in reconnaissances, had failed to find the ford which Sherman had in a few

minutes "discovered" by "Military instinct;" it is surely due to the truth of Military history, that the Engineers be fairly credited with the discovery and mapping of that ford, the existence of which should also have been known to McDowell's brigade commanders.

*If, on the other hand, the Report of the Rebel Captain Arthur L. Rogers, of the Loudoun Artillery, to General Philip St. George Cocke, be correct, it would seem that Sherman attempted to cross Bull Run lower down than Poplar Ford, which is "about one mile above the Stone Bridge," but was driven back by the fire of Rogers's guns to cross at that particular ford; for Rogers, in that Report, says that about 11 o'clock A. M., the first section of the Loudoun Artillery, under his command, "proceeded to the crest of the hill on the West Side of Bull Run, commanding Stone Bridge. * * * Here." continues he, "I posted my section of Artillery, and opened a brisk fire upon a column of the Enemy's Infantry, supposed to be two regiments, advancing towards me, and supported by his battery of rifled cannon on the hills opposite. These poured into my section a steady fire of shot and shell. After giving them some fifty rounds, I succeeded in heading his column, and turned it up Bull Run to a ford about one mile above Stone Bridge, where, with the regiments which followed, they crossed, and proceeded to join the rest of the Enemy's forces in front of the main body of our Army."]*

Before this developing, expanding, and advancing attack of the Union forces, the Rebel General Bee, who—since his coming up to support Evans, with his own and Bartow's Brigades, to which had since been added Hampton's Legion,—has been in command of this new Rebel line of defense upon the left of the Bull Run line, concludes that that attack is getting too strong for him, and orders his forces to retreat to the Southward, and re-form on a second line, parallel to their present line, and behind the rising ground at their rear. They do so, somewhat faster than he desires. The whole line of the Rebel centre gives way, followed by the wings, as far as the victorious Union troops can see.

We must be blind if we cannot perceive that thus far, the outlook, from the Union point of view,—despite numberless mistakes of detail, and some, perhaps, more general in their character—is very good. The "Boys in Blue" are irresistibly advancing, driving the "Rebel Gray" back and back, without let or hindrance, over the Buck Hill ridge, over Young's Branch, back to, and even over, the Warrenton Pike. Time, to be sure, is flying—valuable time; but the Enemy also is retiring.—There is some slight confusion in parts of our own ranks; but there is much more in his. At present, we have decidedly the best of it. McDowell's plan has been, thus far, successful. Will that success continue? We shall see.

Heintzelman's Division is coming, up from the rear, to the Union right—Franklin's Brigade, made up of the 5th and 11th Massachusetts, and 1st Minnesota, with Ricketts's splendid battery of six 10-pounder Parrotts, forming on the right of Andrew Porter's Brigade and Division; while Willcox's demi-Brigade, with its 11th ("Fire Zouaves") and 38th New York—having left Arnold's Battery of four pieces, with the 1st Michigan as its support, posted on a hill commanding Sudley's Ford—comes in, on the right of Franklin, thus forming the extreme right of the advancing Union line of attack.

As our re-enforcing brigades come up, on our right, and on our left, the Enemy falls back, more and more discouraged and dismayed. It seems to him, as it does to us, "as though nothing can stop us." Jackson, however, is now hurrying up to the relief of the flying and disordered remnants of Bee's, Bartow's, and Evans's Brigades; and these subsequently rally, with Hampton's Legion, upon Jackson's strong brigade of fresh troops, so that, on a third new line, to which they have been driven back, they soon have—6,500 Infantry, 13 pieces of Artillery, and Stuart's cavalry—posted in a belt of pines which fringes the Southern skirt of the Henry House plateau—in a line-of-battle which, with its left resting upon the Sudley road, three-quarters of a mile South of its intersection with the Warrenton Pike, is the irregular hypotenuse of a right-angled triangle, formed by itself and those two intersecting roads, to the South-East of such intersection. It is within this right-angled triangular space that the battle, now proceeding, bids fair to rage most fiercely.

Johnston and Beauregard, riding up from their rear, reach this new (third) line to which the Rebel troops have been driven, about noon. They find the

brigades of Bee, Bartow, and Evans, falling back in great disorder, and taking shelter in a wooded ravine, South of the Robinson House and of the Warrenton Pike. Hampton's Legion, which has just been driven backward over the Pike, with great loss, still holds the Robinson House. Jackson, however, has reached the front of this line of defense, with his brigade of the 2nd, 4th, 5th, 27th, and 33rd Virginia Infantry, and Pendleton's Battery—all of which have been well rested, since their arrival, with other brigades of Johnston's Army of the Shenandoah, from Winchester, a day or two back.

As Jackson comes up, on the left of "the ravine and woods occupied by the mingled remnants of Bee's, Bartow's and Evans's commands," he posts Imboden's, Stanard's, and Pendleton's Batteries in line, "below the brim of the Henry House plateau," perhaps one-eighth of a mile to the East-Southeastward of the Henry House, at his centre; Preston's 4th Virginia, and Echol's 27th Virginia, at the rear of the battery-line; Harper's 5th Virginia, with Radford's Cavalry, at its right; and, on its left, Allen's 2nd Virginia; with Cumming's 33rd Virginia to the left of that again, and Stuart's Cavalry covering the Rebel left flank.

It is about this time that the chief Rebel generals find their position so desperate, as to necessitate extraordinary measures, and personal exposure, on their part. Now it is, that Jackson earns the famous sobriquet which sticks to him until he dies.

[Bee approaches Jackson—so goes the story, according to Swinton; he points to the disordered remnants of his own brigade mingled with those of the brigades of Bartow and Evans huddled together in the woods, and exclaims: "General, they are beating us back!" "Sir," responds Jackson, drawing himself up, severely, "We'll give them the bayonet!" And Bee, rushing back among his confused troops, rallies them with the cry: "There is Jackson, standing like a Stone wall! Let us determine to die here, and we will conquer."]

Now it is, that Johnston and Beauregard, accompanied by their staffs, ride backward and forward among the Rebel ranks, rallying and encouraging them. Now it is, that, Bee and Bartow and Hampton being wounded, and the Lieutenant-Colonel of the Hampton Legion killed,

Beauregard leads a gallant charge of that legion in person. And now it is, that Johnston himself, finding all the field-officers of the 4th Alabama disabled, "impressively and gallantly charges to the front" with the colors of that regiment at his side!

These conspicuous examples of bravery, inspire the Rebel troops with fresh courage, at this admittedly "critical" moment.

Johnston now assigns to Beauregard the chief "command of the left" of the Bull Run line,—that is to say, the chief command of the Enemy's new line of defense, which, as we have seen, is on the left of, and at right angles to, the old Bull Run line—while he himself, riding back to the Lewis House, resumes "the command of the whole field."

On his way to his rear, Johnston orders Cocke to send reinforcements to Beauregard. He also dispatches orders to hurry up to that Rebel general's support, the brigades of Holmes and Early from near the Union Mills Ford, and that of Bonham from Mitchell's Ford,—Ewell with his brigade, being also directed to "follow with all speed" from Union Mills Ford-making a total of over 10,000 fresh troops.

From the "commanding elevation" of the Lewis House, Johnston can observe the position of the Union forces beyond Bull Run, at Blackburn's Ford and Stone Bridge; the coming of his own re-enforcing brigades from far down the valley, toward Manassas; and the manoeuvres of our advancing columns under McDowell.

As the battle proceeds, the Enemy's strength on the third new line of defense increases, until he has 22 guns, 260 Cavalry, and 12 regiments of Infantry, now engaged. It is interesting to observe also, that, of these, 16 of the guns, 9 of the regiments, and all of the Cavalry (Stuart's), belong to Johnston's Army of the Shenandoah, while only 6 guns and 3 Infantry regiments thus engaged, belong to Beauregard's Army of the Potomac. Thus the burden of the battle has been, and is being, borne by Johnston's, and not Beauregard's troops—in the proportion of about three of the former, to one of the latter,—which, for over two hours, maintain their position despite many successive assaults we make upon them.

It is after 2 o'clock P.M., when Howard's Brigade, of Heintzelman's Division, reaches the battle-field, almost broken down with exhaustion. By order of Heintzelman it has moved at double-quick for a mile of the way, until, under the broiling heat, it can do so no longer. The last two miles of

the weary tramp, while the head of the brigade has moved at quick time, the rear, having lost distances, moves, much of the time, at a double-quick. As a consequence, many of Howard's men drop out, and absolutely faint from exhaustion.

As Howard's Brigade approaches the field, besides the ambulances and litters, conveying to the rear the wounded and dying, crowds of retreating stragglers meet and tell it to hurry along; that the Enemy has been driven back a mile; but, as it marches along, its regiments do not feel particularly encouraged by the disorganization so prevalent; and the fact that as they come into action, the thunders of the Rebel Artillery do not seem to meet an adequately voluminous response—from the Union side, seems to them, a portent of evil. Weary and fagged out, they are permitted to rest, for a while, under cover.

Up to this time, our line, increased, as it has been, by the brigades of Sherman and Keyes, on the left of Burnside, and of Franklin and Wilcox, on the right of Porter, has continued to advance victoriously. Our troops are, to be sure, considerably scattered, having been "moved from point to point" a good deal. On our left, the Enemy has been driven back nearly a mile, and Keyes's Brigade is pushing down Bull Run, under shelter of the bluffs, trying to turn the right of the Enemy's new line, and give Schenck's Brigade a better chance for crossing the Stone Bridge, still commanded by some of the Rebel guns.

Having "nothing to do" there, "several of the Union regiments" are coming over, from our left toward our right, with a view of overlapping, and turning, the Enemy's left.

It is about half past 2 o'clock. The batteries of Griffin and Ricketts have already been advanced as far as the eminence, upon our right, upon which stands the Dogan House. Supported by Lyons's gallant 14th New York Chasseurs, Griffin's and Ricketts's Batteries are still pouring a terribly destructive fire into the batteries and columns of the Enemy, now behind the brow of the Henry House hill, wherever exposed, while Palmer's seven companies of Union Cavalry are feeling the Enemy's left flank, which McDowell proposes to turn. The flags of eight Union regiments, though "borne somewhat wearily" now point toward the hilly Henry House plateau, beyond which "disordered masses of Rebels" have been seen "hastily retiring."

There is a lull in the battle. The terrible heat is exhausting to the combatants on both sides. Griffin and Ricketts have wrought such havoc with their guns, that "nothing remains to be fired at." Victory seems most surely to be ours.

Away down at his headquarters at the Lewis House, the Rebel General Johnston stands watching the progress of the battle, as it goes against him. Nervously he glances, every now and then, over his left shoulder, as if expecting something. An officer is galloping toward him, from Manassas. He comes from the office of Beauregard's Adjutant-General, at that point. He rides up and salutes. "General," says he, breathlessly, "a United States Army has reached the line of the Manassas Gap railroad, and is now but three or four miles from our left flank!"

Johnston clenches his teeth nervously. Thick beads of perspiration start from his forehead. He believes it is Patterson's Army that has followed "upon his heels" from before Winchester, faster than has been anticipated; and, as he thinks of Kirby Smith, who should long since have arrived with Elzey's Brigade—all, of his own "Army of the Shenandoah," that has not yet followed him to Manassas,—the exclamation involuntarily bursts from his lips: "Oh, for four regiments!"

[Says a correspondent and eye-witness of the battle, writing to the Richmond Dispatch, from the battle-field, July 23d: "Between two and three o'clock large numbers of men were leaving the field, some of them wounded, others exhausted by the long struggle, who gave us gloomy reports; but, as the firing on both sides continued steadily, we felt sure that our brave Southerners had not been conquered by the overwhelming hordes of the North. It is, however, due to truth to say that the result at this hour hung trembling in the balance. We had lost numbers of our most distinguished officers. Gens. Barlow and Bee had been stricken down; Lieut; Col. Johnson of the Hampton Legion had been killed; Col. Hampton had been wounded. But there was at hand a fearless general whose reputation was staked on this battle: Gen. Beauregard promptly offered to lead the Hampton Legion into action, which he executed in a style unsurpassed and unsurpassable. Gen. Beauregard rode up and down our

lines, between the Enemy and his own men, regardless of the heavy fire, cheering and encouraging our troops. About this time, a shell struck his horse, taking its head off, and killing the horses of his aides, Messrs. Ferguson and Hayward. * * * Gen. Johnston also threw himself into the thickest of the fight, seizing the colors of a Georgia (Alabama) regiment, and rallying then to the charge. * * * Your correspondent heard Gen. Johnston exclaim to Gen. Cocke, just at the critical moment, 'Oh, for four regiments!' His wish was answered; for in the distance our re-enforcements appeared. The tide of battle was turned in our favor by the arrival of Gen. Kirby Smith, from Winchester, with 4,000 men of Gen. Johnston's Division. Gen. Smith heard, while on the Manassas Railroad cars, the roar of battle. He stopped the train, and hurried his troops across the fields to the point just where he was most needed. They were at first supposed to be the Enemy, their arrival at that point of the field being entirely unexpected. The Enemy fell back, and a panic seized them. Cheer after cheer from our men went up, and we knew the battle had been won."

Another Rebel correspondent who, as an officer of the Kentucky battalion of General Johnston's Division of the Rebel Army, participated in the battle, wrote to the Louisville Courier from Manassas, July 22, an account of it, in which, after mentioning that the Rebel Army had been forced back for two miles, he continues; "The fortunes of the day were evidently against us. Some of our best officers had been slain, and the flower of our Army lay strewn upon the field, ghastly in death or gaping with wounds. At noon, the cannonading is described as terrific. It was an incessant roar for more than two hours, the havoc and devastation at this time being fear ful. McDowell * * * had nearly outflanked us, and they were just in the act of possessing themselves of the Railway to Richmond. Then all would have been lost. But most opportunely—I may say Providentially—at this juncture, Gen. Johnston, [Kirby Smith it should be] with the remnant of Johnston's Division—our Army, as we

fondly call it, for we have been friends and brothers in camp and field for three months—reappeared, and made one other desperate struggle to obtain the vantage-ground. Elzey's Brigade of Marylanders and Virginians led the charge; and right manfully did they execute the work,"]

"The prayer of the wicked availeth not," 'tis said; yet never was the prayer of the righteous more quickly answered than is that of the Rebel General-in-chief! Johnston himself, alluding to this exigent moment, afterward remarks, in his report: "The expected reenforcements appeared soon after." Instead of Patterson's Union Army, it is Kirby Smith, coming up, with Elzey's Brigade, from Winchester!

Satisfied of the safe arrival of Kirby Smith, and ordering him up, with Elzey's Brigade, Johnston directs Kershaw's 2nd and Cash's 8th South Carolina Regiments, which have just come up, with Kemper's Battery, from Bonham's Brigade, to strengthen the Rebel left, against the attempt which we are still making to reach around it, about the Sudley road, to take it in reverse. Fisher's 6th North Carolina Regiment arriving about the same time, is also hurried along to help Beauregard.

But during the victorious lull, heretofore alluded to, something is happening on our side, that is of very serious moment. Let us see what it is:

The batteries of Griffin and Ricketts, at the Dogan House, having nothing to fire at, as we have seen, are resting, pleased with the consciousness of their brilliant and victorious service against the Rebel batteries and Infantry columns, when they are ordered by McDowell—who, with his staff, is upon elevated ground to the rear of our right,—to advance 1,000 yards further to the front, "upon a hill near the Henry House."

Ricketts considers this a perilous job—but proceeds to execute the order as to his own battery. A small ravine is in his front. With Ricketts gallantly leading, the battery dashes across the ravine at full gallop, breaking one wheel as it goes, which is at once replaced. A fence lies across the way. The cannoniers demolish it. The battery ascends the hill near the Henry House, which is full of the Enemy's sharpshooters.

[For this, and what immediately follows, see the testimony of Ricketts and others, before the Committee on the Conduct

of the War.]

Soon as Ricketts gets his guns in battery, his men and horses begin to fall, under the fire of these sharpshooters. He turns his guns upon the Henry House,—and "literally riddles it." Amid the moans of the wounded, the death scream of a woman is heard! The Enemy had permitted her to remain in her doomed house!

But the execution is not all on one side, by any means. Ricketts is in a very hot place—the hottest, he afterward declares, that he has ever seen in his life—and he has seen fighting before this.

The Enemy is behind the woods, at the front and right of Ricketts's Battery. This, with the added advantage of the natural slope of the ground, enables him to deliver upon the brave Union artillerists a concentrated fire, which is terribly destructive, and disables so many of Rickett's horses that he cannot move, if he would. Rickett's own guns, however, are so admirably served, that a smooth-bore battery of the Enemy, which has been stubbornly opposing him, is driven back, despite its heavy supports.

And Griffin's Battery now comes rapidly up into position on the left of, and in line with, Ricketts. For Griffin also has been ordered from the Dogan House hill, to this new, and dangerously exposed, position.

But when Major Barry, General McDowell's Chief of Artillery, brings him the order, Griffin hesitates—for he has no Infantry support.

"The Fire Zouaves—[The 11th New York]—will support you," says Barry, "They are just ready to follow you at the double-quick!"

"Then why not let them go and get in position on the hill," says Griffin; "then, let Ricketts's and my batteries come into battery behind; and then, let them (the Zouaves) fall back?"

Griffin advises, also, as a better position for his own battery, a hill 500 yards in the rear of the Henry House hill. But advice is thrown away. His artillery-chief is inflexible.

"I tell you," says Griffin again, "the Fire Zouaves won't support us."

"They will," replies Barry. "At any rate it is General McDowell's order to go there!"

That settles the business. "I will go," responds Griffin; "but mark my words, they will not support us!"

Griffin's Battery, indeed, starts first, but, owing to the mistake of one of his officers, it has to be countermarched, so that Ricketts's is thrown to the front, and, as we have seen, first reaches the crest of the Henry House hill.

Griffin, as he comes up with his guns, goes into battery on the left of Ricketts, and at once opens briskly on the Enemy. One of Griffin's guns has a ball lodged in the bore, which cannot be got in or out. His other five guns, with the six guns of Ricketts, make eleven pieces, which are now side by side—all of them driving away at the Enemy's (Stonewall Jackson's) strong batteries, not more than 300 yards away.

They have been at it half an hour perhaps, when Griffin moves two of his pieces to the right of Ricketts, and commences firing with them. He has hardly been there five minutes, when a Rebel regiment coming out of the woods at Griffin's right front, gets over a rail fence, its Colonel steps out between his regiment (now standing up to the knees in rank grass) and the battery, and commences a speech to his men!

Griffin orders one of his officers to load with canister, and let drive at them. The guns are loaded, and ready to fire, when up gallops Barry, exclaiming: "Captain, don't fire there; those are your battery-supports!"

At this supreme moment, Reynolds's gorgeous looking Marines are sitting down in close column, on the ground, to the left of the Union batteries. The showy 11th New York "Fire Zouaves" are a little to the rear of the right of the guns. The gallant 14th New York Chasseurs, in their dust-covered red uniforms, who had followed Griffin's Battery, at some distance, have, only a little while since, pushed finely up, from the ravine at the rear of our batteries, into the woods, to the right of Griffin and Ricketts, at a double-quick. To the left of the batteries, close to the battalion of Marines, Heintzelman bestrides his horse, near some of his own Division.

To Major Barry's startling declaration, Captain Griffin excitedly shouts: "They are Confederates! Sure as the world, they are Confederates!"

But Barry thinks he knows better, and hastily responds: "I know they are your battery-support."

Griffin spurs toward his pieces, countermands his previous order, and firing is resumed in the old direction.

Andrew Porter, has just ridden up to Heintzelman's side, and now catches sight of the Rebel regiment. "What troops are those?" he asks of General

Hientzelman, pointing in their direction.

While Heintzelman is replying, and just as Averell drops his reins and levels his field-glass at them, "down come their pieces-rifles and muskets,—and probably," as Averell afterward said, "there never was such a destructive fire for a few minutes. It seemed as though every man and horse of that battery just laid right down, and died right off!"

It is a dreadful mistake that has been made. And there seems to have been no excuse for it either. The deliberateness of the Rebel colonel has given Barry abundant time to have discovered his error. For Griffin subsequently declared, under oath, that, "After the officer who had been talking to the regiment had got through, he faced them to the left, marched them about fifty yards to the woods, then faced them to the right again, marched them about forty yards toward us, then opened fire upon us—and that was the last of us!"

It is a terrible blunder. For, up to this moment, the battle is undeniably ours. And, while the Rebel colonel has been haranguing his brave men, there has been plenty of time to have "passed the word" along the line of our batteries, and poured canister into the Rebel regiment from the whole line of eleven guns, at point-blank range, which must inevitably have cut it all to pieces. The fate of the day hung balanced right there and then—with all the chances in favor of McDowell. But those chances are now reversed. Such are the fickle changes in the fortunes of battle!

Instead of our batteries cutting to pieces the Rebel Infantry regiment, the Rebel Infantry regiment has mowed down the gallant artillerists of our batteries. Hardly a man of them escapes. Death and destruction reap a wondrous and instant harvest. Wounded, dying, or dead, lie the brave cannoniers at their guns, officers and men alike hors du combat, while wounded horses gallop wildly back, with bounding caissons, down the gentle declivity, carrying disorder, and further danger, in their mad flight.

The supporting Fire Zouaves and Marines, on the right and left of our line of guns, stand, with staring eyes and dumb open-mouths, at the sudden turn of affairs. They are absolutely paralyzed with astonishment. They do not run at first. They stand, quaking and panic-stricken. They are urged to advance upon the Rebel regiment—"to give them a volley, and then try the bayonet." In vain! They fire perhaps 100 scattering shots; and receive in

return, as they break and run down the hill to the rear, volley after volley, of deadly lead, from the Rebel muskets.

But, as this Rebel regiment (Cummings's 33rd Virginia) advances to seize the crippled and defenceless guns, it is checked, and driven back, by the 1st Michigan Regiment of Willcox's Brigade, which has pushed forward in the woods at our extreme right.

Meanwhile, having been ordered by McDowell to support Ricketts's Battery, Howard has formed his four tired regiments into two lines—Berry's 4th Maine, and Whitney's 2nd Vermont, on the right and left of the first; and Dunnell's 5th, and his own 3rd Maine, under Staples, in the second line. Howard himself leads his first line up the elevated plateau of the Henry House. Reaching the crest, the line delivers its fire, volley after volley, despite the concentrated hail of the Enemy's Artillery and muskets. As the second line advances, a Rebel cannon-ball, and an unfortunate charge of our own Cavalry, scatters most of the 5th Maine. The 2nd Vermont, which has advanced 200 yards beyond the crest, rapidly firing, while the Enemy retires, is now, in turn, forced back by the Enemy's hot fire, and is replaced by the 3rd Maine, while the remnant of the 5th moves up to the extreme right of Howard's now single line. But the Rebel fire grows hotter and hotter, and owing to this, and a misunderstood order, Howard's line begins to dissolve, and then retires in confusion,—Howard and others vainly striving to rally his own utterly exhausted men.

Sherman's Brigade, too, has come over from our left, and now advances upon the deadly plateau, where lie the disabled Union batteries—the prizes, in full sight of both Armies, for which each seems now to be so desperately striving.

Quinby's 13th New York Rifles, in column of companies, leads the brigade, followed by Lieutenant-Colonel Peck's 2d Wisconsin, Cameron's 79th New York (Highlanders), and Corcoran's 69th New York (Irish), "in line of battle." Down the slope, across the ravine, and up, on the other side, steadily presses Quinby, till he reaches the crest. He opens fire. An advancing Rebel regiment retires, as he pushes up to where the Union batteries and cannoniers lie wounded and dying—the other three regiments following in line-of-battle until near the crest, when the fire of the Enemy's rifles and musketry, added to his heavy cannonading, grows so severe that the brigade is forced back to shelter in a roadway leading up the plateau.

Peck's 2nd Wisconsin, now emerges from this sheltered roadway, and steadily mounts the elevation, in the face of the Enemy's severe fire—returning it, with spirit, as it advances. But the Rebel fire becomes too galling. The gray-clad Wisconsin boys return to the sheltered road again, while the cry goes up from Sherman's ranks: "Our own men are firing at them!" Rallying at the road, the 2nd Wisconsin again returns, with desperate courage, to the crest of the hill, delivers its fire, and then, unable to withstand the dreadful carnage, falls back once more, in disorder.

At this, the 79th (Highland) Regiment springs forward, to mount the brow of the fatal hill, swept as it is, with this storm of shot and shell and musket-balls. Up, through the lowering smoke, lit with the Enemy's incessant discharges in the woods beyond, the brave Highlanders jauntily march, and, with Cameron and their colors at their head, charge impetuously across the bloody hill-crest, and still farther, to the front. But it is not in human nature to continue that advance in the teeth of the withering fire from Jackson's batteries, strengthened, as they are, by Pelham's and Kemper's. The gallant fellows fall back, rally again, advance once more, retire again, and at last,—the heroic Cameron being mortally wounded,—fall back, in confusion, under the cover of the hill.

And now, while Quinby's Regiment, on another ridge, more to the left, is also again engaging the Enemy, the 69th New York, led by the fearless Corcoran, dashes forward, up the Henry House hill, over the forbidding brow, and beyond. As the brave Irishmen reach the abandoned batteries, the hoarse roar of cannon, the sharp rattle of musketry-volleys, the scream of shot and shell, and the whistling of bullets, is at once deafening and appalling, while the air seems filled with the iron and leaden sleet which sweeps across the scorched and blasted plateau of the Henry House. Nobly the Irish Regiment holds its ground for a time; but, at last, it too falls back, before the hurtling tempest.

The fortunes of the day are plainly turning against us. Time is also against us—as it has been all along—while it is with the Enemy. It is past 3 o'clock.

Since we last looked at Beauregard's third new defensive line, there have been material accessions to it. The remains of the brigades of Bee, Evans, and Bartow, have been reformed on the right of Jackson's Brigade—Bee on his immediate right, Evans to the right of Bee, and Bartow to the right of

Evans, with a battery which has been engaging Schenck's Brigade on the other side of Bull Run near the Stone Bridge; while Cocke's Brigade watches Bull Run to the rear of Bartow. On the left of Jackson's. Brigade, is now to be seen a part of Bonham's Brigade (Kershaw's 2nd South Carolina, and Cash's 8th South Carolina) with Kemper's Battery on its left. Kirby Smith has reached the front, from Manassas, and—in advancing from his position on the left of Bonham's demi-Brigade, just West of the Sudley road, with Elzey's Brigade, in a counter-attack upon our right—is wounded, and carried to the rear, leaving his command to Elzey. Stuart's Cavalry are in the woods, still farther to the Enemy's left, supporting Beckham's Battery. Early's Brigade is also coming up, from Union Mills Ford, not far to the rear of the Enemy's left, with the design of coming into line between Elzey's Brigade and Beckham's Battery, and out-flanking and attacking our right. But let us bring our eyes back to the bloody contest, still going on, for the possession of the batteries of Griffin and Ricketts.

Arnold's Battery has raced up on our right, and is delivering shot, shell, spherical case, and canister, with effect, although exposed to a severe and accurate fire from the Enemy. Wilcox, with what is left of the 1st Michigan, after once retaking the batteries on the plateau, from the 7th Georgia, has got around the Enemy's left flank and is actually engaged with the Enemy's rear, while that Enemy's front is engaged with Franklin and Sherman! But Hobart Ward's 38th New York, which Wilcox has ordered up to support the 1st Michigan, on our extreme right, in this flanking movement, has been misdirected, and is now attacking the Enemy's centre, instead of his left; and Preston's 28th Virginia—which, with Withers's 18th Virginia, has come up to the Rebel left, from Cocke's Brigade, on the Enemy's right—finding the 1st Michigan broken, in the woods, attacks it, and wounds and captures Wilcox. Withers's Regiment has, with a yell—the old "Rebel yell," now rising everywhere from Rebel throats, and so often heard afterward,—charged the 14th New York Chasseurs, in the woods; and the Chasseurs, though retiring, have fired upon it with such precision as to throw some of their assailants into disorder.

[Says General Keyes, who had kept on down the Run, "on the extreme left of our advance—having separated from Sherman on his right:—I thought the day was won about 2 o'clock; but about half past 3 o'clock a sudden change in the

*firing took place, which, to my ear, was very ominous. I knew that the moment the shout went up from the other side, there appeared to be an instantaneous change in the whole sound of the battle. * * * That, as far as I can learn, was the shout that went up from the Enemy's line when they found out for certain that it was Johnston [Kirby Smith] and not Patterson, that had come."]*

Meanwhile McDowell is making one more effort to retrieve the misfortunes of the day. Lawrence's 5th, and Clark's 11th Massachusetts, with Gorman's 1st Minnesota,—all belonging to Franklin's Brigade—together with Corcoran's 69th New York, of Sherman's Brigade, have been brought into line-of-battle, by the united efforts of Franklin, Averell, and other officers, at our centre, and with the remnants of two or three other regiments, are moving against the Enemy's centre, to support the attack of the Chasseurs—rallied and led forward again by Heintzelman upon the Rebel left, and that of the 38th New York upon the Rebel left centre,—in another effort to recapture the abandoned batteries.

Charge after charge, is made by our gallant regiments, and counter-charge after counter-charge, is made by the fresh troops of the Enemy. For almost half an hour, has the contest over the batteries rolled backward and forward. Three several times have the batteries been taken, and re-taken,—much of the determined and desperate struggle going on, over the prostrate and bleeding bodies of the brave Union artillerists,—but without avail. Regiment after regiment, has been thrown back, by the deadly fusillade of the Enemy's musketry from the skirt of woods at his front and left, and the canister, case, and bursting shells, of his rapidly-served Artillery.

It is now near upon 4 o'clock. Our last effort to recapture the batteries has failed. The Union line of advance has been seriously checked. Some of our own guns in those batteries are turned on us. The Enemy's Infantry make a rush over the blood-soaked brow of the fatal plateau, pouring into our men a deadly fire, as they advance,—while over to our right and rear, at the same moment, are seen the fresh regiments of Early's Brigade coming out of the woods—deploying rapidly in several lines—with Stuart's handful of Rebel Cavalry, while Beckham's guns, in the same quarter, open an oblique enfilading reverse fire upon us, in a lively manner.

At once the minds of the fagged-out Union troops become filled with the dispiriting idea that the exhausting fight which they have made all day long, has been simply with Beauregard's Army of the Potomac, and that these fresh Rebel troops, on the Union right and rear, are the vanguard of Johnston's Army of the Shenandoah! After all the hard marching and fighting they have done during the last thirteen hours,—with empty stomachs, and parched lips, under a scorching sun that still, as it descends in the West, glowers down upon them, through the murky air, like a great, red, glaring eye,—the very thought is terrible!

Without fear, yet equally without hope, the Union troops crumble to groups, and then to individuals. The attempt of McDowell to turn the left of the Enemy's Bull Run line, has failed.

McDowell and his officers heroically but vainly strive, at great personal risk to themselves, to stem the tide of confusion, and disorder. Sykes's battalion of regulars, which has been at our left, now steadily moves obliquely across the field of battle toward our right, to a hill in the midground, which it occupies, and, with the aid of Arnold's Battery and Palmer's Cavalry, holds, while the exhausted and disorganized troops of the Union Army doggedly and slowly retire toward Sudley Ford, their rear covered by an irregular square of Infantry, which, mainly by the exertions of Colonel Corcoran, has been formed to resist a threatened charge of Stuart's Cavalry.

[At the rate of "not more than two, or two and a half, miles an hour," and not "helter-skelter," as some narrators state.]

It is not fear, that has got the better of our Union troops. It is physical exhaustion for one thing; it is thirst for another. Men must drink,—even if they have foolishly thrown away their canteens,—and many have retired to get water. It is the moral effect also—the terrible disappointment—of seeing what they suppose are Johnston's fresh troops from the Shenandoah Valley, without Patterson "on their heels," suddenly appear on their flank and rear. It is not fear; though some of them are panic-stricken, and, as they catch sight of Stuart's mounted men,—no black horse or uniform among them,—raise the cry of "The Black Horse Cavalry!—The Black Horse Cavalry!"

The Union attack has been repulsed, it is true; but the Union soldiers, though disorganized, discouraged, and disappointed, are not dismayed. Their officers not yet having learned how to fight, and themselves lacking the cohesion of discipline, the men have lost their regimental organizations, and owing to the causes mentioned, slowly retire across Sudley Ford of Bull Run, in a condition of disintegration, their retreat being bravely covered by the 27th and 69th New York, (which have rallied and formed there), Sykes's Infantry battalion, Arnold's Battery, and Palmer's Cavalry.

[In his report to Major Barnard, Capt. D. P. Woodbury, of the corps of Engineers, says: "It is not for me to give a history of the battle. The Enemy was driven on our left, from cover to cover, a mile and a half. Our position for renewing the action the next morning was excellent; whence, then, our failure? It will not be out of place, I hope, for me to give my own opinion of the cause of this failure. An old soldier feels safe in the ranks, unsafe out of the ranks, and the greater the danger the more pertinaciously he clings to his place. The volunteer of three months never attains this instinct of discipline. Under danger, and even under mere excitement, he flies away from his ranks, and looks for safety in dispersion. At four o'clock in the afternoon of the 21st, there were more than twelve thousand volunteers on the battlefield of Bull Run, who had entirely lost their regimental organizations. They could no longer be handled as troops, for the officers and men were not together. Men and officers mingled together promiscuously; and it is worthy of remark that this disorganization did not result from defeat or fear, for up to four o'clock we had been uniformly successful. The instinct of discipline, which keeps every man in his place, had not been acquired. We cannot suppose that the troops of the Enemy had attained a higher degree of discipline than our own, but they acted on the defensive, and were not equally exposed to disorganization."]

While the divisions of Hunter and Heintzelman, which came down in the morning across Sudley Ford, are now, with one brigade (Sherman's) of

Tyler's Division, retiring again, in this disordered condition, by that ford; two other brigades of Tyler's Division, viz., that of Schenck—which, at 4 o'clock, was just in the act of advancing upon, and across, the Stone Bridge, to join in the Union attack, and of Keyes, which was, at the same time, just succeeding in its effort to turn the right flank of the Enemy's third new line,—are withdrawing from the field, across Bull Run stream, by the Warrenton Pike, and other roads leading them directly toward Centreville. The brigades of both Keyes and Schenck are retiring in good order; that of Keyes, at "an ordinary pace," following close after McDowell, who, with his staff, has ridden across the battlefield and Bull Run; while part of that of Schenck, united with the 2nd Maine (of Keyes' Brigade) and Ayres's Battery, "promptly and effectively" repulses a charge of the Enemy's Cavalry, and covers the rear of Tyler's Division. Both of these brigades reach Centreville, hungry and weary, but otherwise, for the most part, in good shape.

But during this grand all-day attack, by two of McDowell's divisions, directly aided by part of a third, upon the left of the Enemy's original Bull Run line of defense—which attack, while it has failed in its purpose, has also utterly upset and defeated the Enemy's purpose to carry out Beauregard's plan of attacking Centreville that same morning—what has the Left Wing of McDowell's Army been doing? Let us go back to Sunday morning, and ascertain:

All the Army of McDowell, save his Left Wing—which, comprising the two brigades (Blenker's and Davies's) of Miles's Division, and Richardson's Brigade of Tyler's Division that fought the preliminary battle of Blackburn's Ford, is now under the command of Miles,—moved away from Centreville, down the Warrenton Pike, as we have seen, very early in the morning.

Blenker remains with his brigade as a reserve, on the heights a little East of Centreville, to throw up intrenchments; which, however, he does not do, for lack of trenching implements. Richardson and Davies are to make a feint, at Blackburn's Ford, so as to draw the Enemy's troops there, while the heavy blow of McDowell's Right Wing and Centre falls upon the left flank and rear of the Enemy's Bull Run line.

Richardson's Brigade is already down the ridge, in his old position at Blackburn's Ford, when Davies with his brigade reaches it, from Centreville, and, by virtue of seniority, takes command of the two brigades.

Leaving Richardson's Brigade and Greene's Battery exactly on the battleground of the 18th July, Davies posts two regiments (the 18th and 32nd New York) of his own brigade, with Hunt's Battery, on the brow of a hill, in an open wheat field, some eighty yards to the South-Eastward of Richardson, distant some 1,500 yards from Longstreet's batteries on the Western side of Bull Run,—and commences a rapid fire, upon the Enemy's position at Blackburn's Ford, from both of the Union batteries.

At 10 o'clock, there is a lull in this Union fire. The Artillery ammunition is running short. The demonstration, however, seems, thus far, to be successful—judging by the movement of Rebel troops toward Blackburn's Ford. The lull continues until 11 o'clock. At that time Miles arrives at his front, in a towering rage.



[ENLARGE TO FULL SIZE](#)

On his way down the ridge, that morning, early, Davies had made a discovery. While passing a roadway, his guide had casually remarked: "There is a road that leads around to the Enemy's camp, direct." "Ah!" — said Davies—"and can they get through that road?" "Oh, yes," replied the guide. Davies had at once halted, and, after posting his 16th and 31st New York Regiments, with two guns of Hunt's Battery, near this road, at its junction with the ridge road running up to Centreville and Black burn's Ford, had proceeded, with the rest of his regiments and guns, to the position where Miles finds him.

But Miles has discovered what Davies has done, in this matter of the flanking roadway; and—without knowing, or apparently caring to know, the reason underlying the posting of the two regiments and two guns in its vicinity,—flies into "a terrible passion" because of it; in "no very measured language," gives Davies "a severe dressing down;" and orders him to bring both regiments and guns down to the front. Davies complies, and says nothing. Miles also orders him to continue the firing from his batteries, without regard to the quantity of ammunition. This order, also, Davies obeys—and the firing proceeds, for two solid hours, until another order comes, about 1 o'clock P.M., to stop firing.

The fact is, that Miles is not at all himself—but is suffering under such a strain of mental excitement, he afterward claims, that he is not responsible.

Miles, however, returns to Centreville about noon; and no sooner is he gone, than Davies at once sends back pioneers to obstruct that road which would bring the Enemy around his left flank and rear, to Centreville. These, work so industriously, that they cut down a quarter of a mile of trees, and block the road up completely. Davies also posts a few pickets there, in case of accidents. It is well he does so. It is not long before the Enemy makes an attempt to get around to his rear, by that road; but, finding it both obstructed and picketed, retires again. Davies does not see the Rebels making that attempt, but catches sight of them on their return, and gives them a severe shelling for their pains.

Davies keeps up his firing, more or less—according to the condition of the Enemy and of his own ammunition—until 4 o'clock, when the firing occasioned by the Union flanking movement, six miles to his right, ceases. Then there reaches him a note from Richardson, so badly penciled that he

can only make out the one word "beaten,"—but cannot, for the life of him, make out, whether the beaten one is our Right Wing, or the Enemy!

Of what followed, he tells the story himself,—under oath, before the Committee on the Conduct of the War—so graphically, that the temptation to give it, in his own words, is irresistible. "I saw unmistakable evidence," said he, "that we were going to be attacked on our Left Wing. I got all ready for the attack, but did not change my front.

"About 5 o'clock, I think, the Rebels made their appearance back upon this very road up which they had gone before; but instead of keeping up the road, they turned past a farm-house, went through the farm-yard, and came down and formed right in front of me, in a hollow, out of my sight. Well, I let them all come down there, keeping a watch upon their movements. I told the Artillery not to fire any shot at them until they saw the rear column go down, so as to get them all down in the little hollow or basin, there. There was a little basin there, probably a quarter of a mile every way. I should think that, maybe, 3,000 men filed down, before I changed front.

"We lay there, with two regiments back, and the Artillery in front, facing Bull Run. As soon as about 3,000 of the Enemy got down in this basin, I changed the front of the Artillery around to the left, in face of the Enemy, and put a company of Infantry between each of the pieces of Artillery, and then deployed the balance of the regiments right and left, and made my line-of-battle.

"I gave directions to the Infantry not to fire a shot, under any circumstances, until they got the word of command from me. I furthermore said I would shoot the first man that fired a shot before I gave the command to do so.

"I gave them orders all to lie down on their faces. They, (the Rebels) were just over the brow of the hill, so that, if they came up in front of us, they could not hit a man.

"As soon as I saw the rear column, I told * * * Lieutenant Benjamin to fire. * * * He fired the first shot when the rear column presented itself. It just went over their heads, and hit a horse and rider in their rear. As soon as the first shot was fired, I gave the order for the whole six pieces of Artillery to open with grape and canister. The effect was terrible. They were all there, right before us, about 450 yards off, and had not suspected that we were going to fire at all, though they did not know what the reason was. Hunt's

Battery (belonging to Richardson—who had by mistake got Greene's) performed so well, that, in thirty minutes, we dispersed every one of them!

"I do not know how many were killed, but we so crippled their entire force that they never came after us an inch. A man, who saw the effect of the firing, in the valley, said it was just like firing into a wheat field; the column gave way at once, before the grape and canister; they were just within available distance. I knew very well that if they but got into that basin, the first fire would cut them all to pieces; and it did. We continued to fire for thirty minutes, when there was nothing more to fire at, and no more shots were returned."

At a later hour—while remaining victorious at their well defended position, with the Enemy at their front, dispersed and silenced,—these two brigades of the Left Wing, receive orders to fall back on Centreville, and encamp. With the brigade of Richardson, and Greene's Battery in advance, Davies's own brigade and Hunt's Battery following, they fall back on the heights of Centreville "without the least confusion and in perfect order"—reaching them at 7 P.M.

Meantime Miles has been relieved from command, and McDowell has ordered Blenker's Brigade to take position a mile or more in advance of Centreville, toward Bull Run, on both sides of the Warrenton Pike, to protect the retreat, now being made, in "a few collected bodies," but mainly in great disorder—owing partly to the baggage-wagons choking the road, along which both venturesome civilians and fagged-out troops are retreating upon Centreville. This confused retreat passes through Blenker's lines until 9 o'clock P.M.—and then, all is secure.

At midnight, McDowell has decided to make no stand at Centreville, but to retire upon the defensive works at Washington. The order to retreat, is given, and, with the rear well guarded by Richardson's and Blenker's Brigades, is carried out, the van of the retreat, with no Enemy pursuing, degenerating finally into a "mob," which carries more or less panic into Washington itself, as well as terrible disappointment and chagrin to all the Loyal States of the Union.

Knowing what we now do, concerning the Battle of Bull Run, it is somewhat surprising, at this day, to read the dispatches sent by McDowell to General Scott's headquarters at Washington, immediately after it. They are in these words:

"CENTREVILLE, July 21, 1861—5:45 P.M.

"We passed Bull Run, engaged the Enemy, who, it seems, had just been re-enforced by General Johnston. We drove them for several hours, and finally routed them."

["No one who did not share in the sad experience will be able to realize the consternation which the news of this discomfiture—grossly exaggerated—diffused over the loyal portion of our Country. Only the tidings which had reached Washington up to four o'clock—all presaging certain and decisive victory—were permitted to go North by telegraph that day and evening; so that, on Monday morning, when the crowd of fugitives from our grand Army was pouring into Washington, a heedless, harmless, worthless mob, the Loyal States were exulting over accounts of a decisive triumph. But a few hours brought different advices; and these were as much worse than the truth as the former had been better: our Army had been utterly destroyed-cut to pieces, with a loss of twenty-five to thirty thousand men, besides all its artillery and munitions, and Washington lay at the mercy of the Enemy, who were soon to advance to the capture and sack of our great commercial cities. Never before had so black a day as that black Monday lowered upon the loyal hearts of the North; and the leaden, weeping skies reflected and heightened, while they seemed to sympathize with, the general gloom. It would have been easy, with ordinary effort and care, to have gathered and remanded to their camps or forts around Alexandria or Arlington, all the wretched stragglers to whom fear had lent wings, and who, throwing away their arms and equipments, and abandoning all semblance of Military order or discipline, had rushed to the Capital to hide therein their shame, behind a cloud of exaggerations and falsehoods. The still effective batteries, the solid battalions, that were then wending their way slowly back to their old encampments along the South bank of the Potomac, depressed but unshaken, dauntless and utterly unassailed, were unseen and unheard from; while the panic-

stricken racers filled and distended the general ear with their tales of impregnable intrenchments and masked batteries, of regiments slaughtered, brigades utterly cut to pieces, etc., making out their miserable selves to be about all that was left of the Army. That these men were allowed thus to straggle into Washington, instead of being peremptorily stopped at the bridges and sent back to the encampments of their several regiments, is only to be accounted for on the hypothesis that the reason of our Military magnates had been temporarily dethroned, so as to divest them of all moral responsibility," Greeley's Am. Conflict, pp. 552-53., vol. I.]

"They rallied and repulsed us, but only to give us again the victory, which seemed complete. But our men, exhausted with fatigue and thirst, and confused by firing into each other, were attacked by the Enemy's reserves, and driven from the position we had gained, overlooking Manassas. After this, the men could not be rallied, but slowly left the field. In the meantime the Enemy outflanked Richardson at Blackburn's Ford, and we have now to hold Centreville till our men can get behind it. Miles's Division is holding the town. It is reported that Colonel Cameron is killed, Hunter and Heintzelman wounded, neither dangerously.

"IRWIN MCDOWELL,

"Brigadier-General, Commanding.

"Lieutenant-Colonel TOWNSEND."

"FAIRFAX COURT HOUSE, July 21, 1861.

"The men having thrown away their haversacks in the battle, and left them behind, they are without food; have eaten nothing since breakfast. We are without artillery ammunition. The larger part of the men are a confused mob, entirely demoralized. It was the opinion of all the commanders that no stand could be made this side of the Potomac. We will, however, make the attempt at Fairfax Court House. From a prisoner we learn that 20,000 from Johnston joined last night, and they march on us to-night.

"IRWIN MCDOWELL.

"Colonel TOWNSEND"

"FAIRFAX COURT HOUSE, [July] 22, 1861.

"Many of the volunteers did not wait for authority to proceed to the Potomac, but left on their own decision. They are now pouring through this place in a state of utter disorganization. They could not be prepared for action by to-morrow morning even were they willing. I learn from prisoners that we are to be pressed here to-night and tomorrow morning, as the Enemy's force is very large, and they are elated. I think we heard cannon on our rear-guard. I think now, as all of my commanders thought at Centreville, there is no alternative but to fall back to the Potomac, and I shall proceed to do so with as much regularity as possible.

"IRWIN MCDOWELL.

"Colonel TOWNSEND."

"ARLINGTON, July 22, 1861.

"I avail myself of the re-establishing of telegraph to report my arrival. When I left the forks of the Little River turnpike and Columbia turnpike, where I had been for a couple of hours turning stragglers and parties of regiments upon this place and Alexandria, I received intelligence that the rear-guard, under Colonel Richardson, had left Fairfax Court House, and was getting along well. Had not been attacked. I am now trying to get matters a little organized over here.

"IRWIN MCDOWELL.

"Brigadier-General.

"E. D. TOWNSEND."

McDowell had unquestionably been repulsed, in his main attack, with his Right Wing, and much of his Army was badly demoralized; but, on the other hand, it may be well to repeat that the Enemy's plan of attack that same morning had been frustrated, and most of his forces so badly shattered

and demoralized that he dared not follow up the advantage which, more by our own blunders than by his prowess, he had gained.

If the Union forces—or at least the Right Wing of them—were whipped, the Enemy also was whipped. Jackson himself confesses that while he had, at the last moment, broken our centre, our forces had turned both of his flanks. The Enemy was, in fact, so badly used up, that he not only dared not pursue us to Washington—as he would have done had he been able—but he was absolutely afraid McDowell would resume the attack, on the right of the original Bull Run line, that very night! For, in a letter to General Beauregard; dated Richmond, Virginia, August 4, 1861, Jefferson Davis,—who was on the ground at Bull Run, July 21st,—alluding to the Battle of Bull Run, and Beauregard's excuses for not pursuing the Union troops, says:

"I think you are unjust to yourself in putting your failure to pursue the Enemy to Washington, to the account of short supplies of subsistence and transportation. Under the circumstances of our Army, and in the absence of the knowledge since acquired—if, indeed, the statements be true—it would have been extremely hazardous to have done more than was performed. You will not fail to remember that, so far from knowing that the Enemy was routed, a large part of our forces was moved by you, in the night of the 21st, to repel a supposed attack upon our right, and the next day's operations did not fully reveal what has since been reported of the Enemy's panic."

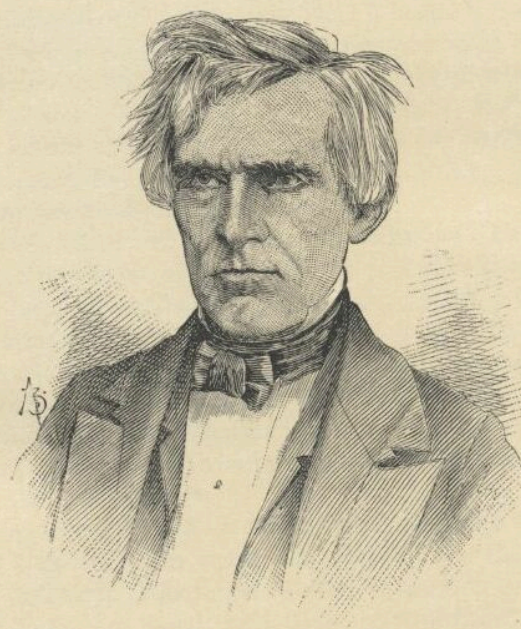
And Jefferson Davis's statement is corroborated by the Report of Colonel Withers, of the 18th Virginia, who, after starting with other regiments, in an attempt to cut off the Union retreat, was recalled to the Stone Bridge,—and who says: "Before reaching the point we designed to occupy (near the Stone Bridge) we were met by another order to march immediately to Manassas Junction, as an attack was apprehended that night. Although it was now after sunset, and my men had had no food all day, when the command to march to Manassas was given, they cheerfully took the route to that place."

Colonel Davies, who, as we have seen, commanded McDowell's stubborn Left Wing, was after all, not far wrong, when, in his testimony before the Committee on the Conduct of the War, he declared, touching the story of the Bull Run Battle: "It ought to have read that we were victorious with the 13,000 troops of the Left Wing, and defeated in the 18,000 of the Right Wing. That is all that Bull Run amounts to."

In point of fact, the Battle of Bull Run—the first pitched battle of the War—was a drawn battle.

War was now fully inaugurated—Civil War—a stupendous War between two great Sections of one common Country; those of our People, on the one side, fighting for the dissolution of the Union—and incidentally for Free Trade, and for Slavery; those on the other side, fighting for the preservation of the Union—and incidentally for Protection to our Free Industries, and for the Freedom of the Slave.

As soon as the Republican Party controlled both Houses of Congress it provided Protection to our Free Industries, and to the Free Labor engaged in them, by the Morill Tariff Act of 1860—the foundation Act of all subsequent enactments on the subject. In subsequent pages of this work we shall see how the Freedom of the Slave was also accomplished by the same great Party.



J. J. CRITTENDEN.

CHAPTER XIV.

THE COLORED CONTRABAND.

When the first gun was fired at Fort Sumter, its sullen echoes sounded the funeral knell of Slavery. Years before, it had been foretold, and now it was to happen. Years before, it had been declared, by competent authority, that among the implications of the Constitution was that of the power of the General Government to Emancipate the Slaves, as a War measure. Hence, in thus commencing the War of the Rebellion, the South marched with open eyes upon this, as among other of the legitimate and logical results of such a War.

Patrick Henry, in opposing the ratification by Virginia of the Federal Constitution, had declared to the Slaveholders of that State that "Among ten thousand implied powers" which Congress may assume, "they may, if we be engaged in War, liberate every one of your Slaves, if they please, * * * Have they not power to provide for the General Defense and Welfare? May they not think that these call for the abolition of Slavery? May they not pronounce all Slaves Free? and will they not be warranted by that power? * * * They have the power, in clear, unequivocal terms, and will clearly and certainly exercise it."

So, too, in his great speech of May 25, 1836, in the House of Representatives, John Quincy Adams had declared that in "the last great conflict which must be fought between Slavery and Emancipation," Congress "must and will interfere" with Slavery, "and they will not only possess the Constitutional power so to interfere, but they will be bound in duty to do it, by the express provisions of the Constitution itself." And he followed this declaration with the equally emphatic words: "From the instant that your Slave-holding States become the theatre of War—civil, servile, or foreign—from that instant, the War powers of Congress extend to

interference with the Institution of Slavery in every Way by which it can be interfered with."

The position thus announced by these expounders of the Constitution—the one from Virginia, the other from Massachusetts—was not to be shaken even by the unanimous adoption, February 11, 1861, by the House of Representatives on roll call, of the resolution of Mr. Sherman, of Ohio, in these words:

"Resolved, That neither the Congress of the United States nor the people or governments of the non-Slaveholding States have the Constitutional right to legislate upon or interfere with Slavery in any of the Slaveholding States in the Union."

Ex-President J. Q. Adams's cogent exposition of the Constitution, twenty-five years before, in that same House, demonstrating not only that Congress had the right but the Constitutional power to so interfere—and his further demonstration April 15, 1842, of his statement that under the laws of War, "when a Country is invaded, and two hostile armies are set in martial array, the Commanders of both Armies have power to Emancipate all the Slaves in the invaded territory"—as not to be overcome by a mere vote of one House, however unanimous. For the time being, however, it contributed, with other circumstances, to confuse the public mind and conscience. Indeed as early as May of 1861, the attitude of our Government and its troops toward Negro Slaves owned or used by Rebels in rebellious States, began to perturb the public, bother the Administration, and worry the Military officers.

For instance, in Major-General McClellan's proclamation to the Union men of West Virginia, issued May 26, 1861, he said:

"The General Government cannot close its ears to the demand you have made for assistance. I have ordered troops to cross the river. They come as your friends and brothers—as enemies only to armed Rebels, who are preying upon you; your homes, your families, and your property are safe under our protection. All your rights shall be religiously respected, notwithstanding all that has been said by the Traitors to induce you to believe our advent among you will be signalized by an interference with your Slaves. Understand one thing clearly: not only will we abstain from all such interference, but we will, on the contrary, with an iron hand crush any attempt at insurrection on their part."

On the other hand, the very next day, May 27, 1861, Major-General Butler, in command of the "Department of A Virginia," wrote to Lieutenant-General Scott as follows:

"Since I wrote my last dispatch the question in regard to Slave property is becoming one of very serious magnitude. The inhabitants of Virginia are using their Negroes in the batteries, and are preparing to send the women and children South. The escapes from them are very numerous, and a squad has come in this morning to my pickets bringing their women and children. Of course these cannot be dealt with upon the theory on which I designed to treat the services of able-bodied men and women who might come within my lines, and of which I gave you a detailed account in my last dispatch. I am in the utmost doubt what to do with this species of Property.

"Up to this time I have had come within my lines men and women with their children, entire families, each family belonging to the same owner. I have, therefore, determined to employ, as I can do very profitably, the able-bodied persons in the party, issuing proper food for the support of all, and charging against their services the expense of care and sustenance of the non-laborers, keeping a strict and accurate account as well of the services as of the expenditure, having the worth of the services, and the cost of the expenditure, determined by a Board of Survey, to be hereafter detailed. I know of no other manner in which to dispose of this subject and the questions connected therewith.

"As a matter of Property to the Insurgents, it will be of very great moment, the number that I now have amounting, as I am informed, to what, in good times, would be of the value of sixty thousand dollars. Twelve of these Negroes, I am informed, have escaped from the batteries on Sewall's Point, which, this morning, fired upon my expedition as it passed by out of range. As a means of offense, therefore, in the Enemy's hands, these Negroes, when able-bodied, are of the last importance. Without them the batteries could not have been erected, at least for many weeks.

"As a Military question it would seem to be a measure of necessity to deprive their masters of their services. How can this be done? As a political question and a question of humanity, can I receive the services of a father and mother, and not take the children? Of the humanitarian aspect I have no doubt. Of the political one I have no right to judge. I therefore submit all this to your better judgment, and as the questions have a political aspect, I

have ventured, and I trust I am not wrong in so doing, to duplicate the parts of my dispatch relating to this subject, and forward them to the Secretary of War."

In reply to the duplicate copy of this letter received by him, Secretary Cameron thus answered:

"WASHINGTON, May 30, 1861.

"SIR: Your action in respect to the Negroes who came within your lines from the service of the Rebels is approved. The Department is sensible of the embarrassments which must surround officers conducting Military operations in a State by the laws of which Slavery is sanctioned.

"The Government cannot recognize the rejection by any State of the Federal obligations, nor can it refuse the performance of the Federal obligations resting upon itself. Among these Federal obligations, however, none can be more important than that of suppressing and dispersing armed combinations formed for the purpose of overthrowing its whole Constitutional authority.

"While, therefore, you will permit no interference by the persons under your command, with the relations of Persons held to Service under the laws of any State, you will, on the other hand, so long as any State, within which your Military operations are conducted, is under the control of such armed combinations, refrain from surrendering to alleged masters any Person who may come within your lines.

"You will employ such Persons in the services to which they may be best adapted, keeping an account of the labor by them performed, of the value of it, and the expenses of their maintenance. The question of their final disposition will be reserved for future determination.

"SIMON CAMERON,
"Secretary of War.

"To Major General BUTLER."

Great tenderness, however, was exhibited by many of the Union Generals for the doomed Institution. On June 3, 1861, from Chambersburg, Pa., a proclamation signed "By order of Major General Patterson, F. J. Porter, Asst. Adj. General," was issued from "Headquarters Department of

Pennsylvania," "To the United States troops of this Department," in which they are admonished "that, in the coming campaign in Virginia, while it is your duty to punish Sedition, you must protect the Loyal, and, should the occasion offer, at once suppress Servile Insurrection."

"General Orders No. 33," issued from "Headquarters Department of Washington," July 17, 1861, "By command of Brigadier General Mansfield, Theo. Talbot, Assistant Adjutant General," were to this effect: "Fugitive Slaves will under no pretext whatever, be permitted to reside, or be in any way harbored, in the quarters or camps of the troops serving in this Department. Neither will such Slaves be allowed to accompany troops on the march. Commanders of troops will be held responsible for a strict observance of this order." And early in August a Military order was issued at Washington "that no Negroes, without sufficient evidence of their being Free or of their right to travel, are permitted to leave the city upon the cars."

But Bull Run did much to settle the Military as well as public mind in proper grooves on this subject.

Besides employing Negro Slaves to aid Rebellion, by the digging of ditches, the throwing up of intrenchments, and the erection of batteries, their Rebel masters placed in their hands arms with which to shoot down Union soldiers at the Battle of Bull Run, which, as we have seen, occurred on Sunday, July 21, 1861—and resulted in a check to the Union Cause.

The terror and confusion and excitement already referred to, that prevailed in Washington all that night and the next day, as the panic-stricken crowd of soldiers and civilians poured over the Long Bridge, footsore with running, faint with weariness, weak with hunger, and parched with thirst and the dust of the rout, can hardly be described.

But, however panicky the general condition of the inhabitants of the National Capital, the Congress bravely maintained its equanimity.

In the Senate, on the day following the disaster, a bill touching the Confiscation of Property used for insurrectionary purposes being up for consideration, the following amendment was offered to it:

"And be it further enacted, That whenever any person claiming to be entitled to the Service or Labor of any other Person under the laws of any State, shall employ such Person in aiding or promoting any Insurrection, or in resisting the Laws of the United States, or shall permit him to be so employed, he shall forfeit all right to such Service or Labor, and the Person

whose Labor or Service is thus claimed shall be thenceforth discharged therefrom, any law to the contrary notwithstanding."

This amendment, emancipating Slaves employed by their masters to aid Rebellion, was adopted by 33 yeas to 6 nays.

As showing the feeling expressed right upon the very heels of what seemed to be a great disaster, and when rumor, at any rate, placed the victorious Enemy at the very gates of the Capital City, a few lines from the debate may be interesting.

Mr. Trumbull said: "I am glad the yeas and nays have been called to let us see who is willing to vote that the Traitorous owner of a Negro shall employ him to shoot down the Union men of the Country, and yet insist upon restoring him to the Traitor that owns him. I understand that Negroes were in the fight which has recently occurred. I take it that Negroes who are used to destroy the Union, and to shoot down the Union men by the consent of Traitorous masters, ought not to be restored to them. If the Senator from Kentucky is in favor of restoring them, let him vote against the amendment."

Senator Wilson, of Massachusetts, said: "I shall vote with more heart than I vote for ordinary measures, for this proposition. I hope the Senate and the House of Representatives will sustain it, and that this Government will carry it out with an inflexibility that knows no change. The idea that men who are in arms destroying their Country shall be permitted to use others for that purpose, and that we shall stand by and issue orders to our Commanders, that we should disgrace our Cause and our Country, by returning such men to their Traitorous masters, ought not longer to be entertained. The time has come for that to cease; and, by the blessing of God, so far as I am concerned, I mean it shall cease.

"If there is anybody in this Chamber that chooses to take the other path, let him do it; let him know what our purpose is. Our purpose is to save this Government and save this Country, and to put down Treason; and if Traitors use bondsmen to destroy this Country, my doctrine is that the Government shall at once convert these bondsmen into men that cannot be used to destroy our Country. I have no apologies to make for this position, I take it proudly.

"I think the time has come when this Government, and the men who are in arms under the Government, should cease to return to Traitors their

Fugitive Slaves, whom they are using to erect batteries to murder brave men who are fighting under the flag of their Country. The time has come when we should deal with the men who are organizing Negro companies, and teaching them to shoot down loyal men for the only offence of upholding the flag of their Country.

"I hope further, Sir, that there is a public sentiment in this Country that will blast men who will rise, in the Senate or out it, to make apologies for Treason, or to defend or to maintain the doctrine that this Government is bound to protect Traitors in converting their Slaves into tools for the destruction of the Republic."

Senator McDougall, of California, said: "I regard this as a Confiscation for Treason, and I am for the proposition."

Mr. Ten Eyck, said: "No longer ago than Saturday last I voted in the Judiciary Committee against this amendment, for two reasons: First, I did not believe that persons in Rebellion against this Government would make use of such means as the employment of Persons held to Labor or Service, in their Armies; secondly, because I did not know what was to become of these poor wretches if they were discharged. God knows we do not want them in our Section of the Union. But, Sir, having learned and believing that these persons have been employed with arms in their hands to shed the blood of the Union-loving men of this Country, I shall now vote in favor of that amendment with less regard to what may become of these people than I had on Saturday. I will merely instance that there is a precedent for this. If I recollect history aright, General Jackson, in the Seminole War, declared that every Slave who was taken in arms against the United States should be set Free,"

So, too, in the House of Representatives, the retrograde of a badly demoralized Army, its routed fragments still coming in with alarming stories of a pursuing Enemy almost at the gates of the city, had no terrors for our legislators; and there was something of Roman dignity, patriotism, and courage, in the adoption, on that painfully memorable Blue Monday, (the first—[Offered by Mr. Crittenden, of Kentucky]—with only two dissenting votes, on a yea and nay vote; and, the second—[Offered by Mr. Vandever, of Iowa.]—with entire unanimity) of the following Resolutions:

"Resolved by the House of Representatives of the Congress of the United States, That the present deplorable Civil War has been forced upon the

Country by the Disunionists of the Southern States, now in arms against the Constitutional Government, and in arms around the Capital; that in this National emergency, Congress, banishing all feelings of mere passion or resentment, will recollect only its duty to the whole Country; that this War is not waged on their part in any spirit of oppression, or for any purpose of conquest or subjugation, or purpose of overthrowing or interfering with the rights or established Institutions of those States, but to defend and maintain the supremacy of the Constitution, and to preserve the Union with all the dignity, equality, and rights of the several States unimpaired; and that as soon as these objects are accomplished, the War ought to cease."

"Resolved, That the maintenance of the Constitution, the preservation of the Union, and the enforcement of the Laws, are sacred trusts which must be executed; that no disaster shall discourage us from the most ample performance of this high duty; and that we pledge to the Country and the World, the employment of every resource, National and individual, for the suppression, overthrow, and punishment of Rebels in arms."

The first of these Resolutions was intended to calm the fears of the Border States—excited by Rebel emissaries; the second, to restore confidence and courage to the patriot hearts of Union-men, everywhere. Both were effectual.

And here it will hardly be amiss to glance, for an instant, toward the Senate Chamber; and especially at one characteristic incident. It was the afternoon of August the 1st, 1861,—scarce ten days since the check to the Union arms at Bull Run; and Breckinridge, of Kentucky, not yet expelled from the United States Senate, was making in that Body his great speech against the "Insurrection and Sedition Bill," and upon "the sanctity of the Constitution."

Baker, of Oregon,—who, as Sumner afterward said: "with a zeal that never tired, after recruiting men drawn by the attraction of his name, in New York and Philadelphia and elsewhere, held his Brigade in camp, near the Capitol, so that he passed easily from one to the other, and thus alternated the duties of a Senator and a General," having reached the Capitol, direct from his Brigade-camp, entered the Senate Chamber, in his uniform, while Breckinridge was speaking.

When the Kentucky Senator "with Treason in his heart, if not on his lips," resumed his seat, the gray-haired soldier-Senator at once rose to reply. "He

began,"—said Charles Sumner, in alluding to the incident—"simply and calmly; but as he proceeded, his fervid soul broke forth in words of surpassing power. As on a former occasion he had presented the well-ripened fruits of study, so now he spoke with the spontaneous utterance of his own mature and exuberant eloquence—meeting the polished Traitor at every point with weapons keener and brighter than his own."

After demolishing Breckinridge's position touching the alleged Unconstitutionality of the measure, and characterizing his other utterances as "reproof, malediction, and prediction combined," the Patriot from the Far-West turned with rising voice and flashing eye upon the gloomy Kentuckian:

"I would ask him," said he, "what would you have us do now—a Confederate Army within twenty miles of us, advancing, or threatening to advance, to overwhelm your Government; to shake the pillars of the Union, to bring it around your head, if you stay here, in ruins? Are we to stop and talk about an uprising sentiment in the North against the War? Are we to predict evil, and retire from what we predict? Is it not the manly part to go on as we have begun, to raise money, and levy Armies, to organize them, to prepare to advance; when we do advance, to regulate that advance by all the laws and regulations that civilization and humanity will allow in time of battle? Can we do anything more? To talk to us about stopping, is idle; we will never stop. Will the Senator yield to Rebellion? Will he shrink from armed Insurrection? Will his State justify it? Will its better public opinion allow it? Shall we send a flag of Truce? What would he have? Or would he conduct this War so feebly, that the whole World would smile at us in derision?"

And then cried the orator-his voice rising to a higher key, penetrating, yet musical as the blast from a silver trumpet: "What would he have? These speeches of his, sown broadcast over the Land, what clear distinct meaning have they? Are they not intended for disorganization in our very midst? Are they not intended to dull our weapons? Are they not intended to destroy our zeal? Are they not intended to animate our enemies? Sir, are they not words of brilliant, polished Treason, even in the very Capitol of the Nation?"

"What would have been thought, if, in another Capitol, in another Republic, in a yet more martial age, a Senator as grave, not more eloquent or dignified than the Senator from Kentucky, yet with the Roman purple

flowing over his shoulder, had risen in his place, surrounded by all the illustrations of Roman glory, and declared that the cause of advancing Hannibal was just, and that Carthage ought to be dealt with in terms of peace? What would have been thought if, after the battle of Cannae, a Senator there had risen in his place and denounced every levy of the Roman People, every expenditure of its treasure, and every appeal to the old recollections and the old glories?"

The speaker paused. The sudden and intent silence was broken by another voice: "He would have been hurled from the Tarpeian rock."

"Sir," continued the soldier-orator, "a Senator, himself learned far more than myself in such lore, [Mr. Fessenden,] tells me, in a voice that I am glad is audible, that he would have been hurled from the Tarpeian Rock! It is a grand commentary upon the American Constitution that we permit these words [Senator Breckinridge's] to be uttered.

"I ask the Senator to recollect, too, what, save to send aid and comfort to the Enemy, do these predictions of his amount to? Every word thus uttered falls as a note of inspiration upon every Confederate ear. Every sound thus uttered is a word, (and, falling from his lips, a mighty word) of kindling and triumph to a Foe that determines to advance.

"For me, I have no such word as a Senator, to utter. For me"—and here his eyes flashed again while his martial voice rang like a clarion-call to battle—"amid temporary defeat, disaster, disgrace, it seems that my duty calls me to utter another word, and that word is, bold, sudden, forward, determined, WAR, according to the laws of War, by Armies, by Military Commanders clothed with full power, advancing with all the past glories of the Republic urging them on to conquest!

* * * * *

"I tell the Senator," continued the inspired Patriot, "that his predictions, sometimes for the South, sometimes for the Middle States, sometimes for the North-East, and then wandering away in airy visions out to the Far Pacific, about the dread of our people, as for loss of blood and treasure, provoking them to Disloyalty, are false in sentiment, false in fact, and false in Loyalty. The Senator from Kentucky is mistaken in them all.

"Five hundred million dollars! What then? Great Britain gave more than two thousand million in the great Battle for Constitutional Liberty which she led at one time almost single-handed against the World. Five hundred

thousand men! What then? We have them; they are ours; they are the children of the Country; they belong to the whole Country; they are our sons; our kinsmen; and there are many of us who will give them all up before we will abate one word of our just demand, or will retreat one inch from the line which divides right from wrong.

"Sir, it is not a question of men or of money in that sense. All the money, all the men, are, in our judgment, well bestowed in such a cause. When we give them, we know their value. Knowing their value well, we give them with the more pride and the, more joy. Sir, how can we retreat? Sir, how can we make Peace? Who shall treat? What Commissioners? Who would go? Upon what terms? Where is to be your boundary line? Where the end of the principles we shall have to give up? What will become of Constitutional Government? What will become of public Liberty? What of past glories? What of future hopes?

"Shall we sink into the insignificance of the grave—a degraded, defeated, emasculated People, frightened by the results of one battle, and scared at the visions raised by the imagination of the Senator from Kentucky on this floor? No, Sir! a thousand times, no, Sir! We will rally—if, indeed, our words be necessary—we will rally the People, the Loyal People, of the whole Country. They will pour forth their treasure, their money, their men, without stint, without measure. The most peaceable man in this body may stamp his foot upon this Senate Chamber floor, as of old a warrior and a Senator did, and from that single tramp there will spring forth armed Legions.

"Shall one battle determine the fate of empire, or a dozen?—the loss of one thousand men, or twenty thousand? or one hundred million or five hundred million dollars? In a year's Peace—in ten years, at most, of peaceful progress—we can restore them all. There will be some graves reeking with blood, watered by the tears of affection. There will be some privation; there will be some loss of luxury; there will be somewhat more need for labor to procure the necessities of life. When that is said, all is said. If we have the Country, the whole Country, the Union, the Constitution, Free Government—with these there will return all the blessings of well-ordered civilization; the path of the Country will be a career of greatness and of glory such as, in the olden time, our Fathers saw in the dim visions of years yet to come, and such as would have been ours

now, to-day, if it had not been for the Treason for which the Senator too often seeks to apologize."

This remarkable speech was the last utterance of that glorious and courageous soul, in the National Senate. Within three months, his lifeless body, riddled by Rebel rifle balls, was borne away from the fatal field of Ball's Bluff—away, amid the lamentations of a Nation—away, across land and ocean—to lie beside his brave friend Broderick, on that Lone Mountain whose solemn front looks out upon the calm Pacific.

He had not lived in vain. In his great speech at the American Theatre in San Francisco, after his election by Oregon (1860) to represent her in the United States Senate, he had aroused the people to a sense of shame, that, as he said: "Here, in a land of written Constitutional Liberty it is reserved for us to teach the World that, under the American Stars and Stripes, Slavery marches in solemn procession; that, under the American flag, Slavery is protected to the utmost verge of acquired territory; that under the American banner, the name of Freedom is to be faintly heard, the songs of Freedom faintly sung; that, while Garibaldi, Victor Emanuel, every great and good man in the World, strives, struggles, fights, prays, suffers and dies, sometimes on the scaffold, sometimes in the dungeon, often on the field of battle, rendered immortal by his blood and his valor; that, while this triumphal procession marches on through the arches of Freedom—we, in this land, of all the World, shrink back trembling when Freedom is but mentioned!"

And never was a shamed people more suddenly lifted up from that shame into a grand frenzy of patriotic devotion than were his auditors, when, with the inspiration of his matchless genius, he continued:

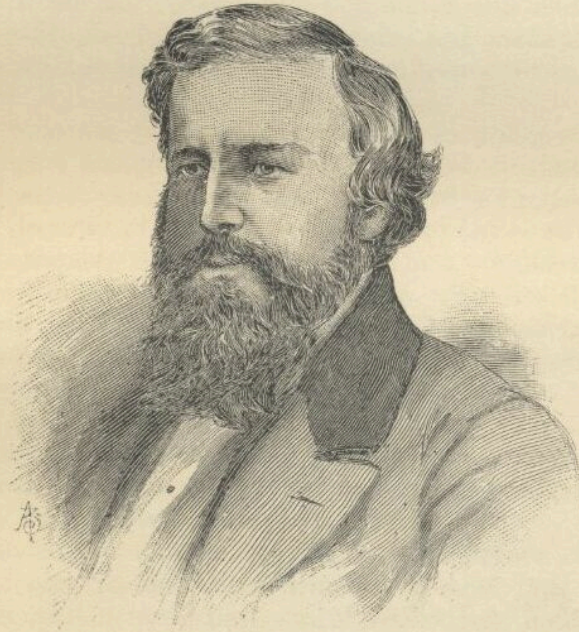
"As for me, I dare not, will not, be false to Freedom. Where the feet of my youth were planted, there, by Freedom, my feet shall ever stand. I will walk beneath her banner. I will glory in her strength. I have watched her in history struck down on an hundred chosen fields of battle. I have seen her friends fly from her; her foes gather around her. I have seen her bound to the stake; I have seen them give her ashes to the winds. But when they turned to exult, I have seen her again meet them face to face, resplendent in complete steel, brandishing in her strong right hand a flaming sword, red with Insufferable light! I take courage. The People gather around her. The genius of America will, at last, lead her sons to Freedom."

Never were grander utterances delivered by man in all the ages; never was there exhibited a more sublime faith; never a truer spirit of prophecy; never a more heroic spirit.

He was then on his way to Washington; on his way to perform the last acts in the drama of his own career—on his way to death. He knew the time had come, of which, ten years before, he had prophetically spoken in the House of Representatives, when he said: "I have only to say that, if the time should come when Disunion rules the hour, and discord is to reign supreme, I shall again be ready to give the best blood in my veins to my Country's Cause. I shall be prepared to meet all antagonists with lance in rest, to do battle in every land, in defense of the Constitution of the Country which I have sworn to support, to the last extremity, against Disunionists, and all its Enemies, whether of the South or North; to meet them everywhere, at all times, with speech or hand, with word or blow, until thought and being shall be no longer mine." And right nobly did he fulfil in all respects his promise; so that at the end—as was afterward well said of him by Mr. Colfax—he had mounted so high, that, "doubly crowned, as statesman, and as warrior—

'From the top of Fame's ladder he stepped to the Sky!'"

[This orator and hero was a naturalized Englishman, and commanded an American regiment in the Mexican War.]



LOUIS T. WIGFALL

CHAPTER XV.

FREEDOM'S EARLY DAWN.

On the day following Baker's great reply to Breckinridge, another notable speech was made, in the House of Representatives—notable, especially, in that it foreshadowed Emancipation, and, coming so soon after Bull Run, seemed to accentuate a new departure in political thought as an outgrowth of that Military reverse. It was upon the Confiscation Act, and it was Thaddeus Stevens who made it. Said he:

"If we are justified in taking property from the Enemy in War, when you have rescued an oppressed People from the oppression of that Enemy, by what principle of the Law of Nations, by what principle of philanthropy, can you return them to the bondage from which you have delivered them, and again rivet the chains you have once broken? It is a disgrace to the Party which advocates it. It is against the principle of the Law of Nations. It is against every principle of philanthropy. I for one, shall never shrink from saying when these Slaves are once conquered by us, 'Go and be Free.' God forbid that I should ever agree that they should be returned again to their masters! I do not say that this War is made for that purpose. Ask those who made the War, what is its object. Do not ask us. * * * Our object is to subdue the Rebels.

"But," continued he, "it is said that if we hold out this thing, they will never submit—that we cannot conquer them—that they will suffer themselves to be slaughtered, and their whole country to be laid waste. Sir, War is a grievous thing at best, and Civil War more than any other; but if they hold this language, and the means which they have suggested must be resorted to; if their whole country must be laid waste, and made a desert, in order to save this Union from destruction, so let it be. I would rather, Sir, reduce them to a condition where their whole country is to be re-peopled by a band of freemen than to see them perpetrate the destruction of this People through our agency. I do not say that it is time to resort to such means, and I do not know when the time will come; but I never fear to express my

sentiments. It is not a question with me of policy, but a question of principle.

"If this War is continued long, and is bloody, I do not believe that the free people of the North will stand by and see their sons and brothers and neighbors slaughtered by thousands and tens of thousands by Rebels, with arms in their hands, and forbear to call upon their enemies to be our friends, and to help us in subduing them; I for one, if it continues long, and has the consequences mentioned, shall be ready to go for it, let it horrify the gentleman from New York (Mr. Diven) or anybody else. That is my doctrine, and that will be the doctrine of the whole free people of the North before two years roll round, if this War continues.

"As to the end of the War, until the Rebels are subdued, no man in the North thinks of it. If the Government are equal to the People, and I believe they are, there will be no bargaining, there will be no negotiation, there will be no truces with the Rebels, except to bury the dead, until every man shall have laid down his arms, disbanded his organization, submitted himself to the Government, and sued for mercy. And, Sir, if those who have the control of the Government are not fit for this task and have not the nerve and mind for it, the People will take care that there are others who are—although, Sir, I have not a bit of fear of the present Administration, or of the present Executive.

"I have spoken more freely, perhaps, than gentlemen within my hearing might think politic, but I have spoken just what I felt. I have spoken what I believe will be the result; and I warn Southern gentlemen, that if this War is to continue, there will be a time when my friend from New York (Mr. Diven) will see it declared by this free Nation, that every bondman in the South—belonging to a Rebel, recollect; I confine it to them—shall be called upon to aid us in War against their masters, and to restore this Union."

The following letter of instruction from Secretary Cameron, touching the Fugitive Slave question, dated seven days after Thaddeus Stevens' speech, had also an interesting bearing on the subject:

"WASHINGTON, August 8, 1861.

"GENERAL: The important question of the proper disposition to be made of Fugitives from Service in States in Insurrection against the Federal

Government, to which you have again directed my attention in your letter of July 30, has received my most attentive consideration.

"It is the desire of the President that all existing rights, in all the States, be fully respected and maintained. The War now prosecuted on the part of the Federal Government is a War for the Union, and for the preservation of all Constitutional rights of States, and the citizens of the States, in the Union. Hence, no question can arise as to Fugitives from Service within the States and Territories in which the authority of the Union is fully acknowledged. The ordinary forms of Judicial proceeding, which must be respected by Military and Civil authorities alike, will suffice for the enforcement of all legal claims.

"But in States wholly or partially under Insurrectionary control, where the Laws of the United States are so far opposed and resisted that they cannot be effectually enforced, it is obvious that rights dependent on the execution of those laws must, temporarily, fail; and it is equally obvious that rights dependent on the laws of the States within which Military operations are conducted must be necessarily subordinated to the Military exigences created by the Insurrection, if not wholly forfeited by the Treasonable conduct of parties claiming them. To this general rule, rights to Services can form no exception.

"The Act of Congress, approved August 6, 1861, declares that if Persons held to Service shall be employed in hostility to the United States, the right to their services shall be forfeited, and such Persons shall be discharged therefrom. It follows, of necessity, that no claim can be recognized by the Military authorities of the Union to the services of such Persons when fugitives.

"A more difficult question is presented in respect to Persons escaping from the Service of Loyal masters. It is quite apparent that the laws of the State, under which only the services of such fugitives can be claimed, must needs be wholly, or almost wholly, suspended, as to remedies, by the Insurrection and the Military measures necessitated by it. And it is equally apparent that the substitution of Military for Judicial measures for the enforcement of such claims must be attended by great inconveniences, embarrassments, and injuries.

"Under these circumstances it seems quite clear that the substantial rights of Loyal masters will be best protected by receiving such fugitives, as well

as fugitives from Disloyal masters, into the service of the United States, and employing them under such organizations and in such occupations as circumstances may suggest or require.

"Of course a record should be kept showing the name and description of the fugitives, the name and the character, as Loyal or Disloyal, of the master, and such facts as may be necessary to a correct understanding of the circumstances of each case after tranquillity shall have been restored. Upon the return of Peace, Congress will, doubtless, properly provide for all the persons thus received into the service of the Union, and for just compensation to Loyal masters. In this way only, it would seem, can the duty and safety of the Government and the just rights of all be fully reconciled and harmonized.

"You will therefore consider yourself as instructed to govern your future action, in respect to Fugitives from Service, by the principles here stated, and will report from time to time, and at least twice in each month, your action in the premises to this Department.

"You will, however, neither authorize, nor permit any interference, by the troops under your command, with the servants of peaceful citizens in house or field; nor will you, in any way, encourage such servants to leave the lawful Service of their masters; nor will you, except in cases where the Public Safety may seem to require, prevent the voluntary return of any Fugitive, to the Service from which he may have escaped."

"I am, General, very respectfully, your obedient servant,

"SIMON CAMERON,

"Secretary of War.

"Major-General B. F. BUTLER,

"Commanding Department of Virginia,

"Fortress Monroe."

Whether or not inspired by the prophetic speech of Thaddeus Stevens, aforesaid, the month of August was hardly out before its prophecy seemed in a fair way of immediate fulfilment. Major-General John Charles Fremont at that time commanded the Eastern Department—comprising the States of

Missouri, Kansas, Illinois, and Kentucky—and he startled the Country by issuing the following Emancipation proclamation:

"HEADQUARTERS OF THE WESTERN DEPARTMENT.

"St. Louis, August 30, 1861.

"Circumstances, in my judgment, of sufficient urgency, render it necessary that the commanding general of this Department should assume the administrative powers of the State. Its disorganized condition, the helplessness of the civil authority, the total insecurity of life, and the devastation of property by bands of murderers and marauders, who infest nearly every county of the State, and avail themselves of the public misfortunes and the vicinity of a hostile force to gratify private and neighborhood vengeance, and who find an enemy wherever they find plunder, finally demand the severest measures to repress the daily increasing crimes and outrages which are driving off the inhabitants and ruining the State.

"In this condition, the public safety and the success of our arms require unity of purpose, without let or hinderance, to the prompt administration of affairs.

"In order, therefore, to suppress disorder, to maintain as far as now practicable the public peace, and to give security and protection to the persons and property of loyal citizens, I do hereby extend and declare established Martial Law throughout the State of Missouri.

"The lines of the Army of Occupation in this State are for the present declared to extend from Leavenworth by way of the posts of Jefferson City, Rolla, and Ironton, to Cape Girardeau, on the Mississippi river.

"All persons who shall betaken with arms in their hands within these lines shall be tried by Court-Martial, and if found guilty will be shot.

"The property, real and personal, of all persons, in the State of Missouri, who shall take up arms against the United States, or who shall be directly proven to have taken an active part with their Enemies in the field, is declared to be confiscated to the public use, and their Slaves, if any they have, are hereby declared Free men.

"All persons who shall be proven to have destroyed, after the publication of this order, railroad tracks, bridges, or telegraphs, shall suffer the extreme

penalty of the law.

"All persons engaged in Treasonable correspondence, in giving or procuring aid to the Enemies of the United States, in fomenting tumults, in disturbing the public tranquillity by creating and circulating false reports or incendiary documents, are in their own interests warned that they are exposing themselves to sudden and severe punishment.

"All persons who have been led away from their allegiance, are required to return to their homes forthwith; any such absence, without sufficient cause, will be held to be presumptive evidence against them.

"The object of this declaration is to place in the hands of the Military authorities the power to give instantaneous effect to existing laws, and to supply such deficiencies as the conditions of War demand. But this is not intended to suspend the ordinary Tribunals of the Country, where the Law will be administered by the Civil officers in the usual manner, and with their customary authority, while the same can be peaceably exercised.

"The commanding general will labor vigilantly for the public Welfare, and in his efforts for their safety hopes to obtain not only the acquiescence, but the active support of the Loyal People of the Country.

"J. C. FREMONT,
"Major-General Commanding."

Fremont's Proclamation of Confiscation and Emancipation, was hailed with joy by some Patriots in the North, but was by others looked upon as rash and premature and inexpedient; while it bitterly stirred the anger of the Rebels everywhere.

The Rebel Jeff. Thompson, then in command of the Rebel forces about St. Louis, at once issued the following savage proclamation of retaliation:

"HEADQUARTERS FIRST MILITARY DISTRICT, M. S. G.

'St. Louis, August 31, 1861.

"To all whom it may concern:

"Whereas Major-General John C. Fremont, commanding the minions of Abraham Lincoln in the State of Missouri, has seen fit to declare Martial Law throughout the whole State, and has threatened to shoot any citizen-soldier found in arms within certain limits; also, to Confiscate the property

and Free the Negroes belonging to the members of the Missouri State Guard:

"Therefore, know ye, that I, M. Jeff. Thompson, Brigadier-General of the First Military District of Missouri, having not only the Military authority of Brigadier-General, but certain police powers granted by Acting-Governor Thomas C. Reynolds, and confirmed afterward by Governor Jackson, do most solemnly promise that for every member of the Missouri State Guard, or soldier of our allies, the Armies of the Confederate States, who shall be put to death in pursuance of the said order of General Fremont, I will hang, draw, and quarter a minion of said Abraham Lincoln.

"While I am anxious that this unfortunate War shall be conducted, if possible, upon the most liberal principles of civilized warfare—and every order that I have issued has been with that object—yet, if this rule is to be adopted (and it must first be done by our Enemies) I intend to exceed General Fremont in his excesses, and will make all torments that come within my reach rue the day that a different policy was adopted by their leaders.

"Already mills, barns, warehouses, and other private property have been wastefully and wantonly destroyed by the Enemy in this district, while we have taken nothing except articles strictly contraband or absolutely necessary. Should these things be repeated, I will retaliate ten-fold, so help me God!"

"M. JEFF. THOMPSON,
"Brigadier-General Commanding."

"President Lincoln, greatly embarrassed by the precipitate action of his subordinate, lost no time in suggesting to General Fremont certain modifications of his Emancipation proclamation—as follows:

"[PRIVATE.] "WASHINGTON, D. C., September 2, 1861.

"MY DEAR SIR: Two points in your proclamation of August 30th give me some anxiety:

"First. Should you shoot a man according to the proclamation, the Confederates would very certainly shoot our best man in their hands, in retaliation; and so, man for man, indefinitely. It is, therefore, my order that

you allow no man to be shot under the proclamation without first having my approbation or consent.

"Second. I think there is great danger that the closing paragraph, in relation to the Confiscation of Property, and the liberating Slaves of Traitorous owners, will alarm our Southern Union friends, and turn them against us; perhaps ruin our rather fair prospect for Kentucky.

"Allow me, therefore, to ask that you will, as of your own motion, modify that paragraph so as to conform to the first and fourth sections of the Act of Congress entitled, 'An Act to Confiscate Property used for Insurrectionary purposes,' approved August 6, 1861, a copy of which Act I herewith send you.

"This letter is written in a spirit of caution, and not of censure.

"I send it by a special messenger, in that it may certainly and speedily reach you.

"Yours very truly,

"A. LINCOLN.

"Major-General FREMONT."

General Fremont replied to President Lincoln's suggestions, as follows:

"HEADQUARTERS WESTERN DEPARTMENT,
"St. Louis, September 8, 1861.

"MY DEAR SIR: Your letter of the second, by special messenger, I know to have been written before you had received my letter, and before my telegraphic dispatches and the rapid developments of critical conditions here had informed you of affairs in this quarter. I had not written to you fully and frequently, first, because in the incessant change of affairs I would be exposed to give you contradictory accounts; and secondly, because the amount of the subjects to be laid before you would demand too much of your time.

"Trusting to have your confidence, I have been leaving it to events themselves to show you whether or not I was shaping affairs here according to your ideas. The shortest communication between Washington and St. Louis generally involves two days, and the employment of two days, in time of War, goes largely toward success or disaster. I therefore went along

according to my own judgment, leaving the result of my movement to justify me with you.

"And so in regard to my proclamation of the thirtieth. Between the Rebel Armies, the Provisional Government, and the home Traitors, I felt the position bad, and saw danger. In the night I decided upon the proclamation and the form of it—I wrote it the next morning and printed it the same day. I did it without consultation or advice with any one, acting solely with my best judgment to serve the Country and yourself, and perfectly willing to receive the amount of censure which should be thought due, if I had made a false movement.

"This is as much a movement in the War, as a battle, and, in going into these, I shall have to act according to my judgment of the ground before me, as I did on this occasion. If upon reflection, your better judgment still decides that I am wrong in the article respecting the Liberation of Slaves, I have to ask that you will openly direct me to make the correction. The implied censure will be received as a soldier always should the reprimand of his chief.

"If I were to retract of my own accord, it would imply that I myself thought it wrong, and that I had acted without the reflection which the gravity of the point demanded. But I did not. I acted with full deliberation, and upon the certain conviction that it was a measure right and necessary, and I think so still.

"In regard to the other point of the proclamation to which you refer, I desire to say that I do not think the Enemy can either misconstrue or urge anything against it, or undertake to make unusual retaliation. The shooting of men who shall rise in arms against an Army in the Military occupation of a Country, is merely a necessary measure of defense, and entirely according to the usages of civilized warfare. The article does not at all refer to prisoners of war, and certainly our Enemies have no grounds for requiring that we should waive in their benefit any of the ordinary advantages which the usages of War allow to us.

"As promptitude is itself an advantage in War, I have also to ask that you will permit me to carry out upon the spot the provisions of the proclamation in this respect.

"Looking at affairs from this point of view, I am satisfied that strong and vigorous measures have now become necessary to the success of our Arms;

and hoping that my views may have the honor to meet your approval,

"I am, with respect and regard, very truly yours,

"J. C. FREMONT.

"THE PRESIDENT."

President Lincoln subsequently rejoined, ordering a modification of the proclamation. His letter ran thus:

"WASHINGTON, September 11, 1861.

"SIR: Yours of the 8th, in answer to mine of the 2d instant, is just received. Assuming that you, upon the ground, could better judge of the necessities of your position than I could at this distance, on seeing your Proclamation of August 30th, I perceived no general objection to it.

"The particular clause, however, in relation to the Confiscation of Property and the Liberation of Slaves, appeared to me to be objectionable in its non-conformity to the Act of Congress, passed the 6th of last August, upon the same subjects; and hence I wrote you expressing my wish that that clause should be modified accordingly.

"Your answer, just received, expresses the preference, on your part, that I should make an open order for the modification, which I very cheerfully do.

"It is therefore Ordered, that the said clause of said proclamation be so modified, held, and construed as to conform to, and not to transcend, the provisions on the same subject contained in the Act of Congress entitled, 'An Act to Confiscate Property used for Insurrectionary Purposes,' approved August 6, 1861, and that said Act be published at length with this Order.

"Your obedient servant,

"A. LINCOLN.

"Major-General JOHN C. FREMONT."

In consequence, however, of the agitation on the subject, the extreme delicacy with which it was thought advisable in the earliest stages of the Rebellion to treat it, and the confusion of ideas among Military men with regard to it, the War Department issued the following General Instructions

on the occasion of the departure of the Port Royal Expedition, commanded by General T. W. Sherman:

"WAR DEPARTMENT, October 14, 1861.

"SIR: In conducting Military Operations within States declared by the Proclamation of the President to be in a State of Insurrection, you will govern yourself, so far as Persons held to Service under the laws of such States are concerned, by the principles of the letters addressed by me to Major-General Butler on the 30th of May and the 8th of August, copies of which are herewith furnished to you.

"As special directions, adapted to special circumstances, cannot be given, much must be referred to your own discretion as Commanding General of the Expedition. You will, however, in general avail yourself of the services of any Persons, whether Fugitives from Labor or not, who may offer them to the National Government; you will employ such Persons in such services as they may be fitted for, either as ordinary employees, or, if special circumstances seem to require it, in any other capacity with such organization, in squads, companies, or otherwise, as you deem most beneficial to the service. This, however, not to mean a general arming of them for Military service.

"You will assure all Loyal masters that Congress will provide just compensation to them for the loss of the services of the Persons so employed.

"It is believed that the course thus indicated will best secure the substantial rights of Loyal masters, and the benefits to the United States of the services of all disposed to support the Government, while it avoids all interference with the social systems or local Institutions of every State, beyond that which Insurrection makes unavoidable and which a restoration of peaceful relations to the Union, under the Constitution, will immediately remove. "Respectfully,

"SIMON CAMERON,

"Secretary of War.

"Brigadier-General T. W. SHERMAN,
"Commanding Expedition to the Southern Coast."

Brigadier-General Thomas W. Sherman, acting upon his own interpretation of these instructions, issued a proclamation to the people of South Carolina, upon occupying the Forts at Port Royal, in which he said:

"In obedience to the orders of the President of these United States of America, I have landed on your shores with a small force of National troops. The dictates of a duty which, under these circumstances, I owe to a great sovereign State, and to a proud and hospitable people, among whom I have passed some of the pleasantest days of my life, prompt me to proclaim that we have come amongst you with no feelings of personal animosity, no desire to harm your citizens, destroy your property, or interfere with any of your lawful rights or your social or local Institutions, beyond what the causes herein alluded to may render unavoidable."

Major-General Wool, at Fortress Monroe, where he had succeeded General Butler, likewise issued a Special Order on the subject of Contrabands, as follows:

"HEADQUARTERS DEPARTMENT OF VIRGINIA,
"FORT MONROE, October 14, 1861.
"[Special Orders No. 72.]

"All Colored Persons called Contrabands, employed as servants by officers and others residing within Fort Monroe, or outside of the Fort at Camp Hamilton and Camp Butler, will be furnished with their subsistence and at least eight dollars per month for males, and four dollars per month for females, by the officers or others thus employing them.

"So much of the above-named sums, as may be necessary to furnish clothing, to be decided by the Chief Quartermaster of the Department, will be applied to that purpose, and the remainder will be paid into his hands to create a fund for the support of those Contrabands who are unable to work for their own support.

"All able-bodied Colored Persons who are under the protection of the troops of this Department, and who are not employed as servants, will be immediately put to work in either the Engineer's or Quartermaster's Department.

"By command of Major-General Wool:
"[Signed] WILLIAM D. WHIPPLE,
"Assistant Adjutant General."

He subsequently also issued the following General Order:

"HEADQUARTERS DEPARTMENT OF VIRGINIA,
"FORT MONROE, November 1, 1861.
"[General Orders No. 34.]

"The following pay and allowances will constitute the valuation of the Labor of the Contrabands at work in the Engineer, Ordnance, Quartermaster, Commissary, and Medical Departments at this Post, to be paid as hereinafter mentioned;

"Class 1st.—Negro man over eighteen years of age, and able-bodied, ten dollars per month, one ration and the necessary amount of clothing.

"Class 2d.—Negro boys from 12 to 18 years of age, and sickly and infirm Negro men, five dollars per month, one ration, and the necessary amount of clothing.

"The Quartermaster will furnish all the clothing. The Department employing these men will furnish the subsistence specified above, and as an incentive to good behavior (to be withheld at the direction of the chiefs of the departments respectively), each individual of the first class will receive \$2 per month, and each individual of the second class \$1 per month, for their own use. The remainder of the money valuation of their Labor, will be turned over to the Quartermaster, who will deduct from it the cost of the clothing issued to them; the balance will constitute a fund to be expended by the Quartermaster under the direction of the Commanding officer of the Department of Virginia for the support of the women and children and those that are unable to work.

"For any unusual amount of Labor performed, they may receive extra pay, varying in amount from fifty cents to one dollar, this to be paid by the departments employing them, to the men themselves, and to be for their own use.

"Should any man be prevented from working, on account of sickness, for six consecutive days, or ten days in any one month, one-half of the money value will be paid. For being prevented from laboring for a longer period than ten days in any one month all pay and allowances cease.

"By command of Major-General Wool:

"[Signed] "WILLIAM D. WHIPPLE,
"Assistant Adjutant General."

On November 13, 1861, Major-General Dix, in a proclamation addressed to the people of Accomac and Northampton Counties, Va., ordered the repulsion of Fugitive Slaves seeking to enter the Union lines, in these words:

"The Military Forces of the United States are about to enter your Counties as a part of the Union. They will go among you as friends, and with the earnest hope that they may not, by your own acts, be forced to become your enemies. They will invade no rights of person or property. On the contrary, your Laws, your Institutions, your Usages, will be scrupulously respected. There need be no fear that the quietude of any fireside will be disturbed, unless the disturbance is caused by yourselves.

"Special directions have been given not to interfere with the condition of any Person held to domestic service; and, in order that there may be no ground for mistake or pretext for misrepresent action, Commanders of Regiments and Corps have been instructed not to permit any such Persons to come within their lines."

On the 20th of November, 1861, Major General Halleck issued the following General Order—which went even further, in that it expelled, as well as repelled Fugitive Slaves from our lines:

"HEADQUARTERS DEPARTMENT OF MISSOURI,
"St. Louis, November 20, 1861.
"[General Orders No. 3.]

"I. It has been represented that important information respecting the number and condition of our Forces, is conveyed to the Enemy by means of Fugitive Slaves who are admitted within our lines. In order to remedy this evil, it is directed that no such Persons be hereafter permitted to enter the lines of any camp, or of any forces on the march; and that any now within such lines be immediately excluded therefrom."

This Order was subsequently explained in a letter, of December 8, 1861, from General Halleck to Hon. F. P. Blair, in which he said:

" * * * Order No. 3 was in my mind, clearly a Military necessity. Unauthorized persons, black or white, Free or Slaves, must be kept out of

our camps, unless we are willing to publish to the Enemy everything we do or intend to do. It was a Military and not a political order. I am ready to carry out any lawful instructions in regard to Fugitive Slaves which my superiors may give me, and to enforce any law which Congress may pass. But I cannot make law, and will not violate it. You know my private opinion on the policy of Confiscating the Slave Property of Rebels in Arms. If Congress shall pass it, you may be certain that I shall enforce it. Perhaps my policy as to the treatment of Rebels and their property is as well set out in Order No. 13, issued the day (December 4, 1861), your letter was written, as I could now describe it."

It may be well also to add here, as belonging to this period of doubtfulness touching the status of escaped Slaves, the following communication sent by Secretary Seward to General McClellan, touching "Contrabands" in the District of Columbia:

"DEPARTMENT OF STATE,
"WASHINGTON, December 4, 1861.

"To Major-General GEORGE B. MCCLELLAN, Washington:

"GENERAL: I am directed by the President to call your attention to the following subject:

"Persons claimed to be held to Service or Labor under the laws of the State of Virginia, and actually employed in hostile service against the Government of the United States, frequently escape from the lines of the Enemy's Forces and are received within the lines of the Army of the Potomac.

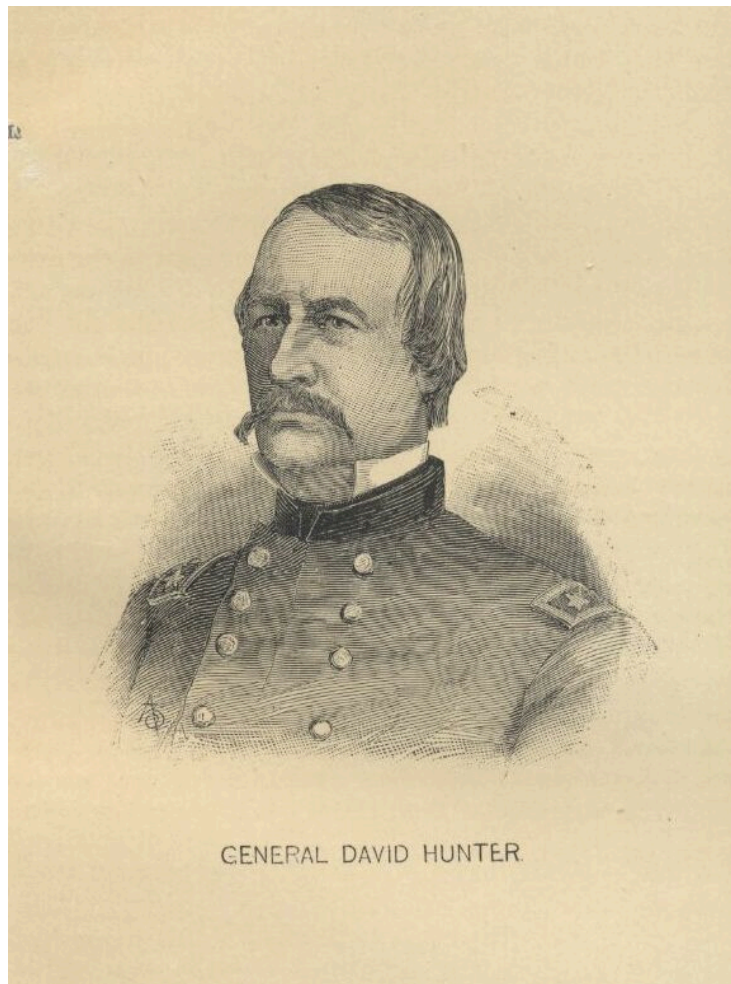
"This Department understands that such Persons afterward coming into the city of Washington are liable to be arrested by the city police, upon the presumption, arising from color, that they are Fugitives from Service or Labor.

"By the 4th section of the Act of Congress approved August 6, 1861, entitled, 'An Act to Confiscate Property used for Insurrectionary purposes,' such hostile employment is made a full and sufficient answer to any further claim to Service or Labor. Persons thus employed and escaping are received into the Military protection of the United States, and their arrest as Fugitives from Service or Labor should be immediately followed by the Military arrest of the parties making the seizure.

"Copies of this communication will be sent to the Mayor of the city of Washington and to the Marshal of the District of Columbia, that any collision between the Civil and Military authorities may be avoided.

"I am, General, your very obedient,

"WILLIAM H. SEWARD."



CHAPTER XVI.

"COMPENSATED GRADUAL EMANCIPATION."

Thus far the reader's eye has been able to review in their successive order some of the many difficulties and perplexities which beset the pathway of President Lincoln as he felt his way in the dark, as it were, toward Emancipation. It must seem pretty evident now, however, that his chief concern was for the preservation of the Union, even though all other things—Emancipation with them—had to be temporarily sacrificed.

Something definite, however, had been already gained. Congress had asserted its right under the War powers of the Constitution, to release from all claim to Service or Labor those Slaves whose Service or Labor had been used in hostility to the Union. And while some of the Union Generals obstructed the execution of the Act enforcing that right, by repelling and even as we have seen, expelling, from the Union lines all Fugitive Slaves—whether such as had or had not been used in hostility to us—yet still the cause of Freedom to all, was slowly and silently perhaps, yet surely and irresistibly, marching on until the time when, becoming a chief factor in the determination of the question of "whether we should have a Country at all," it should triumph coincidently with the preservation of the Republic.

But now a new phase of the Slave question arose—a question not involving what to do with Fugitive Slaves of any sort, whether engaged or not engaged in performing services hostile to the Union cause, but what to do with Slaves whom their panic-stricken owners had, for the time being, abandoned in the presence of our Armies.

This question was well discussed in the original draft of the report of the Secretary of War, December 1, 1861 in which Secretary Cameron said:

"It has become a grave question for determination what shall be done with the Slaves abandoned by their owners on the advance of our troops into Southern territory, as in the Beaufort district of South Carolina. The

whole White population therein is six thousand, while the number of Negroes exceeds thirty-two thousand. The panic which drove their masters in wild confusion from their homes, leaves them in undisputed possession of the soil. Shall they, armed by their masters, be placed in the field to fight against us, or shall their labor be continually employed in reproducing the means for supporting the Armies of Rebellion?

"The War into which this Government has been forced by rebellious Traitors is carried on for the purpose of repossessing the property violently and treacherously seized upon by the Enemies of the Government, and to re-establish the authority and Laws of the United States in the places where it is opposed or overthrown by armed Insurrection and Rebellion. Its purpose is to recover and defend what is justly its own.

"War, even between Independent Nations, is made to subdue the Enemy, and all that belongs to that Enemy, by occupying the hostile country, and exercising dominion over all the men and things within its territory. This being true in respect to Independent Nations at war with each other, it follows that Rebels who are laboring by force of arms to overthrow a Government, justly bring upon themselves all the consequences of War, and provoke the destruction merited by the worst of crimes. That Government would be false to National trust, and would justly excite the ridicule of the civilized World, that would abstain from the use of any efficient means to preserve its own existence, or to overcome a rebellious and traitorous Enemy, by sparing or protecting the property of those who are waging War against it.

"The principal wealth and power of the Rebel States is a peculiar species of Property, consisting of the service or labor of African Slaves, or the descendants of Africans. This Property has been variously estimated at the value of from seven hundred million to one thousand million dollars.

"Why should this Property be exempt from the hazards and consequences of a rebellious War?

"It was the boast of the leader of the Rebellion, while he yet had a seat in the Senate of the United States, that the Southern States would be comparatively safe and free from the burdens of War, if it should be brought on by the contemplated Rebellion, and that boast was accompanied by the savage threat that 'Northern towns and cities would become the victims of

rapine and Military spoil,' and that 'Northern men should smell Southern gunpowder and feel Southern steel.'

"No one doubts the disposition of the Rebels to carry that threat into execution. The wealth of Northern towns and cities, the produce of Northern farms, Northern workshops and manufactories would certainly be seized, destroyed, or appropriated as Military spoil. No property in the North would be spared from the hands of the Rebels, and their rapine would be defended under the laws of War. While the Loyal States thus have all their property and possessions at stake, are the insurgent Rebels to carry on warfare against the Government in peace and security to their own property?

"Reason and justice and self-preservation forbid that such should be; the policy of this Government, but demand, on the contrary, that, being forced by Traitors and Rebels to the extremity of war, all the rights and powers of war should be exercised to bring it to a speedy end.

"Those who war against the Government justly forfeit all rights of property, privilege, or security, derived from the Constitution and Laws, against which they are in armed Rebellion; and as the labor and service of their Slaves constitute the chief Property of the Rebels, such Property should share the common fate of War to which they have devoted the property of Loyal citizens.

"While it is plain that the Slave Property of the South is justly subjected to all the consequences of this Rebellious War, and that the Government would be untrue to its trust in not employing all the rights and powers of War to bring it to a speedy close, the details of the plan for doing so, like all other Military measures, must, in a great degree, be left to be determined by particular exigencies. The disposition of other property belonging to the Rebels that becomes subject to our arms is governed by the circumstances of the case.

"The Government has no power to hold Slaves, none to restrain a Slave of his Liberty, or to exact his service. It has a right, however, to use the voluntary service of Slaves liberated by War from their Rebel masters, like any other property of the Rebels, in whatever mode may be most efficient for the defense of the Government, the prosecution of the War, and the suppression of Rebellion. It is clearly a right of the Government to arm Slaves when it may become necessary, as it is to take gunpowder from the

Enemy; whether it is expedient to do so, is purely a Military question. The right is unquestionable by the laws of War. The expediency must be determined by circumstances, keeping in view the great object of overcoming the Rebels, reestablishing the Laws, and restoring Peace to the Nation.

"It is vain and idle for the Government to carry on this War, or hope to maintain its existence against rebellious force, without employing all the rights and powers of War. As has been said, the right to deprive the Rebels of their Property in Slaves and Slave Labor is as clear and absolute as the right to take forage from the field, or cotton from the warehouse, or powder and arms from the magazine. To leave the Enemy in the possession of such property as forage and cotton and military stores, and the means of constantly reproducing them, would be madness. It is, therefore, equal madness to leave them in peaceful and secure possession of Slave Property, more valuable and efficient to them for war than forage, cotton, military stores. Such policy would be National suicide.

"What to do with that species of Property is a question that time and circumstances will solve, and need not be anticipated further than to repeat that they cannot be held by the Government as Slaves. It would be useless to keep them as prisoners of War; and self-preservation, the highest duty of a Government, or of individuals, demands that they should be disposed of or employed in the most effective manner that will tend most speedily to suppress the Insurrection and restore the authority of the Government. If it shall be found that the men who have been held by the Rebels as Slaves, are capable of bearing arms and performing efficient Military service, it is the right, and may become the duty, of this Government to arm and equip them, and employ their services against the Rebels, under proper Military regulations, discipline, and command.

"But in whatever manner they may be used by the Government, it is plain that, once liberated by the rebellious act of their masters they should never again be restored to bondage. By the master's Treason and Rebellion he forfeits all right to the labor and service of his Slave; and the Slave of the rebellious master, by his service to the Government, becomes justly entitled to Freedom and protection.

"The disposition to be made of the Slaves of Rebels, after the close of the War, can be safely left to the wisdom and patriotism of Congress. The

Representatives of the People will unquestionably secure to the Loyal Slaveholders every right to which they are entitled under the Constitution of the Country."

This original draft of the report was modified, at the instance of President Lincoln, to the following—and thus appeared in Secretary Cameron's report of that date, as printed:

"It is already a grave question what shall be done with those Slaves who were abandoned by their owners on the advance of our troops into Southern territory, as at Beaufort district, in South Carolina. The number left within our control at that point is very considerable, and similar cases will probably occur. What should be done with them? Can we afford to send them forward to their masters, to be by them armed against us, or used in producing supplies to sustain the Rebellion?

"Their labor may be useful to us; withheld from the Enemy it lessens his Military resources, and withholding them has no tendency to induce the horrors of Insurrection, even in the Rebel communities. They constitute a Military resource, and, being such, that they should not be turned over to the Enemy is too plain to discuss. Why deprive him of supplies by a blockade, and voluntarily give him men to produce them?

"The disposition to be made of the Slaves of Rebels, after the close of the War, can be safely left to the wisdom and patriotism of Congress. The Representatives of the People will unquestionably secure to the Loyal Slaveholders every right to which they are entitled under the Constitution of the Country.

SIMON CAMERON.

"Secretary of War."

The language of this modification is given to show that the President, at the close of the year 1861, had already reached a further step forward toward Emancipation—and the sound reasoning upon which he made that advance. He was satisfying his own mind and conscience as he proceeded, and thus, while justifying himself to himself, was also simultaneously carrying conviction to the minds and consciences of the People, whose servant and agent he was.

That these abandoned Slaves would "constitute a Military resource" and "should not be turned over to the Enemy" and that "their labor may be useful to us" were propositions which could not be gainsaid. But to quiet uncalled-for apprehensions, and to encourage Southern loyalty, he added, in substance, that at the close of this War—waged solely for the preservation of the Union—Congress would decide the doubtful status of the Slaves of Rebels, while the rights of Union Slave-holders would be secured.

The Contraband-Slave question, however, continued to agitate the public mind for many months—owing to the various ways in which it was treated by the various Military commanders, to whose discretion its treatment, in their several commands, was left—a discretion which almost invariably leaned toward the political bias of the commander. Thus, in a proclamation, dated St. Louis, February 23, 1862, Halleck, commanding the Department of Missouri, said:

"Soldiers! let no excess on your part tarnish the glory of our arms!

"The order heretofore issued in this department, in regard to pillaging and marauding, the destruction of private property, and the stealing or concealment of Slaves, must be strictly enforced. It does not belong to the Military to decide upon the relation of Master and Slave. Such questions must be settled by the civil Courts. No Fugitive Slaves will therefore be admitted within our lines or camps, except when especially ordered by the General Commanding. * * * "

And Buell, commanding the Department of the Ohio, in response to a communication on the subject from the Chairman of the Military Committee of the Kentucky Legislature, wrote, March 6, 1862:

"It has come to my knowledge that Slaves sometimes make their way improperly into our lines, and in some instances they may be enticed there, but I think the number has been magnified by report. Several applications have been made to me by persons whose servants have been found in our camps, and in every instance that I know of the master has recovered his servant and taken him away."

Thus, while some of our Commanders, like Dix and Halleck, repelled or even expelled the Fugitive Slave from their lines; and others, like Buell and Hooker, facilitated the search for, and restoration to his master, of the black Fugitive found within our lines; on the other hand, Fremont, as we have

seen, and Doubleday and Hunter, as we shall yet see, took totally different ground on this question.

President Lincoln, however, harassed as he was by the extremists on both sides of the Slavery question, still maintained that calm statesman-like middle-course from which the best results were likely to flow. But he now thought the time had come to broach the question of a compensated, gradual Emancipation.

Accordingly, on March 6, 1862, he sent to Congress the following message:

"Fellow citizens of the Senate and House of Representatives:

"I recommend the adoption of a joint Resolution by your honorable bodies, which shall be substantially as follows:

"Resolved, That the United States ought to co-operate with any State which may adopt gradual abolishment of Slavery, giving to such State pecuniary aid, to be used by such State in its discretion, to compensate for the inconveniences, public and private, produced by such change of system.

"If the proposition contained in the Resolution does not meet the approval of Congress and the Country, there is the end; but if it does command such approval, I deem it of importance that the States and people immediately interested should be at once distinctly notified of the fact, so that they may begin to consider whether to accept or reject it, The Federal Government would find its highest interest in such a measure, as one of the most efficient means of self preservation.

"The leaders of the existing Insurrection entertain the hope that this Government will ultimately be forced to acknowledge the Independence of some part of the disaffected region, and that all the Slave States North of such part will then say, 'the Union for which we have struggled being already gone, we now choose to go with the Southern Section.'

"To deprive them of this hope, substantially ends the Rebellion; and the initiation of Emancipation completely deprives them of it, as to all the States initiating it. The point is not that all the States tolerating Slavery would very soon, if at all, initiate Emancipation; but that, while the offer is equally made to all, the more Northern shall, by such initiation, make it certain to the more Southern that in no event will the former ever join the

latter in their proposed Confederacy. I say, 'initiation,' because in my judgment, gradual, and not sudden Emancipation, is better for all.

"In the mere financial or pecuniary view, any member of Congress, with the census tables and Treasury reports before him, can readily see for himself how very soon the current expenditures of this War would purchase, at fair valuation, all the Slaves in any named State.

"Such a proposition on the part of the General Government sets up no claim of a right by Federal authority to interfere with Slavery within State limits, referring, as it does, the absolute control of the subject in each case to the State and its people immediately interested. It is proposed as a matter of perfectly free choice with them.

"In the Annual Message last December, I thought fit to say, 'the Union must be preserved; and hence all indispensable means must be employed.' I said this, not hastily, but deliberately. War has been made, and continues to be an indispensable means to this end. A practical reacknowledgment of the National authority would render the War unnecessary, and it would at once cease. If, however, resistance continues, the War must also continue; and it is impossible to foresee all the incidents which may attend, and all the ruin which may follow it. Such as may seem indispensable, or may obviously promise great efficiency toward ending the struggle, must and will come.

"The proposition now made, though an offer only, I hope it may be esteemed no offense to ask whether the pecuniary consideration tendered would not be of more value to the States and private persons concerned, than are the Institution, and Property in it, in the present aspect of affairs?

"While it is true that the adoption of the proposed resolution would be merely initiatory, and not within itself a practical measure, it is recommended in the hope that it would soon lead to important practical results. In full view of my great responsibility to my God and to my Country, I earnestly beg the attention of Congress and the People to the subject.

"March 6, 1862."

In compliance with the above suggestion from the President, a Joint Resolution, in the precise words suggested, was introduced into the House,

March 10, by Roscoe Conkling, and on the following day was adopted in the House by 97 yeas to 36 nays.

Of the 36 members of the House who voted against this Resolution, were 34 Democrats, and among them were Messrs. Crisfield of Maryland, and Messrs. Crittenden, Mallory, and Menzies of Kentucky. These gentleman afterward made public a report, drawn by themselves, of an interesting interview they had held with President Lincoln on this important subject, in the words following:

"MEMORANDUM OF AN INTERVIEW BETWEEN THE PRESIDENT AND SOME BORDER SLAVE-STATE REPRESENTATIVES MARCH 10, 1862.

"DEAR SIR:—I called, at the request of the President, to ask you to come to the White House to-morrow morning, at nine o'clock, and bring such of your colleagues as are in town."

"WASHINGTON, March 10, 1862.

"Yesterday on my return from church I found Mr. Postmaster General Blair in my room, writing the above note, which he immediately suspended, and verbally communicated the President's invitation; and stated that the President's purpose was to have some conversation with the delegations of Kentucky, Missouri, Maryland, Virginia, and Delaware, in explanation of his Message of the 6th inst.

"This morning these delegations, or such of them as were in town, assembled at the White House at the appointed time, and after some little delay were admitted to an audience.

"After the usual salutations and we were seated, the President said, in substance, that he had invited us to meet him to have some conversation with us in explanation of his Message of the 6th; that since he had sent it in, several of the gentlemen then present had visited him, but had avoided any allusion to the Message, and he therefore inferred that the import of the Message had been misunderstood, and was regarded as inimical to the interests we represented; and he had resolved he would talk with us, and disabuse our minds of that erroneous opinion.

"The President then disclaimed any intent to injure the interests or wound the sensibilities of the Slave States. On the contrary, his purpose was to

protect the one and respect the other; that we were engaged in a terrible, wasting, and tedious War; immense Armies were in the field, and must continue in the field as long as the War lasts; that these Armies must, of necessity, be brought into contact with Slaves in the States we represented and in other States as they advanced; that Slaves would come to the camps, and continual irritation was kept up; that he was constantly annoyed by conflicting and antagonistic complaints; on the one side, a certain class complained if the Slave was not protected by the Army; persons were frequently found who, participating in these views, acted in a way unfriendly to the Slaveholder; on the other hand, Slaveholders complained that their rights were interfered with, their Slaves induced to abscond, and protected within the lines, these complaints were numerous, loud, and deep; were a serious annoyance to him and embarrassing to the progress of the War; that it kept alive a spirit hostile to the Government in the States we represented; strengthened the hopes of the Confederates that at some day the Border States would unite with them, and thus tend to prolong the War; and he was of opinion, if this Resolution should be adopted by Congress and accepted by our States, these causes of irritation and these hopes would be removed, and more would be accomplished towards shortening the War than could be hoped from the greatest victory achieved by Union Armies; that he made this proposition in good faith, and desired it to be accepted, if at all, voluntarily, and in the same patriotic spirit in which it was made; that Emancipation was a subject exclusively under the control of the States, and must be adopted or rejected by each for itself; that he did not claim nor had this Government any right to coerce them for that purpose; that such was no part of his purpose in making this proposition, and he wished it to be clearly understood; that he did not expect us there to be prepared to give him an answer, but he hoped we would take the subject into serious consideration; confer with one another, and then take such course as we felt our duty and the interests of our constituents required of us.

"Mr. Noell, of Missouri, said that in his State, Slavery was not considered a permanent Institution; that natural causes were there in operation which would, at no distant day, extinguish it, and he did not think that this proposition was necessary for that; and, besides that, he and his friends felt solicitous as to the Message on account of the different constructions which the Resolution and Message had received. The New York Tribune was for

it, and understood it to mean that we must accept gradual Emancipation according to the plan suggested, or get something worse.

"The President replied, he must not be expected to quarrel with the New York Tribune before the right time; he hoped never to have to do it; he would not anticipate events. In respect to Emancipation in Missouri, he said that what had been observed by Mr. Noell was probably true, but the operation of these natural causes had not prevented the irritating conduct to which he had referred, or destroyed the hopes of the Confederates that Missouri would at some time range herself alongside of them, which, in his judgment, the passage of this Resolution by Congress, and its acceptance by Missouri, would accomplish.

"Mr. Crisfield, of Maryland, asked what would be the effect of the refusal of the State to accept this proposal, and desired to know if the President looked to any policy beyond the acceptance or rejection of this scheme.

"The President replied that he had no designs beyond the action of the States on this particular subject. He should lament their refusal to accept it, but he had no designs beyond their refusal of it.

"Mr. Menzies, of Kentucky, inquired if the President thought there was any power, except in the States themselves, to carry out his scheme of Emancipation?

"The President replied, he thought there could not be. He then went off into a course of remark not qualifying the foregoing declaration, nor material to be repeated to a just understanding of his meaning.

"Mr. Crisfield said he did not think the people of Maryland looked upon Slavery as a permanent Institution; and he did not know that they would be very reluctant to give it up if provision was made to meet the loss, and they could be rid of the race; but they did not like to be coerced into Emancipation, either by the direct action of the Government or by indirection, as through the Emancipation of Slaves in this District, or the Confiscation of Southern Property as now threatened; and he thought before they would consent to consider this proposition they would require to be informed on these points.

"The President replied that 'unless he was expelled by the act of God or the Confederate Armies, he should occupy that house for three years, and as long as he remained there, Maryland had nothing to fear, either for her Institutions or her interests, on the points referred to.'

"Mr. Crisfield immediately added: 'Mr. President, what you now say could be heard by the people of Maryland, they would consider your proposition with a much better feeling than I fear without it they will be inclined to do.'

"The President: 'That (meaning a publication of what he said), will not do; it would force me into a quarrel before the proper time;' and again intimating, as he had before done, that a quarrel with the 'Greeley faction' was impending, he said, 'he did not wish to encounter it before the proper time, nor at all if it could be avoided.'

"Governor Wickliffe, of Kentucky, then asked him respecting the Constitutionality of his scheme.

"The President replied: 'As you may suppose, I have considered that; and the proposition now submitted does not encounter any Constitutional difficulty. It proposes simply to co-operate with any State by giving such State pecuniary aid;' and he thought that the Resolution, as proposed by him, would be considered rather as the expression of a sentiment than as involving any Constitutional question.

"Mr. Hall, of Missouri, thought that if this proposition was adopted at all, it should be by the votes of the Free States, and come as a proposition from them to the Slave States, affording them an inducement to put aside this subject of discord; that it ought not to be expected that members representing Slaveholding Constituencies should declare at once, and in advance of any proposition to them, for the Emancipation of Slaves.

"The President said he saw and felt the force of the objection; it was a fearful responsibility, and every gentleman must do as he thought best; that he did not know how this scheme was received by the Members from the Free States; some of them had spoken to him and received it kindly; but for the most part they were as reserved and chary as we had been, and he could not tell how they would vote.

"And, in reply to some expression of Mr. Hall as to his own opinion regarding Slavery, he said he did not pretend to disguise his Anti-Slavery feeling; that he thought it was wrong and should continue to think so; but that was not the question we had to deal with now. Slavery existed, and that, too, as well by the act of the North, as of the South; and in any scheme to get rid of it, the North, as well as the South, was morally bound to do its full and equal share. He thought the Institution, wrong, and ought never to have

existed; but yet he recognized the rights of Property which had grown out of it, and would respect those rights as fully as similar rights in any other property; that Property can exist, and does legally exist. He thought such a law, wrong, but the rights of Property resulting must be respected; he would get rid of the odious law, not by violating the right, but by encouraging the proposition, and offering inducements to give it up."

"Here the interview, so far as this subject is concerned, terminated by Mr. Crittenden's assuring the President that whatever might be our final action, we all thought him solely moved by a high patriotism and sincere devotion to the happiness and glory of his Country; and with that conviction we should consider respectfully the important suggestions he had made.

"After some conversation on the current war news we retired, and I immediately proceeded to my room and wrote out this paper.

"J. W. CRISFIELD."

"We were present at the interview described in the foregoing paper of Mr. Crisfield, and we certify that the substance of what passed on the occasion is in this paper, faithfully and fully given.

"J. W. MENZIES,
"J. J. CRITTENDEN,
"R. MALLORY.
"March 10, 1862."

Upon the passage of the Joint-Resolution in the House only four Democrats (Messrs. Cobb, Haight, Lehman, and Sheffield) voted in the affirmative, and but two Republicans (Francis Thomas, and Leary) in the negative. On the 2nd of April, it passed the Senate by a vote of 32 yeas—all Republicans save Messrs. Davis and Thomson—to 10 nays, all Democrats.

Meantime the question of the treatment of the "Contraband" in our Military camps, continued to grow in importance.

On March 26, 1862, General Hooker issued the following order touching certain Fugitive Slaves and their alleged owners:

"HEADQUARTERS, HOOKER'S DIVISION, CAMP BAKER,
"LOWER POTOMAC, March 26, 1862.

"To BRIGADE AND REGIMENTAL COMMANDERS OF THIS
DIVISION:

"Messrs. Nally, Gray, Dummington, Dent, Adams, Speake, Price, Posey, and Cobey, citizens of Maryland, have Negroes supposed to be with some of the regiments of this Division; the Brigadier General commanding directs that they be permitted to visit all the camps of his command, in search of their Property, and if found, that they be allowed to take possession of the same, without any interference whatever. Should any obstacle be thrown in their way by any officer or soldier in the Division, they will be at once reported by the regimental commanders to these headquarters.

"By command of Brigadier General Hooker;

"JOSEPH DICKINSON,

"Assistant Adjutant General."

On the following day, by direction of General Sickles, the following significant report was made touching the above order:

"HEADQUARTERS, SECOND REGIMENT, EXCELSIOR BRIGADE.
"CAMP HALL, March 27, 1862.

"LIEUTENANT:—In compliance with verbal directions from Brigadier General D. E. Sickles, to report as to the occurrence at this camp on the afternoon of the 26th instant, I beg leave to submit the following:

"At about 3:30 o'clock P. M., March 26, 1862, admission within our lines was demanded by a party of horsemen (civilians), numbering, perhaps, fifteen. They presented the lieutenant commanding the guard, with an order of entrance from Brigadier General Joseph Hooker, Commanding Division (copy appended), the order stating that nine men should be admitted.

"I ordered that the balance of the party should remain without the lines; which was done. Upon the appearance of the others, there was visible dissatisfaction and considerable murmuring among the soldiers, to so great an extent that I almost feared for the safety of the Slaveholders. At this time General Sickles opportunely arrived, and instructed me to order them outside the camp, which I did, amidst the loud cheers of our soldiers.

"It is proper to add, that before entering our lines, and within about seventy-five or one hundred yards of our camp, one of their number discharged two pistol shots at a Negro, who was running past them, with an evident intention of taking his life. This justly enraged our men.

"All of which is respectfully submitted.

"Your obedient servant,

"JOHN TOLEN.

"Major Commanding Second Regiment, E. B.

"To Lieutenant J. L. PALMER, Jr.,

"A. D. C. and A. A. A. General."

On April 6, the following important dispatch, in the nature of an order, was issued by General Doubleday to one of his subordinate officers:

"HEADQUARTERS MILITARY DEFENSES,

"NORTH OF THE POTOMAC,

"WASHINGTON, April 6, 1862.

"SIR:—I am directed by General Doubleday to say, in answer to your letter of the 2d instant, that all Negroes coming into the lines of any of the camps or forts under his command, are to be treated as persons, and not as chattels.

"Under no circumstances has the Commander of a fort or camp the power of surrendering persons claimed as Fugitive Slaves, as it cannot be done without determining their character.

"The Additional Article of War recently passed by Congress positively prohibits this.

"The question has been asked, whether it would not be better to exclude Negroes altogether from the lines. The General is of the opinion that they bring much valuable information, which cannot be obtained from any other source. They are acquainted with all the roads, paths, fords, and other natural features of the country, and they make excellent guides. They also know and frequently have exposed the haunts of Secession spies and Traitors and the existence of Rebel organizations. They will not, therefore, be excluded.

"The General also directs me to say that civil process cannot be served directly in the camps or forts of his command, without full authority be obtained from the Commanding Officer for that purpose.

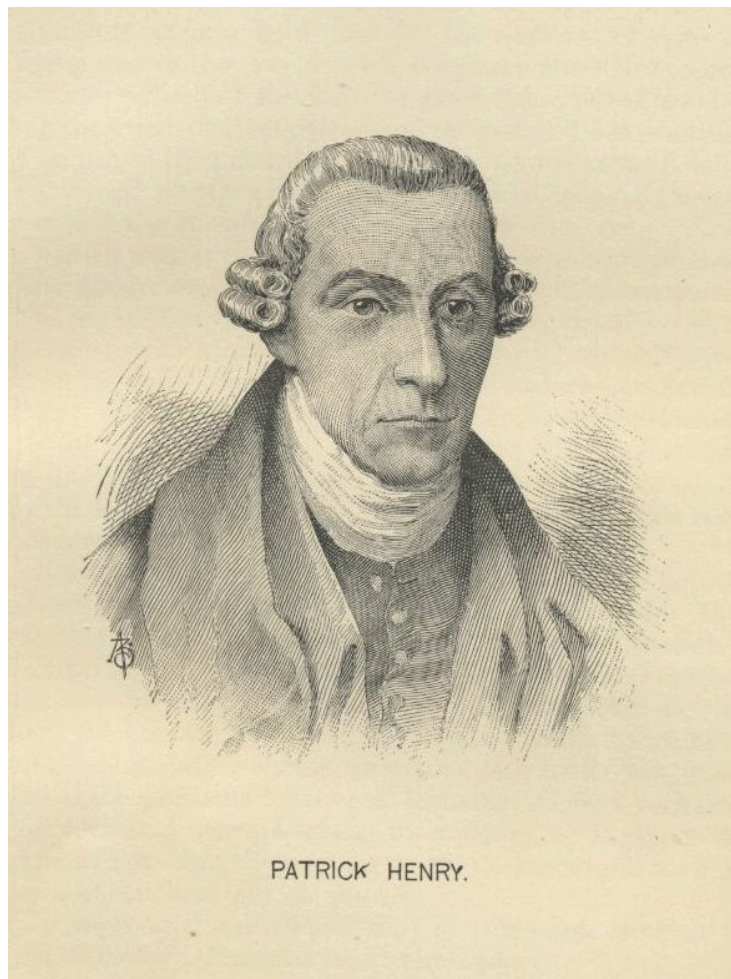
"I am very respectfully, your obedient servant,

"E. P. HALSTED,

"Assistant Adjutant General.

"Lieut. Col. JOHN D. SHANE,

"Commanding 76th Reg. N. Y. Vols."



CHAPTER XVII.

BORDER-STATE OPPOSITION.

On April 3, 1862, the United States Senate passed a Bill to liberate all Persons of African descent held to Service or Labor within the District of Columbia, and prohibiting Slavery or involuntary servitude in the District except as a punishment for crime—an appropriation being made to pay to loyal owners an appraised value of the liberated Slaves not to exceed \$300 for each Slave. The vote on its passage in the Senate was 29 yeas to 14 nays—all the yeas being Republican, and all but two of the nays Democratic.

April 11th, the Bill passed the House by 92 yeas to 39 nays—all the yeas save 5 being Republican, and all the nays, save three, being Democratic.

April 7, 1862, the House adopted a resolution, by 67 yeas to 52 nays—all the yeas, save one, Republican, and all the nays, save 12, Democratic—for the appointment of a Select Committee of nine, to consider and report whether any plan could be proposed and recommended for the gradual Emancipation of all the African Slaves, and the extinction of Slavery in Delaware, Maryland, Virginia, Kentucky, Tennessee, and Missouri, by the people or local authorities thereof, and how far and in what way the Government of the United States could and ought equitably to aid in facilitating either of those objects.

On the 16th President Lincoln sent the following Message to Congress:

"Fellow citizens of the Senate and House of Representatives:

"The Act entitled 'An Act for the release of certain Persons held to Service or Labor in the District of Columbia,' has this day been approved and signed.

"I have never doubted the Constitutional authority of Congress to abolish Slavery in this District; and I have ever desired to see the National Capital freed from the Institution in some satisfactory way. Hence there has never been in my mind any question upon the subject except the one of expediency, arising in view of all the circumstances.

"If there be matters within and about this Act which might have taken a course or shape more satisfactory to my judgment, I do not attempt to specify them. I am gratified that the two principles of compensation and colonization are both recognized and practically applied in the Act.

"In the matter of compensation, it is provided that claims may be presented within ninety days from the passage of the Act, 'but not thereafter;' and there is no saving for minors, femmes covert, insane, or absent persons. I presume this is an omission by mere oversight, and I recommend that it be supplied by an amendatory or Supplemental Act.

"ABRAHAM LINCOLN.

"April 16, 1862."

Subsequently, in order to meet the President's views, such an amendatory or Supplemental Act was passed and approved.

But now, Major General Hunter having taken upon himself to issue an Emancipation proclamation, May 9, 1862, the President, May 19, 1862, issued a proclamation rescinding it as follows:

"Whereas there appears in the public prints what purports to be a proclamation of Major General Hunter, in the words and figures following, to wit:

""HEADQUARTERS DEPARTMENT OF THE SOUTH,
'HILTON HEAD, S. C., May 9, 1862.
'[General Orders No. 11.]

'The three States of Georgia, Florida, and South Carolina, comprising the Military Department of the South, having deliberately declared themselves no longer under the protection of the United States of America, and having taken up arms against the said United States, it becomes a Military necessity to declare them under Martial Law. This was accordingly done on the 25th day of April, 1862. Slavery and Martial Law, in a Free Country, are altogether incompatible; the Persons in these three States—Georgia, Florida, and South Carolina—heretofore held as Slaves, are therefore declared forever Free.

'DAVID HUNTER,
'Major-General Commanding.

'Official:
ED. W. SMITH,
'Acting Assistant Adjutant General.'

"And whereas the same is producing some excitement and misunderstanding,

"Therefore, I, ABRAHAM LINCOLN, President of the United States, proclaim and declare, that the Government of the United States had no knowledge, information, or belief, of an intention on the part of General Hunter to issue such a proclamation; nor has it yet any authentic information that the document is genuine. And further, that neither General Hunter, nor any other Commander, or person, has been authorized by the Government of the United States to make proclamations declaring the Slaves of any State Free; and that the supposed proclamation, now in question, whether genuine or false, is altogether void, so far as respects such declaration.

"I further make known that whether it be competent for me, as Commander-in-Chief of the Army and Navy, to declare the Slaves of any State or States free, and whether, at any time, in any case, it shall have become a necessity indispensable to the maintenance of the Government, to exercise such supposed power, are questions which, under my responsibility, I reserve to myself, and which I cannot feel justified in leaving to the decision of Commanders in the field. These are totally different questions from those of police regulations in armies and camps.

"On the sixth day of March last, by a Special Message, I recommended to Congress the adoption of a Joint Resolution to be substantially as follows:

"" Resolved, That the United States ought to co-operate with any State which may adopt a gradual abolishment of Slavery, giving to such State pecuniary aid, to be used by such State, in its discretion, to compensate for the inconveniences, public and private, produced by such change of system.'

"The Resolution, in the language above quoted, was adopted by large majorities in both branches of Congress, and now stands an authentic, definite, and solemn proposal of the Nation to the States and people most immediately interested in the subject-matter. To the people of those States I now earnestly appeal—I do not argue—I beseech you to make the argument for yourselves—you cannot, if you would, be blind to the signs of the times

—I beg of you a calm and enlarged consideration of them, ranging, if it may be, far above personal and partisan politics. This proposal makes common cause for a common object, casting no reproaches upon any. It acts not the Pharisee. The changes it contemplates would come gently as the dews of Heaven, not rending or wrecking anything. Will you not embrace it? So much good has not been done, by one effort, in all past time, as, in the providence of God, it is now your high privilege to do. May the vast future not have to lament that you have neglected it.

"In witness thereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

"Done at the city of Washington this nineteenth day of May, in the year of our Lord one thousand eight hundred and sixty-two, and of the Independence of the United States the eighty-sixth.

"By the President. ABRAHAM LINCOLN.

"WILLIAM H. SEWARD, Secretary of State."

On June 5th, 1862, General T. Williams issued the following Order:

"HEADQUARTERS SECOND BRIGADE,
"BATON ROUGE, June 5, 1862.
"[General Orders No. 46.]

"In consequence of the demoralizing and disorganizing tendencies to the troops, of harboring runaway Negroes, it is hereby ordered that the respective Commanders of the camps and garrisons of the several regiments, Second Brigade, turn all such Fugitives in their camps or garrisons out beyond the limits of their respective guards and sentinels.

"By order of Brigadier-General T. Williams:

"WICKHAM HOFFMAN,
"Assistant-Adjutant General."

Lieutenant-Colonel D. R. Anthony, of the Seventh Kansas Volunteers, commanding a Brigade, issued the following order, at a date subsequent to the Battle of Pittsburg Landing and the evacuation of Corinth:

"HEADQUARTERS MITCHELL'S BRIGADE,
"ADVANCE COLUMN, FIRST BRIGADE, FIRST DIVISION,
"GENERAL ARMY OF THE MISSISSIPPI,
"CAMP ETHERIDGE, TENNESSEE, June 18, 1862.
"[General Orders No. 26.]

"1. The impudence—and impertinence of the open and armed Rebels, Traitors, Secessionists, and Southern-Rightsmen of this section of the State of Tennessee, in arrogantly demanding the right to search our camp for Fugitive Slaves, has become a nuisance, and will no longer be tolerated. "Officers will see that this class of men, who visit our camp for this purpose, are excluded from our lines.

"2. Should any such persons be found within our lines, they will be arrested and sent to headquarters.

"3. Any officer or soldier of this command who shall arrest and deliver to his master a Fugitive Slave, shall be summarily and severely punished, according to the laws relative to such crimes.

"4. The strong Union sentiment in this Section is most gratifying, and all officers and soldiers, in their intercourse with the loyal, and those favorably disposed, are requested to act in their usual kind and courteous manner and protect them to the fullest extent.

"By order of D. R. Anthony,
Lieutenant-Colonel Seventh Kansas Volunteers, commanding:

"W. W. H. LAWRENCE,
"Captain and Assistant-Adjutant General."

Lieutenant-Colonel Anthony was subsequently placed under arrest for issuing the above order.

It was about this time, also, that General McClellan addressed to President Lincoln a letter on "forcible Abolition of Slavery," and "a Civil and Military policy"—in these terms:

"HEADQUARTERS ARMY OF THE POTOMAC,
"CAMP NEAR HARRISON'S LANDING, VA., July 7, 1862.

"MR. PRESIDENT:—You have been fully informed that the Rebel Army is in the front, with the purpose of overwhelming us by attacking our

positions or reducing us by blocking our river communications. I cannot but regard our condition as critical, and I earnestly desire, in view of possible contingencies, to lay before your Excellency, for your private consideration, my general views concerning the existing state of the Rebellion, although they do not strictly relate to the situation of this Army, or strictly come within the scope of my official duties. These views amount to convictions, and are deeply impressed upon my mind and heart.

"Our cause must never be abandoned; it is the cause of Free institutions and Self-government. The Constitution and the Union must be preserved, whatever may be the cost in time, treasure, and blood.

"If Secession is successful, other dissolutions are clearly to be seen in the future. Let neither Military disaster, political faction, nor Foreign War shake your settled purpose to enforce the equal operation of the Laws of the United States upon the people of every State.

"The time has come when the Government must determine upon a Civil and Military policy, covering the whole ground of our National trouble.

"The responsibility of determining, declaring, and supporting such Civil and Military policy, and of directing the whole course of National affairs in regard to the Rebellion, must now be assumed and exercised by you, or our Cause will be lost. The Constitution gives you power, even for the present terrible exigency.

"This Rebellion has assumed the character of a War; as such it should be regarded, and it should be conducted upon the highest principles known to Christian civilization. It should not be a War looking to the subjugation of the people of any State, in any event. It should not be at all a war upon population, but against armed forces and political organizations. Neither Confiscation of property, political executions of persons, territorial organizations of States, or forcible Abolition of Slavery, should be contemplated for a moment.

"In prosecuting the War, all private property and unarmed persons should be strictly protected, subject only to the necessity of Military operations; all private property taken for Military use should be paid or receipted for; pillage and waste should be treated as high crimes; all unnecessary trespass sternly prohibited and offensive demeanor by the military towards citizens promptly rebuked.

"Military arrests should not be tolerated, except in places where active hostilities exist; and oaths, not required by enactments, Constitutionally made, should be neither demanded nor received.

"Military Government should be confined to the preservation of public order and the protection of political right. Military power should not be allowed to interfere with the relations of Servitude, either by supporting or impairing the authority of the master, except for repressing disorder, as in other cases. Slaves, contraband under the Act of Congress, seeking Military protection, should receive it.

"The right of the Government to appropriate permanently to its own service claims to Slave-labor should be asserted, and the right of the owner to compensation therefor should be recognized.

"This principle might be extended, upon grounds of Military necessity and security, to all the Slaves of a particular State, thus working manumission in such State; and in Missouri, perhaps in Western Virginia also, and possibly even in Maryland, the expediency of such a measure is only a question of time.

"A system of policy thus Constitutional, and pervaded by the influences of Christianity and Freedom, would receive the support of almost all truly Loyal men, would deeply impress the Rebel masses and all foreign nations, and it might be humbly hoped that it would commend itself to the favor of the Almighty.

"Unless the principles governing the future conduct of our Struggle shall be made known and approved, the effort to obtain requisite forces will be almost hopeless. A declaration of radical views, especially upon Slavery, will rapidly disintegrate our present Armies.

"The policy of the Government must be supported by concentrations of Military power. The National Forces should not be dispersed in expeditions, posts of occupation, and numerous armies, but should be mainly collected into masses, and brought to bear upon the Armies of the Confederate States. Those Armies thoroughly defeated, the political structure which they support would soon cease to exist,

"In carrying out any system of policy which you may form, you will require a Commander-in-chief of the Army, one who possesses your confidence, understands your views, and who is competent to execute your orders, by directing the Military Forces of the Nation to the

accomplishment of the objects by you proposed. I do not ask that place for myself, I am willing to serve you in such position as you may assign me, and I will do so as faithfully as ever subordinate served superior.

"I may be on the brink of Eternity; and as I hope forgiveness from my Maker, I have written this letter with sincerity towards you and from love for my Country.

"Very respectfully, your obedient servant,

"GEORGE B. MCCLELLAN,

"Major-General Commanding.

"His Excellency A. LINCOLN, President."

July 12, 1862, Senators and Representatives of the Border Slave-holding States, having been specially invited to the White House for the purpose, were addressed by President Lincoln, as follows:

"GENTLEMEN:—After the adjournment of Congress, now near, I shall have no opportunity of seeing you for several months. Believing that you of the Border States hold more power for good than any other equal number of members, I feel it a duty which I cannot justifiably waive, to make this appeal to you.

"I intend no reproach or complaint when I assure you that, in my opinion, if you all had voted for the Resolution in the Gradual Emancipation Message of last March, the War would now be substantially ended. And the plan therein proposed is yet one of the most potent and swift means of ending it. Let the States which are in Rebellion see definitely and certainly that in no event will the States you represent ever join their proposed Confederacy, and they cannot much longer maintain the contest.

"But you cannot divest them of their hope to ultimately have you with them so long as you show a determination to perpetuate the Institution within your own States. Beat them at elections, as you have overwhelmingly done, and nothing daunted, they still claim you as their own. You and I know what the lever of their power is. Break that lever before their faces, and they can shake you no more forever.

"Most of you have treated me with kindness and consideration, and I trust you will not now think I improperly touch what is exclusively your

own, when, for the sake of the whole Country, I ask, 'Can you, for your States, do better than to take the course I urge?' Discarding punctilio and maxims adapted to more manageable times, and looking only to the unprecedentedly stern facts of our case, can you do better in any possible event?

"You prefer that the Constitutional relations of the States to the Nation shall be practically restored without disturbance of the Institution; and, if this were done, my whole duty, in this respect, under the Constitution and my oath of office, would be performed. But it is not done, and we are trying to accomplish it by War.

"The incidents of the War cannot be avoided. If the War continues long, as it must, if the object be not sooner attained, the Institution in your States will be extinguished by mere friction and abrasion—by the mere incidents of the War. It will be gone, and you will have nothing valuable in lieu of it. Much of its value is gone already.

"How much better for you and for your people to take the step which at once shortens the War and secures substantial compensation for that which is sure to be wholly lost in any other event! How much better to thus save the money which else we sink forever in the War! How: much better to do it while we can, lest the War ere long render us pecuniarily unable to do it! How much better for you, as seller, and the Nation, as buyer, to sell out and buy out that without which the War could never have been, than to sink both the thing to be sold and the price of it in cutting one another's throats!

"I do not speak of Emancipation at once, but of a decision at once to Emancipate gradually. Room in South America for colonization can be obtained cheaply and in abundance, and when numbers shall be large enough to be company and encouragement for one another, the freed people will not be so reluctant to go.

"I am pressed with a difficulty not yet mentioned; one which threatens division among those who, united, are none too strong. An instance of it is known to you. General Hunter is an honest man. He was, and I hope still is, my friend. I value him none the less for his agreeing with me in the general wish that all men everywhere could be freed. He proclaimed all men Free within certain States, and I repudiated the proclamation. He expected more good and less harm from the measure than I could believe would follow.

"Yet, in repudiating it, I gave dissatisfaction, if not offense, to many whose support the Country cannot afford to lose. And this is not the end of it. The pressure in this direction is still upon me, and is increasing. By conceding what I now ask, you can relieve me, and, much more, can relieve the Country in this important point.

"Upon these considerations I have again begged your attention to the Message of March last. Before leaving the Capitol, consider and discuss it among yourselves. You are Patriots and Statesmen, and as such I pray you consider this proposition; and, at the least, commend it to the consideration of your States and people. As you would perpetuate popular Government for the best people in the World, I beseech you that you do in nowise omit this.

"Our common Country is in great peril, demanding the loftiest views and boldest action to bring a speedy relief. Once relieved, its form of Government is saved to the World, its beloved history and cherished memories are vindicated, and its happy future fully assured and rendered inconceivable grand. To you, more than to any others, the privilege is given to assure that happiness and swell that grandeur, and to link your own names therewith forever."

The gentlemen representing in Congress the Border-States, to whom this address was made, subsequently met and discussed its subject matter, and made written reply in the shape of majority and minority replies, as follows:

THE MAJORITY REPLY:

"WASHINGTON, July 14, 1862.

"TO THE PRESIDENT:

"The undersigned, Representatives of Kentucky, Virginia, Missouri, and Maryland, in the two Houses of Congress, have listened to your address with the profound sensibility naturally inspired by the high source from which it emanates, the earnestness which marked its delivery, and the overwhelming importance of the subject of which it treats. We have given it a most respectful consideration, and now lay before you our response. We regret that want of time has not permitted us to make it more perfect.

"We have not been wanting, Mr. President, in respect to you, and in devotion to the Constitution and the Union. We have not been indifferent to the great difficulties surrounding you, compared with which all former National troubles have been but as the summer cloud; and we have freely given you our sympathy and support. Repudiating the dangerous heresies of the Secessionists, we believed, with you, that the War on their part is aggressive and wicked, and the objects for which it was to be prosecuted on ours, defined by your Message at the opening of the present Congress, to be such as all good men should approve.

"We have not hesitated to vote all supplies necessary to carry it on vigorously. We have voted all the men and money you have asked for, and even more; we have imposed onerous taxes on our people, and they are paying them with cheerfulness and alacrity; we have encouraged enlistments, and sent to the field many of our best men; and some of our number have offered their persons to the enemy as pledges of their sincerity and devotion to the Country.

"We have done all this under the most discouraging circumstances, and in the face of measures most distasteful to us and injurious to the interests we represent, and in the hearing of doctrines avowed by those who claim to be your friends, must be abhorrent to us and our constituents.

"But, for all this, we have never faltered, nor shall we as long as we have a Constitution to defend and a Government which protects us. And we are ready for renewed efforts, and even greater sacrifices, yea, any sacrifice, when we are satisfied it is required to preserve our admirable form of Government and the priceless blessings of Constitutional Liberty.

"A few of our number voted for the Resolution recommended by your Message of the 6th of March last, the greater portion of us did not, and we will briefly state the prominent reasons which influenced our action.

"In the first place, it proposed a radical change of our social system, and was hurried through both Houses with undue haste, without reasonable time for consideration and debate, and with no time at all for consultation with our constituents, whose interests it deeply involved. It seemed like an interference by this Government with a question which peculiarly and exclusively belonged to our respective States, on which they had not sought advice or solicited aid.

"Many of us doubted the Constitutional power of this Government to make appropriations of money for the object designated, and all of us thought our finances were in no condition to bear the immense outlay which its adoption and faithful execution would impose upon the National Treasury. If we pause but a moment to think of the debt its acceptance would have entailed, we are appalled by its magnitude. The proposition was addressed to all the States, and embraced the whole number of Slaves.

"According to the census of 1860 there were then nearly four million Slaves in the Country; from natural increase they exceed that number now. At even the low average of \$300, the price fixed by the Emancipation Act for the Slaves of this District, and greatly below their real worth, their value runs up to the enormous sum of \$1,200,000,000; and if to that we add the cost of deportation and colonization, at \$100 each, which is but a fraction more than is actually paid—by the Maryland Colonization Society, we have \$400,000,000 more.

"We were not willing to impose a tax on our people sufficient to pay the interest on that sum, in addition to the vast and daily increasing debt already fixed upon them by exigencies of the War, and if we had been willing, the Country could not bear it. Stated in this form the proposition is nothing less than the deportation from the Country of \$1,600,000,000 worth of producing labor, and the substitution, in its place, of an interest-bearing debt of the same amount.

"But, if we are told that it was expected that only the States we represent would accept the proposition, we respectfully submit that even then it involves a sum too great for the financial ability of this Government at this time. According to the census of 1860:

	Slaves
Kentucky had	225,490
Maryland	87,188
Virginia	490,887
Delaware	1,798
Missouri	114,965
Tennessee	275,784
 Making in the whole	 1,196,112

At the same rate of valuation these would
amount to \$358,933,500

Add for deportation and colonization \$100 each
\$118,244,533

And we have the
enormous sum of \$478,038,133

"We did not feel that we should be justified in voting for a measure which, if carried out, would add this vast amount to our public debt at a moment when the Treasury was reeling under the enormous expenditure of the War.

"Again, it seemed to us that this Resolution was but the annunciation of a sentiment which could not or was not likely to be reduced to an actual tangible proposition. No movement was then made to provide and appropriate the funds required to carry it into effect; and we were not encouraged to believe that funds would be provided. And our belief has been fully justified by subsequent events.

"Not to mention other circumstances, it is quite sufficient for our purpose to bring to your notice the fact that, while this resolution was under consideration in the Senate, our colleague, the Senator from Kentucky, moved an amendment appropriating \$500,000 to the object therein designated, and it was voted down with great unanimity.

"What confidence, then, could we reasonably feel that if we committed ourselves to the policy it proposed, our constituents would reap the fruits of the promise held out; and on what ground could we, as fair men, approach them and challenge their support?

"The right to hold Slaves, is a right appertaining to all the States of this Union. They have the right to cherish or abolish the Institution, as their tastes or their interests may prompt, and no one is authorized to question the right or limit the enjoyment. And no one has more clearly affirmed that right than you have. Your Inaugural Address does you great honor in this

respect, and inspired the Country with confidence in your fairness and respect for the Law. Our States are in the enjoyment of that right.

"We do not feel called on to defend the Institution or to affirm it is one which ought to be cherished; perhaps, if we were to make the attempt, we might find that we differ even among ourselves. It is enough for our purpose to know that it is a right; and, so knowing, we did not see why we should now be expected to yield it.

"We had contributed our full share to relieve the Country at this terrible crisis; we had done as much as had been required of others in like circumstances; and we did not see why sacrifices should be expected of us from which others, no more loyal, were exempt. Nor could we see what good the Nation would derive from it.

"Such a sacrifice submitted to by us would not have strengthened the arm of this Government or weakened that of the Enemy. It was not necessary as a pledge of our Loyalty, for that had been manifested beyond a reasonable doubt, in every form, and at every place possible. There was not the remotest probability that the States we represent would join in the Rebellion, nor is there now, or of their electing to go with the Southern Section in the event of a recognition of the Independence of any part of the disaffected region.

"Our States are fixed unalterably in their resolution to adhere to and support the Union. They see no safety for themselves, and no hope for Constitutional Liberty, but by its preservation. They will, under no circumstances, consent to its dissolution; and we do them no more than justice when we assure you that, while the War is conducted to prevent that deplorable catastrophe, they will sustain it as long as they can muster a man, or command a dollar.

"Nor will they ever consent, in any event, to unite with the Southern Confederacy. The bitter fruits of the peculiar doctrines of that region will forever prevent them from placing their security and happiness in the custody of an association which has incorporated in its Organic Law the seeds of its own destruction.

"We cannot admit, Mr. President, that if we had voted for the Resolution in the Emancipation Message of March last, the War would now be substantially ended. We are unable to see how our action in this particular has given, or could give, encouragement to the Rebellion. The Resolution

has passed; and if there be virtue in it, it will be quite as efficacious as if we had voted for it.

"We have no power to bind our States in this respect by our votes here; and, whether we had voted the one way or the other, they are in the same condition of freedom to accept or reject its provisions.

"No, Sir, the War has not been prolonged or hindered by our action on this or any other measure. We must look for other causes for that lamented fact. We think there is not much difficulty, not much uncertainty, in pointing out others far more probable and potent in their agencies to that end.

"The Rebellion derives its strength from the Union of all classes in the Insurgent States; and while that Union lasts the War will never end until they are utterly exhausted. We know that, at the inception of these troubles, Southern society was divided, and that a large portion, perhaps a majority, were opposed to Secession. Now the great mass of Southern people are united.

"To discover why they are so, we must glance at Southern society, and notice the classes into which it has been divided, and which still distinguish it. They are in arms, but not for the same objects; they are moved to a common end, but by different and even inconsistent reasons.

"The leaders, which comprehend what was previously known as the State Rights Party, and is much the lesser class, seek to break down National Independence and set up State domination. With them it is a War against Nationality.

"The other class is fighting, as it supposes, to maintain and preserve its rights of Property and domestic safety, which it has been made to believe are assailed by this Government. This latter class are not Disunionists per se; they are so only because they have been made to believe that this Administration is inimical to their rights, and is making War on their domestic Institutions. As long as these two classes act together they will never assent to a Peace.

"The policy, then, to be pursued, is obvious. The former class will never be reconciled, but the latter may be. Remove their apprehensions; satisfy them that no harm is intended to them and their Institutions; that this Government is not making War on their rights of Property, but is simply defending its legitimate authority, and they will gladly return to their

allegiance as soon as the pressure of Military dominion imposed by the Confederate authority is removed from them.

"Twelve months ago, both Houses of Congress, adopting the spirit of your Message, then but recently sent in, declared with singular unanimity the objects of the War, and the Country instantly bounded to your side to assist you in carrying it on. If the spirit of that Resolution had been adhered to, we are confident that we should before now have seen the end of this deplorable conflict. But what have we seen?

"In both Houses of Congress we have heard doctrines subversive of the principles of the Constitution, and seen measure after measure, founded in substance on those doctrines, proposed and carried through, which can have no other effect than to distract and divide loyal men, and exasperate and drive still further from us and their duty the people of the rebellious States.

"Military officers, following these bad examples, have stepped beyond the just limits of their authority in the same direction, until in several instances you have felt the necessity of interfering to arrest them. And even the passage of the Resolution to which you refer has been ostentatiously proclaimed as the triumph of a principle which the people of the Southern States regard as ruinous to them. The effect of these measures was foretold, and may now be seen in the indurated state of Southern feeling.

"To these causes, Mr. President, and not to our omission to vote for the Resolution recommended by you, we solemnly believe we are to attribute the terrible earnestness of those in arms against the Government, and the continuance of the War. Nor do we (permit us to say, Mr. President, with all respect to you) agree that the Institution of Slavery is 'the lever of their power,' but we are of the opinion that 'the lever of their power' is the apprehension that the powers of a common Government, created for common and equal protection to the interests of all, will be wielded against the Institutions of the Southern States.

"There is one other idea in your address we feel called on to notice. After stating the fact of your repudiation of General Hunter's Proclamation, you add:

"Yet, in repudiating it, I gave dissatisfaction, if not offense, to many whose support the Country cannot afford to lose. And this is not the end of it. The pressure in this direction is still upon me and is increasing. By

conceding what I now ask, you can relieve me, and, much more, can relieve the Country, in this important point,'

"We have anxiously looked into this passage to discover its true import, but we are yet in painful uncertainty. How can we, by conceding what you now ask, relieve you and the Country from the increasing pressure to which you refer? We will not allow ourselves to think that the proposition is, that we consent to give up Slavery, to the end that the Hunter proclamation may be let loose on the Southern people, for it is too well known that we would not be parties to any such measure, and we have too much respect for you to imagine you would propose it.

"Can it mean that by sacrificing our interest in Slavery we appease the spirit that controls that pressure, cause it to be withdrawn, and rid the Country of the pestilent agitation of the Slavery question? We are forbidden so to think, for that spirit would not be satisfied with the liberation of 100,000 Slaves, and cease its agitation while 3,000,000 remain in bondage. Can it mean that by abandoning Slavery in our States we are removing the pressure from you and the Country, by preparing for a separation on the line of the Cotton States?

"We are forbidden so to think, because it is known that we are, and we believe that you are, unalterably opposed to any division at all. We would prefer to think that you desire this concession as a pledge of our support, and thus enable you to withstand a pressure which weighs heavily on you and the Country.

"Mr. President, no such sacrifice is necessary to secure our support. Confine yourself to your Constitutional authority; confine your subordinates within the same limits; conduct this War solely for the purpose of restoring the Constitution to its legitimate authority; concede to each State and its loyal citizens their just rights, and we are wedded to you by indissoluble ties. Do this, Mr. President, and you touch the American heart, and invigorate it with new hope. You will, as we solemnly believe, in due time restore Peace to your Country, lift it from despondency to a future of glory, and preserve to your countrymen, their posterity, and man, the inestimable treasure of a Constitutional Government.

"Mr. President, we have stated with frankness and candor the reasons on which we forbore to vote for the Resolution you have mentioned; but you have again presented this proposition, and appealed to us with an

earnestness and eloquence which have not failed to impress us, to 'consider it, and at the least to commend it to the consideration of our States and people.'

"Thus appealed to by the Chief Magistrate of our beloved Country, in the hour of its greatest peril, we cannot wholly decline. We are willing to trust every question relating to their interest and happiness to the consideration and ultimate judgment of our own people.

"While differing from you as to the necessity of Emancipating the Slaves of our States as a means of putting down the Rebellion, and while protesting against the propriety of any extra-territorial interference to induce the people of our States to adopt any particular line of policy on a subject which peculiarly and exclusively belongs to them, yet, when you and our brethren of the Loyal States sincerely believe that the retention of Slavery by us is an obstacle to Peace and National harmony, and are willing to contribute pecuniary aid to compensate our States and people for the inconveniences produced by such a change of system, we are not unwilling that our people shall consider the propriety of putting it aside.

"But we have already said that we regard this Resolution as the utterance of a sentiment, and we had no confidence that it would assume the shape of a tangible practical proposition, which would yield the fruits of the sacrifice it required. Our people are influenced by the same want of confidence, and will not consider the proposition in its present impalpable form. The interest they are asked to give up is, to them, of immense importance, and they ought not to be expected even to entertain the proposal until they are assured that when they accept it their just expectations will not be frustrated.

"We regard your plan as a proposition from the Nation to the States to exercise an admitted Constitutional right in a particular manner, and yield up a valuable interest. Before they ought to consider the proposition, it should be presented in such a tangible, practical, efficient shape, as to command their confidence that its fruits are contingent only upon their acceptance. We cannot trust anything to the contingencies of future legislation.

"If Congress, by proper and necessary legislation, shall provide sufficient funds and place them at your disposal to be applied by you to the payment of any of our States, or the citizens thereof, who shall adopt the

Abolishment of Slavery, either gradual or immediate, as they may determine, and the expense of deportation and colonization of the liberated Slaves, then will our States and people take this proposition into careful consideration, for such decision as in their judgment is demanded by their interest, their honor, and their duty to the whole Country. We have the honor to be, with great respect,

"C. A. WICKLIFFE, Ch'man,
CHAS. B. CALVERT,
GARRETT DAVIS,
C. L. L. LEARY,
R. WILSON,
EDWIN H. WEBSTER,
J. J. CRITTENDEN,
R. MALLORY,
JOHN S. CARLILE,
AARON HARDING,
J. W. CRISFIELD,
JAMES S. ROLLINS,
J. S. JACKSON,
J. W. MENZIES,
H. GRIDER,
THOMAS L. PRICE,
JOHN S. PHELPS,
G. W. DUNLAP,
FRANCIS THOMAS, WILLIAM A. HALL."

THE MINORITY REPLY.

"WASHINGTON, July 15, 1863.

"MR. PRESIDENT:—The undersigned, members of Congress from the Border States, in response to your address of Saturday last, beg leave to say that they attended a meeting, on the same day the address was delivered, for the purpose of considering the same. The meeting appointed a Committee to report a response to your address. That report was made on yesterday, and the action of the majority indicated clearly that the response, or one in substance the same, would be adopted and presented to you.

"Inasmuch as we cannot, consistently with our own sense of duty to the Country, under the existing perils which surround us, concur in that response, we feel it to be due to you and to ourselves to make to you a brief and candid answer over our own signatures.

"We believe that the whole power of the Government, upheld and sustained by all the influences and means of all loyal men in all Sections, and of all Parties, is essentially necessary to put down the Rebellion and preserve the Union and the Constitution. We understand your appeal to us to have been made for the purpose of securing this result.

"A very large portion of the People in the Northern States believe that Slavery is the 'lever-power of the Rebellion.' It matters not whether this belief be well-founded or not. The belief does exist, and we have to deal with things as they are, and not as we would have them be.

"In consequence of the existence of this belief, we understand that an immense pressure is brought to bear for the purpose of striking down this Institution through the exercise of Military authority. The Government cannot maintain this great struggle if the support and influence of the men who entertain these opinions be withdrawn. Neither can the Government hope for early success if the support of that element called "Conservative" be withdrawn.

"Such being the condition of things, the President appeals to the Border-State men to step forward and prove their patriotism by making the first sacrifice. No doubt, like appeals have been made to extreme men in the North to meet us half-way, in order that the whole moral, political, pecuniary, and physical force of the Nation may be firmly and earnestly united in one grand effort to save the Union and the Constitution.

"Believing that such were the motives that prompted your Address, and such the results to which it looked, we cannot reconcile it to our sense of duty, in this trying hour, to respond in a spirit of fault-finding or querulousness over the things that are past.

"We are not disposed to seek for the cause of present misfortunes in the errors and wrongs of others who now propose to unite with us in a common purpose.

"But, on the other hand, we meet your address in the spirit in which it was made, and, as loyal Americans, declare to you and to the World that there is no sacrifice that we are not ready to make to save the Government

and institutions of our fathers. That we, few of us though there may be, will permit no man, from the North or from the South, to go further than we in the accomplishment of the great work before us. That, in order to carry out these views, we will, so far as may be in our power, ask the people of the Border States calmly, deliberately, and fairly to consider your recommendations.

"We are the more emboldened to assume this position from the fact, now become history, that the leaders of the Southern Rebellion have offered to abolish Slavery among them as a condition to foreign intervention in favor of their Independence as a Nation.

"If they can give up Slavery to destroy the Union, we can surely ask our people to consider the question of Emancipation to save the Union.

"With great respect, your obedient servants,

"JOHN W. NOELL,
"SAMUEL L. CASEY,
"GEORGE P. FISHER,
"A. J. CLEMENTS,
"WILLIAM G. BROWN,
"JACOB B. BLAIR, "W. T. WILLEY."

[The following separate replies, subsequently made, by Representative Maynard of Tennessee, and Senator Henderson of Missouri, are necessarily given to complete this part of the Border State record.]

MR. MAYNARD'S REPLY.

"HOUSE OF REPRESENTATIVES, July 16, 1862.

"SIR:—The magnitude and gravity of the proposition submitted by you to Representatives from the Slave States would naturally occasion diversity, if not contrariety, of opinion. You will not, therefore, be surprised that I have not been able to concur in view with the majority of them.

"This is attributable, possibly, to the fact that my State is not a Border State, properly so called, and that my immediate constituents are not yet disenthralled from the hostile arms of the Rebellion. This fact is a physical

obstacle in the way of my now submitting to their consideration this, or any other proposition looking to political action, especially such as, in this case, would require a change in the Organic Law of the State.

"But do not infer that I am insensible to your appeal. I am not; you are surrounded with difficulties far greater than have embarrassed any of your predecessors. You need the support of every American citizen, and you ought to have it—active, zealous and honest. The union of all Union men to aid you in preserving the Union, is the duty of the time. Differences as to policy and methods must be subordinated to the common purpose.

"In looking for the cause of this Rebellion, it is natural that each Section and each Party should ascribe as little blame as possible to itself, and as much as possible to its opponent Section and Party. Possibly you and I might not agree on a comparison of our views. That there should be differences of opinion as to the best mode of conducting our Military operations, and the best men to lead our Armies, is equally natural. Contests on such questions weaken ourselves and strengthen our enemies. They are unprofitable, and possibly unpatriotic. Somebody must yield, or we waste our strength in a contemptible struggle among ourselves.

"You appeal to the loyal men of the Slave States to sacrifice something of feeling and a great deal of interest. The sacrifices they have already made and the sufferings they have endured give the best assurance that the appeal will not have been made in vain. He who is not ready to yield all his material interests, and to forego his most cherished sentiments and opinions for the preservation of his Country, although he may have periled his life on the battle-field in her defense, is but half a Patriot. Among the loyal people that I represent, there are no half-patriots.

"Already the Rebellion has cost us much, even to our undoing; we are content, if need be, to give up the rest, to suppress it. We have stood by you from the beginning of this struggle, and we mean to stand by you, God willing, till the end of it.

"I did not vote for the Resolution to which you allude, solely for the reason that I was absent at the Capital of my own State. It is right.

"Should any of the Slave States think proper to terminate that Institution, as several of them, I understand, or at least some of their citizens propose, justice and a generous comity require that the Country should interpose to

aid in lessening the burden, public and private, occasioned by so radical a change in its social and industrial relations.

"I will not now speculate upon the effect, at home or abroad, of the adoption of your policy, nor inquire what action of the Rebel leaders has rendered something of the kind important. Your whole administration gives the highest assurance that you are moved, not so much from a desire to see all men everywhere made free, as from a higher desire to preserve free institutions for the benefit of men already free; not to make Slaves, Freeman, but to prevent Freeman from being made Slaves; not to destroy an Institution, which a portion of us only consider bad, but to save institutions which we all alike consider good. I am satisfied you would not ask from any of your fellow-citizens a sacrifice not, in your judgment, imperatively required by the safety of the Country.

"This is the spirit of your appeal, and I respond to it in the same spirit.

"I am, very respectfully, your obedient servant,

"HORACE MAYNARD.

"To the PRESIDENT."

SENATOR HENDERSON'S REPLY.

"WASHINGTON CITY, July 21, 1862.

"MR. PRESIDENT:—The pressure of business in the Senate during the last few days of the session prevented my attendance at the meeting of the Border-State members, called to consider your proposition in reference to gradual emancipation in our States.

"It is for this reason only, and not because I fail to appreciate their importance or properly respect your suggestions, that my name does not appear to any of the several papers submitted in response. I may also add that it was my intention, when the subject came up practically for consideration in the Senate, to express fully my views in regard to it. This of course would have rendered any other response unnecessary. But the want of time to consider the matter deprived me of that opportunity, and, lest now my silence be misconstrued, I deem it proper to say to you that I am by no means indifferent to the great questions so earnestly, and as I believe so honestly, urged by you upon our consideration.

"The Border States, so far, are the chief sufferers by this War, and the true Union men of those States have made the greatest sacrifices for the preservation of the Government. This fact does not proceed from mismanagement on the part of the Union authorities, or a want of regard for our people, but it is the necessary result of the War that is upon us.

"Our States are the battle-fields. Our people, divided among themselves, maddened by the struggle, and blinded by the smoke of battle, invited upon our soil contending armies—the one to destroy the Government, the other to maintain it. The consequence to us is plain. The shock of the contest upturns Society and desolates the Land. We have made sacrifices, but at last they were only the sacrifices demanded by duty, and unless we are willing to make others, indeed any that the good of the Country, involved in the overthrow of Treason, may expect at our hands, our title to patriotism is not complete.

"When you submitted your proposition to Congress, in March last, 'that the United States ought to co-operate with any State which may adopt a gradual abolishment of Slavery, giving to such State pecuniary aid, to be used by such State in its discretion, to compensate for the inconveniences, public and private, produced by such change of system,' I gave it a most cheerful support, and I am satisfied it would have received the approbation of a large majority of the Border States delegations in both Branches of Congress, if, in the first place, they had believed the War, with its continued evils—the most prominent of which, in a material point of view, is its injurious effect on the Institution of Slavery in our States—could possibly have been protracted for another twelve months; and if, in the second place, they had felt assured that the party having the majority in Congress would, like yourself, be equally prompt in practical action as in the expression of a sentiment.

"While scarcely any one doubted your own sincerity in the premises, and your earnest wish speedily to terminate the War, you can readily conceive the grounds for difference of opinion where conclusions could only be based on conjecture.

"Believing, as I did, that the War was not so near its termination as some supposed, and feeling disposed to accord to others the same sincerity of purpose that I should claim for myself under similar circumstances, I voted

for the proposition. I will suppose that others were actuated by no sinister motives.

"In doing so, Mr. President, I desire to be distinctly understood by you and by my constituents. I did not suppose at the time that I was personally making any sacrifice by supporting the Resolution, nor that the people of my State were called upon to make any sacrifices, either in considering or accepting the proposition, if they saw fit.

"I agreed with you in the remarks contained in the Message accompanying the Resolution, that 'the Union must be preserved, and hence all indispensable means must be employed. * * * War has been and continues to be an indispensable means to this end. A practical reacknowledgment of the National authority would render the War unnecessary, and it would at once cease. If, however, resistance continues, the War must also continue; and it is impossible to foresee all the incidents which may attend and all the ruin which may follow it.'

"It is truly 'impossible' to foresee all the evils resulting from a War so stupendous as the present. I shall be much rejoiced if something more dreadful than the sale of Freedom to a few Slaves in the Border States shall not result from it.

"If it closes with the Government of our Fathers secure, and Constitutional Liberty in all its purity guaranteed to the White man, the result will be better than that having a place in the fears of many good men at present, and much better than the past history of such revolutions can justify us in expecting.

"In this period of the Nation's distress, I know of no human institution too sacred for discussion; no material interest belonging to the citizen that he should not willingly place upon the altar of his Country, if demanded by the public good.

"The man who cannot now sacrifice Party and put aside selfish considerations is more than half disloyal. Such a man does not deserve the blessings of good government. Pride of opinion, based upon Sectional jealousies, should not be permitted to control the decision of any political question. These remarks are general, but apply with peculiar force to the People of the Border States at present.

"Let us look at our condition. A desolating War is upon us. We cannot escape it if we would. If the Union Armies were to-day withdrawn from the

Border States without first crushing the Rebellion in the South, no rational man can doubt for a moment that the adherents of the Union Cause in those States would soon be driven in exile from their homes by the exultant Rebels, who have so long hoped to return and take vengeance upon us.

"The People of the Border States understand very well the unfriendly and selfish spirit exercised toward them by the leaders of this Cotton-State Rebellion, beginning some time previous to its outbreak. They will not fail to remember their insolent refusal to counsel with us, and their haughty assumption of responsibility upon themselves for their misguided action.

"Our people will not soon forget that, while declaiming against Coercion, they closed their doors against the exportation of Slaves from the Border States into the South, with the avowed purpose of forcing us into Rebellion through fears of losing that species of Property. They knew very well the effect to be produced on Slavery by a Civil War, especially in those States into which hostile Armies might penetrate, and upon the soil of which the great contests for the success of Republican Government were to be decided.

"They wanted some intermediate ground for the conflict of arms-territory where the population would be divided. They knew, also, that by keeping Slavery in the Border States the mere 'friction and abrasion' to which you so appropriately allude, would keep up a constant irritation, resulting necessarily from the frequent losses to which the owners would be subjected.

"They also calculated largely, and not without reason, upon the repugnance of Non-Slaveholders in those States to a Free Negro population. In the meantime they intended persistently to charge the overthrow of Slavery to be the object of the Government, and hostility to this Institution the origin of the War. By this means the unavoidable incidents of the strife might easily be charged as the settled purposes of the Government.

"Again, it was well understood, by these men, that exemplary conduct on the part of every officer and soldier employed by the Government could not in the nature of things be expected, and the hope was entertained, upon the most reasonable grounds, that every commission of wrong and every omission of duty would produce a new cause for excitement and a new incentive to Rebellion.

"By these means the War was to be kept in the Border States, regardless of our interests, until an exhausted Treasury should render it necessary to send the tax-gatherer among our people, to take the little that might be left them from the devastations of War.

"They then expected a clamor for Peace by us, resulting in the interference of France and England, whose operatives in the meantime would be driven to want, and whose aristocracy have ever been ready to welcome a dissolution of the American Union.

"This cunningly-devised plan for securing a Gulf-Confederacy, commanding the mouths of the great Western rivers, the Gulf of Mexico, and the Southern Atlantic ocean, with their own territory unscathed by the horrors of war, and surrounded by the Border States, half of whose population would be left in sympathy with them, for many years to come, owing to the irritations to which I have alluded, has, so far, succeeded too well.

"In Missouri they have already caused us to lose a third or more of the Slaves owned at the time of the last census. In addition to this, I can make no estimate of the vast amount of property of every character that has been destroyed by Military operations in the State. The loss from general depreciation of values, and the utter prostration of every business-interest of our people, is wholly beyond calculation.

"The experience of Missouri is but the experience of other Sections of the Country similarly situated. The question is therefore forced upon us, 'How long is this War to continue; and, if continued, as it has been, on our soil, aided by the Treason and folly of our own citizens, acting in concert with the Confederates, how long can Slavery, or, if you please, any other property-interest, survive in our States?'

"As things now are, the people of the Border-States yet divided, we cannot expect an immediate termination of the struggle, except upon condition of Southern Independence, losing thereby control of the lower Mississippi. For this, we in Missouri are not prepared, nor are we prepared to become one of the Confederate States, should the terrible calamity of Dissolution occur.

"This, I presume, the Union men of Missouri would resist to the death. And whether they should do so or not, I will not suppose for an instant, that the Government of the United States would, upon any condition, submit to

the loss of territory so essential to its future commercial greatness as is the State of Missouri.

"But should all other reasons fail to prevent such a misfortune to our people of Missouri, there is one that cannot fail. The Confederates never wanted us, and would not have us. I assume, therefore, that the War will not cease, but will be continued until the Rebellion shall be overcome. It cannot and will not cease, so far as the people of Missouri are concerned, except upon condition of our remaining in the Union, and the whole West will demand the entire control of the Mississippi river to the Gulf.

"Our interest is therefore bound up with the interests of those States maintaining the Union, and especially with the great States of the West that must be consulted in regard to the terms of any Peace that may be suggested, even by the Nations of Europe, should they at any time unfortunately depart from their former pacific policy and determine to intervene in our affairs.

"The War, then, will have to be continued until the Union shall be practically restored. In this alone consists the future safety of the Border-States themselves. A separation of the Union is ruinous to them. The preservation of the Union can only be secured by a continuation of the War. The consequences of that continuation may be judged of by the experience of the last twelve months. The people of my State are as competent to pass judgment in the premises as I am. I have every confidence in their intelligence, their honesty, and their patriotism.

"In your own language, the proposition you make 'sets up no claim of a right by Federal authority to interfere with Slavery within State limits,' referring, as it does, the absolute control of the subject in each case to the State and its people immediately interested. It is proposed as a matter of perfectly free choice with them.

"In this view of the subject I can frankly say to you that, personally, I never could appreciate the objections so frequently urged against the proposition. If I understood you properly, it was your opinion, not that Slavery should be removed in order to secure our loyalty to the Government, for every personal act of your administration precludes such an inference, but you believe that the peculiar species of Property was in imminent danger from the War in which we were engaged, and that common justice demanded remuneration for the loss of it.

"You then believe, and again express the opinion, that the peculiar nature of the contest is such that its loss is almost inevitable, and lest any pretext for a charge of injustice against the Government be given to its enemies, you propose to extend to the people of those States standing by the Union, the choice of payment for their Slaves or the responsibility of loss, should it occur, without complaint against the Government.

"Placing the matter in this light, (a mere remuneration for losses rendered inevitable by the casualties of War), the objection of a Constitutional character may be rendered much less formidable in the minds of Northern Representatives whose constituents will have to share in the payment of the money; and, so far as the Border States are concerned, this objection should be most sparingly urged, for it being a matter entirely of their 'own free choice,' in case of a desire to accept, no serious argument will likely be urged against the receipt of the money, or a fund for Colonization.

"But, aside from the power derived from the operations of war, there may be found numerous precedents in the legislation of the past, such as grants of land and money to the several States for specified objects deemed worthy by the Federal Congress. And in addition to this may be cited a deliberate opinion of Mr. Webster upon this very subject, in one of the ablest arguments of his life.

"I allude to this question of power merely in vindication of the position assumed by me in my vote for the Resolution of March last.

"In your last communication to us, you beg of us 'to commend this subject to the consideration of our States and people.' While I entirely differ with you in the opinion expressed, that had the members from the Border States approved of your Resolution of March last 'the War would now be substantially ended,' and while I do not regard the suggestion 'as one of the most potent and swift means of ending' the War, I am yet free to say that I have the most unbounded confidence in your sincerity of purpose in calling our attention to the dangers surrounding us.

"I am satisfied that you appreciate the troubles of the Border States, and that your suggestions are intended for our good. I feel the force of your urgent appeal, and the logic of surrounding circumstances brings conviction even to an unwilling believer.

"Having said that, in my judgment, you attached too much importance to this measure as a means for suppressing the Rebellion, it is due to you that I

shall explain.

"Whatever may be the status of the Border States in this respect, the War cannot be ended until the power of the Government is made manifest in the seceded States. They appealed to the sword; give them the sword. They asked for War; let them see its evils on their own soil.

"They have erected a Government, and they force obedience to its behests. This structure must be destroyed; this image, before which an unwilling People have been compelled to bow, must be broken. The authority of the Federal Government must be felt in the heart of the rebellious district. To do this, let armies be marched upon them at once, and let them feel what they have inflicted on us in the Border. Do not fear our States; we will stand by the Government in this work.

"I ought not to disguise from you or the people of my State, that personally I have fixed and unalterable opinions on the subject of your communication. Those opinions I shall communicate to the people in that spirit of frankness that should characterize the intercourse of the Representative with his constituents.

"If I were to-day the owner of the lands and Slaves of Missouri, your proposition, so far as that State is concerned, would be immediately accepted. Not a day would be lost. Aside from public considerations, which you suppose to be involved in the proposition, and which no Patriot, I agree, should disregard at present, my own personal interest would prompt favorable and immediate action.

"But having said this, it is proper that I say something more. The Representative is the servant and not the master of the People. He has no authority to bind them to any course of action, or even to indicate what they will, or will not, do when the subject is exclusively theirs and not his.

"I shall take occasion, I hope honestly, to give my views of existing troubles and impending dangers, and shall leave the rest to them, disposed, as I am, rather to trust their judgment upon the case stated than my own, and at the same time most cheerfully to acquiesce in their decision.

"For you, personally, Mr. President, I think I can pledge the kindest considerations of the people of Missouri, and I shall not hesitate to express the belief that your recommendation will be considered by them in the same spirit of kindness manifested by you in its presentation to us, and that their

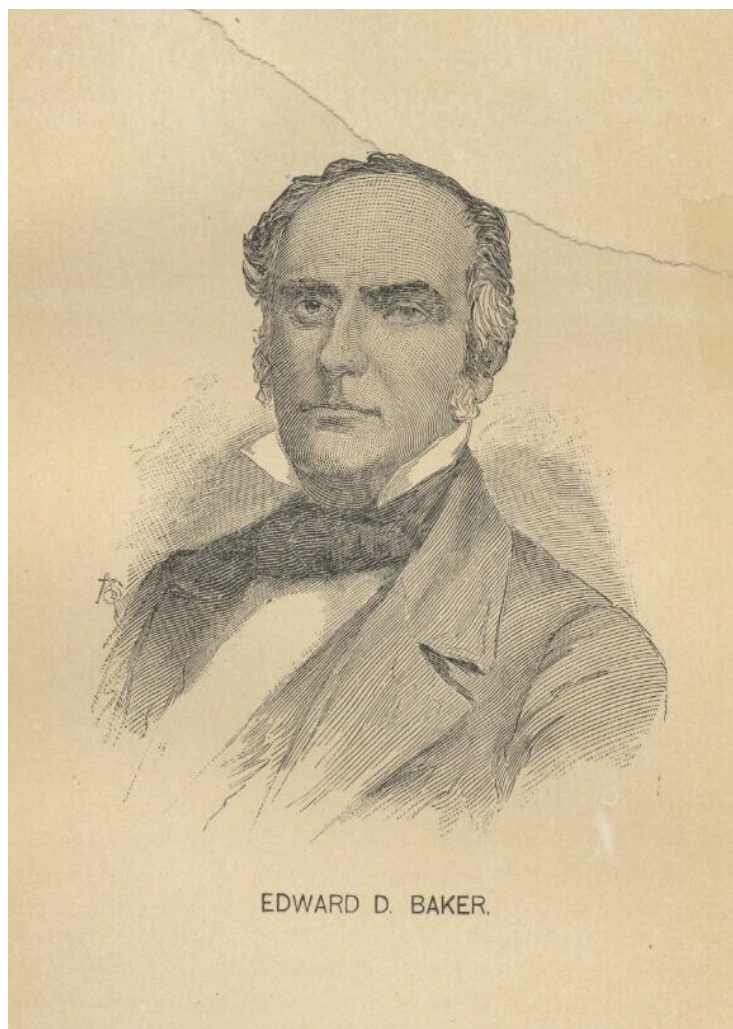
decision will be such as is demanded 'by their interests, their honor, and their duty to the whole Country.'

"I am very respectfully, your obedient servant,

"J. B. HENDERSON.

"To his Excellency,

"A. LINCOLN, PRESIDENT."



EDWARD D. BAKER.

CHAPTER XVIII.

FREEDOM PROCLAIMED TO ALL.

While mentally revolving the question of Emancipation—now, evidently "coming to a head,"—no inconsiderable portion of Mr. Lincoln's thoughts centered upon, and his perplexities grew out of, his assumption that the "physical difference" between the Black and White—the African and Caucasian races, precluded the idea of their living together in the one land as Free men and equals.

In his speeches during the great Lincoln-Douglas debate we have seen this idea frequently advanced, and so, in his later public utterances as President.

As in his appeal to the Congressional delegations from the Border-States on the 12th of July, 1862, he had held out to them the hope that "the Freed people will not be so reluctant to go" to his projected colony in South America, when their "numbers shall be large enough to be company and encouragement for one another," so, at a later date—on the 14th of August following—he appealed to the Colored Free men themselves to help him found a proposed Negro colony in New Granada, and thus aid in the solution of this part of the knotty problem, by the disenthralment of the new race from its unhappy environments here.

The substance of the President's interesting address, at the White House, to the delegation of Colored men, for whom he had sent, was thus reported at the time:

"Having all been seated, the President, after a few preliminary observations, informed them that a sum of money had been appropriated by Congress, and placed at his disposition, for the purpose of aiding the colonization in some country of the people, or a portion of them, of African descent, thereby making it his duty, as it had for a long time been his

inclination, to favor that cause; and why, he asked, should the people of your race be colonized, and where?

"Why should they leave this Country? This is perhaps the first question for proper consideration. You and we are different races. We have between us a broader difference than exists between almost any other two races. Whether it is right or wrong I need not discuss; but this physical difference is a great disadvantage to us both, as I think. Your race suffers very greatly, many of them by living among us, while ours suffers from your presence. In a word we suffer on each side. If this is admitted, it affords a reason, at least, why we should be separated. You here are Freemen, I suppose?

"A VOICE—Yes, Sir.

"THE PRESIDENT—Perhaps you have long been free, or all your lives. Your race are suffering, in my judgment, the greatest wrong inflicted on any people. But even when you cease to be Slaves, you are yet far removed from being placed on an equality with the White race. You are cut off from many of the advantages which the other race enjoys. The aspiration of men is to enjoy equality with the best when free; but on this broad continent not a single man of your race is made the equal of a single man of ours. Go where you are treated the best, and the ban is still upon you. I do not propose to discuss this, but to present it as a fact, with which we have to deal. I cannot alter it if I would. It is a fact about which we all think and feel alike, I and you. We look to our condition.

"Owing to the existence of the two races on this continent, I need not recount to you the effects upon White men, growing out of the institution of Slavery. I believe in its general evil effects on the White race. See our present condition—the Country engaged in War! our white men cutting one another's throats—none knowing how far it will extend—and then consider what we know to be the truth. But for your race among us there could not be War, although many men engaged on either side do not care for you one way or the other. Nevertheless, I repeat, without the institution of Slavery, and the Colored race as a basis, the War could not have an existence. It is better for us both, therefore, to be separated.

"I know that there are Free men among you who, even if they could better their condition, are not as much inclined to go out of the Country as those who, being Slaves, could obtain their Freedom on this condition. I suppose one of the principal difficulties in the way of colonization is that

the free colored man cannot see that his comfort would be advanced by it. You may believe that you can live in Washington, or elsewhere in the United States, the remainder of your life; perhaps more so than you can in any foreign country, and hence you may come to the conclusion that you have nothing to do with the idea of going to a foreign country.

"This is, (I speak in no unkind sense) an extremely selfish view of the case. But you ought to do something to help those who are not so fortunate as yourselves. There is an unwillingness on the part of our People, harsh as it may be, for you free Colored people to remain with us. Now if you could give a start to the White people you would open a wide door for many to be made free. If we deal with those who are not free at the beginning, and whose intellects are clouded by Slavery, we have very poor material to start with.

"If intelligent Colored men, such as are before me, could move in this matter, much might be accomplished. It is exceedingly important that we have men at the beginning capable of thinking as White men, and not those who have been systematically oppressed. There is much to encourage you.

"For the sake of your race you should sacrifice something of your present comfort for the purpose of being as grand in that respect as the White people. It is a cheering thought throughout life, that something can be done to ameliorate the condition of those who have been subject to the hard usages of the World. It is difficult to make a man miserable while he feels he is worthy of himself and claims kindred to the great God who made him.

"In the American Revolutionary War, sacrifices were made by men engaged in it, but they were cheered by the future. General Washington himself endured greater physical hardships than if he had remained a British subject, yet he was a happy man, because he was engaged in benefiting his race, in doing something for the children of his neighbors, having none of his own.

"The Colony of Liberia has been in existence a long time. In a certain sense it is a success. The old President of Liberia, Roberts, has just been with me the first time I ever saw him. He says they have, within the bounds of that Colony, between three and four hundred thousand people, or more than in some of our old States, such as Rhode Island, or Delaware, or in some of our newer States, and less than in some of our larger ones. They are not all American colonists or their descendants. Something less than 12,000

have been sent thither from this Country. Many of the original settlers have died, yet, like people elsewhere, their offspring outnumber those deceased.

"The question is, if the Colored people are persuaded to go anywhere, why not there? One reason for unwillingness to do so is that some of you would rather remain within reach of the country of your nativity. I do not know how much attachment you may have toward our race. It does not strike me that you have the greatest reason to love them. But still you are attached to them at all events.

"The place I am thinking about having for a colony, is in Central America. It is nearer to us than Liberia—not much more than one-fourth as far as Liberia, and within seven days' run by steamers. Unlike Liberia, it is a great line of travel—it is a highway. The country is a very excellent one for any people, and with great natural resources and advantages, and especially because of the similarity of climate with your native soil, thus being suited to your physical condition.

"The particular place I have in view, is to be a great highway from the Atlantic or Caribbean Sea to the Pacific Ocean, and this particular place has all the advantages for a colony. On both sides there are harbors among the finest in the World. Again, there is evidence of very rich coal mines. A certain amount of coal is valuable in any country. Why I attach so much importance to coal is, it will afford an opportunity to the inhabitants for immediate employment till they get ready to settle permanently in their homes.

"If you take colonists where there is no good landing, there is a bad show; and so, where there is nothing to cultivate, and of which to make a farm. But if something is started so that you can get your daily bread as soon as you reach there, it is a great advantage. Coal land is the best thing I know of, with which to commence an enterprise.

"To return—you have been talked to upon this subject, and told that a speculation is intended by gentlemen who have an interest in the country, including the coal mines. We have been mistaken all our lives if we do not know Whites, as well as Blacks, look to their self-interest. Unless among those deficient of intellect, everybody you trade with makes something. You meet with these things here and everywhere. If such persons have what will be an advantage to them, the question is, whether it cannot be made of advantage to you?

"You are intelligent, and know that success does not as much depend on external help, as on self-reliance. Much, therefore, depends upon yourselves. As to the coal mines, I think I see the means available for your self-reliance. I shall, if I get a sufficient number of you engaged, have provision made that you shall not be wronged. If you will engage in the enterprise, I will spend some of the money intrusted to me. I am not sure you will succeed. The Government may lose the money, but we cannot succeed unless we try; but we think, with care, we can succeed.

"The political affairs in Central America are not in quite as satisfactory condition as I wish. There are contending factions in that quarter; but it is true, all the factions are agreed alike on the subject of colonization, and want it; and are more generous than we are here. To your Colored race they have no objection. Besides, I would endeavor to have you made equals, and have the best assurance that you should be the equals of the best.

"The practical thing I want to ascertain is, whether I can get a number of able-bodied men, with their wives and children, who are willing to go, when I present evidence of encouragement and protection. Could I get a hundred tolerably intelligent men, with their wives and children, and able to 'cut their own fodder' so to speak? Can I have fifty? If I could find twenty-five able-bodied men, with a mixture of women and children—good things in the family relation, I think I could make a successful commencement.

"I want you to let me know whether this can be done or not. This is the practical part of my wish to see you. These are subjects of very great importance—worthy of a month's study, of a speech delivered in an hour. I ask you, then, to consider seriously, not as pertaining to yourselves merely, nor for your race, and ours, for the present time, but as one of the things, if successfully managed, for the good of mankind—not confined to the present generation, but as:

*'From age to age descends the lay
To millions yet to be,
Till far its echoes roll away
Into eternity.'"*

President Lincoln's well-meant colored colonization project, however, fell through, owing partly to opposition to it in Central America, and partly

to the very natural and deeply-rooted disinclination of the Colored free men to leave the land of their birth.

Meanwhile, limited Military Emancipation of Slaves was announced and regulated, on the 22d July, 1862, by the following Executive Instructions, which were issued from the War Department by order of the President—the issue of which was assigned by Jefferson Davis as one reason for his Order of August 1, 1862, directing "that the commissioned officers of Pope's and Steinwehr's commands be not entitled, when captured, to be treated as soldiers and entitled to the benefit of the cartel of exchange:"

"WAR DEPARTMENT,
"WASHINGTON, D.C., July 22, 1862.

"First. Ordered that Military Commanders within the States of Virginia, North Carolina, Georgia, Florida, Alabama, Mississippi, Louisiana, Texas, and Arkansas, in an orderly manner seize and use any property, real or personal, which may be necessary or convenient for their several commands, for supplies, or for other Military purposes; and that while property may be destroyed for proper Military objects, none shall be destroyed in wantonness or malice.

"Second. That Military and Naval Commanders shall employ as laborers, within and from said States, so many Persons of African descent as can be advantageously used for Military or Naval purposes, giving them reasonable wages for their labor.

"Third. That, as to both property, and Persons of African descent, accounts shall be kept sufficiently accurate and in detail to show quantities and amounts, and from whom both property and such Persons shall have come, as a basis upon which compensation can be made in proper cases; and the several departments of this Government shall attend to and perform their appropriate parts towards the execution of these orders.

"By Order of the President:
"EDWIN M. STANTON,
"Secretary of War."

On the 9th of August, 1862, Major General McClellan promulgated the Executive Order of July 22, 1862, from his Headquarters at Harrison's

Landing, Va., with certain directions of his own, among which were the following:

"Inhabitants, especially women and children, remaining peaceably at their homes, must not be molested; and wherever commanding officers find families peculiarly exposed in their persons or property to marauding from this Army, they will, as heretofore, so far as they can do with safety and without detriment to the service, post guards for their protection.

"In protecting private property, no reference is intended to Persons held to service or labor by reason of African Descent. Such Persons will be regarded by this Army, as they heretofore have been, as occupying simply a peculiar legal status under State laws, which condition the Military authorities of the United States are not required to regard at all in districts where Military operations are made necessary by the rebellious action of the State governments.

"Persons subject to suspicion of hostile purposes, residing or being near our Forces, will be, as heretofore, subject to arrest and detention, until the cause or necessity is removed. All such arrested parties will be sent, as usual, to the Provost-Marshal General, with a statement of the facts in each case.

"The General Commanding takes this occasion to remind the officers and soldiers of this Army that we are engaged in supporting the Constitution and the Laws of the United States and suppressing Rebellion against their authority; that we are not engaged in a War of rapine, revenge, or subjugation; that this is not a contest against populations, but against armed forces and political organizations; that it is a struggle carried on with the United States, and should be conducted by us upon the highest principles known to Christian civilization.

"Since this Army commenced active operations, Persons of African descent, including those held to service or labor under State laws, have always been received, protected, and employed as laborers at wages. Hereafter it shall be the duty of the Provost-Marshal General to cause lists to be made of all persons of African descent employed in this Army as laborers for Military purposes—such lists being made sufficiently accurate and in detail to show from whom such persons shall have come.

"Persons so subject and so employed have always understood that after being received into the Military service of the United States, in any

capacity, they could never be reclaimed by their former holders. Except upon such understanding on their part, the order of the President, as to this class of Persons, would be inoperative. The General Commanding therefore feels authorized to declare to all such employees, that they will receive permanent Military protection against any compulsory return to a condition of servitude."

Public opinion was now rapidly advancing, under the pressure of Military necessity, and the energetic efforts of the immediate Emancipationists, to a belief that Emancipation by Presidential Proclamation would be wise and efficacious as an instrumentality toward subduing the Rebellion; that it must come, sooner or later—and the sooner, the better.

Indeed, great fault was found, by some of these, with what they characterized as President Lincoln's "obstinate slowness" to come up to their advanced ideas on the subject. He was even accused of failing to execute existing laws touching confiscation of Slaves of Rebels coming within the lines of the Union Armies. On the 19th of August, 1862, a letter was addressed to him by Horace Greeley which concluded thus:

"On the face of this wide Earth, Mr. President, there is not one disinterested, determined, intelligent champion of the Union Cause who does not feel that all attempts to put down the Rebellion, and at the same time uphold its inciting cause, are preposterous and futile—that the Rebellion, if crushed out to-morrow, would be renewed within a year if Slavery were left in full vigor—that Army officers, who remain to this day devoted to Slavery, can at best be but half-way loyal to the Union—and that every hour of deference to Slavery is an hour of added and deepened peril to the Union.

"I appeal to the testimony of your ambassadors in Europe. It is freely at your service, not mine. Ask them to tell you candidly whether the seeming subserviency of your policy to the Slaveholding, Slavery-upholding interest, is not the perplexity, the despair, of Statesmen of all parties; and be admonished by the general answer.

"I close, as I began, with the statement that what an immense majority of the loyal millions of your countrymen require of you, is a frank, declared, unqualified, ungrudging execution of the Laws of the Land, more especially of the Confiscation Act. That Act gives Freedom to the Slaves of Rebels coming within our lines, or whom those lines may at any time inclose. We

ask you to render it due obedience by publicly requiring all your subordinates to recognize and obey it.

"The Rebels are everywhere using the late Anti-Negro riots in the North—as they have long used your officers' treatment of Negroes in the South—to convince the Slaves that they have nothing to hope from a Union success—that we mean in that case to sell them into a bitter Bondage to defray the cost of the War.

"Let them impress this as a truth on the great mass of their ignorant and credulous Bondmen, and the Union will never be restored—never. We can not conquer ten millions of people united in solid phalanx against us, powerfully aided by Northern sympathizers and European allies.

"We must have scouts, guides, spies, cooks, teamsters, diggers, and choppers, from the Blacks of the South—whether we allow them to fight for us or not—or we shall be baffled and repelled.

"As one of the Millions who would gladly have avoided this struggle, at any sacrifice but that of principle and honor, but who now feel that the triumph of the Union is indispensable not only to the existence of our Country, but to the well-being of mankind, I entreat you to render a hearty and unequivocal obedience to the Law of the Land.

"Yours,

"HORACE GREELEY."

To this letter, President Lincoln at once made the following memorable reply:

"EXECUTIVE MANSION,
"WASHINGTON, Friday, August 22, 1862.

"HON. HORACE GREELEY

"DEAR SIR:—I have just read yours of the 19th inst. addressed to myself through the New York Tribune.

"If there be in it any statements or assumptions of fact which I may know to be erroneous, I do not now and here controvert them.

"If there be any inferences which I may believe to be falsely drawn, I do not now and here argue against them.

"If there be perceptible in it an impatient and dictatorial tone, I waive it in deference to an old friend whose heart I have always supposed to be right.

"As to the policy I 'seem to be pursuing,' as you say, I have not meant to leave any one in doubt. I would save the Union. I would save it in the shortest way under the Constitution.

"The sooner the National authority can be restored, the nearer the Union will be—the Union as it was.

"If there be those who would not save the Union unless they could at the same time save Slavery, I do not agree with them.

"If there be those who would not save the Union unless they could at the same time destroy Slavery, I do not agree, with them.

"My paramount object is to save the Union and not either to save or destroy Slavery.

"If I could save the Union without freeing any Slave, I would do it—and if I could save it by freeing all the Slaves, I would do it—and if I could save it by freeing some and leaving others alone, I would also do that.

"What I do about Slavery and the Colored race, I do because I believe it helps to save the Union, and what I forbear, I forbear because I do not believe it would help to save the Union.

"I shall do less whenever I shall believe what I am doing hurts the cause, and shall do more whenever I believe doing more will help the cause.

"I shall try to correct errors when shown to be errors, and I shall adopt new views so fast as they shall appear to be true views.

"I have here stated my purpose according to my view of official duty, and I intend no modification of my oft-expressed personal wish that all men everywhere could be free.

"Yours,

"A. LINCOLN."

On the 13th of September, 1862, a deputation from all the religious denominations of Chicago presented to President Lincoln a memorial for

the immediate issue of a Proclamation of Emancipation, to which, and the Chairman's remarks, he thus replied:

"The subject presented in the Memorial is one upon which I have thought much for weeks past, and I may even say, for months. I am approached with the most opposite opinions, and advice, and that by religious men, who are equally certain that they represent the Divine will. I am sure that either the one or the other class is mistaken in that belief, and perhaps, in some respects, both. I hope it will not be irreverent for me to say that if it is probable that God would reveal His will to others, on a point so connected with my duty, it might be supposed He would reveal it directly to me; for, unless I am more deceived in myself than I often am, it is my earnest desire to know the will of Providence in this matter. And if I can learn what it is, I will do it!

"These are not, however, the days of miracles, and I suppose it will be granted that I am not to expect a direct Revelation; I must study the plain physical aspects of the case, ascertain what is possible, and learn what appears to be wise and right!

"The subject is difficult, and good men do not agree. For instance, the other day, four gentlemen, of standing and intelligence, from New York, called, as a delegation, on business connected with the War; but, before leaving, two of them earnestly besought me to proclaim general Emancipation, upon which the other two at once attacked them.

"You know also that the last Session of Congress had a decided majority of Anti-Slavery men, yet they could not unite on this policy. And the same is true of the religious people; why the Rebel soldiers are praying with a great deal more earnestness, I fear, than our own troops, and expecting God to favor their side; for one of our soldiers, who had been taken prisoner, told Senator Wilson, a few days since, that he met nothing so discouraging as the evident sincerity of those he was among in their prayers. But we will talk over the merits of the case.

"What good would a Proclamation of Emancipation from me do, especially as we are now situated? I do not want to issue a document that the whole World will see must necessarily be inoperative, like the Pope's Bull against the Comet! Would my word free the Slaves, when I cannot even enforce the Constitution in the Rebel States? Is there a single Court or Magistrate, or individual that would be influenced by it there? And what

reason is there to think it would have any greater effect upon the Slaves than the late law of Congress, which I approved and which offers protection and Freedom to the Slaves of Rebel masters who came within our lines? Yet I cannot learn that that law has caused a single Slave to come over to us.

"And suppose they could be induced by a Proclamation of Freedom from me to throw themselves upon us, what should we do with them? How can we feed and care for such a multitude? General Butler wrote me a few days since that he was issuing more rations to the Slaves who have rushed to him, than to all the White troops under his command. They eat, and that is all; though it is true General Butler is feeding the Whites also, by the thousand; for it nearly amounts to a famine there.

"If, now, the pressure of the War should call off our forces from New Orleans to defend some other point, what is to prevent the masters from reducing the Blacks to Slavery again; for I am told that whenever the Rebels take any Black prisoners, Free or Slave, they immediately auction them off! They did so with those they took from a boat that was aground in the Tennessee river a few days ago.

"And then I am very ungenerously attacked for it! For instance, when, after the late battles at and near Bull Run, an expedition went out from Washington, under a flag of truce, to bury the dead and bring in the wounded, and the Rebels seized the Blacks who went along to help, and sent them into Slavery, Horace Greeley said in his paper that the Government would probably do nothing about it. What could I do?

"Now, then, tell me, if you please, what possible result of good would follow the issuing of such a Proclamation as you desire? Understand, I raise no objections against it on legal or Constitutional grounds, for, as Commander-in-Chief of the Army and Navy, in time of War, I suppose I have a right to take any measure which may best subdue the Enemy, nor do I urge objections of a moral nature, in view of possible consequences of insurrection and massacre at the South. I view this matter as a practical War measure, to be decided on according to the advantages or disadvantages it may offer to the suppression of the Rebellion.

* * * * *

"I admit that Slavery is at the root of the Rebellion, or, at least, its sine qua non. The ambition of politicians may have instigated them to act, but they would have been impotent without Slavery as their instrument. I will

also concede that Emancipation would help us in Europe, and convince them that we are incited by something more than ambition. I grant, further, that it would help somewhat at the North, though not so much, I fear, as you and those you represent imagine.

"Still, some additional strength would be added in that way to the War, and then, unquestionably, it would weaken the Rebels by drawing off their laborers, which is of great importance; but I am not so sure we could do much with the Blacks. If we were to arm them, I fear that in a few weeks the arms would be in the hands of the Rebels; and, indeed, thus far, we have not had arms enough to equip our White troops.

"I will mention another thing, though it meet only your scorn and contempt. There are 50,000 bayonets in the Union Army from the Border Slave States. It would be a serious matter if, in consequence of a Proclamation such as you desire, they should go over to the Rebels. I do not think they all would—not so many, indeed, as a year ago, or as six months ago—not so many to-day, as yesterday. Every day increases their Union feeling. They are also getting their pride enlisted, and want to beat the Rebels.

"Let me say one thing more: I think you should admit that we already have an important principle to rally and unite the People, in the fact that Constitutional Government is at stake. This is a fundamental idea going down about as deep as anything!

* * * * *

"Do not misunderstand me because I have mentioned these objections. They indicate the difficulties that have thus far prevented my action in some such way as you desire.

"I have not decided against a Proclamation of Liberty to the Slaves, but hold the matter under advisement. And I can assure you that the subject is on my mind, by day and night, more than any other. Whatever shall appear to be God's will I will do.

"I trust that in the freedom with which I have canvassed your views I have not in any respect injured your feelings."

On the 22d day of September, 1862, not only the Nation, but the whole World, was electrified by the publication—close upon the heels of the Union victory of Antietam—of the Proclamation of Emancipation—

weighted with consequences so wide and far-reaching that even at this late day they cannot all be discerned. It was in these words:

"I, ABRAHAM LINCOLN, President of the United States of America, and Commander-in-Chief of the Army and Navy thereof, do hereby proclaim and declare that hereafter, as heretofore, the War will be prosecuted for the object of practically restoring the Constitutional relation between the United States and each of the States and the people thereof, in which States that relation is or may be suspended or disturbed.

"That it is my purpose, upon the next meeting of Congress, to again recommend the adoption of a practical measure tendering pecuniary aid to the free acceptance or rejection of all Slave States, so called, the people whereof may not then be in Rebellion against the United States, and which States may then have voluntarily adopted, or thereafter may voluntarily adopt, immediate or gradual abolishment of Slavery within their respective limits; and that the effort to colonize Persons of African descent with their consent upon this continent or elsewhere, with the previously obtained consent of the Governments existing there, will be continued.

"That on the first day of January, in the year of our Lord one thousand eight hundred and sixty-three, all Persons held as Slaves within any State or designated part of a State, the people whereof shall then be in Rebellion against the United States, shall be then, thenceforward, and forever Free; and the Executive Government of the United States, including the Military and Naval authority thereof, will recognize and maintain the Freedom of such persons, and will do no act or acts to repress such persons, or any of them, in any efforts they may make for their actual Freedom.

"That the Executive will, on the first day of January aforesaid, by Proclamation, designate the States and parts of States, if any, in which the people thereof respectively, shall then be in Rebellion against the United States; and the fact that any State, or the people thereof, shall on that day be, in good faith, represented in the Congress of the United States by members chosen thereto at elections wherein a majority of the qualified voters of such States shall have participated, shall, in the absence of strong countervailing testimony, be deemed conclusive evidence that such State, and the people thereof, are not in Rebellion against the United States.

"That attention is hereby called to an Act of Congress entitled 'An Act to make an additional Article of War,' approved March 31, 1862, and which Act is in the words and figures following:

"Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That hereafter the following shall be promulgated as an additional Article of War, for the government of the Army of the United States, and shall be obeyed and observed as such.

"ARTICLE—All officers or persons in the Military or Naval service of the United States are prohibited from employing any of the forces under their respective commands for the purpose of returning Fugitives from service or labor who may have escaped from any persons to whom such service or labor is claimed to be due, and any officer who shall be found guilty by a court-martial of violating this article shall be dismissed from the service.

"SECTION 2.—And be it further enacted, That this Act shall take effect from and after its passage.'

"Also to the ninth and tenth sections of an Act entitled 'An Act to suppress Insurrection, to punish Treason and Rebellion, to seize and confiscate property of Rebels, and for other purposes,' approved July 17, 1862, and which sections are in the words and figures following:

"SEC. 9.—And be it further enacted, That all Slaves of persons who shall hereafter be engaged in Rebellion against the Government of the United States or who shall in any way give aid or comfort thereto, escaping from such persons and taking refuge within the lines of the Army; and all Slaves captured from such persons or deserted by them, and coming under the control of the Government of the United States; and all Slaves of such persons found on [or] being within any place occupied by Rebel forces and afterward occupied by the forces of the United States, shall be deemed captives of war, and shall be forever Free of their servitude, and not again held as Slaves.

"SEC. 10.—And be it further enacted, That no Slave escaping into any State, Territory, or the District of Columbia, from any other State, shall be delivered up, or in any way impeded or hindered of his liberty, except for crime, or some offense against the laws, unless the person claiming said Fugitive shall first make oath that the person to whom the labor or service of such Fugitive is alleged to be due is his lawful owner, and has not borne

arms against the United States in the present Rebellion, nor in any way given aid and comfort thereto; and no person engaged in the Military or Naval service of the United States shall, under any pretense whatever, assume to decide on the validity of the claim of any person to the service or labor of any other person, or surrender up any such Person to the claimant, on pain of being dismissed from the service."

"And I do hereby enjoin upon and order all persons engaged in the Military and Naval service of the United States to observe, obey, and enforce, within their respective spheres of service, the Act and sections above recited.

"And the Executive will in due time recommend that all citizens of the United States who shall have remained loyal thereto throughout the Rebellion shall (upon the restoration of the Constitutional relation between the United States and their respective States and people, if that relation shall have been suspended or disturbed) be compensated for all losses by acts of the United States, including the loss of Slaves.

"In witness whereof, I have hereunto set my hand, and caused the seal of the United States to be affixed.

"Done at the city of Washington this twenty-second day of September, in the year of our Lord one thousand eight hundred and sixty-two, and of the Independence of the United States the eighty-seventh.

"By the President:

"ABRAHAM LINCOLN.

"WILLIAM H. SEWARD, Secretary of State."

This Proclamation, promising Freedom to an Enslaved race, was hailed with acclamations everywhere save in the rebellious Southern-Slave States, and in the Border-Slave States.

At a meeting of Governors of Loyal States, held at Altoona, Pennsylvania, to take measures for the more active support of the Government, an Address was adopted, on the very day that the Proclamation was promulgated, which well expressed the general feeling prevailing throughout the Northern States, at this time. It was in these patriotic words:

"After nearly one year and a half spent in contest with an armed and gigantic Rebellion against the National Government of the United States, the duty and purpose of the Loyal States and people continue, and must always remain as they were at its origin—namely to restore and perpetuate the authority of this Government and the life of the Nation. No matter what consequences are involved in our fidelity, this work of restoring the Republic, preserving the institutions of democratic Liberty, and justifying the hopes and toils of our Fathers, shall not fail to be performed.

"And we pledge, without hesitation, to the President of the United States, the most loyal and cordial support, hereto as heretofore, in the exercise of the functions of his great office. We recognize in him the chief Executive magistrate of the Nation, the Commander-in-Chief of the Army and Navy of the United States, their responsible and constitutional head, whose rightful authority and power, as well as the Constitutional powers of Congress, must be rigorously and religiously guarded and preserved, as the condition on which alone our form of Government and the constitutional rights and liberties of the People themselves can be saved from the wreck of anarchy or from the gulf 'despotism.

"In submission to the laws which may have been or which may be duly enacted, and to the lawful orders of the President, cooperating always in our own spheres with the National Government, we mean to continue in the most rigorous exercise of all our lawful and proper powers, contending against Treason, Rebellion, and the public Enemies, and, whether in public life or in private station, supporting the arms of the Union, until its Cause shall conquer, until final victory shall perch upon its standard, or the Rebel foe will yield a dutiful, rightful, and unconditional submission. And, impressed with the conviction that an Army of reserve ought, until the War shall end, to be constantly kept on foot, to be raised, armed, equipped, and trained at home, and ready for emergencies, we respectfully ask the President to call such a force of volunteers for one year's service, of not less than one hundred thousand in the aggregate, the quota of each State to be raised after it shall have led its quota of the requisitions already made, both for volunteers and militia. We believe that this would be a Leasure of Military prudence, while it would greatly promote the Military education of the People.

"We hail with heartfelt gratitude and encouraged hope the Proclamation of the President, issued on the 22nd instant, declaring Emancipated from their bondage all Persons held to Service or Labor as Slaves in the Rebel States, whose Rebellion shall last until the first day of January next ensuing.

"The right of any person to retain authority to compel any portion of the subjects of the National Government to rebel against it, or to maintain its Enemies, implies in those who are allowed possession of such authority the right to rebel themselves; and therefore, the right to establish Martial Law or Military Government in a State or Territory in Rebellion implies the right and the duty of the Government to liberate the minds of all men living therein by appropriate Proclamations and assurances of protection, in order that all who are capable, intellectually and morally, of loyalty and obedience, may not be forced into Treason as the unwilling tools of rebellious Traitors.

"To have continued indefinitely the most efficient cause, support, and stay of the Rebellion, would have been, in our judgment, unjust to the Loyal people whose treasure and lives are made a willing sacrifice on the altar of patriotism—would have discriminated against the wife who is compelled to surrender her husband, against the parent who is to surrender his child, to the hardships of the camp and the perils of battle, in favor of Rebel masters permitted to retain their Slaves. It would have been a final decision alike against humanity, justice, the rights and dignity of the Government, and against sound and wise National policy.

"The decision of the President to strike at the root of the Rebellion will lend new vigor to efforts, and new life and hope to the hearts of the People. Cordially tendering to the President our respectful assurances of personal and official confidence, we trust and believe that the policy now inaugurated will be crowned with success, will give speedy and triumphant victories over our enemies, and secure to this Nation and this People the blessing and favor of Almighty God.

"We believe that the blood of the heroes who have already fallen, and those who may yet give their lives to their Country, will not have been shed in vain.

"The splendid valor of our soldiers, their patient endurance, their manly patriotism, and their devotion to duty, demand from us and from all their countrymen the homage of the sincerest gratitude and the pledge of our

constant reinforcement and support. A just regard for these brave men, whom we have contributed to place in the field, and for the importance of the duties which may lawfully pertain to us hereafter, has called us into friendly conference.

"And now, presenting to our National Chief Magistrate this conclusion of our deliberations, we devote ourselves to our Country's service, and we will surround the President with our constant support, trusting that the fidelity and zeal of the Loyal States and People will always assure him that he will be constantly maintained in pursuing, with the utmost vigor, this War for the preservation of the National life and hope of humanity.

"A. G. CURTIN,
"JOHN A. ANDREW,
"RICHARD YATES,
"ISRAEL WASHBURN, Jr.,
"EDWARD SOLOMON,
"SAMUEL J. KIRKWOOD,
"O. P. MORTON,—By D. G. ROSE, his Representative,
"WM. SPRAGUE,
"F. H. PEIRPOINT,
"DAVID TOD,
"N. S. BERRY, "AUSTIN BLAIR."

Some two months after the issue of his great Proclamation of Liberty, President Lincoln (in his Second Annual Message to Congress, December 1, 1862), took occasion again to refer to compensated Emancipation, and, indeed, to the entire matter of Slavery and Freedom, in most instructive and convincing manner, as follows:

"On the 22d day of September last, a Proclamation was issued by the Executive, a copy of which is herewith submitted.

"In accordance with the purpose in the second paragraph of that paper, I now respectfully recall your attention to what may be called 'compensated Emancipation.'

"A Nation may be said to consist of its territory, its people, and its laws. The territory is the only part which is of certain durability. 'One generation passeth away, and another generation cometh, but the Earth abideth forever.'

It is of the first importance to duly consider and estimate this ever-enduring part.

"That portion of the Earth's surface which is owned and inhabited by the People of the United States, is well adapted to be the home of one National family; and it is not well adapted for two, or more. Its vast extent, and its variety of climate and productions, are of advantage, in this age, for one People, whatever they might have been in former ages. Steam, telegraphs, and intelligence, have brought these to be an advantageous combination for one united People.

"In the Inaugural Address I briefly pointed out the total inadequacy of Disunion, as a remedy for the differences between the people of the two Sections. I did so in language which I cannot improve, and which, therefore, I beg to repeat:

"One Section of our Country believes Slavery is right, and ought to be extended, while the other believes it is wrong, and ought not to be extended. This is the only substantial dispute. The Fugitive Slave clause of the Constitution, and the law for the suppression of the foreign Slave Trade, are each as well enforced, perhaps, as any law can ever be in a community where the moral sense of the People imperfectly supports the law itself.

"The great body of the People abide by the dry legal obligation in both cases, and a few break over in each. This, I think, cannot be perfectly cured; and it would be worse in both cases after the separation of the Sections, than before. The foreign Slave Trade, now imperfectly suppressed, would be ultimately revived without restriction in one Section; while Fugitive Slaves, now only partially surrendered, would not be surrendered at all by the other.

"Physically speaking, we cannot separate. We cannot remove our respective Sections from each other, nor build an impassable wall between them. A husband and wife may be divorced, and each go out of the presence and beyond the reach of the other; but the different parts of our Country cannot do this. They cannot but remain face to face; and intercourse, either amicable or hostile, must continue between them.

"Is it possible, then, to make that intercourse more advantageous or more satisfactory after separation than before? Can aliens make treaties easier than friends can make laws? Can treaties be more faithfully enforced between aliens than laws can among friends? suppose you go to War, you

cannot fight always; and when, after much loss on both sides, and no gain on either, you cease fighting, the identical old questions as to terms of intercourse are again upon you.'

"There is no line, straight or crooked, suitable for a National boundary upon which to divide. Trace through, from East to West, upon the line between the Free and Slave Country, and we shall find a little more than one third of its length are rivers, easy to be crossed, and populated, or soon to be populated, thickly upon both sides; while nearly all its remaining length are merely surveyors' lines, over which people may walk back and forth without any consciousness of their presence.

"No part of this line can be made any more difficult to pass, by writing it down on paper or parchment as a National boundary. The fact of separation, if it comes, gives up, on the part of the seceding Section, the Fugitive Slave clause, along with all other Constitutional obligations upon the Section seceded from, while I should expect no treaty stipulations would ever be made to take its place.

"But there is another difficulty. The great interior region, bounded East by the Alleghanies, North by the British dominions, West by the Rocky Mountains, and South by the line along which the culture of corn and cotton meets, and which includes part of Virginia, part of Tennessee, all of Kentucky, Ohio, Indiana, Michigan, Wisconsin, Illinois, Missouri, Kansas, Iowa, Minnesota, and the Territories of Dakota, Nebraska, and part of Colorado, already has above ten million people, and will have fifty millions within fifty years, if not prevented by any political folly or mistake.

"It contains more than one-third of the country owned by the United States-certainly more than one million square miles. Once half as populous as Massachusetts already is, it would have more than seventy-five million people. A glance at the map shows that, territorially speaking, it is the great body of the Republic. The other parts are but marginal borders to it, the magnificent region sloping West, from the Rocky Mountains to the Pacific, being the deepest and also the richest in undeveloped resources. In the production of provisions, grains, grasses, and all which proceed from them, this great interior region is naturally one of the most important in the World.

"Ascertain from the statistics the small proportion of the region which has, as yet, been brought into cultivation, and also the large and rapidly increasing amount of its products, and we shall be overwhelmed with the

magnitude of the prospect presented. And yet this region has no sea coast, touches no ocean anywhere. As part of one Nation, its people now find, and may forever find, their way to Europe by New York, to South America and Africa by New Orleans, and to Asia by San Francisco.

"But separate our common Country into two nations, as designed by the present Rebellion, and every man of this great interior region is thereby cut off from some one or more of these outlets, not, perhaps, by a physical barrier, but by embarrassing and onerous trade regulations.

"And this is true, wherever a dividing or boundary line may be fixed. Place it between the now Free and Slave country, or place it South of Kentucky, or North of Ohio, and still the truth remains, that none South of it can trade to any port or place North of it, and none North of it can trade to any port or place South of it except upon terms dictated by a Government foreign to them.

"These outlets, East, West, and South, are indispensable to the well-being of the people inhabiting, and to inhabit, this vast interior region. Which of the three may be the best, is no proper question. All, are better than either; and all, of right belong to that People, and to their successors forever. True to themselves, they will not ask where a line of separation shall be, but will vow rather that there shall be no such line.

"Nor are the marginal regions less interested in these communications to and through them, to the great outside World. They too, and each of them, must have access to this Egypt of the West without paying toll at the crossing of any National boundary.

"Our National strife springs not from our permanent part; not from the Land we inhabit; not from our National homestead. There is no possible severing of this, but would multiply, and not mitigate, evils among us. In all its adaptations and aptitudes it demands Union, and abhors separation. In fact it would, ere long, force reunion, however much of blood and treasure the separation might have cost.

"Our strife pertains to ourselves—to the passing generations of men; and it can, without convulsion, be hushed forever—with the passing of one generation.

"In this view I recommend the adoption of the following Resolution and Articles Amendatory of the Constitution of the United States.

"Resolved by the Senate and House of Representatives of the United States of America, in Congress assembled, (two-thirds of both Houses concurring). That the following Articles be proposed to the Legislatures (or Conventions) of the several States, as Amendments to the Constitution of the United States, all or any of which Articles when ratified by three-fourths of the said Legislatures (or Conventions) to be valid as part or parts of the said Constitution, namely:

"ARTICLE—Every State wherein Slavery now exists, which shall abolish the same therein, at any time, or times, before the first day of January, in the year of our Lord one thousand nine hundred, shall receive compensation from the United States, as follows, to wit;

"The President of the United States shall deliver to every such State, bonds of the United States, bearing interest at the rate of per cent. per annum, to an amount equal to the aggregate sum of for each Slave shown to have been therein by the eighth census of the United States, said bonds to be delivered to such States by installments, or in one parcel, at the completion of the abolishment, accordingly as the same shall have been gradual, or at one time, within such State; and interest shall begin to run upon any such bond only from the proper time of its delivery as aforesaid. Any State having received bonds as aforesaid, and afterward reintroducing or tolerating Slavery therein, shall refund to the United States the bonds so received, or the value thereof, and all interest paid thereon.

"ARTICLE—All Slaves who shall have enjoyed actual freedom by the chances of the War at any time before the end of the Rebellion, shall be forever Free; but all owners of such, who shall not have been disloyal, shall be compensated for them, at the same rates as is provided for States adopting abolishment of Slavery, but in such way that no Slave shall be twice accounted for.

"ARTICLE—Congress may appropriate money, and otherwise provide for colonizing Free Colored Persons, with their own consent, at any place or places within the United States.'

"I beg indulgence to discuss these proposed Articles at some length. Without Slavery the Rebellion could never have existed; without Slavery it could not continue.

"Among the friends of the Union there is great diversity of sentiment and of policy in regard to Slavery, and the African race among us. Some would

perpetuate Slavery; some would abolish it suddenly, without compensation; some would abolish it gradually, and with compensation; some would remove the Freed people from us; and some would retain them with us; and there are yet other minor diversities. Because of these diversities, we waste much strength in struggles among ourselves.

"By mutual Concession we should harmonize and act together. This would be Compromise; but it would be Compromise among the friends, and not with the enemies of the Union. These Articles are intended to embody a plan of such mutual concessions. If the plan shall be adopted, it is assumed that Emancipation will follow, at least, in several of the States.

"As to the first Article, the main points are: first, the Emancipation; secondly, the length of time for consummating it—thirty-seven years; and, thirdly, the compensation.

"The Emancipation will be unsatisfactory to the advocates of perpetual Slavery; but the length of time should greatly mitigate their dissatisfaction. The time spares both races from the evils of sudden derangement—in fact from the necessity of any derangement—while most of those whose habitual course of thought will be disturbed by the measure will have passed away before its consummation. They will never see it.

"Another class will hail the prospect of Emancipation, but will deprecate the length of time. They will feel that it gives too little to the now living Slaves. But it really gives them much. It saves them from the vagrant destitution which must largely attend immediate Emancipation in localities where their numbers are very great; and it gives the inspiring assurance that their posterity shall be Free forever.

"The plan leaves to each State, choosing to act under it, to abolish Slavery now, or at the end of the century, or at any intermediate time, or by degrees, extending over the whole or any part of the period; and it obliges no two States to proceed alike. It also provides for compensation,—and generally, the mode of making it. This, it would seem, must further mitigate the dissatisfaction of those who favor perpetual Slavery, and especially of those who are to receive the compensation. Doubtless some of those who are to pay, and not to receive, will object. Yet the measure is both just and economical.

"In a certain sense, the liberation of Slaves is the destruction of Property—Property acquired by descent, or by purchase, the same as any other

property. It is no less true for having been often said, that the people of the South are not more responsible for the original introduction of this Property than are the people of the North; and when it is remembered how unhesitatingly we all use cotton and sugar, and share the profits of dealing in them, it may not be quite safe to say that the South has been more responsible than the North for its continuance.

"If, then, for a common object, this Property is to be sacrificed, is it not just that it be done at a common charge?

"And if, with less money, or money more easily paid, we can preserve the benefits of the Union by this means than we can by the War alone, is it not also economical to do it? Let us consider it then. Let us ascertain the sum we have expended in the War since compensated Emancipation was proposed last March, and consider whether, if that measure had been promptly accepted, by even some of the Slave States, the same sum would not have done more to close the War than has been otherwise done. If so, the measure would save money, and, in that view, would be a prudent and economical measure.

"Certainly it is not so easy to pay something as it is to pay nothing; but it is easier to pay a large sum than it is to pay a larger one. And it is easier to pay any sum when we are able, than it is to pay it before we are able. The War requires large sums, and requires them at once.

"The aggregate sum necessary for compensated Emancipation of course would be large. But it would require no ready cash, nor the bonds, even, any faster than the Emancipation progresses. This might not, and probably would not, close before the end of the thirty-seven years. At that time we shall probably have a hundred million people to share the burden, instead of thirty-one millions, as now. And not only so, but the increase of our population may be expected to continue, for a long time after that period, as rapidly as before; because our territory will not have become full.

"I do not state this inconsiderately. At the same ratio of increase which we have maintained, on an average, from our first National census in 1790, until that of 1860, we should, in 1900, have a population of 103,208,415. And why may we not continue that ratio far beyond that period?

"Our abundant room—our broad National homestead—is our ample resource. Were our territory as limited as are the British Isles, very certainly

our population could not expand as stated. Instead of receiving the foreign born, as now, we should be compelled to send part of the Native-born away.

"But such is not our condition. We have two million nine hundred and sixty-three thousand square miles. Europe has three million and eight hundred thousand, with a population averaging seventy-three and one-third persons to the square mile. Why may not our Country at some time, average as many? Is it less fertile? Has it more waste surface by mountains, rivers, lakes, deserts, or other causes? Is it inferior to Europe in any natural advantage?

"If, then, we are at some time to be as populous as Europe, how soon? As to when this may be, we can judge by the past and the present; as to when it will be, if ever, depends much on whether we maintain the Union.

"Several of our States are already above the average of Europe—seventy-three and a third to the square mile. Massachusetts has 157; Rhode Island, 133; Connecticut, 99; New York and New Jersey, each, 80. Also two other great States, Pennsylvania and Ohio, are not far below, the former having 63, and the latter 59. The States already above the European average, except New York, have increased in as rapid a ratio, since passing that point, as ever before; while no one of them is equal to some other parts of our Country in natural capacity for sustaining a dense population.

"Taking the Nation in the aggregate, and we find its population and ratio of increase, for the several decennial periods, to be as follows:

YEAR. POPULATION. RATIO OF INCREASE

1790— 3,929,827

1800— 5,305,937 —35.02 Per Cent.

1810— 7,239,814 —36.45

1820— 9,638,131 —33.13

1830— 12,866,020 —33.49

1840— 17,069,453 —32.67

1850— 23,191,876 —35.87

1860— 31,443,790 —35.58

"This shows an average Decennial Increase of 34.69 per cent. in population through the seventy years from our first to our last census yet

taken. It is seen that the ratio of increase, at no one of these seven periods, is either two per cent. below or two per cent. above the average; thus showing how inflexible, and, consequently, how reliable, the law of Increase, in our case, is.

"Assuming that it will continue, gives the following results:

YEAR. POPULATION.

1870— 42,323,041

1880— 56,967,216

1890— 76,677,872

1900— 103,208,415

1910— 138,918,526

1920— 186,984,335

1930— 251,680,914

"These figures show that our Country may be as populous as Europe now is at some point between 1920 and 1930—say about 1925—our territory, at seventy-three and a third persons to the square mile, being of capacity to contain 217,186,000.

"And we will reach this, too, if we do not ourselves relinquish the chance by the folly and evils of Disunion or by long and exhausting War springing from the only great element of National discord among us. While it cannot be foreseen exactly how much one huge example of Secession, breeding lesser ones indefinitely, would retard population, civilization and prosperity, no one can doubt that the extent of it would be very great and injurious.

"The proposed Emancipation would shorten the War, perpetuate Peace, insure this increase of population, and proportionately the wealth of the Country. With these, we should pay all the Emancipation would cost, together with our other debt, easier than we should pay our other debt without it.

"If we had allowed our old National debt to run at six per cent. per annum, simple interest, from the end of our Revolutionary Struggle until to-day, without paying anything on either principal or interest, each man of us would owe less upon that debt now than each man owed upon it then; and this because our increase of men through the whole period has been greater

than six per cent.; has run faster than the interest upon the debt. Thus, time alone, relieves a debtor Nation, so long as its population increases faster than unpaid interest accumulates on its debt.

"This fact would be no excuse for delaying payment of what is justly due, but it shows the great importance of time in this connection—the great advantage of a policy by which we shall not have to pay until we number a hundred millions, what, by a different policy, we would have to pay now, when we number but thirty-one millions. In a word, it shows that a dollar will be much harder to pay for the War, than will be a dollar for Emancipation on the proposed plan. And then the latter will cost no blood, no precious life. It will be a saving of both.

"As to the Second Article, I think it would be impracticable to return to Bondage the class of Persons therein contemplated. Some of them, doubtless, in the property sense, belong to loyal owners and hence provision is made in this Article for compensating such.

"The Third Article relates to the future of the Freed people. It does not oblige, but merely authorizes, Congress to aid in colonizing such as may consent. This ought not to be regarded as objectionable on the one hand or on the other, insomuch as it comes to nothing, unless by the mutual consent of the people to be deported, and the American voters, through their Representatives in Congress.

"I cannot make it better known than it already is, that I strongly favor colonization. And yet I wish to say there is an objection urged against free Colored persons remaining in the Country which is largely imaginary, if not sometimes malicious.

"It is insisted that their presence would injure and displace White labor and White laborers. If there ever could be a proper time for mere catch arguments, that time surely is not now. In times like the present men should utter nothing for which they would not willingly be responsible through Time and in Eternity.

"Is it true, then, that Colored people can displace any more White labor by being Free, than by remaining Slaves? If they stay in their old places, they jostle no White laborers; if they leave their old places, they leave them open to White laborers. Logically, there is neither more nor less of it.

"Emancipation, even without deportation, would probably enhance the wages of White labor, and, very surely would not reduce them. Thus, the

customary amount of labor would still have to be performed; the freed people would surely not do more than their old proportion of it and, very probably, for a time would do less, leaving an increased part to White laborers, bringing their labor into greater demand, and consequently enhancing the wages of it.

"With deportation, even to a limited extent, enhanced wages to White labor is mathematically certain. Labor is like any other commodity in the market-increase the demand for it and you increase the price of it. Reduce the supply of Black labor by colonizing the Black laborer out of the Country, and by precisely so much you increase the demand for and wages of White labor.

"But it is dreaded that the freed people will swarm forth and cover the whole Land! Are they not already in the Land? Will liberation make them any more numerous? Equally distributed among the Whites of the whole Country, there would be but one Colored, in seven Whites. Could the one, in any way, greatly disturb the seven?

"There are many communities now, having more than one free Colored person to seven Whites; and this, without any apparent consciousness of evil from it. The District of Columbia, and the States of Maryland and Delaware, are all in this condition. The District has more than one free Colored to six Whites; and yet, in its frequent petitions to Congress I believe it has never presented the presence of free Colored persons as one of its grievances.

"But why should Emancipation South, send the freed people North? people of any color, seldom run, unless there be something to run from. Heretofore, Colored people, to some extent, have fled North from bondage, and now, perhaps, from both bondage and destitution. But if gradual Emancipation and deportation be adopted, they will have neither to flee from.

"Their old masters will give them wages at least until new laborers can be procured; and the freed men, in turn, will gladly give their labor for the wages, till new homes can be found for them, in congenial climes, and with people of their own blood and race.

"This proposition can be trusted on the mutual interests involved. And, in any event, cannot the North decide for itself, whether to receive them?

"Again, as practice proves more than theory, in any case, has there been any irruption of Colored people Northward because of the abolishment of Slavery in this District last Spring? What I have said of the proportion of free Colored persons to the Whites in the District is from the census of 1860, having no reference to persons called Contrabands, nor to those made free by the Act of Congress abolishing Slavery here.

"The plan consisting of these Articles is recommended, not but that a restoration of the National authority would be accepted without its adoption.

"Nor will the War, nor proceedings under the Proclamation of September 22, 1862, be stayed because of the recommendation of this plan. Its timely adoption, I doubt not, would bring restoration, and thereby stay both.

"And, notwithstanding this plan, the recommendation that Congress provides by law for compensating any State which may adopt Emancipation before this plan shall have been acted upon, is hereby earnestly renewed. Such would be only an advance part of the plan, and the same arguments apply to both.

"This plan is recommended as a means, not in exclusion of, but additional to, all others, for restoring and preserving the National authority throughout the Union. The subject is presented exclusively in its economical aspect.

"The plan would, I am confident, secure Peace more speedily, and maintain it more permanently, than can be done by force alone; while all it would cost, considering amounts, and manner of payment, and times of payment, would be easier paid than will be the additional cost of the War, if we rely solely upon force. It is much, very much, that it would cost no blood at all.

"The plan is proposed as permanent Constitutional Law. It cannot become such without the concurrence of, first, two-thirds of Congress, and afterward, three-fourths of the Slave States. The requisite three-fourths of the States will necessarily include seven of the Slave States. Their concurrence, if obtained, will give assurance of their severally adopting Emancipation at no very distant day upon the new Constitutional terms. This assurance would end the struggle now and save the Union forever.

"I do not forget the gravity which should characterize a paper addressed to the Congress of the Nation by the Chief Magistrate of the Nation. Nor do

I forget that some of you are my seniors, nor that many of you have more experience than I in the conduct of public affairs. Yet I trust that in view of the great responsibility resting upon me, you will perceive no want of respect to yourselves in any undue earnestness I may seem to display.

"Is it doubted, then, that the plan I propose, if adopted, would shorten the War, and thus lessen its expenditure of money and of blood? Is it doubted that it would restore the National authority and National prosperity, and perpetuate both indefinitely? Is it doubted that we here—Congress and Executive—can secure its adoption; will not the good people respond to a united and earnest appeal from us? Can we, can they, by any other means so certainly or so speedily assure these vital objects; we can succeed only by concert.

"It is not, 'Can any of us imagine better?' but, 'Can we all do better?' Object whatsoever is possible, still the question recurs, 'Can we do better?' The dogmas of the quiet past are inadequate to the stormy present. The occasion is piled high with difficulty, and we must rise with the occasion. As our case is new, so we must think anew, and act anew. We must disenthrall ourselves, and then we shall save our Country.

"Fellow-citizens, we cannot escape history. We, of this Congress and this Administration, will be remembered in spite of ourselves. No personal significance, or insignificance, can spare one or another of us. The fiery trial through which we pass will light us down in honor or dishonor, to the latest generation.

"We say we are for the Union. The World will not forget that we say this. We know how to save the Union.

"The World knows we do know how to save it. We even we here—hold the power, and bear the responsibility.

"In giving Freedom to the Slave, we assure Freedom to the Free-Honorable alike in what we give and what we preserve. We shall nobly save, or meanly lose, the last, best hope of Earth. Other means may succeed; this could not fail. The way is plain, peaceful, generous, just—a way which, if followed, the World would forever applaud, and God must forever bless.

"ABRAHAM LINCOLN."

The popular Branch of Congress responded with heartiness to what Mr. Lincoln had done. On December 11, 1862, resolutions were offered by Mr. Yeaman in the House of Representatives, as follows:

"Resolved by the House of Representatives (the Senate Concurring), That the Proclamation of the President of the United States, of date the 22d of September, 1862, is not warranted by the Constitution.

"Resolved, That the policy of Emancipation as indicated in that Proclamation, is not calculated to hasten the restoration of Peace, was not well chosen as a War measure, and is an assumption of power dangerous to the rights of citizens and to the perpetuity of a Free People."

These resolutions were laid on the table by 95 yeas to 47 nays—the yeas all Republicans, save three, and the nays all Democrats save five.

On December 15, 1862, Mr. S. C. Fessenden, of Maine, offered resolutions to the House, in these words:

"Resolved, That the Proclamation of the President of the United States, of the date of 22d September, 1862, is warranted by the Constitution.

"Resolved, That the policy of Emancipation, as indicated in that Proclamation, is well adapted to hasten the restoration of Peace, was well chosen as a War measure, and is an exercise of power with proper regard for the rights of the States, and the perpetuity of Free Government."

These resolutions were adopted by 78 yeas to 52 nays—the yeas all Republicans, save two, and the nays all Democrats, save seven.

The Proclamation of September 22d, 1862, was very generally endorsed and upheld by the People at large; and, in accordance with its promise, it was followed at the appointed time, January 1st, 1863, by the supplemental Proclamation specifically Emancipating the Slaves in the rebellious parts of the United States—in the following terms:

"WHEREAS, On the twenty-second day of September, in the year of our Lord one thousand eight hundred and sixty-two, a Proclamation was issued by the President of the United States, containing, among other things, the following, to wit:

""That on the first day of January, in the year of our Lord one thousand eight hundred and sixty-three, all Persons held as Slaves within any State,

or designated part of a State, the people whereof shall then be in Rebellion against the United States, shall be then, thenceforward, and forever Free; and the Executive Government of the United States, including the Military and Naval Authority thereof, will recognize and maintain the Freedom of such Persons, and will do no act or acts to repress such Persons, or any of them, in any efforts they may make for their actual Freedom.

"That the Executive will, on the First day of January aforesaid, by Proclamation, designate the States and parts of States, if any, in which the people thereof, respectively, shall then be in Rebellion against the United States; and the fact that any State, or the people thereof, shall on that day be in good faith represented in the Congress of the United States, by members chosen thereto at elections wherein a majority of the qualified voters of such States shall have participated, shall, in the absence of strong countervailing testimony, be deemed conclusive evidence that such State, and the people thereof, are not then in Rebellion against the United States.'

"Now, therefore, I ABRAHAM LINCOLN, President of the United States, by virtue of the power in me vested as Commander-in-Chief of the Army and Navy of the United States, in time of actual armed Rebellion against the authority and Government of the United States, and as a fit and necessary War measure for suppressing said Rebellion, do, on this First day of January, in the Year of Our Lord one thousand eight hundred and sixty-three, and in accordance with my purpose so to do, publicly proclaimed for the full period of one hundred days from the day first above mentioned, Order and designate as the States and parts of States wherein the people thereof, respectively, are this day in Rebellion against the United States, the following, to wit:

"Arkansas, Texas, Louisiana (except the parishes of St. Bernard, Plaquemines, Jefferson, St. John, St. Charles, St. James, Ascension, Assumption, Terre Bonne, Lafouche, St. Mary, St. Martin, and Orleans, including the City of New Orleans,) Mississippi, Alabama, Florida, Georgia, South Carolina, North Carolina, and Virginia, (except the forty-eight counties designated as West Virginia, and also the counties of Berkeley, Accomac, Northampton, Elizabeth City, York, Princess Ann, and Norfolk, including the cities of Norfolk and Portsmouth), and which excepted parts are for the present left precisely as if this Proclamation were not issued.

"And by virtue of the power and for the purpose aforesaid, I do Order and declare that all Persons held as Slaves within said designated States and parts of States are, and henceforward shall be, Free; and that the Executive Government of the United States, including the Military and Naval authorities thereof; will recognize and maintain the Freedom of said Persons.

"And I hereby enjoin upon the people so declared to be Free, to abstain from all violence, unless in necessary self-defence; and I recommend to them that, in all cases when allowed, they labor faithfully for reasonable wages.

"And I further declare and make known that such Persons, of suitable condition, will be received into the armed service of the United States to garrison forts, positions, stations, and other places, and to man vessels of all sorts in said service.

"And upon this act, sincerely believed to be an act of justice, warranted by the Constitution upon Military necessity, I invoke the considerate judgment of mankind and the gracious favor of Almighty God.

"In witness whereof, I have hereunto set my hand, and caused the seal of the United States to be affixed.

"Done at the City of Washington, this First day of January, in the year of Our Lord one thousand eight hundred and sixty-three, and of the Independence of the United States of America the eighty-seventh.

"By the President:

"ABRAHAM LINCOLN.

"WILLIAM H. SEWARD, Secretary of State."



GEN. JOHN C. FREMONT.

CHAPTER XIX.

HISTORICAL REVIEW.

Let us now refresh recollection by glancing backward over the history of our Country, and we shall see, as recorded in these pages, that, from the first, there existed in this Nation a class of individuals greedily ambitious of power and determined to secure and maintain control of this Government; that they left unturned no stone which would contribute to the fostering and to the extension of African Slavery; that, hand in hand with African Slavery—and as a natural corollary to it—they advocated Free Trade as a means of degrading Free White labor to the level of Black Slave labor, and thus increasing their own power; that from the first, ever taking advantage of the general necessities of the Union, they arrogantly demanded and received from a brow-beaten People, concession after concession, and compromise after compromise; that every possible pretext and occasion was seized by them to increase, consolidate, and secure their power, and to extend the territorial limits over which their peculiar Pro-Slavery and Pro-Free-Trade doctrines prevailed; and that their nature was so exacting, and their greed so rapacious, that it was impossible ever to satisfy them.

Nor were they burdened with over-much of that high sense of honor—a quality of which they often vaunted themselves—which impelled others to stand by their agreements. It seemed as though they considered the most sacred promises and covenants of no account, and made only to be trampled upon, when in the way of their Moloch.

We remember the bitter Slavery agitation in Congress over the admission of the State of Missouri, and how it eventuated in the Missouri Compromise. That compromise, we have seen, they afterward trod upon, and broke, with as little compunction as they would have stepped upon and crushed a toad.

They felt their own growing power, and gloried in their strength and arrogance; and Northern timidity became a scoff and by-word in their mouths.

The fact is, that from its very conception, as well as birth, they hated and opposed the Union, because they disliked a Republican and preferred a Monarchical form of Government. Their very inability to prevent the consummation of that Union, imbittered them. Hence their determination to seize every possible occasion and pretext afterward to destroy it, believing, as they doubtless did, that upon the crumbled and mouldering ruins of a dissevered Union and ruptured Republic, Monarchical ideas might the more easily take root and grow. But experience had already taught them that it would be long before their real object could even be covertly hinted at, and that in the meantime it must be kept out of sight by the agitation of other political issues. The formulation and promulgation therefore, by Jefferson, in the Kentucky Resolutions of 1798, and by Madison, in the Virginia Resolutions of 1799, of the doctrine of States Rights already referred to, was a perfect "God-send" to these men. For it not only enabled them to keep from public view and knowledge their ultimate aim and purpose, but constituted the whip which they thenceforth everlastingly flourished and cracked over the shrinking heads of other and more patriotic people—the whip with which, through the litter of their broken promises, they ruthlessly rode into, and, for so long a period of years held on to, supreme power and place in the Land.

Including within the scope of States Rights, the threats of Nullification, Disunion and Secession—ideas abhorrent to the Patriot's mind—small wonder is it that, in those days, every fresh demand made by these political autocrats was tremblingly acceded to, until patience and concession almost utterly exhausted themselves.

Originally disturbing only South Carolina and Georgia to any extent, these ambitious men, who believed in anything rather than a Republic, and who were determined to destroy the Union, gradually spread the spirit of jealousy and discontent into other States of the South; their immediate object being to bring the Southern States into the closest possible relations the one with the other; to inspire them all with common sympathies and purposes; to compact and solidify them, so that in all coming movements against the other States of the Union, they might move with proportionately

increased power, and force, and effect, because of such unity of aim and strength.

This spirit of Southern discontent, and jealousy of the Northern States, was, as we have seen, artfully fanned by the Conspirators, in heated discussions over the Tariff Acts of 1824, and 1828, and 1832, until, by the latter date, the people of the Cotton-States were almost frantic, and ready to fight over their imaginary grievances. Then it was that the Conspirators thought the time had come, for which they had so long and so earnestly prayed and worked, when the cotton Sampson should wind his strong arms around the pillars of the Constitution and pull down the great Temple of our Union—that they might rear upon its site another and a stronger edifice, dedicated not to Freedom, but to Free-Trade and to other false gods.

South Carolina was to lead off, and the other Cotton States would follow. South Carolina did lead off—but the other Cotton-States did not follow.

It has been shown in these pages how South Carolina declared the Tariff Acts aforesaid, null and void, armed herself to resist force, and declared that any attempt of the general Government to enforce those Acts would cause her to withdraw from the Union. But Jackson as we know throttled the treason with so firm a grip that Nullification and Secession and Disunion were at once paralyzed.

The concessions to the domineering South, in Clay's Compromise Tariff of 1833, let the Conspirators down easily, so to speak; and they pretended to be satisfied. But they were satisfied only as are the thirsty sands of Africa with the passing shower.

The Conspirators had, however, after all, made substantial gains. They had established a precedent for an attempt to secede. That was something. They had demonstrated that a single Southern State could stand up, armed and threatening, strutting, blustering, and bullying, and at least make faces at the general Government without suffering any very dreadful consequences. That was still more.

They had also ascertained that, by adopting such a course, a single Southern State could force concessions from the fears of the rest of the United States. That was worth knowing, because the time might come, when it might be desirable not only for one but for all the Southern States to secede upon some other pretext, and when it would be awkward, and would

interfere with the Disunion programme, to have the other States either offer or make concessions.

They had also learned the valuable lesson that the single issue of Free-Trade was not sufficiently strong of itself to unite all the Southern States in a determination to secede, and thus dissolve the Union. They saw they must agitate some other issue to unify the South more thoroughly and justify Disunion. On looking over the whole field they concluded that the Slavery question would best answer their purpose, and they adopted it.

It was doubtless a full knowledge of the fact that they had adopted it, that led Jackson to make the declaration, heretofore in these pages given, which has been termed "prophetic." At any rate, thenceforth the programme of the Conspirators was to agitate the Slavery question in all ways possible, so as to increase, extend and solidify the influence and strength of the Slave power; strain the bonds uniting them with the Free States; and weaken the Free States by dividing them upon the question. At the same time the Free-Trade question was to be pressed forward to a triumphal issue, so that the South might be enriched and strengthened, and the North impoverished and weakened, by the result.

That was their programme, in the rough, and it was relentlessly adhered to. Free-Trade and Slavery by turns, if not together, from that time onward, were ever at the front, agitating our People both North and South, and not only consolidating the Southern States on those lines, as the Conspirators designed, but also serving ultimately to consolidate, to some extent—in a manner quite unlooked for by the Conspirators—Northern sentiment, on the opposite lines of Protection and Freedom.

The Compromise Tariff Act of 1833—which Clay was weak enough to concede, and even stout old Jackson to permit to become law without his signature—gave to the Conspirators great joy for years afterward, as they witnessed the distress and disaster brought by it to Northern homes and incomes—not distress and disaster alone, but absolute and apparently irreparable ruin.

The reaction occasioned by this widespread ruin having brought the Whigs into power, led to the enactment of the Protective-Tariff of 1842 and—to the chagrin of the Conspirators—industrial prosperity and plenty to the Free North again ensued.

Even as Cain hated his brother Abel because his sacrifices were acceptable in the sight of God, while his own were not, so the Southern Conspirators, and other Slave-owners also, had, by this time, come to hate the Northern free-thinking, free-acting, freedom-loving mechanic and laboring man, because the very fact and existence of his Godgiven Freedom and higher-resulting civilization was a powerful and perpetual protest against the—abounding iniquities and degradations of Slavery as practiced by themselves.

Hence, by trickery, by cajoling the People With his, and their own, assurances that he was in favor of Protection—they secured the election in 1844 of a Free-Trade President, the consequent repeal of the Protective-Tariff of 1842—which had repaired the dreadful mischief wrought by the Compromise Act of 1833—and the enactment of the infamous Free-Trade Tariff of 1846, which blasted the manufacturing and farming and trade industries of the Country again, as with fire.

The discovery of the great gold fields of California, and the enormous amount of the precious metal poured by her for many succeeding years into the lap of the Nation, alone averted what otherwise would inevitably have been total ruin. As it was, in 1860, the National credit had sunk to a lower point than ever before in all its history. It was confessedly bankrupt, and ruin stalked abroad throughout the United States.

But while, with rapid pen, the carrying out of that part of the Southern Conspirators' Disunion programme which related to Free-Trade, is thus brought again to mind, the other part of that programme, which related to Slavery, must not be neglected or overlooked. On this question they had determined, as we have seen, to agitate without ceasing—having in view, primarily, as already hinted, the extension of Slave territory and the resulting increase of Slave power in the Land; and, ulteriorly, the solidifying of that power, and Disunion of the Republic, with a view to its conversion into an Oligarchy, if not a Monarchy.

The bitterness of the struggle over the admission of Missouri as a Slave State in 1820, under the Missouri Compromise, was to be revived by the Conspirators, at the earliest possible moment.

Accordingly in 1836—only three years after the failure of Nullification in South Carolina, the Territory, of Arkansas was forced in as a Slave State, and simultaneously the Slave-owning henchmen of the Conspirators,

previously settled there for the purpose, proclaimed the secession from Mexico, and independence, of Texas. This was quickly followed, in 1844, by Calhoun's hastily negotiated treaty of annexation with Texas; its miscarriage in the Senate; and the Act of March 2, 1845—with its sham compromise—consenting to the admission of Texas to the Union of States.

Then came the War with Mexico; the attempt by means of the Wilmot proviso to check the growing territorial-greed and rapacity of the Slave-power; and the acquisition by the United States, of California and New Mexico, under the treaty of Guadalupe Hidalgo in 1848, which brought Peace.

Then occurred the agitation over the organization of Territorial governments for Oregon, California, and New Mexico, and the strong effort to extend to the Pacific Ocean the Missouri-Compromise line of 36 30', and to extend to all future Territorial organizations the principles of that compromise.

Then came the struggle in 1850, over the admission of California as a State, and New Mexico and Utah to Territorial organization—ending in the passage of Clay's Compromise measures of 1850.

Yet still the Southern Conspirators—whose forces, both in Congress and out, were now well-disciplined, compacted, solidified, experienced, and bigotedly enthusiastic and overbearing—were not satisfied. It was not their intention to be satisfied with anything less than the destruction of the Union and of our Republican form of Government. The trouble was only beginning, and, so far, almost everything had progressed to their liking. The work must proceed.

In 1852-3 they commenced the Kansas-Nebraska agitation; and, what with their incessant political and colonizing movements in those Territories; the frequent and dreadful atrocities committed by their tools, the Border-ruffians; the incessant turmoil created by cruelties to their Fugitive-slaves; their persistent efforts to change the Supreme Court to their notions; these—with the decision and opinion of the Supreme Court in the Dred Scott case—together worked the Slavery question up to a dangerous degree of heat, by the year 1858.

And, by 1860—when the people of the Free States, grown sick unto death of the rule of the Slave-power in the General Government, arose in their political might, and shook off this "Old Man of the Sea," electing,

beyond cavil and by the Constitutional mode, to the Presidential office, a man who thoroughly represented in himself their conscience, on the one hand, which instinctively revolted against human Slavery as a wrong committed against the laws of God, and their sense of justice and equity on the other, which would not lightly overlook, or interfere with vested rights under the Constitution and the laws of man—the Conspirators had reached the point at which they had been aiming ever since that failure in 1832 of their first attempt at Disunion, in South Carolina.

They had now succeeded in irritating both the Free and the Slave-holding Sections of our Country against each other, to an almost unbearable point; had solidified the Southern States on the Slavery and Free-Trade questions; and at last—the machinations of these same Conspirators having resulted in a split in the Democratic Party, and the election of the Republican candidate to the Presidency, as the embodiment of the preponderating National belief in Freedom and equality to all before the Law, with Protection to both Labor and Capital—they also had the pretext for which they had both been praying and scheming and preparing all those long, long years—they, and some of their fathers before them.

It cannot be too often repeated that to secure a Monarchy, or at least an Oligarchy, over which the leading Conspirators should rule for life—whether that Monarchy or that Oligarchy should comprise the States of the South by themselves, or all the States on a new basis of Union—was the great ultimate aim of the Conspirators; and this could be secured only by first disrupting the then existing Republican Union of Republican States.

The doctrine of the right of Secession had now long been taught, and had become a part of the Southern Slave-holders' Democratic creed, as fully as had the desirability of Slavery and Free-Trade—and even many of the Northern Democrats, and some Republicans as well, were not much inclined to dispute, although they cared not to canvass, the point.

The programme of action was therefore much the same as had been laid down in the first attempt in 1832:—first South Carolina would secede and declare her independence; then the other Slave States in quick succession would do likewise; then a new Constitution for a solid Southern Union; then, if necessary, a brief War to cement it—which would end, of course, in the independence of the South at least, but more probably in the utter subjugation and humiliation of the Free States.

When the time should come, during or after this War—as come, in their belief, it would—for a change in the form of Government, then they could seize the first favorable occasion and change it. At present, however, the cry must be for "independence." That accomplished, the rest would be easy. And until that independence was accomplished, no terms of any sort, no settlement of any kind, were either to be proposed or accepted by them.

These were their dreams, their ambitions, their plans; and the tenacious courage with which they stuck to them "through thick and thin," through victory and disaster, were worthy of a better cause.

While, therefore, the pretexts for Secession were "Slavery" and "Free-Trade"—both of which were alleged to be jeopardized in the election and inauguration of Abraham Lincoln—yet, no sooner had hostilities commenced between the seceding States and the Union, than they declared to the World that their fight was not for Slavery, but for Independence.

They dared not acknowledge to the World that they fought for Slavery, lest the sympathies of the World should be against them. But it was well understood by the Southern masses, as well as the other people of the Union, that both Slavery and Free-Trade were involved in the fight—as much as independence, and the consequent downfall of the Union.

President Lincoln, however, had made up his mind to do all he properly could to placate the South. None knew better than he, the history of this Secession movement, as herein described. None knew better than he, the fell purpose and spirit of the Conspirators. Yet still, his kindly heart refused to believe that the madness of the Southern leaders was so frenzied, and their hatred of Free men, Free labor, and Free institutions, so implacable, that they would wilfully refuse to listen to reason and ever insist on absolutely inadmissible terms of reconciliation.

From the very beginning of his Administration, he did all that was possible to mollify their resentment and calm their real or pretended fears. Nor was this from any dread or doubt as to what the outcome of an armed Conflict would be; for, in his speech at Cincinnati, in the Autumn of 1859, he had said, while addressing himself to Kentuckians and other Southern men: "Why, gentlemen, I think you are as gallant and as brave men as live; that you can fight as bravely in a good cause, man for man, as any other people living; that you have shown yourselves capable of this upon various occasions; but man for man, you are not better than we are, and there are

not so many of you as there are of us. You will never make much of a hand at whipping us. If we were fewer in numbers than you, I think that you could whip us; if we were equal it would likely be a drawn battle; but being inferior in numbers, you will make nothing by attempting to master us."

And early in 1860, in his famous New York Cooper Institute speech he had said "Let us have faith that right makes might, and in that faith, let us, to the end, dare to do our duty as we understand it." He plainly believed to the end, that "right makes might;" and he believed in the power of numbers—as also did Napoleon, if we may judge from his famous declaration that "The God of battles is always on the side of the heaviest battalions." Yet, so believing, President Lincoln exerted himself in all possible ways to mollify the South. His assurances, however, were far from satisfying the Conspirators. They never had been satisfied with anything in the shape of concession. They never would be. They had been dissatisfied with and had broken all the compacts and compromises, and had spit upon all the concessions, of the past; and nothing would now satisfy them, short of the impossible.

They were not satisfied now with Lincoln's promise that the Government would not assail them—organized as, by this time, they were into a so-called Southern "Confederacy" of States—and they proceeded accordingly to assail that Government which would not assail them. They opened fire on Fort Sumter.

This was done, as has duly appeared, in the hope that the shedding of blood would not only draw the States of the Southern Confederacy more closely together in their common cause, and prevent the return of any of them to their old allegiance, but also to so influence the wavering allegiance to the Union, of the Border States, as to strengthen that Confederacy and equivalently weaken that Union, by their Secession.

Virginia, North Carolina, Tennessee, and Arkansas, of the Border States that were wavering, were thus gathered into the Confederate fold, by this policy of blood-spilling—carried bodily thither, by a desperate and frenzied minority, against the wishes of a patriotic majority.

Virginia, especially, was a great accession to the Rebel cause. She brought to it the prestige of her great name. To secure the active cooperation of "staid old Virginia," "the Mother of Statesmen," in the struggle, was, in the estimation of the Rebels, an assurance of victory to their cause. And the

Secession of Virginia for a time had a depressing influence upon the friends of the Union everywhere.

The refusal of West Virginia to go with the rest of the State into Rebellion, was, to be sure, some consolation; and the checkmating of the Conspirators' designs to secure to the Confederacy the States of Maryland, Kentucky and Missouri, helped the confidence of Union men. In fact, as long as the National Capital was secure, it was felt that the Union was still safe.

But while the Confederacy, by the firing upon Fort Sumter, and thus assailing that Government which Lincoln had promised would not assail the Rebels, had gained much in securing the aid of the States mentioned, yet the Union Cause, by that very act, had gained more. For the echoes of the Rebel guns of Fort Moultrie were the signal for such an uprising of the Patriots of the North and West and Middle States, as, for the moment, struck awe to the hearts of Traitors and inspired with courage and hopefulness the hearts of Union men throughout the Land.

Moreover it put the Rebels in their proper attitude, in the eyes of the World—as the first aggressors—and thus deprived them, to a certain extent, of that moral support from the outside which flows from sympathy.

Those echoes were the signal, not only of that call to arms which led to such an uprising, but for the simultaneous calling together of the Thirty-seventh Congress of the United States in Extra Session—the Congress whose measures ultimately enabled President Lincoln and the Union Armies to subdue the Rebellion and save the Union—the Congress whose wise and patriotic deliberations resulted in the raising of those gigantic Armies and Navies, and in supplying the unlimited means, through the Tariff and National Bank Systems and otherwise, by which those tremendous Forces could be both created and effectively operated—the Congress which cooperated with President Lincoln and those Forces in preparing the way for the destruction of the very corner-stone of the Confederacy, Slavery itself.



SIMON CAMERON.

CHAPTER XX.

LINCOLN'S TROUBLES AND TEMPTATIONS.

The Rebels themselves, as has already been noted, by the employment of their Slaves in the construction of earthworks and other fortifications, and even in battle, at Bull Run and elsewhere, against the Union Forces, brought the Thirty-seventh Congress, as well as the Military Commanders, and the President, to an early consideration of the Slavery question. But it was none the less a question to be treated with the utmost delicacy.

The Union men, as well as the Secession-sympathizers, of Kentucky and Tennessee and Missouri and Maryland, largely believed in Slavery, or at least were averse to any interference with it. These, would not see that the right to destroy that unholy Institution could pertain to any authority, or be justified by any exigency; much less that, as held by some authorities, its existence ceased at the moment when its hands, or those of the State in which it had existed, were used to assail the General Government.

They looked with especial suspicion and distrust upon the guarded utterances of the President upon all questions touching the future of the Colored Race.

[At Faneuil Hall, Edward Everett is reported to have said, in October of 1864:

"It is very doubtful whether any act of the Government of the United States was necessary to liberate the Slaves in a State which is in Rebellion. There is much reason for the opinion that, by the simple act of levying War against the United States, the relation of Slavery was terminated; certainly, so far as concerns the duty of the United States to recognize it, or to refrain from interfering with it.

"Not being founded on the Law of Nature, and resting solely on positive Local Law—and that, not of the United States—as soon as it becomes either the motive or pretext of an unjust War against the Union—an efficient instrument in the hands of the Rebels for carrying on the War—source of Military strength to the Rebellion, and of danger to the Government at home and abroad, with the additional certainty that, in any event but its abandonment, it will continue, in all future time to work these mischiefs, who can suppose it is the duty of the United States to continue to recognize it.

"To maintain this would be a contradiction in terms. It would be two recognize a right in a Rebel master to employ his Slave in acts of Rebellion and Treason, and the duty of the Slave to aid and abet his master in the commission of the greatest crime known to the Law. No such absurdity can be admitted; and any citizen of the United States, from the President down, who should, by any overt act, recognize the duty of a Slave to obey a Rebel master in a hostile operation, would himself be giving aid and comfort to the Enemy."]

They believed that when Fremont issued the General Order—heretofore given in full—in which that General declared that "The property, real and personal, of all persons, in the State of Missouri, who shall take up arms against the United States, or who shall be directly proven to have taken an active part with their enemies in the field, is declared to be confiscated to the public use, and their Slaves, if any they have, are hereby declared Free men," it must have been with the concurrence, if not at the suggestion, of the President; and, when the President subsequently, September 11, 1861, made an open Order directing that this clause of Fremont's General Order, or proclamation, should be "so modified, held, and construed, as to conform to, and not to transcend, the provisions on the same subject contained in the Act of Congress entitled 'An Act to Confiscate Property used for Insurrectionary Purposes,' approved August 6, 1861," they still were not satisfied.

[The sections of the above Act, bearing upon the matter, are the first and fourth, which are in these words:

"That if, during the present or any future insurrection against the Government of the United States, after the President of the United States shall have declared, by proclamation, that the laws of the United States are opposed, and the execution thereof obstructed, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings, or by the power vested in the marshals by law, any person or persons, his, her, or their agent, attorney, or employee, shall purchase or acquire, sell or give, any property of whatsoever kind or description, with intent to use or employ the same, or suffer the same to be used or employed, in aiding, abetting, or promoting such insurrection or resistance to the laws, or any persons engaged therein; or if any person or persons, being the owner or owners of any such property, shall knowingly use or employ, or consent to the use or employment of the same as aforesaid, all such property is hereby declared to be lawful subject of prize and capture wherever found; and it shall be the duty of the President of the United States to cause the same to be seized, confiscated and condemned."

** * * * **

"SEC. 4. That whenever hereafter, during the present insurrection against the Government of the United States, any person claimed to be held to Labor or Service under the law of any State shall be required or permitted by the person to whom such Labor or Service is claimed to be due, or by the lawful agent of such person, to take up arms against the United States; or shall be required or permitted by the person to whom such Labor or Service is claimed to be due, or his lawful agent, to work or to be employed in or upon any fort, navy-yard, dock, armory, ship, entrenchment, or in any Military or Naval service whatsoever, against the Government and lawful authority of the United States, then, and in every such case, the person to whom such Labor or

Service is claimed to be due, shall forfeit his claim to such Labor, any law of the State or of the United States to the contrary notwithstanding. And whenever thereafter the person claiming such Labor or Service shall seek to enforce his claim, it shall be a full and sufficient answer to such claim that the person whose Service or Labor is claimed had been employed in hostile service against the Government of the United States, contrary to the provisions of this act."

It seemed as impossible to satisfy these Border-State men as it had been to satisfy the Rebels themselves.

The Act of Congress, to which President Lincoln referred in his Order modifying Fremont's proclamation, had itself been opposed by them, under the lead of their most influential Representative and spokesman, Mr. Crittenden, of Kentucky, in its passage through that Body. It did not satisfy them.

Neither had they been satisfied, when, within one year and four days after "Slavery opened its batteries of Treason, upon Fort Sumter," that National curse and shame was banished from the Nation's Capital by Congressional enactment.

They were not satisfied even with Mr. Lincoln's conservative suggestions embodied in the Supplemental Act.

Nor were they satisfied with the General Instructions, of October 14, 1861, from the War Department to its Generals, touching the employment of Fugitive Slaves within the Union Lines, and the assurance of just compensation to loyal masters, therein contained, although all avoidable interference with the Institution was therein reprobated.

Nothing satisfied them. It was indeed one of the most curious of the many phenomena of the War of the Rebellion, that when—as at the end of 1861—it had become evident, as Secretary Cameron held, that it "would be National suicide" to leave the Rebels in "peaceful and secure possession of Slave Property, more valuable and efficient to them for War, than forage, cotton, and Military stores," and that the Slaves coming within our lines could not "be held by the Government as Slaves," and should not be held as prisoners of War—still the loyal people of these Border-States, could not

bring themselves to save that Union, which they professed to love, by legislation on this tender subject.

On the contrary, they opposed all legislation looking to any interference with such Slave property. Nothing that was proposed by Mr. Lincoln, or any other, on this subject, could satisfy them.

Congress enacted a law, approved March 13, 1862, embracing an additional Article of War, which prohibited all officers "from employing any of the forces under their respective Commands for the purpose of returning Fugitives from Service or Labor who may have escaped from any persons to whom such Service or Labor is claimed to be due," and prescribed that "Any officer who shall be found guilty by Court-Martial of violating this Article shall be dismissed from the Service." In both Houses, the loyal Border-State Representatives spoke and voted against its passage.

One week previously (March 6, 1862), President Lincoln, in an admirable Message, hitherto herein given at length, found himself driven to broach to Congress the subject of Emancipation. He had, in his First Annual Message (December, 1861), declared that "the Union must be preserved; and hence all indispensable means must be employed;" but now, as a part of the War Policy, he proposed to Congress the adoption of a Joint Resolution declaring "That the United States ought to cooperate with any State which may adopt gradual abolishment of Slavery, giving to such State, pecuniary aid, to be used by such State in its discretion, to compensate for the inconveniences, public and private, produced by such change of System."

It was high time, he thought, that the idea of a gradual, compensated Emancipation, should begin to occupy the minds of those interested, "so that," to use his own words, "they may begin to consider whether to accept or reject it," should Congress approve the suggestion.

Congress did approve, and adopt, the Joint-Resolution, as we know—despite the opposition from the loyal element of the Border States—an opposition made in the teeth of their concession that Mr. Lincoln, in recommending its adoption, was "solely moved by a high patriotism and sincere devotion to the glory of his Country."

But, consistently with their usual course, they went to the House of Representatives, fresh from the Presidential presence, and, with their ears still ringing with the common-sense utterances of the President, half of them voted against the Resolution, while the other half refrained from

voting at all. And their opposition to this wise and moderate proposition was mainly based upon the idea that it carried with it a threat—a covert threat.

It certainly was a warning, taking it in connection with the balance of the Message, but a very wise and timely one.

These loyal Border-State men, however, could not see its wisdom, and at a full meeting held upon the subject decided to oppose it, as they afterward did. Its conciliatory spirit they could not comprehend; the kindly, temperate warning, they would not heed. The most moderate of them all,—[Mr. Crittenden of Kentucky.]—in the most moderate of his utterances, could not bring himself to the belief that this Resolution was "a measure exactly suited to the times."

[And such was the fatuity existing among the Slaveholders of the Border States, that not one of those Slave States had wisdom enough to take the liberal offer thus made by the General Government, of compensation. They afterward found their Slaves freed without compensation.]

So, also, one month later, (April 11, 1862), when the Senate Bill proposing Emancipation in the District of Columbia, was before the House, the same spokesman and leader of the loyal Border-State men opposed it strenuously as not being suited to the times. For, he persuasively protested: "I do not say that you have not the power; but would not that power be, at such a time as this, most unwisely and indiscreetly exercised. That is the point. Of all the times when an attempt was ever made to carry this measure, is not this the most inauspicious? Is it not a time when the measure is most likely to produce danger and mischief to the Country at large? So it seems to me."

It was not now, nor would it ever be, the time, to pass this, or any other measure, touching the Institution of Slavery, likely to benefit that Union to which these men professed such love and loyalty.

Their opposition, however, to the march of events, was of little avail—even when backed, as was almost invariably the case, by the other Democratic votes from the Free States. The opposition was obstructive, but not effectual. For this reason it was perhaps the more irritating to the

Republicans, who were anxious to put Slavery where their great leader, Mr. Lincoln, had long before said it should be placed—"in course of ultimate extinction."

This very irritation, however, only served to press such Anti-Slavery Measures more rapidly forward. By the 19th of June, 1862, a Bill "to secure Freedom to all persons within the Territories of the United States"—after a more strenuous fight against it than ever, on the part of Loyal and Copperhead Democrats, both from the Border and Free States,—had passed Congress, and been approved by President Lincoln. It provided, in just so many words, "That, from and after the passage of this Act, there shall be neither Slavery nor involuntary servitude in any of the Territories of the United States now existing, or which may at any time hereafter be formed or acquired by the United States, otherwise than in punishment of crime, whereof the party shall have been duly convicted."

Here, then, at last, was the great end and aim, with which Mr. Lincoln and the Republican Party started out, accomplished. To repeat his phrase, Slavery was certainly now in course of ultimate extinction.

But since that doctrine had been first enunciated by Mr. Lincoln, events had changed the aspect of things. War had broken out, and the Slaves of those engaged in armed Rebellion against the authority of the United States Government, had been actually employed, as we have seen, on Rebel works and fortifications whose guns were trailed upon the Armies of the Union.

And now, the question of Slavery had ceased to be simply whether it should be put in course of ultimate extinction, but whether, as a War Measure—as a means of weakening the Enemy and strengthening the Union—the time had not already come to extinguish it, so far, at least, as the Slaves of those participating in the Rebellion, were concerned.

Congress, as has been heretofore noted, had already long and heatedly debated various propositions referring to Slavery and African Colonization, and had enacted such of them as, in its wisdom, were considered necessary; and was now entering a further stormy period of contention upon various other projects touching the Abolition of the Fugitive Slave Laws, the Confiscation of Rebel Property, and the Emancipation of Slaves—all of which, of course, had been, and would be, vehemently assailed by the loyal Border-States men and their Free-State Democratic allies.

This contention proceeded largely upon the lines of construction of that clause in the Constitution of the United States and its Amendments, which provides that no person shall be deprived of Life, Liberty, or Property, without due process of Law, etc. The one side holding that, since the beginning of our Government, Slaves had been, under this clause, Unconstitutionally deprived of their Liberty; the other side holding that Slaves being "property," it would be Unconstitutional under the same clause, to deprive the Slave-owner of his Slave property.

Mr. Crittenden, the leader of the loyal Border-States men in Congress, was at this time especially eloquent on this latter view of the Constitution. In his speech of April 23, 1862, in the House of Representatives, he even undertook to defend American Slavery under the shield of English Liberty!

Said he: "It is necessary for the prosperity of any Government, for peace and harmony, that every man who acquires property shall feel that he shall be protected in the enjoyment of it, and in his right to hold it. It elevates the man; it gives him a feeling of dignity. It is the great old English doctrine of Liberty. Said Lord Mansfield, the rain may beat against the cabin of an Englishman, the snow may penetrate it, but the King dare not enter it without the consent of its owner. That is the true English spirit. It is the source of England's power."

And again: "The idea of property is deeply seated in our minds. By the English Law and by the American Law you have the right to take the life of any man who attempts, by violence, to take your property from you. So far does the Spirit of these Laws go. Let us not break down this idea of property. It is the animating spirit of the Country. Indeed it is the Spirit of Liberty and Freedom."

There was at this time, a growing belief in the minds of these loyal Border-States men, that this question of Slavery-abolition was reaching a crisis. They saw "the handwriting on the wall," but left no stone unturned to prevent, or at least to avert for a time, the coming catastrophe. They egged Congress, in the language of the distinguished Kentuckian, to "Let these unnecessary measures alone, for the present;" and, as to the President, they now, not only volunteered in his defense, against the attacks of others, but strove also to capture him by their arch flatteries.

"Sir,"—said Mr. Crittenden, in one of his most eloquent bursts, in the House of Representatives,— "it is not my duty, perhaps, to defend the

President of the United States. * * * I voted against Mr. Lincoln, and opposed him honestly and sincerely; but Mr. Lincoln has won me to his side. There is a niche in the Temple of Fame, a niche near to Washington, which should be occupied by the statue of him who shall, save this Country. Mr. Lincoln has a mighty destiny. It is for him, if he will, to step into that niche. It is for him to be but President of the People of the United States, and there will his statue be. But, if he choose to be, in these times, a mere sectarian and a party man, that niche will be reserved for some future and better Patriot. It is in his power to occupy a place next Washington,—the Founder, and the Preserver, side by side. Sir, Mr. Lincoln is no coward. His not doing what the Constitution forbade him to do, is no proof of his cowardice."

On the other hand, Owen Lovejoy, the fiery Abolitionist, the very next day after the above remarks of Mr. Crittenden were delivered in the House, made a great speech in reply, taking the position that "either Slavery, or the Republic, must perish; and the question for us to decide is, which shall it be?"

He declared to the House: "You cannot put down the rebellion and restore the Union, without destroying Slavery." He quoted the sublime language of Curran touching the Spirit of the British Law, which consecrates the soil of Britain to the genius of Universal Emancipation,

[In these words:

"I speak in the Spirit of the British law, which makes Liberty commensurate with, and inseparable from, the British soil; which proclaims even to the stranger and the sojourner the moment he sets his foot upon British earth, that the ground on which he treads is holy, and consecrated by the genius Of UNIVERSAL EMANCIPATION.

"No matter in what language his doom may have been pronounced; no matter what complexion incompatible with Freedom, an Indian or an African sun may have burnt upon him; no matter in what disastrous battle his Liberty may have been cloven down; no matter with what solemnities he may have been devoted upon the altar of Slavery; the first moment he touches the sacred soil of Britain, the altar and

the god sink together in the dust; his Soul walks abroad in her own majesty; his Body swells beyond the measure of his chains, that burst from around him, and he stands redeemed, regenerated, and disenthralled by the irresistible genius of UNIVERSAL EMANCIPATION."]

And Cowper's verse, wherein the poet says:

*"Slaves cannot breathe in England; if their lungs Receive
our air, that moment they are Free,"*

—and, after expressing his solicitude to have this true of America, as it already was true of the District of Columbia, he proceeded to say:

"The gentleman from Kentucky says he has a niche for Abraham Lincoln. Where is it? He pointed upward! But, Sir, should the President follow the counsels of that gentleman, and become the defender and perpetuator of human Slavery, he should point downward to some dungeon in the Temple of Moloch, who feeds on human blood and is surrounded with fires, where are forged manacles and chains for human limbs—in the crypts and recesses of whose Temple, woman is scourged, and man tortured, and outside whose walls are lying dogs, gorged with human flesh, as Byron describes them stretched around Stamboul. That is a suitable place for the statue of one who would defend and perpetuate human Slavery."

And then—after saying that "the friends of American Slavery need not beslime the President with their praise. He is an Anti-Slavery man. He hates human Bondage"—the orator added these glowing words:

"I, too, have a niche for Abraham Lincoln; but it is in Freedom's Holy Fane, and not in the blood-besmeared Temple of human Bondage; not surrounded by Slaves, fetters and chains, but with the symbols of Freedom; not dark with Bondage, but radiant with the light of Liberty. In that niche he shall stand proudly, nobly, gloriously, with shattered fetters and broken chains and slave-whips beneath his feet. If Abraham Lincoln pursues the path, evidently pointed out for him in the providence of God, as I believe he will, then he will occupy the proud position I have indicated. That is a fame worth living for; ay, more, that is a fame worth dying for, though that death led through the blood of Gethsemane and the agony of the Accursed Tree. That is a fame which has glory and honor and immortality and Eternal Life.

Let Abraham Lincoln make himself, as I trust he will, the Emancipator, the Liberator, as he has the opportunity of doing, and his name shall not only be enrolled in this Earthly Temple, but it will be traced on the living stones of that Temple which rears itself amid the Thrones and Hierarchies of Heaven, whose top-stone is to be brought in with shouting of 'Grace, grace unto it!'"

We have seen how the loyal Border-State men, through their chosen Representative—finding that their steady and unfaltering opposition to all Mr. Lincoln's propositions, while quite ineffectual, did not serve by any means to increase his respect for their peculiar kind of loyalty —offered him posthumous honors and worship if he would but do as they desired. Had they possessed the power, no doubt they would have taken him up into an exceeding high mountain and have offered to him all the Kingdoms of the Earth to do their bidding. But their temptations were of no avail.

President Lincoln's duty, and inclination alike—no less than the earnest importunities of the Abolitionists—carried him in the opposite direction; but carried him no farther than he thought it safe, and wise, to go. For, in whatever he might do on this burning question of Emancipation, he was determined to secure that adequate support from the People without which even Presidential Proclamations are waste paper.

But now, May 9, 1862, was suddenly issued by General Hunter, commanding the "Department of the South," comprising Georgia, Florida and South Carolina, his celebrated Order announcing Martial Law, in those States, as a Military Necessity, and—as "Slavery and Martial Law in a Free Country are altogether incompatible"—declaring all Slaves therein, "forever Free."

This second edition, as it were, of Fremont's performance, at once threw the loyal Border-State men into a terrible ferment. Again, they, and their Copperhead and other Democratic friends of the North, meanly professed belief that this was but a part of Mr. Lincoln's programme, and that his apparent backwardness was the cloak to hide his Anti-Slavery aggressiveness and insincerity.

How hurtful the insinuations, and even direct charges, of the day, made by these men against President Lincoln, must have been to his honest, sincere, and sensitive nature, can scarcely be conceived by those who did not know him; while, on the other hand, the reckless impatience of some of his friends for "immediate and universal Emancipation," and their

complaints at his slow progress toward that goal of their hopes, must have been equally trying.

True to himself, however, and to the wise conservative course which he had marked out, and, thus far, followed, President Lincoln hastened to disavow Hunter's action in the premises, by a Proclamation, heretofore given, declaring that no person had been authorized by the United States Government to declare the Slaves of any State, Free; that Hunter's action in this respect was void; that, as Commander-in-chief he reserved solely to himself, the questions, first, as to whether he had the power to declare the Slaves of any State or States, Free, and, second, whether the time and necessity for the exercise of such supposed power had arrived. And then, as we may remember, he proceeded to cite the adoption, by overwhelming majorities in Congress, of the Joint Resolution offering pecuniary aid from the National Government to "any State which may adopt a gradual abolishment of Slavery;" and to make a most earnest appeal, for support, to the Border-States and to their people, as being "the most interested in the subject matter."

In his Special Message to Congress,—[Of March 6, 1862.]—recommending the passage of that Joint Resolution, he had plainly and emphatically declared himself against sudden Emancipation of Slaves. He had therein distinctly said: "In my judgment, gradual, and not immediate, Emancipation, is better for all." And now, in this second appeal of his to the Border-States men, to patriotically close with the proposal embraced in that Resolution, he said: "The changes it contemplates would come gently as the dews of Heaven, not rending or wrecking anything. Will you not embrace it? So much good has not been done, by one effort, in all past time, as, in the providence of God, it is now your high privilege to do! May the vast future not have to lament that you have neglected it!"

[The following letter, from Sumner, shows the impatience of some of the President's friends, the confidence he inspired in others nearer in his counsels, and how entirely, at this time, his mind was absorbed in his project for gradual and compensated Emancipation.]

"SENATE CHAMBER, June 5, 1862.

"MY DEAR SIR.—Your criticism of the President is hasty. I am confident that, if you knew him as I do, you would not make it. Of course the President cannot be held responsible for the misfeasances of subordinates, unless adopted or at least tolerated by him. And I am sure that nothing unjust or ungenerous will be tolerated, much less adopted, by him.

"I am happy to let you know that he has no sympathy with Stanley in his absurd wickedness, closing the schools, nor again in his other act of turning our camp into a hunting ground for Slaves. He repudiates both—positively. The latter point has occupied much of his thought; and the newspapers have not gone too far in recording his repeated declarations, which I have often heard from his own lips, that Slaves finding their way into the National lines are never to be Re-enslaved—This is his conviction, expressed without reserve.

"Could you have seen the President—as it was my privilege often—while he was considering the great questions on which he has already acted—the invitation to Emancipation in the States, Emancipation in the District of Columbia, and the acknowledgment of the Independence of Hayti and Liberia—even your zeal would have been satisfied, for you would have felt the sincerity of his purpose to do what he could to carry forward the principles of the Declaration of Independence.

"His whole soul was occupied, especially by the first proposition, which was peculiarly his own. In familiar intercourse with him, I remember nothing more touching than the earnestness and completeness with which he embraced this idea. To his mind, it was just and beneficent, while it promised the sure end of Slavery. Of course, to me, who had already proposed a bridge of gold for the retreating fiend, it was most welcome. Proceeding from the President, it must take its place among the great events of history.

"If you are disposed to be impatient at any seeming shortcomings, think, I pray you, of what has been done in a brief period, and from the past discern the sure promise of

the future. Knowing something of my convictions and of the ardor with which I maintain them, you may, perhaps, derive some assurance from my confidence; I may say to you, therefore, stand by the Administration. If need be, help it by word and act, but stand by it and have faith in it.

"I wish that you really knew the President, and had heard the artless expression of his convictions on those questions which concern you so deeply. You might, perhaps, wish that he were less cautious, but you would be grateful that he is so true to all that you have at heart. Believe me, therefore, you are wrong, and I regret it the more because of my desire to see all our friends stand firmly together.

"If I write strongly it is because I feel strongly; for my constant and intimate intercourse with the President, beginning with the 4th of March, not only binds me peculiarly to his Administration, but gives me a personal as well as a political interest in seeing that justice is done him.

*"Believe me, my dear Sir, with much regard, ever faithfully yours,
"CHARLES SUMNER."*

But stones are not more deaf to entreaty than were the ears of the loyal Border-State men and their allies to President Lincoln's renewed appeal. "Ephraim" was "wedded to his idols."

McClellan too—immediately after his retreat from the Chickahominy to the James River—seized the opportunity afforded by the disasters to our arms, for which he was responsible, to write to President Lincoln a letter (dated July 7, 1862) in which he admonished him that owing to the "critical" condition of the Army of the Potomac, and the danger of its being "overwhelmed" by the Enemy in front, the President must now substantially assume and exercise the powers of a Dictator, or all would be lost; that "neither Confiscation of property * * * nor forcible Abolition of Slavery, should be contemplated for a moment;" and that "A declaration of Radical

views, especially upon Slavery, will rapidly disintegrate our present Armies."

Harried, and worried, on all sides,—threatened even by the Commander of the Army of the Potomac,—it is not surprising, in view of the apparently irreconcilable attitude of the loyal Border-State men to gradual and compensated Emancipation, that the tension of President Lincoln's mind began to feel a measure of relief in contemplating Military Emancipation in the teeth of all such threats.

He had long since made up his mind that the existence of Slavery was not compatible with the preservation of the Union. The only question now was, how to get rid of it? If the worst should come to the worst—despite McClellan's threat—he would have to risk everything on the turn of the die—would have to "play his last card;" and that "last card" was Military Emancipation. Yet still he disliked to play it. The time and necessity for it had not yet arrived—although he thought he saw them coming.

[In the course of an article in the New York Tribune, August, 1885, Hon. George S. Boutwell tells of an interview in "July or early in August" of 1862, with President Lincoln, at which the latter read two letters: one from a Louisiana man "who claimed to be a Union man," but sought to impress the President with "the dangers and evils of Emancipation;" the other, Mr. Lincoln's reply to him, in which, says Mr. B., "he used this expression: 'you must not expect me to give up this Government without playing my last card.' Emancipation was his last card."]

Things were certainly, at this time, sufficiently unpromising to chill the sturdiest Patriot's heart. It is true, we had scored some important victories in the West; but in the East, our arms seemed fated to disaster after disaster. Belmont, Fort Henry, Fort Donelson, and Pittsburg Landing, were names whose mention made the blood of Patriots to surge in their veins; and Corinth, too, had fallen. But in the East, McClellan's profitless campaign against Richmond, and especially his disastrous "change of base" by a "masterly" seven days' retreat, involving as many bloody battles, had greatly dispirited all Union men, and encouraged the Rebels and Rebel-sympathizers to renewed hopes and efforts.

And, as reverses came to the Union Arms, so seemed to grow proportionately the efforts, on all sides, to force forward, or to stave off, as the case might be, the great question of the liberation and arming of the Slaves, as a War Measure, under the War powers of the Constitution. It was about this time (July 12, 1862) that President Lincoln determined to make a third, and last, attempt to avert the necessity for thus emancipating and arming the Slaves. He invited all the Senators and Representatives in Congress from the Border-States, to an interview at the White House, and made to them the appeal, heretofore in these pages given at length.

It was an earnest, eloquent, wise, kindly, patriotic, fatherly appeal in behalf of his old proposition, for a gradual, compensated Emancipation, by the Slave States, aided by the resources of the National Government.

At the very time of making it, he probably had, in his drawer, the rough draft of the Proclamation which was soon to give Liberty to all the Colored millions of the Land.

[McPherson gives a letter, written from Washington, by Owen Lovejoy (Feb. 22, 1864), to Wm. Lloyd Garrison, in which the following passage occurs:

"Recurring to the President, there are a great many reports concerning him which seem to be reliable and authentic, which, after all, are not so. It was currently reported among the Anti-Slavery men of Illinois that the Emancipation Proclamation was extorted from him by the outward pressure, and particularly by the Delegation from the Christian Convention that met at Chicago.

"Now, the fact is this, as I had it from his own lips: He had written the Proclamation in the Summer, as early as June, I think—but will not be certain as to the precise time—and called his Cabinet together, and informed them he had written it and meant to make it, but wanted to read it to them for any criticism or remarks as to its features or details.

"After having done so, Mr. Seward suggested whether it would not be well for him to withhold its publication until after we had gained some substantial advantage in the Field, as at that time we had met with many reverses, and it

might be considered a cry of despair. He told me he thought the suggestion a wise one, and so held on to the Proclamation until after the Battle of Antietam."]

Be that as it may, however, sufficient evidences exist, to prove that he must have been fully aware, at the time of making that appeal to the supposed patriotism of these Border-State men, how much, how very much, depended on the manner of their reception of it.

To him, that meeting was a very solemn and portentous one. He had studied the question long and deeply—not from the standpoint of his own mere individual feelings and judgment, but from that of fair Constitutional construction, as interpreted by the light of Natural or General Law and right reason. What he sought to impress upon them was, that an immediate decision by the Border-States to adopt, and in due time carry out, with the financial help of the General Government, a policy of gradual Emancipation, would simultaneously solve the two intimately-blended problems of Slavery-destruction and Union-preservation, in the best possible manner for the pockets and feelings of the Border-State Slave-holder, and for the other interests of both Border-State Slave-holder and Slave.

His great anxiety was to "perpetuate," as well as to save, to the People of the World, the imperiled form of Popular Government, and assure to it a happy and a grand future.

He begged these Congressmen from the Border-States, to help him carry out this, his beneficent plan, in the way that was best for all, and thus at the same time utterly deprive the Rebel Confederacy of that hope, which still possessed them, of ultimately gathering these States into their rebellious fold. And he very plainly, at the same time, confessed that he desired this relief from the Abolition pressure upon him, which had been growing more intense ever since he had repudiated the Hunter proclamation.

But the President's earnest appeal to these loyal Representatives in Congress from the Border-States, was, as we have seen, in vain. It might as well have been made to actual Rebels, for all the good it did. For, a few days afterward, they sent to him a reply signed by more than two-thirds of those present, hitherto given at length in these pages, in which—after loftily sneering at the proposition as "an interference by this Government with a

question which peculiarly and exclusively belonged to" their "respective States, on which they had not sought advice or solicited aid," throwing doubts upon the Constitutional power of the General Government to give the financial aid, and undertaking by statistics to prove that it would absolutely bankrupt the Government to give such aid,—they insultingly declared, in substance, that they could not "trust anything to the contingencies of future legislation," and that Congress must "provide sufficient funds" and place those funds in the President's hands for the purpose, before the Border-States and their people would condescend even to "take this proposition into careful consideration, for such decision as in their judgment is demanded by their interest, their honor, and their duty to the whole Country."

Very different in tone, to be sure, was the minority reply, which, after stating that "the leaders of the Southern Rebellion have offered to abolish Slavery among them as a condition to Foreign Intervention in favor of their Independence as a Nation," concluded with the terse and loyal deduction: "If they can give up Slavery to destroy the Union, we can surely ask our people to consider the question of Emancipation to save the Union."

But those who signed this latter reply were few, among the many. Practically, the Border-State men were a unit against Mr. Lincoln's proposition, and against its fair consideration by their people. He asked for meat, and they gave him a stone.

Only a few days before this interview, President Lincoln—alarmed by the report of McClellan, that the magnificent Army of the Potomac under his command, which, only three months before, had boasted 161,000 men, had dwindled down to not more than "50,000 men left with their colors"—had been to the front, at Harrison's Landing, on the James river, and, although he had not found things quite so disheartening as he had been led to believe, yet they were bad enough, for only 86,000 men were found by him on duty, while 75,000 were unaccounted for—of which number 34,4172 were afterward reported as "absent by authority."

This condition of affairs, in connection with the fact that McClellan was always calling for more troops, undoubtedly had its influence in bringing Mr. Lincoln's mind to the conviction, hitherto mentioned, of the fast-approaching Military necessity for Freeing and Arming the Slaves.

It was to ward this off, if possible, that he had met and appealed to the Border-State Representatives. They had answered him with sneers and insults; and nothing was left him but the extreme course of almost immediate Emancipation.

Long and anxiously he had thought over the matter, but the time for action was at hand.

And now, it cannot be better told, than in President Lincoln's own words, as given to the portrait-painter Carpenter, and recorded in the latter's, "Six months in the White House," what followed:

"It had got to be," said he, "midsummer, 1862. Things had gone on from bad to worse, until I felt that we had reached the end of our rope on the plan of operations we had been pursuing; that we had about played our last card, and must change our tactics, or lose the game!

"I now determined upon the adoption of the Emancipation Policy; and, without consultation with, or the knowledge of, the Cabinet, I prepared the original draft of the Proclamation, and, after much anxious thought, called a Cabinet meeting upon the subject. This was the last of July, or the first part of the month of August, 1862." (The exact date he did not remember.)

"This Cabinet meeting took place, I think, upon a Saturday. All were present, excepting Mr. Blair, the Postmaster-General, who was absent at the opening of the discussion, but came in subsequently. I said to the Cabinet, that I had resolved upon this step, and had not called them together to ask their advice, but to lay the subject-matter of a Proclamation before them; suggestions as to which would be in order, after they had heard it read.

"Mr. Lovejoy was in error" when he stated "that it excited no comment, excepting on the part of Secretary Seward. Various suggestions were offered. Secretary Chase wished the language stronger, in reference to the arming of the Blacks. Mr. Blair, after he came in, deprecated the policy, on the ground that it would cost the Administration the fall elections.

"Nothing, however, was offered, that I had not already fully anticipated and settled in my own mind, until Secretary Seward spoke. He said in substance: 'Mr. President, I approve of the Proclamation, but I question the expediency of its issue at this juncture. The depression of the public mind, consequent upon our repeated reverses, is so great that I fear the effect of so important a step. It may be viewed as the last Measure of an exhausted

Government, a cry for help, the Government stretching forth its hands to Ethiopia, instead of Ethiopia stretching forth her hands to the Government.'

"His idea," said the President "was that it would be considered our last shriek, on the retreat." (This was his precise expression.) "' Now,' continued Mr. Seward, 'while I approve the Measure, I suggest, Sir, that you postpone its issue, until you can give it to the Country supported by Military success, instead of issuing it, as would be the case now, upon the greatest disasters of the War!'"

Mr. Lincoln continued: "The wisdom of the view of the Secretary of State, struck me with very great force. It was an aspect of the case that, in all my thought upon the subject, I had entirely overlooked. The result was that I put the draft of the Proclamation aside, as you do your sketch for a picture, waiting for a victory."

It may not be amiss to interrupt the President's narration to Mr. Carpenter, at this point, with a few words touching "the Military Situation."

After McClellan's inexplicable retreat from before the Rebel Capital—when, having gained a great victory at Malvern Hills, Richmond would undoubtedly have been ours, had he but followed it up, instead of ordering his victorious troops to retreat like "a whipped Army"—[See General Hooker's testimony before the Committee on the Conduct of the War.]—his recommendation, in the extraordinary letter (of July 7th) to the President, for the creation of the office of General-in-Chief, was adopted, and Halleck, then at Corinth, was ordered East, to fill it.

Pope had previously been called from the West, to take command of the troops covering Washington, comprising some 40,000 men, known as the Army of Virginia; and, finding cordial cooperation with McClellan impossible, had made a similar suggestion.

Soon after Halleck's arrival, that General ordered the transfer of the Army of the Potomac, from Harrison's Landing to Acquia creek—on the Potomac—with a view to a new advance upon Richmond, from the Rappahannock river.

While this was being slowly accomplished, Lee, relieved from fears for Richmond, decided to advance upon Washington, and speedily commenced the movement.

On the 8th of August, 1862, Stonewall Jackson, leading the Rebel advance, had crossed the Rapidan; on the 9th the bloody Battle of Cedar Mountain had been fought with part of Pope's Army; and on the 11th, Jackson had retreated across the Rapidan again.

Subsequently, Pope having retired across the Rappahannock, Lee's Forces, by flanking Pope's Army, again resumed their Northern advance. August 28th and 29th witnessed the bloody Battles of Groveton and Gainesville, Virginia; the 30th saw the defeat of Pope, by Lee, at the second great Battle of Bull Run, and the falling back of Pope's Army toward Washington; and the succeeding Battle of Chantilly took place September 1, 1862.

It is not necessary at this time to even touch upon the causes and agencies which brought such misfortune to the Union Arms, under Pope. It is sufficient to say here, that the disaster of the second Bull Run was a dreadful blow to the Union Cause, and correspondingly elated the Rebels.

Jefferson Davis, in transmitting to the Rebel Congress at Richmond, Lee's victorious announcements, said, in his message: "From these dispatches it will be seen that God has again extended His shield over our patriotic Army, and has blessed the cause of the Confederacy with a second signal victory, on the field already memorable by the gallant achievement of our troops."

Flushed with victory, but wisely avoiding the fortifications of the National Capital, Lee's Forces now swept past Washington; crossed the Potomac, near Point of Rocks, at its rear; and menaced both the National Capital and Baltimore.

Yielding to the apparent necessity of the moment, the President again placed McClellan in command of the Armies about Washington, to wit: the Army of the Potomac; Burnside's troops that had come up from North Carolina; what remained of Pope's Army of Virginia; and the large reinforcements from fresh levies, constantly and rapidly pouring in.

[This was probably about the time of the occurrence of an amusing incident, touching Lincoln, McClellan, and the fortifications around Washington, afterward told by General J. G. Barnard, then Chief of Engineers on the staff of General George B. McClellan.—See New York Tribune,

October 21, 1885. It seems that the fortifications having been completed, McClellan invited Mr. Lincoln and his Cabinet to inspect them. "On the day appointed," said Barnard, "the Inspection commenced at Arlington, to the Southwest of Washington, and in front of the Enemy. We followed the line of the works southerly, and recrossed the Potomac to the easterly side of the river, and continued along the line easterly of Washington and into the heaviest of all the fortifications on the northerly side of Washington. When we reached this point the President asked General McClellan to explain the necessity of so strong a fortification between Washington and the North.

"General McClellan replied: 'Why, Mr. President, according to Military Science it is our duty to guard against every possible or supposable contingency that may arise. For example, if under any circumstances, however fortuitous, the Enemy, by any chance or freak, should, in a last resort, get in behind Washington, in his efforts to capture the city, why, there the fort is to defend it.'

"'Yes, that's so General,' said the President; 'the precaution is doubtless a wise one, and I'm glad to get so clear an explanation, for it reminds me of an interesting question once discussed for several weeks in our Lyceum, or Moot Court, at Springfield, Ill., soon after I began reading law.'

"'Ah!' says General McClellan. 'What question was that, Mr. President?'

"'The question,' Mr. Lincoln replied, 'was, "Why does man have breasts?"' and he added that after many evenings' debate, the question was submitted to the presiding Judge, who wisely decided 'That if under any circumstances, however fortuitous, or by any chance or freak, no matter of what nature or by what cause, a man should have a baby, there would be the breasts to nurse it.'"']

Yet, it was not until the 17th of September that the Battle of Antietam was fought, and Lee defeated—and then only to be allowed to slip back, across the Potomac, on the 18th—McClellan leisurely following him, across that river, on the 2nd of November!

[Arnold, in his "Life of Abraham Lincoln," says that President Lincoln said of him: "With all his failings as a soldier, McClellan is a pleasant and scholarly gentleman. He is an admirable Engineer, but" he added, "he seems to have a special talent for a stationary Engine."]

On the 5th, McClellan was relieved,—Burnside taking the command,—and Union men breathed more freely again.

But to return to the subject of Emancipation. President Lincoln's own words have already been given—in conversation with Carpenter—down to the reading of the Proclamation to his Cabinet, and Seward's suggestion to "wait for a victory" before issuing it, and how, adopting that advice, he laid the Proclamation aside, waiting for a victory.

"From time to time," said Mr. Lincoln, continuing his narration, "I added or changed a line, touching it up here and there, anxiously waiting the progress of events. Well, the next news we had was of Pope's disaster at Bull Run. Things looked darker than ever. Finally, came the week of the Battle of Antietam. I determined to wait no longer.

"The news came, I think, on Wednesday, that the advantage was on our side. I was then staying at the Soldiers' Home (three miles out of Washington.) Here I finished writing the second draft of the preliminary Proclamation; came up on Saturday; called the Cabinet together to hear it; and it was published the following Monday."

It is not uninteresting to note, in this connection, upon the same authority, that at the final meeting of the Cabinet prior to this issue of the Proclamation, when the third paragraph was read, and the words of the draft "will recognize the Freedom of such Persons," were reached, Mr. Seward suggested the insertion of the words "and maintain" after the word "recognize;" and upon his insistence, the President said, "the words finally went in."

At last, then, had gone forth the Fiat—telegraphed and read throughout the Land, on that memorable 22d of September, 1862—which, with the supplemental Proclamation of January 1, 1863, was to bring joy and Freedom to the millions of Black Bondsmen of the South.

Just one month before its issue, in answer to Horace Greeley's Open letter berating him for "the seeming subserviency" of his "policy to the Slaveholding, Slave up-holding interest," etc., President Lincoln had written his famous "Union letter" in which he had conservatively said: "My paramount object is to save the Union, and not either to save or destroy Slavery. If I could save the Union without freeing any Slave, I would do it—and if I could save it by freeing all the Slaves, I would do it—and if I could save it by freeing some, and leaving others alone, I would also do that."

No one outside of his Cabinet dreamed, at the time he made that answer, that the Proclamation of Emancipation was already written, and simply awaited a turn in the tide of battle for its issue!

Still less could it have been supposed, when, on the 13th of September—only two days before Stonewall Jackson had invested, attacked, and captured Harper's Ferry with nearly 12,000 prisoners, 73 cannon, and 13,000 small arms, besides other spoils of War—Mr. Lincoln received the deputation from the religious bodies of Chicago, bearing a Memorial for the immediate issue of such a Proclamation.

The very language of his reply,—where he said to them: "It is my earnest desire to know the will of Providence in this matter. And if I can learn what it is, I will do it! These are not, however, the days of miracles, and I suppose it will be granted that I am not to expect a direct revelation. I must study the plain physical aspects of the case, ascertain what is possible, and learn what appears to be wise and right"—when taken in connection with the very strong argument with which he followed it up, against the policy of Emancipation advocated in the Memorial, and his intimation that a Proclamation of Emancipation issued by him "must necessarily be inoperative, like the Pope's Bull against the Comet!"—would almost seem to have been adopted with the very object of veiling his real purpose from the public eye, and leaving the public mind in doubt. At all events, it had that effect.

Arnold, in his "Life of Lincoln," says of this time, when General Lee was marching Northward toward Pennsylvania, that "now, the President, with

that tinge of superstition which ran through his character, 'made,' as he said, 'a solemn vow to God, that, if Lee was driven back, he would issue the Proclamation;'" and, in the light of that statement, the concluding words of Mr. Lincoln's reply to the deputation aforesaid:—"I can assure you that the subject is on my mind, by day and night, more than any other. Whatever shall appear to be God's will, I will do,"—have a new meaning.

The Emancipation Proclamation, when issued, was a great surprise, but was none the less generally well-received by the Union Armies, and throughout the Loyal States of the Union, while, in some of them, its reception was most enthusiastic.

It happened, too, as we have seen, that the Convention of the Governors of the Loyal States met at Altoona, Penn., on the very day of its promulgation, and in an address to the President adopted by these loyal Governors, they publicly hailed it "with heartfelt gratitude and encouraged hope," and declared that "the decision of the President to strike at the root of the Rebellion will lend new vigor to efforts, and new life and hope to the hearts, of the People."

On the other hand, the loyal Border-States men were dreadfully exercised on the subject; and those of them in the House of Representatives emphasized their disapproval by their votes, when, on the 11th and 15th of the following December, Resolutions, respectively denouncing, and endorsing, "the policy of Emancipation, as indicated in that Proclamation," of September 22, 1862, were offered and voted on.

In spite of the loyal Border-States men's bitter opposition, however, the Resolution endorsing that policy as a War Measure, and declaring the Proclamation to be "an exercise of power with proper regard for the rights of the States and the perpetuity of Free Government," as we have seen, passed the House.

Of course the Rebels themselves, against whom it was aimed, gnashed their teeth in impotent rage over the Proclamation. But they lost no time in declaring that it was only a proof of what they had always announced: that the War was not for the preservation of the American Union, but for the destruction of African Slavery, and the spoilation of the Southern States.

Through their friends and emissaries, in the Border and other Loyal States of the Union,—the "Knights of the Golden Circle,"—

[The "Knights of the Golden Circle" was the most extensive of these Rebel organizations. It was "an auxiliary force to the Rebel Army." Its members took an obligation of the most binding character, the violation of which was punishable by death, which obligation, in the language of another, "pledged them to use every possible means in their power to aid the Rebels to gain their Independence; to aid and assist Rebel prisoners to escape; to vote for no one for Office who was not opposed to the further prosecution of the War; to encourage desertions from the Union Army; to protect the Rebels in all things necessary to carry out their designs, even to the burning and destroying of towns and cities, if necessary to produce the desired result; to give such information as they had, at all times, of the movements of our Armies, and of the return of soldiers to their homes; and to try and prevent their going back to their regiments at the front."

In other words the duty of the Organization and of its members, was to hamper, oppose, and prevent all things possible that were being done at any time for the Union Cause, and to encourage, forward, and help all things possible in behalf of the Rebel Cause.

It was to be a flanking force of the Enemy—a reverse fire—a fire in the rear of the Union Army, by Northern men; a powerful cooperating force—all the more powerful because secret—operating safely because secretly and in silence—and breeding discontent, envy, hatred, and other ill feelings wherever possible, in and out of Army circles, from the highest to the lowest, at all possible times, and on all possible occasions.]

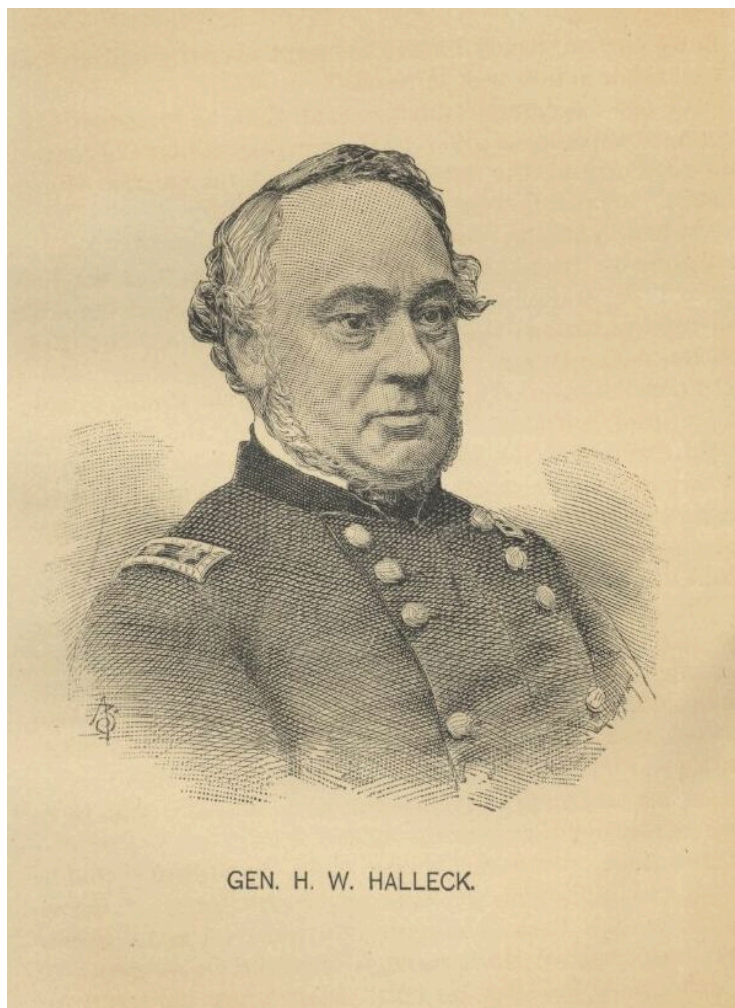
—the "Order of American Knights" or "Sons of Liberty," and other Copperhead organizations, tainted with more or less of Treason—they stirred up all the old dregs of Pro-Slavery feeling that could possibly be reached; but while the venomous acts and utterances of such organizations, and the increased and vindictive energy of the armed Rebels themselves, had a tendency to disquiet the public mind with apprehensions as to the

result of the Proclamation, and whether, indeed, Mr. Lincoln himself would be able to resist the pressure, and stand up to his promise of that Supplemental Proclamation which would give definiteness and practical effect to the preliminary one, the masses of the people of the Loyal States had faith in him.

There was also another element, in chains, at the South, which at this time must have been trembling with that mysterious hope of coming Emancipation for their Race, conveyed so well in Whittier's lines, commencing: "We pray de Lord; he gib us signs, dat some day we be Free"—a hope which had long animated them, as of something almost too good for them to live to enjoy, but which, as the War progressed, appeared to grow nearer and nearer, until now they seemed to see the promised Land, flowing with milk and honey, its beautiful hills and vales smiling under the quickening beams of Freedom's glorious sun. But ah! should they enter there?—or must they turn away again into the old wilderness of their Slavery, and this blessed Liberty, almost within their grasp, mockingly elude them?

They had not long to wait for an answer. The 1st of January, 1863, arrived, and with it—as a precious New Year's Gift—came the Supplemental Proclamation, bearing the sacred boon of Liberty to the Emancipated millions.

At last, at last, no American need blush to stand up and proclaim his land indeed, and in truth, "the Land of Freedom."



GEN. H. W. HALLECK.

CHAPTER XXI.

THE ARMED NEGRO.

Little over five months had passed, since the occurrence of the great event in the history of the American Nation mentioned in the preceding Chapter, before the Freed Negro, now bearing arms in defense of the Union and of his own Freedom, demonstrated at the first attack on Port Hudson the wisdom of emancipating and arming the Slave, as a War measure. He seemed thoroughly to appreciate and enter into the spirit of the words; "who would be Free, himself must strike the blow."

At the attack (of May 27th, 1863), on Port Hudson, where it held the right, the "Black Brigade" covered itself with glory.

At Baton Rouge, before starting for Port Hudson, the color-guard of the First Louisiana Regiment—of the Black Brigade—received the Regimental flags from their white colonel, (Col. Stafford,) then under arrest, in a speech which ended with the injunction: "Color-guard, protect, defend, die for, but do not surrender these flags;" to which Sergeant Planciancois replied: "Colonel, I will bring these colors to you in honor, or report to God the reason why!" He fell, mortally wounded, in one of the many desperate charges at Port Hudson, with his face to the Enemy, and the colors in his hand.

Banks, in his Report, speaking of the Colored regiments, said: "Their conduct was heroic. No troops could be more determined or more daring. They made, during the day, three charges upon the batteries of the Enemy, suffering very heavy losses, and holding their positions at nightfall with the other troops on the right of our line. The highest commendation is bestowed upon them by all the officers in command on the right."

The New York Times' correspondent said:—"The deeds of heroism performed by these Colored men were such as the proudest White men might emulate. Their colors are torn to pieces by shot, and literally bespattered by blood and brains. The color-sergeant of the 1st Louisiana, on being mortally wounded (the top of his head taken off by a sixpounder), hugged the colors to his breast, when a struggle ensued between the two color-corporals on each side of him, as to who should have the honor of bearing the sacred standard, and during this generous contention one was seriously wounded."

So again, on Sunday the 6th of June following, at Milliken's Bend, where an African brigade, with 160 men of the 23rd Iowa, although surprised in camp by a largely superior force of the Enemy, repulsed him gallantly—of which action General Grant, in his official Report, said: "In this battle, most of the troops engaged were Africans, who had but little experience in the use of fire-arms. Their conduct is said, however, to have been most gallant."

So, also, in the bloody assault of July 18th, on Fort Wagner, which was led by the 54th Massachusetts (Colored) Regiment with intrepidity, and where they planted, and for some time maintained, their Country's flag on the parapet, until they "melted away before the Enemy's fire, their bodies falling down the slope and into the ditch."

And from that time on, through the War—at Wilson's Wharf, in the many bloody charges at Petersburg, at Deep Bottom, at Chapin's Farm, Fair Oaks, and numerous other battle-fields, in Virginia and elsewhere, right down to Appomattox—the African soldier fought courageously, fully vindicating the War-wisdom of Abraham Lincoln in emancipating and arming the Race.

The promulgation of this New Year's Proclamation of Freedom unquestionably had a wonderful effect in various ways, upon the outcome of the War.

It cleared away the cobwebs which the arguments of the loyal Border-State men, and of the Northern Copperheads and other Disunion and Pro-Slavery allies of the Rebels were forever weaving for the discouragement, perplexity and ensnarement, of the thoroughly loyal out-and-out Union men of the Land. It largely increased our strength in fighting material. It brought to us the moral support of the World, with the active sympathy of philanthropy's various forces. And besides, it correspondingly weakened the Rebels. Every man thus freed from his Bondage, and mustered into the

Union Armies, was not only a gain of one man on the Union side, but a loss of one man to the Enemy. It is not, therefore, surprising that the Disunion Conspirators—whether at the South or at the North—were furious.

The Chief Conspirator, Jefferson Davis, had already, (December 23, 1862,) issued a proclamation of outlawry against General B. F. Butler, for arming certain Slaves that had become Free upon entering his lines—the two last clauses of which provided: "That all Negro Slaves captured in arms, be at once delivered over to the Executive authorities of the respective States to which they belong, to be dealt with according to the laws of said States," and "That the like orders be executed in all cases with respect to all commissioned Officers of the United States, when found serving in company with said Slaves in insurrection against the authorities of the different States of this Confederacy."

He now called the attention of the Rebel Congress to President Lincoln's two Proclamations of Emancipation, early in January of 1863; and that Body responded by adopting, on the 1st of May of that year, a Resolution, the character of which was so cold-bloodedly atrocious, that modern Civilization might well wonder and Christianity shudder at its purport.

[It was in these words:

"Resolved, by the Congress of the Confederate States of America, In response to the Message of the President, transmitted to Congress at the commencement of the present session, That, in the opinion of Congress, the commissioned officers of the Enemy ought not to be delivered to the authorities of the respective States, as suggested in the said Message, but all captives taken by the Confederate forces ought to be dealt with and disposed of by the Confederate Government.

"SEC. 2.—That, in the judgment of Congress, the proclamations of the President of the United States, dated respectively September 22, 1862, and January 1, 1863, and the other measures of the Government of the United States and of its authorities, commanders, and forces, designed or tending to emancipate slaves in the Confederate States, or to abduct such slaves, or to incite them to insurrection, or to

employ negroes in war against the Confederate States, or to overthrow the institution of African Slavery, and bring on a servile war in these States, would, if successful, produce atrocious consequences, and they are inconsistent with the spirit of those usages which, in modern warfare, prevail among civilized nations; they may, therefore, be properly and lawfully repressed by retaliation.

"SEC. 3.—That in every case wherein, during the present war, any violation of the laws or usages of war among civilized nations shall be, or has been, done and perpetrated by those acting under authority of the Government of the United States, on persons or property of citizens of the Confederate States, or of those under the protection or in the land or naval service of the Confederate States, or of any State of the Confederacy, the President of the Confederate States is hereby authorized to cause full and ample retaliation to be made for every such violation, in such manner and to such extent as he may think proper.

"SEC. 4.—That every white person, being a commissioned officer, or acting as such, who, during the present war, shall command negroes or mulattoes in arms against the Confederate States, or who shall arm, train, organize, or prepare negroes or mulattoes for military service against the Confederate States, or who shall voluntarily aid negroes or mulattoes in any military enterprise, attack, or conflict in such service, shall be deemed as inciting servile insurrection, and shall, if captured, be put to death, or be otherwise punished at the discretion of the Court.

"SEC. 5.—Every person, being a commissioned officer, or acting as such in the service of the Enemy, who shall, during the present war, excite, attempt to excite, or cause to be excited, a servile insurrection, or who shall incite, or cause to be incited, a slave to rebel, shall, if captured, be put to death, or be otherwise punished at the discretion of the court.

"SEC. 6.—Every person charged with an offense punishable under the preceding resolutions shall, during the present war, be tried before the military court attached to the army or corps by the troops of which he shall have been captured, or by such other military court as the President may direct, and in such manner and under such regulations as the President shall prescribe; and, after conviction, the President may commute the punishment in such manner and on such terms as he may deem proper.

"SEC. 7.—All negroes and mulattoes who shall be engaged in war, or be taken in arms against the Confederate States, or shall give aid or comfort to the enemies of the Confederate States, shall, when captured in the Confederate States, be delivered to the authorities of the State or States in which they shall be captured, to be dealt with according to the present or future laws of such State or States."]

But atrocious as were the provisions of the Resolution, or Act aforesaid, in that they threatened death or Slavery to every Black man taken with Union arms in his hand, and death to every White commissioned officer commanding Black soldiers, yet the manner in which they were executed was still more barbarous.

At last it became necessary to adopt some measure by which captured Colored Union soldiers might be protected equally with captured White Union soldiers from the frequent Rebel violations of the Laws of War in the cases of the former.

President Lincoln, therefore, issued an Executive Order prescribing retaliatory measures.

[In the following words:

"EXECUTIVE MANSION,

"WASHINGTON, July 30, 1863.

"It is the duty of every Government to give protection to its citizens, of whatever class, color, or condition, and especially to those who are duly organized as soldiers in the public service. The Law of Nations, and the usages and

customs of War, as carried on by civilized Powers, permit no distinction as to color in the treatment of prisoners of War, as public enemies.

"To sell or Enslave any captured person, on account of his Color, and for no offense against the Laws of War, is a relapse into barbarism, and a crime against the civilization of the age.

"The Government of the United States will give the same protection to all its soldiers, and if the Enemy shall sell or Enslave any one because of his color, the offense shall be punished by Retaliation upon the Enemy's prisoners in our possession.

"It is therefore Ordered, that, for every soldier of the United States killed in violation of the Laws of War, a Rebel soldier shall be executed; and for every one Enslaved by the Enemy or sold into Slavery, a Rebel soldier shall be placed at hard work on the public works, and continued at such labor until the other shall be released and receive the treatment due to a prisoner of War.

"By order of the Secretary of War.

ABRAHAM LINCOLN. E. D.

TOWNSEND, Assistant Adjutant-General."]

It was hoped that the mere announcement of the decision of our Government to retaliate, would put an instant stop to the barbarous conduct of the Rebels toward the captured Colored Union troops, but the hope was vain. The atrocities continued, and their climax was capped by the cold-blooded massacres perpetrated by Forrest's 5,000 Cavalry, after capturing Fort Pillow, a short distance above Memphis, on the Mississippi river.

The garrison of that Fort comprised less than 600 Union soldiers, about one-half of whom were White, and the balance Black. These brave fellows gallantly defended the Fort against eight times their number, from before sunrise until the afternoon, when—having failed to win by fair means, under the Laws of War,—the Enemy treacherously crept up the ravines on

either side of the Fort, under cover of flags of truce, and then, with a sudden rush, carried it, butchering both Blacks and Whites—who had thrown away their arms, and were striving to escape—until night temporarily put an end to the sanguinary tragedy.

On the following morning the massacre was completed by the butchery and torture of wounded remnants of these brave Union defenders—some being buried alive, and others nailed to boards, and burned to death.

[For full account of these hideous atrocities, see testimony of survivors before the Committee on Conduct and Expenditures of the War. (H. R. Report, No. 65, 1st S. 38th Cong.)]

And all this murderous malignity, for what?—Simply, and only, because one-half of the Patriot victims had Black skins, while the other half had dared to fight by the side of the Blacks!

In the after-days of the War, the cry with which our Union Black regiments went into battle:—"Remember Fort Pillow!"—inspired them to deeds of valor, and struck with terror the hearts of the Enemy. On many a bloody field, Fort Pillow was avenged.

It is a common error to suppose that the first arming of the Black man was on the Union side. The first Black volunteer company was a Rebel one, raised early in May, 1861, in the city of Memphis, Tenn.; and at Charleston, S. C., Lynchburg, Va., and Norfolk, Va., large bodies of Free Negroes volunteered, and were engaged, earlier than that, to do work on the Rebel batteries.

On June 28th of the same year, the Rebel Legislature of Tennessee passed an Act not only authorizing the Governor "to receive into the Military service of the State all male Free persons of Color between the ages of fifteen and fifty, or such number as may be necessary, who may be sound in mind and body, and capable of actual service," but also prescribing "That in the event a sufficient number of Free persons of Color to meet the wants of the State shall not tender their services, the Governor is empowered, through the Sheriffs of the different counties, to press such persons until the requisite number is obtained."

At a review of Rebel troops, at New Orleans, November 23, 1861, "One regiment comprised 1,400 Free Colored men." Vast numbers of both Free Negroes and Slaves were employed to construct Rebel fortifications throughout the War, in all the Rebel States. And on the 17th of February, 1864, the Rebel Congress passed an Act which provides in its first section "That all male Free Negroes * * * resident in the Confederate States, between the ages of eighteen and fifty years, shall be held liable to perform such duties with the Army, or in connection with the Military defenses of the Country, in the way of work upon the fortifications, or in Government works for the production or preparation of materials of War, or in Military hospitals, as the Secretary of War or the Commanding General of the Trans-Mississippi Department may, from time to time, prescribe:" while the third section provides that when the Secretary of War shall "be unable to procure the service of Slaves in any Military Department, then he is authorized to impress the services of as many male Slaves, not to exceed twenty thousand, as may be required, from time to time, to discharge the duties indicated in the first section of the Act."

And this Act of, the Rebel Congress was passed only forty days before the fiendish massacre of the Union Whites and Blacks who together, at Fort Pillow, were performing for the Union, "such duties with the Army," and "in connection with the Military defenses of the Country," as had been prescribed for them by their Commanding General!

Under any circumstances—and especially under this state of facts—nothing could excuse or palliate that shocking and disgraceful and barbarous crime against humanity; and the human mind is incapable of understanding how such savagery can be accounted for, except upon the theory that "He that nameth Rebellion nameth not a singular, or one only sin, as is theft, robbery, murder, and such like; but he nameth the whole puddle and sink of all sins against God and man; against his country, his countrymen, his children, his kinsfolk, his friends, and against all men universally; all sins against God and all men heaped together, nameth he that nameth Rebellion."

The inconsistency of the Rebels, in getting insanely and murderously furious over the arming of Negroes for the defense of the imperiled Union and the newly gained liberties of the Black Race, when they had themselves already armed some of them and made them fight to uphold the Slave-

holders' Rebellion and the continued Enslavement of their race, is already plain enough.

[The writer is indebted to the courtesy of a prominent South Carolinian, for calling his attention to the "Singular coincidence, that a South Carolinian should have proposed in 1778, what was executed in 1863-64—the arming of Negroes for achieving their Freedom"—as shown in the following very curious and interesting letters written by the brave and gifted Colonel John Laurens, of Washington's staff, to his distinguished father:

HEAD QUARTERS, 14th Jan., 1778.

I barely hinted to you, my dearest father, my desire to augment the Continental forces from an untried source. I wish I had any foundation to ask for an extraordinary addition to those favours which I have already received from you. I would solicit you to cede me a number of your able bodied men slaves, instead of leaving me a fortune.

I would bring about a two-fold good; first I would advance those who are unjustly deprived of the rights of mankind to a state which would be a proper gradation between abject slavery and perfect liberty, and besides I would reinforce the defenders of liberty with a number of gallant soldiers. Men, who have the habit of subordination almost indelibly impressed on them, would have one very essential qualification of soldiers. I am persuaded that if I could obtain authority for the purpose, I would have a corps of such men trained, uniformly clad, equip'd and ready in every respect to act at the opening of the next campaign. The ridicule that may be thrown on the color, I despise, because I am sure of rendering essential service to my country.

I am tired of the languor with which so sacred a war as this is carried on. My circumstances prevent me from writing so long a letter as I expected and wish'd to have done on a subject which I have much at heart. I entreat you to give a favorable answer to

Your most affectionate
JOHN LAURENS.

The Honble Henry Laurens Esq.
President of Congress.

HEAD QUARTERS, 2nd Feb., 1778.

My Dear Father:

The more I reflect upon the difficulties and delays which are likely to attend the completing our Continental regiments, the more anxiously is my mind bent upon the scheme, which I lately communicated to you. The obstacles to the execution of it had presented themselves to me, but by no means appeared insurmountable. I was aware of having that monstrous popular prejudice, open-mouthed against me, of undertaking to transform beings almost irrational, into well disciplined soldiers, of being obliged to combat the arguments, and perhaps the intrigues, of interested persons. But zeal for the public service, and an ardent desire to assert the rights of humanity, determined me to engage in this arduous business, with the sanction of your consent. My own perseverance, aided by the countenance of a few virtuous men, will, I hope, enable me to accomplish it.

You seem to think, my dear father, that men reconciled by long habit to the miseries of their condition, would prefer their ignominious bonds to the untasted sweets of liberty, especially when offer'd upon the terms which I propose.

I confess, indeed, that the minds of this unhappy species must be debased by a servitude, from which they can hope for no relief but death, and that every motive to action but fear, must be nearly extinguished in them. But do you think they are so perfectly moulded to their state as to be insensible that a better exists? Will the galling comparison between themselves and their masters leave them unenlightened in this respect? Can their self love be so

totally annihilated as not frequently to induce ardent wishes for a change?

You will accuse me, perhaps, my dearest friend, of consulting my own feelings too much; but I am tempted to believe that this trampled people have so much human left in them, as to be capable of aspiring to the rights of men by noble exertions, if some friend to mankind would point the road, and give them a prospect of success. If I am mistaken in this, I would avail myself, even of their weakness, and, conquering one fear by another, produce equal good to the public. You will ask in this view, how do you consult the benefit of the slaves? I answer, that like other men, they are creatures of habit. Their cowardly ideas will be gradually effaced, and they will be modified anew. Their being rescued from a state of perpetual humiliation, and being advanced as it were, in the scale of being, will compensate the dangers incident to their new state.

The hope that will spring in each man's mind, respecting his own escape, will prevent his being miserable. Those who fall in battle will not lose much; those who survive will obtain their reward. Habits of subordination, patience under fatigues, sufferings and privations of every kind, are soldierly qualifications, which these men possess in an eminent degree.

Upon the whole, my dearest friend and father, I hope that my plan for serving my country and the oppressed negro race will not appear to you the chimera of a young mind, deceived by a false appearance of moral beauty, but a laudable sacrifice of private interest, to justice and the public good.

You say, that my resources would be small, on account of the proportion of women and children. I do not know whether I am right, for I speak from impulse, and have not reasoned upon the matter. I say, altho' my plan is at once to give freedom to the negroes, and gain soldiers to the states; in case of concurrence, I should sacrifice the former interest,

and therefore we change the women and children for able-bodied men. The more of these I could obtain, the better; but forty might be a good foundation to begin upon.

It is a pity that some such plan as I propose could not be more extensively executed by public authority. A well-chosen body of 5,000 black men, properly officer'd, to act as light troops, in addition to our present establishment, might give us decisive success in the next campaign.

I have long deplored the wretched state of these men, and considered in their history, the bloody wars excited in Africa, to furnish America with slaves—the groans of despairing multitudes, toiling for the luxuries of merciless tyrants.

I have had the pleasure of conversing with you, sometimes, upon the means of restoring them to their rights. When can it be better done, than when their enfranchisement may be made conducive to the public good, and be modified, as not to overpower their weak minds?

You ask, what is the general's opinion, upon this subject? He is convinced, that the numerous tribes of blacks in the southern parts of the continent, offer a resource to us that should not be neglected. With respect to my particular plan, he only objects to it, with the arguments of pity for a man who would be less rich than he might be.

I am obliged, my dearest friend and father, to take my leave for the present; you will excuse whatever exceptionable may have escaped in the course of my letter, and accept the assurance of filial love, and respect of

Your

JOHN LAURENS]

If, however, it be objected that the arming of Negroes by the Rebels was exceptional and local, and, that otherwise, the Rebels always used their volunteer or impressed Negro forces in work upon fortifications and other

unarmed Military Works, and never proposed using them in the clash of arms, as armed soldiers against armed White men, the contrary is easily proven.

In a message to the Rebel Congress, November 7, 1864, Jefferson Davis himself, while dissenting at that time from the policy, advanced by many, of "a general levy and arming of the Slaves, for the duty of soldiers," none the less declared that "should the alternative ever be presented of subjugation, or of the employment of the Slave as a soldier, there seems no reason to doubt what should then be our decision."

In the meantime, however, he recommended the employment of forty thousand Slaves as pioneer and engineer laborers, on the ground that "even this limited number, by their preparatory training in intermediate duties Would form a more valuable reserve force in case of urgency, than threefold their number suddenly called from field labor; while a fresh levy could, to a certain extent, supply their places in the special service" of pioneer and engineer work; and he undertook to justify the inconsistency between his present recommendation, and his past attitude, by declaring that "A broad, moral distinction exists between the use of Slaves as soldiers in defense of their homes, and the incitement of the same persons to insurrection against their masters, for," said he, "the one is justifiable, if necessary; the other is iniquitous and unworthy of a civilized people."

So also, while a Bill for the arming of Slaves was pending before the Rebel Congress early in 1865, General Robert E. Lee wrote, February 18th, from the Headquarters of the Rebel Armies, to Hon. E. Barksdale, of the Rebel House of Representatives, a communication, in which, after acknowledging the receipt of a letter from him of February 12th, "with reference to the employment of Negroes as soldiers," he said: "I think the Measure not only expedient but necessary * * * in my opinion, the Negroes, under proper circumstances, will make efficient soldiers. * * * I think those who are employed, should be freed. It would be neither just nor wise, in my opinion, to require them to remain as Slaves"—thus, not only approving the employment of Black Slaves as soldiers, to fight White Union men, but justifying their Emancipation as a reward for Military service. And, a few days afterward, that Rebel Congress passed a Bill authorizing Jefferson Davis to take into the Rebel Army as many Negro Slaves "as he may deem expedient, for and during the War, to perform Military service in whatever

capacity he may direct," and at the same time authorizing General Lee to organize them as other "troops" are organized.

[This Negro soldier Bill, according to McPherson's Appendix, p. 611-612, passed both Houses, and was in these words:

A Bill to increase the Military Forces of the Confederate States.

"The Congress of the Confederate States of America do Enact, That in order to provide additional forces to repel invasion, maintain the rightful possession of the Confederate States, secure their Independence and preserve their Institutions, the President be and he is hereby authorized to ask for and accept from the owners of Slaves the services of such number of able-bodied Negro men as he may deem expedient for and during the War, to perform Military service in whatever capacity he may direct.

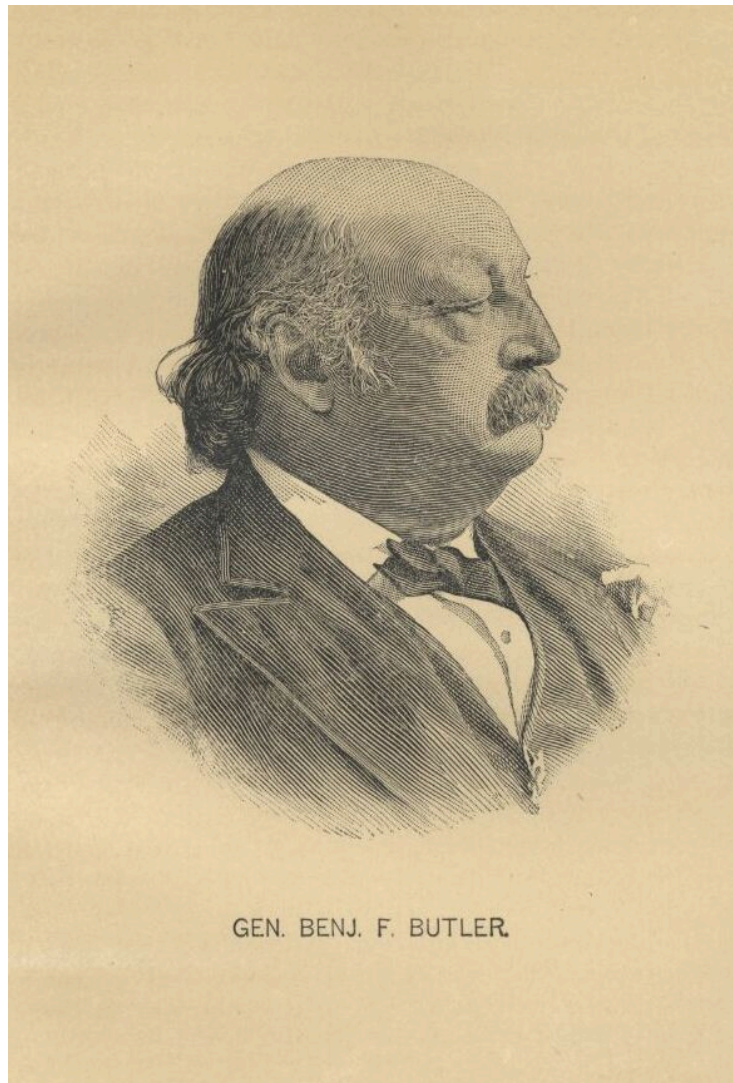
"SEC. 2.—That the General-in-Chief be authorized to organize the said Slaves into companies, battalions, regiments, and brigades, under such rules and regulations as the Secretary of War may prescribe, and to be commanded by such officers as the President may appoint.

"SEC. 3.—That, while employed in the Service, the said troops shall receive the same rations, clothing, and compensation as are allowed to other troops in the same branch of the Service.

"SEC. 4.—That if, under the previous sections of this Act, the President shall not be able to raise a sufficient number of troops to prosecute the War successfully and maintain the Sovereignty of the States, and the Independence of the Confederate States, then he is hereby authorized to call on each State, whenever he thinks it expedient, for her quota of 300,000 troops, in addition to those subject to Military service, under existing laws, or so many thereof as the President may deem necessary, to be raised from such classes of the population, irrespective of color, in each State,

as the proper authorities thereof may determine: Provided, that not more than 25 per cent. of the male Slaves, between the ages of 18 and 45, in any State, shall be called for under the provisions of this Act.

"SEC. 5.—That nothing in this Act shall be construed to authorize a change in the relation of said Slaves."]



CHAPTER XXII.

FREEDOM'S SUN STILL RISING.

After President Lincoln had issued his Proclamation of Emancipation, the friends of Freedom clearly perceived—and none of them more clearly than himself that until the incorporation of that great Act into the Constitution of the United States itself, there could be no real assurance of safety to the liberties of the emancipated; that unless this were done there would be left, even after the suppression of the Rebellion, a living spark of dissension which might at any time again be fanned into the flames of Civil War.

Hence, at all proper times, Mr. Lincoln favored and even urged Congressional action upon the subject. It was not, however, until the following year that definite action may be said to have commenced in Congress toward that end; and, as Congress was slow, he found it necessary to say in his third Annual Message: "while I remain in my present position I shall not attempt to retract or modify the Emancipation Proclamation; nor shall I return to Slavery any person who is Free by the terms of that Proclamation, or by any of the Acts of Congress."

Meantime, however, occurred the series of glorious Union victories in the West, ending with the surrender to Grant's triumphant Forces on the 4th of July, 1863, of Vicksburg—"the Gibraltar of the West"—with its Garrison, Army, and enormous quantities of arms and munitions of war; thus closing a brilliant and successful Campaign with a blow which literally "broke the back" of the Rebellion; while, almost simultaneously, July 1-3, the Union Forces of the East, under Meade, gained the great victory of Gettysburg, and, driving the hosts of Lee from Pennsylvania, put a second and final end to Rebel invasion of Northern soil; gaining it, on ground dedicated by President Lincoln, before that year had closed—as a place of sepulture for the Patriot-soldiers who there had fallen in a brief, touching and immortal Address, which every American child should learn by heart, and every

American adult ponder deeply, as embodying the very essence of true Republicanism.

[President Lincoln's Address, when the National Cemetery at Gettysburg, Pa., was dedicated Nov. 19, 1863, was in these memorable words:

"Fourscore and seven years ago, our Fathers brought forth upon this continent a new Nation, conceived in Liberty, and dedicated to the proposition that all men are created equal.

"Now we are engaged in a great Civil War, testing whether that Nation, or any Nation, so conceived and so dedicated, can long endure.

"We are met on a great battlefield of that War. We have come here to dedicate a portion of that field as a final resting-place for those who here gave their lives that that Nation might live.

"It is altogether fitting and proper that we should do this.

"But in a larger sense, we can not dedicate, we can not consecrate, we can not hallow, this ground. The brave men, living and dead, who struggled here, have consecrated it far above our power to add or detract.

"The World will little note, nor long remember, what we say here; but it can never forget what they did here.

"It is for us, the living, rather to be dedicated here to the unfinished work which they who fought here have, thus far, so nobly advanced.

"It is rather for us to be here dedicated to the great task remaining before us; that from these honored dead we take increased devotion to that Cause for which they gave the last full measure of devotion; that we here highly resolve that these dead shall not have died in vain; that this Nation, under God, shall have a new birth of Freedom; and that Government of the People, by the People, and for the People, shall not perish from the Earth."]

That season of victory for the Union arms, coming, as it did, upon a season of depression and doubtfulness, was doubly grateful to the loyal heart of the Nation. Daylight seemed to be breaking at last. Gettysburg had hurled back the Southern invader from our soil; and Vicksburg, with the immediately resulting surrender of Port Hudson, had opened the Mississippi river from Cairo to the Gulf, and split the Confederacy in twain.

But it happened just about this time that, the enrollment of the whole Militia of the United States (under the Act of March, 1863), having been completed, and a Draft for 300,000 men ordered to be made and executed, if by a subsequent time the quotas of the various States should not be filled by volunteering, certain malcontents and Copperheads, inspired by agents and other friends of the Southern Conspirators, started and fomented, in the city of New York, a spirit of unreasoning opposition both to voluntary enlistment, and conscription under the Draft, that finally culminated, July 13th, in a terrible Riot, lasting several days, during which that great metropolis was in the hands, and completely at the mercy, of a brutal mob of Secession sympathizers, who made day and night hideous with their drunken bellowings, terrorized everybody even suspected of love for the Union, plundered and burned dwellings, including a Colored Orphan Asylum, and added to the crime of arson, that of murdering the mob-chased, terror-stricken Negroes, by hanging them to the lamp-posts.

These Riots constituted a part of that "Fire in the Rear" with which the Rebels and their Northern Democratic sympathizers had so frequently menaced the Armies of the Union.

Alluding to them, the N. Y. Tribune on July 15th, while its office was invested and threatened with attack and demolition, bravely said: "They are, in purpose and in essence, a Diversion in favor of Jefferson Davis and Lee. Listen to the yells of the mob and the harangues of its favorite orators, and you will find them surcharged with 'Nigger,' 'Abolition,' 'Black Republican,' denunciation of prominent Republicans, The Tribune, etc. etc.—all very wide of the Draft and the exemption. Had the Abolitionists, instead of the Slaveholders, revolted, and undertaken to upset the Government and dissolve the Union, nine-tenths of these rioters would have eagerly volunteered to put them down. It is the fear, stimulated by the recent and glorious triumphs of the Union Arms, that Slavery and the Rebellion must

suffer, which is at the bottom of all this arson, devastation, robbery, and murder."

The Democratic Governor, Seymour, by promising to "have this Draft suspended and stopped," did something toward quieting the Riots, but it was not until the Army of the Potomac, now following Lee's retreat, was weakened by the sending of several regiments to New York that the Draft-rioting spirit, in that city, and to a less extent in other cities, was thoroughly cowed.

[In reply to Gov. Seymour's appeal for delay in the execution of the Draft Law, in order to test its Constitutionality, Mr. Lincoln, on the 7th of August, said he could not consent to lose the time that would be involved in obtaining a decision from the U. S. Supreme Court on that point, and proceeded: "We are contending with an Enemy who, as I understand, drives every able-bodied man he can reach into his ranks, very much as a butcher drives bullocks into a slaughter-pen. No time is wasted, no argument is used.

"This system produces an Army which will soon turn upon our now victorious soldiers already in the field, if they shall not be sustained by recruits as they should be.

It produces an Army with a rapidity not to be matched on our side, if we first waste time to re-experiment with the Volunteer system, already deemed by Congress, and palpably, in fact, so far exhausted as to be inadequate; and then more time to obtain a Court decision as to whether a law is Constitutional which requires a part of those not now in the Service to go to those who are already in it, and still more time to determine with absolute certainty that we get those who are to go, in the precisely legal proportion to those who are not to go.

"My purpose is to be in my action Just and Constitutional, and yet Practical, in performing the important duty with which I am charged, of maintaining the Unity and the Free principles of our common Country."]

Worried and weakened by this Democratic opposition to the Draft, and the threatened consequent delays and dangers to the success of the Union Cause, and depressed moreover by the defeat of the National forces under Rosecrans at Chickamauga; yet, the favorable determination of the Fall elections on the side of Union and Freedom, and the immense majorities upholding those issues, together with Grant's great victory (November, 1863) of Chattanooga—where the three days of fighting in the Chattanooga Valley and up among the clouds of Lookout Mountain and Mission Ridge, not only effaced the memory of Rosecrans's previous disaster, but brought fresh and imperishable laurels to the Union Arms—stiffened the President's backbone, and that of Union men everywhere.

Not that Mr. Lincoln had shown any signs of weakness or wavering, or any loss of hope in the ultimate result of this War for the preservation of the Union—which now also involved Freedom to all beneath its banner. On the contrary, a letter of his written late in August shows conclusively enough that he even then began to see clearly the coming final triumph—not perhaps as "speedy," as he would like, in its coming, but none the less sure to come in God's "own good time," and furthermore not appearing "to be so distant as it did" before Gettysburg, and especially Vicksburg, was won; for, said he: "The signs look better. The Father of Waters again goes unvexed to the Sea".

[This admirable letter, reviewing "the situation" and his policy, was in these words

*EXECUTIVE MANSION,
WASHINGTON, August 26. 1863.*

HON. JAMES C. CONKLING

MY DEAR SIR; Your letter inviting me to attend a Mass Meeting of unconditional Union men to be held at the Capital of Illinois, on the 3rd day of September, has been received. It would be very agreeable for me thus to meet my old friends at my own home; but I cannot just now be absent from here so long a time as a visit there would require.

The meeting is to be of all those who maintain unconditional devotion to the Union; and I am sure that my old political friends will thank me for tendering, as I do, the

Nation's gratitude to those other noble men whom no partisan malice or partisan hope can make false to the Nation's life.

There are those who are dissatisfied with me. To such I would say: you desire Peace, and you blame me that we do not have it. But how can we attain it? There are but three conceivable ways: First, to suppress the Rebellion by force of Arms. This I am trying to do. Are you for it? If you are, so far we are agreed. If you are not for it, a second way is to give up the Union. I am against this. Are you for it? If you are, you should say so plainly. If you are not for Force, nor yet for Dissolution, there only remains some imaginable Compromise.

I do not believe that any Compromise embracing the maintenance of the Union is now possible. All that I learn leads to a directly opposite belief. The strength of the Rebellion is its Military, its Army. That Army dominates all the Country, and all the people, within its range. Any offer of terms made by any man or men within that range, in opposition to that Army, is simply nothing for the present: because such man or men have no power whatever to enforce their side of a Compromise, if one were made with them.

To illustrate: Suppose refugees from the South, and Peace men of the North, get together in Convention, and frame and proclaim a Compromise embracing a restoration of the Union. In what way can that Compromise be used to keep Lee's Army out of Pennsylvania? Meade's Army can keep Lee's Army out of Pennsylvania, and, I think, can ultimately drive it out of existence. But no paper Compromise to which the controllers of Lee's Army are not agreed, can at all affect that Army. In an effort at such Compromise we would waste time, which the Enemy would improve to our disadvantage; and that would be all.

A Compromise, to be effective, must be made either with those who control the Rebel Army, or with the people, first

liberated from the domination of that Army, by the success of our own Army. Now, allow me to assure you that no word or intimation from that Rebel Army, or from any of the men controlling it, in relation to any Peace Compromise, has ever come to my knowledge or belief. All charges and insinuations to the contrary are deceptive and groundless. And I promise you that if any such proposition shall hereafter come, it shall not be rejected and kept a secret from you. I freely acknowledge myself to be the servant of the People, according to the bond of service, the United States Constitution; and that, as such, I am responsible to them.

But, to be plain. You are dissatisfied with me about the Negro. Quite likely there is a difference of opinion between you and myself upon that subject. I certainly wish that all men could be Free, while you, I suppose, do not. Yet I have neither adopted nor proposed any measure which is not consistent with even your view, provided that you are for the Union. I suggested compensated Emancipation; to which you replied you wished not to be taxed to buy Negroes. But I had not asked you to be taxed to buy Negroes, except in such a way as to save you from greater taxation to save the Union, exclusively by other means.

You dislike the Emancipation Proclamation, and perhaps would have it retracted. You say it is Unconstitutional. I think differently. I think the Constitution invests the Commander-in-Chief with the Law of War in Time of War. The most that can be said, if so much, is, that Slaves are property. Is there, has there ever been, any question that, by the Law of War, property, both of enemies and friends, may be taken when needed? And is it not needed whenever it helps us and hurts the Enemy? Armies, the World over, destroy enemies' property when they cannot use it; and even destroy their own to keep it from the Enemy. Civilized belligerents do all in their power to help themselves or hurt the Enemy, except a few things regarded as barbarous or

cruel. Among the exceptions are the massacre of vanquished foes and non-combatants, male and female.

But the Proclamation, as law, either is valid or is not valid. If it is not valid, it needs no retraction. If it is valid it cannot be retracted, any more than the dead can be brought to life. Some of you profess to think its retraction would operate favorably for the Union. Why better after the retraction than before the issue? There was more than a year and a half of trial to suppress the Rebellion before the Proclamation was issued, the last one hundred days of which passed under an explicit notice that it was coming, unless averted by those in revolt returning to their allegiance. The War has certainly progressed as favorably for us since the issue of the Proclamation as before.

I know as fully as one can know the opinions of others that some of the Commanders of our Armies in the field, who have given us our most important victories, believe the Emancipation policy and the use of Colored troops constitute the heaviest blows yet dealt to the Rebellion, and that at least one of those important successes could not have been achieved when it was, but for the aid of Black soldiers.

Among the Commanders who hold these views are some who have never had an affinity with what is called "Abolitionism," or with "Republican party politics," but who hold them purely as Military opinions. I submit their opinions as entitled to some weight against the objections often urged that Emancipation and arming the Blacks are unwise as Military measures, and were not adopted as such, in good faith.

You say that you will not fight to Free Negroes. Some of them seem willing to fight for you; but no matter. Fight you, then, exclusively to save the Union. I issued the Proclamation on purpose to aid you in saving the Union. Whenever you shall have conquered all resistance to the Union, if I shall urge you to continue fighting, it will be an apt time then for you to declare you will not fight to Free

Negroes. I thought that in your struggle for the Union, to whatever extent the Negroes should cease helping the Enemy, to that extent it weakened the Enemy in his resistance to you. Do you think differently? I thought whatever Negroes can be got to do as soldiers, leaves just so much less for White soldiers to do in saving the Union. Does it appear otherwise to you? But Negroes, like other people, act upon motives. Why should they do anything for us if we will do nothing for them? If they stake their lives for us they must be prompted by the strongest motives, even the promise of Freedom. And the promise, being made, must be kept.

The signs look better. The Father of Waters again goes unvexed to the Sea. Thanks to the great Northwest for it; nor yet wholly to them. Three hundred miles up, they met New England, Empire, Keystone, and Jersey, hewing their way right and left. The Sunny South, too, in more colors than one, also lent a helping hand. On the spot, their part of the history was jotted down in Black and White. The job was a great National one, and let none be slighted who bore an honorable part in it. And while those who have cleared the Great River may well be proud, even that is not all. It is hard to say that anything has been more bravely and well done than at Antietam, Murfreesboro, Gettysburg, and on many fields of less note. Nor must Uncle Sam's web-feet be forgotten. At all the watery margins they have been present, not only on the deep Sea, the broad Bay, and the rapid River, but also up the narrow, muddy Bayou, and wherever the ground was a little damp they had been, and made their tracks. Thanks to all. For the Great Republic—for the principle it lives by, and keeps alive—for Man's vast future—thanks to all.

Peace does not appear so distant as it did. I hope it will come soon, and come to stay; and so come as to be worth the keeping in all future time. It will then have been proved that among Freemen there can be no successful appeal from the ballot to the bullet, and that they who take such appeal are sure to lose their case and pay the cost. And there will be

some Black men who can remember that, with silent tongue, and clinched teeth, and steady eye, and well poised bayonet, they have helped mankind on to this great consummation, while I fear there will be some White ones unable to forget that with malignant heart and deceitful speech they have striven to hinder it.

Still, let us not be over sanguine of a speedy, final triumph. Let us be quite sober. Let us diligently apply the means, never doubting that a just God, in his own good time, will give us the rightful result.

*Yours very truly,
A. LINCOLN.]*

But Chattanooga, and the grand majorities in all the Fall State-elections, save that of New Jersey,—and especially the manner in which loyal Ohio sat down upon the chief Copperhead-Democrat and Treason-breeder of the North, Vallandigham—came most auspiciously to strengthen the President's hands.

[The head of the Knights of the Golden Circle, and the Democratic candidate for Governor of Ohio]

And now he saw, more clearly still, the approach of that time when the solemn promise and declaration of Emancipation might be recorded upon the sacred roll of the Constitution, and thus be made safe for all time.

In his Annual Message of December, 1863, therefore, President Lincoln, after adverting to the fact that "a year ago the War had already lasted nearly twenty months," without much ground for hopefulness, proceeded to say:

"The preliminary Emancipation Proclamation, issued in September, was running its assigned period to the beginning of the New Year. A month later the final Proclamation came, including the announcement that Colored men of suitable condition would be received into the War service. The policy of Emancipation, and of employing Black soldiers, gave to the future a new

aspect, about which hope, and fear, and doubt, contended in uncertain conflict.

"According to our political system, as a matter of Civil Administration, the General Government had no lawful power to effect Emancipation in any State, and for a long time it had been hoped that the Rebellion could be suppressed without resorting to it as a Military measure. It was all the while deemed possible that the necessity for it might come, and that if it should, the crisis of the contest would then be presented. It came, and, as was anticipated, it was followed by dark and doubtful days.

"Eleven months having now passed, we are permitted to take another view * * * Of those who were Slaves at the beginning of the Rebellion, full one hundred thousand are now in the United States Military service, about one half of which number actually bear arms in the ranks; thus giving the double advantage of taking so much labor from the Insurgent cause, and supplying the places which otherwise must be filled with so many White men. So far as tested, it is difficult to say they are not as good soldiers as any.

"No servile insurrection, or tendency to violence or cruelty, has marked the measures of Emancipation and arming the Blacks. These measures have been much discussed in Foreign Countries, and contemporary with such discussion the tone of public sentiment there is much improved. At home, the same measures have been fully discussed, supported, criticised, and denounced, and the annual elections following are highly encouraging to those whose official duty it is to bear the Country through this great trial. Thus we have the new reckoning. The crisis which threatened to divide the friends of the Union is past."

After alluding to his Proclamation of Amnesty, issued simultaneously with this Message, to all repentant Rebels who would take an oath therein prescribed, and contending that such an oath should be (as he had drawn it) to uphold not alone the Constitution and the Union, but the Laws and Proclamations touching Slavery as well, President Lincoln continued:

"In my judgment they have aided and will further aid, the Cause for which they were intended. To now abandon them, would be not only to relinquish a lever of power, but would also be a cruel and an astounding breach of faith." And, toward the close of the Message, he added:

"The movements by State action, for Emancipation, in several of the States not included in the Emancipation Proclamation, are matters of profound gratulation. And while I do not repeat in detail what I have heretofore so earnestly urged upon the subject, my general views remain unchanged; and I trust that Congress will omit no fair opportunity of AIDING THESE IMPORTANT STEPS TO A GREAT CONSUMMATION."

Mr. Lincoln's patient but persistent solicitude, his earnest and unintermitted efforts—exercised publicly through his Messages and speeches, and privately upon Members of Congress who called upon, or whose presence was requested by him at the White House—in behalf of incorporating Emancipation in the Constitution, were now to give promise, at least, of bearing good fruit.

Measures looking to this end were submitted in both Houses of Congress soon after its meeting, and were referred to the respective Judiciary Committees of the same, and on the 10th of February, 1864, Mr. Trumbull reported to the Senate, from the Senate Judiciary Committee, of which he was Chairman, a substitute Joint Resolution providing for the submission to the States of an Amendment to the United States Constitution in the following words:

"ART. XIII., SEC. I. Neither Slavery nor Involuntary Servitude, except as a punishment for crime, whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

"SEC. II. Congress shall have power to enforce this Article by appropriate legislation."

This proposed Amendment came up for consideration in the Senate, on the 28th of March, and a notable debate ensued.

On the same day, in the House of Representatives, Thaddeus Stevens—with the object perhaps of ascertaining the strength, in that Body, of the friends of out-and-out Emancipation—offered a Resolution proposing to the States the following Amendments to the United States Constitution:

"ART. I. Slavery and Involuntary Servitude, except for the punishment of crimes whereof the party shall have been duly convicted, is forever prohibited in the United States and all its Territories.

"ART. II. So much of Article four, Section two, as refers to the delivery up of Persons held to Service or Labor, escaping into another State, is annulled."

The test was made upon a motion to table the Resolution, which motion was defeated by 38 yeas to 69 nays, and showed the necessity for converting three members from the Opposition. Subsequently, at the instance of Mr. Stevens himself, the second Article of the Resolution was struck out by 72 yeas to 26 nays.

The proceedings in both Houses of Congress upon these propositions to engraft upon the National Constitution a provision guaranteeing Freedom to all men upon our soil, were now interrupted by the death of one who would almost have been willing to die twice over, if, by doing so, he could have hastened their adoption.

Owen Lovejoy, the life-long apostle of Abolitionism, the fervid gospeller of Emancipation, was dead; and it seemed almost the irony of Fate that, at such a time, when Emancipation most needed all its friends to make it secure, its doughtiest champion should fall.

But perhaps the eloquent tributes paid to his memory, in the Halls of Congress, helped the Cause no less. They at least brought back to the public mind the old and abhorrent tyrannies of the Southern Slave power; how it had sought not only to destroy freedom of Action, but freedom of Speech, and hesitated not to destroy human Life with these; reminded the Loyal People of the Union of much that was hateful, from which they had escaped; and strengthened the purpose of Patriots to fix in the chief cornerstone of the Constitution, imperishable muniments of human Liberty.

Lovejoy's brother had been murdered at Alton, Illinois, while vindicating freedom of Speech and of the Press; and the blood of that martyr truly became "the seed of the Church." Arnold—recalling a speech of Owen Lovejoy's at Chicago, and a passage in it, descriptive of the martyrdom,—said to the House, on this sad occasion: "I remember that, after describing the scene of that death, in words—which stirred every heart, he said he went a pilgrim to his brother's grave, and, kneeling upon the sod beneath which sleeps that brother, he swore, by the everlasting God, eternal hostility to African Slavery." And, continued Arnold, "Well and nobly has he kept that oath."

Washburne, too, reminded the House of the memorable episode in that very Hall when, (April 5, 1860), the adherents of Slavery crowding around Lovejoy with fierce imprecations and threats, seeking then and there to prevent Free Speech, "he displayed that undaunted courage and matchless bearing which extorted the admiration of even his most deadly foes." "His"—continued the same speaker—"was the eloquence of Mirabeau, which in the Tiers Etat and in the National Assembly made to totter the throne of France; it was the eloquence of Danton, who made all France to tremble from his tempestuous utterances in the National Convention. Like those apostles of the French Revolution, his eloquence could stir from the lowest depths all the passions of Man; but unlike them, he was as good and as pure as he was eloquent and brave, a noble minded Christian man, a lover of the whole human Race, and of universal Liberty regulated by Law."

Grinnell, in his turn, told also with real pathos, of his having recently seen Lovejoy in the chamber of sickness. "When," said Grinnell, "I expressed fears for his recovery, I saw the tears course down his manly cheek, as he said 'Ah! God's will be done, but I have been laboring, voting, and praying for twenty years that I might see the great day of Freedom which is so near and which I hope God will let me live to rejoice in. I want a vote on my Bill for the destruction of Slavery, root and branch.'"

[Sumner, afterward speaking of Lovejoy and this Measure, said: "On the 14th of December, 1863, he introduced a Bill, whose title discloses its character: 'A Bill to give effect to the Declaration of Independence, and also to certain Provisions of the Constitution of the United States.' It proceeds to recite that All Men were Created Equal, and were Endowed by the Creator with the Inalienable Right to Life, Liberty and the Fruits of honest Toil; that the Government of the United States was Instituted to Secure those Rights; that the Constitution declares that No Person shall be Deprived of Liberty without due Process of Law, and also provides—article five, clause two—that this Constitution, and the Laws of the United States made in pursuance thereof, shall be the Supreme Law of the Land, and the Judges in each State shall be bound thereby, anything in the Constitution and Laws of any State to the

contrary notwithstanding; that it is now demonstrated by the Rebellion that Slavery is absolutely incompatible with the Union, Peace, and General Welfare for which Congress is to Provide; and it therefore Enacts that All Persons heretofore held in Slavery in any of the States or Territories of the United States are declared Freedmen, and are Forever Released from Slavery or Involuntary Servitude except as Punishment for Crime on due conviction. On the same day he introduced another Bill to Protect Freedmen and to Punish any one for Enslaving them. These were among his last Public acts,"—Cong. Globe, 1st S., 38th C., Pt. 2, p. 1334]

And staunch old Thaddeus Stevens said: "The change to him, is great gain. The only regret we can feel is that he did not live to see the salvation of his Country; to see Peace and Union restored, and universal Emancipation given to his native land. But such are the ways of Providence. Moses was not permitted to enter the Promised Land with those he had led out of Bondage; he beheld it from afar off, and slept with his fathers." "The deceased," he impressively added, "needs no perishable monuments of brass or marble to perpetuate his name. So long as the English language shall be spoken or deciphered, so long as Liberty shall have a worshipper, his name will be known!"

What influence the death of Owen Lovejoy may have had on the subsequent proceedings touching Emancipation interrupted as we have seen by his demise—cannot be known; but among all the eloquent tributes to his memory called forth by the mournful incident, perhaps none, could he have heard it, would have better pleased him than those two opening sentences of Charles Sumner's oration in the Senate—where he said of Owen Lovejoy: "Could his wishes prevail, he would prefer much that Senators should continue in their seats and help to enact into Law some one of the several Measures now pending to secure the obliteration of Slavery. Such an Act would be more acceptable to him than any personal tribute,—” unless it might be these other words, which followed from the same lips: "How his enfranchised Soul would be elevated even in those Abodes to which he has been removed, to know that his voice was still heard on Earth encouraging, exhorting, insisting that there should be no hesitation anywhere in striking

at Slavery; that this unpardonable wrong, from which alone the Rebellion draws its wicked life, must be blasted by Presidential proclamation, blasted by Act of Congress, blasted by Constitutional prohibition, blasted in every possible way, by every available agency, and at every occurring opportunity, so that no trace of the outrage may continue in the institutions of the Land, and especially that its accursed foot-prints may no longer defile the National Statute-book. Sir, it will be in vain that you pass Resolutions in tribute to him, if you neglect that Cause for which he lived, and do not hearken to his voice!"



CHAPTER XXIII.

"THIRTEENTH AMENDMENT" IN THE SENATE.

During the great debate, which now opened in the Senate, upon the Judiciary Committee's substitute resolution for the Amendment of the Constitution, so as forever to prohibit Slavery within the United States, and to empower Congress to pass such laws as would make that prohibition effective—participated in by Messrs. Trumbull, Wilson, Saulsbury, Davis, Harlan, Powell, Sherman, Clark, Hale, Hendricks, Henderson, Sumner, McDougall and others—the whole history of Slavery was enquired into and laid bare.

Trumbull insisted that Slavery was at the bottom of all the internal troubles with which the Nation had from its birth been afflicted, down to this wicked Rebellion, with all the resulting "distress, desolation, and death;" and that by 1860, it had grown to such power and arrogance that "its advocates demanded the control of the Nation in its interests, failing in which, they attempted its overthrow." He reviewed, at some length, what had been done by our Government with regard to Slavery, since the breaking out of hostilities against us in that mad attempt against the National life; how, "in the earlier stages of the War, there was an indisposition on the part of the Executive Authority to interfere with Slavery at all;" how, for a long time, Slaves, escaping to our lines, were driven back to their Rebel masters; how the Act of Congress of July, 1861, which gave Freedom to all Slaves allowed by their Rebel masters to assist in the erection of Rebel works and fortifications, had "not been executed," and, said Mr. Trumbull, "so far as I am advised, not a single Slave has been set at liberty under it;" how, "it was more than a year after its enactment before any considerable number of Persons of African descent were organized and armed" under the subsequent law of December, 1861, which

not only gave Freedom to all Slaves entering our Military lines, or who, belonging to Rebel masters, were deserted by them, or were found in regions once occupied by Rebel forces and later by those of the Union, but also empowered the President to organize and arm them to aid in the suppression of the Rebellion; how, it was not until this law had been enacted that Union officers ceased to expel Slaves coming within our lines—and then only when dismissal from the public service was made the penalty for such expulsion; how, by his Proclamations of Emancipation, of September, 1862, and January, 1863, the President undertook to supplement Congressional action—which had, theretofore, been confined to freeing the Slaves of Rebels, and of such of these only as had come within the lines of our Military power—by also declaring, Free, the Slaves "who were in regions of country from which the authority of the United States was expelled;" and how, the "force and effect" of these Proclamations were variously understood by the enemies and friends of those measures—it being insisted on the one side that Emancipation as a War-stroke was within the Constitutional War-power of the President as Commander-in-Chief, and that, by virtue of those Proclamations, "all Slaves within the localities designated become ipso facto Free," and on the other, that the Proclamations were "issued without competent authority," and had not effected and could not effect, "the Emancipation of a single Slave," nor indeed could at any time, without additional legislation, go farther than to liberate Slaves coming within the Union Army lines.

After demonstrating that "any and all these laws and Proclamations, giving to each the largest effect claimed by its friends, are ineffectual to the destruction of Slavery," and protesting that some more effectual method of getting rid of that Institution must be adopted, he declared, as his judgment, that "the only effectual way of ridding the Country of Slavery, so that it cannot be resuscitated, is by an Amendment of the Constitution forever prohibiting it within the jurisdiction of the United States."

He then canvassed the chances of adoption of such an Amendment by an affirmative vote of two thirds in each House of Congress, and of its subsequent ratification by three-fourths of the States of the Union, and declared that "it is reasonable to suppose that if this proposed Amendment passes Congress, it will, within a year, receive the ratification of the requisite number of States to make it a part of the Constitution." His prediction proved correct—but only after a protracted struggle.

Henry Wilson also made a strong speech, but on different grounds. He held that the Emancipation Proclamations formed, together, a "complete, absolute, and final decree of Emancipation in Rebel States," and, being "born of Military necessity" and "proclaimed by the Commander-in-Chief of the Army and Navy, is the settled and irrevocable Law of the Republic, to be observed, obeyed, and enforced, by Army and Navy, and is the irreversible voice of the Nation."

He also reviewed what had been done since the outbreak of the Rebellion, by Congress and the President, by Laws and Proclamations; and, while standing by the Emancipation Proclamations, declared that "the crowning Act, in this series of Acts, for the restriction and extinction of Slavery in America, is this proposed Amendment to the Constitution prohibiting the existence of Slavery in the Republic of the United States."

The Emancipation Proclamation, according to his view, only needed enforcement, to give "Peace and Order, Freedom and Unity, to a now distracted Country;" but the "crowning act" of incorporating this Amendment into the Constitution would do even more than all this, in that it would "obliterate the last lingering vestiges of the Slave System; its chattelizing, degrading, and bloody codes; its malignant, barbarizing spirit; all it was, and is; everything connected with it or pertaining to it, from the face of the Nation it has scarred with moral desolation, from the bosom of the Country it has reddened with the blood and strewn with the graves of patriotism."

While the debate proceeded, President Lincoln watched it with careful interest. Other matters, however, had, since the Battle of Chattanooga, largely engrossed his attention.

The right man had at last been found—it was believed—to control as well as to lead our Armies. That man was Ulysses S. Grant. The grade of Lieutenant General of the Army of the United States—in desuetude since the days of Washington, except by brevet, in the case of Winfield Scott,—having been especially revived by Congress for and filled by the appointment and confirmation of Grant, March 2, 1864, that great soldier immediately came on to Washington, received his commission at the hands of President Lincoln, in the cabinet chamber of the White House, on the 9th, paid a flying visit to the Army of the Potomac, on the 10th, and at once returned to Nashville to plan future movements.

On the 12th, a General Order of the War Department (No. 98) was issued, relieving Major-General Halleck, "at his own request," from duty as "General-in-Chief" of the Army, and assigning Lieutenant-General U. S. Grant to "the command of the Armies of the United States," "the Headquarters of the Army" to be in Washington, and also with Lieutenant-General Grant in the Field, Halleck being assigned to "duty, in Washington, as Chief-of-staff of the Army, under the direction of the Secretary of War and the Lieutenant-General commanding."

By the same order, Sherman was assigned to the command of the "Military Division of the Mississippi," composed of the Departments of the Ohio, the Cumberland, the Tennessee, and the Arkansas; and McPherson to that of the Department and Army of the Tennessee.

On the 23rd of March, Grant was back again at Washington, and at once proceeded to Culpepper Court-house, Virginia, where his Headquarters in the field were, for a time, to be.

Here he completed his plans, and reorganized his Forces, for the coming conflicts, in the South-west and South-east, which were to result in a full triumph to the Union Arms, and Peace to a preserved Union.

It is evident, from the utterances of Mr. Lincoln when Vicksburg fell, that he had then become pretty well satisfied that Grant was "the coming man," to whom it would be safe to confide the management and chief leadership of our Armies. Chattanooga merely confirmed that belief—as indeed it did that of Union men generally. But the concurrent judgment of Congress and the President had now, as we have seen, placed Grant in that chief command; and the consequent relief to Mr. Lincoln, in thus having the heavy responsibility of Army-control, long unwillingly exercised by him, taken from his own shoulders and placed upon those of the one great soldier in whom he had learned to have implicit faith,—a faith earned by steady and unvaryingly successful achievements in the Field—must have been most grateful.

Other responsibilities would still press heavily enough upon the President's time and attention. Questions touching the Military and Civil government of regions of the Enemy's country, conquered by the Union arms; of the rehabilitation or reconstruction of the Rebel States; of a thousand and one other matters, of greater or lesser perplexity, growing out of these and other questions; besides the ever pressing and gigantic

problems involved in the raising of enormous levies of troops, and prodigious sums of money, needed in securing, moving, and supplying them, and defraying the extraordinary expenses growing out of the necessary blockade of thousands of miles of Southern Coast, and other Naval movements; not to speak of those expenditures belonging to the more ordinary business transactions of the Government.

But chief of all things claiming his especial solicitude, as we have seen, was this question of Emancipation by Constitutional enactment, the debate upon which was now proceeding in the Senate. That solicitude was necessarily increased by the bitter opposition to it of Northern Copperheads, and by the attitude of the Border-State men, upon whose final action, the triumph or defeat of this great measure must ultimately depend.

Many of the latter, were, as has already been shown in these pages, loyal men; but the loyalty of some of these to their Country, was still so questionably and so thoroughly tainted with their worshipful devotion to Slavery—although they must have been blind indeed not to have discovered, long ere this, that it was a "slowly-dying cause"—that they were ever on the alert to delay, hamper, and defeat, any action, whether Executive or Legislative, and however necessary for the preservation of the Union and the overthrow of its mortal enemies, which, never so lightly, impinged upon their "sacred Institution."

This fact was well set forth, in this very debate, by a Senator from New England—[Wilson of Massachusetts]—when, after adjuring the anti-Slavery men of the age, not to forget the long list of Slavery's crimes, he eloquently proceeded:

"Let them remember, too, that hundreds of thousands of our countrymen in Loyal States—since Slavery raised the banners of Insurrection, and sent death, wounds, sickness, and sorrow, into the homes of the People—have resisted, and still continue to resist, any measure for the defense of the Nation, if that measure tended to impair the vital and animating powers of Slavery. They resisted the Act making Free the Slaves used by Rebels for Military purposes; the Confiscation of Rebel property and the Freedom of the Slaves of Rebel masters; the Abolition of Slavery in the Capital of the Nation, and the consecration of the Territories to Free Labor and Free laboring men; the Proclamation of Emancipation; the enlistment of Colored men to fight the battles of the Country; the Freedom of the Black soldier,

who is fighting, bleeding, dying for the Country; and the Freedom of his wife and children. And now, when War has for nearly three years menaced the life of the Nation, bathed the Land in blood, and filled two hundred thousand graves with our slain sons, these men of the Loyal States still cling to the falling fortunes of the relentless and unappeasable Enemy of their Country and its democratic institutions; they mourn, and will not be comforted, over the expiring System, in the Border Slave-States; and, in tones of indignation or of anguish, they utter lamentations over the Proclamation of Emancipation, and the policy that is bringing Rebel States back again radiant with Freedom."

Among these "loyal" Democratic opponents of Emancipation, in any shape, or any where, were not wanting men—whether from Loyal Northern or Border States—who still openly avowed that Slavery was right; that Rebellion, to preserve its continuance, was justifiable; and that there was no Constitutional method of uprooting it.

Saulsbury of Delaware, was representative and spokesman of this class, and he took occasion during this very debate—[In the Senate, March 31, 1864.]—to defend Slavery as a Divine Institution, which had the sanction both of the Mosaic and Christian Dispensations!

[Said he: "Slavery had existed under some form or other from the first period of recorded history. It dates back even beyond the period of Abraham, the Father of the Faithful, in whose seed all the Nations of the Earth were to be blessed. We find that, immediately after the Flood, the Almighty, for purposes inscrutable to us, condemned a whole race to Servitude: 'Vayomer Orur Knoan Efet Afoatim Yeahio Le-echot:' 'And he said, Cursed be Canaan; Slave of Slaves he shall be to his brethren.' It continued among all people until the advent of the Christian era. It was recognized in that New Dispensation, which was to supersede the Old. It has the sanction of God's own Apostle; for when Paul sent back Onesimus to Philemon, whom did he send? A Freeman? No, Sir. He sent his (doulos,) a Slave, born as such, not even his andrapodon, who was such by captivity in War. Among all people, and in all ages, has this Institution, if such it is to be called, existed, and had the countenance of wise and good

men, and even of the Christian Church itself, until these modern times, up at least to the Nineteenth Century. It exists in this Country, and has existed from the beginning."

Mr. Harlan's reply to the position of Mr. Saulsbury that Slavery is right, is a Divine Institution, etc., was very able and interesting. He piled up authority after authority, English as well as American, to show that there is no support of Slavery—and especially of the title to services of the adult offspring of a Slave—at Common Law; and, after also proving, by the mouth of a favorite son of Virginia, that it has no legal existence by virtue of any Municipal or Statutory Law, he declared that the only remaining Law that can be cited for its support is the Levitical Code"—as follows:

"Both thy Bondmen, and thy Bondmaids, which thou shalt have, shall be of the heathen that are round about you; of them shall ye buy Bondmen and Bondmaids.

"Moreover, of the children of the strangers that do sojourn among you, of them shall ye buy, and of their families that are with you, which they begat in your land; and they shall be your possession.

"And ye shall take them as an Inheritance for your children after you, to inherit them for a possession; they shall be your Bondmen forever."

"I remark," said he, "in this connection, that the Levitical Code, or the Hebrew Law, contains a provision for the Naturalization of Foreigners, whether captives of War, or voluntary emigrants. By compliance with the requirements of this law they became citizens, entitled to all the rights and privileges and immunities of native Hebrews. The Hebrew Slave Code, applicable to Enslaved Hebrews, is in these words:

"And if thy brother, an Hebrew man, or an Hebrew woman, be sold unto thee, and serve thee six years, then in the seventh year thou shalt let him go Free from thee.'

"Here I request the attention of those who claim compensation for Emancipated Slaves to the text:

"And when thou sendest him out Free from thee, thou shalt not let him go away empty:

"Thou shalt furnish him liberally out of thy floor'—

"Which means granaries—

"and out of thy wine-press: of that wherewith the Lord thy God hath blessed thee, thou shalt give unto him.'

"It shall not seem hard unto thee, when thou sendest him away Free from thee, for he hath been worth a double-hired servant to thee, in serving thee six years.'

"These Hebrew Statutes provide that the heathen might be purchased and held as Slaves, and their posterity after them; that under their Naturalization Laws all strangers and sojourners, Bond and Free, have the privilege of acquiring the rights of citizenship; that all Hebrews, natives or naturalized, might assert and maintain their right to Freedom.

"At the end of six years a Hebrew Slave thus demanding his Liberty, was not to be sent away empty; the owner, so far from claiming compensation from his neighbors or from the Public Treasury for setting him Free, was bound to divide with the Freedman, of his own possessions: to give him of his flocks, of his herds, of his granary, and of his winepress, of everything with which the Lord Almighty had blessed the master during the years of his Servitude; and then the owner was admonished that he was not to regard it as a hardship to be required to Liberate the Slave, and to divide with him of his substance.

"The Almighty places the Liberated Slave's claim to a division of his former master's property on the eternal principles of Justice, the duty to render an equivalent for an equivalent. The Slave having served six years must be paid for his Service, must be paid liberally because he had been

worth even more than a hired servant during the period of his enslavement.

"If, then," continued Mr. Harlan, "the justice of this claim cannot be found either in Reason, Natural Justice, or the principles of the Common Law, or in any positive Municipal or Statute regulation of any State, or in the Hebrew Code written by the Finger of God protruded from the flame of fire on the summit of Sinai, I ask whence the origin of the title to the services of the adult offspring of the Slave mother? or is it not manifest that there is no just title? Is it not a mere usurpation without any known mode of justification, under any existing Code of Laws, human or Divine?"]

He also undertook to justify Secession on the singular ground that "we are sprung from a Race of Secessionists," the proof of which he held to be in the fact that, while the preamble to, as well as the body of the Convention of Ratification of, the old Articles of Confederation between the States of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia, declared that Confederation to be a "Perpetual Union," yet, within nine years thereafter, all the other States Seceded from New York, Virginia, North Carolina, and Rhode Island by ratifying the new Constitution for "a more perfect Union."

He also endeavored to maintain the extraordinary proposition that "if the Senate of the United States were to adopt this Joint-resolution, and were to submit it to all the States of this Union, and if three-fourths of the States should ratify the Amendment, it would not be binding on any State whose interest was affected by it, if that State protested against it!" And beyond all this, he re-echoed the old, old cry of the Border-state men, that "the time is unpropitious for such a measure as this."

Reverdy Johnson, of Maryland, however, by his great speech, of April 5th, in the Senate, did much to clear the tangle in the minds of some faltering Union statesmen on this important subject.

He reviewed the question of human Slavery from the time when the Constitutional Convention was held; showed that at that period, as well as

at the time of the Declaration of our Independence "there was but one sentiment upon the subject among enlightened Southern statesmen"—and that was, that Slavery "is a great affliction to any Country where it prevails;" and declared that "a prosperous and permanent Peace can never be secured if the Institution is permitted to survive."

He then traversed the various methods by which statesmen were seeking to prevent that survival of Slavery, addressing himself by turns to the arguments of those who, with John Sherman, "seemed," said he, "to consider it as within the power of Congress by virtue of its Legislative authority;" to those of the "many well-judging men, with the President at their head, who," to again use his own words, "seem to suppose that it is within the reach of the Executive;" and lastly, to those "who express the opinion that it is not within the scope of either Executive or Legislative authority, or of Constitutional Amendment;" and after demolishing the arguments of those who held the two former of these positions, he proceeded to rebut the assumption that Slavery could not be abolished at all because it was not originally abolished by the Constitution.

Continuing, he said: "Remember, now, the question is, can that Institution, which deals with Humanity as Property, which claims to shackle the mind, the soul, and the body, which brings to the level of the brute a portion of the race of Man, cease to be within the reach of the political power of the People of the United States, not because it was not at one time within their power, but because at that time they did not exert the power?

"What says the Preamble to the Constitution? How pregnant with a conclusive answer is the Preamble, to the proposition that Slavery cannot be abolished! What does that Preamble state to have been the chief objects that the great and wise and good men had at heart, in recommending the Constitution, with that Preamble, to the adoption of the American People? That Justice might be established; that Tranquillity might be preserved; that the common Defense and general Welfare might be maintained; and, last and chief of all, that Liberty might be secured.

"Is there no Justice in putting an end to human Slavery? Is there no danger to the Tranquillity of the Country in its existence? May it not interfere with the common Defense and general Welfare? And, above all, is it consistent with any notion, which the mind of man can conceive, of human Liberty?"

He held that the very Amendatory clause of the Constitution under which it was proposed to make this Amendment, was probably inserted there from a conviction of that coming time "when Justice would call so loudly for the extinction of the Institution that her call could not be disobeyed," and, when "the Peace and Tranquillity of the Land would demand, in thunder tones," its destruction, "as inconsistent with such Peace and Tranquillity."

To the atrocious pretence that "there was a right to make a Slave of any human being"—which he said would have shocked every one of the framers of the Constitution had they heard it; and, what he termed, the nauseous declaration that "Slavery of the Black race is of Divine origin," and was intended to be perpetual; he said:

"The Saviour of Mankind did not put an end to it by physical power, or by the declaration of any existing illegality, in word. His mission upon Earth was not to propagate His doctrines by force. He came to save, not to conquer. His purpose was not to march armed legions throughout the habitable Globe, securing the allegiance of those for whose safety He was striving. He warred by other influences. He aimed at the heart, principally. He inculcated his doctrines, more ennobling than any that the World, enlightened as it was before His advent upon Earth, had been able to discover. He taught to Man the obligation of brotherhood. He announced that the true duty of Man was to do to others as he would have others do to him—to all men, the World over; and unless some convert to the modern doctrine that Slavery itself finds not only a guarantee for its existence, but for its legal existence, in the Scripture, excepts from the operation of the influences which His morality brought to bear on the mind of the Christian world, the Black man, and shows that it was not intended to apply to Black men, then it is not true, it cannot be true, that He designed His doctrine not to be equally applicable to the Black and to the White, to the Race of Man as he then existed, or as he might exist in all after-time."

To the assumption that the African Slaves were too utterly deficient and degraded, mentally and morally, to appreciate the blessings of Freedom, he opposed the eloquent fact that "wherever the flag of the United States, the symbol of human Liberty, now goes; under it, from their hereditary bondage, are to be found men and women and children assembling and craving its protection 'fleeing from' the iron of oppression that had pierced

their souls, to the protection of that flag where they are 'gladdened by the light of Liberty.'"

"It is idle to deny," said he—"we feel it in our own persons—how, with reference to that sentiment, all men are brethren. Look to the illustrations which the times now afford, how, in the illustration of that sentiment, do we differ from the Black man? He is willing to incur every personal danger which promises to result in throwing down his shackles, and making him tread the Earth, which God has created for all, as a man, and not as a Slave."

Said he: "It is an instinct of the Soul. Tyranny may oppress it for ages and centuries; the pall of despotism may hang over it; but the sentiment is ever there; it kindles into a flame in the very furnace of affliction, and it avails itself of the first opportunity that offers, promising the least chance of escape, and wades through blood and slaughter to achieve it, and, whether it succeeds or fails, demonstrates, vindicates in the very effort, the inextinguishable right to Liberty."

He thought that mischiefs might result from this measure, owing to the uneducated condition of the Slave, but they would be but temporary. At all events to "suffer those Africans," said he, "whom we are calling around our standard, and asking to aid us in restoring the Constitution and the power of the Government to its rightful authority, to be reduced to bondage again," would be "a disgrace to the Nation." The "Institution" must be terminated.

"Terminate it," continued he, "and the wit of man will, as I think, be unable to devise any other topic upon which we can be involved in a fratricidal strife. God and nature, judging by the history of the past, intend us to be one. Our unity is written in the mountains and the rivers, in which we all have an interest. The very differences of climate render each important to the other, and alike important.

"That mighty horde which, from time to time, have gone from the Atlantic, imbued with all the principles of human Freedom which animated their fathers in running the perils of the mighty Deep and seeking Liberty here, are now there; and as they have said, they will continue to say, until time shall be no more: 'We mean that the Government in future shall be, as it has been in the past—Once an exemplar of human Freedom, for the light and example of the World; illustrating in the blessings and the happiness it

confers, the truth of the principles incorporated into the Declaration of Independence, that Life and Liberty are Man's inalienable right."

Fortunately the Democratic opposition, in the Senate, to this measure, was too small in numbers to beat the proposed Amendment, but by offering amendments to it, its enemies succeeded in delaying its adoption.

However, on the 5th of April, an amendment, offered by Garrett Davis, was acted upon. It was to strike out all after the preamble of the XIIIth Article of Amendment to the Constitution, proposed by the Judiciary Committee, and insert the words:

"No Negro, or Person whose mother or grandmother is or was a Negro, shall be a citizen of the United States and be eligible to any Civil or Military office, or to any place of trust or profit under the United States."

Mr. Davis's amendment was rejected by a vote of 5 yeas to 32 nays; when he immediately moved to amend, by adding precisely the same words at the end of Section 1 of the proposed Article. It was again rejected. He then moved to amend by adding to the said Section these words:

"But no Slave shall be entitled to his or her Freedom under this Amendment if resident at the time it takes effect in any State, the laws of which forbid Free Negroes to reside therein, until removed from such State by the Government of the United States."

This also was rejected. Whereupon Mr. Powell moved to add, at the end of the first Section, the words:

"No Slave shall be Emancipated by this Article unless the owner thereof shall be first paid the value of the Slave or Slaves so Emancipated."

This likewise was rejected, on a yeas and nays vote, by 2 yeas (Davis and Powell) to 34 nays; when Mr. Davis moved another amendment, viz.: to add at the end of Section 2 of the proposed Article, the following:

"And when this Amendment of the Constitution shall have taken effect by Freeing the Slaves, Congress shall provide for the distribution and settlement of all the population of African descent in the United States among the several States and Territories thereof, in proportion to the White population of each State and Territory to the aggregate population of those of African descent."

This met a like fate; whereupon the Senate adjourned, but, on the following day, the matter came up again for consideration:

Hale, of New Hampshire, jubilantly declared that "this is a day that I and many others have long wished for, long hoped for, long striven for. * * * A day when the Nation is to commence its real life; or, if it is not the day, it is the dawning of the day; the day is near at hand * * * when the American People are to wake up to the meaning of the sublime truths which their fathers uttered years ago, and which have slumbered, dead-letters, upon the pages of our Constitution, of our Declaration of Independence, and of our history."

McDougall, of California, on the other hand,—utterly regardless of the grandly patriotic resolutions of the Legislature of his State, which had just been presented to the Senate by his colleague—lugubriously declared:

"In my judgment, it may well be said of us:

'Let the Heavens be hung in black
And let the Earth put mourning on,'

for in the history of no Free People, since the time the Persians came down upon Athens, have I known as melancholy a period as this day and year of Our Lord in our history; and if we can, by the blessing of God and by His favor, rise above it, it will be by His special providence, and by no act of ours."

The obstructive tactics were now resumed, Mr. Powell leading off by a motion to amend, by adding to the Judiciary Committee's proposed Thirteenth Article of the Constitution, the following:

"ART. 14.—The President and Vice-President shall hold their Offices for the term of four—[Which he subsequently modified to: 'six years']—years. The person who has filled the Office of President shall not be reeligible."

This amendment was rejected by 12 yeas to 32 nays; whereupon Mr. Powell moved to add to the Committee's Proposition another new Article, as follows:

"ART. 14.—The principal Officer in each of the Executive Departments, and all persons connected with the Diplomatic Service, may be removed from office at the pleasure of the President. All other officers of the Executive Departments may be removed at any time by the President or other appointing power when their services are unnecessary, or for dishonesty, incapacity, inefficiency, misconduct, or neglect of duty, and

when so removed, the removal shall be reported to the Senate, together with the reasons therefor."

This amendment also being rejected, Mr. Powell offered another, which was to add a separate Article as follows:

"ART. 14.—Every law, or Resolution having the force of law, shall relate to but one subject, and that shall be expressed in its title."

This also being rejected—the negative vote being, as in other cases, without reference to the merits of the proposition—and Mr. Powell having now apparently exhausted his obstructive amendatory talents, Mr. Davis came to the aid of his Kentucky colleague by moving an amendment, to come in as an additional Article, being a new plan of Presidential election designed to do away with the quadrennial Presidential campaign before the People by giving to each State the right to nominate one candidate, and leaving it to a Convention of both Houses of Congress—and, in case of disagreement, to the Supreme Court of the United States—to elect a President and a Vice-President.

The rejection of this proposition apparently exhausted the stock of possible amendments possessed by the Democratic opposition, and the Joint Resolution, precisely as it came from the Judiciary Committee, having been agreed to by that body, "as in Committee of the Whole," was now, April 6th, reported to the Senate for its concurrence.

On the following day, Mr. Hendricks uttered a lengthy jeremiad on the War, and its lamentable results; intimated that along the Mississippi, the Negroes, freed by the advance of our invading Armies and Navies, instead of being happy and industrious, were without protection or provision and almost without clothing, while at least 200,000 of them had prematurely perished, and that such was the fate reserved for the 4,000,000 Negroes if liberated; and declared he would not vote for the Resolution, "because," said he, "the times are not auspicious."

Very different indeed was the attitude of Mr. Henderson, of Missouri, Border-State man though he was. In the course of a speech, of much power, which he opened with an allusion to the 115,000 Slaves owned in his State in 1860—as showing how deeply interested Missouri "must be in the pending proposition"—the Senator announced that: "Our great interest, as lovers of the Union, is in the preservation and perpetuation of the Union." He declared himself a Slaveholder, yet none the less desired the adoption of

this Thirteenth Article of Amendment, for, said he: "We cannot save the Institution if we would. We ought not if we could. * * * If it were a blessing, I, for one, would be defending it to the last. It is a curse, and not a blessing. Therefore let it go. * * * Let the iniquity be cast away!"

It was about this time that a remarkable letter written by Mr. Lincoln to a Kentuckian, on the subject of Emancipation, appeared in print. It is interesting as being not alone the President's own statement of his views, from the beginning, as to Slavery, and how he came to be "driven" to issue the Proclamation of Emancipation, and as showing how the Union Cause had gained by its issue, but also in disclosing, indirectly, how incessantly the subject was revolved in his own mind, and urged by him upon the minds of others. The publication of the letter, moreover, was not without its effect on the ultimate action of the Congress and the States in adopting the Thirteenth Amendment. It ran thus:

"EXECUTIVE MANSION.

"WASHINGTON, April 4, 1864.

"A. G. HODGES, Esq., Frankfort, Ky.

"MY DEAR SIR: You ask me to put in writing the substance of—what I verbally said the other day, in your presence, to Governor Bramlette and Senator Dixon. It was about as follows:

"I am naturally anti-Slavery. If Slavery is not wrong, nothing is wrong. I cannot remember when I did not so think and feel, and yet I have never understood that the 'Presidency conferred upon me an unrestricted right to act officially upon this judgment and feeling.

"It was in the oath I took, that I would to the best of my ability preserve, protect, and defend the Constitution of the United States. I could not take the Office without taking the oath. Nor was it my view that I might take an oath to get power, and break the oath in using the power.

"I understood, too, that in ordinary and Civil Administration this oath even forbade me to practically indulge my primary abstract judgment on the

moral question of Slavery. I had publicly declared this many times, and in many ways.

"And I aver that, to this day, I have done no Official act in mere deference to my abstract judgment and feeling on Slavery.

"I did understand, however, that my oath to preserve the Constitution to the best of my ability, imposed upon me the duty of preserving by every indispensable means, that Government—that Nation, of which that Constitution was the Organic Law.

"Was it possible to lose the Nation and yet preserve the Constitution?

"By General Law, life and limb must be protected; yet often a limb must be amputated to save a life; but a life is never wisely given to save a limb. I felt that measures, otherwise Unconstitutional, might become lawful, by becoming Indispensable to the Constitution through the preservation of the Nation.

"Right or wrong, I assumed this ground, and now avow it. I could not feel that, to the best of my ability, I have even tried to preserve the Constitution, if, to save Slavery, or any minor matter, I should permit the wreck of Government, Country, and Constitution, altogether.

"When, early in the War, General Fremont attempted Military Emancipation, I forbade it, because I did not then think it an Indispensable Necessity.

"When, a little later, General Cameron, then Secretary of War, suggested the Arming of the Blacks, I objected, because I did not yet think it an Indispensable Necessity.

"When, still later, General Hunter attempted Military Emancipation, I again forbade it, because I did not yet think the Indispensable Necessity had come.

"When in March, and May, and July, 1862, I made earnest and successive appeals to the Border-States to favor compensated Emancipation, I believed the Indispensable Necessity for Military Emancipation and arming the Blacks would come, unless averted by that measure.

"They declined the proposition, and I was, in my best judgment, driven to the alternative of either surrendering the Union, and with it, the Constitution, or of laying strong hand upon the Colored element. I chose the

latter. In choosing it, I hoped for greater gain than loss, but of this I was not entirely confident.

"More than a year of trial now shows no loss by it in our Foreign Relations, none in our home popular sentiment, none in our white Military force, no loss by it anyhow, or anywhere. On the contrary, it shows a gain of quite a hundred and thirty thousand soldiers, seamen, and laborers.

"These are palpable facts, about which, as facts, there can be no cavilling. We have the men; and we could not have had them without the measure.

"And now let any Union man who complains of this measure, test himself by writing down in one line, that he is for subduing the Rebellion by force of arms; and in the next, that he is for taking one hundred and thirty thousand men from the Union side, and placing them where they would be best for the measure he condemns. If he cannot face his case so stated, it is only because he cannot face the truth.

"I add a word which was not in the verbal conversation. In telling this tale, I attempt no compliment to my own sagacity. I claim not to have controlled events, but confess plainly that events have controlled me. Now at the end of three years' struggle, the Nation's condition is not what either Party, or any man, devised or expected. God alone can claim it.

"Whither it is tending seems plain. If God now wills the removal of a great wrong, and wills also that we of the North, as well as you of the South, shall pay fairly for our complicity in that wrong, impartial history will find therein new causes to attest and revere the Justice and goodness of God.

"Yours truly,

"A. LINCOLN."

The 8th of April (1864) turned out to be the decisive field-day in the Senate. Sumner endeavored to close the debate on that day in a speech remarkable no less for its power and eloquence of statement, its strength of Constitutional exposition, and its abounding evidences of extensive historical research and varied learning, than for its patriotic fervor and devotion to human Freedom.

Toward the end of that great speech, however, he somewhat weakened its force by suggesting a change in the phraseology of the proposed Thirteenth Amendment, so that, instead of almost precisely following the language of the Jeffersonian Ordinance of 1787, as recommended by the Judiciary Committee of the Senate, it should read thus:

"All Persons are Equal before the Law, so that no person can hold another as a Slave; and the Congress may make all laws necessary and proper to carry this Article into effect everywhere within the United States and the jurisdiction thereof."

Mr. Sumner's idea in antagonizing the Judiciary Committee's proposition with this, was to introduce into our Organic Act, distinctive words asserting the "Equality before the Law" of all persons, as expressed in the Constitutional Charters of Belgium, Italy and Greece, as well as in the various Constitutions of France—beginning with that of September, 1791, which declared (Art. 1) that "Men are born and continue Free and Equal in Rights;" continuing in that of June, 1793, which declares that "All Men are Equal by Nature and before the Law:" in that of June, 1814, which declares that "Frenchmen are Equal before the Law, whatever may be otherwise their title and ranks;" and in the Constitutional Charter of August, 1830 in similar terms to the last.

"But," said he, "while desirous of seeing the great rule of Freedom which we are about to ordain, embodied in a text which shall be like the precious casket to the more precious treasure, yet * * * I am consoled by the thought that the most homely text containing such a rule will be more beautiful far than any words of poetry or eloquence, and that it will endure to be read with gratitude when the rising dome of this Capitol, with the Statue of Liberty which surmounts it, has crumbled to dust."

Mr. Sumner's great speech, however, by no means ended the debate. It brought Mr. Powell to his feet with a long and elaborate contention against the general proposition, in the course of which he took occasion to sneer at Sumner's "most remarkable effort," as one of his "long illogical rhapsodies on Slavery, like:

*'—a Tale Told by an Idiot, full of sound and fury,
Signifying nothing.'*"

He professed that he wanted "the Union to be restored with the Constitution as it is;" that he verily believed the passage of this Amendment would be "the most effective Disunion measure that could be passed by Congress"—and, said he, "As a lover of the Union I oppose it."

[This phrase slightly altered, in words, but not in meaning, to "The Union as it was, and the Constitution as it is," afterward became the Shibboleth under which the Democratic Party in the Presidential Campaign of 1864, marched to defeat.]

He endeavored to impute the blame for the War, to the northern Abolitionists, for, said he: "Had there been no Abolitionists, North, there never would have been a Fire-eater, South,"—apparently ignoring the palpable fact that had there been no Slavery in the South, there could have been no "Abolitionists, North."

He heatedly denounced the "fanatical gentlemen" who desired the passage of this measure; declared they intended by its passage "to destroy the Institution of Slavery or to destroy the Union," and exclaimed: "Pass this Amendment and you make an impassable chasm, as if you were to put a lake of burning fire, between the adhering States and those who are out. You will then have to make it a War of conquest and extermination before you can ever bring them back under the flag of the Government. There is no doubt about that proposition."

Mr. Sumner, at this point, withdrew his proposed amendment, at the suggestion of Mr. Howard, who expressed a preference "to dismiss all reference to French Constitutions and French Codes, and go back to the good old Anglo-Saxon language employed by our Fathers, in the Ordinance of 1787, (in) an expression adjudicated upon repeatedly, which is perfectly well understood both by the public and by Judicial Tribunals—a phrase, which is peculiarly near and dear to the people of the Northwestern Territory, from whose soil Slavery was excluded by it."

[The following is the language of "the Ordinance of 1787" thus referred to:

"ART. 6.—There shall be neither Slavery nor Involuntary Servitude in the said Territory, otherwise than in the

*punishment of crimes, whereof the party shall have been
duly convicted: * * *."]*

Mr. Davis thereupon made another opposition speech and, at its conclusion, Mr. Saulsbury offered, as a substitute, an Article, comprising no less than twenty sections—that, he said, "embodied in them some things" which "did not meet his personal approbation," but he had consented to offer them to the Senate as "a Compromise"—as "a Peace offering."

The Saulsbury substitute being voted down, the debate closed with a speech by Mr. McDougall—an eloquent protest from his standpoint, in which, after endorsing the wild statement of Mr. Hendricks that 250,000 of the people of African descent had been prematurely destroyed on the Mississippi, he continued.

"This policy will engulf them. It is as simple a truth as has ever been taught by any history. The Slaves of ancient time were not the Slaves of a different Race. The Romans compelled the Gaul and the Celt, brought them to their own Country, and some of them became great poets, and some eloquent orators, and some accomplished wits, and they became citizens of the Republic of Greece, and of the Republic of Rome, and of the Empire.

"This is not the condition of these persons with whom we are now associated, and about whose affairs we undertake to establish administration. They can never commingle with us. It may not be within the reading of some learned Senators, and yet it belongs to demonstrated Science, that the African race and the European are different; and I here now say it as a fact established by science, that the eighth generation of the Mixed race formed by the union of the African and European, cannot continue their species. Quadroons have few children; with Octoroons reproduction is impossible.

"It establishes as a law of nature that the African has no proper relation to the European, Caucasian, blood. I would have them kindly treated. * * * Against all such policy and all such conduct I shall protest as a man, in the name of humanity, and of law, and of truth, and of religion."

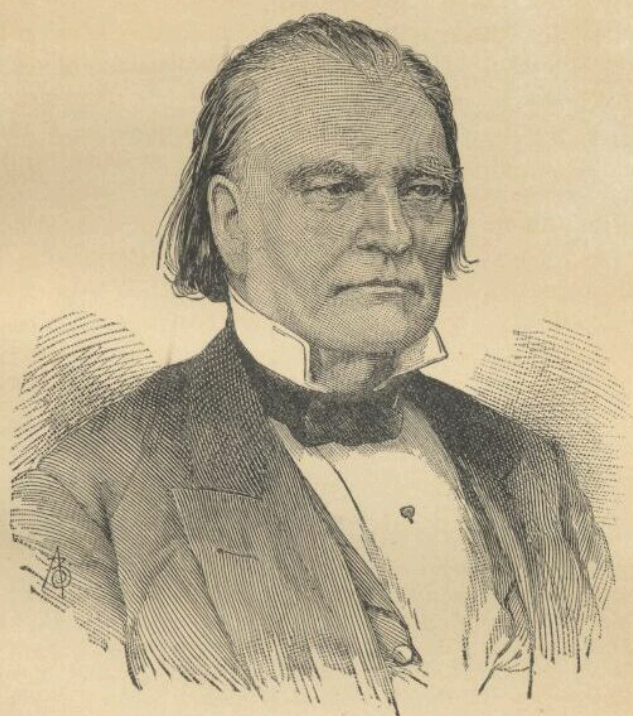
The amendment made, as in Committee of the Whole, having been concurred in, etc., the Joint Resolution, as originally reported by the Judiciary Committee, was at last passed, (April 8th)—by a vote of 38 yeas to 6 nays—Messrs. Hendricks and McDougall having the unenviable

distinction of being the only two Senators, (mis-)representing Free States, who voted against this definitive Charter of American Liberty.

[The full Senate vote, on passing the Thirteenth Amendment, was:

YEAS—Messrs. Anthony, Brown, Chandler, Clark, Collamer, Conness, Cowan, Dixon, Doolittle, Fessenden, Foot, Foster, Grimes, Hale, Harding, Harlan, Harris, Henderson, Howard, Howe, Johnson, Lane of Indiana, Lane of Kansas, Morgan, Morrill, Nesmith, Pomeroy, Ramsey, Sherman, Sprague, Sumner, Ten Eyck, Trumbull, Van Winkle, Wade, Wilkinson, Willey, and Wilson—38.

NAYs—Messrs. Davis, Hendricks, McDougall, Powell, Riddle, and Saulsbury.]



B. F. WADE.

CHAPTER XXIV.

TREASON IN THE NORTHERN CAMPS.

The immortal Charter of Freedom had, as we have seen, with comparative ease, after a ten days' debate, by the power of numbers, run the gauntlet of the Senate; but now it was to be subjected to the much more trying and doubtful ordeal of the House. What would be its fate there? This was a question which gave to Mr. Lincoln, and the other friends of Liberty and Union, great concern.

It is true that various votes had recently been taken in that body, upon propositions which had an indirect bearing upon the subject of Emancipation, as, for instance, that of the 1st of February, 1864, when, by a vote of 80 yeas to 46 nays, it had adopted a Resolution declaring "That a more vigorous policy to enlist, at an early day, and in larger numbers, in our Army, persons of African descent, would meet the approbation of the House;" and that vote, although indirect, being so very nearly a two-thirds vote, was most encouraging. But, on the other hand, a subsequent Resolution, squarely testing the sense of the House upon the subject, had been carried by much less than a two-thirds vote.

This latter Resolution, offered by Mr. Arnold, after conference with Mr. Lincoln, with the very purpose of making a test, was in these direct terms:

"Resolved, That the Constitution shall be so amended as to Abolish Slavery in the United States wherever it now exists, and to prohibit its existence in every part thereof forever."

The vote, adopting it, was but 78 yeas to 62 nays. * This vote, therefore, upon the Arnold Resolution, being nowhere near the two-thirds affirmative vote necessary to secure the passage through the House of the Senate Joint Resolution on this subject amendatory of the Constitution, was most discouraging.

It was definite enough, however, to show the necessity of a change from the negative to the affirmative side of at least fifteen votes. While therefore the outlook was discouraging it was far from hopeless. The debate in the Senate had already had its effect upon the public mind. That, and the utterances of Mr. Lincoln—and further discussion in the House, it was thought, might produce such a pressure from the loyal constituencies both in the Free and Border Slave-States as to compel success.

But from the very beginning of the year 1864, as if instinctively aware that their Rebel friends were approaching the crisis of their fate, and needed now all the help that their allies of the North could give them, the Anti-War Democrats, in Congress, and out, had been stirring themselves with unusual activity.

In both Houses of Congress, upon all possible occasions, they had been striving, as they still strove, with the venom of their widely-circulated speeches, to poison the loyal Northern and Border-State mind, in the hope that the renomination of Mr. Lincoln might be defeated, the chance for Democratic success at the coming Presidential election be thereby increased, and, if nothing else came of it, the Union Cause be weakened and the Rebel Cause correspondingly strengthened.

At the same time, evidently under secret instructions from their friends, the Conspirators in arms, they endeavored to create heart-burnings and jealousies and ill-feeling between the Eastern (especially the New England) States and the Western States, and unceasingly attacked the Protective-Tariff, Internal Revenue, the Greenback, the Draft, and every other measure or thing upon which the life of the Union depended.

Most of these Northern-Democratic agitators, "Stealing the livery of Heaven to serve the Devil in," endeavored to conceal their treacherous designs under a veneer of gushing lip-loyalty, but that disguise was "too thin" to deceive either their contemporaries or those who come after them. Some of their language too, as well as their blustering manner, strangely brought back to recollection the old days of Slavery when the plantation-whip was cracked in the House, and the air was blue with execration of New England.

Said Voorhees, of Indiana, (January 11, 1864) when the House was considering a Bill "to increase the Internal Revenue and for other purposes:"

"I want to know whether the West has any friends upon the floor of this House? We pay every dollar that is to be levied by this Tax Bill. * * * The Manufacturing Interest pays not a dollar into the public Treasury that stays there. And yet airs of patriotism are put on here by men representing that interest. I visited New England last Summer, * * * when I heard the swelling hum of her Manufactories, and saw those who only a short time ago worked but a few hands, now working their thousands, and rolling up their countless wealth, I felt that it was an unhealthy prosperity. To my mind it presented a wealth wrung from the labor, the sinews, the bone and muscle of the men who till the soil, taxed to an illegitimate extent to foster and support that great System of local wealth. * * * I do not intend to stand idly by and see one portion of the Country robbed and oppressed for the benefit of another."

And the same day, replying to Mr. Morrill of Vermont, he exclaimed: "Let him show me that the plethoric, bloated Manufacturers of New England are paying anything to support the Government, and I will recognize it."

Washburne, of Illinois got back at this part of Mr. Voorhees's speech rather neatly, by defending the North-west as being "not only willing to stand taxation" which had been "already imposed, but * * * any additional taxation which," said he, "may be necessary to crush out this Rebellion, and to hang the Rebels in the South, and the Rebel sympathizers in the North." And, he pointedly added: "Complaint has been made against New England. I know that kind of talk. I have heard too often that kind of slang about New England. I heard it here for ten years, when your Barksdales, and your Keitts's, and your other Traitors, now in arms against the Government, filled these Halls with their pestilential assaults not only upon New England, but on the Free North generally."

Kelley of Pennsylvania, however, more fitly characterized the speech of Voorhees, when he termed it "a pretty, indeed a somewhat striking, paraphrase of the argument of Mr. Lamar, the Rebel Agent,—[in 1886, Secretary of the Interior]—to his confreres in Treason, as we find it in the recently published correspondence: 'Drive gold coin out of the Country, and induce undue Importation of Foreign products so as to strike down the Financial System. You can have no further hope for Foreign recognition. It is evident the weight of arms is against us; and it is clear that we can only

succeed by striking down the Financial System of the Country.' It was an admirable paraphrase of the Instructions of Mr. Lamar to the Rebel Agents in the North."

The impression was at this time abroad, and there were not wanting elements of proof, that certain members of Congress were trusted Lieutenants of the Arch-copperhead and Outlaw, Vollandigham. Certain it is, that many of these leaders, six months before, attended and addressed the great gathering from various parts of the Country, of nearly one hundred thousand Vollandigham-Anti-War Peace-Democrats, at Springfield, Illinois—the very home of Abraham Lincoln—which adopted, during a lull, when they were not yelling themselves hoarse for Vollandigham, a resolution declaring against "the further offensive prosecution of the War" as being subversive of the Constitution and Government, and proposing a National Peace Convention, and, as a consequence, Peace, "the Union as it was," and, substantially such Constitutional guarantees as the Rebels might choose to demand! And this too, at a time (June 13, 1863), when Grant, after many recent glorious victories, had been laying siege to Vicksburg, and its Rebel Army of 37,000 men, for nearly a month, with every reason to hope for its speedy fall.

No wonder that under such circumstances, the news of such a gathering of the Northern Democratic sympathizers with Treason, and of their adoption of such treasonable Resolutions, should encourage the Rebels in the same degree that Union men were disheartened! No wonder that Lee, elated by this and other evidences of Northern sympathy with Rebellion, at once determined to commence a second grand invasion of the North, and on the very next day (June 14th,) moved Northward with all his Rebel hosts to be welcomed, he fondly hoped, by his Northern friends of Maryland and elsewhere! As we have seen, it took the bloody Battle of Gettysburg to undeceive him as to the character of that welcome.

Further than this, Mr. Cox had stumped Ohio, in the succeeding election, in a desperate effort to make the banished Traitor, Vollandigham—the Chief Northern commander of the "Knights of the Golden Circle" (otherwise known as the "Order of the Sons of Liberty," and "O. A. K." or "Order of American Knights")—Governor of that great State.

*[The Rebel General Sterling Price being the chief
Southern commander of this many-named treasonable*

organization, which in the North alone numbered over 500,000 men.

August, 1864.—See Report of Judge Advocate Holt on certain "Secret Associations," in Appendix,]

And it only lacked a few months of the time when quantities of copies of the treasonable Ritual of the "Order of American Knights"—as well as correspondence touching the purchase of thousands of Garibaldi rifles for transportation to the West—were found in the offices of leading Democrats then in Congress.

When, therefore, it is said, and repeated, that there were not wanting elements of proof, outside of Congressional utterances and actions, that leading Democrats in Congress were trusted Lieutenants of the Supreme Commander of over half a million of Northern Rebel-sympathizers bound together, and to secrecy, by oaths, which were declared to be paramount to all other oaths, the violation of which subjected the offender to a shameful death somewhat like that, of being "hung, drawn, and quartered," which was inflicted in the middle ages for the crime of Treason to the Crown—it will be seen that the statement is supported by circumstantial, if not by positive and direct, evidence.

Whether the Coxes, the Garret Davises, the Saulsburys, the Fernando Woods, the Alexander Longs, the Allens, the Holmans, and many other prominent Congressmen of that sort,—were merely in close communion with these banded "Knights," or were actual members of their secret organizations, may be an open question. But it is very certain that if they all were not oath-bound members, they generally pursued the precise methods of those who were; and that, as a rule, while they often loudly proclaimed loyalty and love for the Union, they were always ready to act as if their loyalty and love were for the so-called Confederacy.

Indeed, it was one of these other "loyal" Democrats, who even preceded Voorhees, in raising the Sectional cry of: The West, against New England. It was on this same Internal Revenue Bill, that Holman of Indiana had, the day before Voorhees's attack, said:

"If the Manufacture of the Northwest is to be taxed so heavily, a corresponding rate of increase must be imposed on the Manufactures of New England and Pennsylvania, or, will gentlemen tax us without limit for

the benefit of their own Section? * * * I protest against what I believe is intended to be a discrimination against one Section of the Country, by increasing the tax three-fold, without a corresponding increase upon the burdens of other Sections."

But these dreadfully "loyal" Democrats—who did the bidding of traitorous masters in their Treason to the Union, and thus, while posturing as "Patriots," "fired upon the rear" of our hard-pressed Armies—were super-sensitive on this point. And, when they could get hold of a quiet sort of a man, inclined to peaceful methods of discussion, how they would, terrier-like, pounce upon him, and extract from him, if they could, some sort of negative satisfaction!

Thus, for instance, on the 22nd of January, when one of these quiet men—Morris of New York—was in the midst of an inoffensive speech, Mr. Cox "bristled up," and blusteringly asked whether he meant to say that he (Cox) had "ever been the apologist or the defender of a Traitor?"

And Morris not having said so, mildly replied that he did "not so charge"—all of which little bit of by-play hugely pleased the touchy Mr. Cox, and his clansmen.

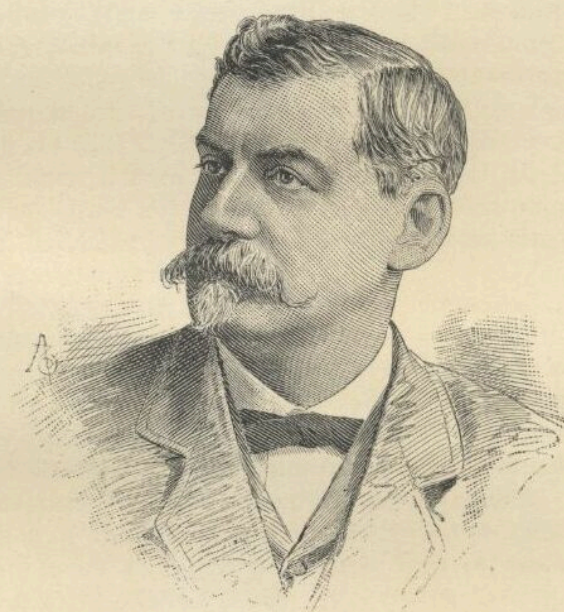
But on the day following, their smiles vanished under the words of Spalding or Ohio, who, after referring to the crocodile-tears shed by Democratic Congressmen over the Confiscation Resolution—on the pretense that it would hunt down "innocent women and children" of the Rebels, when they had never a word of sympathy for the widows and children of the two hundred thousand dead soldiers of the Union—continued:

"They can see our poor soldiers return, minus an arm, minus a leg, as they pass through these lobbies, but their only care is to protect the property of Rebels. And we are asked by one of my colleagues, (Mr. Cox) does the gentleman from New York intend to call us Traitors? My friend, Mr. Morris, modestly answered no! If he had asked that question of me, he knows what my answer would have been! I have seen Rebel officers at Johnson's Island, and I have taken them by the hand because they have fought us fairly in the field and did not seek to break down the Government while living under its protection. Yes, Sir, that gentleman knows that I would have said to him that I have more respect for an open and avowed Traitor in the field, than for a sympathizer in this Hall. Four months have scarcely gone by since that

gentleman and his political friends were advocating the election of a man for the Gubernatorial office in my State, who was an open and avowed advocate of Secession—AN OUTLAW AT THAT!"

And old Thaddeus Stevens—the clear-sighted and courageous "Old Commoner"—followed up Spalding, and struck very close to the root and animus of the Democratic opposition, when he exclaimed:

"All this struggle by calm and dignified and moderate 'Patriots;' all this clamor against 'Radicals;' all this cry of 'the Union as it Was, and the Constitution as it Is;' is but a persistent effort to reestablish Slavery, and to rivet anew and forever the chains of Bondage on the limbs of Immortal beings. May the God of Justice thwart their designs and paralyze their wicked efforts!"



GEN. GEO. B. McCLELLAN.

CHAPTER XXV.

"THE FIRE IN THE REAR."

The treacherous purposes of professedly-loyal Copperheads being seen through, and promptly and emphatically denounced to the Country by Union statesmen, the Copperheads aforesaid concluded that the profuse circulation of their own Treason-breeding speeches—through the medium of the treasonable organizations before referred to, permeating the Northern States,—would more than counteract all that Union men could say or do. Besides, the fiat had gone forth, from their Rebel masters at Richmond, to Agitate the North.

Hence, day after day, Democrat after Democrat, in the one House or the other, continued to air his disloyal opinions, and to utter more or less virulent denunciations of the Government which guarded and protected him.

Thus, Brooks, of New York, on the 25th of January (1864), sneeringly exclaimed: "Why, what absurdity it is to talk at this Capitol of prosecuting the War by the liberation of Slaves, when from the dome of this building there can be heard at this hour the booming of cannon in the distance!"

Thus, also, on the day following, Fernando Wood—the same man who, while Mayor of New York at the outbreak of the Rebellion, had, under Rebel-guidance, proposed the Secession from the Union, and the Independence, of that great Metropolis,—declared to the House that: "No Government has pursued a foe with such unrelenting, vindictive malignity as we are now pursuing those who came into the Union with us, whose blood has been freely shed on every battle-field of the Country until now, with our own; who fought by our side in the American Revolution, and in the War of 1812 with Great Britain; who bore our banners bravest and highest in our victorious march from Vera Cruz to the City of Mexico, and

who but yesterday sat in these Halls contributing toward the maintenance of our glorious institutions."

Then he went on, in the spirit of prophecy, to declare that: "No purely agricultural people, fighting for the protection of their own Domestic Institutions upon their own soil, have ever yet been conquered. I say further, that no revolted people have ever been subdued after they have been able to maintain an Independent government for three years." And then, warming up to an imperative mood, he made this explicit announcement: "We are at War. * * * Whether it be a Civil War, Rebellion, Revolution, or Foreign War, it matters little. IT MUST CEASE; and I want this Administration to tell the American People WHEN it will cease!" Again, only two days afterward, he took occasion to characterize a Bill, amendatory of the enrollment Act, as "this infamous, Unconstitutional conscription Act!"

C. A. White, of Ohio, was another of the malcontents who undertook, with others of the same Copperhead faith, to "maintain, that," as he expressed it, "the War in which we are at present engaged is wrong in itself; that the policy adopted by the Party in power for its prosecution is wrong; that the Union cannot be restored, or, if restored, maintained, by the exercise of the coercive power of the Government, by War; that the War is opposed to the restoration of the Union, destructive of the rights of the States and the liberties of the People. It ought, therefore, to be brought to a speedy and immediate close."

It was about this time also that, emboldened by immunity from punishment for these utterances in the interest of armed Rebels, Edgerton of Indiana, was put forward to offer resolutions "for Peace, upon the basis of a restoration of the Federal Union under the Constitution as it is," etc.

Thereafter, in both Senate and House, such speeches by Rebel-sympathizers, the aiders and abettors of Treason, grew more frequent and more virulent than ever. As was well said to the House, by one of the Union members from Ohio (Mr. Eckley):

"A stranger, if he listened to the debates here, would think himself in the Confederate Congress. I do not believe that if these Halls were occupied to-day by Davis, Toombs, Wigfall, Rhett, and Pryor, they could add anything to the violence of assault, the falsity of accusation, or the malignity of attack, with which the Government has been assailed, and the able, patriotic, and devoted men who are charged with its Administration have

been maligned, in both ends of the Capitol. The closing scenes of the Thirty-Sixth Congress, the treasonable declarations there made, contain nothing that we cannot hear, in the freedom of debate, without going to Richmond or to the camps of Treason, where most of the actors in those scenes are now in arms against us."

With such a condition of things in Congress, it is not surprising that the Richmond Enquirer announced that the North was "distracted, exhausted, and impoverished," and would, "through the agency of a strong conservative element in the Free States," soon treat with the Rebels "on acceptable terms."

Things indeed had reached such a pass, in the House of Representatives especially, that it was felt they could not much longer go on in this manner; that an example must be made of some one or other of these Copperheads. But the very knowledge of the existence of such a feeling of just and patriotic irritation against the continued free utterance of such sentiments in the Halls of Congress, seemed only to make some of them still more defiant. And, when the 8th of April dawned, it was known among all the Democrats in Congress, that Alexander Long proposed that day to make a speech which would "go a bow-shot beyond them all" in uttered Treason. He would speak right out, what the other Conspirators thought and meant, but dared not utter, before the World.

A crowded floor, and packed galleries, were on hand to listen to the written, deliberate Treason, as it fell from his lips in the House. His speech began with an arraignment of the Government for treachery, incompetence, failure, tyranny, and all sorts of barbarous actions and harsh intentions, toward the Rebels—which led him to the indignant exclamation:

"Will they throw down their arms and submit to the terms? Who shall believe that the free, proud American blood, which courses with as quick pulsation through their veins as our own, will not be spilled to the last drop in resistance?"

Warming up, he proceeded to say: "Can the Union be restored by War? I answer most unhesitatingly and deliberately, No, never; 'War is final, eternal separation.'"

He claimed that the War was "wrong;" that it was waged "in violation of the Constitution," and would "if continued, result speedily in the destruction

of the Government and the loss of Civil Liberty, and ought therefore, to immediately cease."

He held also "that the Confederate States are out of the Union, occupying the position of an Independent Power de facto; have been acknowledged as a belligerent both by Foreign Nations and our own Government; maintained their Declaration of Independence, for three years, by force of arms; and the War has cut asunder all the obligations that bound them under the Constitution."

"Much better," said he, "would it have been for us in the beginning, much better would it be for us now, to consent to a division of our magnificent Empire, and cultivate amicable relations with our estranged brethren, than to seek to hold them to us by the power of the sword. * * * I am reluctantly and despondingly forced to the conclusion that the Union is lost, never to be restored. * * * I see neither North nor South, any sentiment on which it is possible to build a Union. * * * in attempting to preserve our Jurisdiction over the Southern States we have lost our Constitutional Form of Government over the Northern. * * * The very idea upon which this War is founded, coercion of States, leads to despotism. * * * I now believe that there are but two alternatives, and they are either an acknowledgment of the Independence of the South as an independent Nation, or their complete subjugation and extermination as a People; and of these alternatives I prefer the former."

As Long took his seat, amid the congratulations of his Democratic friends, Garfield arose, and, to compliments upon the former's peculiar candor and honesty, added denunciation for his Treason. After drawing an effective parallel between Lord Fairfax and Robert E. Lee, both of whom had cast their lots unwillingly with the enemies of this Land, when the Wars of the Revolution and of the Rebellion respectively opened, Garfield proceeded:

"But now, when hundreds of thousands of brave souls have gone up to God under the shadow of the Flag, and when thousands more, maimed and shattered in the Contest, are sadly awaiting the deliverance of death; now, when three years of terrific warfare have raged over us, when our Armies have pushed the Rebellion back over mountains and rivers and crowded it back into narrow limits, until a wall of fire girds it; now, when the uplifted hand of a majestic People is about to let fall the lightning of its conquering

power upon the Rebellion; now, in the quiet of this Hall, hatched in the lowest depths of a similar dark Treason, there rises a Benedict Arnold and proposes to surrender us all up, body and spirit, the Nation and the Flag, its genius and its honor, now and forever, to the accursed Traitors to our Country. And that proposition comes—God forgive and pity my beloved State!—it comes from a citizen of the honored and loyal Commonwealth of Ohio! I implore you, brethren in this House, not to believe that many such births ever gave pangs to my mother-State such as she suffered when that Traitor was born!"

As he uttered these sturdy words, the House and galleries were agitated with that peculiar rustling movement and low murmuring sound known as a "sensation," while the Republican side with difficulty restrained the applause they felt like giving, until he sadly proceeded:

"I beg you not to believe that on the soil of that State another such growth has ever deformed the face of Nature and darkened the light of God's day."

The hush that followed was broken by the suggestive whisper: "Vallandigham!"

"But, ah," continued the Speaker—as his voice grew sadder still—"I am reminded that there are other such. My zeal and love for Ohio have carried me too far. I retract. I remember that only a few days since, a political Convention met at the Capital of my State, and almost decided, to select from just such material, a representative for the Democratic Party in the coming contest; and today, what claims to be a majority of the Democracy of that State say that they have been cheated or they would have made that choice!"

[This refers to Horatio Seymour, the Democratic Governor of New York.]

After referring to the "insidious work" of the "Knights of the Golden Circle" in seeking "to corrupt the Army and destroy its efficiency;" the "riots and murders which," said he, "their agents are committing throughout the Loyal North, under the lead and guidance of the Party whose Representatives sit yonder across the aisle;" he continued: "and now, just as the time is coming on when we are to select a President for the next four

years, one rises among them and fires the Beacon, throws up the blue-light—which will be seen, and rejoiced over, at the Rebel Capital in Richmond—as the signal that the Traitors in our camp are organized and ready for their hellish work! I believe the utterance of to-day is the uplifted banner of revolt. I ask you to mark the signal that blazes here, and see if there will not soon appear the answering signals of Traitors all over the Land. * * * If these men do mean to light the torch of War in all our homes; if they have resolved to begin the fearful work which will redden our streets, and this Capitol, with blood, the American People should know it at once, and prepare to meet it."

At the close of Mr. Garfield's patriotic and eloquent remarks, Mr. Long again got the floor, declared that what he had said, he believed to be right, and he would "stand by it," though he had to "stand solitary and alone," and "even if it were necessary to brave bayonets, and prisons, and all the tyranny which may be imposed by the whole power and force of the Administration."

Said he: "I have deliberately uttered my sentiments in that speech, and I will not retract one syllable of it." And, to "rub it in" a little stronger, he exclaimed, as he took his seat, just before adjournment: "Give me Liberty, even if confined to an Island of Greece, or a Canton of Switzerland, rather than an Empire and a Despotism as we have here to-day!"

This treasonable speech naturally created much excitement throughout the Country.

On the following day (Saturday, April 9, 1864), immediately after prayer, the reading of the Journal being dispensed with, the Speaker of the House (Colfax) came down from the Speaker's Chair, and, from the floor, offered a Preamble and Resolution, which ended thus:

"Resolved, That Alexander Long, a Representative from the second district of Ohio, having, on the 8th day of April, 1864, declared himself in favor of recognizing the Independence and Nationality of the so-called Confederacy now in arms against the Union, and thereby 'given aid, Countenance and encouragement to persons engaged in armed hostility to the United States,' is hereby expelled."

The debate which ensued consumed nearly a week, and every member of prominence, on both the Republican and Democratic sides, took part in it—the Democrats almost invariably being careful to protest their own loyalty,

and yet attempting to justify the braver and more candid utterances of the accused member.

Mr. Cox led off, April 9th, in the defense, by counterattack. He quoted remarks made to the House (March 18, 1864) by Mr. Julian, of Indiana, to the effect that "Our Country, united and Free, must be saved, at whatever hazard or cost; and nothing, not even the Constitution, must be allowed to hold back the uplifted arm of the Government in blasting the power of the Rebels forever;"—and upon this, adopting the language of another—[Judge Thomas, of Massachusetts.]—Mr. Cox declared that "to make this a War, with the sword in one hand to defend the Constitution, and a hammer in the other to break it to pieces, is no less treasonable than Secession itself; and that, outside the pale of the Constitution, the whole struggle is revolutionary."

He thought, for such words as he had just quoted, Julian ought to have been expelled, if those of Long justified expulsion!

Finally, being pressed by Julian to define his own position, as between the Life of the Nation, and the Infraction of the United States Constitution, Mr. Cox said: "I will say this, that UNDER NO CIRCUMSTANCES CONCEIVABLE BY THE HUMAN MIND WOULD I EVER VIOLATE THAT CONSTITUTION FOR ANY PURPOSE!"

This sentiment was loudly applauded, and received with cries of "THAT IS IT!" "THAT'S IT!" by the Democratic side of the House, apparently in utter contempt for the express and emphatic declaration of Jefferson that: "A strict observance of the written laws is doubtless one of the highest duties of a good citizen, but it is not the highest. The laws of Necessity, of Self-preservation, of SAVING OUR COUNTRY WHEN IN DANGER, are of higher obligation. To LOSE OUR COUNTRY by a scrupulous adherence to written law WOULD BE TO LOSE THE LAW ITSELF, with Life, Liberty, Property, and all those who are enjoying them with us; thus absolutely SACRIFICING THE END TO THE MEANS."

[In a letter to J. B. Colvin, Sept. 20, 1810, quoted at the time for their information, and which may be found at page 542 of vol. v., of Jefferson's Works.]

Indeed these extreme sticklers for the letter of the Constitution, who would have sacrificed Country, kindred, friends, honesty, truth, and all ambitions on Earth and hopes for Heaven, rather than violate it—for that is what Mr. Cox's announcement and the Democratic endorsement of it meant, if they meant anything—were of the same stripe as those querulous Ancients, for the benefit of whom the Apostle wrote: "For THE LETTER KILLETH, but the Spirit giveth life."

And now, inspired apparently by the reckless utterances of Long, if not by the more cautious diatribe of Cox, Harris of Maryland, determining if possible to outdo them all, not only declared that he was willing to go with his friend Long wherever the House chose to send him, but added: "I am a peace man, a radical peace man; and I am for Peace by the recognition of the South, for the recognition of the Southern Confederacy; and I am for acquiescence in the doctrine of Secession." And, said he, in the midst of the laughter which followed the sensation his treasonable words occasioned, "Laugh as you may, you have got to come to it!" And then, with that singular obfuscation of ideas engendered, in the heads of their followers, by the astute Rebel-sympathizing leaders, he went on:

"I am for Peace, and I am for Union too. I am as good a Union man as any of you. [Laughter.] I am a better Union man than any of you! [Great Laughter.] * * * I look upon War as Disunion."

After declaring that, if the principle of the expulsion Resolution was to be carried out, his "friend," Mr. Long, "would be a martyr in a glorious cause"—he proceeded to announce his own candidacy for expulsion, in the following terms:

"Mr. Speaker, in the early part of this Secession movement, there was a Resolution offered, pledging men and money to carry on the War. My principles were then, and are now, against the War. I stood, solitary and alone, in voting against that Resolution, and whenever a similar proposition is brought here it will meet with my opposition. Not one dollar, nor one man, I swear, by the Eternal, will I vote for this infernal, this stupendous folly, more stupendous than ever disgraced any civilized People on the face of God's Earth. If that be Treason, make the most of it!

"The South asked you to let them go in peace. But no, you said you would bring them into subjugation. That is not done yet, and God Almighty grant that it never may be. I hope that you will never subjugate the South. If

she is to be ever again in the Union, I hope it will be with her own consent; and I hope that that consent will be obtained by some other mode than by the sword. 'If this be Treason, make the most of it!'"

An extraordinary scene at once occurred—Mr. Tracy desiring "to know whether, in these Halls, the gentleman from Maryland invoked Almighty God that the American Arms should not prevail?" "Whether such language is not Treason?" and "whether it is in order to talk Treason in this Hall?"—his patriotic queries being almost drowned in the incessant cries of "Order!" "Order!" and great disorder, and confusion, on the Democratic side of the House.

Finally the treasonable language was taken down by the Clerk, and, while a Resolution for the expulsion of Mr. Harris was being written out, Mr. Fernando Wood—coming, as he said, from a bed of "severe sickness," quoted the language used by Mr. Long, to wit:

"I now believe there are but two alternatives, and they are either the acknowledgment of the Independence of the South as an independent Nation, or their complete subjugation and extermination as a People; and of these alternatives I prefer the former"—and declared that "if he is to be expelled for the utterance of that sentiment, you may include me in it, because I concur fully in that sentiment."

[He afterwards (April 11,) said he did not agree with Mr. Long's opinions.]

Every effort was unavailingly made by the Democrats, under the lead of Messrs. Cox—[In 1886 American Minister at Constantinople.]—and Pendleton,—[In 1886 American Minister at Berlin.]—to prevent action upon the new Resolution of expulsion, which was in these words:

"Whereas, Hon. Benjamin G. Harris, a member of the House of Representatives of the United States from the State of Maryland, has on this day used the following language, to wit: 'The South asked you to let them go in peace. But no; you said you would bring them into subjection. That is not done yet, and God Almighty grant that it never may be. I hope that you will never subjugate the South.' And whereas, such language is treasonable, and is a gross disrespect of this House: Therefore, Be it Resolved, That the said Benjamin G. Harris be expelled from this House."

Upon reaching a vote, however, the Resolution was lost, there being only 81 yeas, to 58 (Democratic) nays—two-thirds not having voted affirmatively. Subsequently, despite Democratic efforts to obstruct, a Resolution, declaring Harris to be "an unworthy Member" of the House, and "severely" censuring him, was adopted.

The debate upon the Long-expulsion Resolution now proceeded, and its mover, in view of the hopelessness of securing a two-thirds affirmative vote, having accepted an amendment comprising other two Resolutions and a Preamble, the question upon adopting these was submitted on the 14th of April. They were in the words following:

"Whereas, ALEXANDER LONG, a Representative from the second district of Ohio, by his open declarations in the National Capitol, and publications in the City of New York, has shown himself to be in favor of a recognition of the so-called Confederacy now trying to establish itself upon the ruins of our Country, thereby giving aid and comfort to the Enemy in that destructive purpose—aid to avowed Traitors, in creating an illegal Government within our borders, comfort to them by assurances of their success and affirmations of the justice of their Cause; and whereas, such conduct is at the same time evidence of disloyalty, and inconsistent with his oath of office, and his duty as a Member of this Body: Therefore,

"Resolved, That the said Alexander Long, a Representative from the second district of Ohio, be, and he is hereby declared to be an unworthy Member of the House of Representatives.

"Resolved, That the Speaker shall read these Resolutions to the said Alexander Long during the session of the House."

The first of these Resolutions was adopted, by 80 yeas to 69 nays; the second was tabled, by 71 yeas to 69 nays; and the Preamble was agreed to, by 78 yeas to 63 nays.

And, among the 63 Democrats, who were not only unwilling to declare Alexander Long "an unworthy Member," or to have the Speaker read such a declaration to him in a session of the House, but also refused by their votes even to intimate that his conduct evidenced disloyalty, or gave aid and comfort to the Enemy, were the names of such democrats as Cox, Eldridge, Holman, Kernan, Morrisson, Pendleton, Samuel J. Randall, Voorhees, and Fernando Wood.

Hence Mr. Long not only escaped expulsion for his treasonable utterances, but did not even receive the "severe censure" which, in addition to being declared (like himself) "an unworthy Member," had been voted to Mr. Harris for recklessly rushing into the breach to help him!

[The Northern Democracy comprised two well-recognized classes: The Anti-War (or Peace) Democrats, commonly called "Copperheads," who sympathized with the Rebellion, and opposed the War for the Union; and the War (or Union) Democrats, who favored a vigorous prosecution of the War for the preservation of the Union.]

CHAPTER XXVI.

"THIRTEENTH AMENDMENT" DEFEATED IN THE HOUSE.

The debate in the House of Representatives, upon the Thirteenth Amendment to the Constitution—interrupted by the treasonable episode referred to in the last Chapter—was subsequently resumed.

Meanwhile, however, Fort Pillow had been stormed, and its garrison of Whites and Blacks, massacred.

And now commenced the beginning of the end—so far as the Military aspect of the Rebellion was concerned. Early in May, Sherman's Atlanta Campaign commenced, and, simultaneously, General Grant began his movement toward Richmond. In quick succession came the news of the bloody battles of the Wilderness, and those around Spottsylvania, Va.; at Buzzard Roost Gap, Snake Creek Gap, and Dalton, Ga.; Drury's Bluff, Va.; Resaca, Ga.; the battles of the North Anna, Va.; those around Dallas, and New Hope church, Ga; the crossing of Grant's forces to the South side of the James and the assault on Petersburg. While the Union Armies were thus valiantly attacking and beating those of the Rebels, on many a sanguinary field the loyal men of the North, both in and out of Congress, pressed for favorable action upon the Thirteenth Amendment. "Friends of the wounded in Fredericksburg from the Battle of the Wilderness"—exclaimed Horace Greeley in the New York Tribune, of May 31st,—"friends and relatives of the soldiers of Grant's Army beyond the Wilderness, let us all join hands and swear upon our Country's altar that we will never cease this War until African Slavery in the United States is dead forever, and forever buried!"

Peace Democrats, however, were deaf to all such entreaties. On the very same day, Mr. Holman, in the House, objected even to the second reading of the Joint Resolution Amendatory of the Constitution, and there were so

many "Peace Democrats" to back him, that the vote was: 55 yeas to 76 nays, on the question "shall the Joint Resolution be rejected!"

The old cry, that had been repeated by Hendricks and others, in the Senate and House, time and again, was still used—threadbare though it was—"this is not the right time for it!" On this very day, for instance, Mr. Herrick said: "I ask if this is the proper time for our People to consider so grave a measure as the Amendment of the Constitution in so vital a point? * * * this is no fitting time for such work."

Very different was the attitude of Kellogg, of New York, and well did he show up the depths to which the Democracy—the Peace Democracy—had now fallen. "We are told," said he, "of a War Democracy, and such there are—their name is legion—good men and true; they are found in the Union ranks bearing arms in support of the Government and the Administration that wields it. At the ballot-box, whether at home or in the camp, they are Union men, and vote as they fight, and hold little in common with the political leaders of the Democratic Party in or out of this Hall—the Seymours, the Woods, the Vallandighams, the Woodwardes, and their indorsers, who hold and control the Democratic Party here, and taint it with Treason, till it is a stench in the nostrils of all patriotic men."

After referring to the fact that the leaders of the Rebellion had from the start relied confidently upon assistance from the Northern Democracy, he proceeded:

"The Peace Democracy, and mere Party-hacks in the North, are fulfilling their masters' expectations industriously, unceasingly, and as far as in them lies. Not even the shouts for victory, in these Halls, can divert their Southern allies here. A sullen gloom at the defeat and discomfiture of their Southern brethren settles down on their disastrous countenances, from which no ray of joy can be reflected. * * * They even vote solid against a law to punish guerrillas.

"Sir," continued he, "in my judgment, many of those who withhold from their Country the support they would otherwise give, find allegiance to Party too strong for their patriotism. * * * Rejecting the example and counsels of Stanton and Dickinson and Butler and Douglas and Dix and Holt and Andrew Johnson and Logan and Rosecrans and Grant and a host of others, all Democrats of the straightest sect, to forget all other ties, and cleave only to their Country for their Country's sake, and rejecting the

overtures and example of the Republican Party to drop and forget their Party name, that all might unite and band together for their Country's salvation as Union men, they turn a deaf ear and cold shoulder, and sullenly pass by on the other side, thanking God they are not as other men are, and lend, if at all, a calculating, qualified, and conditional and halting support, under protest, to their Country's cause; thus justifying the only hope of the Rebellion to-day, that Party spirit at the North will distract its counsels, divide and discourage and palsy its efforts, and ultimately make way for the Traitor and the parricide to do their worst."

Besides the set speeches made against the proposed Constitutional amendment in the House, Peace-Democrats of the Senate continued to keep up a running fire at it in that Chamber, on every possible occasion. Garrett Davis was especially garrulous on the subject, and also launched the thunders of his wrath at the President quite frequently and even vindictively. For instance, speaking in the Senate—[May 31, 1864,]—of the right of Property in Slaves; said he:

"This new-born heresy 'Military Necessity,' as President Lincoln claims, and exercises it, is the sum of all political and Military villanies * * * and it is no less absurd than it is villianous. * * * The man has never spoken or lived who can prove by any provision of the Constitution, or by any principle, or by any argument to be deduced logically and fairly from it, that he has any such power as this vast, gigantic, all-conquering and all-crushing power of Military Necessity which he has the audacity to claim.

"This modern Emperor, this Tiberius, a sort of a Tiberius, and his Sejanus, a sort of a Sejanus, the head of the War Department, are organizing daily their Military Courts to try civilians. * * *

"Sir, I want one labor of love before I die. I want the President of the United States, I want his Secretary of War, I want some of his high officers in Military command to bring a civilian to a Military execution, and me to have the proud privilege of prosecuting them for murder. * * * I want the law and its just retribution to be visited upon these great delinquents.

"I would sooner, if I had the power, bring about such an atonement as that, than I would even put down the Rebellion. It would be a greater victory in favor of Freedom and Constitutional Liberty, a thousand-fold, of all the People of America besides, than the subjugation of the Rebel States could possibly be."

But there seemed to be no end to the' attacks upon the Administration, made, in both Houses, by these peculiar Peace-Democrats. Union blood might flow in torrents on the fields of the rebellious South, atrocities innumerable might be committed by the Rebels, cold-blooded massacres of Blacks and Whites, as at Fort Pillow, might occur without rebuke from them; but let the Administration even dare to sneeze, and—woe to the Administration.

It was not the Thirteenth Amendment only, that they assailed, but everything else which the Administration thought might help it in its effort to put down the Rebellion. Nor was it so much their malignant activity in opposition to any one measure intended to strengthen the hands of the Union, but to all such measures; and superadded to this was the incessant bringing forward, in both Houses of Congress, by these restless Rebel-sympathizers, of Peace-Resolutions, the mere presentation of which would be, and were, construed by the Rebel authorities at Richmond, as evidences of a weakening.

Even some of the best of the Peace-Democrats, like S. S. Cox, for instance, not only assailed the Tariff—under which the Union Republican Party sought to protect and build up American Industry, as well as to raise as much revenue as possible to help meet the enormous current expenditures of the Government—but also denounced our great paper-money system, which alone enabled us to secure means to meet all deficiencies in the revenues otherwise obtained, and thus to ultimately conquer the hosts of Rebellion.

He declared (June 2, 1864) that "The People are the victims of the joint-robbery of a system of bounties under the guise of duties, and of an inconvertible and depreciated paper currency under the guise of money," and added: "No man is now so wise and gifted that he can save this Nation from bankruptcy. * * * No borrowing system can save us. The scheme of making greenbacks a legal tender, which enabled the debtor to cheat his creditor, thereby playing the old game of kingcraft, to debase the currency in order to aid the designs of despotism, may float us for a while amidst the fluctuations and bubbles of the day; but as no one possesses the power to repeal the Law of the Almighty, which decrees (and as our Constitution has established) that gold and silver shall be the standard of value in the World, so they will ever thus remain, notwithstanding the legislation of Congress."

Not satisfied with this sort of "fire in the rear," it was attempted by means of Democratic Free-Trade and antipaper-currency sophistries, to arouse jealousies, heart-burnings and resentful feelings in the breasts of those living in different parts of the Union—to implant bitter Sectional antagonisms and implacable resentments between the Eastern States, on the one hand, and the Western States, on the other—and thus, by dividing, to weaken the Loyal Union States.

That this was the cold-blooded purpose of all who pursued this course, would no doubt be warmly denied by some of them; but the fact remains no less clear, that the effect of that course, whether so intended or not, was to give aid and comfort to the Enemy at that critical time when the Nation most needed all the men, money, and moral as well as material support, it was possible to get, to put an end to the bloody Rebellion, now—under the continuous poundings of Grant's Army upon that of Lee in Virginia, and the advance of Sherman's Army upon that of Johnston in Georgia—tottering to its overthrow. Thus this same speaker (S. S. Cox), in his untimely speech, undertook to divide the Union-loving States "into two great classes: the Protected States and the Unprotected States;" and—having declared that "The Manufacturing States, mainly the New England States and Pennsylvania, are the Protected States," and "The Agricultural States," mainly the eleven Western States, which he named, "are the Unprotected States"—proceeded to intemperately and violently arraign New England, and especially Massachusetts, in the same way that had years before been adopted by the old Conspirators of the South when they sought—alas, too successfully!—to inflame the minds of Southern citizens to a condition of unreasoning frenzy which made attempted Nullification and subsequent armed Rebellion and Secession possible.

Well might the thoroughly loyal Grinnell, of Iowa—after exposing what he termed the "sophistry of figures" by which Mr. Cox had seen fit "to misrepresent and traduce" the Western States—exclaim: "Sir, I have no words which I can use to execrate sufficiently such language, in arraying the Sections in opposition during a time of War; as if we were not one People, descended from one stock, having one interest, and bound up in one destiny!"

The damage that might have been done to the Union Cause by such malignant Democratic attacks upon the National unity and strength, may be

imagined when we reflect that at this very time the annual expenses of our Government were over \$600,000,000, and growing still larger; and that \$1.90 in legal tender notes of the United States was worth but \$1.00 in gold, with a downward tendency. Said stern old Thaddeus Stevens, alluding on this occasion, to Statesmanship of the peculiar stamp of the Coxes and Fernando Woods: "He who in this time will pursue such a course of argument for the mere sake of party, can never hope to be ranked among Statesmen; nay, Sir, he will not even rise to the dignity of a respectable Demagogue!"

Within a week after this, (June 9, 1864), we find in the Senate also, similarly insidious attacks upon the strength of the Government, made by certain Northern Democrats, who never tired of undermining Loyalty, and creating and spreading discontent among the People. The Bill then up, for consideration, was one "to prohibit the discharge of persons from liability to Military duty, by reason of the payment of money."

In the terribly bloody Campaign that had now been entered upon by Grant—in the West, under Sherman, and in the East, under his own personal eye—it was essential to send to the front, every man possible. Hence the necessity for a Bill of this sort, which moreover provided, in order as far as possible to popularize conscription, that all calls for drafts theretofore made under the Enrolling Act of March 3, 1863, should be for not over one year's service, etc.

This furnished the occasion for Mr. Hendricks, among other Peace Democrats, to make opposing speeches. He, it seems, had all along been opposed to drafting Union soldiers; and because, during the previous Winter, the Senate had been unwilling to abolish the clause permitting a drafted man to pay a commutation of \$300 (with which money a substitute could be procured) instead of himself going, at a time when men were not quite so badly needed as now, therefore Mr. Hendricks pretended to think it very strange and unjustifiable that now, when everything depended on getting every possible man in the field, the Senate should think of "abandoning that which it thought right last Winter!"

He opposed drafting; but if drafting must be resorted to, then he thought that what he termed "the Horror of the Draft" should be felt by as many of the Union people as possible!—or, in his own words: "the Horror of the Draft ought to be divided among the People." As if this were not sufficient

to conjure dreadful imaginings, he added: "if one set of men are drafted this year to serve twelve months, and they have to go because the power of the Government makes them go, whether they can go well or not, then at the end of the year their neighbors should be subjected to the same Horror, and let this dreadful demand upon the service, upon the blood, and upon the life of the People be distributed upon all."

And, in order apparently to still further intensify public feeling against all drafting, and sow the seeds of dissatisfaction in the hearts of those drafted at this critical time, when the fate of the Union and of Republican Government palpably depended upon conscription, he added: "It is not so right to say to twenty men in a neighborhood: 'You shall go; you shall leave your families whether you can or not; you shall go without the privilege of commutation whether you leave starving wives and children behind you or not,' and then say to every other man of the neighborhood: 'Because we have taken these twenty men for three years, you shall remain with your wives and children safely and comfortably at home for these three years.' I like this feature of the amendment, because it distributes the Horror of the Draft more equally and justly over the whole People."

Not satisfied with rolling the "Horror of the Draft" so often and trippingly over his tongue, he also essayed the role of Prophet in the interest of the tottering god of Slavery. "The People," said he, "expect great results from this Campaign; and when another year comes rolling around, and it is found that this War is not closed, and that there is no reasonable probability of its early close, my colleague (Lane) and other Senators who agree with him will find that the People will say that this effusion of blood must stop; that THERE MUST BE SOME ADJUSTMENT. I PROPHECY THIS."

And, as a further declaration likely to give aid and comfort to the Rebel leaders, he said: "I do not believe many men are going to be obtained by a draft; I do not believe a very good Army will be got by a draft; I do not believe an Army will be put in the field, by a draft, that will whip General Lee."

But while all such statements were, no doubt, intended to help the foes of the Union, and dishearten or dismay its friends, the really loyal People, understanding their fell object, paid little heed to them. The predictions of these Prophets of evil fell flat upon the ears of lovers of their Country. Conspirators, however much they might masquerade in the raiment of

Loyalty, could not wholly conceal the ear-marks of Treason. The hand might be the hand of Esau, but the voice was the voice of Jacob.

On the 8th of June—after a month of terrific and bloody fighting between the immediate forces of Grant and Lee—a dispatch from Sherman, just received at Washington, was read to the House of Representatives, which said: "The Enemy is not in our immediate front, but his signals are seen at Lost Mountain, and Kenesaw." So, at the same time, at the National Capital, while the friends of the Union there, were not immediately confronted with an armed Enemy, yet the signals of his Allies could be seen, and their fire upon our rear could be heard, daily and almost hourly, both in the Senate and the House of Representatives.

The fight in the House, upon the Thirteenth Amendment, now seemed indeed, to be reaching a climax. During the whole of June 14th, until midnight, speech after speech on the subject, followed each other in rapid succession. Among the opposition speeches, perhaps those of Fernando Wood and Holman were most notable for extravagant and unreasoning denunciation of the Administration and Party in power—whose every effort was put forth, and strained at this very time to the utmost, to save the Union.

Holman, for instance, declared that, "Of all the measures of this disastrous Administration, each in its turn producing new calamities, this attempt to tamper with the Constitution threatens the most permanent injury." He enumerated the chief measures of the Administration during its three and a half years of power—among them the Emancipation Proclamation, the arming of the Blacks, and what he sneeringly termed "their pet system of finance" which was to "sustain the public credit for infinite years," but which "even now," said he, "totters to its fall!" And then, having succeeded in convincing himself of Republican failure, he exultingly exclaimed: "But why enumerate? What measure of this Administration has failed to be fatal! Every step in your progress has been a mistake. I use the mildest terms of censure!"

Fernando Wood, in his turn also, "mildly" remarked upon Republican policy as "the bloody and brutal policy of the Administration Party." He considered this "the crisis of the fate of the Union;" declared that Slavery was "the best possible condition to insure the happiness of the Negro race"—a position which, on the following day, he "reaffirmed"—and

characterized those members of the Democratic Party who saw Treason in the ways and methods and expressions of Peace Democrats of his own stamp, as a "pack of political jackals known as War Democrats."

On the 15th of June, Farnsworth made a reply to Ross—who had claimed to be friendly to the Union soldier—in which the former handled the Democratic Party without gloves. "What," said he, referring to Mr. Ross, "has been the course of that gentleman and his Party on this floor in regard to voting supplies to the Army? What has been their course in regard to raising money to pay the Army? His vote will be found recorded in almost every instance against the Appropriation Bills, against ways and means for raising money to pay the Army. It is only a week ago last Monday, that a Bill was introduced here to punish guerrillas * * * and how did my colleague vote? Against the Bill.* * * On the subject of arming Slaves, of putting Negroes into the Army, how has my colleague and his Party voted? Universally against it. They would strip from the backs of these Black soldiers, now in the service of the Country, their uniforms, and would send them back to Slavery with chains and manacles. And yet they are the friends of the soldier!"* * * "On the vote to repeal the Fugitive Slave Law, how did that (Democratic) side of the House vote? Does not the Fugitive Slave Law affect the Black soldier in the Army who was a Slave? That side of the House are in favor of continuing the Fugitive Slave Law, and of disbanding Colored troops. How did that side of the House vote on the question of arming Slaves and paying them as soldiers? They voted against it. They are in favor of disbanding the Colored regiments, and, armed with the Fugitive Slave Law, sending them back to their masters!"

He took occasion also to meet various Democratic arguments against the Resolution,—among them, one, hinging on the alleged right of Property in Slaves. This was a favorite idea with the Border-State men especially, that Slaves were Property—mere chattels as it were,—and, only the day before, a Northern man, Coffroth of Pennsylvania, had said:

"Sir, we should pause before proceeding any further in this Unconstitutional and censurable legislation. The mere abolition of Slavery is not my cause of complaint. I care not whether Slavery is retained or abolished by the people of the States in which it exists—the only rightful authority. The question to me is, has Congress a right to take from the people of the South their Property; or, in other words, having no pecuniary

interest therein, are we justified in freeing the Slave-property of others? Can we Abolish Slavery in the Loyal State of Kentucky against her will? If this Resolution should pass, and be ratified by three-fourths of the States—States already Free—and Kentucky refuses to ratify it, upon what principle of right or law would we be justified in taking this Slave-property of the people of Kentucky? Would it be less than stealing?"

And Farnsworth met this idea—which had also been advanced by Messrs. Ross, Fernando Wood, and Pruyn—by saying: "What constitutes property? I know it is said by some gentlemen on the other side, that what the statute makes property, is property. I deny it. What 'vested right' has any man or State in Property in Man? We of the North hold property, not by virtue of statute law, not by virtue of enactments. Our property consists in lands, in chattels, in things. Our property was made property by Jehovah when He gave Man dominion over it. But nowhere did He give dominion of Man over Man. Our title extends back to the foundation of the World. That constitutes property. There is where we get our title. There is where we get our 'vested rights' to property."

Touching the ethics of Slavery, Mr. Arnold's speech on the same occasion was also able, and in parts eloquent, as where he said: 'Slavery is to-day an open enemy striking at the heart of the Republic. It is the soul and body, the spirit and motive of the Rebellion. It is Slavery which marshals yonder Rebel hosts, which confront the patriot Armies of Grant and Sherman. It is the savage spirit of this barbarous Institution which starves the Union prisoners at Richmond, which assassinates them at Fort Pillow, which murders the wounded on the field of battle, and which fills up the catalogue of wrong and outrage which mark the conduct of the Rebels during all this War.

"In view of all the long catalogue of wrongs which Slavery has inflicted upon the Country, I demand to-day, of the Congress of the United States, the death of African Slavery. We can have no permanent Peace, while Slavery lives. It now reels and staggers toward its last death-struggle. Let us strike the monster this last decisive blow."

And, after appealing to both Border-State men, and Democrats of the Free States, not to stay the passage of this Resolution which "will strike the Rebellion at the heart," he continued: "Gentlemen may flatter themselves with a restoration of the Slave-power in this Country. 'The Union as it was!'

It is a dream, never again to be realized. The America of the past, has gone forever. A new Nation is to be born from the agony through which the People are now passing. This new Nation is to be wholly Free. Liberty, Equality before the Law, is to be the great Corner-stone."

So, too, Mr. Ingersoll eloquently said—among many other good things:—"It is well to eradicate an evil. That Slavery is an evil, no sane, honest man will deny. It has been the great curse of this Country from its infancy to the present hour, And now that the States in Rebellion have given the Loyal States the opportunity to take off that curse, to wipe away the foul stain, I say let it be done. We owe it to ourselves; we owe it to posterity; we owe it to the Slaves themselves to exterminate Slavery forever by the adoption of the proposed Amendment to the Constitution. * * * I believe Slavery is the mother of this Rebellion, that this Rebellion can be attributed to no other cause but Slavery; from that it derived its life, and gathers its strength to-day. Destroy the mother, and the child dies. Destroy the cause, and the effect will disappear.

"Slavery has ever been the enemy of liberal principles. It has ever been the friend of ignorance, prejudice, and all the unlawful, savage, and detestable passions which proceed therefrom. It has ever been domineering, arrogant, exacting, and overbearing. It has claimed to be a polished aristocrat, when in reality it has only been a coarse, swaggering, and brutal boor. It has ever claimed to be a gentleman, when in reality it has ever been a villain. I think it is high time to clip its overgrown pretensions, strip it of its mask, and expose it, in all its hideous deformity, to the detestation of all honest and patriotic men."

After Mr. Samuel J. Randall had, at a somewhat later hour, pathetically and poetically invoked the House, in its collective unity, as a "Woodman," to "spare that tree" of the Constitution, and to "touch not a single bough," because, among other reasons, "in youth it sheltered" him; and furthermore, because "the time" was "most inopportune;" and, after Mr. Rollins, of Missouri, had made a speech, which he afterward suppressed; Mr. Pendleton closed the debate in an able effort, from his point of view, in which he objected to the passage of the Joint Resolution because "the time is not auspicious;" because, said he, "it is impossible that the Amendment proposed, should be ratified without a fraudulent use of the power to admit new States, or a fraudulent use of the Military power of the Federal

Government in the Seceded States,"—and, said he, "if you should attempt to amend the Constitution by such means, what binding obligation would it have?"

He objected, also, because "the States cannot, under the pretense of amending the Constitution, subvert the structure, spirit, and theory of this Government." "But," said he, "if this Amendment were within the Constitutional power of amendment; if this were a proper time to consider it; if three-fourths of the States were willing to ratify it; and if it did not require the fraudulent use of power, either in this House or in the Executive Department, to secure its adoption, I would still resist the passage of this Resolution. It is another step toward consolidation, and consolidation is Despotism; confederation is Liberty."

It was about 4 o'clock in the afternoon of June 15th, that the House came to a vote, on the passage of the Joint Resolution. At first the strain of anxiety on both sides was great, but, as the roll proceeded, it soon became evident that the Resolution was doomed to defeat. And so it transpired. The vote stood 93 yeas, to 65 nays—Mr. Ashley having changed his vote, from the affirmative to the negative, for the purpose of submitting, at the proper time, a motion to reconsider.

That same evening, Mr. Ashley made the motion to reconsider the vote by which the proposed Constitutional Amendment was rejected; and the motion was duly entered in the Journal, despite the persistent efforts of Messrs. Cox, Holman, and others, to prevent it.

On the 28th of June, just prior to the Congressional Recess, Mr. Ashley announced that he had been disappointed in the hope of securing enough votes from the Democratic side of the House to carry the Amendment. "Those," said he, "who ought to have been the champions of this great proposition are unfortunately its strongest opponents. They have permitted the golden opportunity to pass. The record is made up, and we must go to the Country on this issue thus presented." And then he gave notice that he would call the matter up, at the earliest possible moment after the opening of the December Session of Congress.

CHAPTER XXVII.

SLAVERY DOOMED AT THE POLLS.

The record was indeed made up, and the issue thus made, between Slavery and Freedom, would be the chief one before the People. Already the Republican National Convention, which met at Baltimore, June 7, 1864, had not only with "enthusiastic unanimity," renominated Mr. Lincoln for the Presidency, but amid "tremendous applause," the delegates rising and waving their hats—had adopted a platform which declared, in behalf of that great Party: "That, as Slavery was the cause, and now constitutes the strength, of this Rebellion, and as it must be, always and everywhere, hostile to the principles of Republican government, Justice and the National safety demand its utter and complete extirpation from the soil of the Republic; and that while we uphold and maintain the Acts and Proclamations by which the Government, in its own defense, has aimed a death-blow at this gigantic evil, we are in favor, furthermore, of such an Amendment to the Constitution, to be made by the People in conformity with its provisions, as shall terminate and forever prohibit the existence of Slavery within the limits or the jurisdiction of the United States."

So, too, with vociferous plaudits, had they received and adopted another Resolution, wherein they declared "That we approve and applaud the practical wisdom, the unselfish patriotism and the unswerving fidelity to the Constitution and the principles of American Liberty, with which Abraham Lincoln has discharged, under circumstances of unparalleled difficulty, the great duties and responsibilities of the Presidential Office; that we approve and endorse, as demanded by the emergency, and essential to the preservation of the Nation, and as within the provisions of the Constitution; the Measures and Acts which he has adopted to defend the Nation against its open and secret foes; that we approve, especially, the Proclamation of Emancipation, and the employment, as Union soldiers, of men heretofore held in Slavery; and that we have full confidence in his determination to

carry these and all other Constitutional Measures essential to the salvation of the Country, into full and complete effect."

Thus heartily, thoroughly and unreservedly, endorsed in all the great acts of his Administration—and even more emphatically, if possible, in his Emancipation policy—by the unanimous vote of his Party, Mr. Lincoln, although necessarily "chagrined and disappointed" by the House-vote which had defeated the Thirteenth Amendment, might well feel undismayed. He always had implicit faith in the People; he felt sure that they would sustain him; and this done, why could not the votes of a dozen, out of the seventy Congressional Representatives opposing that Amendment, be changed? Even failing in this, it must be but a question of time. He thought he could afford to bide that time.

On the 29th of August, the Democratic National Convention met at Chicago. Horatio Seymour was its permanent President; that same Governor of New York whom the 4th of July, 1863, almost at the moment when Vicksburg and Gettysburg had brought great encouragement to the Union cause, and when public necessity demanded the enforcement of the Draft in order to drive the Rebel invader from Northern soil and bring the Rebellion speedily to an end—had threateningly said to the Republicans, in the course of a public speech, during the Draft-riots at New York City: "Remember this, that the bloody, and treasonable, and revolutionary doctrine of public necessity can be proclaimed by a mob as well as by a Government. * * * When men accept despotism, they may have a choice as to who the despot shall be!"

In his speech to this Democratic-Copperhead National Convention, therefore, it is not surprising that he should, at this time, declare that "this Administration cannot now save this Union, if it would." That the body which elected such a presiding officer,—after the bloody series of glorious Union victories about Atlanta, Ga., then fast leading up to the fall of that great Rebel stronghold, (which event actually occurred long before most of these Democratic delegates, on their return, could even reach their homes)—should adopt a Resolution declaring that the War was a "failure," was not surprising either.

That Resolution—"the material resolution of the Chicago platform," as Vallandigham afterward characterizes it, was written and "carried through both the Subcommittee and the General Committee" by that Arch-Copperhead

and Conspirator himself.—[See his letter of October 22, 1864, to the editor of the New York News,]

It was in these words: "Resolved, That this Convention does explicitly declare as the sense of the American People, that after four years of failure to restore the Union by the experiment of War, during which, under the pretense of a military necessity, or War—power higher than the Constitution, the Constitution itself has been disregarded in every part, and public Liberty and private right alike trodden down and the material prosperity of the Country essentially impaired—Justice, Humanity, Liberty, and the public welfare demand that immediate efforts be made for a cessation of hostilities, with a view to an ultimate Convention of the States, or other peaceable means, to the end that at the earliest practicable moment Peace may be restored on the basis of the Federal Union of the States."

With a Copperhead platform, this Democratic Convention thought it politic to have a Union candidate for the Presidency. Hence, the nomination of General McClellan; but to propitiate the out-and-out Vallandigham Peace men, Mr. Pendleton was nominated to the second place on the ticket.

This combination was almost as great a blunder as was the platform—than which nothing could have been worse. Farragut's Naval victory at Mobile, and Sherman's capture of Atlanta, followed so closely upon the adjournment of the Convention as to make its platform and candidates the laughing stock of the Nation; and all the efforts of Democratic orators, and of McClellan himself, in his letter of acceptance, could not prevent the rise of that great tidal wave of Unionism which was soon to engulf the hosts of Copperhead-Democracy.

The Thanksgiving-services in the churches, and the thundering salutes of 100 guns from every Military and Naval post in the United States, which — during the week succeeding that Convention's sitting—betokened the Nation's especial joy and gratitude to the victorious Union Forces of Sherman and Farragut for their fortuitously-timed demonstration that the "experiment of War" for the restoration of the Union was anything but a "Failure" all helped to add to the proportions of that rapidly-swelling volume of loyal public feeling.

The withdrawal from the canvass, of General Fremont, nominated for the Presidency by the "radical men of the Nation," at Cleveland, also contributed to it. In his letter of withdrawal, September 17th, he said:

"The Presidential contest has, in effect, been entered upon in such a way that the union of the Republican Party has become a paramount necessity. The policy of the Democratic Party signifies either separation, or reestablishment with Slavery. The Chicago platform is simply separation. General McClellan's letter of acceptance is reestablishment, with Slavery. The Republican candidate is, on the contrary, pledged to the reestablishment of the Union without Slavery; and, however hesitating his policy may be, the pressure of his Party will, we may hope, force him to it. Between these issues, I think no man of the Liberal Party can remain in doubt."

And now, following the fall of Atlanta before Sherman's Forces, Grant had stormed "Fort Hell," in front of Petersburg; Sheridan had routed the Rebels, under Early, at Winchester, and had again defeated Early at Fisher's Hill; Lee had been repulsed in his attack on Grant's works at Petersburg; and Allatoona had been made famous, by Corse and his 2,000 Union men gallantly repulsing the 5,000 men of Hood's Rebel Army, who had completely surrounded and attacked them in front, flank, and rear.

All these Military successes for the Union Cause helped the Union political campaign considerably, and, when supplemented by the remarkable results of the October elections in Pennsylvania, Indiana, and Maryland, made the election of Lincoln and Johnson a foregone conclusion.

The sudden death of Chief-Justice Taney, too, happening, by a strange coincidence, simultaneously with the triumph of the Union Party of Maryland in carrying the new Constitution of that State, which prohibited Slavery within her borders, seemed to have a significance* not without its effect upon the public mind, now fast settling down to the belief that Slavery everywhere upon the soil of the United States must die.

[Greeley well said of it: "His death, at this moment, seemed to mark the transition from the Era of Slavery to that of Universal Freedom."]

Then came, October 19th, the Battle of Cedar Creek, Va. where the Rebel General Early, during Sheridan's absence, surprised and defeated the latter's forces, until Sheridan, riding down from Winchester, turned defeat into victory for the Union Arms, and chased the armed Rebels out of the Shenandoah Valley forever; and the fights of October 27th and 28th, to the

left of Grant's position, at Petersburg, by which the railroad communications of Lee's Army at Richmond were broken up.

At last, November 8, 1864, dawned the eventful day of election. By midnight of that date it was generally believed, all over the Union, that Lincoln and Johnson were overwhelmingly elected, and that the Life as well as Freedom of the Nation had thus been saved by the People.

Late that very night, President Lincoln was serenaded by a Pennsylvania political club, and, in responding to the compliment, modestly said:

"I earnestly believe that the consequences of this day's work (if it be as you assure, and as now seems probable) will be to the lasting advantage, if not to the very salvation, of the Country. I cannot at this hour say what has been the result of the election. But whatever it may be, I have no desire to modify this opinion, that all who have labored to-day in behalf of the Union organization have wrought for the best interests of their Country and the World, not only for the present but for all future ages.

"I am thankful to God," continued he, "for this approval of the People; but, while deeply gratified for this mark of their confidence in me, if I know my heart, my gratitude is free from any taint of personal triumph. I do not impugn the motives of any one opposed to me. It is no pleasure to me to triumph over any one; but I give thanks to the Almighty for this evidence of the People's resolution to stand by Free Government and the rights of Humanity."

On the 10th of November, in response to another serenade given at the White House, in the presence of an immense and jubilantly enthusiastic gathering of Union men, by the Republican clubs of the District of Columbia, Mr. Lincoln said:

"It has long been a grave question whether any Government, not too strong for the Liberties of its People, can be strong enough to maintain its existence in great emergencies. On this point the present Rebellion has brought our Republic to a severe test, and a Presidential election, occurring in regular course during the Rebellion, has added not a little to the strain. *
* * But the election, along with its incidental and undesired strife, has done good, too. It has demonstrated that a People's Government can sustain a National election in the midst of a great Civil War, until now it has not been known to the World that this was a possibility. It shows, also, how sound and how strong we still are.

"But," said he, "the Rebellion continues; and now that the election is over, may not all having a common interest reunite in a common effort to save our common Country?"

"For my own part," continued he—as the cheering, elicited by this forcible appeal, ceased—"I have striven, and shall strive, to avoid placing any obstacle in the way. So long as I have been here I have not willingly planted a thorn in any man's bosom. While I am deeply sensible to the high compliment of a reelection, and duly grateful, as I trust, to Almighty God for having directed my countrymen to a right conclusion, as I think, for their own good, it adds nothing to my satisfaction that any other man may be disappointed or pained by the result."

And, as the renewed cheering evoked by this kindly, Christian utterance died away again, he impressively added: "May I ask those who have not differed with me, to join with me in this same spirit, towards those who have?"

So, too, on the 17th of November, in his response to the complimentary address of a delegation of Union men from Maryland.

[W. H. Purnell, Esq., in behalf of the Committee, delivered an address, in which he said they rejoiced that the People, by such an overwhelming and unprecedented majority, had again reelected Mr. Lincoln to the Presidency and endorsed his course—elevating him to the proudest and most honorable position on Earth. They felt under deep obligation to him because he had appreciated their condition as a Slave-State. It was not too much to say that by the exercise of rare discretion on his part, Maryland to-day occupies her position in favor of Freedom. Slavery has been abolished therefrom by the Sovereign Decree of the People. With deep and lasting gratitude they desired that his Administration, as it had been approved in the past, might also be successful in the future, and result in the Restoration of the Union, with Freedom as its immutable basis. They trusted that, on retiring from his high and honorable position, the universal verdict might be that he deserved well of mankind, and that favoring Heaven might 'Crown his days with loving kindness and tender mercies.']

The same kindly anxiety to soften and dispel the feeling of bitterness that had been engendered in the malignant bosoms of the Copperhead-Democracy by their defeat, was apparent when he said with emphasis and feeling:

"I have said before, and now repeat, that I indulge in no feeling of triumph over any man who has thought or acted differently from myself. I have no such feeling toward any living man;" and again, after complimenting Maryland for doing "more than double her share" in the elections, in that she had not only carried the Republican ticket, but also the Free Constitution, he added: "Those who have differed with us and opposed us will yet see that the result of the Presidential election is better for their own good than if they had been successful."

The victory of the Union-Republican Party at this election was an amazing one, and in the words of General Grant's dispatch of congratulation to the President, the fact of its "having passed off quietly" was, in itself, "a victory worth more to the Country than a battle won,"—for the Copperheads had left no stone unturned in their efforts to create the utmost possible rancor, in the minds of their partisans, against the Administration and its Party.

Of twenty-five States voting, Lincoln and Johnson had carried the electoral votes of twenty-two of them, viz.: Maine, New Hampshire, Massachusetts, Rhode Island, Connecticut, Vermont, New York, Pennsylvania, Maryland, Ohio, Indiana, Illinois, Missouri, Michigan, Iowa, Wisconsin, Minnesota, California, Oregon, Kansas, West Virginia, and Nevada; while McClellan and Pendleton had carried the twenty-one electoral votes of the remaining three, viz.: New Jersey, Delaware, and Kentucky—the popular vote reaching the enormous number of 2,216,067 for Lincoln, to 1,808,725 for McClellan—making Lincoln's popular majority 407,342, and his electoral majority 191!

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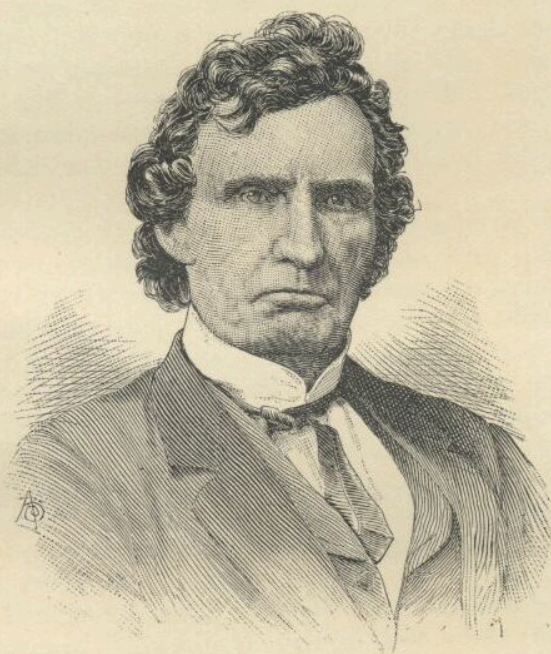
* Following are the Popular Votes of the respective States, for the two tickets :

STATE.	LINCOLN.	MC CLELLAN.	STATE.	LINCOLN.	MC CLELLAN.
California	62,134	.. 43,841	Nevada.....	9,826	.. 6,594
Connecticut	44,691	.. 42,285	New Hampshire.	36,400	.. 32,871
Delaware	8,155	.. 8,767	New Jersey.....	60,723	.. 68,024
Illinois.....	189,496	.. 158,730	New York	368,735	.. 361,986
Indiana.....	150,422	.. 130,233	Ohio.....	265,154	.. 205,568
Iowa.....	89,075	.. 49,596	Oregon	9,888	.. 8,457
Kansas	16,441	.. 3,691	Pennsylvania...	296,391	.. 276,316
Kentucky.....	27,786	.. 64,301	Rhode Island ...	13,692	.. 8,470
Maine.....	61,803	.. 44,211	Vermont.....	42,419	.. 13,321
Maryland.....	40,153	.. 32,739	West Virginia..	23,152	.. 10,438
Massachusetts ..	126,742	.. 48,745	Wisconsin.....	83,458	.. 65,884
Michigan.....	91,521	.. 74,604			
Minnesota.....	25,060	.. 17,375	Total	2,216,067	.. 1,808,725
Missouri	72,750	.. 31,678	Lincoln's Popular Majority .	407,342	

But if the figures upon the Presidential candidacy were so gratifying and surprising to all who held the cause of Union above all others, no less gratifying and surprising were those of the Congressional elections, which indicated an entire revulsion of popular feeling on the subject of the Administration's policy. For, while in the current Congress (the 38th), there were only 106 Republican-Union to 77 Democratic Representatives, in that

for which the elections had just been held, (the 39th), there would be 143 Republican-Union to 41 Democratic Representatives.

It was at once seen, therefore, that, should the existing House of Representatives fail to adopt the Thirteenth Amendment to the Constitution, there would be much more than the requisite two-thirds majority for such a Measure in both Houses of the succeeding Congress; and moreover that in the event of its failure at the coming Session, it was more than probable that President Lincoln would consider himself justified in calling an Extra Session of the Thirty-ninth Congress for the especial purpose of taking such action. So far then, as the prospects of the Thirteenth Amendment were concerned, they looked decidedly more encouraging.



THAD STEVENS.

CHAPTER XXVIII.

FREEDOM AT LAST ASSURED.

As to the Military situation, a few words are, at this time, necessary: Hood had now marched Northward, with some 50,000 men, toward Nashville, Tenn., while Sherman, leaving Thomas and some 35,000 men behind, to thwart him, had abandoned his base, and was marching Southward from Atlanta, through Georgia, toward the Sea.

On the 30th of November, 1864, General Schofield, in command of the 4th and 23rd Corps of Thomas's Army, decided to make a stand against Hood's Army, at Franklin, in the angle of the Harpeth river, in order to give time for the Union supply-trains to cross the river. Here, with less than 20,000 Union troops, behind some hastily constructed works, he had received the impetuous and overwhelming assault of the Enemy—at first so successful as to threaten a bloody and disastrous rout to the Union troops—and, by a brilliant counter-charge, and subsequent obstinate defensive-fighting, had repulsed the Rebel forces, with nearly three times the Union losses, and withdrew the next day in safety to the defenses of Nashville.

A few days later, Hood, with his diminished Rebel Army, sat down before the lines of Thomas's somewhat augmented Army, which stretched from bank to bank of the bight of the Cumberland river upon which Nashville is situated.

And now a season of intense cold set in, lasting a week or ten days. During this period of apparent inaction on both sides—which aroused public apprehension in the North, and greatly disturbed General Grant—I was ordered to City Point, by the General-in-Chief, with a view to his detailing me to Thomas's Command, at Nashville.

On the way, I called on President Lincoln, at the White House. I found him not very well, and with his feet considerably swollen. He was sitting on a chair, with his feet resting on a table, while a barber was shaving him.

Shaking him by the hand, and asking after his health, he answered, with a humorous twinkle of the eye, that he would illustrate his condition by telling me a story. Said he: "Two of my neighbors, on a certain occasion, swapped horses. One of these horses was large, but quite thin. A few days after, on inquiry being made of the man who had the big boney horse, how the animal was getting along?—whether improving or not?—the owner said he was doing finely; that he had fattened almost up to the knees already!"

Afterward—when, the process of shaving had been completed, we passed to another room—our conversation naturally turned upon the War; and his ideas upon all subjects connected with it were as clear as those of any other person with whom I ever talked. He had an absolute conviction as to the ultimate outcome of the War—the final triumph of the Union Arms; and I well remember, with what an air of complete relief and perfect satisfaction he said to me, referring to Grant—"We have now at the head of the Armies, a man in whom all the People can have confidence."

But to return to Military operations: On December 10th? Sherman reached the sea-board and commenced the siege of Savannah, Georgia; on the 13th, Fort McAllister was stormed and Sherman's communications opened with the Sea; on the 15th and 16th, the great Battle of Nashville was fought, between the Armies of Thomas and Hood, and a glorious victory gained by the Union Arms—Hood's Rebel forces being routed, pursued for days, and practically dispersed; and, before the year ended, Savannah surrendered, and was presented to the Nation, as "a Christmas gift," by Sherman.

And now the last Session of the Thirty-eighth Congress having commenced, the Thirteenth Amendment might at any time come up again in the House. In his fourth and last Annual Message, just sent in to that Body, President Lincoln had said:

"At the last Session of Congress a proposed Amendment of the Constitution abolishing Slavery throughout the United States, passed the Senate, but failed for lack of the requisite two-thirds vote in the House of Representatives. Although the present is the same Congress, and nearly the same members, and without questioning the wisdom or patriotism of those who stood in opposition, I venture to recommend the reconsideration and passage of the measure at the present Session. Of course the abstract question is not changed; but an intervening election shows, almost certainly,

that the next Congress will pass the measure if this does not. Hence there is only a question of time as to when the proposed Amendment will go to, the States for their action. And as it is to so go, at all, events, may we not agree that the sooner the better? It is not claimed that the election has imposed a duty on members to change their views or their votes, any farther than, as an additional element to be considered, their judgment may be affected by it. It is the voice of the People now, for the first time, heard upon the question. In a great National crisis like ours, unanimity of action among those seeking a common end is very desirable—almost indispensable. And yet no approach to such unanimity is attainable unless some deference shall be paid to the will of the majority simply because it is the will of the majority. In this case the common end is the maintenance of the Union; and, among the means to secure that end, such will, through the election, is most clearly declared in favor of such Constitutional Amendment."

After affirming that, on the subject of the preservation of the Union, the recent elections had shown the existence of "no diversity among the People;" that "we have more men now than we had when the War began;" that "we are gaining strength" in all ways; and that, after the evidences given by Jefferson Davis of his unchangeable opposition to accept anything short of severance from the Union, "no attempt at negotiation with the Insurgent leader could result in any good," he appealed to the other Insurgents to come back to the fold—the door of amnesty and pardon, being still "open to all." But, he continued:

"In presenting the abandonment of armed resistance to the National Authority, on the part of the Insurgents, as the only indispensable condition to ending the War, on the part of the Government, I retract nothing heretofore said as to Slavery. I repeat the declaration made a year ago, that 'while I remain in my present position I shall not attempt to retract or modify the Emancipation Proclamation, nor shall I return to Slavery any Person who is Free by the terms of that Proclamation, or by any of the Acts of Congress.' If the People should, by whatever mode or means, make it an Executive duty to Reenslave such Persons, another, and not I, must be their instrument to perform it. In stating a single condition of Peace I mean simply to say that the War will cease on the part of the Government, whenever it shall have ceased on the part of those who began it."

On the 22d of December, 1864, in accordance with the terms of a Concurrent Resolution that had passed both Houses, Congress adjourned until January 5, 1865. During the Congressional Recess, however, Mr. Lincoln, anxious for the fate of the Thirteenth Amendment, exerted himself, as it afterward appeared, to some purpose, in its behalf, by inviting private conferences with him, at the White House, of such of the Border-State and other War-Democratic Representatives as had before voted against the measure, but whose general character gave him ground for hoping that they might not be altogether deaf to the voice of reason and patriotism.

[Among those for whom he sent was Mr. Rollins, of Missouri, who afterward gave the following interesting account of the interview:

"The President had several times in my presence expressed his deep anxiety in favor of the passage of this great measure. He and others had repeatedly counted votes in order to ascertain, as far as they could, the strength of the measure upon a second trial in the House. He was doubtful about its passage, and some ten days or two weeks before it came up for consideration in the House, I received a note from him, written in pencil on a card, while sitting at my desk in the House, stating that he wished to see me, and asking that I call on him at the White House. I responded that I would be there the next morning at nine o'clock.

"I was prompt in calling upon him and found him alone in his office. He received me in the most cordial manner, and said in his usual familiar way: 'Rollins, I have been wanting to talk to you for some time about the Thirteenth Amendment proposed to the Constitution of the United States, which will have to be voted on now, before a great while.'

"I said: 'Well, I am here, and ready to talk upon that subject.

"He said: 'You and I were old Whigs, both of us followers of that great statesman, Henry Clay, and I tell you I never had an opinion upon the subject of Slavery in my life that I did not get from him. I am very anxious that the War should

be brought to a close at the earliest possible date, and I don't believe this can be accomplished as long as those fellows down South can rely upon the Border-States to help them; but if the Members from the Border-States would unite, at least enough of them to pass the Thirteenth Amendment to the Constitution, they would soon see that they could not expect much help from that quarter, and be willing to give up their opposition and quit their War upon the Government; that is my chief hope and main reliance to bring the War to a speedy close, and I have sent for you as an old Whig friend to come and see me, that I might make an appeal to you to vote for this Amendment. It is going to be very close; a few votes one way or the other will decide it.'

"To this, I responded: 'Mr. President, so far as I am concerned, you need not have sent for me to ascertain my views on this subject, for although I represent perhaps the strongest Slave-district in Missouri, and have the misfortune to be one of the largest Slave-owners in the country where I reside, I had already determined to vote for the Amendment.

"He arose from his chair, and grasping me by the hand, gave it a hearty shake, and said: 'I am most delighted to hear that.'

"He asked me how many more of the Missouri delegates in the House would vote for it.

"I said I could not tell; the Republicans of course would; General Loan, Mr. Blow, Mr. Boyd, and Colonel McClurg.

"He said, 'Won't General Price vote for it? He is a good Union man.' I said I could not answer.

""Well, what about General King?"

"I told him I did not know.

"He then asked about Judges Hall and Norton.

"I said they would both vote against it, I thought.

""Well,' he said, 'are you on good terms with Price and King?"

"I responded in the affirmative, and that I was on easy terms with the entire delegation.

"He then asked me if I would not talk with those who might be persuaded to vote for the amendment, and report to him as soon as I could find out what the prospect was.'

"I answered that I would do so with pleasure, and remarked at the same time, that when I was a young man, in 1848, I was the Whig competitor of King for Governor of Missouri, and, as he beat me very badly, I thought now he should pay me back by voting as I desired him on this important question.

"I promised the President I would talk to this gentleman upon the subject.

"He said: 'I would like you to talk to all the Border-State men whom you can approach properly, and tell them of my anxiety to have the measure pass; and let me know the prospect of the Border-State vote,' which I promised to do.

"He again said: 'The passage of this Amendment will clinch the whole subject; it will bring the War, I have no doubt, rapidly to a close.'"—Arnold's *Life of Lincoln*, pp. 358-359,]

On the 5th of January, 1865, the Christmas Recess having expired, Congress re-assembled. The motion to reconsider the vote-by which the Joint Resolution, to amend the Constitution by the abolition of Slavery, had been defeated—was not called up, on that day, as its friends had not all returned; but the time was mainly consumed in able speeches, by Mr. Creswell of Maryland, and Stevens of Pennsylvania, in which the former declared that "whether we would or not, we must establish Freedom if we would exterminate Treason. Events have left us no choice. The People have learned their duty and have instructed us accordingly." And Mr. Thaddeus Stevens solemnly said: "We are about to ascertain the National will, by another vote to amend the Constitution. If gentlemen opposite will yield to the voice of God and Humanity, and vote for it, I verily believe the sword of the Destroying Angel will be stayed, and this People be reunited. If we still

harden our hearts, and blood must still flow, may the ghosts of the slaughtered victims sit heavily upon the souls of those who cause it!"

On the 6th of January, Mr. Ashley called up his motion to reconsider the vote defeating the Thirteenth Amendment, and opened the debate with a lengthy and able speech in favor of that measure, in concluding which he said:

"The genius of history, with iron pen, is waiting to record our verdict where it will remain forever for all the coming generations of men to approve or condemn. God grant that this verdict may be one over which the friends of Liberty, impartial and universal, in this Country and Europe, and in every Land beneath the sun, may rejoice; a verdict which shall declare that America is Free; a verdict which shall add another day of jubilee, and the brightest of all, to our National calendar."

The debate was participated in by nearly all the prominent men, on both sides of the House—the speeches of Messrs. Cox, Brooks, Voorhees, Mallory, Holman, Woods and Pendleton being the most notable, in opposition to, and those of Scofield, Rollins, Garfield and Stevens, in favor of, the Amendment. That of Scofield probably stirred up "the adversary" more thoroughly than any other; that of Rollins was more calculated to conciliate and capture the votes of hesitating, or Border-State men; that of Garfield was perhaps the most scholarly and eloquent; while that of Stevens was remarkable for its sledge-hammer pungency and characteristic brevity.

Mr. Pendleton, toward the end of his speech, had said of Mr. Stevens: "Let him be careful, lest when the passions of these times be passed away, and the historian shall go back to discover where was the original infraction of the Constitution, he may find that sin lies at the door of others than the people now in arms." And it was this that brought the sterling old Patriot again to his feet, in vindication of the acts of his liberty-inspired life, and in defense of the power to amend the Constitution, which had been assailed.

The personal antithesis with which he concluded his remarks was in itself most dramatically effective, Said he:

"So far as the appeals of the learned gentleman (Mr. Pendleton) are concerned, in his pathetic winding up, I will be willing to take my chance, when we all moulder in the dust. He may have his epitaph written, if it be truly written, 'Here rests the ablest and most pertinacious defender of Slavery, and opponent of Liberty;' and I will be satisfied if my epitaph shall

be written thus: 'Here lies one who never rose to any eminence, and who only courted the low ambition to have it said that he had striven to ameliorate the condition of the poor, the lowly, the downtrodden, of every race, and language, and color.'

As he said these words, the crowded floors and galleries broke out into involuntary applause for the grand "Old Commoner"—who only awaited its cessation, to caustically add: "I shall be content, with such a eulogy on his lofty tomb and such an inscription on my humble grave, to trust our memories to the judgment of after ages."

The debate, frequently interrupted by Appropriation Bills, and other important and importunate measures, lasted until the 31st of January, when Mr. Ashley called the previous question on his motion to reconsider.

Mr. Stiles at once moved to table the motion to reconsider. Mr. Stiles's motion was lost by 57 yeas to 111 nays. This was in the nature of a test-vote, and the result, when announced, was listened to, with breathless attention, by the crowded House and galleries. It was too close for either side to be satisfied; but it showed a gain to the friends of the Amendment; that was something. How the final vote would be, none could tell. Meanwhile it was known, from the announcements on the floor, that Rogers was absent through his own illness and Voorhees through illness in his family.

The previous question being seconded and the main question ordered, the yeas and nays were called on the motion to reconsider—and the intense silence succeeding the monotonous calling of the names was broken by the voice of the Speaker declaring the motion to reconsider, carried, by 112 yeas to 57 nays.

This vote created a slight sensation. There was a gain of one, (English), at any rate, from among those not voting on the previous motion. Now, if there should be but the change of a single vote, from the nays to the yeas, the Amendment would be carried!

The most intensely anxious solicitude was on nearly every face, as Mr. Mallory, at this critical moment, made the point of order that "a vote to reconsider the vote by which the subject now before the House was disposed of, in June last, requires two-thirds of this Body," and emphatically added: "that two-thirds vote has not been obtained."

A sigh of relief swept across the galleries, as the Speaker overruled the point of order. Other attempted interruptions being resolutely met and defeated by Mr. Ashley, in charge of the Resolution, the "previous question" was demanded, seconded, and the main question ordered—which was on the passage of the Resolution.

And now, amid the hush of a breathless and intent anxiety—so absolute that the scratch of the recording pencil could be heard—the Clerk commenced to call the roll!

So consuming was the solicitude, on all sides, for the fate of this portentous measure, that fully one-half the Representatives kept tally at their desks as the vote proceeded, while the heads of the gathered thousands of both sexes, in the galleries, craned forward, as though fearing to lose the startlingly clear responses, while the roll-call progressed.

When it reached the name of English—Governor English, a Connecticut Democrat, who had not voted on the first motion, to table the motion to reconsider, but had voted "yea" on the motion to reconsider,—and he responded with a clear-cut "aye" on the passage of the Resolution—it looked as though light were coming at last, and applause involuntarily broke forth from the Republican side of the floor, spreading instantly to the galleries, despite the efforts of the Speaker to preserve order.

So, when Ganson of New York, and other Democrats, voted "aye," the applause was renewed again and again, and still louder again, when, with smiling face—which corroborated the thrilling, fast-spreading, whisper, that "the Amendment is safe!"—Speaker Colfax directed the Clerk to call his name, as a member of the House, and, in response to that call, voted "aye!"

Then came dead silence, as the Clerk passed the result to the Speaker—during which a pin might have been heard to drop,—broken at last by the Speaker's ringing voice: "The Constitutional majority of two-thirds having voted in the affirmative, the Joint Resolution is passed."

[The enrolled Resolution received the approval and signature of the President, Feb. 1, 1865,]

The words had scarcely left the Speaker's lips, when House and galleries sprang to their feet, clapping their hands, stamping their feet, waving hats and handkerchiefs, and cheering so loudly and so long that it seemed as if this great outburst of enthusiasm—indulged in, in defiance of all parliamentary rules—would never cease!

In his efforts to control it, Speaker Colfax hammered the desk until he nearly broke his mallet. Finally, by 4 o'clock, P.M., after several minutes of useless effort—during which the pounding of the mallet was utterly lost in the noisy enthusiasm and excitement, in which both the Freedom-loving men and women of the Land, there present, participated—the Speaker at last succeeded in securing a lull.

Advantage was instantly taken of it, by the successor of the dead Owen Lovejoy, Mr. Ingersoll of Illinois, his young face flushing with the glow of patriotism, as he cried: "Mr. Speaker! In honor of this Immortal and Sublime Event I move that the House do now adjourn." The Speaker declared the motion carried, amid renewed demonstrations of enthusiasm.

During all these uncontrollable ebullitions of popular feeling in behalf of personal Liberty and National Freedom and strength, the Democratic members of the House had sat, many of them moving uneasily in their seats, with chagrin painted in deep lines upon their faces, while others were bolt upright, as if riveted to their chairs, looking straight before them at the Speaker, in a vain attempt, belied by the pallid anger of their set countenances, to appear unconscious of the storm of popular feeling breaking around them, which they now doggedly perceived might be but a forecast of the joyful enthusiasm which on that day, and on the morrow, would spread from one end of the Land to the other.

Harris, of Maryland, made a sort of "Last Ditch" protest against adjournment, by demanding the "yeas and nays" on the motion to adjourn. The motion was, however, carried, by 121 yeas to 24 nays; and, as the members left their places in the Hall—many of them to hurry with their hearty congratulations to President Lincoln at the White House—the triumph, in the Halls of our National Congress, of Freedom and Justice and Civilization, over Slavery and Tyranny and Barbarism, was already being saluted by the booming of one hundred guns on Capitol Hill.

How large a share was Mr. Lincoln's, in that triumph, these pages have already sufficiently indicated. Sweet indeed must have been the joy that thrilled his whole being, when, sitting in the White House, he heard the bellowing artillery attest the success of his labors in behalf of Emancipation. Proud indeed must he have felt when, the following night, in response to the loud and jubilant cries of "Lincoln!" "Lincoln!" "Abe Lincoln!" "Uncle Abe!" and other affectionate calls, from a great concourse

of people who, with music, had assembled outside the White House to give him a grand serenade and popular ovation, he appeared at an open window, bowed to the tumult of their acclamations, and declared that "The great Job is ended!"—adding, among other things, that the occasion was one fit for congratulation, and, said he, "I cannot but congratulate all present—myself, the Country, and the whole World—upon this great moral victory. * * * This ends the Job!"

Substantially the job was ended. There was little doubt, after such a send off, by the President and by Congress, in view of the character of the State Legislatures, as well as the temper of the People, that the requisite number of States would be secured to ratify the Thirteenth Amendment. Already, on the 1st of February, that is to say, on the very day of this popular demonstration at the Executive Mansion, the President's own State, Illinois, had ratified it—and this circumstance added to the satisfaction and happiness which beamed from, and almost made beautiful, his homely face.

Other States quickly followed; Maryland, on February 1st and 3rd; Rhode Island and Michigan, on February 2nd; New York, February 2nd and 3rd; West Virginia, February 3rd; Maine and Kansas, February 7th; Massachusetts and Pennsylvania, February 8th; Virginia, February 9th; Ohio and Missouri, February 10th; Nevada and Indiana, February 16th; Louisiana, February 17th; Minnesota, February 8th and 23rd; Wisconsin, March 1st; Vermont, March 9th; Tennessee, April 5th and 7th; Arkansas, April 20th; Connecticut, May 5th; New Hampshire, July 1st; South Carolina, November 13th; Alabama, December 2nd; North Carolina, December 4th; Georgia, December 9th; Oregon, December 11th; California, December 20th; and Florida, December 28th;—all in 1865; with New Jersey, closely following, on January 23rd; and Iowa, January 24th;—in 1866.

Long ere this last date, however, the Secretary of State (Mr. Seward) had been able to, and did, announce (November 18, 1865) the ratification of the Amendment by the requisite number of States, and certified that the same had "become, to all intents and purposes, valid as a part of the Constitution of the United States."

Not until then, was "the job" absolutely ended; but, as has been already mentioned, it was, at the time Mr. Lincoln spoke, as good as ended. It was a foregone conclusion, that the great end for which he, and so many other

great and good men of the Republic had for so many years been earnestly striving, would be an accomplished fact. They had not failed; they had stood firm; the victory which he had predicted six years before had come!

[He had said in his Springfield speech, of 1858: "We shall not fail; if we stand firm we shall not fail; wise counsels may accelerate, or mistakes delay, but sooner or later the Victory is sure to come."]

CHAPTER XXIX.

LINCOLN'S SECOND INAUGURATION.

While the death of Slavery in America was decreed, as we have seen; yet, the sanguine anticipations of Mr. Lincoln, and other friends of Freedom, that such a decree, imperishably grafted into the Constitution, must at once end the Rebellion, and bring Peace with a restored Union, were not realized. The War went on. Grant was still holding Lee, at Petersburg, near Richmond, while Sherman's victorious Army was about entering upon a campaign from Savannah, up through the Carolinas.

During the previous Summer, efforts had been made, by Horace Greeley, and certain parties supposed to represent the Rebel authorities, to lay the ground-work for an early Peace and adjustment of the differences between the Government of the United States and the Rebels, but they miscarried. They led, however, to the publication of the following important conciliatory Presidential announcement:

"EXECUTIVE MANSION,
"WASHINGTON, July 18, 1864.

"To whom it may concern:

"Any proposition which embraces the restoration of Peace, the integrity of the whole Union, and the abandonment of Slavery, and which comes by and with an authority that can control the Armies now at War against the United States, will be received and considered by the Executive Government of the United States, and will be met by liberal terms on substantial and collateral points; and the bearer or bearers thereof shall have safe conduct both ways.

"(Signed) ABRAHAM LINCOLN."

About the same time, other efforts were being made, with a similar object in view, but which came to naught. The visit of Messrs. Jacques and Gilmore to the Rebel Capital on an informal Peace-errand was, at least, valuable in this, that it secured from the head and front of the armed Conspiracy, Jefferson Davis himself, the following definite statement:

"I desire Peace as much as you do; I deplore bloodshed as much as you do; but I feel that not one drop of the blood shed in this War is on my hands. I can look up to my God and say this. I tried all in my power to avert this War. I saw it coming, and for twelve years I worked night and day to prevent it; but I could not. The North was mad and blind; it would not let us govern ourselves; and so the War came: and now it must go on till the last man of this generation falls in his tracks, and his children seize his musket and fight our battle, unless you acknowledge our right to self-government. We are not fighting for Slavery. We are fighting for INDEPENDENCE; and that, or EXTERMINATION, we WILL have."

[The Nation, July 2, 1885, contained the following remarks, which may be pertinently quoted in support of this authoritative statement that the South was "not fighting for Slavery," but for Independence—that is to say: for Power, and what would flow from it.]

["The Charleston News and Courier a fortnight ago remarked that 'not more than one Southern soldier in ten or fifteen was a Slaveholder, or had any interest in Slave Property.' The Laurensville Herald disputed the statement, and declared that 'the Southern Army was really an Army of Slaveholders and the sons of Slaveholders.' The Charleston paper stands by its original position, and cites figures which are conclusive. The Military population of the eleven States which seceded, according to the census of 1860, was 1,064,193. The entire number of Slaveholders in the Country at the same time was 383,637, but of these 77,335 lived in the Border States, so that the number in the Seceding States was only 306,302. Most of the small Slaveholders, however, were not Slave-owners, but Slave hirers, and Mr. De Bow, the statistician who supervised the census of 1850, estimated that but little over half the holders were actually owners.

The proportion of owners diminished between 1850 and 1860, and the News and Courier thinks that there were not more than 150,000 Slave-owners in the Confederate States when the War broke out. This would be one owner to every seven White males between eighteen and forty-five; but as many of the owners were women, and many of the men were relieved from Military service, the Charleston paper is confirmed in its original opinion that there were ten men in the Southern Army who were not Slave-owners for every soldier who had Slaves of his own."]

And when these self-constituted Peace-delegates had fulfilled the duty which their zeal had impelled them to perform, and were taking their leave of the Rebel chieftain, Jefferson Davis added:

"Say to Mr. Lincoln, from me, that I shall at any time be pleased to receive proposals for PEACE on the basis of our INDEPENDENCE. It will be useless to approach me with any other."

Thus the lines had been definitely and distinctly drawn, on both sides. The issue of Slavery became admittedly, as between the Government and the Rebels, a dead one. The great cardinal issue was now clearly seen and authoritatively admitted to be, "the integrity of the whole Union" on the one side, and on the other, "Independence of a part of it." These precise declarations did great good to the Union Cause in the North, and not only helped the triumphant re-election of Mr. Lincoln, but also contributed to weaken the position of the Northern advocates of Slavery, and to bring about, as we have seen, the extinction of that inherited National curse, by Constitutional Amendment.

During January, of 1865, Francis P. Blair having been permitted to pass both the Union and Rebel Army lines, showed to Mr. Lincoln a letter, written to the former, by Jefferson Davis—and which the latter had authorized him to read to the President—stating that he had always been, and was still, ready to send or to receive Commissioners "to enter into a Conference, with a view to secure Peace to the two Countries." On the 18th of that month, purposing to having it shown to Jefferson Davis, Mr. Lincoln wrote to Mr. Blair a letter in which, after referring to Mr. Davis, he said: "You may say to him that I have constantly been, am now, and shall continue, ready to receive any agent whom he, or any other influential

person now resisting the National Authority, may informally send to me, with the view of securing Peace to the People of our common Country." On the 21st of January, Mr. Blair was again in Richmond; and Mr. Davis had read and retained Mr. Lincoln's letter to Blair, who specifically drew the Rebel chieftain's attention to the fact that "the part about 'our common Country' related to the part of Mr. Davis's letter about 'the two Countries,' to which Mr. Davis replied that he so understood it." Yet subsequently, he sent Messrs. Alexander H. Stephens, R. M. T. Hunter, and John A. Campbell as Commissioners, with instructions, (January 28, 1865,) which, after setting forth the language of Mr. Lincoln's letter, proceeded strangely enough to say: "In conformity with the letter of Mr. Lincoln, of which the foregoing is a copy, you are to proceed to Washington city for informal Conference with him upon the issues involved in the existing War, and for the purpose of securing Peace to the two Countries!" The Commissioners themselves stated in writing that "The substantial object to be obtained by the informal Conference is, to ascertain upon what terms the existing War can be terminated honorably. * * * Our earnest desire is, that a just and honorable Peace may be agreed upon, and we are prepared to receive or to submit propositions which may, possibly, lead to the attainment of that end." In consequence of this peculiarly "mixed" overture, the President sent Secretary Seward to Fortress Monroe, to informally confer with the parties, specifically instructing him to "make known to them that three things are indispensable, to wit:

"1. The restoration of the National Authority throughout all the States.

"2. No receding, by the Executive of the United States, on the Slavery question, from the position assumed thereon in the late Annual Message to Congress, and in preceding documents.

"3. No cessation of hostilities short of an end of the War and the disbanding of all forces hostile to the Government."

Mr. Lincoln also instructed the Secretary to "inform them that all propositions of theirs, not inconsistent with the above, will be considered and passed upon in a spirit of sincere liberality;" to "hear all they may choose to say, and report it" to him, and not to "assume to definitely consummate anything." Subsequently, the President, in consequence of a dispatch from General Grant to Secretary Stanton, decided to go himself to Fortress Monroe.

Following is the dispatch:

[In Cipher]

OFFICE UNITED STATES MILITARY TELEGRAPH.
WAR DEPARTMENT.

"The following telegram received at Washington, 4.35 A.M.,

February 2, 1865. From City Point, Va.,

February 1, 10.30 P.M., 1865

"Now that the interview between Major Eckert, under his written instructions, and Mr. Stephens and party has ended, I will state confidentially, but not officially, to become a matter of record, that I am convinced, upon conversation with Messrs. Stephens and Hunter, that their intentions are good and their desire sincere to restore Peace and Union. I have not felt myself at liberty to express, even, views of my own, or to account for my reticency. This has placed me in an awkward position, which I could have avoided by not seeing them in the first instance. I fear now their going back without any expression from any one in authority will have a bad influence. At the same time I recognize the difficulties in the way of receiving these informal Commissioners at this time, and do not know what to recommend. I am sorry, however, that Mr. Lincoln cannot have an interview with the two named in this dispatch, if not all three now within our lines. Their letter to me was all that the President's instructions contemplated to secure their safe conduct, if they had used the same language to Major Eckert.

"U. S. GRANT,

"Lieutenant General.

"Hon. EDWIN M. STANTON,

"Secretary of War."

Mr. Stephens is stated by a Georgia paper to have repeated the following characteristic anecdote of what

occurred during the interview. "The three Southern gentlemen met Mr. Lincoln and Mr. Seward, and after some preliminary remarks, the subject of Peace was opened. Mr. Stephens, well aware that one who asks much may get more than he who confesses to humble wishes at the outset, urged the claims of his Section with that skill and address for which the Northern papers have given him credit. Mr. Lincoln, holding the vantage ground of conscious power, was, however, perfectly frank, and submitted his views almost in the form of an argument. * * * Davis had, on this occasion, as on that of Mr. Stephens's visit to Washington, made it a condition that no Conference should be had unless his rank as Commander or President should first be recognized. Mr. Lincoln declared that the only ground on which he could rest the justice of War—either with his own people, or with foreign powers—was that it was not a War for conquest, for that the States had never been separated from the Union. Consequently, he could not recognize another Government inside of the one of which he alone was President; nor admit the separate Independence of States that were yet a part of the Union. 'That' said he 'would be doing what you have so long asked Europe to do in vain, and be resigning the only thing the Armies of the Union have been fighting for.' Mr. Hunter made a long reply to this, insisting that the recognition of Davis's power to make a Treaty was the first and indispensable step to Peace, and referred to the correspondence between King Charles I., and his Parliament, as a trustworthy precedent of a Constitutional ruler treating with Rebels. Mr. Lincoln's face then wore that indescribable expression which generally preceded his hardest hits, and he remarked: 'Upon questions of history I must refer you to Mr. Seward, for he is posted in such things, and I don't pretend to be bright. My only distinct recollection of the matter is that Charles lost his head,' That settled Mr. Hunter for a while." Arnold's Lincoln, p. 400.

On the night of February 2nd, Mr. Lincoln reached Hampton Roads, and joined Secretary Seward on board a steamer anchored off the shore. The next morning, from another steamer, similarly anchored, Messrs. Stephens, Hunter, and Campbell were brought aboard the President's steamer and a Conference with the President and Secretary of several hours' duration was the result. Mr. Lincoln's own statement of what transpired was in these words:

"No question of preliminaries to the meeting was then and there made or mentioned. No other person was present; no papers were exchanged or produced; and it was, in advance, agreed that the conversation was to be informal and verbal merely. On our part, the whole substance of the instructions to the Secretary of State, hereinbefore recited, was stated and insisted upon, and nothing was said inconsistent therewith; while, by the other party, it was not said that in any event or on any condition, they ever would consent to Re-union; and yet they equally omitted to declare that they never would so consent. They seemed to desire a postponement of that question, and the adoption of some other course first, which, as some of them seemed to argue, might or might not lead to Reunion; but which course, we thought, would amount to an indefinite postponement. The Conference ended without result."

In his communication to the Rebel Congress at Richmond, February 6. 1865, Jefferson Davis, after mentioning his appointment of Messrs. Stephens, Hunter and Campbell, for the purpose stated, proceeded to say:

"I herewith transmit, for the information of Congress, the report of the eminent citizens above named, showing that the Enemy refused to enter into negotiations with the Confederate States, or any one of them separately, or to give to our people any other terms or guarantees than those which the conqueror may grant, or to permit us to have Peace on any other basis than our unconditional submission to their rule, coupled with the acceptance of their recent legislation on the subject of the relations between the White and Black population of each State."

On the 5th and 9th of February, public meetings were held at Richmond, in connection with these Peace negotiations. At the first, Jefferson Davis made a speech in which the Richmond Dispatch reported him as emphatically asserting that no conditions of Peace "save the Independence of the Confederacy could ever receive his sanction. He doubted not that

victory would yet crown our labors, * * * and sooner than we should ever be united again he would be willing to yield up everything he had on Earth, and if it were possible would sacrifice a thousand lives before he would succumb." Thereupon the meeting of Rebels passed resolutions "spurning" Mr. Lincoln's terms "with the indignation due to so gross an insult;" declared that the circumstances connected with his offer could only "add to the outrage and stamp it as a designed and premeditated indignity" offered to them; and invoking "the aid of Almighty God" to carry out their "resolve to maintain" their "Liberties and Independence"—to which, said they, "we mutually pledge our lives, our fortunes, and our sacred honor." So too, at the second of these meetings, presided over by R. M. T. Hunter, and addressed by the Rebel Secretary Judah P. Benjamin, resolutions were adopted amid "wild and long continued cheering," one of which stated that they would "never lay down" their "arms until" their "Independence" had "been won," while another declared a full confidence in the sufficiency of their resources to "conduct the War successfully and to that issue," and invoked "the People, in the name of the holiest of all causes, to spare neither their blood nor their treasure in its maintenance and support."

As during these Peace negotiations, General Grant, by express direction of President Lincoln, had not changed, hindered, nor delayed, any of his "Military movements or plans," so, now that the negotiations had failed, those Military movements were pressed more strenuously than ever.

[The main object of this Conference on the part of the Rebels was to secure an immediate truce, or breathing spell, during which they could get themselves in better condition for continuing the War. Indeed a portion of Mr. Seward's letter of Feb. 7, 1865, to Mr. Adams, our Minister at the Court of St. James, giving him an account of the Conference with the party of Insurgent Commissioners, would not alone indicate this, but also that it was proposed by that "Insurgent party," that both sides, during the time they would thus cease to fight one another, might profitably combine their forces to drive the French invaders out of Mexico and annex that valuable country. At least, the following passage in that letter will bear that construction:

"What the Insurgent party seemed chiefly to favor was a postponement of the question of separation, upon which the War is waged, and a mutual direction of efforts of the Government, as well as those of the Insurgents, to some extrinsic policy or scheme for a season, during which passions might be expected to subside, and the Armies be reduced, and trade and intercourse between the People of both Sections resumed. It was suggested by them that through such postponements we might now have immediate Peace, with some not very certain prospect of an ultimate satisfactory adjustment of political relations between this Government, and the States, Section, or People, now engaged in conflict with it."

For the whole of this letter see McPherson's History of the Rebellion, p. 570.]

Fort Fisher, North Carolina, had already been captured by a combined Military and Naval attack of the Union forces under General Terry and Admiral Porter; and Sherman's Army was now victoriously advancing from Savannah, Georgia, Northwardly through South Carolina. On the 17th of February, Columbia, the capital of the latter State, surrendered, and, the day following, Charleston was evacuated, and its defenses, including historic Fort Sumter, were once more under that glorious old flag of the Union which four years before had been driven away, by shot and shell and flame, amid the frantic exultations of the temporarily successful armed Conspirators of South Carolina. On the 22nd of February, General Schofield, who had been sent by Grant with his 23rd Corps, by water, to form a junction with Terry's troops about Fort Fisher, and capture Wilmington, North Carolina, had also accomplished his purpose successfully.

The Rebel Cause now began to look pretty desperate, even to Rebel eyes.

[Hundreds of Rebels were now deserting from Lee's Armies about Richmond, every night, owing partly to despondency. "These desertions," wrote Lee, on the 24th February, "have a very bad effect upon the troops who remain, and give rise to painful apprehensions." Another

cause was the lack of food and clothing. Says Badeau (Military History of Ulysses S. Grant, vol. iii., p. 399): "On the 8th of January, Lee wrote to the Rebel Government that the entire Right Wing of his Army had been in line for three days and nights, in the most inclement weather of the season. 'Under these circumstances,' he said, 'heightened by assaults and fire of the Enemy, some of the men had been without meat for three days, and all were suffering from reduced rations and scant clothing. Colonel Cole, chief commissary, reports that he has not a pound of meat at his disposal. If some change is not made, and the commissary department reorganized, I apprehend dire results. The physical strength of the men, if their courage survives, must fail under this treatment. Our Cavalry has to be dispersed for want of forage. Fitz Lee's and Lomax's Divisions are scattered because supplies cannot be transported where their services are required. I had to bring Fitz Lee's Division sixty miles Sunday night, to get them in position. Taking these facts in connection with the paucity of our numbers, you must not be surprised if calamity befalls us.'" Badeau's (Grant, vol. iii., p. 401,)]

Toward the end of February, the Rebel General Longstreet having requested an interview with General Ord "to arrange for the exchange of citizen prisoners, and prisoners of war, improperly captured," General Grant authorized General Ord to hold such interview and "to arrange definitely for such as were confined in his department, arrangements for all others to be submitted for approval." In the course of that interview "a general conversation ensued on the subject of the War," when it would seem that Longstreet suggested the idea of a composition of the questions at issue, and Peace between the United States and the Rebels, by means of a Military Convention. It is quite probable that this idea originated with Jefferson Davis, as a *dernier resort*; for Longstreet appears to have communicated directly with Davis concerning his interview or "interviews" with Ord. On the 28th of February, 1865 the Rebel Chief wrote to Lee, as follows:

"RICHMOND, VA., February 28.

"Gen. R. E. LEE, Commanding, etc.,

"GENERAL: You will learn by the letter of General Longstreet the result of his second interview with General Ord. The points as to whether yourself or General Grant should invite the other to a Conference is not worth discussing. If you think the statements of General Ord render it probably useful that the Conference suggested should be had, you will proceed as you may prefer, and are clothed with all the supplemental authority you may need in the consideration of any proposition for a Military Convention, or the appointment of a Commissioner to enter into such an arrangement as will cause at least temporary suspension of hostilities.

"Very truly yours

"JEFFERSON DAVIS."

Thereupon General Lee wrote, and sent to General Grant, the following communication:

"HEADQUARTERS C. S. ARMIES, March 2, 1865.

"Lieut. Gen. U. S. GRANT,

"Commanding United States Armies:

"GENERAL: Lieut.-Gen. Longstreet has informed me that, in a recent conversation between himself and Maj.-Gen. Ord, as to the possibility of arriving at a satisfactory adjustment of the present unhappy difficulties by means of a Military Convention, General Ord stated that if I desired to have an interview with you on the subject, you would not decline, provided I had authority to act. Sincerely desirous to leave nothing untried which may put an end to the calamities of War, I propose to meet you at such convenient time and place as you may designate, with the hope that, upon an interchange of views, it may be found practicable to submit the subjects of controversy between the belligerents to a Convention of the kind mentioned.

"In such event, I am authorized to do whatever the result of the proposed interview may render necessary or advisable. Should you accede to this proposition, I would suggest that, if agreeable to you, we meet at the place selected by Generals Ord and Longstreet, for the interview, at 11 A.M., on Monday next.

"Very respectfully your obedient servant,

"R. E. LEE, General."

Upon receipt of this letter, General Grant sent a telegraphic dispatch to Secretary Stanton, informing him of Lee's proposition. It reached the Secretary of War just before midnight of March 3rd. He, and the other members of the Cabinet were with the President, in the latter's room at the Capitol, whither they had gone on this, the last, night of the last Session of the Thirty-Eighth Congress, the Cabinet to advise, and the President to act, upon bills submitted to him for approval. The Secretary, after reading the dispatch, handed it to Mr. Lincoln. The latter read and thought over it briefly, and then himself wrote the following reply:

"WASHINGTON, March, 3, 1865, 12 P.M.

"LIEUTENANT GENERAL GRANT: The President directs me to say to you that he wishes you to have no Conference with General Lee, unless it be for the capitulation of General Lee's Army, or on some other minor and purely Military matter. He instructs me to say to you that you are not to decide, discuss, or confer upon any political question. Such questions the President holds in his own hands, and will submit them to no Military Conferences or Conventions. Meanwhile you are to press to the utmost your Military advantages.

"EDWIN M. STANTON,
"Secretary of War."

General Grant received this dispatch, on the day following, and at once wrote and sent to General Lee a communication in which, after referring to the subject of the exchange of prisoners, he said: "In regard to meeting you on the 6th inst., I would state that—I have no authority to accede to your proposition for a Conference on the subject proposed. Such authority is vested in the President of the United States alone. General Ord could only have meant that I would not refuse an interview on any subject on which I have a right to act; which, of course, would be such as are purely of a Military character, and on the subject of exchange, which has been entrusted to me."

Thus perished the last reasonable hope entertained by the Rebel Chieftains to ward off the inevitable and mortal blow that was about to

smite their Cause.

The 4th of March, 1865, had come. The Thirty-Eighth Congress was no more. Mr. Lincoln was about to be inaugurated, for a second term, as President of the United States. The previous night had been vexed with a stormy snow-fall. The morning had also been stormy and rainy. By mid-day, however, as if to mark the event auspiciously, the skies cleared and the sun shone gloriously upon the thousands and tens of thousands who had come to Washington, to witness the second Inauguration of him whom the people had now, long since, learned to affectionately term "Father Abraham"—of him who had become the veritable Father of his People. As the President left the White House, to join the grand procession to the Capitol, a brilliant meteor shot athwart the heavens, above his head. At the time, the superstitious thought it an Omen of triumph—of coming Peace—but in the sad after-days when armed Rebellion had ceased and Peace had come, it was remembered, with a shudder, as a portent of ill. When, at last, Mr. Lincoln stood, with bared head, upon the platform at the eastern portico of the Capitol, where four years before, he had made his vows before the People, under such very different circumstances and surroundings, the contrast between that time and this—and all the terrible and eventful history of the interim—could not fail to present itself to every mind of all those congregated, whether upon the platform among the gorgeously costumed foreign diplomats, the full-uniformed Military and Naval officers of the United States, and the more soberly-clad statesmen and Civic and Judicial functionaries of the Land, or in the vast and indiscriminate mass of the enthusiastic people in front and on both sides of it. As Chief Justice Chase administered the oath, and Abraham Lincoln, in view of all the people, reverently bowed his head and kissed the open Bible, at a passage in Isaiah (27th and 28th verses of the 5th Chapter) which it was thought "admonished him to be on his guard, and not to relax at all, in his efforts," the people, whose first cheers of welcome had been stayed by the President's uplifted hand, broke forth in a tumult of cheering, until again hushed by the clear, strong, even voice of the President, as he delivered that second Inaugural Address, whose touching tenderness, religious resignation, and Christian charity, were clad in these imperishable words:

"FELLOW COUNTRYMEN: At this second appearing to take the Oath of the Presidential office, there is less occasion for an extended address than there was at the first. Then, a statement, somewhat in detail, of a course to

be pursued, seemed fitting and proper. Now, at the expiration of four years, during which public declarations have been constantly called forth on every point and phase of the great contest which still absorbs the attention and engrosses the energy of the Nation, little that is new could be presented. The progress of our Arms, upon which all else depends, is as well known to the public as to myself; and it is, I trust, reasonably satisfactory and encouraging to all. With high hope for the future, no prediction in regard to it is ventured.

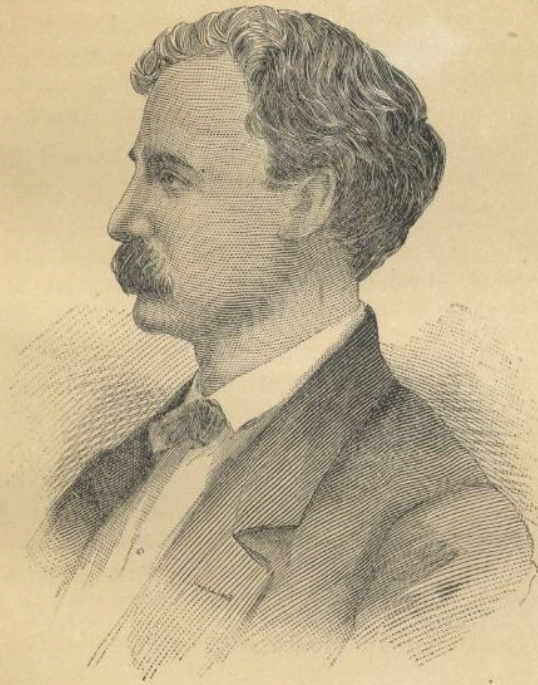
"On the occasion corresponding to this, four years ago, all thoughts were anxiously directed to an impending Civil War. All dreaded it—all sought to avert it. While the Inaugural Address was being delivered from this place, devoted altogether to saving the Union without War, Insurgent agents were in the city, seeking to destroy it without War—seeking to dissolve the Union, and divide the effects, by negotiation. Both parties deprecated War; but one of them would make War rather than let the Nation survive; and the other would accept War rather than let it perish—and the War came.

"One-eighth of the whole population were colored Slaves, not distributed generally over the Union, but localized in the Southern part of it. These Slaves constituted a peculiar and powerful interest. All knew that this interest was, somehow, the cause of the War. To strengthen, perpetuate and extend this interest was the object for which the Insurgents would rend the Union, even by War; while the Government claimed no right to do more than to restrict the territorial enlargement of it. Neither Party expected for the War the magnitude or the duration which it has already attained. Neither anticipated that the cause of the conflict might cease with, or even before, the conflict itself should cease. Each looked for an easier triumph, and a result less fundamental and astounding. Both read the same Bible, and pray to the same God; and each invokes His aid against the other. It may seem strange that any men should dare to ask a just God's assistance in wringing their bread from the sweat of other men's faces; but let us judge not, that we be not judged. The prayers of both could not be answered—that of neither has been answered fully. The Almighty has His own purposes. 'Woe unto the World because of offences! for it must needs be that offences come; but woe to that man by whom the offence cometh.' If we shall suppose that American Slavery is one of those offences which, in the providence of God, must needs come, but which, having continued through His appointed time, He now wills to remove, and that He gives to both North and South this

terrible War, as the woe due to those by Whom the offence came, shall we discern therein any departure from those divine attributes which the believers in a living God always ascribe to Him? Fondly do we hope—fervently do we pray—that this mighty scourge of War may speedily pass away. Yet, if God wills that it continue until all the wealth piled by the bondman's two hundred and fifty years of unrequited toil shall be sunk, and until every drop of blood drawn with the lash shall be paid by another drawn with the sword, as was said three thousand years ago, so still it must be said, 'The judgments of the Lord are true and righteous altogether.'

"With malice toward none; with charity for all; with firmness in the right, as God gives us to see the right, let us strive on to finish the work we are in; to bind up the Nation's wounds, to care for him who shall have borne the battle, and for his widow, and his orphan—to do all which may achieve and cherish a just and a lasting Peace among ourselves, and with all Nations."

With utterances so just and fair, so firm and hopeful, so penitent and humble, so benignant and charitable, so mournfully tender and sweetly solemn, so full of the fervor of true piety and the very pathos of patriotism, small wonder is it that among those numberless thousands who, on this memorable occasion, gazed upon the tall, gaunt form of Abraham Lincoln, and heard his clear, sad voice, were some who almost imagined they saw the form and heard the voice of one of the great prophets and leaders of Israel; while others were more reminded of one of the Holy Apostles of the later Dispensation who preached the glorious Gospel "On Earth, Peace, good will toward Men," and received in the end the crown of Christian martyrdom. But not one soul of those present—unless his own felt such presentiment—dreamed for a moment that, all too soon, the light of those brave and kindly eyes was fated to go out in darkness, that sad voice to be hushed forever, that form to lie bleeding and dead, a martyred sacrifice indeed, upon the altar of his Country!



HENRY WINTER DAVIS.

CHAPTER XXX.

COLLAPSE OF THE ARMED CONSPIRACY.

Meantime, Sherman's Armies were pressing along upward, toward Raleigh, from Columbia, marching through swamps and over quicksands and across swollen streams—cold, wet, hungry, tired—often up to their armpits in water, yet keeping their powder dry, and silencing opposing batteries or driving the Enemy, who doggedly retired before them, through the drenching rains which poured down unceasingly for days, and even weeks, at a time. On the 16th of March, 1865, a part of Sherman's Forces met the Enemy, under General Joe Johnston, at Averysboro, N. C., and forced him to retire. On the 19th and 20th of March, occurred the series of engagements, about Mill Creek and the Bentonville and Smithfield cross-roads, which culminated in the attack upon the Enemy, of the 21st of March, and his evacuation, that night, of his entire line of works, and retreat upon Smithfield. This was known as the Battle of Bentonville, and was the last battle fought between the rival Forces under Sherman and Johnston. The Armies of Sherman, now swollen by having formed a junction with the troops under Schofield and Terry, which had come from Newbern and Wilmington, went into camp at Goldsboro, North Carolina, to await the rebuilding of the railroads from those two points on the coast, and the arrival of badly needed clothing, provision, and other supplies, after which the march would be resumed to Burksville, Virginia. By the 25th of March, the railroad from Newbern was in running order, and General Sherman, leaving General Schofield in command of his eighty thousand troops, went to Newbern and Morehead City, and thence by steamer to City Point, for a personal interview with General Grant. On the same day, Lee made a desperate but useless assault, with twenty thousand (of his seventy thousand) men upon Fort Stedman—a portion of Grant's works in front of Petersburg. On the 27th, President Lincoln reached City Point, on the James River, in the steamer "Ocean Queen." Sherman reached City Point the same

day, and, after meeting the General-in-Chief, Grant took him on board the "Ocean Queen" to see the President. Together they explained to Mr. Lincoln the Military situation, during the "hour or more" they were with him. Of this interview with Mr. Lincoln, General Sherman afterwards wrote: "General Grant and I explained to him that my next move from Goldsboro would bring my Army, increased to eighty thousand men by Schofield's and Terry's reinforcements, in close communication with General Grant's Army, then investing Lee in Richmond, and that unless Lee could effect his escape, and make junction with Johnston in North Carolina, he would soon be shut up in Richmond with no possibility of supplies, and would have to surrender. Mr. Lincoln was extremely interested in this view of the case, and when we explained that Lee's only chance was to escape, join Johnston, and, being then between me in North Carolina, and Grant in Virginia, could choose which to fight. Mr. Lincoln seemed unusually impressed with this; but General Grant explained that, at the very moment of our conversation, General Sheridan was passing his Cavalry across James River, from the North to the South; that he would, with this Cavalry, so extend his left below Petersburg as to meet the South Shore Road; and that if Lee should 'let go' his fortified lines, he (Grant) would follow him so close that he could not possibly fall on me alone in North Carolina. I, in like manner, expressed the fullest confidence that my Army in North Carolina was willing to cope with Lee and Johnston combined, till Grant could come up. But we both agreed that one more bloody battle was likely to occur before the close of the War. Mr. Lincoln * * * more than once exclaimed: 'Must more blood be shed? Cannot this last bloody battle be avoided?' We explained that we had to presume that General Lee was a real general; that he must see that Johnston alone was no barrier to my progress; and that if my Army of eighty thousand veterans should reach Burksville, he was lost in Richmond; and that we were forced to believe he would not await that inevitable conclusion, but make one more desperate effort."

President Lincoln's intense anxiety caused him to remain at City Point, from this time forth, almost until the end—receiving from General Grant, when absent, at the immediate front, frequent dispatches, which, as fast as received and read, he transmitted to the Secretary of War, at Washington. Grant had already given general instructions to Major-Generals Meade, Ord, and Sheridan, for the closing movements of his immediate Forces, against Lee and his lines of supply and possible retreat. He saw that the

time had come for which he had so long waited, and he now felt "like ending the matter." On the morning of the 29th of March—preliminary dispositions having been executed—the movements began. That night, Grant wrote to Sheridan, who was at Dinwiddie Court House, with his ten thousand Cavalry: "Our line is now unbroken from the Appomattox to Dinwiddie. * * * I feel now like ending the matter, if it is possible to do so, before going back. * * * In the morning, push around the Enemy, if you can, and get on his right rear. * * * We will all act together as one Army, until it is seen what can be done with the Enemy." The rain fell all that night in torrents. The face of the country, where forests, swamps, and quicksands alternated in presenting apparently insuperable obstacles to immediate advance, was very discouraging next morning, but Sheridan's heart was gladdened by orders to seize Five Forks.

On the 31st, the Battle of Dinwiddie Court House occurred—the Enemy attacking Sheridan and Warren with a largely superior force. During the night, Sheridan was reinforced with the Fifth Corps, and other troops. On April 1st, Sheridan fought, and won, the glorious Battle of Five Forks, against this detached Rebel force, and, besides capturing 6,000 prisoners and six pieces of artillery, dispersed the rest to the North and West, away from the balance of Lee's Army. That night, after Grant received the news of this victory, he went into his tent, wrote a dispatch, sent it by an orderly, and returning to the fire outside his tent, calmly said: "I have ordered an immediate assault along the lines." This was afterward modified to an attack at three points, on the Petersburg works, at 4 o'clock in the morning—a terrific bombardment, however, to be kept up all night. Grant also sent more reinforcements to Sheridan. On the morning of April 2nd, the assault was made, and the Enemy's works were gallantly carried, while Sheridan was coming up to the West of Petersburg.

The Rebel Chieftain Lee, when his works were stormed and carried, is said to have exclaimed: "It has happened as I thought; the lines have been stretched until they broke." At 10.30 A. M. he telegraphed to Jefferson Davis: "My lines are broken in three places. Richmond must be evacuated this evening." This dispatch of Parke, Ord on Wright's left, Humphreys on Ord's left and Warren on Humphrey's left—Sheridan being to the rear and left of Warren, reached Davis, while at church. All present felt, as he retired, that the end of the Rebellion had come. At 10.40 A. M. Lee reported further: "I see no prospect of doing more than holding our position here till

night. I am not certain that I can do that. If I can, I shall withdraw tonight, North of the Appomattox, and if possible, it will be better to withdraw the whole line to-night from James river. * * * Our only chance of concentrating our Forces is to do so near Danville railroad, which I shall endeavor to do at once. I advise that all preparations be made for leaving Richmond to-night. I will advise you later, according to circumstances. "At 7 o'clock P. M. Lee again communicated to the Rebel Secretary of War this information: "It is absolutely necessary that we should abandon our position to-night, or run the risk of being cut off in the morning. I have given all the orders to officers on both sides of the river, and have taken every precaution that I can to make the movement successful. It will be a difficult operation, but I hope not impracticable. Please give all orders that you find necessary, in and about Richmond. The troops will all be directed to Amelia Court House." This was the last dispatch sent by Lee to the Rebel Government.

On the 3rd of April, Petersburg and Richmond were evacuated, and again under the Union flag, while Grant's immediate Forces were pressing forward to cut off the retreat of Lee, upon Amelia Court House and Danville, in an effort to form a junction with Johnston. On the 6th, the important Battle of Sailor's Creek, Va., was fought and won by Sheridan. On the evening of the 7th, at the Farmville hotel, where Lee had slept the night before, Grant, after sending dispatches to Sheridan at Prospect Station, Ord at Prince Edward's Court House, and Mead at Rice Station, wrote the following letter to Lee:

"FARMVILLE, April 7th, 1865.

"GENERAL: The results of the last week must convince you of the hopelessness of further resistance, on the part of the Army of Northern Virginia, in this struggle. I feel that it is so, and regard it as my duty to shift from myself the responsibility of any further effusion of blood, by asking of you the surrender of that portion of the Confederate States' army known as the Army of Northern Virginia.

"U. S. GRANT,
"Lieutenant-General."

Lee, however, in replying to this demand, and in subsequent correspondence, seemed to be unable to see "the hopelessness of further

resistance." He thought "the emergency had not yet come." Hence, Grant decided to so press and harass him, as to bring the emergency along quickly. Accordingly, by the night of the 8th of April, Sheridan with his Cavalry had completely headed Lee off, at Appomattox Court House. By morning, Ord's forces had reached Sheridan, and were in line behind him. Two Corps of the Army of the Potomac, under Meade, were also, by this time, close on the Enemy's rear. And now the harassed Enemy, conscious that his rear was threatened, and seeing only Cavalry in his front, through which to fight his way, advanced to the attack. The dismounted Cavalry of Sheridan contested the advance, in order to give Ord and Griffin as much time as possible to form, then, mounting and moving rapidly aside, they suddenly uncovered, to the charging Rebels, Ord's impenetrable barrier of Infantry, advancing upon them at a double-quick! At the same time that this appalling sight staggered them, and rolled them back in despair, they became aware that Sheridan's impetuous Cavalry, now mounted, were hovering on their left flank, evidently about to charge!

Lee at once concluded that the emergency "had now come," and sent, both to Sheridan and Meade, a flag of truce, asking that hostilities cease, pending negotiations for a surrender—having also requested of Grant an audience with a view to such surrender. That afternoon the two great rival Military Chieftains met by appointment in the plain little farm-house of one McLean—Lee dressed in his best full-dress uniform and sword, Grant in a uniform soiled and dusty, and without any sword—and, after a few preliminary words, as to the terms proposed by Grant, the latter sat down to the table, and wrote the following:

"APPOMATTOX COURT HOUSE,
"VIRGINIA, April 9, 1865.

"GENERAL: In accordance with the substance of my letter to you of the 8th instant, I propose to receive the surrender of the Army of Northern Virginia on the following terms, to wit: Rolls of all the officers and men to be made in duplicate, one copy to be given to an officer to be designated by me, the other to be retained by such officer or officers as you may designate. The officers to give their individual paroles not to take up arms against the Government of the United States, until properly exchanged; and each company or regimental commander to sign a like parole for the men of

their commands. The arms, artillery, and public property to be parked and stacked, and turned over to the officers appointed by me to receive them. This will not embrace the side-arms of the officers nor their private horses or baggage. This done, each officer and man will be allowed to return to his home, not to be disturbed by United States authority so long as they observe their paroles and the laws in force where they may reside.

"U. S. GRANT,
"Lieutenant-General.
"General R. E. LEE."

After some further conversation, in which Grant intimated that his officers receiving paroles would be instructed to "allow the Cavalry and Artillery men to retain their horses, and take them home to work their little farms"—a kindness which Lee said, would "have the best possible effect," the latter wrote his surrender in the following words:

"HEAD-QUARTERS, ARMY OF NORTHERN VIRGINIA, April 9, 1865.

"GENERAL: I received your letter of this date containing the terms of the surrender of the Army of Northern Virginia, as proposed by you. As they are substantially the same as those expressed in your letter of the 8th instant, they are accepted. I will proceed to designate the proper officers to carry the stipulations into effect. "R. E. LEE, General.

"Lieutenant-General U. S. GRANT."

Before parting, Lee told Grant that his men were starving; and Grant at once ordered 25,000 rations to be issued to the surrendered Rebels—and then the Rebel Chieftain, shaking hands with the Victor, rode away to his conquered legions. It was 4.30 P.M. when Grant, on his way to his own headquarters, now with Sheridan's command, dismounted from his horse, and sitting on a stone by the roadside, wrote the following dispatch:

"Hon. E. M. STANTON,
Secretary of War, Washington.

"General Lee surrendered the Army of Northern Virginia this afternoon on terms proposed by myself. The accompanying additional correspondence will show the conditions fully.

"U. S. GRANT, Lieutenant General."

Meanwhile on the 5th of April, Grant, who had kept Sherman, as well as Sheridan, advised of his main movements, had also ordered the former to press Johnston's Army as he was pressing Lee, so as, between them, they might "push on, and finish the job." In accordance with this order, Sherman's Forces advanced toward Smithfield, and, Johnston having rapidly retreated before them, entered Raleigh, North Carolina, on the 13th. The 14th of April, brought the news of the surrender of Lee to Grant, and the same day a correspondence was opened between Sherman and Johnston, looking to the surrender of the latter's Army—terms for which were actually agreed upon, subject, however, to approval of Sherman's superiors. Those terms, however, being considered unsatisfactory, were promptly disapproved, and similar terms to those allowed to Lee's Army, were substituted, and agreed to, the actual surrender taking place April 26th, near Durham, North Carolina. On the 21st, Macon, Georgia, with 12,000 Rebel Militia, and sixty guns, was surrendered to Wilson's Cavalry-command, by General Howell Cobb. On the 4th of May, General Richard Taylor surrendered all the armed Rebel troops, East of the Mississippi river; and on the 26th of May, General Kirby Smith surrendered all of them, West of that river.

On that day, organized, armed Rebellion against the United States ceased, and became a thing of the past. It had been conquered, stamped out, and extinguished, while its civic head, Jefferson Davis, captured May 11th, at Irwinsville, Georgia, while attempting to escape, was, with other leading Rebels, a prisoner in a Union fort. Four years of armed Rebellion had been enough for them. They were absolutely sick of it. And the magnanimity of the terms given them by Grant, completed their subjugation. "The wisdom of his course," says Badeau, "was proved by the haste which the Rebels made to yield everything they had fought for. They were ready not only to give up their arms, but literally to implore forgiveness of the Government. They acquiesced in the abolition of Slavery. They abandoned the heresy of

Secession, and waited to learn what else their conquerors would dictate. They dreamed not of political power. They only asked to be let live quietly under the flag they had outraged, and attempt in some degree to rebuild their shattered fortunes. The greatest General of the Rebellion asked for pardon."

CHAPTER XXXI.

ASSASSINATION!

But while some of the great Military events alluded to in the preceding Chapter, had been transpiring at the theatre of War, something else had happened at the National Capital, so momentous, so atrocious, so execrable, that it was with difficulty the victorious soldiers of the Union, when they first heard the news, could be restrained from turning upon the then remaining armed Rebels, and annihilating them in their righteous fury.

Let us go back, for a moment, to President Lincoln, whom we left on board the Ocean Queen, at City Point, toward the end of March and the beginning of April, receiving dispatches from Grant, who was victoriously engaged at the front. On the very day that Richmond fell—April 4th—President Lincoln, with his little son "Tad," Admiral Porter, and others, visited the burning city, and held a reception in the parlors of the Mansion which had now, for so many years, been occupied by the Chief Conspirator, Jefferson Davis, and which had been precipitately abandoned when the flight of that Arch-Rebel and his "Cabinet" commenced. On the 6th, the President, accompanied by his wife, Vice-President Johnson, and others from Washington, again visited Richmond, and received distinguished Virginians, to whom he addressed words of wisdom and patriotism.

["On this occasion," says Arnold, "he was called upon by several prominent citizens of Virginia, anxious to learn what the policy of the Government towards them would be. Without committing himself to specific details, he satisfied them that his policy would be magnanimous, forgiving, and generous. He told these Virginians they must learn loyalty and devotion to the Nation. They need not love Virginia less, but they must love the Republic more."]

On the 9th of April, he returned to Washington, and the same day—his last Sunday on Earth—came the grand and glorious news of Lee's surrender.

On the Wednesday evening following, he made a lengthy speech, at the White House, to the great crowd that had assembled about it, to congratulate him, and the Nation, upon the downfall of Rebellion. His first thought in that speech, was of gratitude to God. His second, to put himself in the background, and to give all the credit of Union Military success, to those who, under God, had achieved it. Said he: "We meet this evening, not in sorrow, but in gladness of heart. The evacuation of Petersburg and Richmond, and the surrender of the principal Insurgent Army, give hope of a righteous and speedy Peace, whose joyous expression cannot be restrained. In the midst of this, however, He from whom all blessings flow, must not be forgotten. A Call for a National Thanksgiving is being prepared, and will be duly promulgated. Nor must those whose harder part gives us the cause of rejoicing, be overlooked. Their honors must not be parcelled out with others. I myself was near the front, and had the high pleasure of transmitting much of the good news to you; but no part of the honor, for plan or execution, is mine. To General Grant, his skilful officers and brave men, all belongs."

This speech was almost entirely devoted to the subject of reconstruction of the States lately in Rebellion, and to an argument in favor of the Reconstruction policy, under which a new and loyal government had been formed for the State of Louisiana. "Some twelve thousand voters in the heretofore Slave State of Louisiana," said he, "have sworn allegiance to the Union, assumed to be the rightful political power of the State, held elections, organized a State government, adopted a Free State Constitution, giving the benefit of public schools equally to Black and White, and empowering the Legislature to confer the elective franchise upon the colored man. Their Legislature has already voted to ratify the Constitutional Amendment recently passed by Congress, abolishing Slavery throughout the Nation. These twelve thousand persons are thus fully committed to the Union, and to perpetual Freedom in the State; committed to the very things, and nearly all the things, the Nation wants; and they ask the Nation's recognition and its assistance to make good that committal. Now, if we reject and spurn them, we do our utmost to disorganize and disperse them. We, in effect, say to the White men, 'You are worthless, or worse; we will

neither help you, nor be helped by you.' To the Blacks we say, 'This cup of Liberty which these, your old masters, hold to your lips, we will dash from you and leave you to the chances of gathering the spilled and scattered contents in some vague and undefined when, where, and how.' If this course, discouraging and paralyzing both White and Black, has any tendency to bring Louisiana into proper practical relations with the Union, I have, so far, been unable to perceive it. If, on the contrary, we recognize and sustain the new government of Louisiana, the converse of all this is made true."

While, however, Mr. Lincoln thus upheld and defended this Louisiana plan of reconstruction, yet he conceded that in applying it to other States, with their varying conditions, "no exclusive and inflexible plan can safely be prescribed as to details and collaterals." The entire speech shows the greatest solicitude to make no mistake necessitating backward steps, and consequent delay in reconstructing the Rebel States into Loyal ones; and especially anxious was he, in this, his last public utterance, touching the outcome of his great life-work, Emancipation. "If," said he, "we reject Louisiana, we also reject one vote in favor of the proposed Amendment to the National Constitution. To meet this proposition it has been argued that no more than three-fourths of those States which have not attempted Secession are necessary to validly ratify the Amendment. I do not commit myself against this further than to say that such a ratification would be questionable, and sure to be persistently questioned; whilst a ratification by three-fourths of all the States would be unquestioned and unquestionable."

On Thursday, by the President's direction, a War Department Order was drawn up and issued, putting an end to drafting and recruiting, and the purchase of Military supplies, and removing all restrictions which Military necessity had imposed upon the trade and commerce and intercourse of any one part of the Union with the other. On Friday, the 14th of April, there was a meeting of the Cabinet at noon, to receive a report from General Grant, in person—he having just arrived from the scene of Lee's surrender. Later, the President rode out with Mrs. Lincoln, and talked of the hard time they had had since coming to Washington; "but," continued he, "the War is over, and, with God's blessing, we may hope for four years of Peace and happiness, and then we will go back to Illinois, and pass the rest of our lives in quiet." At Ford's Theatre, that evening, was played "The American Cousin," and it had been announced that both the President and General Grant would be

present. Grant, however, was prevented from attending. President Lincoln attended with reluctance—possibly because of a presentiment which he had that day had, that "something serious is going to happen," of which he made mention at the Cabinet meeting aforesaid.

It was about 9 o'clock P.M., that the President, with Mrs. Lincoln, Major Rathbone, and Miss Harris, entered the Theatre, and, after acknowledging with a bow the patriotic acclamations with which the audience saluted him, entered the door of the private box, reserved for his party, which was draped with the folds of the American flag. At half past 10 o'clock, while all were absorbed in the play, a pistol-shot was heard, and a man, brandishing a bloody dagger, was seen to leap to the stage from the President's box, crying "Sic Semper Tyrannis!" His spurred boot, catching in the bunting, tripped him, so that he half fell and injured one leg, but instantly recovered himself, and, shouting "The South is avenged!" rushed across the stage, and disappeared. It was an actor, John Wilkes Booth by name, who—inspired with all the mad, unreasoning, malignant hatred of everything representing Freedom and Union, which was purposely instilled into the minds and hearts of their followers and sympathizers by the Rebel leaders and their chief accomplices in the North—had basely skulked into the box, behind Mr. Lincoln, mortally wounded him with a pistol-bullet, and escaped—after stabbing Major Rathbone for vainly striving to arrest the vile assassin's flight.

Thus this great and good Ruler of our reunited People was foully stricken down in the very moment of his triumph; when the Union troops were everywhere victorious; when Lee had surrendered the chief Army of the downfallen Confederacy; when Johnston was on the point of surrendering the only remaining Rebel force which could be termed an Army; on the self-same day too, which saw the identical flag of the Union, that four years before had been sadly hauled down from the flagstaff of Fort Sumter, triumphantly raised again over that historic fort; when, the War being at an end, everything in the future looked hopeful; at the very time when his merciful and kindly mind was doubtless far away from the mimic scenes upon which he looked, revolving beneficent plans for reconstructing and rebuilding the waste and desolate places in the South which War had made; at this time, of all times, when his clear and just perceptions and firm patriotism were most needed,

*[For his last public words, two nights before, had been:
"In the present 'situation,' as the phrase goes, it may be my
duty to make some new announcement to the people of the
South. I am CONSIDERING, and shall not fail to act when
satisfied that action will be proper."]*

alike by conquerors and conquered, to guide and aid the Nation in the difficult task of reconstruction, and of the new departure, looming up before it, with newer and broader and better political issues upon which all Patriot might safely divide, while all the old issues of States-rights, Secession, Free-Trade, and Slavery, and all the mental and moral leprosy growing out of them, should lie buried far out of sight as dead-and-gone relics of the cruel and devastating War which they alone had brought on! Abraham Lincoln never spoke again. The early beams of the tomorrow's sun touched, but failed to warm, the lifeless remain of the great War-President and Liberator, as they were borne, in mournful silence, back to the White House, mute and ghastly witness of the sheer desperation of those who, although armed Rebellion, in the open field, by the fair and legitimate modes of Military warfare, had ceased, were determined still to keep up that cowardly "fire in the rear" which had been promised to the Rebel leaders by their Northern henchmen and sympathizers.

The assassination of President Lincoln was but a part of the plot of Booth and his murderous Rebel-sympathizing fellow conspirators. It was their purpose also to kill Grant, and Seward, and other prominent members of the Cabinet, simultaneously, in the wild hope that anarchy might follow, and Treason find its opportunity. In this they almost miraculously failed, although Seward was badly wounded by one of the assassins.

That the Rebel authorities were cognizant of, and encouraged, this dastardly plot, cannot be distinctly proven. But, while they naturally would be likely, especially in the face of the storm of public exasperation which it raised throughout the Union, to disavow all knowledge of, or complicity in, the vengeful murder of President Lincoln, and to destroy all evidences possible of any such guilty knowledge or complicity, yet there will ever be a strong suspicion that they were not innocent. From the time when it was first known that Mr. Lincoln had been elected President, the air was full of threats that he should not live to be inaugurated.

That the assassination, consummated in April, 1865, would have taken place in February of 1861, had it not been for the timely efforts of Lieutenant-General Scott, Brigadier-General Stone, Hon. William H. Seward, Frederick W. Seward, Esq., and David S. Bookstaver of the Metropolitan Police of New York—is abundantly shown by Superintendent John A. Kennedy, in a letter of August 13, 1866, to be found in vol. ii., of Lossing's "Civil War in America," pages 147-149, containing also an extract from a letter of General Stone, in which the latter—after mentioning that General Scott and himself considered it "almost a certainty that Mr. Lincoln could not pass Baltimore alive by the train on the day fixed"—proceeds to say: "I recommended that Mr. Lincoln should be officially warned; and suggested that it would be altogether best that he should take the train of that evening from Philadelphia, and so reach Washington early the next day." * * * General Scott, after asking me how the details could be arranged in so short a time, and receiving my suggestion that Mr. Lincoln should be advised quietly to take the evening train, and that it would do him no harm to have the telegraph wires cut for a few hours, he directed me to seek Mr. W. H. Seward, to whom he wrote a few lines, which he handed to me. It was already ten o'clock, and when I reached Mr. Seward's house he had left; I followed him to the Capitol, but did not succeed in finding him until after 12 M. I handed him the General's note; he listened attentively to what I said, and asked me to write down my information and suggestions, and then, taking the paper I had written, he hastily left. The note I wrote was what Mr. Frederick Seward carried to Mr. Lincoln in Philadelphia. Mr. Lincoln has stated that it was this note which induced him to change his journey as he did. The stories of disguise are all nonsense; Mr. Lincoln merely took the sleeping-car in the night train.

Equally certain also, is it, that the Rebel authorities were utterly indifferent to the means that might be availed of to secure success to Rebellion. Riots and arson, were among the mildest methods proposed to be used in the Northern cities, to make the War for the Union a "failure"—as their Northern Democratic allies termed it—while, among other more devilish projects, was that of introducing cholera and yellow fever into the North, by importing infected rags! Another much-talked-of scheme throughout the War, was that of kidnapping President Lincoln, and other high officials of the Union Government. There is also evidence, that the Rebel chiefs not only received, but considered, the plans of desperadoes and

cut-throats looking to the success of the Rebellion by means of assassination. Thus, in a footnote to page 448, vol. ii., of his "Civil War in America," Lossing does not hesitate to characterize Jefferson Davis as "the crafty and malignant Chief Conspirator, who seems to have been ready at all times to entertain propositions to assassinate, by the hand of secret murder, the officers of the Government at Washington;" and, after fortifying that statement by a reference to page 523 of the first volume of his work, proceeds to say: "About the time (July, 1862) we are now considering, a Georgian, named Burnham, wrote to Jefferson Davis, proposing to organize a corps of five hundred assassins, to be distributed over the North, and sworn to murder President Lincoln, members of his Cabinet, and leading Republican Senators, and other supporters of the Government. This proposition was made in writing, and was regularly filed in the 'Confederate War Department,' indorsed 'Respectfully referred to the Secretary of War, by order of the President,' and signed 'J. C Ives.' Other communications of similar tenor, 'respectfully referred' by Jefferson Davis, were placed on file in that 'War Department.'" All the denials, therefore, of the Rebel chieftains, as to their complicity in the various attempts to assassinate Abraham Lincoln, ending with his dastardly murder in April, 1865, will not clear their skirts of the odium of that unparalleled infamy. It will cling to them, living or dead, until that great Day of Judgment when the exact truth shall be made known, and "their sin shall find them out."

[The New York Tribune, August 16, 1885, under the heading "A NARROW ESCAPE OF LINCOLN," quotes an interesting "Omaha Letter, to the St. Paul Pioneer Press," as follows:

"That more than one attempt was made to assassinate Abraham Lincoln is a fact known to John W. Nichols, ex-president of the Omaha Fire Department. Mr. Nichols was one of the body-guard of President Lincoln from the Summer of 1862 until 1865. The following narrative, related to your correspondent by Mr. Nichols, is strictly true, and the incident is not generally known:

One night about the middle of August, 1864, I was doing sentinel duty at the large gate through which entrance was had to the grounds of the Soldiers' Home. The grounds are

situated about a quarter of a mile off the Bladensburg road, and are reached by devious driveways. About 11 o'clock I heard a rifle shot in the direction of the city, and shortly afterwards I heard approaching hoof-beats. In two or three minutes a horse came dashing-up, and I recognized the belated President. The horse was very spirited, and belonged to Mr. Lamon, marshal of the District of Columbia. This horse was Mr. Lincoln's favorite, and when he was in the White House stables he always chose him. As horse and rider approached the gate, I noticed that the President was bareheaded. After assisting him in checking his steed, the President said to me: 'He came pretty near getting away with me, didn't he? He got the bit in his teeth before I could draw the rein.' I then asked him where his hat was, and he replied that somebody had fired a gun off down at the foot of the hill, and that his horse had become scared and jerked his hat off. I led the animal to the Executive Cottage, and the President dismounted and entered. Thinking the affair rather strange, a corporal and myself started in the direction of the place from where the sound of the rifle report had proceeded, to investigate the occurrence. When we reached the spot where the driveway intersects with the main road we found the President's hat—a plain silk hat—and upon examining it we discovered a bullet hole through the crown. The shot had been fired upwards, and it was evident that the person who fired the shot had secreted himself close to the roadside. We listened and searched the locality thoroughly, but to no avail. The next day I gave Mr. Lincoln his hat and called his attention to the bullet hole. He rather unconcernedly remarked that it was put there by some foolish gunner, and was not intended for him. He said, however, that he wanted the matter kept quiet, and admonished us to say nothing about it. We all felt confident that it was an attempt to kill him, and a well-nigh successful one, too. The affair was kept quiet, in accordance with his request. After that, the President never rode alone."]

That this dark and wicked and bloody Rebellion, waged by the upholders and advocates of Slavery, Free Trade, and Secession, had descended so low as to culminate in murder—deliberate, cold-blooded, cowardly murder—at a time when the Southern Conspirators would apparently be the least benefitted by it, was regarded at first as evidencing their mad fatuity; and the public mind was dreadfully incensed.

The successor of the murdered President—Andrew Johnson—lost little time in offering (May the 2d) rewards, ranging from \$25,000 to \$100,000, for the arrest of Jefferson Davis, Jacob Thompson,

[The same individual at whose death, in 1885, the Secretary of the Interior, ordered the National flag of the Union—which he had swindled, betrayed, fought, spit upon, and conspired against—to be lowered at halfmast over the Interior Departmental Building, at Washington, D. C.]

Clement C. Clay, Beverly Tucker, George N. Sanders, and W. C. Cleary, in a Proclamation which directly charged that they, "and other Rebels and Traitors against the Government of the United States, harbored in Canada," had "incited, concerted, and procured" the perpetration of the appalling crime.

On the 10th of May, one of them, Jacob Thompson, from his place of security, in Canada, published a letter claiming to be innocent; characterized himself as "a persecuted man;" arrayed certain suspicious facts in support of an intimation that Johnson himself was the only one man in the Republic who would be benefitted by President Lincoln's death; and, as he was found "asleep" at the "unusual hour" of nine o'clock P.M., of the 14th of April, and had made haste to take the oath of office as President of the United States as soon as the breath had left the body of his predecessor, insinuated that he (Johnson) might with more reason be suspected of "complicity" in "the foul work" than the "Rebels and Traitors" charged with it, in his Proclamation; so charged, for the very purpose—Thompson insinuated—of shielding himself from discovery, and conviction!

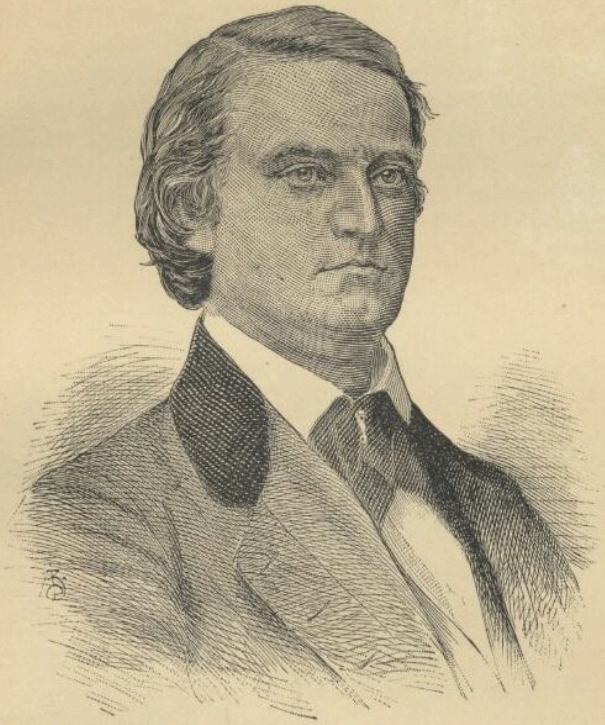
But while, for a moment, perhaps, there flitted across the public mind a half suspicion of the possibility of what this Rebel intimated as true, yet another moment saw it dissipated. For the People remembered that between "Andrew Johnson," one of the "poor white trash" of Tennessee, and the

"aristocratic Slave-owners" of the South, who headed the Rebellion, there could be neither sympathy nor cooperation—nothing, but hatred; and that this same Andrew Johnson, who, by power of an indomitable will, self-education, and natural ability, had, despite the efforts of that "aristocracy," forced himself upward, step by step, from the tailor's bench, to the successful honors of alderman and Mayor, and then still upward through both branches of his State Legislature, into the House of Representatives and the Senate of the United States—and, in the latter Body, had so gallantly met, and worsted in debate, the chosen representatives of that class upon whose treasonable heads he poured forth in invective, the gathered hatred of a life-time—would probably be the very last man whom these same "aristocratic" Conspirators, "Rebels, and Traitors," would prefer as arbiter of their fate.

The popular feeling responded heartily, at this time, to the denunciations which, in his righteous indignation, he had, in the Senate, and since, heaped upon Rebellion, and especially his declaration that "Treason must be made odious!"—utterances now substantially reiterated by him more vehemently than ever, and multiplied in posters and transparencies and newspapers all over the Land. Thus the public mind rapidly grew to believe it impossible that the Rebel leaders could gain, by the substitution, in the Executive chair, of this harsh, determined, despotic nature, for the mild, kindly, merciful, even-tempered, Abraham Lincoln. With Andrew Johnson for President, the People felt that justice would fall upon the heads of the guilty, and that the Country was safe. And so it happened that, while the mere instruments of the assassination conspiracy were hurried to an ignominious death, in the lull that followed, Jefferson Davis and others of the Rebel chiefs, who had been captured and imprisoned, were allowed to go "Scott-free, without even the semblance of a trial for their Treason!"

It is not the purpose of this work to deal with the history of the Reconstruction or rehabilitation of the Rebel States; to look too closely into the devious ways and subtle methods through and by which the Rebel leaders succeeded in flattering the vanity, and worming themselves into the confidence and control, of Andrew Johnson—by pretending to believe that his occupation of the Presidential Office had now, at last, brought him to their "aristocratic" altitude, and to a hearty recognition by them of his "social equality;" or to follow, either in or out of Congress, the great political conflict, between their unsuspecting Presidential dupe and the

Congress, which led to the impeachment trial of President Andrew Johnson, for high crimes and misdemeanors in office, his narrow escape from conviction and deposition, and to much consequent excitement and turmoil among the People, which, but for wise counsels and prudent forethought of the Republican leaders, in both Civil and Military life, might have eventuated in the outbreak of serious civil commotions. Suffice it to say, that in due time; long after the Thirteenth Amendment to the United States Constitution had been ratified by three-fourths of all the States; after Johnson had vexed the White House, with his noisy presence, for the nearly four years succeeding the death of the great and good Lincoln; and after the People, with almost unexampled unanimity, had called their great Military hero, Grant, to the helm of State; the difficult and perplexing problems involved in the Reconstruction of the Union were, at last, successfully solved by the Republican Party, and every State that had been in armed Rebellion against that Union, was not only back again, with a Loyal State Constitution, but was represented in both branches of Congress, and in other Departments of the National Government.



J C. BRECKINRIDGE.

CHAPTER XXXII.

TURNING BACK THE HANDS!

And now, the War having ended in the defeat, conquest, and capture, of those who, inspired by the false teachings of Southern leaders, had arrayed themselves in arms beneath the standard of Rebellion, and fought for Sectional Independence against National Union, for Slavery against Freedom, and for Free Trade against a benignant Tariff protective alike to manufacturer, mechanic, and laborer, it might naturally be supposed that, with the collapse of this Rebellion, all the issues which made up "the Cause"—the "Lost Cause," as those leaders well termed it—would be lost with it, and disappear from political sight; that we would never again hear of a Section of the Nation, and last of all the Southern Section, organized, banded together, solidified in the line of its own Sectional ideas as against the National ideas prevailing elsewhere through the Union; that Free Trade, conscious of the ruin and desolation which it had often wrought, and of the awful sacrifices, in blood and treasure, that had been made in its behalf by the conquered South, would slink from sight and hide its famine-breeding front forever; and that Slavery, in all its various disguises, was banished, never more to obtrude its hateful form upon our Liberty-loving Land. That was indeed the supposition and belief which everywhere pervaded the Nation, when Rebellion was conquered by the legions of the Union—and which especially pervaded the South. Never were Rebels more thoroughly exhausted and sick of Rebellion and of everything that led to it, than these. As Badeau said, they made haste "to yield everything they had fought for," and "dreamed not of political power." They had been brought to their knees, suing for forgiveness, and thankful that their forfeit lives were spared.

For awhile, with chastened spirit, the reconstructed South seemed to reconcile itself in good faith to the legitimate results of the War, and all went well. But Time and Peace soon obliterate the lessons and the memories of War. And it was not very long after the Rebellion had ceased,

and the old issues upon which it was fought had disappeared from the arena of National politics, when its old leaders and their successors began slowly, carefully, and systematically, to relay the tumbled-down, ruined foundations and walls of the Lost Cause—a work in which, unfortunately, they were too well aided by the mistaken clemency and magnanimity of the Republican Party, in hastily removing the political disabilities of those leaders.

Before proceeding farther, it is necessary to remark here, that, after the suppression of the Rebellion and adoption of the Thirteenth Amendment to the Constitution of the United States, which prohibits Slavery and Involuntary Servitude within the United States, it soon became apparent that it was necessary to the protection of the Freedmen, in the civil and political rights and privileges which it was considered desirable to secure to them, as well as to the creation and fostering of a wholesome loyal sentiment in, and real reconstruction of, the States then lately insurgent, and for certain other reasons, that other safeguards, in the shape of further Amendments to the Constitution, should be adopted.

Accordingly the Fourteenth and Fifteenth Amendments were, on the 16th of June, 1866, and 27th of February, 1869, respectively, proposed by Congress to the Legislatures of the several States, and were declared duly ratified, and a part of the Constitution, respectively on the 28th of July, 1868, and March 30, 1870. Those Amendments were in these words:

"ARTICLE XIV.

"SECTION 1.—All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

"SECTION 2.—Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years

of age, and citizens of the United States, or in any way abridged, except for participation in Rebellion, or other crime, the basis of Representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

"SECTION 3.—No person shall be a Senator or Representative in Congress, or Elector of President and Vice-President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State Legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in Insurrection or Rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each House, remove such disability.

"SECTION 4.—The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing Insurrection or Rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of Insurrection or Rebellion against the United States, or any claim for the loss or Emancipation of any Slave; but all such debts, obligations and claims shall be held illegal and void.

"SECTION 5.—The Congress shall have power to enforce, by appropriate legislation, the provisions of this article."

"ARTICLE XV.

"SECTION 1.—The right of citizens of the United States to vote shall not be denied or abridged by, the United States or by any State on account of race, color, or previous condition of servitude.

"SECTION 2.—The Congress shall have power to enforce this article by appropriate legislation."

It would seem, then, from the provisions of the Thirteenth, Fourteenth, and Fifteenth Amendments to the Constitution, and the Congressional legislation subsequently enacted for the purpose of enforcing them, that not only the absolute personal Freedom of every man, woman, and child in the United States was thus irrevocably decreed; that United States citizenship was clearly defined; that the life, liberty, property, privileges and immunities of all were secured by throwing around them the "equal

protection of the laws;" that the right of the United States citizen to vote, was placed beyond denial or abridgment, on "account of race, color, or previous condition of servitude;" but, to make this more certain, the basis of Congressional Representative—apportionment was changed from its former mixed relation, comprehending both persons and "property," so-called, to one of personal numbers—the Black man now counting quite as much as the White man, instead of only three-fifths as much; and it was decreed, that, except for crime, any denial to United States citizens, whether Black or White, of the right to vote at any election of Presidential electors, Congressional Representatives, State Governors, Judges, or Legislative members, "shall" work a reduction, proportioned to the extent of such denial, in the Congressional Representation of the State, or States, guilty of it. As a further safeguard, in the process of reconstruction, none of the insurgent States were rehabilitated in the Union except upon acceptance of those three Amendments as an integral part of the United States Constitution, to be binding upon it; and it was this Constitution as it is, and not the Constitution as it was, that all the Representatives, in both Houses of Congress, from those insurgent States—as well as all their State officers—swore to obey as the supreme law of the Land, when taking their respective oaths of office.

Biding their time, and pretending to act in good faith, as the years rolled by, the distrust and suspicion with which the old Rebel-conspirators had naturally been regarded, gradually lessened in the public mind. With a glad heart, the Congress, year after year, removed the political disabilities from class after class of those who had incurred them, until at last all, so desiring, had been reinstated in the full privileges of citizenship, save the very few unrepentant instigators and leaders of the Rebellion, who, in the depths of that oblivion to which they seemingly had been consigned, continued to nurse the bitterness of their downfall into an implacable hatred of that Republic which had paralyzed the bloody hands of Rebellion, and shattered all their ambitious dreams of Oligarchic rule, if not of Empire.

But, while the chieftains of the great Conspiracy—and of the armed Rebellion itself—remained at their homes unpunished, through the clemency of the American People; the active and malignant minds of some of them were plotting a future triumph for the "Lost Cause," in the overthrow, in consecutive detail, of the Loyal governments of the Southern States, by any and all means which might be by them considered most

desirable, judicious, expedient, and effectual; the solidifying of these Southern States into a new Confederation, or league, in fact—with an unwritten but well understood Constitution of its own—to be known under the apparently harmless title of the "Solid South," whose mission it would be to build up, and strengthen, and populate, and enrich itself within the Union, for a time, greater or less, according to circumstances, and in the meanwhile to work up, with untiring devotion and energy, not only to this practical autonomy and Sectional Independence within the Union, but also to a practical re-enslavement of the Blacks, and to the vigorous reassertion and triumph, by the aid of British gold, of those pernicious doctrines of Free-Trade which, while beneficial to the Cotton-lords of the South, would again check and drag down the robust expansion of manufactures and commerce in all other parts of the Land, and destroy the glorious prosperity of farmers, mechanics, and laborers, while at the same time crippling Capital, in the North and West.

In order to accomplish these results—after whatever of suspicion and distrust that might have still remained in Northern minds had been removed by the public declaration in 1874, by one of the ablest and most persuasively eloquent of Southern statesmen, that "The South—prostrate, exhausted, drained of her life-blood as well as of her material resources, yet still honorable and true—accepts the bitter award of the bloody arbitrament without reservation, resolutely determined to abide the result with chivalrous fidelity"—these old Rebel leaders commenced in good earnest to carry out their well organized programme, which they had already experimentally tested, to their own satisfaction, in certain localities.

The plan was this: By the use of shot-guns and rifles, and cavalcades of armed white Democrats, in red shirts, riding around the country at dead of night, whipping prominent Republican Whites and Negroes to death, or shooting or hanging them if thought advisable, such terror would fall upon the colored Republican voters that they would keep away from the polls, and consequently the white Democrats, undeterred by such influences, and on the contrary, eager to take advantage of them, would poll not only a full vote, but a majority vote, on all questions, whether involving the mere election of Democratic officials, or otherwise; and where intimidation of this, or any other kind, should fail, then a resort to be had to whatever devices might be found necessary to make a fraudulent count and return, and thus secure Democratic triumph; and furthermore, when evidences of

these intimidations and frauds should be presented to those people of the Union who believe in every citizen of this free Republic having one free vote, and that vote fairly counted, then to laugh the complainants out of Court with the cry that such stories are not true; are "campaign lies" devised solely for political effect; and are merely the product of Republican "outrage mills," ground out, to order.

This plan was first thoroughly tried in Mississippi, and has hence been called the "Mississippi plan." So magically effectual was it, that, with variations adapted to locality and circumstances, this "Mississippi plan" soon enveloped the entire South in its mesh-work of fraud, barbarity, and blood. The massacres, and other outrages, while methodical, were remittent, wave-like, sometimes in one Southern State, sometimes another, and occurring only in years of hot political conflict, until one after another of those States had, by these crimes, been again brought under the absolute control of the old Rebel leaders. By 1876, they had almost succeeded in their entire programme. They had captured all, save three, of the Southern States, and strained every nerve and every resource of unprincipled ingenuity, of bribery and perjury, after the Presidential election of that year had taken place, in the effort to defeat the will of the People and "count in," the Presidential candidate of the Democratic Party.

[The shameful history of the "Tilden barrel" and the "Cipher Dispatches" is too fresh in the public mind to be entirely forgotten,]

Failing in this effort, the very failure became a grievance. On the principle of a fleeing thief diverting pursuit by shouting "Stop thief," the cry of "fraud" was raised by the Democratic leaders, North and South, against the Republican Party, and was iterated and reiterated so long and loudly, that soon they actually began, themselves, to believe, that President Hayes had been "counted in," by improper methods! At all events, under cover of the hue and cry thus raised, the Southern leaders hurried up their work of Southern solidification, by multiplied outrages on the "Mississippi plan," so that, by 1880, they were ready to dictate, and did dictate, the Democratic Presidential nominations.

*[Senator Wallace, of Pennsylvania, telegraphed from Cincinnati his congratulations to General Hancock, and added: "General Buell tells me that Murat Halsted says Hancock's nomination by the Confederate Brigadiers sets the old Rebel yell to the music of the Union." In the Convention which nominated Hancock, Wade Hampton made a speech, saying; "On behalf of the 'Solid South,' that South which once was arrayed against the great soldier of Pennsylvania, I stand here to pledge you its solid vote. [cheers] * * * There is no name which is held in higher respect among the people of the South, than that of the man you have given to us as our standard-bearer." And afterward, in a speech at Staunton, Virginia, the same Southern leader, in referring to the action of the Democratic Convention at Cincinnati, said: "There was but one feeling among the Southern delegates. That feeling was expressed when we said to our Northern Democratic brethren 'Give us an available man.' They gave us that man."]*

While these old Rebel leaders of the South had insisted upon, and had succeeded in, nominating a man whose record as a Union soldier would make him popular in the North and West, and while their knowledge of his availability for Southern purposes would help them in their work of absolutely solidifying the South, they took very good care also to press forward their pet Free-Trade issue—that principle so dear to the hearts of the Rebel Cotton-lords that, as has already been hinted, they incorporated it into their Constitution of Confederation in these words:

"SEC. 8.—Congress shall have power to lay and collect taxes, duties, imposts and excises for revenue necessary to pay the debts, provide for the common defense, and carry on the Government of the Confederate States; but no bounty shall be granted from the Treasury, nor shall any duty or tax on importation from Foreign Nations be laid to promote or foster any branch of industry."

It may also be remarked that, under the inspiration of those Southern leaders who afterward rebelled, it had been laid down as Democratic doctrine, in the National Democratic platform of 1856—and "reaffirmed" as such, in 1860—that "The time has come for the People of the United States

to declare themselves in favor of * * * progressive Free-Trade. * * * That justice and sound policy forbid the Federal Government to foster one branch of industry to the detriment of another." But, by 1864, the Republican Protective-Tariff of 1860, had so abundantly demonstrated, to all our people engaged in industrial occupations, the beneficence of the great principle of home industrial Protection, that Tariff-agitation actually ceased, and the National Democratic platform of that year had nothing to say in behalf of Free-Trade!

After the close of the War, however, at the very first National Democratic Convention, in 1868, at which there were delegations from the lately rebellious States, the question was at once brought to the front, and, under the inspiration of the old Rebel leaders aforesaid, the Democratic platform again raised the banner of Free-Trade by declaring for a Tariff for revenue. But the mass of the People, at that time still freshly remembered the terrible commercial disasters and industrial depressions which had befallen the Land, through the practical operation of that baleful Democratic Free-Trade doctrine, before the Rebellion broke out, and sharply contrasted the misery and poverty and despair of those dark days of ruin and desolation, with the comfort and prosperity and hopefulness which had since come to them through the Republican Protective-Tariff Accordingly, the Republican Presidential candidate, representing the great principle of Protection to American Industries, was elected over the Democratic Free-Trade candidate, by 214 to 71 electoral votes—or nearly three to one!

Taught, by this lesson, that the People were not yet sufficiently prepared for a successful appeal in behalf of anything like Free-Trade, the next National Democratic Convention, (that of 1872), under the same Southern inspiration, more cautiously declared, in its platform, that "Recognizing that there are in our midst, honest but irreconcilable differences of opinion, with regard to the respective systems of Protection and Free-Trade, we remit the discussion of the subject to the People in their Congressional districts, and to the decision of the Congress thereon, wholly free from Executive interference or dictation." The People, however, rebuked the moral cowardice thus exhibited by the Democracy—in avoiding a direct issue on the doctrine which Democracy itself had galvanized at least into simulated life,—by giving 286 electoral votes to the Republican candidate, to 63 for the Democratic,—or in the proportion of nearly five to one.

Warned, by this overwhelming defeat, not to flinch from, or avoid, or try to convert the great National question of Tariff, into a merely local one, the National Democratic platform of 1876, at the instigation of the old Rebel leaders of the now fast solidifying South, came out flat-footedly again with the "demand that all Custom-house taxation shall be only for revenue." This time, the electoral vote stood almost evenly divided, viz.: for the Republican candidate, 185; for the Democratic candidate, 184;—a result so extremely close, as to lead to the attempted perpetration of great frauds against the successful candidate; the necessary settlement of the questions growing out of them, by an Electoral commission—created by Congress at the instance of the Democratic Party; great irritation, among the defeated Democracy, over the just findings of that august Tribunal; and to the birth of the alleged Democratic "grievance," aforesaid.

The closeness of this vote—their almost triumph, in 1876,—encouraged the Solid South to press upon the National Democratic Convention of 1880, the expediency of adopting a Free-Trade "plank" similar to that with which, in 1876, they had so nearly succeeded. Hence the Democratic platform of 1880, also declared decidedly for "A Tariff for revenue only."

The old Rebel leaders, at last in full control of the entire Democratic Party, had now got things pretty much as they wanted them. They had created that close corporation within the Union—that *imperium in imperio* that oligarchically—governed league of States (within the Republic of the United States) which they termed the "Solid South," and which would vote as a unit, on all questions, as they directed; they had dictated the nomination, by the Democratic Party, of a Presidential candidate who would not dare to act counter to their wishes; and their pet doctrine of Free-Trade was held up, to the whole Democratic front, under the attractive disguise of a Tariff for revenue only.

[As Ex-Senator Toombs, of Georgia, wrote: "The old boys of the South will see that 'Hancock' does the fair thing by them. In other words, he will run the machine to suit them, or they will run the thing themselves. They are not going to be played with any longer."]

In other words, they had already secured a "Solid South," an "available" candidate, and an "expedient" Free-Trade platform. All that remained for

them, at this stage, to do, was to elect the candidate, and enact their Free-Trade doctrine into legislation. This was their current work, so to speak—to be first attended to—but not all their work; for one of the most brilliant and candid of their coadjutors had said, only a few months before: "We do not intend to stop until we have stricken the last vestige of your War measures from the Statute-book."

Unfortunately, however, for their plans, an attempt made by them, under the lead of Mr. Morrison of Illinois, in 1876, to meddle with the Republican Protective-Tariff, had caused considerable public alarm, and had been credited with having much to do with a succeeding monetary panic, and industrial depression. Another and more determined effort, made by them in 1878, under the lead of their old Copperhead ally, Fernando Wood, to cut down the wise Protective duties imposed by the Tariff Act, about 15 per cent.,—together with the cold-blooded Free-Trade declaration of Mr. Wood, touching his ruinous Bill, that "Its reductions are trifling as compared with what they should be. * * * If I had the power to commence de novo, I should reduce the duties 50 per cent., instead of less than 15 per cent., upon an average as now proposed,"—an effort which was narrowly, and with great difficulty, defeated by the Republicans, aided by a mere handful of others,—had also occasioned great excitement throughout the Country, the suspension and failure of thousands of business firms, the destruction of confidence in the stability and profitableness of American industries, and great consequent suffering, and enforced idleness, to the working men and working women of the Land.

The sad recollection of these facts—made more poignant by the airy declaration of the Democratic Presidential candidate, that the great National question of the Tariff is a mere "local issue,"—was largely instrumental, in connection with the insolent aggressiveness of the Southern leaders, in Congress, in occasioning their defeat in the Presidential contest of 1880, the Republican candidate receiving 214 electoral votes, while the Democratic candidate received but 155 electoral votes.

In 1882, the House of Representatives was under Republican control, and, despite determined Democratic resistance, created a Tariff-commission, whose duty it was "to take into consideration, and to thoroughly investigate, all the various questions relating to the agricultural, commercial, mercantile, manufacturing, mining, and (other) industrial

interests of the United States, so far as the same may be necessary to the establishment of a judicious Tariff, or a revision of the existing Tariff, upon a scale of justice to all interests."

That same year, in the face of most protracted and persistent opposition by the great bulk of Democratic members, both of the Senate and House of Representatives, and an effort to substitute for it the utterly ruinous Democratic Free-Trade Tariff of 1846, the Bill recommended by this Republican Tariff-commission, was enacted; and, in 1883, a modified Tariff-measure, comprehending a large annual reduction of import duties, while also carefully preserving the great Republican American principle of Protection, was placed by the Republicans on the Statute-book, despite the renewed and bitter opposition of the Democrats, who, as usual, fought it desperately in both branches of Congress. But Republican efforts failed in 1884, in the interest of the wool-growers of the country, to restore the Protective-duties on wool, which had been sacrificed, in 1883, to an exigency created by Democratic opposition to them.

Another Democratic effort, in the direction of Free-Trade, known as "the Morrison Tariff-Bill of 1884," was made in the latter year, which, besides increasing the free-list, by adding to it salt, coal, timber, and wood unmanufactured, as well as many manufactures thereof, decreased the import duties "horizontally" on everything else to the extent of twenty per cent. The Republicans, aided by a few Democrats, killed this undigested and indigestible Democratic Bill, by striking out its enacting clause.

By this time, however, by dint of the incessant special-pleading in behalf of the obnoxious and un-American doctrine of Free-Trade,—or the nearest possible approach to it, consistent with the absolutely essential collection of revenues for the mere support of the Government —indulged in (by some of the professors) in our colleges of learning; through a portion of the press; upon the stump; and in Congress; together with the liberal use of British gold in the wide distribution of printed British arguments in its favor,—this pernicious but favorite idea of the Solid South had taken such firm root in the minds of the greater part of the Democratic Party in the North and West, as well as the South, that a declaration in the National Democratic platform in its favor was now looked for, as a matter of course. The "little leaven" of this monstrous un-American heresy seemed likely to leaven "the whole mass" of the Democracy.

But, as in spite of the tremendous advantage given to that Party by the united vote of the Solid South, the Presidential contest of 1884 was likely to be so close that, to give Democracy any chance to win, the few Democrats opposed to Free-Trade must be quieted, the utterances of the Democratic National Platform of that year, on the subject, were so wonderfully pieced, and ludicrously intermixed, that they could be construed to mean "all things to all men."

At last, after an exciting campaign, the Presidential election of 1884 was held, and for the first time since 1856, the old Free-Trade Democracy of the South could rejoice over the triumph of their Presidential candidate.

Great was the joy of the Solid South! At last, its numberless crimes against personal Freedom, and political Liberty, would reap a generous harvest. At last, participation in Rebellion would no more be regarded as a blot upon the political escutcheon. At last, commensurate rewards for all the long years of disconsolate waiting, and of hard work in night ridings, and house-burnings, and "nigger"-whippings, and "nigger"-shootings, and "nigger"-hangings, and ballot-box stuffings, and all the other dreadful doings to which these old leaders were impelled by a sense of Solid-Southern patriotism, and pride of race, and lust for power, would come, and come in profusion.

Grand places in the Cabinet, and foreign Missions, for the old Rebels of distinction, now Chiefs of the "Solid-Southern" Conspiracy, and for those other able Northern Democrats who had helped them, during or since the Rebellion; fat consulates abroad, for others of less degree; post-offices, without stint, for the lesser lights; all this, and more, must now come. The long-hidden light of a glorious day was about to break. The "restoration of the Government to the principles and practices of the earlier period," predicted by the unreconstructed "Rebel chieftains" those "same principles for which they fought for four years" the principles of Southern Independence, Slavery, Free Trade and Oligarchic rule—were now plainly in sight, and within reach!

The triumph of the Free-Trade Democracy, if continued to another Presidential election, would make Free-Trade a certainty. The old forms of Slavery, to be sure, were dead beyond reanimation—perhaps; but, in their place, were other forms of Slavery, which attracted less attention and reprobation from the World at large, and yet were quite as effectual for all

Southern purposes. The system of Peonage and contracted convict-labor, growing out of the codes of Black laws, were all-sufficient to keep the bulk of the Negro race in practical subjection and bondage. The solidifying of the South had already made the South not only practically independent within the Union, but the overshadowing power, potential enough to make, and unmake, the rulers and policies of the Democratic Party, and of that Union.

This, indeed, was a grand outcome for the tireless efforts of the once defeated Conspirators! And as to Oligarchal rule—the rule of the few (and those the Southern chiefs) over the many,—was not that already accomplished? For these old Rebel leaders and oligarchs who had secured the supreme rule over the Solid South, had also, through their ability to wield the power of that Solid South within the Union, actually secured the power of practically governing the entire Union!

That Union, then, which we have been wont to look upon as the grandest, noblest, freest, greatest Republic upon Earth,—is it really such, in all respects, at the present? Does the Free Republic of the United States exist, in fact, to-day?

CHAPTER XXXIII.

WHAT NEXT?

And what next? Aye, what next? Do the patriotic, innocent-minded lovers of a Republican form of Government imagine, for an instant, that all danger to its continued existence and well-being has ceased to threaten?—that all the crises perilous to that beneficent popular governmental form have vanished?—that the climacteric came, and went, with the breaking out, and suppression, of the Rebellion?—and that there is nothing alarming in the outlook? Quite likely. The public mind has not yet been aroused to a sense of the actual revolution against Republican form of government that has already taken place in many of the Southern States, much less as to the likelihood of things to come. The people of any one of the Western, or Northern States,—take New York, for example,—feel prosperous and happy under the beneficent workings of the Republican Protective-Tariff system. Business, of all sorts, recovering from the numerous attacks made upon that prime bulwark of our American industries, if only let alone, will fairly hum, and look bright, so far as "the Almighty dollar" is concerned. They know they have their primaries and conventions, in their wards and counties throughout their State, and their State Conventions, and their elections. They know that the voice of the majority of their own people, uttered through the sacred ballot-box, is practically the Vox Dei—and that all bow to it. They know also, that this State government of theirs, with all its ramifications—whether as to its Executive, its Legislative, its Judicial, and other officials, either elective or appointed—is a Republican form of government, in the American sense—in the sense contemplated by the Fathers, when they incorporated into the revered Constitution of our Country the vital words: "The United States shall guarantee to every State in this Union a Republican Form of government." But they do not realize the vastly different condition of things in many States of the Solid South, nor how it affects themselves.

And what is this "republican" form of government, thus pledged? It is true that there are not wanting respectable authorities whose definitions of the words "republic," and "republican," are strongly inharmonious with their true meaning, as correctly understood by the great bulk of Americans. Thus, Brande asserts that "A republic may be either a democracy or an aristocracy!"—and proceeds to say: "In the former, the supreme power is vested in the whole body of the people, or in representatives elected by the people; in the latter, it is vested in a nobility, or a privileged class of comparatively a small number of persons." John Adams also wrote: "The customary meanings of the words republic and commonwealth have been infinite. They have been applied to every Government under heaven; that of Turkey and that of Spain, as well as that of Athens and of Rome, of Geneva and San Marino." But the true meaning of the word "republican" as applied to a "form of government," and as commonly and almost invariably understood by those who, above all others in the wide World, should best understand and appreciate its blessings—to wit: the American People has none of the looseness and indefiniteness which these authorities throw about it.

The prevailing and correct American idea is that "Republican" means: of, or pertaining to, a Republic; that "Republic" means a thing, affair, or matter, closely related to, and touching the "public;" and that the "public" are the "people"—not a small proportion of them, but "the people at large," the whole community, the Nation, the commonalty, the generality. Hence, "a Republican form of government" is, in their opinion, plainly that form which is most closely identified with, and representative of, the generality or majority of the people; or, in the language of Dr. J. E. Worcester, it is "That form of government or of a State, in which the supreme power is vested in the people, or in representatives elected by the people."

It is obvious that there can be no such thing as "a republic," which is, at the same time, "an aristocracy;" for the moment that which was "a republic" becomes "an aristocracy," that moment it ceases to be "a republic." So also can there be no such thing as "a republic" which is "an oligarchy," for, as "a republic" is a government of the many, or, as President Lincoln well termed it, "a government of the people, by the people, for the people"—so it must cease to be "a republic," when the supreme power is in the hands of the oligarchic few.

There can be but two kinds of republics proper—one a democratic republic, which is impossible for a great and populous Nation like ours, but which may have answered for some of the small republics of ancient Greece; the other, a representative republic, such as is boasted by the United States. And this is the kind palpably meant by the Fathers, when, for the very purpose of nipping in the bud any anti-republican Conspiracy likely to germinate from Slavery, they inserted in the Great Charter of American Liberties the solemn and irrevocable mandate: "The United States shall guarantee to every State in this Union a Republican Form of Government." That they meant this majority rule—this government by the many, instead of the few—this rule of the People, as against any possible minority rule, by, or through, oligarchs or aristocrats, is susceptible of proof in other ways.

It is a safe guide, in attempting to correctly expound the Constitution of the United States, to be careful that the construction insisted on, is compatible and harmonious with the spirit of that great instrument; so that—as was said by an eloquent and distinguished Massachusetts statesman of twenty years ago, in discussing this very point—"the guarantee of a Republican form of government must have a meaning congenial with the purposes of the Constitution." Those purposes, of course, are expressed in its preamble, or in the body of the instrument, or in both. The preamble itself, in this case, is sufficient to show them. It commences with the significant words: "We THE PEOPLE of the United States"—words, instinct with the very consciousness of the possession of that supreme power by the People or public, which made this not only a Nation, but a Republic; and, after stating the purposes or objects sought by the People in thus instituting this Republic, proceeds to use that supreme political power vested in them, by ordaining and establishing "this CONSTITUTION for the United States of America." And, from the very first article, down to the last, of that "Constitution," or "structure," or "frame," or "form" of government, already self-evidently and self-consciously and avowedly Republican, that form is fashioned into a distinctively representative Republican government.

The purposes themselves, as declared in the preamble, for which the People of the United States thus spake this representative Republic into being, are also full of light. Those purposes were "to form a more perfect Union, establish Justice, insure domestic Tranquillity, provide for the

common defense, promote the General Welfare, and secure the Blessings of Liberty to ourselves and our Posterity."

How is it possible, for instance, that "the Blessings of Liberty" are to be secured to "ourselves and our Posterity," if citizens of the United States, despite the XVth Amendment of that Constitution, find—through the machinations of political organizations—their right to vote, both abridged and denied, in many of the States, "on account of race, color, or previous condition of servitude?" How, if, in such States, "the right of the people to be secure in their persons, houses, and effects, against unreasonable searches and seizures," is habitually violated, despite the IVth Amendment of that Constitution? How, if, in such States, persons are notoriously and frequently "deprived of life, liberty, or property, without due process of law," in violation of the Vth Amendment of that Constitution? Yet such is the state of affairs generally prevalent in many States of the Solid South.

These provisions in the Constitution were, with others, placed there for the very purpose of securing "the Blessings of Liberty to ourselves and our Posterity," of promoting the "General Welfare," of establishing "Justice," of insuring "domestic Tranquillity" and making "a more perfect Union"—and the violation of those provisions, or any one of them, in any part of our Land, by any part of our People, in any one of the States, is not only subversive of the Constitution, and revolutionary, but constitutes a demand, in itself, upon the National Government, to obey that imperative mandate of the Constitution (Sec. 4, article IV.) comprehended in the words: "The United States SHALL guarantee to every State in this Union a Republican Form of Government."

[The meaning of these words is correctly given in an opinion of Justice Bronson of New York (4 Hill's Reports, 146) in these words:

"The meaning of the section then seems to be, that no member of the State shall be disfranchised or deprived of any of his rights or privileges unless the matter shall be adjudged against him upon trial had according to the course of common law. The words 'due process of law' cannot mean less than a prosecution or suit instituted and conducted according to the prescribed forms and solemnities for ascertaining guilt or determining the title to property."]

It is well that the truth should be spoken out, and known of all men. The blame for this condition of things belongs partly to the Republican Party. The question is sometimes asked: "If these outrages against citizenship, against the purity of the ballot, against humanity, against both the letter and spirit of the Constitution of our Republic, are perpetrated, why is it that the Republican Party—so long in power during their alleged perpetration—did not put a stop to them?" The answer is: that while there are remedial measures, and measures of prevention, fully warranted by the Constitution—while there are Constitutional ways and means for the suppression of such outrages—yet, out of exceeding tenderness of heart, which prompted the hope and belief that the folly of continuing them must ere long come home to the Southern mind and conscience, the Republican Party has been loath to put them in force. The—best remedy of all, and the best manner of administering it, lies with the people themselves, of those States where these outrages are perpetrated. Let them stop it. The People of the United States may be long-suffering, and slow to wrath; but they will not permit such things to continue forever.

When the Rebellion was quelled, the evil spirit which brought it about should have been utterly crushed out, and none of the questions involved in it should have been permitted to be raised again. But the Republican Party acted from its heart, instead of its head. It was merciful, forgiving, and magnanimous. In the magnificent sweep of its generosity to the erring son, it perhaps failed to insure the exact justice to the other sons which was their right. For, as has already been shown in these pages, Free-Trade, imbedded in the Rebel Constitution, as well as Slavery, entered into and became a part, and an essential part, of the Rebellion against the Union—to triumph with Slavery, if the Rebellion succeeded—to fall with Slavery, if the Rebellion failed. And, while Slavery and Free-Trade, were two leading ideas inspiring the Southern Conspirators and leaders in their Rebellion; Freedom to Man, and Protection to Labor, were the nobler ideas inspiring those who fought for the Union.

The Morrill-Tariff of 1860, with modifications to it subsequently made by its Republican friends, secured to the Nation, through the triumph of the Union arms, great and manifold blessings and abundant prosperity flowing from the American Protective policy; while the Emancipation proclamations, together with the Constitutional amendments, and Congressional legislation, through the same triumph, and the acceptance of

the legitimate results of the War, gave Freedom to all within the Nation's bound aries. This, at least, was the logical outcome of the failure of the Rebellion. Such was the general understanding, on all sides, at the conclusion of the War. Yet the Republican Party, in failing to stigmatize the heresy of Free Trade—which had so large an agency in bringing about the equally heretical doctrines of State Sovereignty and the right of Secession, and Rebellion itself,—as an issue or question settled by the War, as a part and parcel of the Rebellion, was guilty of a grave fault of omission, some of the ill-effects of which have already been felt, while others are yet to come. For, quickly after the War of the Rebellion closed,—as has been already mentioned—the defeated Rebel leaders, casting in their lot with their Democratic friends and allies, openly and without special rebuke, prevailed upon the National Democracy to adopt the Rebel Free-Trade Shibboleth of "a Tariff for revenue;" and that same Democracy, obtaining power and place, through violence and fraud and falsehood at the so-called "elections" in the Solid Southern States, now threatens the Country once more with iniquitous Free-Trade legislation, and all its attendant train of commercial disasters and general industrial ruin.

Were Abraham Lincoln able bodily to revisit the United States to-day, how his keen gray eyes would open in amazement, to find that many legitimate fruits of our Union victories had been filched from us; that — save the honorable few, who, accepting the legitimate results of the War, were still honestly striving for the success of principles harmonizing with such results, and inuring to the general welfare—they who strove with all their might to wreck the Government,—were now,—through the fraudulent and forcible restriction of voters in their right to vote—at the helm of State; that these, who sought to ruin the Nation, had thus wrongfully usurped its rule; that Free-Trade—after "running-a-muck" of panic and disaster, from the birth of the Republic, to the outbreak of the Rebellion, with whose failure it should naturally have expired—was now reanimated, and stood, defiantly threatening all the great industries of our Land; that all his own painstaking efforts, and those of the band of devoted Patriots who stood by him to free the Southern Slaves, had mainly resulted in hiding from sight the repulsive chains of enforced servitude, under the outward garb of Freedom; that the old Black codes had simply been replaced by enactments adapted to the new conditions; that the old system of African Slavery had merely been succeeded by the heartless and galling system of African

Peonage; that the sacrifices made by him—including that of his martyrdom—had, to a certain extent, been made in vain; that all the sacrifices, the sorrows, the sufferings, of this Nation, made in blood, in tears, and in vast expenditures of time and treasure, had, in some degree, and in a certain sense, been useless; that the Union, to be sure, was saved—but saved to be measurably perverted from its grand purpose; that the power which animated Rebellion and which was supposed to have expired in the "last ditch" with the "Lost Cause" had, by political legerdemain and jugglery and violence, been regained; that the time had actually come for Patriots to take back seats, while unrepentant Rebels came to the front; that the Republic still lived, but only by sufferance, with the hands of Southern oligarchs about its palpitating throat—a Republic, not such as he expected, where all men are equal before the law, and protected in their rights, but where the rights of a certain class are persistently trampled under foot; that the people of the Northern, Middle, and Western States, observing nothing beyond their own vicinage, so to speak, and finding that each of their own States is still Republican in its form of government, persistently, and perversely, shut their eyes to the election terrorism practiced in the Solid South by, which the 16 solid, Southern States were, and are, solidified by these conspiring oligarchs into one compact, and powerful, political mass, ever ready to be hurled, in and out of Congress, against the best interests of the Nation—16 States, not all "Republican" in form, but many of them Despotisms, in substance,—16 States, misnamed "Democratic," many of them ruled not by a majority, but by an Oligarch-ridden minority—16 States, leagued, banded, bound solidly together, as one great controlling Oligarchy, to hold, in its merciless and selfish hands, the balance of power within this Republican Union; and that these confederated Southern States are now actually able to dictate to all the other States of the Union, the particular man, or men, to whose rule the Nation must submit, and the particular policy, or policies, which the Nation must adopt and follow:

"What next?"—you ask—"What next?" Alas, it is not difficult to predict! Power, lawlessly gained, is always mercilessly used. Power, usurped, is never tamely surrendered. The old French proverb, that "revolutions never go backward," is as true to-day, as when it was written. Already we see the signs of great preparations throughout the Solid South. Already we hear the shout of partisan hosts marshalled behind the leaders of the disarmed Rebellion, in order that the same old political organization which brought

distress upon this Land shall again control the Government. Already the spirit of the former aggressiveness is defiantly bestirring itself. The old chieftains intend to take no more chances. They feel that their Great Conspiracy is now assured of success, inside the Union. They hesitate not to declare that the power once held by them, and temporarily lost, is regained. Like the Old Man of the Sea, they are now on top, and they:

MEAN TO KEEP THERE—IF THEY CAN.

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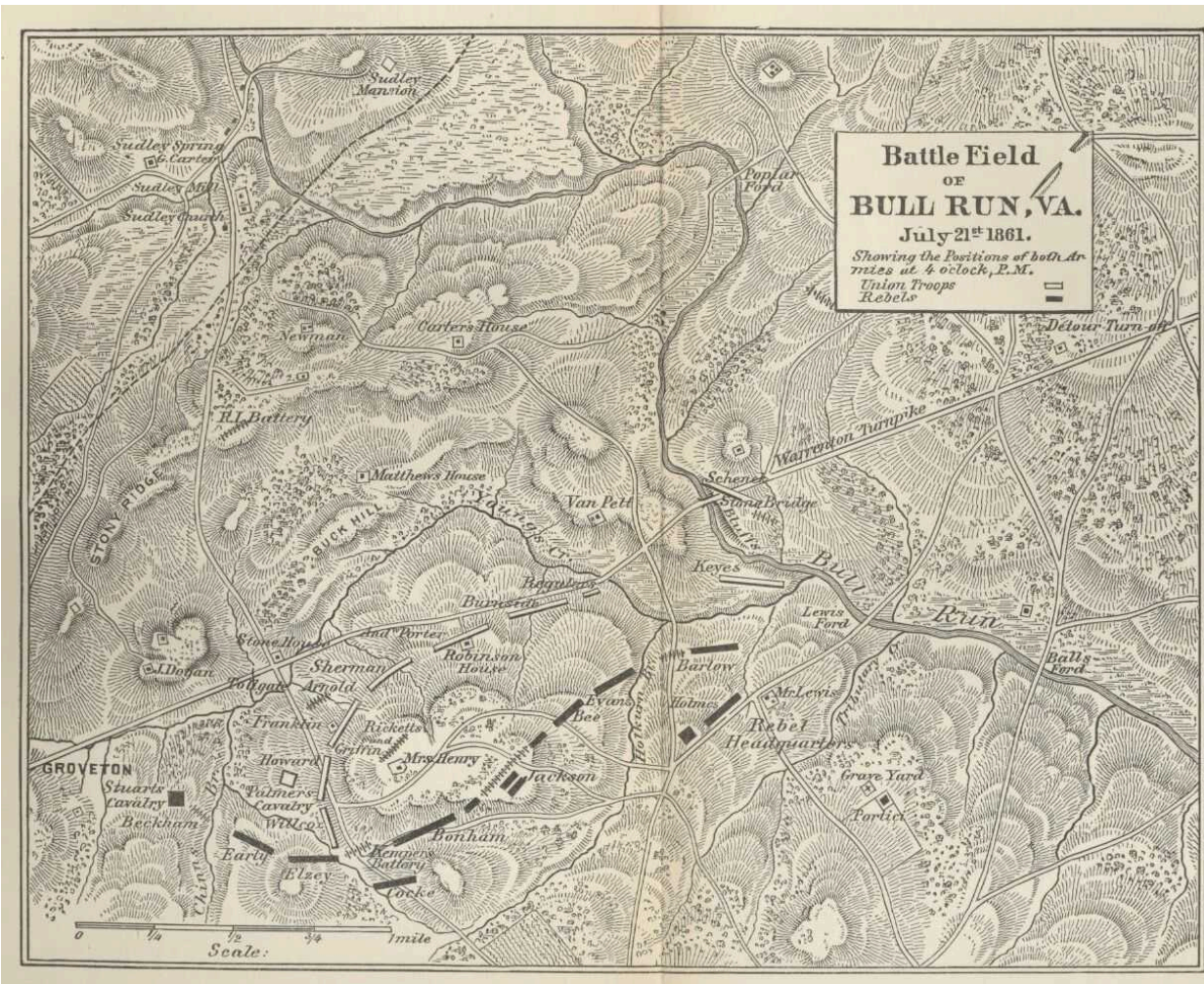
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